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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. WEBSTER of Florida).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
July 12, 2016.

I hereby appoint the Honorable DANIEL WEBSTER to act as Speaker pro tempore on this day.

PAUL D. RYAN,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 5, 2016, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

RECOGNIZING THE NEED FOR A 21ST CENTURY CAREER AND TECHNICAL EDUCATION SYSTEM

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise to thank my colleagues on the House Education and the Workforce Committee for their support last week in passing a reauthorization that I offered, the Carl D. Perkins Act, in the form of the Strengthening Career and Technical Education for the 21st Century Act.

Now, I am proud to say that this bill passed unanimously out of committee, which is good news because a reauthorization is badly needed.

It is no secret that our country continues to face significant economic challenges, and it is no surprise that many men and women are worried about their futures and their family's future. Last week a Gallup poll found that 54 percent—just 54 percent—of Americans believed today's young people will live a better life than their parents.

As a father, I can say there is nothing a parent wants more for their children than a life that is better than their own. When you hear that only half of all Americans expect their children to have a brighter future than they did, it becomes clear that we need to do better. And we can do better, not just for our own kids, but for the neighbor who can't find a job, the friend from church who struggles to make ends meet, the family that has been trapped in poverty with no pathway out, or the high school student who struggles and has no hope or inspiration that he or she has what it takes to succeed.

With the Strengthening Career and Technical Education for the 21st Century Act, we have an opportunity today to advance reforms that will help these and many other Americans, especially young Americans, obtain the knowledge and skills that they need to break the cycle of poverty and to achieve a lifetime of success. This bill will modernize and improve current law to better reflect the challenges and realities facing students, workers, and employers.

The bill will empower State and local leaders by simplifying the application process for receiving Federal funds and providing them more flexibility to use those resources to respond to the changing education and economic needs. These reforms will help State leaders focus on preparing students for the workforce—not duplicative or overly prescriptive Federal requirements—and enable them to determine the best way to do so.

To increase transparency and accountability, H.R. 5587 streamlines performance measures to ensure secondary and post-secondary programs deliver results, helping students graduate, prepared to secure a good-paying job or further their education. The bill also includes measures to provide students, taxpayers, and State and local leaders the information that they need to hold CTE programs accountable for delivering those results.

Finally, H.R. 5587 will reduce the Federal role in career and technical education and limiting opportunities for the Federal Government to intervene in State and local decisions and preventing political favoritism.

This is a bipartisan bill, Mr. Speaker. I thank my colleagues on both sides of the aisle for their help in creating it. I look forward to seeing it on the floor of the United States House of Representatives hopefully in the near future.

IRAN NUCLEAR AGREEMENT ANNIVERSARY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, this month we mark the first anniversary of an historic agreement between Iran and six major world powers, including some of our key western allies, plus Russia and China.

The agreement was designed to force Iran to back away from the nuclear threshold, acquiring nuclear weapons, which everyone agreed would be a disaster.

Instead of sober reflection on the success of the agreement, where we are and where we are going, we will, instead, be discussing legislation that is

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designed to have the United States break that agreement. In a very dangerous world, that agreement has made us a little bit safer. This would be a mistake of tragic proportions to undermine it.

Last year, Prime Minister of Israel, Benjamin Netanyahu, on this House floor, as part of his campaign to scuttle a potential agreement, warned that Iran was on the verge of acquiring nuclear weapons as thousands of centrifuges were whirling to enrich uranium.

While today, 14,000 centrifuges have been removed from service and placed under international supervision. Iran has removed nuclear material from its once secret facility at Fordow. It has reduced its stockpile of enriched uranium from 12,000 kilograms, with a purity as high as 5 percent, to only 300 kilograms, with a purity of no more than 3–2/3 percent. The core of the heavy water reactor at Arak has been filled with concrete. These are not abstract numbers and mere technicalities. Iran has adhered to the agreement, making a nuclear breakout harder, and take longer.

Make no mistake, Iran has some unsavory hardline people in key positions of leadership, but not everyone. President Hassan Rouhani has been a voice of and a force for moderation. The Iran people voted for him as a repudiation of the hardliners.

The Iranian people are still the most pro-American in the region, where even some of our allies have large anti-American populations. The majority of the Iranian people still like us, despite the fact that America cooperated with Britain to overthrow their popularly elected government in 1953 and install the Shah as dictator, despite the fact that the United States backed Saddam Hussein in the bloody Iraq-Iran war where we would later send American troops to overthrow him. At that time, he used poison gas—and we did nothing to stop him—against Iranians and against some of his own people.

The relationship with Iran is important to not just controlling nuclear threats. Iran is going to play a key role in this troubled area as the major Shia power. Our war against Iraq created huge problems, not just in Iraq, but Syria and Afghanistan. Iran will always play an outsized role. The question is, can we work with them toward peace and reconciliation?

I, for one, will vote against efforts to undercut the agreement when, after a year, all the evidence that I have seen is that the agreement is working and that Iran is complying.

I am encouraged that there is a memorandum of understanding with American company Boeing and Iran to purchase 80 jet airplanes and lease another 29, supporting over 100,000 jobs in the United States over the next decade. Rather than unwinding this agreement, people should support and strengthen it.

Notably, our other partners in the agreement have already started to take commercial advantage. I would rather have American jobs at Boeing than have Airbus sell even more planes to Iran or the French Bombardier manufacturer. The rest of the world has moved on and America should not move backward.

In a troubled world, an opportunity to strengthen ties with a former enemy through trade, job creation, and bringing us a bit closer together should not be a major cause for concern. It should be a cause for celebration.

REMEMBERING MIKE RHYNE

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. MCHENRY) for 5 minutes.

Mr. MCHENRY. Mr. Speaker, I rise today to honor Mike Rhyne, a great man and a friend from Rutherford County, North Carolina.

Mike served as an aldermen for Ellenboro, the same town where his brother, Jim, serves as mayor.

Ellenboro is a small town, but they don't actually view themselves that way. In fact, Mike and his late wife, Pat, were instrumental in starting the town's yearly festival. When they decided to figure out a name on what to call it, they called it ''Ellenboro's Big Day.'' That was sort of Mike's personality coming through in just the naming of that event. In fact, Mike gave me a T-shirt—and I still have it—''The Big Day'' T-shirt that he gave me a few years ago.

Mike also really deserves a lot of credit for restoring the old Ellenboro train depot and transforming it into the town's history museum. In this history museum, they pay tribute to the countless veterans that grew up, were raised, and came home to Ellenboro and to those that gave their lives in the service of our country. That really pays a special tribute to the community.

To Mike's family, I extend my sympathies. Ellenboro and Rutherford County have lost a true public servant, and I have lost a good friend.

RETIREMENT OF CATAWBA COUNTY CHAMBER PRESIDENT DANNY HEARN

Mr. MCHENRY. Mr. Speaker, I also rise today to honor a great man and a great friend, one of my constituents from Catawba County.

Dave Hearn has served as president of the Catawba County Chamber of Commerce and has done so for the last 12 years. He recently announced his retirement from 43 years of work with chambers of commerce throughout the southeast.

Danny is a graduate of Lenoir-Rhyne University. Shortly after graduation, he went to work at the local chamber of commerce as an intern, and that career would last him until actually just a few months from now.

He served local chambers, rising through the ranks from Norfolk, Virginia; Rockingham, North Carolina; Statesville, North Carolina; and he will finish his career in Hickory.

Danny is well known for a couple of different things in the community. Danny is most well known for his commitment to small business. He has fought tirelessly on behalf of the small business community and the business community generally.

In fact, one of the greatest accomplishments at the Catawba County Chamber of Commerce under Danny's leadership is the Edison project, a competitive contest that awards much-needed start-up capital to local entrepreneurs. He began this initiative in the midst of one of the worst economic downturns in western North Carolina history.

Danny knows that the backbone of our local economy and the backbone of our country is small business. He understands that small business development is the key to our region's economic development, growth, and recovery.

Danny's work with small businesses has truly paid off. Recent statistics show that wages in Catawba County are growing at a faster rate than most counties in the country, and this is a great success under Danny's leadership.

Danny is also extraordinarily well known for his love of golf. Danny's second-to-last day on the job in September will be hosting the chamber's annual golf tournament. What a fitting way and a truly poetic way for Danny to end his chamber career. He will be doing two of the great things that he is passionate about: working with small businesses leaders and playing golf.

So to Danny: You will truly be missed in Catawba County. Your leadership will be truly missed. However, your impact will be felt for generations to come. We thank you for your leadership, and I thank you for your friendship.

ADDRESSING SECURITY THREATS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Nebraska (Mr. ASHFORD) for 5 minutes.

Mr. ASHFORD. Mr. Speaker, we should not leave on the longest summer break in more than three decades while our Nation faces serious security threats.

There is no greater responsibility for this body than to keep our communities and our families safe. We face real threats from around the world, from the Zika virus, cyber threats, China, Russia, and North Korea. All of these demand attention, but we must act now to destroy ISIS.

The campaign of destruction waged by ISIS has created the worst crisis in the Middle East in a generation and is threatening American lives at home and abroad.

When I traveled to the Middle East 17 months ago, I came home and said that this must be our top priority. Congress must come together to develop a comprehensive strategy that attacks ISIS on all fronts, online and on the ground,

reducing and eliminating its territory and its ability to direct attacks around the globe. A commitment to this effort will allow our military to make long-term strategic decisions.

It is important for Republicans and Democrats alike to find a common vision for this effort. I do not believe that we cannot have and should not have a do-nothing summer while Americans are in jeopardy.

□ 1015

REMEMBERING JACK RUBIN

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Florida (Ms. ROS-LEHTINEN) for 5 minutes.

Ms. ROS-LEHTINEN. Mr. Speaker, it is with great sadness and a heavy heart that I come to the floor this morning to commemorate the life of a dear friend, Jack Rubin, who passed away last night at his home in south Florida.

Jack was a Holocaust survivor, the only member of his family to survive. He was liberated from Auschwitz in May of 1945, came to America, and served in our United States Army.

Over the course of his life, Jack dedicated his time to raising awareness about the horrors of the Holocaust and fighting for the needs of survivors. Jack was a regular on Capitol Hill, meeting with Members of Congress and testifying before Congress four times in 2007, 2008, and twice in 2014.

On September 18, 2014, Jack testified before a subcommittee hearing, which I chaired, about the struggles of recovering assets for Holocaust survivors, and the struggle continues. At this important hearing, Jack laid out all of the difficulties, all of the challenges that Holocaust survivors are facing in America today, the continued struggle to find the justice that has evaded most of them for over 70 years, and the poverty, the lack of medical care, dental care, mental health care for many survivors.

That is why my colleague, TED DEUTCH, and I authored a resolution, which already passed the House, urging the German Government to fully fulfill its moral responsibility to Holocaust survivors and urgently provide the financial resources necessary to ensure that survivors live in dignity and comfort in their remaining years.

I urge my colleagues in the Senate to pass this measure immediately because this is about survivors getting all of their needs addressed and getting them addressed immediately.

I offer my sincere condolences to Jack Rubin's widow, Shirley, and their three children—Michael, David, and Lynn—and many grandchildren.

In the 2014 hearing, Mr. Speaker, Jack stated: We are losing more and more survivors every day, and the ones remaining need our help now.

We will never forget you, Jack Rubin. We must honor Jack's legacy, Mr. Speaker, by continuing to pursue justice for all Holocaust survivors.

ANNIVERSARIES OF THE IRAN DEAL AND THE AMIA ATTACK

Ms. ROS-LEHTINEN. Mr. Speaker, this Thursday marks the 1-year anniversary since the administration and the rest of the P5+1 nations signed the weak and dangerous Iran nuclear deal. One year later, and Iran continues its push for ballistic missiles, and we are seeing reports from Germany's intelligence services that Iran's proliferation activities have not stopped, that the regime has increased its efforts to advance its chemical and biological warfare capabilities as well as its nuclear weapons program.

This week, the House will bring to the floor various bills that would amplify sanctions against Iran. We must ensure that Iran is held accountable for its terror activities and that individuals engaged in such activities are brought to justice.

Monday marks the 22nd anniversary of the attack against the Argentinian Jewish Community Center called AMIA in Buenos Aires, Argentina. Iran and its proxy Hezbollah, a designated foreign terrorist organization, were behind this heinous and cowardly attack which killed over 80 people and injured hundreds more.

Unfortunately, thanks to this weak nuclear deal, some of Iran's most notorious criminals will see sanctions against them lifted, including several individuals responsible for the AMIA bombings. One, General Vahidi, for example. He is a former Quds commander, a former Iranian defense minister, and he has been wanted by INTERPOL since 2007 for his direct role in the AMIA attack.

Guess what? His name was one of the ones included in this Iran deal for sanctions to be lifted.

Is that justice, Mr. Speaker?

Last year, the special prosecutor on the AMIA and my dear friend, Alberto Nisman, was killed in his home in Buenos Aires. I urge the Argentine authorities to do everything in their power to continue to properly and thoroughly investigate his death so that those responsible can be brought to justice.

The AMIA attack serves as just one reminder of the many threats from Iran and its nefarious proxies that endanger our national security, the Middle East, and our ally, the Democratic Jewish State of Israel.

As we mark the 1-year anniversary of this horrible nuclear deal and commemorate the 22nd anniversary of the AMIA attack, we must redouble our efforts and commitments to hold Iran and all of its cohorts fully accountable.

WE NEED TO STAND UP FOR THE LGBT COMMUNITY

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Connecticut (Ms. ESTY) for 5 minutes.

Ms. ESTY. Mr. Speaker, today marks 1 month since the horrific attack on Pulse nightclub that took 49 lives. Many of us have come here to this floor raising our voices to demand that this House take action to prevent the loss of life from guns in this country.

But one critical, tragic aspect of this crime that sometimes has gotten lost is exactly who was targeted in the shooting. Pulse was a mainstay of Orlando's LGBT community, and of the Latino community in particular. Now, more than ever, we need to unite against hatred, discrimination, and bigotry. We need to stand together in calling for justice, peace, and equality.

I am, frankly, appalled to see that today, today on the 1-month anniversary of the shootings at the Pulse nightclub, instead of standing with the LGBT community, instead of passing background checks, today the Committee on Oversight and Government Reform will be advancing legislation to undermine the existing and insufficient protections that the law provides for LGBT Americans.

I am proud that my home State of Connecticut is one of several States to pass legislation protecting the LGBT community from discrimination, whether folks are at work, at school, at the doctor's office or, yes, using a public bathroom. Our residents support these laws. We support these protections. LGBT folks are our brothers, our sisters, our friends, our neighbors. They are our kids' teachers, coaches, and their friends. They give back to our community. They volunteer at church. They serve in public office.

In Congress we should be focusing on legislation to prevent discrimination and prevent hatred. Our goal should be a country in which all Americans, in every State, can live their lives free from bigotry and harassment and free of the fear of being targeted with guns because of who people are. Quite simply, I can't imagine a worse way for Congress to respond to the massacre in Orlando than with legislation attacking LGBT Americans.

The American people overwhelmingly believe that discrimination targeting the LGBT community has no place in our society, and yet a bill to support that discrimination is getting a full hearing today. Meanwhile, legislation to keep guns out of the hands of terrorists that has broad, bipartisan support among the public cannot get so much as a vote in this House.

In the 3½ years since the Sandy Hook massacre in my State, in my district in Connecticut, this House has failed to take any action, any action whatsoever to prevent the deaths of Americans by guns. In that time, 100,000 Americans have died from guns, 49 of them in the largest mass shooting in American history 1 month ago, targeted because they are LGBT at the Pulse nightclub in Orlando.

Mr. Speaker, it is time to get our priorities straight. It is time for us to do what the American people sent us here to do. Let us send a very clear message: We stand up against hatred and discrimination; we stand with our LGBT

brothers and sisters; and we stand with the American people who are demanding that this House take action to keep guns out of the hands of dangerous people, to keep guns away from terrorists, to keep guns away from criminals, to keep guns away from domestic abusers, and to keep guns away from the dangerously mentally ill.

We need a vote on no fly, no buy. We need a vote on comprehensive background checks on every commercial sale of a gun. The time to act is now, Mr. Speaker, and action is not increasing voting to increase discrimination against our LGBT brothers and sisters and to make them more vulnerable to the gun violence that wracks this country. We need to act. The time is now.

REMEMBERING DAVID ELAHI

The SPEAKER pro tempore. The Chair recognizes the gentleman from Louisiana (Mr. ABRAHAM) for 5 minutes.

Mr. ABRAHAM. Mr. Speaker, early on Sunday, July 3, while most of us were resting up for our Independence Day weekends, Sergeant David Elahi was conducting highway safety patrol measures in Sterlington, Louisiana, a city which I represent.

That morning, a drunk driver struck and killed David while he was conducting a traffic stop. The driver injured two other officers as well. David was only 28 years old. Communities in Ouachita Parish and the surrounding areas are still reeling from David's death because, according to all accounts, he was just a great guy.

He was a family man who left behind a 2-year-old daughter and his fiancee, who is expecting a child in January. That shift was supposed to be David's last full-time shift for the Sterlington Police Department. He was planning to retire to take care of home, go back to a business that he had started, wanted to improve it, but he didn't get there.

I rise today because our Nation needs to know about David. They need to know that he was a model citizen pursuing the American Dream. He was proud of his family. He was proud of his church. He was proud of his home, and he was proud of the service he provided.

Last week was a dark week in our Nation. The deaths in my home State of Louisiana as well as those in Texas and Minnesota have once again thrust into the forefront a debate on the role our law enforcement officers play in policing our communities.

There have been calls to harm our police, and one man in Dallas did just that. For the first time in history, graphic scenes from our streets are being live-streamed on the Internet. People are reacting sometimes in violent ways. All loss of life is tragic. More violence is not the answer. When tragedies occur, we must fully investigate them and hold accountable any who acted wrongfully.

But even when bad things happen, we cannot let these events define who we are and react in ways that divide us. Most of us want the same things: to provide for our families, to better our communities, and to serve our God. The Bible tells us that patience is a virtue, and we must use that wisdom today as we seek answers to questions everyone in society is asking.

For me, personally, I believe the overwhelming majority of our police officers are just like David. They serve because they want to make a difference, they want to make their communities a better place. They are there and they serve simply because they care.

I would encourage everyone listening to take a deep breath and reflect on the services of David Elahi. I want you to think about how he served his community. I want you to think about his fiancee, his daughter, and the child who will never know him from this point on. I want to remember that family members of all our law enforcement officers share intimately in the cause of public safety that they want to provide.

I also want to think about those five officers in Dallas who lost their lives in the line of duty and how their fellow officers ran toward the gunfire while others ran away. That is what our officers do. That is why they keep us safe. No institution is perfect. People like David do not deserve to be vilified because they chose to serve and protect. People like those officers in Dallas didn't deserve to be marked for death because they were simply police officers. They did their duty, and they were killed because of it.

So thank a law enforcement officer today for what they do for you and for me. Thank their families for sharing in their sacrifice. Say a prayer for David, his family, and the Sterlington community, and say a prayer for all of those who wear the badge.

□ 1030

GIVE US A VOTE

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of California. Mr. Speaker, why is it that more than 80 percent of NRA members and over 80 percent of gun owners support background checks? Well, I will tell you why. It is because they are responsible gun owners; and responsible gun owners understand that there is nothing wrong with making sure that a prospective gun buyer isn't a terrorist, a criminal, a domestic abuser, or dangerously mentally ill.

The Supreme Court made that perfectly clear in District of Columbia v. Heller. The Court ruled that, while Americans have the right to keep and bear arms, there are no constitutional problems with laws prohibiting felons and the dangerously mentally ill from carrying guns.

As a responsible gun owner myself, I will never give up my guns, and I will never ask law-abiding individuals without a history of dangerous mental illness to give up theirs. And, like other responsible gun owners, I understand that if gun violence continues unabated, then eventually we will see laws that place substantial and overly burdensome restrictions on our right to own guns.

To reduce gun violence, we don't need to stop law-abiding citizens who use guns for hunting, sport shooting, and personal protection from obtaining those firearms. We need to stop terrorists, criminals, domestic abusers, and those with a history of dangerous mental illness from getting guns.

Our first line of defense when it comes to making sure that guns don't fall into dangerous hands is to conduct a background check. And we know that, when used, background checks work.

Every day, background checks stop more than 170 felons, some 50 domestic abusers, and nearly 20 fugitives from buying a gun. But sadly, a gaping loophole allows those same felons, dangerously mentally ill, and domestic abusers to bypass a background check in 34 States. All they have to do is go online or go to a gun show. That is wrong; that is dangerous; and that loophole needs to be closed.

That is why it is long past time for the Republican leadership to allow a vote on H.R. 1217, my bipartisan, pro-Second Amendment bill to require a background check for all commercial gun sales. The bill bolsters the Second Amendment rights of lawful gun owners by making sure that the bad guys can't easily bypass background checks when trying to buy a gun.

Just as important for the safety and security of our country and our fellow Americans is H.R. 1076, bipartisan, pro-Second Amendment legislation to prohibit those who are on the FBI's terrorist watch list from being able to legally buy a firearm. We should be able to agree that suspected terrorists shouldn't be able to legally buy a gun or guns of their choosing.

As a responsible gun owner, I am fed up with those who are blindly opposed to background checks hiding behind bumper sticker slogans like: ''Guns don't kill people; people kill people.'' Everyone knows that guns don't kill people, which is exactly why responsible gun owners and the overwhelming majority of the American people understand that it is important to run a background check to see if the person buying the gun is a danger to our community.

This debate isn't a choice between respecting the Second Amendment or reducing gun violence. As a responsible gun owner, I am tired of it being framed that way. It is about this Congress doing both.

The Supreme Court's Heller ruling provides people on both sides with an

opportunity to work within the confines of the Second Amendment to pass legislation that will reduce gun violence and keep our communities safe. Responsible gun owners across our country understand that. It is time for the Republican leadership in the House to understand it, too.

Mr. Speaker, give us a vote.

HONORING THE LIFE OF NICHOLAS ''CORKY'' DEMARCO

The SPEAKER pro tempore. The Chair recognizes the gentleman from West Virginia (Mr. MOONEY) for 5 minutes.

Mr. MOONEY of West Virginia. Mr. Speaker, on Friday afternoon, I was deeply saddened to hear about the passing of one of West Virginia's finest gentlemen, Nicholas ''Corky'' DeMarco.

A lifelong West Virginian, Corky was a leader in our State, in both private and public service. For those of you who did not have the privilege of knowing him, let me tell you a little bit about him.

I got to know Corky through our discussions about how West Virginia can benefit from our natural bounty. Under Governor Cecil Underwood, Corky served as the director of operations for the State and helped bring more jobs and industries to West Virginia.

Most recently, Corky served as the executive director of the West Virginia Oil and Natural Gas Association. During his time with the association, he more than tripled their membership and made significant contributions to the oil and gas industry in West Virginia.

His devotion to growing jobs in our State was strong, but his love for family came before anything else. For Corky, the most important thing in life was his family: his wife, Catherine; two grown sons, Matthew and Joey; and his stepson, Jason Milano.

I join all West Virginians in keeping Mr. DeMarco's family in our thoughts and prayers during this difficult time. Corky will be truly missed.

OPIOID ADDICTION

Mr. MOONEY of West Virginia. Mr. Speaker, overuse of prescription pain medication is one of the leading causes of opioid addiction. When a patient has more narcotic pain medication than they need after a medical event, this excess medication can fall into the wrong hands.

Narcotic pain medication in the wrong hands often leads to addiction. In fact, the National Institute on Drug Abuse has found that 1 in 15 people who take nonmedical prescription pain relievers will try heroin.

Last year, the number of fatal overdoses from prescription painkillers increased by 16 percent—and 28 percent from heroin—in the United States. In West Virginia, the story is even worse. According to a recent study by the Trust for America's Health, the Mountain State has the highest rate of overdose deaths in the entire United States.

This issue is above party politics. It is a plague that all Americans must come together to solve. That is why, in February, I introduced H.R. 4499, the Promoting Responsible Opioid Prescribing Act. This bipartisan bill strikes a harmful provision of ObamaCare that places unnecessary pressure on doctors and hospitals to prescribe narcotic pain medication.

This concern was brought to my attention while meeting with doctors and other healthcare professionals in Charleston, West Virginia, who are active in our State's medical society. I thank them for bringing this to my attention. It is a perfect example of how government works well. You bring an issue to your Congressman's attention, and he takes action to solve it.

This was their idea. I thank them for bringing it to our attention. I encourage everyone to bring the ideas you have to help fight back against the opioid epidemic to your local Congressman.

I am proud to say that, less than a week ago, the Department of Health and Human Services announced they are implementing the important policy changes contained in my bill. Almost word for word, the new rules are exactly what my bill says need to be done.

Since I first introduced the PROP Act in February, I have been calling on Congress to pass my bill. This bipartisan legislation has 27 Republican cosponsors and 16 Democratic cosponsors. My bill puts doctors, not the Federal Government, in control of opioid-prescribing decisions. This change in policy is an important fight against opioid abuse.

I want to thank the 43 cosponsors in the House and the 8 cosponsors in the Senate in our successful effort to pass this bill's policies through regulation and help put an end to opioid abuse.

LET'S PUT AN END TO GUN VIOLENCE

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Massachusetts (Ms. TSONGAS) for 5 minutes.

Ms. TSONGAS. Mr. Speaker, our Nation has been repeatedly confronted by senseless and tragic acts of gun violence; and now our country grieves with yet more heartache following the shocking and horrific attack in Dallas last week, an attack that took place during a peaceful protest where citizens were exercising their basic rights as Americans, as Dallas police officers supported and protected this fundamentally American right.

As President Obama said: ''There is no possible justification for these kinds of attacks or any violence against law enforcement.''

This event added to an already heartbreaking week, after the deaths of Philando Castile in Minnesota and Alton Sterling in Louisiana. Today, I am thinking of their families, friends, and loved ones, as I am of the 49 lost at the Pulse nightclub in Orlando just a month ago.

I believe that law-abiding citizens have a constitutional right to own firearms, whether for sport or personal protection; but I also know that responsible personal freedom and public safety are not mutually exclusive.

Shootings have become unacceptably commonplace in our country, and Congress has a responsibility to do more to keep guns out of the hands of criminals, domestic abusers, and the dangerously mentally ill. In fact, recent polls show that support for universal background checks hovers around 90 percent.

No other developed country in the world has the same rate of gun violence as the United States. According to United Nations data, the gun homicide rate in our country is more than 7 times that of Sweden, 6 times that of Canada, and, unbelievably, 21 times that of Australia.

As President Obama stated, following the shooting in Oregon: ''We are the only advanced country on Earth that sees these kinds of mass shootings every few months.''

I agree with Dallas Police Chief David Brown when he said that police departments cannot be expected to solve our Nation's gun violence problem by themselves. As policymakers, we must be doing more. We should all be inspired by Chief Brown's commitment and willingness to work through personal heartbreak toward a more just and violence-free society.

Chief Brown's urgency is echoed in letters I have received from young people in my district. Headlines in our communities and those that make national news do not go unnoticed by our Nation's youngest citizens, children who are growing up with heightened fear, some even afraid to go to school.

Abbey, age 13, from Gardner, Massachusetts, wrote to me: ''Every single day at school, I am scared an armed intruder will come in,'' going on to say that ''the amount of gun violence in our country is piling up, and we need to stop it.''

Andrew, a high school freshman from Dracut, wrote: ''I have been noticing there are more shootings lately, maybe because I am getting old and paying more attention to what is happening around me than I did before.'' Imagine, at 14, he is feeling old as he watches our news.

Miriam, from Acton, wrote: ''I am only 17 years old, so this current climate of fear and violence is all I have ever known. However, I know that this amount and frequency of bloodshed is not and should not be normal.''

As a mother, grandmother, and American citizen, it is unconscionable that our children and grandchildren are growing up in a world where they see mass shooting after mass shooting, met only by a moment of silence on this floor.

Mr. Speaker, in Congress, we have a moral responsibility to pursue change.

We must address the senseless violence and injustice afflicting our Nation with ''the fierce urgency of now,'' to quote the Reverend Dr. Martin Luther King, Jr. Our call to action is made more painful and more real with each passing day.

Mr. Speaker, bring a vote to the floor on commonsense, universal background check legislation that will keep guns out of the hands of terrorists, criminals, domestic abusers, and the dangerously mentally ill.

GUN BILL

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. CURBELO) for 5 minutes.

Mr. CURBELO of Florida. Mr. Speaker, I rise in support of the bipartisan legislation I have recently filed to keep guns out of the hands of terrorists.

H.R. 5576, the Terrorist Firearms Prevention Act of 2016, is similar to the bipartisan agreement championed by Senator SUSAN COLLINS, and would deny the sale of firearms to individuals on the no fly and selectee lists, while ensuring due process is protected for law-abiding gun owners.

It was recently announced the House is unlikely to consider any legislation this week pertaining to terrorist access to firearms, and for this, I am truly disappointed.

Mr. Speaker, it is time to do something, and this commonsense, bipartisan legislation is a step in the right direction. I will continue to work with Members on both sides of the aisle to strike a bipartisan compromise that will protect law-abiding citizens' constitutional rights, while denying the sale of guns to terrorists.

RECOGNIZING NORBERTO ORELLANA

Mr. CURBELO of Florida. Mr. Speaker, I rise to recognize Mr. Norberto Orellana, an incredible young man who, despite facing health challenges and long-term homelessness, recently graduated from the School for Advanced Studies at the Miami-Dade College Homestead campus with a near perfect GPA, a full ride to college, and a dream to go to medical school.

Mr. Orellana has already confronted more hardships in his young life than many of us will encounter in our lifetimes, but he does so with a positive attitude that inspires all of us.

Mr. Orellana was born with cerebral palsy, a permanent movement disorder caused by abnormal development in the part of the brain that controls balance and posture.

□ 1045

By the time he was 5, he had undergone three major surgeries to correct a club foot, lengthen his muscles, and reshape his bones.

He and his family also battled homelessness, moving from shelter to shelter. However, he never allowed his circumstances to dictate his attitude or detract from his belief in his own potential. He used his time spent in hospitals to fuel his burning desire to become a pediatric orthopedic surgeon.

It is an honor for me to recognize Mr. Norberto Orellana on the occasion of his graduation. I cannot wait to see what the future holds for such a bright young mind.

COMPREHENSIVE STRATEGY TO DESTROY ISIL

Mr. CURBELO of Florida. Mr. Speaker, the attacks in Orlando, San Bernardino, and across Europe are a horrific reminder that the war on terror continues, and that radical extremism from groups like ISIL remains a danger to all freedom-loving people. It is critical that a plan is in place to destroy this enemy before the United States and our allies face more senseless violence from cowardly terrorists.

For these reasons, I have cosponsored Representative KINZINGER's bill, H.R. 4869, the Comprehensive Strategy to Destroy ISIL Act of 2016. This legislation directs the Secretaries of State and Defense to submit a joint report to Congress on the strategy to destroy ISIL and its affiliates.

It is imperative the U.S. and our allies defeat these radical terrorists on their home turf, and this legislation will require a plan from the administration to do just that. I look forward to working with my colleagues on both sides of the aisle to pass this critical bill.

CONGRATULATING TWO FLORIDA KEYS COMMUNITY COLLEGE STUDENT-TEAMS

Mr. CURBELO of Florida. Mr. Speaker, I rise today to recognize two Florida Keys Community College student-teams who won five medals, two of them gold, at the annual NASA Engineering Challenges at the Kennedy Space Center in Florida.

This yearly competition is geared towards encouraging students to pursue STEM-related fields. The TechKeys and RocketTrees worked together to take home the gold in the high-altitude balloon experiment.

FKCC is one of only three colleges in Florida to receive a $134,000 grant from the Florida Space Grant Consortium to support the program for 2 years. This grant also provides scholarships to each participating student. Each of these students is also now eligible for an internship at NASA as long as they remain enrolled in a Florida college.

Congratulations to the students and their professor, Dawn Ellis, on this prestigious accomplishment. I am proud that they are bringing awareness to the importance of science, technology, engineering, and math.

OUR NATION IS TIRED OF GUN VIOLENCE

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Illinois (Ms. SCHAKOWSKY) for 5 minutes.

Ms. SCHAKOWSKY. Mr. Speaker, our Nation is grieving. We are tired. We are tired of the violence that too often unsettles our communities.

What a week we had last week. We were horrified by the deaths of Lorne Ahrens, Michael Smith, Michael Krol, Patrick Zamarripa, and Brent Thompson—five officers murdered by a sniper in Dallas while they were on duty.

We saw very troubling videos of Philando Castile and Alton Sterling being shot.

Today we also mark the 1-month anniversary of the shooting at the Pulse nightclub in Orlando, a hateful act on the LGBT community that took the lives of 49 people. This shooting shook the country, as have the many mass shootings that have preceded it.

As we still process these deaths, daily violence continues in communities around the country. Over the weekend, the total number of shootings in Chicago, where I come from, this year exceeded 2,100. Over 300 people in Chicago have now died from gun violence in 2016.

I have received hundreds and hundreds of letters from constituents of all ages concerned about the effect of gun violence in our communities and in their communities.

Yesterday I received a letter from a young constituent, an 8-year-old named Kaline. She wrote: ''I read the Sun-Times every day like my dad. I read and still think about the story of Tyshawn Lee. It's just hitting my mind all the time because it's not fair. It makes me cry.''

Tyshawn Lee was a 9-year-old boy in Chicago deliberately assassinated, shot multiple times in the head.

Kaline continues: ''I hope people can make better decisions about what to do with guns. I hope people stop fighting about whether we should do gun control because I worry more people and kids like Tyshawn will be killed.''

We can't accept violence as normal. This is not the country Kaline should have to grow up in. And how do you explain to an 8-year old that in America, with 91 people dying from gun violence every single day, we have taken no meaningful action?

We take action all the time to protect our kids from threats to their safety. We have regulations in place on teddy bears and pacifiers, to protect children's health and safety, but nothing for guns.

Guns are specifically exempted from regulation by the Consumer Product Safety Commission, the agency charged with protecting consumers from unreasonable risk or injury or death. Gun manufacturers are protected from liability for damage caused by their weapons. The Centers for Disease Control is actually prohibited, in law, from studying the public health risk of guns.

Robert, a 91-year-old and a veteran of World War II from my district wrote: ''You know better than I do the vast array of efforts to protect the American people from the recklessness and avarice in the marketplace, yet Congress has failed the people in the matter of gun control . . . Today the

American public is crying for laws,'' he says.

Robert is right. I can think of no other product or industry that has so few measures in place to protect our safety, and we need to rethink our approach to guns. We can't put the interests of gun manufacturers and the gun lobby ahead of the safety of our communities. Those of us in Congress have the power to do something, and it is long past time for us to act.

We can start with measures that have broad support among the American people. Ninety percent of Americans support comprehensive background checks. Background checks would help reduce the flood of weapons that come into Chicago from gun shows and online sales.

Would it stop every shooting? Of course it wouldn't. But would it save some lives? Absolutely.

My heart goes out to the families in Dallas and Orlando and Chicago and so many other places that have had the lives of their loved ones stolen away by gun violence, and we need to grieve. But after that moment of silence, we must direct our sadness and our anger into action.

The problem of violence in communities may seem insurmountable, and no single policy will stop every death. But we should start by passing commonsense gun legislation supported by the vast majority of the American people.

We need a vote on legislation to keep guns out of the wrong hands. Republicans and Democrats and gun owners and NRA members agree that background checks for every gun purchase and closing the gun show loopholes and all the other loopholes will help.

So give us a vote, Mr. Speaker. My constituents are crying for action. Let's act, not ignore their cries any longer. Give us a vote.

NATIONAL STRATEGY FOR COMBATING TERRORIST, UNDERGROUND, AND OTHER ILLICIT FINANCING

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. COSTELLO) for 5 minutes.

Mr. COSTELLO of Pennsylvania. Mr. Speaker, I rise today to speak in support of H.R. 5594, the National Strategy for Combating Terrorist, Underground, and Other Illicit Financing Act. I wish to commend my colleague from Pennsylvania, Congressman MIKE FITZPATRICK, for his leadership on this bill.

This bill would direct the President to work with the Secretaries of the Treasury, State, Defense, and Homeland Security Departments, as well as Federal banking agencies and the Director of National Intelligence to create a comprehensive national strategy to push back against terror financing.

This national strategy would call for an ability to adapt to technology developments used by terrorists and to use technology to fight terror financing; it would encourage working with private financial institutions; and it would emphasize coordination efforts between international, State, and local officials.

This is a very good bill, and I am proud to support it.

SIMPLIFYING THE APPLICATION FOR STUDENT AID

Mr. COSTELLO of Pennsylvania. Mr. Speaker, I rise today to speak in support of H.R. 5528, the Simplifying the Application for Student Aid Act.

This bill would make it easier for students to fill out the free application for Federal student aid, also known as the FAFSA form, in a number of ways. It would allow students to apply for financial aid earlier by using tax data from the 2 years prior before the FAFSA is dated. Under this legislation, some of the critical information FAFSA requires would be automatically entered, removing barriers that could hinder students in need from applying for aid.

We should do everything we can to assist students who want to attend college. And, Mr. Speaker, this legislation will help many students get more of a head start on responsible financial planning for their future.

SOLAR FUELS INNOVATION

Mr. COSTELLO of Pennsylvania. Mr. Speaker, I rise today to speak in support of H.R. 5638, the Solar Fuels Innovation Act.

This legislation would enable the Federal Government to contribute to advancing energy technology at early stages through the Solar Fuels Basic Research Initiative at the Department of Energy.

The initiative would focus on the areas of science that are necessary to develop solar fuels, such as chemistry and materials science. It is important, indeed, and it is critical that we accelerate the research and deployment of next generation clean energy technologies.

In authorizing this research, which would be made available to companies, the Federal Government would help cutting-edge companies take the critical next steps in energy innovation. If we are thoughtful in how we advance American energy innovation, we can create jobs, preserve our resources, and improve the health of our communities.

RECOGNIZING JOSEPH PARIS

Mr. COSTELLO of Pennsylvania. Mr. Speaker, I wish to recognize Joseph Paris, a teacher at the Stetson Middle School in the West Chester Area School District, who received the Bob Thompson Excellence in Energy Award from the National Energy Education Development Project.

Mr. Paris has been bringing technology into the classroom, while spurring interest and encouraging students to succeed. Great job, Mr. Paris.

RECOGNIZING THE HOME OF THE SPARROW AS NONPROFIT OF THE YEAR

Mr. COSTELLO of Pennsylvania. Mr. Speaker, I wish to recognize the Home of the Sparrow as Nonprofit of the Year, as recognized by The Main Line Chamber of Commerce.

The Home of the Sparrow provides housing, education, and access to community resources to low-income women in Chester County. And the Home of the Sparrow has helped bring positive change to so many, and continues as a stellar, caring example of making a difference in Chester County.

GUN VIOLENCE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Colorado (Mr. PERLMUTTER) for 5 minutes.

Mr. PERLMUTTER. Mr. Speaker, it has been 4 days since the mass shooting in Dallas. It has been a month since the mass shooting in Orlando. It has been 7 months since the mass shooting in San Bernardino, and at the Planned Parenthood clinic in Colorado Springs. It has been a year since the mass shooting in Charleston. It has been 2 years since the mass shooting in Umpqua Community College in Oregon. It has been 3½ years since the mass shooting in Newtown, Connecticut. It has been 4 years since the mass shooting at the theater in Aurora, Colorado. It has been 5½ years since the mass shooting in Tucson, Arizona, where our colleague, Gabby Giffords, was shot.

Mr. Speaker, please talk to Speaker RYAN. Not once, after any of those shootings, in all of these 5½ years, have we had one hearing or one vote on gun violence, not one.

Now, we have had 60 votes on repealing the Affordable Care Act, none of which went anywhere. The Republican majority has spent millions of dollars going after Benghazi or emails to no avail; but not one vote, not one hearing, nothing on gun violence.

□ 1100

Now, Mr. Speaker, you know I would much rather be here talking about the Broncos winning the 50th Super Bowl. I would much rather be talking about the unbelievable accuracy of NASA getting the Juno satellite to Jupiter after 5 years of space travel within 1 second of the planned time. I would much rather be talking about Jenny Simpson, who is a University of Colorado graduate who is going to Rio, and wish her much success and that the wind be at her back. Those would be a lot more fun. Those would be some things I would love to do. But we have got to grapple with this issue. It is not going away, and we are not going away.

We asked for two commonsense pieces of legislation. They certainly aren't going to handle all the ills of society, but one is no fly, no buy; meaning, if you are on the terrorist watch list, you don't get a gun. The second is so common sense, which is background

checks on anybody who wants to purchase a weapon.

Those two simple pieces of legislation we have asked to be brought to this floor. In fact, a couple weeks ago, we were so upset that we actually did a filibuster and broke some rules of this House to try to make our voices heard to have a vote. The Republican majority has refused to let us have that vote.

Let us have a hearing. These are bipartisan pieces of legislation sponsored by Mr. KING. Mr. CURBELO, just a second ago, asked that something be brought up, but it is not going to be brought up.

It is time. It is time that we have a vote. It is time that we have a hearing. It is time that we do something about gun violence.

Today I just brought the picture of Garrett Swasey, the police officer who was killed in the mass shooting at the Planned Parenthood facility in Colorado Springs, and a picture to remember, Alex Teves, who was killed in the Aurora movie theater protecting his girlfriend from being shot by a madman who thought he was The Joker.

It is time, Mr. Speaker. It is time, Mr. Speaker, that we address these things. We can't avoid it any longer. These subjects are not going away. We are not going away. These people cannot have died in vain.

Whether it is the 5 police officers shot last week, the 49 people killed at the nightclub, the hundreds who have been killed by guns over the course of the last few years, it is time for a hearing, and it is time for a vote.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 11 o'clock and 2 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Merciful God, we give You thanks for giving us another day.

Bless the Members of this people's House with wisdom and the courage to address the pressing difficulties of our time. You know each one personally, through and through, and how they relate with one another. You know them, as Your people know them, as the 114th Congress.

Help them to know You. Impel them by Your spirit to act justly and walk humbly with You.

Inspire all of our citizens, as well, to look first to their blessings and then charitably to the work of this people's House. Each Member chooses to serve another day. May each serve with honor, and merit the appreciation of those whom they serve.

May all that is done this day be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from Virginia (Mr. FORBES) come forward and lead the House in the Pledge of Allegiance.

Mr. FORBES led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

RESTORING THE CONSTITUTION

(Mrs. WALORSKI asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. WALORSKI. Mr. Speaker, I rise today to take a stand against bureaucracy run amok. Every day I hear from hardworking Hoosiers, small-business owners, and family farmers buried under red tape. They feel like their government is actively working against them. From ObamaCare, to the EPA, to many other agencies, the Obama administration has been churning out complex and costly regulations. This has to stop.

We can't have small business, farmers, and other engines of our economy held back by the threat of a regulator knocking on their door. That is why we have a plan to restore the Constitution. House Republicans recently released our plan for A Better Way to make our government more accountable and transparent and give power back to the people.

Today we are also taking an important step toward reining in regulators and rebuilding the checks and balances our Founding Fathers intended with the Separation of Powers Restoration Act. Mr. Speaker, with this bill, and our A Better Way agenda, the House is standing up for the people against out-of-control bureaucracy.

REBUILDING OUR INFRASTRUCTURE

(Mr. HIGGINS asked and was given permission to address the House for 1 minute.)

Mr. HIGGINS. Mr. Speaker, the poor condition of America's infrastructure costs our economy hundreds of billions of dollars each year. Freight bottlenecks, aviation congestion, inadequate ports, and deteriorating roads will cost 2.5 million American jobs over the next 10 years unless we address it.

Meanwhile, interest rates are at a historic low. The yield on a 10-year Treasury bond is 1.4 percent. Indexed for inflation, the interest rate is negative.

Observing this, Nobel Prize economist Paul Krugman wrote: ''They say that money talks; well, cheap money is speaking very clearly right now, and it's telling us to invest in our future,'' to nation-build in America.

Increasing spending by $250 billion a year, the amount needed to bring our infrastructure to a state of good repair, would create 3 million jobs and would improve America's competitiveness in the long term.

We should use today's record low rates to finance this inevitable spending. Refusing to do so makes no economic sense. I encourage this Congress to reconsider before this opportunity is lost.

TRAGEDY AT THE BERRIEN COUNTY COURTHOUSE

(Mr. UPTON asked and was given permission to address the House for 1 minute.)

Mr. UPTON. Mr. Speaker, southwest Michigan has had some tough times lately, and now we are faced with the news that broke yesterday that two bailiffs at Berrien County Courthouse in my hometown of St. Joseph, Michigan, were slain by an inmate who had overpowered his guard.

So I rise today to offer support and love for the victims' friends, family and certainly our entire community. We should continue to keep those affected in our hearts and in our minds. I also want to thank the countless folks on the front lines who clearly prevented the tragedy from even being worse.

The swift actions of those on the ground need to be commended, particularly the Berrien County Sheriff's Department led by Sheriff Paul Bailey. I was with him just this past Saturday, and what he had to endure the last 24 hours is unthinkable.

I also want to thank the immediate action and outpouring of support from our local officials: St. Joseph Mayor Mike Garey; Benton Harbor Mayor Marcus Muhammad; and State-elected officials, including our Governor Rick Snyder and State legislators John Proos and Al Pscholka. It is times like these when we need to unite as one. This heartbreaking tragedy happened

in the blink of an eye, but we will never forget.

We will remember and honor Joe Zangaro, who I knew personally, who was the head of courthouse security, a retired Michigan State Police officer. We will remember and honor Ronald Kienzle, a U.S. Army veteran, retired Benton Township police officer.

I ask my colleagues and those who hear this message across the country to pray for the families of the two victims, the speedy recovery of another deputy, James Atterberry, Jr., and a civilian caught in the middle, Kenya Ellis. We will get through this together.

GUN VIOLENCE

(Ms. MATSUI asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. MATSUI. Mr. Speaker, it has been a challenging and heartbreaking time for our country. Today, we mark the 1-month anniversary of the horrible mass shooting in Orlando.

As we process the pain from the gun violence that continues to shake our Nation, we must come together and find solutions. We all share a desire to feel safe. We all want our children to grow up free from fear. The violence that has gripped our communities has taken many forms, and stems from many causes.

There is no question that we have work to do, and that solutions will not be simple. But we can and should be taking action in Congress to make our citizens safer. We can't solve every problem overnight, but we can take steps now to do some commonsense things Americans agree on, like expanding background checks and passing the bipartisan no fly, no buy bill.

Mr. Speaker, let us work together to find a path forward in our shared commitment to peace in our Nation.

MEDICAL DEVICE GUARDIANS

(Mr. FITZPATRICK asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. FITZPATRICK. Mr. Speaker, I rise in support of the Medical Device Guardians Act. The Guardians Act updates current laws regarding the reporting of unsafe medical devices by requiring that physicians and their offices be added to the list of entities that must report unsafe medical devices to the device manufacturer and to the FDA.

The tragic stories of women harmed by one particular device known as a laparoscopic power morcellator highlight the need for the Guardians Act. Despite cancer being spread for years by the blades of this device, no one ever reported this deadly safety defect to the FDA. That is until Amy Reed, a mother of six and a doctor underwent morcellation and had cancer spread throughout her body.

It should not have fallen on patients to get the FDA's attention. This bill simply codifies an existing mandate of the American Medical Association's Code of Medical Ethics, which recognizes that physicians are in the best position to identify and report unsafe devices. Today, reporting unsafe devices to the FDA is as easy as downloading an app on a smartphone.

This is a reasonable fix that will save lives. I urge my colleagues to support it.

OUR FIRST LINE OF DEFENSE

(Mr. THOMPSON of California asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of California. Mr. Speaker, more than 80 percent of NRA members and over 80 percent of gun owners support background checks. It is because they are responsible gun owners. Responsible gun owners understand that there is nothing wrong with making sure that a prospective gun buyer isn't a terrorist, a criminal, a domestic abuser, or dangerously mentally ill.

Our first line of defense when it comes to making sure that guns don't fall into dangerous hands is to conduct a background check. But sadly, a gaping loophole allows those same felons, domestic abusers, and fugitives to bypass a background check in 34 States by going online or to a gun show.

That is why it is long past time for the Republican leadership to allow a vote on H.R. 1217, bipartisan, pro-Second Amendment legislation to require background checks for all commercial gun sales. This debate isn't a choice between respecting the Second Amendment or reducing gun violence.

As a responsible gun owner, I am tired of it being framed that way. It is about this Congress doing both. Mr. Speaker, give us a vote.

CUBAN AIRPORT SECURITY

(Mr. HUDSON asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HUDSON. Mr. Speaker, I rise today to urge my colleagues to support H.R. 5728, the bipartisan Cuban Airport Security Act of 2016.

Over the past several months, the Obama administration and the Cuban Government have stonewalled oversight of airport security arrangements. This lack of transparency is troubling and begs the question: What are they hiding?

As far as we know, Cuban airports don't have proper screening for explosive detection; they can't check for fake IDs and fake passports; they don't allow TSA on the ground to evaluate security; and they don't have air marshals on planes. The administration plans to start flights into Charlotte from Cuba in a few months, but they are not doing enough to guarantee there won't be a security threat on one of those planes.

After all, Cuba has been a safe haven for terrorists and was just recently removed from the list of state sponsors of terrorism. It is a brutal regime that recently hosted the North Korean equivalent of our CIA Director. We should not allow the proposed 110 flights a day of commercial air flights—indeed, we shouldn't allow a single flight until we are absolutely sure they have the proper security at airports to protect the American people.

This legislation puts the brakes on the President's dangerous plans. I encourage my colleagues to support it.

IT IS TIME TO TAKE ACTION

(Mr. DEUTCH asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DEUTCH. Mr. Speaker, today marks 1 month since the worst mass shooting in our Nation's history. This week, we learned that the House majority will not bring a bill to the floor until after the 7-week recess that starts this week.

The majority claims that it needs to show calm, that it needs to show leadership. Well, the majority has already failed to show leadership. That is why we are not calm.

It has been 30 days since Pulse, 223 days since San Bernardino, 226 days since Colorado Springs, 285 days since Roseburg, 362 days since Chattanooga, 390 days since Charleston, 781 days since Isla Vista, 832 days since Fort Hood, 1,030 days since Navy Yard, 1,131 days since Santa Monica, 1,306 days since Newtown, 1,383 days since Minneapolis, 1,437 days since Oak Creek, 1,453 days since Aurora, 1,562 days since Oakland, 1,735 days since Seal Beach, and 2,012 days since Tucson.

This is not leadership. This is cold. This is heartless. This is cowardice. It is time to take action to make our communities safer.

60TH ANNIVERSARY OF OUR NATIONAL MOTTO

(Mr. FORBES asked and was given permission to address the House for 1 minute.)

Mr. FORBES. Mr. Speaker, on July 30 we celebrate the 60th anniversary of our national motto, In God We Trust, which is displayed directly above your chair.

Throughout our history as a nation, we have often struggled to find the right words in time of crisis or great challenge.

In the War of 1812, we found those words in our national anthem when Francis Scott Key wrote: ''And this be our motto: In God is our trust.''

In 1864, Congress found them when it authorized the Secretary of the Treasury to add the inscription ''In God We Trust'' on coins.

In 1955, Congress found those words when it extended the ''In God We Trust'' to be included on our currency, and in 1956, Congress found them when it adopted ''In God We Trust'' as the official motto of the United States.

Today, as we see a divided Nation, a nation polarized in almost every area, today as we witness a nation facing crisis and challenge in a magnitude we have not seen in many years, as we search for the right words, let us hope we find them once again in the simple but powerful phrase, ''In God We Trust.''

So today, we celebrate the anniversary of this motto and pray for God's continued blessing on our land.

□ 1215

GUN VIOLENCE PREVENTION

(Ms. MICHELLE LUJAN GRISHAM of New Mexico asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. MICHELLE LUJAN GRISHAM of New Mexico. Mr. Speaker, there have been 231 mass shootings in 193 days so far in 2016. That is more than one per day. We are all directly affected by this gun violence epidemic in this country. In my own State and community, we have in fact seen a dramatic increase in this violence.

We cannot passively accept that the epidemic of gun violence kills as many people as car accidents every year. And while the mass shootings in this country have in fact become commonplace, I cannot continue to bear witness to the totality of human suffering that this is causing: the mothers and fathers who have lost children, the children who have lost parents, thousands who have lost loved ones, and all those who will in fact endure a lifetime of pain and suffering.

That is why, Mr. Speaker, I joined all my Democratic colleagues in an unprecedented sit-in to urge Republican leadership to allow us to vote on legislation to close glaring problems in our Nation's background check system, including a loophole that has allowed 2,000 individuals on the FBI's terrorist watch list to successfully purchase a firearm since 2004.

Americans have a constitutional right to live without fear of gun violence in our communities.

TREATMENT BEFORE TRAGEDY

(Mr. MURPHY of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MURPHY of Pennsylvania. Mr. Speaker, over the past several years, I have met with thousands of families of those suffering with severe mental illness. These conversations led to my introduction of the Helping Families in Mental Health Crisis Act.

Last Wednesday, the House of Representatives passed this legislation with a near unanimous vote of 422–2. This historic vote closed a tragic chapter in our Nation's treatment of serious mental illness and welcomed a new dawn of help and hope. We have overwhelmingly chosen to deliver treatment before tragedy.

I now hope our colleagues in the Senate take up the next chapter and pass H.R. 2646. The current chaotic patchwork of antiquated Federal programs and laws make it impossible for those with serious mental illness to get meaningful care. My bill eliminates wasteful and effective programs and directs money where it is needed most. It is endorsed by over 50 professional organizations and over 60 newspapers.

We cannot let these families down. Lives are depending on it. We must continue to work this bill all the way to the President's desk for signature.

ORLANDO SHOOTING 1-MONTH ANNIVERSARY

(Mrs. CAROLYN B. MALONEY of New York asked and was given permission to address the House for 1 minute.)

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, 1 month ago, 49 innocent individuals were mowed down and killed and 53 more were injured. Yet today, the Chamber's business is still not focused on making our open spaces safer and passing safe gun measures to help protect our people.

It has been 1 month after the worst killing in United States history since 9/11, and we still have not taken up commonsense gun safety measures to protect our citizens. Instead, it is business as usual: another bill to impede a woman's right to choose, another appropriations bill that will undermine the Clean Water Act.

As Members of Congress, we have to respond and answer to the American people that we represent—and they are asking for action. Enough is enough. The human rights and civil rights issue of our time is to protect our churches, our movie theaters, and our open spaces from mass murders by guns.

Let's have a vote, Mr. Speaker. Let's take back our streets and make the Nation safer.

CUBAN AIRPORT SECURITY

(Mr. KATKO asked and was given permission to address the House for 1 minute.)

Mr. KATKO. Mr. Speaker, I rise today to voice my concerns about the Obama administration's plans to restore regular air service to Cuba.

Just 2 weeks ago, I was scheduled to go on a congressional delegation to Cuba to examine the security measures at Cuba's 10 international airports to ensure the safety and security of Americans flying to Cuba. This trip was necessitated by stonewalling tactics used by administration officials when asked about security at Cuba's airports during a recent Transportation Security Subcommittee hearing.

However, the Cuban Government denied my visa as well as visas of every single member of the delegation. Because of that, I have serious concerns, as do my colleagues, about the capabilities of Cuba's airport screening equipment and procedures, how Cuban airport workers are vetted, whether or not Federal air marshals will even be allowed to fly missions on American planes to and from Cuba, and many other questions.

As the chairman of the Transportation Security Subcommittee, I believe it is my duty to do everything in my power to secure the security of the traveling American public, and I take that seriously. That is why I have introduced H.R. 5728, legislation to stop the administration from moving forward with flights to Cuba until these security concerns are adequately addressed. I hope my colleagues will join me in supporting this important piece of legislation.

GUN VIOLENCE PREVENTION

(Mr. GRAYSON asked and was given permission to address the House for 1 minute.)

Mr. GRAYSON. Mr. Speaker, I represent Orlando, the site of the worst mass shooting in the history of the United States: 49 dead in a matter of just minutes. So far, there has been no action by this body to address any grievances.

For instance, we have no action on PETER KING's bill, the no fly, no buy terrorist gun bill. We have no action on PETER KING's second bill, H.R. 1217. We have no action on DAVID CICILLINE's bill to reinstate the assault weapons ban, H.R. 4269; no action on SHEILA JACKSON LEE's bill, H.R. 4316; no action on the second bill that she introduced, H.R. 5470; no action on MIKE THOMPSON's recently introduced bill, H.R. 5504; no action on my own bill to reinstate the assault weapons ban; no action even to show our respect for the dead by passing H. Res. 789, stalled in this body for a month.

I don't think we should be doing anything unless we are going to do something about making the American people safe again. Therefore, I move to adjourn in respect of Stanley Almodovar, one of the victims, and the remainder.

MOTION TO ADJOURN

Mr. GRAYSON. Mr. Speaker, I move that the House do now adjourn.

The SPEAKER pro tempore (Mr. WESTMORELAND). The question is on the motion to adjourn offered by the gentleman from Florida (Mr. GRAYSON).

The question was taken; and the Speaker announced that the noes appeared to have it.

Mr. GRAYSON. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 0, nays 377,

answered ''present'' 1, not voting 55, as follows:

[Roll No. 404]

NAYS—377

Abraham	Dingell	Knight
Adams	Doggett	Kuster
Aderholt	Dold	Labrador
Aguilar	Donovan	LaHood
Allen	Duckworth	LaMalfa
Amash	Duffy	Lamborn
Amodei	Duncan (SC)	Lance
Ashford	Edwards	Langevin
Babin	Ellison	Larsen (WA)
Barr	Ellmers (NC)	Larson (CT)
Bass	Emmer (MN)	Latta
Beatty	Engel	Lawrence
Becerra	Eshoo	Lee
Benishek	Farenthold	Levin
Bera	Farr	Lewis
Beyer	Fitzpatrick	Lieu, Ted
Bilirakis	Fleischmann	Lipinski
Bishop (MI)	Fleming	LoBiondo
Bishop (UT)	Flores	Loebsack
Black	Fortenberry	Lofgren
Blackburn	Foster	Long
Blum	Frankel (FL)	Love
Blumenauer	Franks (AZ)	Lowenthal
Bonamici	Frelinghuysen	Lowey
Bost	Fudge	Lucas
Boustany	Gabbard	Lujan Grisham (NM)
Boyle, Brendan F.	Gallego	Luján, Ben Ray (NM)
Brady (PA)	Garamendi	Lummis
Brady (TX)	Garrett	Lynch
Brat	Gibbs	MacArthur
Bridenstine	Gibson	Maloney, Carolyn
Brooks (IN)	Gohmert	Maloney, Sean
Brown (FL)	Goodlatte	Massie
Brownley (CA)	Gosar	Matsui
Buchanan	Gowdy	McCarthy
Buck	Graham	McCaul
Bucshon	Granger	McClintock
Burgess	Graves (GA)	McCollum
Butterfield	Graves (LA)	McDermott
Calvert	Graves (MO)	McGovern
Capps	Green, Gene	McHenry
Capuano	Griffith	McKinley
Cárdenas	Grothman	McMorris Rodgers
Carney	Guinta	McNerney
Carson (IN)	Guthrie	McSally
Carter (GA)	Gutiérrez	Meadows
Carter (TX)	Hahn	Meehan
Cartwright	Hanna	Meeks
Castor (FL)	Hardy	Meng
Castro (TX)	Harper	Messer
Chabot	Harris	Mica
Chaffetz	Hartzler	Miller (FL)
Chu, Judy	Heck (WA)	Miller (MI)
Cicilline	Hensarling	Moolenaar
Clark (MA)	Herrera Beutler	Mooney (WV)
Clarke (NY)	Higgins	Moore
Clay	Hill	Moulton
Cleaver	Himes	Mullin
Clyburn	Holding	Mulvaney
Coffman	Honda	Murphy (FL)
Cohen	Hoyer	Murphy (PA)
Cole	Hudson	Nadler
Collins (GA)	Huelskamp	Napolitano
Collins (NY)	Huffman	Neal
Comstock	Huizenga (MI)	Neugebauer
Conaway	Hultgren	Newhouse
Connolly	Hunter	Noem
Conyers	Hurd (TX)	Nugent
Cook	Hurt (VA)	Nunes
Cooper	Israel	O'Rourke
Costello (PA)	Issa	Olson
Courtney	Jeffries	Palazzo
Crawford	Jenkins (KS)	Pallone
Crenshaw	Jenkins (WV)	Palmer
Crowley	Johnson (OH)	Pascrell
Cuellar	Johnson, Sam	Paulsen
Culberson	Jones	Payne
Curbelo (FL)	Jordan	Pearce
Davidson	Joyce	Perry
Davis (CA)	Kaptur	Peters
Davis, Rodney	Katko	Pingree
DeFazio	Keating	Pittenger
Delaney	Kelly (IL)	Pitts
DeLauro	Kelly (MS)	Pocan
DelBene	Kelly (PA)	Poliquin
Denham	Kennedy	Polis
Dent	Kildee	Pompeo
DeSantis	Kilmer	Posey
DeSaulnier	Kind	Price (NC)
DesJarlais	King (IA)	Price, Tom
Deutch	King (NY)	Quigley
Diaz-Balart	Kinzinger (IL)	Rangel
	Kline	Ratcliffe
	Knight	Reed
	Kuster	Reichert
	Labrador	Renacci
	LaHood	Rice (NY)
	LaMalfa	Rice (SC)
	Lamborn	Richmond
	Lance	Rigell
	Langevin	Roby
	Larsen (WA)	Roe (TN)
	Larson (CT)	Rogers (AL)
	Latta	Rogers (KY)
	Lawrence	Rohrabacher
	Lee	Rokita
	Levin	Rooney (FL)
	Lewis	Ros-Lehtinen
	Lieu, Ted	Roskam
	Lipinski	Ross
	LoBiondo	Rothfus
	Loebsack	Rouzer
	Lofgren	Roybal-Allard
	Long	Royce
	Love	Ruiz
	Lowenthal	Ruppersberger
	Lowey	Rush
	Lucas	Russell
	Lujan Grisham (NM)	Ryan (OH)
	Luján, Ben Ray (NM)	Salmon
	Lummis	Sanford
	Lynch	Sarbanes
	MacArthur	Scalise
	Maloney, Carolyn	Schakowsky
	Maloney, Sean	Schrader
	Massie	Schweikert
	Matsui	Scott (VA)
	McCarthy	Scott, Austin
	McCaul	Scott, David
	McClintock	Sensenbrenner
	McCollum	Serrano
	McDermott	Sessions
	McGovern	Sewell (AL)
	McHenry	Sherman
	McKinley	Shimkus
	McMorris Rodgers	Shuster
	McNerney	Simpson
	McSally	Sinema
	Meadows	Slaughter
	Meehan	Smith (MO)
	Meeks	Smith (NE)
	Meng	Smith (NJ)
	Messer	Smith (TX)
	Mica	Smith (WA)
	Miller (FL)	Speier
	Miller (MI)	Stefanik
	Moolenaar	Stewart
	Mooney (WV)	Swalwell (CA)
	Moore	Takano
	Moulton	Thompson (CA)
	Mullin	Thompson (MS)
	Mulvaney	Thompson (PA)
	Murphy (FL)	Thornberry
	Murphy (PA)	Tipton
	Nadler	Tonko
	Napolitano	Torres
	Neal	Trott
	Neugebauer	Tsongas
	Newhouse	Turner
	Noem	Upton
	Nugent	Valadao
	Nunes	Vargas
	O'Rourke	Vela
	Olson	Velázquez
	Palazzo	Visclosky
	Pallone	Wagner
	Palmer	Walberg
	Pascrell	Walden
	Paulsen	Walker
	Payne	Walorski
	Pearce	Walters, Mimi
	Perry	Walz
	Peters	Wasserman Schultz
	Pingree	Waters, Maxine
	Pittenger	Watson Coleman
	Pitts	Welch
	Pocan	Wenstrup
	Poliquin	Westerman
	Polis	Westmoreland
	Pompeo	Whitfield
	Posey	Williams
	Price (NC)	Wilson (FL)
		Wilson (SC)
		Wittman
		Womack
		Woodall
		Yarmuth
		Yoder
		Yoho
		Young (IA)
		Young (IN)
		Zeldin

ANSWERED ''PRESENT''—1

Grayson

NOT VOTING—55

Barletta	Green, Al	Peterson
Barton	Grijalva	Poe (TX)
Bishop (GA)	Hastings	Ribble
Brooks (AL)	Heck (NV)	Sánchez, Linda T.
Bustos	Hice, Jody B.	Sanchez, Loretta
Byrne	Hinojosa	Schiff
Clawson (FL)	Jackson Lee	Sires
Costa	Johnson (GA)	Stivers
Cramer	Johnson, E. B.	Stutzman
Cummings	Jolly	Takai
Davis, Danny	Kirkpatrick	Tiberi
DeGette	Loudermilk	Titus
Doyle, Michael F.	Luetkemeyer	Van Hollen
Duncan (TN)	Marchant	Veasey
Esty	Marino	Weber (TX)
Fincher	Nolan	Webster (FL)
Forbes	Norcross	Young (AK)
Foxx	Pelosi	Zinke
	Perlmutter	

□ 1244

Mr. HARPER, Ms. JENKINS of Kansas, Messrs. NEUGEBAUER, YOHO, WOODALL, Ms. GRANGER, Messrs. BISHOP of Utah and DIAZ-BALART changed their vote from ''yea'' to ''nay.''

So the motion to adjourn was rejected.

The result of the vote was announced as above recorded.

Stated against:

Mr. SCHIFF. Mr. Speaker, I was unavoidably detained. Had I been present, I would have voted: On rollcall No. 404, "nay."

Ms. ESTY. Mr. Speaker, On Tuesday, July 12, I unfortunately missed a rollcall vote on a motion to adjourn. Had I been present, I would have voted "no" on Rep. GRAYSON's motion to adjourn (Rollcall No. 404).

□ 1245

COMMUNICATION FROM THE CLERK OF THE HOUSE

The SPEAKER pro tempore laid before the House the following communication from the Clerk of the House of Representatives:

OFFICE OF THE CLERK,
HOUSE OF REPRESENTATIVES,
Washington, DC, July 12, 2016.

Hon. PAUL D. RYAN,
The Speaker, House of Representatives, Washington, DC.

DEAR MR. SPEAKER: Pursuant to the permission granted in Clause 2(h) of Rule II of the Rules of the U.S. House of Representatives, the Clerk received the following message from the Secretary of the Senate on July 12, 2016 at 11:11 a.m.:

That the Senate agreed to S. Con. Res. 44.

With best wishes, I am

Sincerely,

KAREN L. HAAS.

JUSTICE GINSBURG SHOWED BAD JUDGMENT

(Mr. SMITH of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SMITH of Texas. Mr. Speaker, in a front page New York Times article, it was reported that Supreme Court Justice Ruth Bader Ginsburg made derogatory statements about Donald Trump. Justice Ginsburg was being interviewed by the newspaper so she knew that her remarks would be made public. They were particularly personal and demeaning.

The Code of Conduct for judges states: ''A judge should not publicly endorse or oppose a candidate for public office.''

It was totally inexcusable and unprofessional for Justice Ginsburg to insult a Presidential candidate. It hurt the credibility of the Supreme Court and showed bad judgment. It will be difficult for the American people to believe Justice Ginsburg can be impartial in any rulings that involve political issues.

Her verbal attack on Donald Trump only contributes to the public's feeling that the justice system may be rigged.

REMEMBERING AND HONORING THE DEATH OF OFFICER LORNE AHRENS OF BURLESON, TEXAS

(Mr. WILLIAMS asked and was given permission to address the House for 1 minute.)

Mr. WILLIAMS. Mr. Speaker, the city of Dallas experienced tremendous tragedy last week. It was the deadliest day for law enforcement since September 11, 2011.

Burleson resident, Lorne Ahrens, was one of the five officers who so courageously made the ultimate sacrifice. I am honored to have been able to say he hailed from Texas' 25th Congressional District. At 6 feet, 5 inches, and 300 pounds, Officer Ahrens has been described as ''a big guy with an even bigger heart.''

His colleagues said he always had a smile on his face. He was a loving and devoted husband and father. Officer Ahrens often volunteered at his children's schools. He was known to be a jokester, a friend, and a true cop. The day before his death, it was reported

that Officer Ahrens bought dinner for a homeless man and his dog. This is who he was. This is who we lost.

A semi-pro football player, Officer Lorne Ahrens began as a dispatcher at the Los Angeles County Sheriff's Department and joined the Dallas police force in 2002, eventually becoming a senior corporal.

There are no words to express the sadness felt by the entire Burleson community. I send my prayers to his wife Katrina and their family.

I am encouraged by the outpouring of support Officer Ahrens' family has received, and I know it will continue in our community.

May the Lord's strength give their hearts and souls peace and comfort. In God we always trust.

125 YEARS OF MINNESOTA SUCCESS

(Mr. EMMER of Minnesota asked and was given permission to address the House for 1 minute.)

Mr. EMMER of Minnesota. Mr. Speaker, I rise today to congratulate an incredible company and true Minnesota original, Hormel Foods, which is celebrating 125 years of success.

Ever since George Hormel founded what is known today as the Hormel Foods Corporation in 1891, this company has created some of the most well-known products in the food industry.

Hormel started off as a small-town business in Austin, Minnesota, but quickly evolved with offices opening all over the State and Nation after the introduction of products like the world's first canned ham. One of the best known products that introduced Hormel to the country and the world is the Minnesota staple called SPAM.

Over the past 125 years, Hormel has continued to invent and acquire new products like Skippy Peanut Butter and Applegate Farms. In fact, Forbes has named Hormel one of the most innovative companies in the food processing industry.

I want to thank Hormel for being such a great Minnesota company for the past 125 years and for feeding our State, Nation, and the world. Congratulations, Hormel. Minnesota is proud to call you one of our own.

IRAN DEAL DOOMED FROM BEGINNING

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA. Mr. Speaker, this Thursday marks the 1-year anniversary of the Iran nuclear deal.

Despite assurances from the Obama administration, it is clear we need to do more to curb Iran's state sponsorship of terrorism, human rights abuses, and their ability to destabilize the region. This week, the House of Representatives will vote on commonsense measures to address these concerns.

Heavy water plays an important role in developing nuclear weapons. Yet the Iran nuclear deal allows Iran to possess heavy water up to a certain amount and then sell any additional heavy water on the international market.

As a result, the United States, in April, purchased 32 metric tons of heavy water from Iran, which means we are currently subsidizing and rewarding Iran's production of a key building block for a nuclear weapons program. This just doesn't make sense and is certainly outside of the idea of the deal that was made over a year ago; that, combined with testing of missiles, new contracts for Iran, and the $150 billion that was released to them.

H.R. 5119, introduced by my colleague, Representative POMPEO, would further prohibit that. H.R. 5631 would hold Iran accountable for its State sponsorship of terrorism and other threatening activities. We need to move these measures and hold them accountable.

HONORING THE MEMORY OF WEST POINT CADET TOM SURDYKE

(Mr. SMITH of Missouri asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SMITH of Missouri. Mr. Speaker, I rise today to honor the memory of West Point Cadet Tom Surdyke from Festus, Missouri.

I had the honor to appoint Tom to West Point in 2015 and to share in his family's celebration the day he earned his Eagle Scout. Tom was a member of Missouri Boys State and an honor student at St. Pius High School. He was the proud son of Tim and Janice Surdyke and the beloved brother of Elaine, Rosemary, and Francie.

Tom chose a life of service at West Point, and in his death, he proved that serving others was always in his heart.

While on vacation on June 24, 2016, Tom and another swimmer he had just met on shore were caught in a riptide. Tom instinctively went to the other young man who could not swim, keeping him afloat. But Tom was pulled under. Tom died in the hospital 4 days later.

Continuing his ultimate goal to serve, Tom donated his organs. He was buried at West Point on July 4, 2016—on his 19th birthday. He was given the Soldier's Medal, the Army's highest non-combat valor award because he saved the life of another.

I grieve the loss of this gifted young man who would have no doubt distinguished himself in a life of military service. But, today, I celebrate Tom Surdyke's spirit, his character, and the selfless act that distinguished him in death.

MAYS' FAMILY REUNION

(Mr. FARENTHOLD asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. FARENTHOLD. Mr. Speaker, I rise today to celebrate a family of Texas pioneers who lived in Robstown, Texas, for 108 years. The first of the Mays family to settle in Robstown were Ella and Riley, along with their 12 children. They arrived in 1912 as the first African American family in the city. On August 7 of this year, they will be holding a family reunion at the Richard M. Borchard Regional Fairgrounds in Robstown.

Once Ella and Riley settled, they founded the Mt. Zion Missionary Baptist Church, which served as both a church and the first public African American school in the city. They were important members of the community. The city of Robstown even named a street after Riley, who served as the deacon and Sunday school teacher of Mt. Zion where Ella was a nurse and missionary. Their hard work and dedication to faith, family, and community is an inspiration to us all.

I ask my colleagues to join me in celebrating the Mays' wonderful legacy and lasting impact they have had on Robstown, the Coastal Bend, and beyond.

May God bless you all.

LABELING REQUIREMENTS HURT CRAFT BREWERIES

(Mr. PAULSEN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PAULSEN. Mr. Speaker, Minnesota is the proud home to over 100 craft breweries. Many of these breweries are small, but they still provide jobs and a real impact to our local economies across our great State. There are nearly 5,000 craft brewers across the country.

Unfortunately, a provision buried deep within the President's new healthcare law mandates that brewers label every single beer they produce with detailed calorie information.

This labeling requirement is projected now to cost $77,000 per brewery. It is a financial burden that will be simply too steep for a lot of brewers who are just trying to get up and running and operating with little or no profit.

This is just the latest excessive and onerous burden placed upon small businesses by the President's new healthcare law. Mr. Speaker, Washington should be getting out of the way so that craft breweries have a chance to thrive, not putting up more unnecessary red tape that makes it impossible to do business.

It is time to act and repeal this harmful labeling requirement to prevent jobs from being lost, and to allow Americans to continue enjoying their locally produced craft beverage.

GIRL SCOUTS' GOLD AWARD CENTENNIAL CELEBRATION

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTER of Georgia. Mr. Speaker, I rise today to honor the Girl Scouts of the USA who have received their Gold Award for 2016, and to celebrate the 100th anniversary of this prestigious award.

In 1916, the Girl Scouts of the USA, which was founded in Savannah, Georgia, 5 years earlier, created the Gold Award as their highest achievement for a Girl Scout.

Since its creation, there have been only 1 million Girl Scouts who have received this award. Young women who receive the Gold Award are true leaders and make a significant impact in their community and around the world. This award is extremely competitive, and recipients show a true commitment in making a difference.

The women who receive this award have shown to be more engaged in leadership and community service positions and gain a stronger sense of self. For example, over half the women in the 114th Congress were Girl Scouts at one point.

Today, I would like to recognize the positive impacts of the Girl Scouts' Gold Award and celebrate its 100th anniversary. I look forward to another 100 years of this leadership and making a difference.

PROVIDING FOR CONSIDERATION OF H.R. 5538, DEPARTMENT OF THE INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS ACT, 2017; PROVIDING FOR PROCEEDINGS DURING THE PERIOD FROM JULY 15, 2016, THROUGH SEPTEMBER 5, 2016; AND FOR OTHER PURPOSES

Mr. NEWHOUSE. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 820 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 820

Resolved, That at any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 5538) making appropriations for the Department of the Interior, environment, and related agencies for the fiscal year ending September 30, 2017, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations.

SEC. 2. (a) After general debate the bill shall be considered for amendment under the five-minute rule. The bill shall be considered as read through page 184, line 21. Points of order against provisions in the bill for failure to comply with clause 2 of rule XXI are waived except as follows: page 71, line 19, through page 71, line 25.

(b) No amendment to the bill shall be in order except those printed in the report of the Committee on Rules accompanying this resolution, amendments en bloc described in section 3 of this resolution, and pro forma amendments described in section 4 of this resolution.

(c) Each amendment printed in the report of the Committee on Rules shall be considered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment except as provided by section 4 of this resolution, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole.

(d) All points of order against amendments printed in the report of the Committee on Rules or against amendments en bloc described in section 3 of this resolution are waived.

SEC. 3. It shall be in order at any time for the chair of the Committee on Appropriations or his designee to offer amendments en bloc consisting of amendments printed in the report of the Committee on Rules accompanying this resolution not earlier disposed of. Amendments en bloc offered pursuant to this section shall be considered as read, shall be debatable for 20 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their respective designees, shall not be subject to amendment except as provided by section 4 of this resolution, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole.

SEC. 4. During consideration of the bill for amendment, the chair and ranking minority member of the Committee on Appropriations or their respective designees may offer up to 10 pro forma amendments each at any point for the purpose of debate.

SEC. 5. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions.

SEC. 6. Section 454 of H.R. 5538 shall be considered to be a spending reduction account for purposes of section 3(d) of House Resolution 5.

SEC. 7. During consideration of H.R. 5538, section 3304 of Senate Concurrent Resolution 11 shall not apply.

SEC. 8. On any legislative day during the period from July 15, 2016, through September 5, 2016—

(a) the Journal of the proceedings of the previous day shall be considered as approved; and

(b) the Chair may at any time declare the House adjourned to meet at a date and time, within the limits of clause 4, section 5, article I of the Constitution, to be announced by the Chair in declaring the adjournment.

SEC. 9. The Speaker may appoint Members to perform the duties of the Chair for the duration of the period addressed by section 8 of this resolution as though under clause 8(a) of rule I.

SEC. 10. Each day during the period addressed by section 8 of this resolution shall not constitute a calendar day for purposes of section 7 of the War Powers Resolution (50 U.S.C. 1546).

SEC. 11. Each day during the period addressed by section 8 of this resolution shall not constitute a legislative day for purposes of clause 7 of rule XIII.

SEC. 12. Each day during the period addressed by section 8 of this resolution shall not constitute a calendar or legislative day for purposes of clause 7(c)(1) of rule XXII.

SEC. 13. It shall be in order at any time on the legislative day of July 14, 2016, or July 15, 2016, for the Speaker to entertain motions that the House suspend the rules as though under clause 1 of rule XV. The Speaker or his designee shall consult with the Minority Leader or her designee on the designation of any matter for consideration pursuant to this section.

SEC. 14. The Committee on Appropriations may, at any time before 5 p.m. on Friday, July 29, 2016, file privileged reports to accompany measures making appropriations for the fiscal year ending September 30, 2017.

The SPEAKER pro tempore. The gentleman from Washington is recognized for 1 hour.

□ 1300

Mr. NEWHOUSE. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentlewoman from New York (Ms. SLAUGHTER), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. NEWHOUSE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Washington?

There was no objection.

Mr. NEWHOUSE. Mr. Speaker, on Monday, the Rules Committee met and reported a rule, House Resolution 820, providing for consideration of an important piece of legislation, H.R. 5538, the Department of the Interior, Environment, and Related Agencies Appropriations Act, 2017.

The rule provides for consideration of H.R. 5538 under a structured rule, which is a standard tool currently available under the rules of the House and previously used by both Republicans and Democrats for consideration of appropriation bills. However, the Rules Committee received 178 amendments to this bill and undertook a long, arduous, and very open process to make as many amendments in order as possible. While 10 were withdrawn, out of the remaining 168 amendments, the committee made 131 in order, almost equally divided between Republicans and Democrats, ensuring that both sides of the aisle have the opportunity to offer their amendments and provide their input on this very important measure.

Mr. Speaker, the bill appropriates funding for the Department of Interior, the EPA, the U.S. Forest Service, the Indian Health Service, and various independent and related agencies. This is a fiscally responsible measure that appropriates $32.095 billion in discretionary spending, which is a $64 million decrease from fiscal year 2016 and a $1

billion reduction from the President's request. While this bill respects our country's current fiscal year situation, where our national debt is approaching $20 trillion, it provides the means necessary to fund the Department of Interior and environmental programs that protect and promote our natural resources within a responsible, yet sustainable budget.

The legislation includes funding for many important priorities, such as the PILT program that provides funds for local governments in 49 States to help offset losses in property taxes due to nontaxable Federal lands within their counties. Without congressional action, many rural communities would face huge budget shortfalls because of Federal land ownership, which would impact public safety, education, and other local government responsibilities.

The bill also rejects a White House proposal that would have raised fees on American ranchers for grazing on Federal lands, which is another costly Federal proposal that ranchers simply cannot afford. It allocates an increase for on-the-ground sage grouse conservation to protect the species, while also preserving Federal lands for public and private uses, such as energy development, ranching, recreation, as well as military training.

Finally, it provides the National Park Service with targeted funding increases for park operations and maintenance to help reduce the Park Service's maintenance backlog, which currently stands at an astonishing $12 billion, and we simply must address.

Mr. Speaker, H.R. 5538 also includes conservative policy provisions to stop the bureaucratic regulatory overreach that is harming the United States. Job creation and wage growth continue to be stifled by EPA and other Federal regulations.

In response, this bill denies funding for job-killing rules and contains provisions to stop the regulatory overreach that is restricting economic activity. Specifically, the bill reduces funding for the EPA by $164 million below the fiscal year 2016 level and $294 million below the President's request. Within this total, EPA's regulatory programs are reduced by $43 million from the current level.

Additionally, it rejects the President's proposal to increase staffing at the EPA and holds the agency to the current capacity of 15,000 positions, which is the lowest level since 1989.

Over the past few years, we have heard time and again about the EPA overstepping its authority, whether by lobbying for the misguided and unconstitutional WOTUS rule, or by providing funds to groups that openly advocate and lobby for antiagricultural policies and legislation, which happened in my State of Washington with the illegal ''what's upstream'' campaign.

To hold the EPA accountable and stop its antigrowth agenda of numerous harmful, costly, and potentially job-killing regulations, the bill contains a number of legislative provisions to halt these actions.

Mr. Speaker, this legislation also includes language prohibiting the Forest Service or the BLM from issuing new closures of public lands to hunting and recreational shooting, which will preserve public access so that everyone can enjoy these American pastimes on our treasured Federal lands and national forests.

Further, the measure prevents the U.S. Fish and Wildlife Service from closing fish hatcheries, a key salmon recovery tool in the Pacific Northwest and in other parts of the country, and continues a 1-year delay on any further Endangered Species Act status reviews, determinations, and rulemakings for the greater sage grouse.

Additionally, H.R. 5538 provides critical funding for the Department of Interior and the U.S. Forest Service to prevent and combat devastating wildfires. This is particularly important to me and the people of Washington's Fourth Congressional District. My State and much of the West have experienced catastrophic wildfire seasons over the last 2 years, with the State of Washington enduring back-to-back years of record-setting fires, which have been fueled by not only a lack of rainfall and extremely arid conditions, but also poor forest management. It also includes $575 million for hazardous fuels management, which is $30 million above the fiscal year 2016 level, and will help ensure our forests are cleared, healthy, and better prepared to withstand future wildfires, something that is badly needed not only in central Washington, but across the West, as we head into another dry fire season.

Mr. Speaker, this is a good rule that provides for consideration of the FY 2017 Interior, Environment, and Related Agencies Appropriations bill, which promotes the responsible use of our natural resources, provides the tools necessary to protect and combat devastating wildfires, and invests in programs and infrastructure to improve the quality of life for families across the country. However, most importantly, this is a fiscally responsible bill that reflects the priorities of House Republicans in tackling our yearly deficits and out-of-control national debt. I think it strikes a smart, intentional balance between funding essential programs and making responsible reductions to lower priority activities to make sure we meet our tight budget guidelines, which is why I urge my colleagues to support the rule and the underlying bill.

I reserve the balance of my time.

MOTION OFFERED BY MR. GRAYSON OF FLORIDA

Mr. GRAYSON. Mr. Speaker, I have a motion.

The SPEAKER pro tempore. The gentleman will state his motion.

Mr. GRAYSON. Mr. Speaker, if we are not going to do anything about gun violence today, maybe we can do something about it tomorrow.

I move to postpone this question to a date certain tomorrow.

The SPEAKER pro tempore. Pursuant to clause 6(b) of rule 13, the gentleman's motion is not in order.

Mr. GRAYSON. I appeal the ruling of the Chair.

The SPEAKER pro tempore. The gentleman's appeal may not be entertained. As reflected by the ruling of Speaker Crisp of September 20, 1893, an appeal of the Chair's refusal to entertain a motion on the grounds that it is dilatory within the meaning of clause 6(b) of rule XIII is itself dilatory within the meaning of that rule.

MOTION TO ADJOURN

Mr. GRAYSON. Mr. Speaker, I move that the House do now adjourn.

The SPEAKER pro tempore. The question is on the motion to adjourn offered by the gentleman from Florida (Mr. GRAYSON).

The question was taken; and the Speaker announced that the noes appeared to have it.

Mr. GRAYSON. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 0, nays 362, answered ''present'' 1, not voting 70, as follows:

[Roll No. 405]

NAYS—362

Abraham	Castor (FL)	Doyle, Michael F.
Adams	Castro (TX)	Duckworth
Aderholt	Chabot	Duffy
Aguilar	Chaffetz	Duncan (SC)
Allen	Chu, Judy	Duncan (TN)
Amash	Cicilline	Ellmers (NC)
Amodei	Clark (MA)	Emmer (MN)
Ashford	Clarke (NY)	Engel
Babin	Clay	Eshoo
Barr	Cleaver	Esty
Barton	Clyburn	Farenthold
Beatty	Coffman	Farr
Becerra	Cohen	Fitzpatrick
Benishek	Cole	Fleischmann
Bera	Collins (GA)	Fleming
Beyer	Conaway	Flores
Bilirakis	Connolly	Fortenberry
Bishop (MI)	Conyers	Foster
Bishop (UT)	Cook	Frankel (FL)
Blackburn	Cooper	Frelinghuysen
Blum	Costa	Fudge
Blumenauer	Costello (PA)	Gabbard
Bonamici	Courtney	Gallego
Bost	Cramer	Garrett
Boustany	Crenshaw	Gibbs
Boyle, Brendan F.	Crowley	Gibson
Brady (PA)	Cuellar	Gohmert
Brady (TX)	Culberson	Goodlatte
Brat	Cummings	Gosar
Bridenstine	Curbelo (FL)	Gowdy
Brooks (AL)	Davis (CA)	Graham
Brooks (IN)	Davis, Rodney	Graves (GA)
Brown (FL)	DeFazio	Graves (LA)
Brownley (CA)	DeGette	Graves (MO)
Buchanan	Delaney	Green, Gene
Buck	DeLauro	Griffith
Bucshon	DelBene	Grothman
Burgess	Denham	Guinta
Bustos	Dent	Guthrie
Byrne	DeSantis	Gutiérrez
Capps	DeSaulnier	Hahn
Capuano	DesJarlais	Hanna
Carney	Deutch	Hardy
Carson (IN)	Diaz-Balart	Harper
Carter (GA)	Dingell	Harris
Carter (TX)	Doggett	Hartzler
Cartwright	Dold	Heck (NV)
	Donovan	

Hensarling	McCarthy	Royce
Herrera Beutler	McCaul	Ruiz
Hice, Jody B.	McClintock	Ruppersberger
Higgins	McCollum	Rush
Hill	McDermott	Ryan (OH)
Himes	McHenry	Salmon
Holding	McKinley	Sarbanes
Honda	McMorris Rodgers	Scalise
Hoyer	McNerney	Schakowsky
Hudson	McSally	Schiff
Huelskamp	Meadows	Schrader
Huffman	Meehan	Schweikert
Huizenga (MI)	Meeks	Scott, Austin
Hunter	Meng	Scott, David
Hurd (TX)	Messer	Sensenbrenner
Hurt (VA)	Mica	Serrano
Issa	Miller (MI)	Sessions
Jeffries	Moolenaar	Sherman
Jenkins (KS)	Mooney (WV)	Shimkus
Jenkins (WV)	Moore	Shuster
Johnson (OH)	Moulton	Sinema
Johnson, Sam	Mullin	Sires
Jones	Mulvaney	Slaughter
Joyce	Murphy (FL)	Smith (MO)
Kaptur	Murphy (PA)	Smith (NE)
Katko	Nadler	Smith (WA)
Keating	Napolitano	Speier
Kelly (IL)	Neal	Stefanik
Kelly (MS)	Neugebauer	Stewart
Kelly (PA)	Newhouse	Swalwell (CA)
Kennedy	Noem	Takano
Kildee	Norcross	Thompson (CA)
Kilmer	Nunes	Thompson (MS)
Kind	O'Rourke	Thompson (PA)
King (IA)	Olson	Thornberry
King (NY)	Palazzo	Tipton
Kinzinger (IL)	Pallone	Tonko
Kirkpatrick	Palmer	Torres
Kline	Pascrell	Trott
Knight	Paulsen	Tsongas
Kuster	Payne	Turner
Labrador	Pearce	Upton
LaHood	Perry	Valadao
LaMalfa	Peters	Van Hollen
Lance	Pingree	Vargas
Langevin	Pittenger	Vela
Larson (CT)	Pitts	Velázquez
Latta	Pocan	Visclosky
Lawrence	Poliquin	Walberg
Lee	Polis	Walden
Levin	Pompeo	Walker
Lewis	Posey	Walorski
Lieu, Ted	Price (NC)	Walters, Mimi
Lipinski	Price, Tom	Walz
LoBiondo	Quigley	Wasserman Schultz
Loebsack	Ratcliffe	Waters, Maxine
Lofgren	Reed	Watson Coleman
Long	Reichert	Welch
Loudermilk	Renacci	Wenstrup
Love	Rice (NY)	Westerman
Lowenthal	Rice (SC)	Westmoreland
Lowey	Richmond	Whitfield
Lucas	Roby	Williams
Luetkemeyer	Roe (TN)	Wilson (FL)
Lujan Grisham (NM)	Rogers (AL)	Wilson (SC)
Luján, Ben Ray (NM)	Rogers (KY)	Wittman
Lynch	Rohrabacher	Womack
MacArthur	Rokita	Woodall
Maloney, Carolyn	Ros-Lehtinen	Yoder
Maloney, Sean	Roskam	Yoho
Massie	Ross	Young (IA)
Matsui	Rothfus	Young (IN)
	Rouzer	Zeldin
	Roybal-Allard	Zinke

ANSWERED ''PRESENT''—1

Grayson

NOT VOTING—70

Barletta	Garamendi	McGovern
Bass	Granger	Miller (FL)
Bishop (GA)	Green, Al	Nolan
Black	Grijalva	Nugent
Butterfield	Hastings	Pelosi
Calvert	Heck (WA)	Perlmutter
Cárdenas	Hinojosa	Peterson
Clawson (FL)	Hultgren	Poe (TX)
Collins (NY)	Israel	Rangel
Comstock	Jackson Lee	Ribble
Crawford	Johnson (GA)	Rigell
Davidson	Johnson, E. B.	Rooney (FL)
Davis, Danny	Jolly	Russell
Edwards	Jordan	Sánchez, Linda T.
Ellison	Lamborn	
Fincher	Larsen (WA)	Sanchez, Loretta
Forbes	Lummis	Sanford
Foxx	Marchant	Scott (VA)
Franks (AZ)	Marino	Sewell (AL)
Simpson	Takai	Weber (TX)
Smith (NJ)	Tiberi	Webster (FL)
Smith (TX)	Titus	Yarmuth
Stivers	Veasey	Young (AK)
Stutzman	Wagner	

□ 1343

Messrs. GOHMERT, COFFMAN, LABRADOR, and CARTER of Georgia changed their vote from ''yea'' to ''nay.''

So the motion to adjourn was rejected.

The result of the vote was announced as above recorded.

PROVIDING FOR CONSIDERATION OF H.R. 5538, DEPARTMENT OF THE INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS ACT, 2017; PROVIDING FOR PROCEEDINGS DURING THE PERIOD FROM JULY 15, 2016, THROUGH SEPTEMBER 5, 2016; AND FOR OTHER PURPOSES

The SPEAKER pro tempore. The gentlewoman from New York (Ms. SLAUGHTER) is recognized for 30 minutes.

Ms. SLAUGHTER. Mr. Speaker, I thank the gentleman from Washington (Mr. NEWHOUSE) for graciously yielding me the customary 30 minutes, and I yield myself such time as I may consume.

Mr. Speaker, despite the repeated claims by the majority that the Chamber is an open one and represents the American people, we have not had a single open rule since Speaker RYAN assumed the gavel. Although they claim there are many restricting amendments processed to prevent so-called ''poison pill'' amendments, nothing could be further from the truth, and, frankly, even poison pill amendments are allowable.

The bill before us contains several controversial policy riders that virtually guarantee the President's veto and blocks a number of amendments that would be in order under the standing rules of the House.

□ 1345

The bill drastically underfunds important agencies and programs by more than $1 billion below the President's request. This sends a message that the majority puts what is best for their special interests ahead of what is best for the health of our communities.

I am particularly concerned that the bill makes draconian cuts to the Environmental Protection Agency, which will undercut the health and safety of all Americans—these cuts, despite the ongoing public health disaster in Flint, Michigan, where, for the rest of their lives, the children who were poisoned by lead in their drinking water could suffer from neurodevelopmental damage that could lead to everything from behavioral changes, to anemia, to hypertension.

All across the Nation, there are century-old water pipes in older cities in desperate need of replacement. Although lead pipes were banned 30 years ago, there are an estimated 3 to 10 million still in service today. My district has an estimated 23,000 lead service lines that lead from the water main to the curb, and that is 40 percent of all the water lines in the district.

Multiple schools in the district recently tested have found elevated lead levels in their water sources. The majority refuses to make virtually any investments in our Nation's infrastructure as it crumbles. But as you know, Mr. Speaker, lead has been found in the drinking water in the Cannon Building, one of the legislative office buildings. I can almost guarantee you that before the next week is out, that that will be taken care of. I don't know how this Congress can ignore the needs of the young people in Flint, Michigan, and other children throughout this country who are drinking lead water in their schools such that we will take care of what happens here in Congress and completely overlook and ignore their needs.

Mr. Speaker, I reserve the balance of my time.

Mr. NEWHOUSE. Mr. Speaker, being as we have no additional speakers, I just would like to inquire of the gentlewoman from New York if she is ready to close.

Ms. SLAUGHTER. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, every day we are here considering bills like this that will never become law, and every time we do that, that is another day that we have failed to combat the gun violence epidemic that is tearing our country apart.

Mr. Speaker, an epidemic of gun violence is happening all across the country, and the majority should stop the political games and the gimmicks. Instead of voting on another one-House bill that is sure to be vetoed by the President should it ever become a two-House bill, we should be voting on no fly, no buy. It is astonishing to American citizens that persons who are on the no-fly list as suspected terrorists can nonetheless buy guns.

Mr. Speaker, if we defeat the previous question, I will offer an amendment to the rule to bring up this important legislation. No fly, no buy is a commonsense, bipartisan bill that would keep guns out of the hands of suspected terrorists. In the interest of public safety, if nothing else, we should be doing that by all means. It is supported by nearly 90 percent of the public and deserves our consideration.

Mr. Speaker, I ask unanimous consent to insert the text of the amendment in the RECORD, along with extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. SLAUGHTER. Mr. Speaker, I urge my colleagues to vote ''no'' on ordering the previous question, the rule, and the underlying bill.

I yield back the balance of my time.

Mr. NEWHOUSE. Mr. Speaker, I yield myself the balance of my time.

The rule we have considered today provides for consideration of an important and badly needed bill. This legislation funds critical activities, such as wildfire mitigation and response, PILT payments for counties with large amounts of Federal lands, fish hatcheries that are helping to meet salmon recovery goals, the $12 billion maintenance backlog on our National Park Service lands, and the need to address the problem of lead in drinking water across our country.

This is also a fiscally responsible bill that reflects House Republicans' priorities in tackling our out-of-control national debt. This is accomplished by striking a smart balance between funding essential programs and making responsible reductions to lower priority activities to ensure we meet our tight budget guidelines. This bill includes provisions that will roll back and prevent many harmful Federal regulations that have had a chilling effect on business development and economic activity at a time when we can ill afford either.

The measure protects the rights of law-abiding Americans by prohibiting Federal agencies from issuing new closures of public lands to hunting and recreational shooting as well as from regulating the lead content of ammunition and fishing tackle.

Mr. Speaker, this legislation recognizes and respects the current fiscal landscape, lowers overall funding in the bill by $64 million below current levels and $1 billion below the President's request, yet it still provides the means necessary to fund the Department of the Interior and environmental programs that protect and promote our natural resources with a responsible, yet sustainable, budget.

Additionally, the measure provides critically needed funds to ensure forest health and combat wildfires, a priority for many living in the West who have seen devastating wildfires destroy homes, businesses, and millions of acres of land over the last few years.

This is a strong rule that provides for the consideration of a very important bill, and I urge my colleagues to support the rule's adoption and invest in a prosperous future for our country by passing the FY 2017 Interior and environment appropriations bill.

The material previously referred to by Ms. SLAUGHTER is as follows:

AN AMENDMENT TO H. RES. 820 OFFERED BY MS. SLAUGHTER

At the end of the resolution, add the following new sections:

SEC. 15. Immediately upon adoption of this resolution the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 1076) to increase public safety by permitting the Attorney General to deny the transfer of a firearm or the issuance of firearms or explosives licenses to a known or suspected dangerous terrorist. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

SEC. 16. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 1076.

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the Democratic minority to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R–Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

The Republican majority may say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule. . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. NEWHOUSE. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SLAUGHTER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

PROVIDING FOR CONSIDERATION OF H.R. 4992, UNITED STATES FINANCIAL SYSTEM PROTECTION ACT OF 2016; PROVIDING FOR CONSIDERATION OF H.R. 5119, NO 2H2O FROM IRAN ACT; AND PROVIDING FOR CONSIDERATION OF H.R. 5631, IRAN ACCOUNTABILITY ACT OF 2016

Mr. BYRNE. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 819 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 819

Resolved, That upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 4992) to codify regulations relating to transfers of funds involving Iran, and for other purposes. All points of order against consideration of the bill are waived. The bill shall be considered as read. All points of order against provisions in the bill are waived. The previous question shall be considered as ordered on the bill and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Financial Services; and (2) one motion to recommit.

SEC. 2. Upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 5119) to prohibit the obligation or expenditure of funds available to any Federal department or agency for any fiscal year to purchase or issue a license for the purchase of heavy water produced in Iran. All

points of order against consideration of the bill are waived. The bill shall be considered as read. All points of order against provisions in the bill are waived. The previous question shall be considered as ordered on the bill and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Foreign Affairs; and (2) one motion to recommit.

SEC. 3. Upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 5631) to hold Iran accountable for its state sponsorship of terrorism and other threatening activities and for its human rights abuses, and for other purposes. All points of order against consideration of the bill are waived. The bill shall be considered as read. All points of order against provisions in the bill are waived. The previous question shall be considered as ordered on the bill and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Foreign Affairs; and (2) one motion to recommit.

The SPEAKER pro tempore. The gentleman from Alabama is recognized for 1 hour.

Mr. BYRNE. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentleman from Colorado (Mr. POLIS), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. BYRNE. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Alabama?

There was no objection.

Mr. BYRNE. Mr. Speaker, House Resolution 819 allows for consideration of three very important bills relating to the national security of the United States of America. Each of these bills deals with Iran, the world's leading state sponsor of terrorism.

The conduct of the Iranian Government continues to be very concerning. Iran has a clear record of human rights violations and mistreatment of its citizens. Iran also has continued aggressive behavior, including testing intercontinental ballistic missiles, which can be used to attack our allies in the Middle East, like Israel, as well as the potential to strike us here at home.

Director of National Intelligence James Clapper wrote in testimony to the Senate Committee on Armed Services earlier this year: ''The Islamic Republic of Iran presents an enduring threat to U.S. national interests because of its support to regional terrorist and militant groups and the Asad regime, as well as its development of advanced military capabilities.''

Iran is not becoming a better partner or neighbor. Just look no further than the capture at gunpoint and detention of 10 U.S. sailors earlier this year. A Navy investigation released a few weeks ago found that Iran violated international law and violated sovereign immunity during that episode. Clearly, they are no friend of the United States.

So these bills address three different areas where the United States can stand up to Iran and encourage them to stop with their rogue actions and putting lives at risk. First, the resolution allows for consideration of H.R. 4992, the United States Financial System Protection Act. This legislation will codify existing requirements that prohibit the Obama administration from allowing the U.S. dollar to be used to facilitate trade transactions with Iran. These requirements will remain in place until the President certifies that Iran is no longer supporting terrorism, developing ballistic missiles, abusing human rights, or laundering money in support of dishonest activity.

Iran's financial sector poses a clear risk to financial markets around the world, given their track record of corruption and support for terrorism. In fact, the Financial Action Task Force, an organization created by the G7 to set standards regarding money laundering, has labeled Iran as a Non-Cooperative Country or Territory. If Iran doesn't want to be subject to these restrictions, then it is simple: they just need to stop supporting terrorism and conducting other illicit activities. I don't think that is too much to ask.

The bill also allows for consideration of H.R. 5119, the No 2H2O from Iran Act. This straightforward bill prohibits the United States from purchasing heavy water from Iran.

For those who do not know—and until I learned about this, I would have been one of those—heavy water is essential to the production of weapons-grade plutonium. News reports from just yesterday indicate the Obama administration has officially purchased 32 metric tons of heavy water from Iran for $8.6 million. That is $8.6 million in U.S. taxpayer money that will be going to the largest state sponsor of terrorism. That is simply absurd.

If Iran isn't producing nuclear weapons, then why do they need such large amounts of heavy water to begin with? Iran needs to stop with their production of heavy water altogether. The last thing the United States should do is continue to support and condone their illicit activities.

Finally, the bill also provides for consideration of H.R. 5631, the Iran Accountability Act. This bill will ensure strong sanctions remain in place against Iran for their support of terrorism as well as their human rights violations and continued ballistic missile program.

Holding Iran accountable is critically important, and it is clear that our sanctions against Iran work. Robust economic sanctions will force Iran to back down from their rogue activities and stop supporting terrorism.

□ 1400

Just consider the serious threats posed by Iran's ballistic missile program. Mr. Clapper, the Director of National Intelligence, has also written in testimony to the Senate Armed Services Committee that ''Iran's ballistic missiles are inherently capable of delivering weapons of mass destruction, and Tehran already has the largest inventory of ballistic missiles in the Middle East.''

The United States cannot stand by and become complicit with these actions by Iran. We must stand up for freedom, justice, and good around the globe.

Mr. Speaker, I want to quickly make one other point. I know Members of this House have different opinions about the Iran nuclear agreement. Personally, I was and am strongly opposed, because I think it makes the world less safe.

But regardless of your views on the Iran deal, can we not all agree that Iran should stop supporting terrorism? Can we not all agree that Iran should face consequences for the continued violation of human rights? Can we not all agree that Iran should stop producing ballistic missiles that can be used to attack U.S. servicemembers and our allies and us here at home?

Mr. Speaker, I urge my colleagues to stand up to Iran. Support House Resolution 819 and the underlying legislation.

Mr. Speaker, I reserve the balance of my time.

Mr. POLIS. Mr. Speaker, I yield myself such time as I may consume, and I thank the gentleman for yielding the customary time.

Mr. Speaker, I rise today in opposition to the rule that provides for consideration of three bills: H.R. 5631, H.R. 5119, H.R. 4992.

Mr. Speaker, the Joint Comprehensive Plan of Action is an agreement which was the culmination of 2 years of negotiations between the United States, the United Kingdom, France, Russia, China, Germany, and Iran. It was really a turning point in the history of nuclear disarmament and prevention of nuclear proliferation.

We have certifiable assurance from Iran that it will cease to develop its nuclear weapons program. It was an historic diplomatic effort. Obviously, the jury is still out on whether it works. But at this point, we need to move forward on the rigid implementation of this agreement.

While any multilateral agreement, by its very nature, is far from perfect, many believe that this deal represented the best shot at preventing a nuclear-armed Iran. So far, it is too early to say whether the agreement is working.

There is no doubt—and I think there is agreement—that Iran is a destabilizing force in the region. It is a hostile regime. The regular regime and their theocracy and the Ayatollah regularly spout anti-American, anti-Israel, anti-Semitic, anti-gay statements. They have a track record of supporting terrorist activities and have a horrible domestic record on human

rights. But as many renowned experts, including military officials and nonproliferation experts and nuclear physicists have recognized, there weren't any better options on the table than the JCPOA to prevent Iran from developing nuclear weapons.

The deal is not based on blind trust. It is predicated on third-party verification and strong international monitoring provisions that need to be fully implemented so that we will know if the Iranians cheat. The deal mandates that if Iran violates any aspect of the deal, there are tough snapback sanctions that would be employed against the Iranians.

Keep in mind that there are a number of sanctions that are not related to nuclear deterrence. Those are still in place with regard to Iran, and will remain in place with regard to terrorist activity and human rights. The bill does not remove the military option from the table if today's Iranian regime or future Iranian regimes fail to abide by the agreement.

In contrast, the three bills under consideration today are an effort to undermine the direction that America and Israel are going with regard to rigid implementation of the JCPOA.

Let's start with the flawed process. None of these bills have had a chance to be considered by committee. They just sort of appeared here in the Rules Committee. They didn't go through the Foreign Affairs Committee or the Armed Services Committee or any other committee. They skipped a markup. They skipped bipartisan negotiations. As far as I know, I certainly didn't see them. I don't think any Members on my side of the aisle saw them—if the gentleman has other information, let us know—until earlier this week.

So I am not aware of any bipartisan negotiations. Certainly, that normally occurs in the committee. This leapt over the committee and went right to the Rules Committee and, of course, will be considered under a closed rule, which means Members of this body, Democratic and Republicans, had no chance to amend these bills that mysteriously appeared on Monday. They didn't have a chance in committee. It went through committee. They don't have a chance here because the Rules Committee actually blocked every amendment by having a closed process.

We have an amendment process for a reason, under regular order. It provides Members of this body, the majority and minority party, the opportunity for input and debate. It often leads to a better work product. Unfortunately, under this rule, it is not being allowed on those bills.

These bills short-circuited the process. They are bad bills. It is only through continued engagement and rigid implementation that we can continue to make sure that Iran does not develop nuclear weapons, by keeping our voice and the conversation at the table. If we don't do that, it would be a critical miscalculation.

We can agree that the Iranian regime can be untrustworthy, and that is why we need rigid implementation of the JCPOA. Getting Iran to the negotiating table reduces the risk of adding another nuclear state to a secure world. We need to verify, verify. And, of course, all options remain on the table.

Mr. Speaker, I reserve the balance of my time.

Mr. BYRNE. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I was listening to the gentleman's comments. The reason why I know amendments were made in order is that only one amendment was received by the committee. It was received after we had finished having the testimony before the committee and shortly before the committee was going to take up the rule.

So there really wasn't any reasonable way to consider that particular amendment. And since no other Member of the House had offered any amendments, there really weren't any amendments to make in order.

The second point he said is that we are proceeding on the assurance that Iran is going to comply with the agreement—the assurance of Iran, when we have recent news reports that people in other countries that are working on this, particularly in Germany, have found that there have already been violations of this agreement by Iran. So there is every reason to believe that an assurance from Iran means nothing. Nothing.

He says we need to move forward with implementation. Well, there is nothing in the underlying bills that would stop implementation of this agreement that the President agreed to and that, unfortunately, not enough of us were against to stop. So the agreement is going forward, much to my chagrin.

These three bills deal with specific threats from Iran that have nothing to do with the agreement. They deal with the production of heavy water. There is no reason for us to buy heavy water. There is no reason for them to produce heavy water unless they are producing weapons-grade plutonium. And there is no reason for them to produce weapons-grade plutonium unless they are producing weapons, which is a violation of the agreement.

They should not be able to use American currency to effect their transactions. And we should put very heavy sanctions on them while they continue to support terrorism around the world and while they continue to support ever bigger, ever longer-range ballistic missiles.

Let's make no mistake about it. Long-range ballistic missiles are not needed to hit Israel. Long-range ballistic missiles are needed to hit Europe and the United States of America.

So these three bills don't get at the agreement that the President has already agreed to and that people on the other side of the aisle and some others said were okay. These get to the remaining threats against the people of the United States.

I would suggest to the gentleman that these three bills are very much important to what we need to do to protect the American people.

Mr. Speaker, I reserve the balance of my time.

Mr. POLIS. Mr. Speaker, I yield 5 minutes to the gentleman from Texas (Mr. DOGGETT).

Mr. DOGGETT. Mr. Speaker, one year ago, America made a momentous decision concerning the best way to deal with Iran, a dangerous, authoritarian regime with a history of promoting terrorism. We made a choice between war and peace. We learned something from the colossal failure of the Bush-Cheney go-it-alone, war-of-choice in Iraq. We wisely chose the path of diplomacy.

Now, one year after these very difficult negotiations with Iran, we should recognize that success has been achieved. And even though we have not limited every danger from Iran, we have limited the most significant danger, the development of a nuclear weapon. Whereas before, Iran could have developed a nuclear weapon within a few months, it now would take a year or more, if Iran made that horrible decision to produce a nuclear weapon.

Before the agreement, Iran's nuclear program was cloaked in secrecy. Now we have inspectors and the opportunity for rigorous examination of their sites on a regular basis.

Tomorrow, if Iran were to decide to produce a nuclear weapon, not only would it take four to six times longer than before, we would quickly be aware of it and would be able to take appropriate action.

Iran has shipped over 8.5 tons of enriched uranium to Russia. It has disabled more than 12,000 centrifuges and poured concrete into the core of a reactor at Arak designed to produce plutonium. Now, it is the United States that is acquiring some of Iran's heavy water that might have gone to nuclear production.

Each of these steps carries us further on a long and important road toward eliminating Iran's short-term uranium and plutonium pathways to a nuclear weapon. That is progress, by every measure. America and our key allies are safer today than we were a year ago, and before that—safer than if we had followed their path of confrontation and war. Continuous, intrusive monitoring is the key to keeping our families safe and avoiding war.

An impressive bipartisan group of some 75 high-profile signatories—Nobel laureates, generals, diplomats, and legislators—have approved this accord, advising the President and Congress yesterday that this agreement is ''providing greater security to our friends and partners in the region and to the world,'' noting that ''all pathways to an Iranian nuclear weapon have been blocked.''

After doing everything they possibly could think of to subvert and undermine the negotiations while they were underway with Iran—even an outrageous letter from a Republican group of Senators telling the Iranians to believe them and not the President of the United States—the Republicans today continue to interfere with and refuse to accept peace as the better course to safeguard our families.

Through today's debate, they launched yet one more partisan attack on this agreement. In all, they have authored more than 20 pieces of legislation attempting to undermine this agreement.

While the administration properly focuses our energy on enhanced verification, Republicans focus theirs instead on how to destroy the agreement. It is much like the debate we had over the Affordable Care Act. All they are concerned with is one vote of repeal after another, and they offer no viable alternatives. That is the case here. Instead of focusing on how to make us safer, their goal is to undermine the President of the United States and destroy this agreement.

As usual, my colleagues are choosing inaction over a Plan of Action. They know the President has issued a veto threat. In the unlikely event that this regressive legislation were to be approved in Congress, it would never become law.

Today they are adopting a procedural rule so that this House will waste a full day discussing how to destroy the Iran nuclear agreement. It will not address gun violence. It will not address the failure to fund research for a vaccine to prepare and prevent the Zika virus from spreading. It will not do anything about voting rights or a host of other issues this Congress should be considering. Instead, it is raising three bills going the wrong direction.

Some of those that reject diplomacy today are the same people that were backing the go-it-alone invasion of Iraq, a debacle second to none in the history of America.

The SPEAKER pro tempore (Mr. SIMPSON). The time of the gentleman has expired.

Mr. POLIS. Mr. Speaker, I yield the gentleman an additional 30 seconds.

Mr. DOGGETT. One country, more than any other, benefited from their wrong-headed decision, and was empowered. That country was Iran. Today, diplomacy, the opposite of war, is hard to start and easy to end. Let us continue on that path.

The path ahead remains difficult. Iran will be challenging. We must watch it like a hawk and monitor it, but we need not yield to the hawks who reject peace.

□ 1415

Mr. BYRNE. Mr. Speaker, the gentleman said that the decision made last year was a momentous decision. I agree with him. It was a momentous decision and I fear it is a decision that our children, our grandchildren and great grandchildren will come to regret, a decision that will give us not only a nuclearized Iran, but a nuclearized Middle East.

He said there was a choice between war and peace. That was a false choice. There was a choice between keeping the sanctions in place to get a better deal or giving in, and we gave in. So the truth of the matter is that we had a real option out there, and that was to stick to our guns and get a better deal. We didn't do that.

We could sit back and watch what is happening, or we can do something. These bills do something that don't undermine the agreement that has already been reached and already been basically approved by a number of people in this House.

What we are looking at is a nuclearized Middle East, unless we take some steps now, and these underlying bills do that. We are not safer today because of what we did. The world is far more dangerous.

I sit on the Armed Services Committee. I can tell you that that decision last summer has destabilized further the Middle East, not further stabilized it.

Finally, the gentleman brought up the Zika virus. We passed a responsible bill through this House that dealt with the Zika virus and sent it to the Senate and Democrats in the Senate are blocking that bill from coming up.

So who is being responsible about Zika? The Republicans are being responsible about Zika and the Democrats are being irresponsible.

Mr. Speaker, I reserve the balance of my time.

Mr. POLIS. Mr. Speaker, I would like to inquire if the gentleman has any additional speakers.

Mr. BYRNE. Mr. Speaker, I do not, and I am prepared to close.

Mr. POLIS. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, I will be offering a motion in a moment that, if we defeat the previous question, I will offer an amendment to bring up the bipartisan ''No Fly No Buy'' legislation, so this will give Members of this body another opportunity to vote on bringing up the bill that would bar the sale of explosives and firearms to terrorists, and help make sure that terrorists don't assemble arsenals in our country to commit terrorist acts against our country. The time to act is now.

To discuss our previous question, I yield as much time as he may consume to the gentleman from Texas (Mr. DOGGETT).

Mr. DOGGETT. Mr. Speaker, I think the previous question is extremely important because Republicans, just as they fled in the middle of the night from discussing gun violence before the July 4 break, have now decided not to consider a gun bill at all, even an NRA-backed proposal they have rejected.

But I want to ask the gentleman specifically about the comments that were just made about the Zika virus and the possibility of an epidemic, because it is so important. Am I correct that that proposal that he says they passed is the first one in the history of my time here, and perhaps in the history of this body, where they prohibited even one minute of debate of the way that they were funding Zika by taking the funds away from Ebola and threatening our public health system?

It is not a question of Democrats having blocked something. It has been their refusal to deal with and recognize the public health challenge, denying $4 of $5 asked for by the Centers for Disease Control and Prevention to deal with Zika, even threatening the possibility of developing a vaccine.

Is that correct, this has been the history of their failure to come to terms with a major public health crisis and listen to the scientists and the physicians and the public health experts and, instead, pursuing this ideological crusade to take away money from public health?

Mr. POLIS. Will the gentleman yield?

Mr. DOGGETT. I yield to the gentleman from Colorado.

Mr. POLIS. The gentleman from Texas is correct. Effectively, rather than actually find resources to develop a vaccine against Zika, they basically said, we are going to be taking the money from Ebola, which, by the way, still exists, still is a threat. We need to be ready for the next threat of an Ebola or Ebola-like danger to our citizens from a public health perspective.

In addition, the initial Republican attempts included things that they long wanted to do, like remove dangerous insecticides from the list of insecticides that are prohibited, due to their harm to human health as well as ecosystems and animal health.

The solution is straightforward. We need to develop a vaccine. We need to increase our public health infrastructure around this menace, and the bill fell short on that account because, effectively, it said, we might be able to not deal with Ebola and deal with this instead.

The truth is, the American people want a public health infrastructure that keeps them safe from Ebola and Zika and every other potential biological threat that is out there. The American people want to be safe. It is a dynamic world with increased travel, increased commerce. There are biological threats from all quarters, and we need the public health infrastructure to keep up with that.

Mr. DOGGETT. Those Texas-size mosquitos that are beginning to spread around my part of the country, they can't tell a Republican from a Democrat. Young women desirous of having a family, people of all ages and genders, are threatened by Zika.

It is just a matter of time before the Continental United States faces some of the problems that Puerto Rico already faces, and what we need is to

come together and have a bipartisan solution, not something offered in the middle of the night on which all debate is denied, a totally partisan approach.

So just as I am pleased that we have strong bipartisan support for the Iran Nuclear Agreement, coming together with this major letter that was sent to us yesterday, that is the kind of bipartisan approach I hope we can work to eventually, perhaps when we come back after this long Republican recess, one of the longest in the history of the Congress, to address Zika, and address these other problems that they refuse to deal with today.

I thank the gentleman.

Mr. POLIS. I thank the gentleman from Texas.

Mr. Speaker, the time to act is now. If we can defeat this particular previous question, we will bring up the bill that prevents terrorists from assembling arsenals of weapons.

We also, of course, want to be part of a constructive discussion around combating the Zika menace. I am hopeful that the House will find time to do that in the next few days.

I ask unanimous consent to insert the text of my amendment in the RECORD along with extraneous material immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Colorado?

There was no objection.

Mr. POLIS. Mr. Speaker, I urge my colleagues to vote ''no'' to defeat the previous question so that we can keep our country safer. Vote ''no'' on the rule. Vote ''no'' on the underlying bills because they interfere with our efforts to prevent Iran from developing nuclear weapons in the rigid implementation of the JCPOA.

Mr. Speaker, I yield back the balance of my time.

Mr. BYRNE. Mr. Speaker, I yield myself the balance of my time.

As frequently happens around here, the House passed one version of the Zika bill, the Senate passed another version. The Senate version contained $1.1 billion in spending. The House, in our agreement to the conference committee, agreed with the $1.1 billion, so we, essentially, agreed to what the Senate wanted to have in terms of the dollar amount.

So we brought that conference report to the floor of this House so that we could go ahead and move that before we went out for Fourth of July recess. But, instead of helping us to pass that, my friends from the other side of the aisle blocked the well, tried to stop us from bringing it up.

And I would say this: There was some talk about amendments. We don't normally have amendments to conference reports. That is not typical procedure around here.

Perhaps more to the point, we couldn't get to an amendment debate because of the way we had behavior on the floor of the House that evening which, by the way, was in violation of the House rules.

So it has been the Republicans that have tried to get something that would help with this Zika virus problem, and we have been blocked, almost completely blocked here on the floor of the House by the Democrats, and then blocked completely over in the Senate by the Democrats in the Senate.

The Republicans are taking a responsible, constructive approach, and the Democrats, they just want to block things to try to make some political points and raise money or whatever it is they are trying to do.

The material previously referred to by Mr. POLIS is as follows:

AN AMENDMENT TO H. RES. 819 OFFERED BY MR. POLIS

At the end of the resolution, add the following new sections:

SEC 4. Immediately upon adoption of this resolution the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 1076) to increase public safety by permitting the Attorney General to deny the transfer of a firearm or the issuance of firearms or explosives licenses to a known or suspected dangerous terrorist. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

SEC. 5. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 1076.

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the Democratic minority to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R–Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

The Republican majority may say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule. . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. BYRNE. Mr. Speaker, I urge my colleagues to support House Resolution 819 and the underlying bill.

I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. POLIS. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings

today on motions to suspend the rules on which a recorded vote or the yeas and nays are ordered, or on which the vote incurs objection under clause 6 of rule XX.

Record votes on postponed questions will be taken later.

TESTED ABILITY TO LEVERAGE EXCEPTIONAL NATIONAL TALENT ACT OF 2016

Mr. FARENTHOLD. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 5658) to amend title 5, United States Code, to codify the Presidential Innovation Fellows Program, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5658

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Tested Ability to Leverage Exceptional National Talent Act of 2016'' or the ''TALENT Act of 2016''.

SEC. 2. PRESIDENTIAL INNOVATION FELLOWS PROGRAM.

(a) IN GENERAL.—Chapter 31 of title 5, United States Code, is amended by adding at the end the following:

''SUBCHAPTER V—PRESIDENTIAL INNOVATION FELLOWS PROGRAM

''§ 3171. Presidential Innovation Fellows Program

''(a) POLICY.—It is in the national interest for the Government to attract the brightest minds skilled in technology or innovative practices to serve in the Government to work on some of the Nation's biggest and most pressing challenges. This subchapter establishes a program to encourage successful entrepreneurs, executives, and innovators to join the Government and work in close cooperation with Government leaders, to create meaningful solutions that can help save lives and taxpayer money, fuel job creation, and significantly improve how the Government serves the American people.

''(b) ESTABLISHMENT.—The Administrator of General Services shall continue the Presidential Innovation Fellows Program (hereinafter referred to as the 'Program') to enable exceptional individuals with proven track records to serve time-limited appointments in Executive agencies to address some of the Nation's most significant challenges and improve existing Government efforts that would particularly benefit from expertise using innovative techniques and technology.

''(c) ADMINISTRATION.—The Program shall be administered by a Director, appointed by the Administrator under authorities of the General Services Administration. The Administrator shall provide necessary staff, resources and administrative support for the Program.

''(d) APPOINTMENT OF FELLOWS.—The Director shall appoint fellows pursuant to the Program and, in cooperation with Executive agencies, shall facilitate placement of fellows to participate in projects that have the potential for significant positive effects and are consistent with the President's goals.

''(e) APPLICATION PROCESS.—

''(1) IN GENERAL.—The Director shall prescribe the process for applications and nominations of individuals to the Program.

''(2) PROGRAM STANDARDS.—Following publication of these processes, the Director may accept for consideration applications from individuals. The Director shall establish, administer, review, and revise, if appropriate, a Governmentwide cap on the number of fellows. The Director shall establish and publish salary ranges, benefits, and standards for the Program.

''(f) SELECTION, APPOINTMENT, AND ASSIGNMENT OF FELLOWS.—

''(1) PROCEDURES.—The Director shall prescribe appropriate procedures for the selection, appointment, and assignment of fellows.

''(2) CONSULTATION.—Prior to the selection of fellows, the Director shall consult with the heads of Executive agencies regarding potential projects and how best to meet those needs. Following such consultation, the Director shall select and appoint individuals to serve as fellows.

''(3) TIME LIMITATION.—Fellows selected for the Program shall serve under short-term, time-limited appointments. Such fellows shall be appointed for no less than 6 months and no longer than 2 years in the Program. The Director shall facilitate the process of placing fellows at requesting Executive agencies.

''(g) RESPONSIBILITIES OF AGENCIES.—Each Executive agency shall work with the Director and the Presidential Innovation Fellows Program advisory board established under section 3172 to attempt to maximize the Program's benefits to the agency and the Government, including by identifying initiatives that have a meaningful effect on the people served and that benefit from involvement by one or more fellows. Such agencies shall ensure that each fellow works closely with responsible senior officials for the duration of the assignment.

''§ 3172. Presidential Innovation Fellows Program advisory board

''(a) IN GENERAL.—The Administrator of General Services shall continue an advisory board to advise the Director of the Presidential Innovation Fellows Program by recommending such priorities and standards as may be beneficial to fulfill the mission of the Presidential Innovation Fellows Program and assist in identifying potential projects and placements for fellows. The advisory board may not participate in the selection process under section 3171(f).

''(b) CHAIR; MEMBERSHIP.—The Administrator shall designate a representative to serve as the Chair of the advisory board. In addition to the Chair, the membership of the advisory board shall include—

''(1) the Deputy Director for Management of the Office of Management and Budget;

''(2) the Director of the Office of Personnel Management;

''(3) the Administrator of the Office of Electronic Government of the Office of Management and Budget;

''(4) the Assistant to the President and Chief Technology Officer; and

''(5) other individuals as may be designated by the Administrator.

''(c) CONSULTATION.—The advisory board may consult with industry, academia, or nonprofits to ensure the Presidential Innovation Fellows Program is continually identifying opportunities to apply advanced skillsets and innovative practices in effective ways to address the Nation's most significant challenges.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 31 of title 5, United States Code, is amended by adding at the end the following:

''SUBCHAPTER V—PRESIDENTIAL INNOVATION FELLOWS PROGRAM

''3171. Presidential Innovation Fellows Program.

''3172. Presidential Innovation Fellows Program advisory board.''.

(c) TRANSITION.—The Presidential Innovation Fellows Program established pursuant to Executive Order 13704 (5 U.S.C. 3301 note) as in existence on the day before the date of enactment of this Act shall be considered the Presidential Innovation Fellows Program described under this section.

(d) NO ADDITIONAL FUNDS AUTHORIZED.—No additional funds are authorized to be appropriated to carry out this Act or the amendments made by this Act. This Act and the amendments made by this Act shall be carried out using amounts otherwise authorized.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Texas (Mr. FARENTHOLD) and the gentleman from California (Mr. TED LIEU) each will control 20 minutes.

The Chair recognizes the gentleman from Texas.

GENERAL LEAVE

Mr. FARENTHOLD. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. FARENTHOLD. Mr. Speaker, I yield myself such time as I may consume.

I rise today in support of H.R. 5658, the TALENT Act of 2016, introduced by our distinguished majority leader, Representative KEVIN MCCARTHY of Bakersfield, California. I commend the leader for bringing before the House this bill as part of his Innovation Initiative, rethinking what government does and how government operates.

Mr. Speaker, the TALENT Act makes permanent the Presidential Innovation Fellows program that was created by the administration in 2012. This highly competitive program recruits talented innovators and technologists to Federal agencies from the private sector.

During this short timeframe, fellows work on initiatives to transfer ideas into tangible results for American taxpayers at startup speeds. Since 2012, 96 top innovators have been recruited into the program from across the country.

Presidential Innovation Fellows are rethinking what government does and how government operates. Consider one example of the program's work. Presidential Innovation Fellows improved services available to veterans, transitioning servicemembers, and their spouses. As a result, veterans now have better access to a résumé-builder, a military skills translator, and detailed career and training resources all together in one place.

Mr. Speaker, the Presidential Innovation Fellowship program is demonstrating results and should continue. I urge my colleagues to support H.R. 5658.

I reserve the balance of my time.

Mr. TED LIEU of California. Mr. Speaker, I yield myself such time as I may consume.

I rise in support of the TALENT Act. I believe it will help our government

continue to attract the best and the brightest to help some of our Nation's largest challenges.

This Act codifies Executive Order 13704, and ensures the continuation of the Presidential Innovation Fellows program, which helps bring private-sector information technology solutions to Federal agencies.

Established by President Obama in 2012, this program has matched over 100 innovators with top civil servants at 25 different Federal departments and agencies. These partnerships harness new technology and tools to create a more effective and efficient government. During their tenure, fellows work to quickly deliver innovative products and services that help improve the way the Federal Government interacts with the American people.

The fellows are as diverse as our country and come from every region, age, skill, race, and gender. They have experience at companies like Google and Facebook, degrees from some of our top universities, extensive experience in nonprofits and, most importantly, a desire to harness their skills for public service.

Past projects include the Blue Button Initiative, which allows 150 million Americans access to their own health data so they can make informed decisions about their family's care.

The GeoQ project provides FEMA with better on-the-ground knowledge in times of disaster, using crowdsourced pictures to better assess damages and needs.

The NotAlone.gov project provides students and law enforcement personnel resources on responding and preventing sexual assault on college campuses.

And as a veteran myself, I appreciate the Veterans Employment Center, which has created a central hub for those who served with resources and potential employers to help them make the transition to civilian life.

This is a good bill that would make permanent a successful program. I urge my colleagues to support it.

Mr. Speaker, I reserve the balance of my time.

Mr. FARENTHOLD. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. MCCARTHY), the majority leader.

Mr. MCCARTHY. I thank the gentleman for yielding.

Mr. Speaker, the American people deal with their government in different ways almost every day; veterans trying to navigate the Federal bureaucracy, entrepreneurs dealing with regulations, citizens looking to access public information.

□ 1430

Dealing with the government is never as clear, as easy, or as efficient as it should be. That is because, while the world has changed in so many ways, government has stayed in the past.

Just think of how little government has changed. In the 1930s, we got our news from the radio and the morning paper; today we get it on our phones. In the 1930s, we would cool off by opening the window or using a fan; today we have central air. In the 1930s, the VA processed paper disability claims; today it still processes paper disability claims.

Why is it that we expect more technology from our phones every month yet tolerate the exact same from our government year after year after year? Government is stuck in the past. We need to bring it into the future, and that is one of the two pillars of the Innovation Initiative.

Bringing government into the 21st century demands challenging the status quo. That begins with people, making sure the American people benefit from the best talent our country has to offer.

The Presidential Innovation Fellows program allows highly talented professionals—that means engineers, designers, and innovators from across the country—to build a more efficient, effective, and accountable government. They challenge old ways of thinking and introduce new approaches to make our government work the way American people believe and deserve it to work.

Now, I sponsored the TALENT Act to make sure this program continues into future administrations. By codifying the Presidential Innovation Fellows program into law, we can continue bringing positive disruptors to Washington and modernize our government.

The greatest resource we have in our country is the American people. We need the talent of the American people now more than ever before so we can reform government so it works well for everyone.

Mr. TED LIEU of California. Mr. Speaker, I have no further speakers.

I yield back the balance of my time.

Mr. FARENTHOLD. Mr. Speaker, I yield myself the balance of my time.

This is a great piece of legislation. Regardless of which side of the aisle we sit on and regardless of whether we think government is too big or too small, I think almost everybody in this Chamber should be able to agree that the government needs to do its job well. It needs to spend taxpayer money efficiently. It needs to get the job done for the American people.

One of the ways it can do that is by adopting modern technology and taking advantage of the disruption that we have seen in the private sector that has brought us innovations like our phone that now is more powerful than a desktop computer just a few years ago.

I agree with the gentleman from California. It is absolutely imperative that we provide better, more efficient service to our veterans, but the same should be true in dealing with every area of government. You should get as good service from the government as you do in the private sector.

We can talk all we want about the Federal bureaucracy, and I am sure I will probably disagree with some of the folks on the other side of the aisle about some of the pros and cons of this. But I think what we have seen in California, in Texas, in the Carolinas, in Boston, and all over this great Nation, as we have seen this boom in technology, as we have seen the changes that are coming that we are able to do more with less, we are able to do things faster, we are able to be more efficient, and we are able to give people more leisure time. This innovation economy, this mindset of the entrepreneur is something that this program brings into the Federal Government.

Many people spend long careers in the Federal Government where it is often disincentivized to innovate. This short-term program that brings the best of the best into the government for short periods of time to shake things up and to rethink how we do things is one of the ways that we can make it where the Federal Government actually can compute its way out of a paper bag. It is a way we are able to help our veterans. It is a way we are able to help all of our citizens by providing the services that we choose to provide as a government in the most efficient manner, and it gives us an opportunity for somebody who is standing outside of the box to take a look at what we are doing so maybe we can act a little bit outside of the box and do a better job.

Mr. Speaker, I urge my colleagues to join me in supporting this phenomenal bill.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. FARENTHOLD) that the House suspend the rules and pass the bill, H.R. 5658.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. FARENTHOLD. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this motion will be postponed.

NATIONAL SECURITIES EXCHANGE REGULATORY PARITY ACT OF 2016

Mr. ROYCE. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 5421) to amend the Securities Act of 1933 to apply the exemption from State regulation of securities offerings to securities listed on a national security exchange that has listing standards that have been approved by the Commission, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5421

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''National Securities Exchange Regulatory Parity Act of 2016''.

SEC. 2. APPLICATION OF EXEMPTION.

(a) AMENDMENTS.—Section 18(b)(1) of the Securities Act of 1933 (15 U.S.C. 77r(b)(1)) is amended—

(1) by striking subparagraph (A);

(2) in subparagraph (B), by striking ''that the Commission determines by rule (on its own initiative or on the basis of a petition) are substantially similar to the listing standards applicable to securities described in subparagraph (A)'' and inserting ''that have been approved by the Commission, consistent with section 2(c) of the National Securities Exchange Regulatory Parity Act of 2016'';

(3) in subparagraph (C), by striking ''or (B)''; and

(4) by redesignating subparagraphs (B) and (C) as subparagraphs (A) and (B), respectively.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect—

(1) on the date of enactment of this Act, with respect to a national securities exchange registered with, and whose listing standards have been approved by, the Securities and Exchange Commission on or before the date of enactment of this Act; and

(2) on the date the Securities and Exchange Commission issues the final rule required by subsection (c), with respect to a national securities exchange not described under paragraph (1).

(c) REPLACEMENT STANDARDS.—Not later than 360 days after the date of enactment of this Act, the Securities and Exchange Commission shall, by rule subject to public notice and comment, establish minimum core quantitative listing standards pursuant to section 6 of the Securities Exchange Act of 1934.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. ROYCE) and the gentlewoman from California (Ms. MAXINE WATERS) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. ROYCE. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and to include any extraneous material on this bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. ROYCE. Mr. Speaker, I yield myself such time as I may consume.

I rise today in support of H.R. 5421. This is the National Securities Exchange Regulatory Parity Act.

If you go back to 1996, as part of the National Securities Market Improvement Act, Congress acted to exempt the listed securities on three specific stock exchanges from State-by-State registration. Why was that exemption important? You can ask anyone from Massachusetts who tried to invest in a little company called Apple during its December 1980 IPO. State regulators banned Apple stock for sale to the public for, in the view of State regulators, being too risky.

Congress passed a good bill in 1996, but we got one thing wrong. We couldn't predict the future. Today, only two of the original three exchanges exist, and many more, many more exchanges have joined the fray. The SEC's interpretation of the law has, in fact, created a two-tiered legal structure by giving this blue-sky exemption exclusively to the original three named exchanges.

The bill before us today simply gives all national securities exchanges equal treatment under the law. We give an immediate exemption to securities listed on a national securities exchange registered with the SEC and whose listing standards have already been approved by the Commission, and we ask the SEC to engage in a rulemaking to establish minimum core quantitative standards for any new exchanges that register with the Commission after the bill's enactment.

With so many regulatory impediments to capital formation, it is important we encourage new exchanges to become listing venues and a source of capital for companies looking to go public, looking to expand, and looking to hire more workers.

So I want to thank Ranking Member MAXINE WATERS. I also want to thank her staff for working with us to get this bill to the floor. I also want to thank my good friend from New York, Congresswoman CAROLYN B. MALONEY, for her constructive additions to the bill since committee markup. Finally, I would like to thank Chairman HENSARLING and his able staff, Rebekah Goshorn and Kevin Edgar, for all of their hard work.

Mr. Speaker, I urge my colleagues to join me in supporting this commonsense legislation.

I reserve the balance of my time.

Ms. MAXINE WATERS of California. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I would like to first thank my Republican colleagues for amending H.R. 5421 in an attempt to improve the status quo for the benefit of securities exchanges and the investors that trade on them and provide the Securities and Exchange Commission with additional discretion in a currently inflexible process.

H.R. 5421 would modernize a 1996 law that governs the process used by the SEC in determining whether an approved listing standard of a national securities exchange should be exempt from State regulation and oversight. That outdated process currently requires the SEC to compare listing standards to an imperfect baseline—the standards of the New York Stock Exchange, the American Stock Exchange, and the NASDAQ Stock Market.

Twenty years later, that baseline does not make much sense, as the American Stock Exchange no longer exists, and we have six other exchanges that are approved to list securities without State oversight. It neither seems fair to the other exchanges nor sufficiently protective of investors to allow the three named exchanges to effectively dictate listing standards.

However imperfect, the current standard has guided the SEC to create an informal framework to consider certain core listing standards, such as minimum revenue, market capitalization, number of shareholders, and share price.

Now, the bill that we marked up in committee would have upended this framework and preempted States for any approval listing standard. I opposed that bill, as I believe it would have removed a valuable analysis that protects investors and ensures appropriate State oversight of smaller companies that may, in the future, list on a venture exchange.

Since that time, however, my Republican colleagues have worked to take into account these concerns and have amended the bill for the better. I want to thank Mr. ROYCE for his leadership and for the work that he has done on this issue and the time that his staff has spent with my staff.

Under the bill before us today, the SEC would have nearly a year to engage in a rulemaking to establish minimum core quantitative listing standards that protect investors and the public interest. That rulemaking would provide clarity and transparency to the preemption process and leave the issue of State oversight over small company trading on venture exchanges with the SEC. Most importantly, it would provide investors and interested members of the public the opportunity to comment on the overall process in a space where investors and the public do not have the resources to comment on each of the 1,000 rules proposed each year.

I do have some remaining concerns that the bill directs the SEC to implement only core quantitative standards and does not mention qualitative standards. However, under the bill, the quantitative standards are to be informed by qualitative factors like investor protection and the public interest, and the SEC retains its authority to apply other qualitative factors, as it does now, in its initial rule approval and the preemption process.

Moreover, I would expect the SEC, in its rulemaking, to establish quantitative standards for some of the qualitative factors that it currently considers, such as the number or percentage of independent board directors and certain shareholder meeting requirements.

So I would like to thank Mr. ROYCE and my Republican colleagues for amending H.R. 5421.

Mr. Speaker, I yield back the balance of my time.

Mr. ROYCE. I want to thank the gentlewoman from California for her work to improve the bill.

Mr. Speaker, I yield such time as he may consume to the gentleman from Illinois (Mr. HULTGREN). He would like to speak on the bill.

Mr. HULTGREN. Mr. Speaker, I rise today in support of the National Securities Exchange Regulatory Parity Act of 2016. I want to thank the chairman of the Foreign Affairs Committee, Mr. ROYCE, for introducing this legislation.

I am a proud cosponsor. I was also excited to see a very strong bipartisan vote of support in the Financial Services Committee.

□ 1445

This is a simple technical fix to a 20-year-old statute that didn't foresee, or at least didn't contemplate, an increase in the number of exchanges and today's competitive market structure.

In 1996, Congress enacted the National Securities Markets Improvement Act, which codified the blue sky exemption for companies listed on the three predominant listed venues of that time: the New York Stock Exchange, the American Stock Exchange, and the NASDAQ. The blue sky exemption means securities will not be subject to both State and Federal regulation, which can be redundant and overly burdensome.

Currently, exchanges not enumerated by the Act must have ''substantially similar'' listing standards as those that are specifically named in the Act. This puts these exchanges in an unnecessary, government-created, competitive disadvantage. It functionally prevents a handful of exchanges from being a first mover in adopting innovative listing standards.

The unintended consequences of Congress' amendment to include specific references to just a few exchanges is a two-tiered regulatory structure and is unfair to exchanges that have since registered with the SEC.

According to the Chicago Stock Exchange, it is not currently a primary listing exchange for any securities, ''in part because such securities would be subject to both Federal and State regulation, which is prohibitively costly and overly burdensome to potential listing companies. This change would remove this current impediment to companies listing their securities on CHX and would help in the exchange's efforts to develop a robust primary listing market here in Illinois.''

Furthermore, this legislation would benefit the options industry, which has its home in Chicago as well. The Chicago Board Options Exchange is the largest market for stock options. Why should one of the most innovative and respected markets have to jump through unnecessary hurdles to update its listing standards?

We should not have artificial impediments to accessing the capital markets.

I urge all my colleagues to oppose this commonsense legislation.

Mr. ROYCE. Mr. Speaker, I have no further requests for time, and I urge an ''aye'' vote.

I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from California (Mr. ROYCE) that the House suspend the rules and pass the bill, H.R. 5421, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, proceedings will resume on questions previously postponed.

Votes will be taken in the following order:

Ordering the previous question on House Resolution 820;

Adoption of House Resolution 820, if ordered;

Ordering the previous question on House Resolution 819;

Adoption of House Resolution 819, if ordered;

Suspending the rules and passing H.R. 5658.

The first electronic vote will be conducted as a 15-minute vote. Remaining electronic votes will be conducted as 5-minute votes.

PROVIDING FOR CONSIDERATION OF H.R. 5538, DEPARTMENT OF THE INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS ACT, 2017; PROVIDING FOR PROCEEDINGS DURING THE PERIOD FROM JULY 15, 2016, THROUGH SEPTEMBER 5, 2016; AND FOR OTHER PURPOSES

The SPEAKER pro tempore. The unfinished business is the vote on ordering the previous question on the resolution (H. Res. 820) providing for consideration of the bill (H.R. 5538) making appropriations for the Department of the Interior, environment, and related agencies for the fiscal year ending September 30, 2017, and for other purposes; providing for proceedings during the period from July 15, 2016, through September 5, 2016; and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The vote was taken by electronic device, and there were—yeas 236, nays 174, not voting 23, as follows:

[Roll No. 406]

YEAS—236

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barton
Benishek
Bilirakis
Bishop (MI)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—174

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jeffries
Johnson (GA)
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey

Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Payne
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—23

Barr
Bishop (UT)
Carson (IN)
Collins (GA)
Foxx
Green, Al
Hastings
Hinojosa
Jackson Lee
Johnson, E. B.
Jolly
Jones
Loudermilk
Marchant
Marino
Nolan
Pelosi
Poe (TX)
Sanchez, Loretta
Speier
Stutzman
Takai
Veasey

□ 1510

Mr. BRADY of Pennsylvania changed his vote from ''yea'' to ''nay.''

Mr. FINCHER changed his vote from ''nay'' to ''yea.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

Stated for:

Mr. BARR. Mr. Speaker, on rollcall No. 406, I was unavoidably detained. Had I been present, I would have voted "yes."

(By unanimous consent, Mr. BARTON was allowed to speak out of order.)

2016 CONGRESSIONAL BASEBALL GAME

Mr. BARTON. Mr. Speaker, first, I think we should all recognize that this is a moment of tragedy in our great country. Our President and former President, as we speak here on the House floor, are in Dallas, Texas, at a memorial service for the officers who were killed and wounded and for the two civilians in the shooting incident in Dallas last Friday; so this is a solemn day for our country.

But, here in Washington, several weeks ago, we had our annual congressional baseball game. As you can tell by the piece of hardware to my right, for the first time in 8 years, the Republicans won, which is something that we can be proud of.

Before I comment for the winning side, I yield to the gentleman from Pennsylvania (Mr. MICHAEL F. DOYLE), my good friend and the manager of the congressional Democratic team.

Mr. MICHAEL F. DOYLE of Pennsylvania. Mr. Speaker, I thank my friend from Texas. All of us on this side of the aisle share the grief and the sadness we all feel about the lives lost in Dallas, in Louisiana, in Minnesota, and anywhere in this country where innocent victims lose their lives.

Well, this is unfamiliar territory for me. I haven't had a speech prepared for this one.

Mr. BARTON. It doesn't feel very good, does it?

Mr. MICHAEL F. DOYLE of Pennsylvania. Mr. Speaker, that trophy sure looks out of place on that side of the aisle, but I want to say congratulations to the Republican team. You guys played a good game, and you deserved to win. We make no excuses. It was a very exciting contest for the fans in the stands to watch.

As always, Joe, as you and I both know, the big winners are the Boys and Girls Club of Washington, D.C., the Washington Literacy Council, and the Dream Foundation. I believe we were able to raise $500,000 this year. And that is really what this is all about and why we play this game and the camaraderie that goes along with it.

So I would say to my friend from Texas, enjoy that trophy in your office this year because it is coming back to a different location next year.

Mr. BARTON. Mr. Speaker, I want to commend the gentleman from Pennsylvania (Mr. MICHAEL F. DOYLE). He and I serve on the same committee, and both of our staffs have worked well together on this game.

Mr. Speaker, in 2013, the Republicans were outscored 22–0 in this game. That was the low point of my entire congressional career, not just baseball, I mean, legislative, you name it.

But we have risen from the ashes. My coach, Representative ROGER WILLIAMS, who is right behind me, has worked tirelessly. We had 32 Republican Members who suited up for the game. Twenty-seven of those were able to play in the game. We had great pitching from MARK WALKER, JOHN SHIMKUS, and our closer PAT MEEHAN. We had great hitting. I think we got 14 hits.

We were comfortably ahead, and then the Democrats came back in the sixth inning and went ahead. And then we came back in the bottom of the seventh with two outs. Our slugger from the Sunshine State of Florida, Mr. TOM ROONEY, slammed one down the right field line. And BOB DOLD from Illinois scurried home, and I will be darned if we didn't win the game by one run. So we kind of slaughtered you all this year.

It is going to be a competitive game next year, Mr. DOYLE. In all honesty, it is one of the highlights of my year. I am not like Roger. I don't like getting up at 6:30 in the morning to practice, but we do it.

I would like for every Member of the Republican team that has played and practiced to stand up. I would like all my team members to stand up.

I didn't hear much applause on that side of the aisle.

Mr. Speaker, it is a great game for charity. I think the series now is 39 and 39; is that right? So next year, it is bragging rights for the century.

Mr. MICHAEL F. DOYLE of Pennsylvania. Mr. Speaker, I would ask our Democratic Members to stand up and be recognized, too.

Mr. BARTON. Mr. Speaker, we have a Member from the other body who actually was one of our stars, Senator JEFF FLAKE of Arizona. So we appreciate him coming over.

The SPEAKER pro tempore. Without objection, 5-minute voting will continue.

There was no objection.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SLAUGHTER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 237, nays 179, not voting 17, as follows:

[Roll No. 407]

YEAS—237

Abraham
Aderholt
Allen
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik

Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—179

Adams
Aguilar
Amash
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jeffries
Johnson (GA)
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Massie
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Payne
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—17

Brady (TX)
Foxx
Green, Al
Hastings
Hinojosa
Jackson Lee
Johnson, E. B.
Jolly
Marchant
Marino
Nolan
Pelosi
Poe (TX)
Sanchez, Loretta
Stutzman
Takai
Veasey

□ 1523

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PROVIDING FOR CONSIDERATION OF H.R. 4992, UNITED STATES FINANCIAL SYSTEM PROTECTION ACT OF 2016; PROVIDING FOR CONSIDERATION OF H.R. 5119, NO 2H2O FROM IRAN ACT; AND PROVIDING FOR CONSIDERATION OF H.R. 5631, IRAN ACCOUNTABILITY ACT OF 2016

The SPEAKER pro tempore. The unfinished business is the vote on ordering the previous question on the resolution (H. Res. 819) providing for consideration of the bill (H.R. 4992) to codify regulations relating to transfers of funds involving Iran, and for other purposes; providing for consideration of the bill (H.R. 5119) to prohibit the obligation or expenditure of funds available to any Federal department or agency for any fiscal year to purchase or issue a license for the purchase of heavy water produced in Iran; and providing for consideration of the bill (H.R. 5631) to hold Iran accountable for its state sponsorship of terrorism and other threatening activities and for its human rights abuses, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 241, nays 174, not voting 18, as follows:

[Roll No. 408]

YEAS—241

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—174

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jeffries
Johnson (GA)
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Payne
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Van Hollen
Vargas
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—18

DeSaulnier	Johnson, E. B.	Poe (TX)
Foxx	Jolly	Sanchez, Loretta
Green, Al	Marchant	Stutzman
Hastings	Marino	Takai
Hinojosa	Nolan	Tsongas
Jackson Lee	Pelosi	Veasey

□ 1530

So the previous question was ordered.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SLAUGHTER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 237, nays 172, not voting 24, as follows:

[Roll No. 409]

YEAS—237

Abraham	Forbes	Lummis
Aderholt	Fortenberry	MacArthur
Amash	Franks (AZ)	Massie
Amodei	Frelinghuysen	McCarthy
Babin	Garrett	McCaul
Barletta	Gibbs	McClintock
Barr	Gibson	McHenry
Barton	Gohmert	McKinley
Benishek	Goodlatte	McMorris Rodgers
Bilirakis	Gosar	McSally
Bishop (MI)	Gowdy	Meadows
Bishop (UT)	Granger	Meehan
Black	Graves (GA)	Messer
Blackburn	Graves (LA)	Mica
Blum	Graves (MO)	Miller (FL)
Bost	Griffith	Miller (MI)
Boustany	Grothman	Moolenaar
Brady (TX)	Guinta	Mooney (WV)
Bridenstine	Guthrie	Mullin
Brooks (AL)	Hanna	Mulvaney
Brooks (IN)	Hardy	Murphy (PA)
Buchanan	Harper	Neugebauer
Buck	Harris	Newhouse
Bucshon	Hartzler	Noem
Burgess	Heck (NV)	Nugent
Byrne	Hensarling	Nunes
Calvert	Herrera Beutler	Olson
Carter (GA)	Hice, Jody B.	Palazzo
Carter (TX)	Hill	Palmer
Chabot	Holding	Paulsen
Chaffetz	Hudson	Pearce
Clawson (FL)	Huelskamp	Perry
Coffman	Huizenga (MI)	Pittenger
Cole	Hultgren	Pitts
Collins (GA)	Hunter	Poliquin
Collins (NY)	Hurd (TX)	Pompeo
Comstock	Hurt (VA)	Posey
Conaway	Issa	Price, Tom
Cook	Jenkins (KS)	Ratcliffe
Costello (PA)	Jenkins (WV)	Reed
Cramer	Johnson (OH)	Reichert
Crawford	Johnson, Sam	Renacci
Crenshaw	Jones	Ribble
Culberson	Jordan	Rice (SC)
Curbelo (FL)	Joyce	Rigell
Davidson	Katko	Roby
Davis, Rodney	Kelly (MS)	Roe (TN)
Denham	Kelly (PA)	Rogers (AL)
Dent	King (IA)	Rogers (KY)
DeSantis	King (NY)	Rohrabacher
DesJarlais	Kinzinger (IL)	Rokita
Diaz-Balart	Kline	Rooney (FL)
Dold	Knight	Ros-Lehtinen
Donovan	Labrador	Roskam
Duffy	LaHood	Ross
Duncan (SC)	LaMalfa	Rothfus
Duncan (TN)	Lamborn	Rouzer
Ellmers (NC)	Lance	Royce
Emmer (MN)	Latta	Russell
Farenthold	LoBiondo	Salmon
Fincher	Long	Sanford
Fitzpatrick	Loudermilk	Scalise
Fleischmann	Love	Schweikert
Fleming	Lucas	Scott, Austin
Flores	Luetkemeyer	Sensenbrenner
Sessions	Trott	Whitfield
Shimkus	Turner	Williams
Shuster	Upton	Wilson (SC)
Simpson	Valadao	Wittman
Smith (MO)	Wagner	Womack
Smith (NE)	Walberg	Woodall
Smith (TX)	Walden	Yoder
Stefanik	Walker	Yoho
Stewart	Walorski	Young (AK)
Stivers	Walters, Mimi	Young (IA)
Thompson (PA)	Weber (TX)	Young (IN)
Thornberry	Webster (FL)	Zeldin
Tiberi	Wenstrup	Zinke
Tipton	Westerman	
	Westmoreland	

NAYS—172

Adams	Farr	Murphy (FL)
Aguilar	Foster	Nadler
Ashford	Frankel (FL)	Napolitano
Bass	Fudge	Neal
Beatty	Gabbard	Norcross
Becerra	Gallego	O'Rourke
Bera	Garamendi	Pallone
Beyer	Graham	Pascrell
Bishop (GA)	Grayson	Payne
Blumenauer	Green, Gene	Perlmutter
Bonamici	Grijalva	Peters
Boyle, Brendan F.	Gutiérrez	Peterson
	Hahn	Pingree
Brady (PA)	Heck (WA)	Pocan
Brown (FL)	Higgins	Price (NC)
Brownley (CA)	Himes	Quigley
Bustos	Honda	Rangel
Butterfield	Hoyer	Rice (NY)
Capuano	Huffman	Richmond
Cárdenas	Israel	Roybal-Allard
Carney	Jeffries	Ruiz
Carson (IN)	Kaptur	Ruppersberger
Cartwright	Keating	Ryan (OH)
Castor (FL)	Kelly (IL)	Sánchez, Linda T.
Castro (TX)	Kennedy	
Chu, Judy	Kildee	Sarbanes
Cicilline	Kilmer	Schakowsky
Clark (MA)	Kind	Schiff
Clarke (NY)	Kirkpatrick	Schrader
Clay	Kuster	Scott (VA)
Cleaver	Langevin	Scott, David
Clyburn	Larsen (WA)	Serrano
Cohen	Larson (CT)	Sewell (AL)
Connolly	Lawrence	Sherman
Conyers	Lee	Sinema
Cooper	Levin	Sires
Costa	Lewis	Slaughter
Courtney	Lieu, Ted	Smith (WA)
Crowley	Lipinski	Speier
Cuellar	Loebsack	Swalwell (CA)
Cummings	Lofgren	Takano
Davis (CA)	Lowenthal	Thompson (CA)
Davis, Danny	Lowey	Thompson (MS)
DeFazio	Lujan Grisham (NM)	Titus
DeGette		Torres
Delaney	Luján, Ben Ray (NM)	Tsongas
DeLauro		Van Hollen
DelBene	Lynch	Vargas
DeSaulnier	Maloney, Carolyn	Vela
Deutch		Velázquez
Dingell	Maloney, Sean	Visclosky
Doggett	Matsui	Walz
Doyle, Michael F.	McCollum	Wasserman Schultz
	McDermott	
Duckworth	McGovern	Waters, Maxine
Edwards	McNerney	Watson Coleman
Ellison	Meeks	Welch
Engel	Meng	Wilson (FL)
Eshoo	Moore	Yarmuth
Esty	Moulton	

NOT VOTING—24

Allen	Johnson (GA)	Polis
Brat	Johnson, E. B.	Rush
Capps	Jolly	Sanchez, Loretta
Foxx	Marchant	Smith (NJ)
Green, Al	Marino	Stutzman
Hastings	Nolan	Takai
Hinojosa	Pelosi	Tonko
Jackson Lee	Poe (TX)	Veasey

□ 1536

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated against:

Mrs. CAPPS. Mr. Speaker, I was unavoidably detained. Had I been present, I would have voted: On rollcall No. 409, "nay."

TESTED ABILITY TO LEVERAGE EXCEPTIONAL NATIONAL TALENT ACT OF 2016

The SPEAKER pro tempore. The unfinished business is the vote on the motion to suspend the rules and pass the bill (H.R. 5658) to amend title 5, United States Code, to codify the Presidential Innovation Fellows Program, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Texas (Mr. FARENTHOLD) that the House suspend the rules and pass the bill.

This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 409, nays 8, not voting 16, as follows:

[Roll No. 410]

YEAS—409

Abraham	Clay	Fleischmann
Adams	Cleaver	Fleming
Aderholt	Clyburn	Flores
Aguilar	Coffman	Forbes
Allen	Cohen	Fortenberry
Amodei	Cole	Foster
Ashford	Collins (GA)	Frankel (FL)
Babin	Collins (NY)	Franks (AZ)
Barletta	Comstock	Frelinghuysen
Barr	Conaway	Fudge
Barton	Connolly	Gabbard
Bass	Conyers	Gallego
Beatty	Cook	Garamendi
Becerra	Cooper	Garrett
Benishek	Costa	Gibbs
Bera	Costello (PA)	Gibson
Beyer	Courtney	Gohmert
Bilirakis	Cramer	Goodlatte
Bishop (GA)	Crawford	Gosar
Bishop (MI)	Crenshaw	Gowdy
Bishop (UT)	Crowley	Graham
Black	Cuellar	Granger
Blackburn	Culberson	Graves (GA)
Blum	Cummings	Graves (LA)
Blumenauer	Curbelo (FL)	Graves (MO)
Bonamici	Davidson	Grayson
Bost	Davis (CA)	Green, Gene
Boustany	Davis, Danny	Griffith
Boyle, Brendan F.	Davis, Rodney	Grijalva
	DeFazio	Guinta
Brady (PA)	DeGette	Guthrie
Brady (TX)	Delaney	Gutiérrez
Brat	DeLauro	Hahn
Bridenstine	DelBene	Hanna
Brooks (IN)	Denham	Hardy
Brown (FL)	Dent	Harper
Brownley (CA)	DeSantis	Harris
Buchanan	DeSaulnier	Hartzler
Buck	DesJarlais	Heck (NV)
Bucshon	Deutch	Heck (WA)
Burgess	Diaz-Balart	Hensarling
Bustos	Dingell	Herrera Beutler
Butterfield	Doggett	Hice, Jody B.
Byrne	Dold	Higgins
Calvert	Donovan	Hill
Capps	Doyle, Michael F.	Himes
Capuano		Holding
Cárdenas	Duckworth	Honda
Carney	Duffy	Hoyer
Carson (IN)	Duncan (SC)	Hudson
Carter (GA)	Duncan (TN)	Huelskamp
Carter (TX)	Edwards	Huffman
Cartwright	Ellison	Huizenga (MI)
Castor (FL)	Ellmers (NC)	Hultgren
Castro (TX)	Emmer (MN)	Hunter
Chabot	Engel	Hurd (TX)
Chaffetz	Eshoo	Hurt (VA)
Chu, Judy	Esty	Israel
Cicilline	Farenthold	Issa
Clark (MA)	Farr	Jeffries
Clarke (NY)	Fincher	Jenkins (KS)
Clawson (FL)	Fitzpatrick	Jenkins (WV)

Johnson (GA)
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kelly (MS)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latta
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Loudermilk
Love
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McGovern
McHenry
McKinley
McMorris Rodgers
McNerney
McSally
Meadows
Meehan
Meeks
Meng
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Moore
Moulton
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Neugebauer
Newhouse
Noem
Norcross
Nugent
Nunes
O'Rourke
Olson
Palazzo
Pallone
Palmer
Pascrell
Paulsen
Payne
Pearce
Perlmutter
Peters
Peterson
Pingree
Pittenger
Pitts
Pocan
Poliquin
Polis
Pompeo
Posey
Price (NC)
Price, Tom
Quigley
Rangel
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Richmond
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Roybal-Allard
Royce
Ruiz
Ruppersberger
Rush
Russell
Ryan (OH)
Salmon
Sánchez, Linda T.
Sarbanes
Scalise
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Serrano
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Speier
Stefanik
Stewart
Stivers
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tonko
Torres
Trott
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Vela
Velázquez
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—8

Amash
Brooks (AL)
Grothman
Jones
Massie
Perry
Sanford
Sensenbrenner

NOT VOTING—16

Foxx
Green, Al
Hastings
Hinojosa
Jackson Lee
Johnson, E. B.
Jolly
Marchant
Marino
Nolan
Pelosi
Poe (TX)
Sanchez, Loretta
Stutzman
Takai
Veasey

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. HULTGREN) (during the vote). There are 2 minutes remaining.

□ 1542

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

SEPARATION OF POWERS RESTORATION ACT OF 2016

The SPEAKER pro tempore. Pursuant to House Resolution 796 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the further consideration of the bill, H.R. 4768.

Will the gentleman from Idaho (Mr. SIMPSON) kindly take the chair.

□ 1543

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the further consideration of the bill (H.R. 4768) to amend title 5, United States Code, with respect to the judicial review of agency interpretations of statutory and regulatory provisions, with Mr. SIMPSON (Acting Chair) in the chair.

The Clerk read the title of the bill.

The Acting CHAIR. When the Committee of the Whole rose on Monday, July 11, 2016, a request for a recorded vote on amendment No. 5 printed in House Report 114–641, offered by the gentleman from Georgia (Mr. JOHNSON) had been postponed.

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, proceedings will now resume on those amendments printed in House Report 114–641 on which further proceedings were postponed, in the following order:

Amendment No. 1 by Mr. JOHNSON of Georgia.

Amendment No. 3 by Mr. MEEKS of New York.

Amendment No. 4 by Mr. JOHNSON of Georgia.

Amendment No. 5 by Mr. JOHNSON of Georgia.

The Chair will reduce to 2 minutes the minimum time for any electronic vote in this series.

AMENDMENT NO. 1 OFFERED BY MR. JOHNSON OF GEORGIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Georgia (Mr. JOHNSON) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 194, noes 223, not voting 16, as follows:

[Roll No. 411]

AYES—194

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Bishop (MI)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Costello (PA)
Courtney
Crowley
Cuellar
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Dent
DeSaulnier
Deutch
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Huizenga (MI)
Israel
Jeffries
Johnson (GA)
Kaptur
Katko
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Lance
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McKinley
McNerney
Meeks
Meng
Miller (MI)
Moolenaar
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Payne
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Smith (WA)
Speier
Stefanik
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Trott
Tsongas
Upton
Van Hollen
Vargas
Vela
Velázquez
Walberg
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth
Zeldin

NOES—223

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Cramer
Crawford
Crenshaw
Culberson
Davidson
Davis, Rodney
Denham
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert

Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Latta
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Massie
McCarthy
McCaul
McClintock
McHenry
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Valadao
Visclosky
Wagner
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zinke

NOT VOTING—16

Foxx
Green, Al
Hastings
Hinojosa
Jackson Lee
Johnson, E. B.
Jolly
Marchant
Marino
Nolan
Pelosi
Poe (TX)
Sanchez, Loretta
Stutzman
Takai
Veasey

□ 1548

Ms. STEFANIK and Mr. KATKO changed their vote from ''no'' to ''aye.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 3 OFFERED BY MR. MEEKS

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from New York (Mr. MEEKS) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 174, noes 243, not voting 16, as follows:

[Roll No. 412]

AYES—174

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jeffries
Johnson (GA)
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Payne
Perlmutter
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—243

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peters
Peterson
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—16

Foxx
Green, Al
Hastings
Hinojosa
Jackson Lee
Johnson, E. B.
Jolly
Marchant
Marino
Nolan
Pelosi
Poe (TX)
Sanchez, Loretta
Stutzman
Takai
Veasey

□ 1552

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 4 OFFERED BY MR. JOHNSON OF GEORGIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Georgia (Mr. JOHNSON) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 174, noes 243, not voting 16, as follows:

[Roll No. 413]

AYES—174

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici

Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jeffries
Johnson (GA)
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Payne
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Scott (VA)
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—243

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schrader
Schweikert
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—16

Foxx
Green, Al
Hastings
Hinojosa
Jackson Lee
Johnson, E. B.
Jolly
Marchant
Marino
Nolan
Pelosi
Poe (TX)
Sanchez, Loretta
Stutzman
Takai
Veasey

□ 1556

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 5 OFFERED BY MR. JOHNSON OF GEORGIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Georgia (Mr. JOHNSON) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 181, noes 235, not voting 17, as follows:

[Roll No. 414]

AYES—181

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Costello (PA)
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Higgins
Himes
Honda
Hoyer
Huffman
Israel
Jeffries
Johnson (GA)
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Payne
Perlmutter
Peters
Pingree
Pocan
Poliquin
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Smith (WA)
Speier
Stefanik
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wenstrup
Wilson (FL)
Yarmuth

NOES—235

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Massie
McCarthy
McCaul
McClintock
McHenry

McKinley	Reichert	Stewart
McMorris Rodgers	Renacci	Stivers
McSally	Ribble	Thompson (PA)
Meadows	Rice (SC)	Thornberry
Meehan	Rigell	Tiberi
Messer	Roby	Tipton
Mica	Roe (TN)	Trott
Miller (FL)	Rogers (AL)	Turner
Miller (MI)	Rogers (KY)	Upton
Moolenaar	Rohrabacher	Valadao
Mooney (WV)	Rokita	Wagner
Mullin	Rooney (FL)	Walberg
Mulvaney	Ros-Lehtinen	Walden
Murphy (PA)	Roskam	Walker
Neugebauer	Ross	Walorski
Newhouse	Rothfus	Walters, Mimi
Noem	Rouzer	Weber (TX)
Nugent	Royce	Webster (FL)
Nunes	Russell	Westerman
Olson	Salmon	Westmoreland
Palazzo	Sanford	Whitfield
Palmer	Scalise	Williams
Paulsen	Schweikert	Wilson (SC)
Pearce	Scott, Austin	Wittman
Perry	Sensenbrenner	Womack
Peterson	Sessions	Woodall
Pittenger	Shimkus	Yoder
Pitts	Shuster	Yoho
Pompeo	Simpson	Young (AK)
Posey	Sinema	Young (IA)
Price, Tom	Smith (MO)	Young (IN)
Ratcliffe	Smith (NE)	Zeldin
Reed	Smith (NJ)	Zinke
	Smith (TX)	

NOT VOTING—17

Foxx	Johnson, E. B.	Poe (TX)
Goodlatte	Jolly	Sanchez, Loretta
Green, Al	Marchant	Stutzman
Hastings	Marino	Takai
Hinojosa	Nolan	Veasey
Jackson Lee	Pelosi	

□ 1600

Mr. CLEAVER changed his vote from ''no'' to ''aye.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

Stated against:

Mr. GOODLATTE. Mr. Chair, on rollcall No. 414, I was unavoidably detained. Had I been present, I would have voted "no."

The Acting CHAIR. The question is on the committee amendment in the nature of a substitute.

The amendment was agreed to.

The CHAIR. Under the rule, the Committee rises.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. HULTGREN) having assumed the chair, Mr. SIMPSON, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 4768) to amend title 5, United States Code, with respect to the judicial review of agency interpretations of statutory and regulatory provisions, and, pursuant to House Resolution 796, he reported the bill back to the House with an amendment adopted in the Committee of the Whole.

The SPEAKER pro tempore. Under the rule, the previous question is ordered.

The question is on the committee amendment in the nature of a substitute.

The amendment was agreed to.

The SPEAKER pro tempore. The question is on the engrossment and third reading of the bill.

The bill was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Mr. KEATING. Mr. Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentleman opposed to the bill?

Mr. KEATING. I am in its current form.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Mr. Keating moves to recommit the bill H.R. 4768 to the Committee on the Judiciary with instructions to report the same to the House forthwith with the following amendments:

Page 3, line 11, insert after ''extent necessary'' the following '', and except as otherwise provided in this section''.

Page 4, line 3, insert after the period at the end the following:

SEC. 3. EXCEPTED RULES REGARDING THE PREVENTION OF FIREARMS TRANSFERS TO CRIMINALS AND SUSPECTED TERRORISTS.

Section 706 of title 5, United States Code, as amended by this Act, is further amended by adding at the end the following:

''(c) In the case of a rule made by the Attorney General pertaining to the implementation of the national instant firearms background check system, including rules pertaining to the denial of firearms transfers to international or domestic terrorist suspects, to the extent necessary to decision and when presented, the reviewing court shall decide all relevant questions of law, interpret constitutional and statutory provisions, and determine the meaning or applicability of the terms of an agency action.''.

The SPEAKER pro tempore. The gentleman from Massachusetts is recognized for 5 minutes.

Mr. KEATING. Mr. Speaker, I yield myself such time as I may consume.

My amendment doesn't delay or send back the underlying bill. It does, however, deny firearms transfers to international domestic terror suspects.

Mr. Speaker, before I came to this Congress I was a prosecutor. I was a district attorney. And under Massachusetts law, I was individually responsible for investigating every death in my district for foul play.

Many times, I was at a violent crime scene where families had lost a son or a daughter, a brother or a sister, a mother or a father. Every time, I would meet with these families after these terrible tragedies, if not at the crime scene, then at the hospital, or at their home, or in my office.

And what was the first thing I told them after telling them how sorry I was for this tragedy?

I think every single person in this Chamber knows what I told them because I sincerely believe that every Member in this Chamber would say the same thing if they were in that position. I have come to know you, I have come to learn about you, and I sincerely believe that you would ask this very same question. That question is, if there is anything, anything at all that I can do for you, please let me know.

There are few, if any, more helpless feelings I have ever felt in my life than during those moments. Never did I want to do so much, yet felt powerless to do so little.

Even years after a conviction, during the appeals process, the family members would talk when we would meet as if it were yesterday. They would talk about things like how they still kept a jersey or some jeans in a drawer at home because they didn't want to let go of the memory of a son who would never wear those clothes again.

Whether it was their faith in God or being strong for their family, they somehow went on. I never have witnessed courage quite like theirs.

Invariably, there was one thing that they did ask me, every single family that I can remember, they said: Please do everything you can so that another family doesn't go through what we are going through.

My team did everything we could so that those criminals we prosecuted did not do what they did to another person again.

And isn't that what we are being asked to do in this Congress?

We all realize that there is no single way to prevent every gun death, but we can reduce them.

Some of the hardest cases I witnessed were motor vehicle homicide cases, lives snatched away in an instant. Yet, decades ago, Congress worked together to reduce the number of deaths on the road. They worked together for safer roads, safer cars with air bags and infant seats.

In 1972, over 54,000 people were killed on the road in this country. Yet, 4 decades later, that number went down by 40 percent, all the while Americans driving more miles than they ever had any time before.

The very same thing can be achieved with universal background checks, limiting the sales of assault weapons, restricting access of deadly weapons to those on the terror watch list.

So families are asking us, because we are the only ones they have to ask, to do everything that you can so that another family doesn't go through what they went through.

We can keep guns out of the hands of terrorists, and we will. Ninety percent of the public supports these actions. We will protect these families, and we will save lives. We are the only ones that are there to prosecute this case, and I respectfully—and I mean respectfully—call for your help. It can't come soon enough.

Mr. Speaker, I yield back the balance of my time.

Mr. COLLINS of Georgia. Mr. Chairman, I rise in opposition to the motion.

The SPEAKER pro tempore. The gentleman from Georgia is recognized for 5 minutes.

Mr. COLLINS of Georgia. Mr. Speaker, I yield myself such time as I may consume.

You know, there are real discussions that we are having here, and I understand the passion and the forthrightness with what has been delivered just now in the asking of this motion to recommit; but I also want to remind Members on both sides of the aisle the

underlying bill and the very principle why we are here.

The very principle behind the bill that we are dealing with goes back—even back right now, in just a couple of months, there will be young boys and girls going back to the classrooms, they will be going back to their schoolrooms, and they will be going around and they will be learning about this wonderful place called Washington, D.C. They will be learning about their Founders, and they will be learning about the Constitution where it says there is a President that we are going to elect this November, and there is an executive branch that carries out the laws. There is a legislative branch, us, that make the laws; and there is a judicial branch that interprets the laws.

Now, what is happening here today—and we can talk about a lot of things, but let's focus for a moment on what we are going to vote on. In this country, the regulatory burden has become crippling on our economy. It is tearing us apart in jobs, in creation, and the things we have.

In fact, right now more law is being made downtown in cubicles than right here in Congress. My question for you today is, if you want to be making law from cubicles, then get out from the cubicle, pay your qualifying fee, and run for Congress. Don't keep ranking it up like this, because Congress has to assert its right in making the laws.

What this bill takes into account is, unfortunately, the Judiciary has decided to side with the executive, and this doctrine called the Chevron gives deference to the very agencies that make the rules and regulations.

So it is very simple here. We can be distracted on a motion to recommit at this point, or we can go back and say this: Congress still matters, that the election cycle still matters, that the Founders were right. There are three branches of government, not one, that wants to tear down and do whatever they want.

No matter what, they need three branches. Vote ''no'' on the motion to recommit, and vote ''yes'' on the bill.

I yield back the balance of my time.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to recommit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to recommit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. KEATING. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 9 of rule XX, this 5-minute vote on the motion to recommit will be followed by a 5-minute vote on passage of the bill, if ordered.

The vote was taken by electronic device, and there were—yeas 169, nays 236, not voting 28, as follows:

[Roll No. 415]

YEAS—169

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Higgins
Himes
Honda
Huffman
Johnson (GA)
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Payne
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NAYS—236

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Massie
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—28

Barton
Brady (TX)
Butterfield
Conyers
Foxx
Goodlatte
Green, Al
Hastings
Hinojosa
Hoyer
Israel
Jackson Lee
Jeffries
Johnson, E. B.
Jolly
Marchant
Marino
McCarthy
Nolan
Pelosi
Poe (TX)
Richmond
Sanchez, Loretta
Scalise
Sires
Stutzman
Takai
Veasey

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The Speaker pro tempore. (During the vote). There are 2 minutes remaining.

□ 1618

So the motion to recommit was rejected.

The result of the vote was announced as above recorded.

Stated against:

Mr. MCCARTHY. Mr. Speaker, on rollcall No. 415, I was unavoidably detained when there was a Capitol lockdown due to a potential shooter that prevented me from getting to the floor. Had I been present, I would have voted ''no.''

Mr. GOODLATTE. Mr. Speaker, on rollcall 415, I was unavoidably detained due to a security lockdown that prevented me from leaving a meeting to vote on the floor. Had I been present, I would have voted ''no.''

The SPEAKER pro tempore. The question is on the passage of the bill.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. JOHNSON of Georgia. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 240, noes 171, not voting 22, as follows:

[Roll No. 416]

AYES—240

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
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Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
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Womack
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Yoder
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Becerra
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Boyle, Brendan F.
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Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Cooper
Costa
Courtney
Crowley
Cuellar
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Davis (CA)
Davis, Danny
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DeGette
Delaney
DeLauro
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Dingell
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Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Gene
Grijalva
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Hahn
Heck (WA)
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Himes
Honda
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Jeffries
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Kaptur
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Kelly (IL)
Kennedy
Kildee
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Kind
Kirkpatrick
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Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
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Meng
Moore
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Murphy (FL)
Nadler
Neal
Norcross
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Pallone
Pascrell
Payne
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Tsongas
Van Hollen
Vargas
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

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Foxx
Green, Al
Hastings
Hinojosa
Hoyer
Israel
Jackson Lee
Johnson, E. B.
Jolly
Long
Marchant
Marino
Napolitano
Nolan
Pelosi
Poe (TX)
Sanchez, Loretta
Stutzman
Takai
Torres
Veasey

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The Speaker pro tempore (during the vote). There are 2 minutes remaining.

□ 1630

So the bill was passed.

The result of the vote was announced as above recorded.

The title of the bill was amended so as to read: ''A bill to amend title 5, United States Code, to clarify the nature of judicial review of agency interpretations of statutory and regulatory provisions.''.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. AL GREEN of Texas. Mr. Speaker, today I missed the following votes: Motion to Adjourn. Had I been present, I would have voted "no" on this motion.

Motion to Adjourn. Had I been present, I would have voted "no" on this motion.

Motion on Ordering the Previous Question on the Rule providing consideration for H.R. 5538. Had I been present, I would have voted "no" on this motion.

H. Res. 820, Rule providing consideration of H.R. 5338. Had I been present, I would have voted "no" on this rule.

Motion on Ordering the Previous Question on the Rule providing consideration for H.R. 4992, H.R. 5119, and H.R. 5631. Had I been present I would have voted "no" on this motion.

H. Res. 819, Rule providing for Consideration of H.R. 4992. Had I been present, I would have voted "no" on this rule.

H.R. 5658, TALENT Act. Had I been present, I would have voted "yes" on this bill.

Johnson (GA)/Conyers Amendment #1. Had I been present, I would have voted "yes" on this amendment.

Meeks Amendment. Had I been present, I would have voted "yes" on this amendment.

Johnson (GA) Amendment #4. Had I been present, I would have voted "yes" on this amendment.

Johnson (GA)/Cicilline Amendment #5. Had I been present, I would have voted "yes" on this amendment.

Democratic Motion to Recommit H.R. 4768. Had I been present, I would have voted "yes" on this motion.

Final Passage of H.R. 4768, Separation of Powers Restoration Act of 2016. Had I been present, I would have voted "no" on this bill.

REMOVAL OF NAME OF MEMBER AS COSPONSOR OF H.R. 5545

Mr. BOUSTANY. Mr. Speaker, I ask unanimous consent that Representative POLIS of Colorado be removed as a cosponsor of H.R. 5545.

The SPEAKER pro tempore (Mr. PALMER). Is there objection to the request of the gentleman from Louisiana?

There was no objection.

SUPPORTING THE BID OF LOS ANGELES, CALIFORNIA, TO BRING THE 2024 SUMMER OLYMPIC GAMES BACK TO THE UNITED STATES AND PLEDGING THE COOPERATION OF CONGRESS WITH RESPECT TO THAT BID

Mr. ROYCE. Mr. Speaker, I ask unanimous consent that the Committee on Foreign Affairs be discharged from further consideration of House Concurrent Resolution 142, and ask for its immediate consideration in the House.

The Clerk read the title of the concurrent resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

The text of the concurrent resolution is as follows:

H. CON. RES. 142

Whereas the International Olympic Committee will meet on September 13, 2017, in Lima, Peru, to consider a site for the Summer Olympic and Paralympic Games (in this preamble referred to as the ''Games'') in 2024;

Whereas the United States Olympic Committee has selected Los Angeles, California, as the candidate of the United States for the 2024 Games;

Whereas the Games further the cause of world peace and understanding;

Whereas the country that hosts the Games performs an act of international goodwill;

Whereas the Games have not been held in the United States since 1996;

Whereas many of the world-class venues to be used in Los Angeles' 2024 plan for the Games are already built or are planned as permanent facilities; and

Whereas Los Angeles is positioned to deliver an innovative, fiscally responsible, and sustainable Games: Now, therefore, be it

Resolved by the House of Representatives (the Senate concurring), That Congress—

(1) advises the International Olympic Committee that the United States would welcome the holding of the 2024 Summer Olympic and Paralympic Games in Los Angeles, California, the site designated by the United States Olympic Committee;

(2) expresses the sincere hope that the United States will be selected as the site for the 2024 Summer Olympic and Paralympic Games and pledges cooperation and support toward the successful fulfillment of those Games in the highest sense of the Olympic tradition; and

(3) respectfully requests that the Secretary of the Senate transmit an enrolled copy of this resolution to the United States Olympic Committee and to the International Olympic Committee.

The concurrent resolution was agreed to.

A motion to reconsider was laid on the table.

RECOGNIZING THE 50TH ANNIVERSARY OF SINGAPOREAN INDEPENDENCE AND REAFFIRMING SINGAPORE'S CLOSE PARTNERSHIP WITH THE UNITED STATES

Mr. ROYCE. Mr. Speaker, I ask unanimous consent that the Committee on Foreign Affairs be discharged from further consideration of House Resolution 374, and ask for its immediate consideration in the House.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

The text of the resolution is as follows:

H. RES. 374

Whereas the Republic of Singapore became independent on August 9, 1965;

Whereas Singapore and the United States share founding principles, including belief in meritocracy and equality of opportunity;

Whereas Singapore has been an early and continued supporter of the United States engagement in Asia to safeguard the peace, stability, and prosperity of the region;

Whereas Singapore underwent rapid growth following independence, with approximate per capita Gross Domestic Product growing from approximately $500 in 1965 to approximately $56,000 in 2014;

Whereas the United States and Singapore concluded the United States-Singapore Free Trade Agreement in 2004, the first bilateral trade agreement between the United States and an Asian country;

Whereas Singapore has become a major United States trading partner, with $65 billion in bilateral goods and services trade in 2013, as well as more than $154.4 billion in United States Foreign Direct Investment in Singapore and $20 billion of Singaporean Foreign Direct Investment in the United States;

Whereas Singapore was a founding member of the Association of South East Asian Nations (ASEAN) in 1967 and remains a key partner with the United States in the East Asia Summit;

Whereas the United States and Singapore established the United States-Singapore Third Country Training Program in 2012 to provide technical and capacity-building assistance to recipient countries;

Whereas Singapore provided the United States access to its military facilities with the 1990 Memorandum of Understanding, to which an addendum was added in 1998, supporting the continued security presence of the United States in Southeast Asia;

Whereas the United States and Singapore concluded a Strategic Framework Agreement in 2005 which recognized Singapore as a ''Major Security Cooperation Partner'' of the United States;

Whereas Singapore facilitates the rotational deployment of Littoral Combat Ships from the United States at Changi Naval Base;

Whereas the United States currently hosts four Republic of Singapore Air Force training detachments, comprising the Republic of Singapore Air Force's F–15SG and F–16 fighter jets, as well as Apache and Chinook helicopters, at bases in Arizona, Idaho, and Texas;

Whereas the Singapore Armed Forces supported multinational reconstruction efforts in Iraq from 2003 to 2008, aided reconstruction and stabilization efforts in Afghanistan from 2007 to 2013, deployed alongside the United States as part of Combined Task Force 151 (CTF 151) since 2009, including taking command of CTF 151, to combat piracy in the Gulf of Aden and joined the Global Coalition to Counter ISIL in November 2014; and

Whereas Singapore will celebrate its 50th anniversary of independence in 2015 and commemorate 50 years of bilateral relations with the United States in 2016: Now, therefore, be it

Resolved, That the House of Representatives—

(1) sends its warm congratulations to the people of Singapore as they celebrate 50 years of independence and nation-building; and

(2) reaffirms the close partnership between the United States and Singapore ahead of the 50th anniversary of the establishment of bilateral diplomatic relations.

AMENDMENT OFFERED BY MR. ROYCE

Mr. ROYCE. Mr. Speaker, I have an amendment to the text of the resolution at the desk.

The SPEAKER pro tempore. The Clerk will report the amendment.

The Clerk read as follows:

Strike all after the resolving clause and insert the following:

That the House of Representatives—

(1) affirms the importance of the United States-Singapore strategic partnership in securing regional peace and stability, including through rotational basing and logistical support arrangements which enhance the United States presence in Southeast Asia;

(2) applauds the Republic of Singapore's leadership in counterterrorism, including the deployment of military assets as part of the anti-ISIL coalition and innovative counterterrorism efforts within the Asia-Pacific region;

(3) anticipates the deepening of the security relationship following the signing of an enhanced Defense Cooperation Agreement in Washington on December 7, 2015, and welcomes further cooperation in areas such as cybersecurity, humanitarian assistance and disaster relief, and defense technology;

(4) recognizes the vitality of the United States-Singapore bilateral trade and investment relationship;

(5) supports continued close cooperation between the United States and Singapore, through both bilateral initiatives such as the United States-Singapore Third Country Training Program, and multilateral initiatives such as United States-ASEAN Connect announced at the recent United States-ASEAN Summit in Sunnylands, to build capacity for commercial engagement, energy development, innovation, trade facilitation, and to achieve development goals in the Asia-Pacific region; and

(6) urges the Administration, to continue its support of multilateral institutions and fora such as the Asia-Pacific Economic Cooperation, East Asia Summit, ASEAN Regional Forum, and the ASEAN Defense Ministers' Meeting Plus, working in close cooperation with partners, such as the Republic of Singapore, who share a commitment to an inclusive, rules-based regional architecture.

Mr. ROYCE (during the reading). Mr. Speaker, I ask unanimous consent to dispense with the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

The amendment was agreed to.

The resolution, as amended, was agreed to.

AMENDMENT TO THE PREAMBLE OFFERED BY MR. ROYCE

Mr. ROYCE. Mr. Speaker, I have an amendment to the preamble at the desk.

The SPEAKER pro tempore. The Clerk will report the amendment.

The Clerk read as follows:

Strike the preamble and insert the following:

Whereas the Republic of Singapore became independent on August 9, 1965, and the United States recognized Singapore's statehood in the same year;

Whereas Singapore and the United States established formal diplomatic relations in 1966;

Whereas under the leadership of its first Prime Minister Lee Kuan Yew, Singapore became an early and continued supporter of United States engagement in Asia to safeguard the peace, stability, and prosperity of the region;

Whereas the United States and Singapore implemented the United States-Singapore Free Trade Agreement, the first bilateral trade agreement between the United States and an Asian country, in 2004;

Whereas Singapore and the United States are major trading partners, with $64 billion in bilateral goods and services trade in 2014 and a United States trade surplus in both goods and services;

Whereas Singapore provided the United States access to its military facilities with a 1990 Memorandum of Understanding, supporting the continued security presence of the United States in Southeast Asia;

Whereas the United States and Singapore concluded a Strategic Framework Agreement in 2005 which recognized Singapore as a ''Major Security Cooperation Partner'' of the United States;

Whereas the United States and Singapore signed an enhanced Defense Cooperation Agreement in 2015, expanding dialogue and cooperation in areas such as humanitarian assistance and disaster relief, cyber defense, biosecurity, and public communications;

Whereas Singapore facilitates the rotational deployment of United States Navy Littoral Combat Ships at its Changi Naval Base;

Whereas the United States currently hosts four Republic of Singapore Air Force training detachments, comprising the Republic of

Singapore Air Force's F–15SG and F–16 fighter jets, as well as Apache and Chinook helicopters, at bases in Arizona, Idaho and Texas;

Whereas the United States-Singapore Third Country Training Program, established in 2012 and renewed in 2015, provides regional technical and capacity-building assistance in a wide variety of areas to assist recipient countries in reaching their development goals;

Whereas Singapore was a founding member of the Association of South East Asian Nations (ASEAN) in 1967 and remains a key partner of the United States in ASEAN-led mechanisms such as the East Asia Summit, ASEAN Regional Forum and the ASEAN Defense Ministers' Meeting Plus;

Whereas Singapore will be home to a United States-ASEAN Connect Center, an initiative announced at the United States-ASEAN summit in February 2016 to facilitate United States-ASEAN engagement and cooperation on energy, innovation, and entrepreneurship;

Whereas Singapore has played a critical role in enhancing shared maritime domain awareness in Southeast Asia through the establishment of the Republic of Singapore Navy's Information Fusion Center, to facilitate information-sharing and collaboration with partners including the United States against maritime security threats, and through the deployment of United States aircraft at Paya Lebar Air Base;

Whereas Singapore has been a cybersecurity leader in the ASEAN region, through the unified Cyber Security Agency, as the convener of the annual ASEAN CERT Incident Drill, and as host of the INTERPOL Global Complex for Innovation;

Whereas Singapore was the first Southeast Asian country to join the Global Coalition to Counter ISIL in November 2014 and has contributed an air refueling tanker, imagery analysis teams, and planning and liaison officers; and

Whereas Singapore has supported counterterrorism efforts, through the sharing of domestic practices, as well as participation in the White House Summit on Countering Violent Extremism in February 2015, and hosting the East Asia Summit Symposium on Religious Rehabilitation and Social Reintegration in April 2015: Now, therefore, be it

Mr. ROYCE (during the reading). Mr. Speaker, I ask unanimous consent to dispense with the reading.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

The amendment to the preamble was agreed to.

The title of the resolution was amended so as to read: ''A resolution reaffirming Singapore's strategic partnership with the United States, encompassing broad and robust economic, military-to-military, law enforcement, and counterterrorism cooperation.''.

A motion to reconsider was laid on the table.

CLARIFYING AMENDMENT TO PROVIDE TERRORISM VICTIMS EQUITY ACT

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent for the immediate consideration in the House of the bill (H.R. 3394) to amend the Terrorism Risk Insurance Act of 2002 to allow for the use of certain assets of foreign persons and entities to satisfy certain judgments against terrorist parties, and for other purposes.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

The text of the bill is as follows:

H.R. 3394

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Clarifying Amendment to Provide Terrorism Victims Equity Act'' or the ''CAPTIVE Act''.

SEC. 2. USE OF BLOCKED ASSETS TO SATISFY JUDGMENTS OF U.S. PERSONS AGAINST TERRORIST PARTIES.

Section 201(d) of the Terrorism Risk Insurance Act of 2002 (28 U.S.C. 1610 note) is amended—

(1) in paragraph (2)—

(A) in the matter preceding subparagraph (A), by striking ''means'';

(B) by amending paragraph (2)(A) to read as follows:

''(A) means any asset seized or frozen by the United States under section 5(b) of the Trading With the Enemy Act (50 U.S.C. App. 5(b)), under sections 202 and 203 of the International Emergency Economic Powers Act (50 U.S.C. 1701; 1702), or under section 805(b) of the Foreign Narcotics Kingpin Designation Act (21 U.S.C. 1904(b)); and'';

(2) by redesignating paragraph (4) as paragraph (5); and

(3) by inserting after paragraph (3) the following:

''(4) PERSON.—In subsection (a), the term 'person' means—

''(A) a natural person who, at the time the act of terrorism described in subsection (a) was committed upon which the judgment described in such subsection was obtained by that person, was either—

''(i) a national of the United States as defined in section 101(a)(22) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(22));

''(ii) a member of the Armed Forces of the United States; or

''(iii) otherwise an employee of the Government of the United States, or of an individual performing a contract awarded by the United States Government, acting within the scope of the employee's employment; or

''(B) if the person described in subparagraph (A) is deceased, the personal representative of the estate of that deceased person.''.

SEC. 3. APPLICABILITY.

The amendments made by this Act apply to any judgment described in section 201(a) of the Terrorism Risk Insurance Act of 2002 (28 U.S.C. 1610 note) that is entered before, on, or after the date of the enactment of this Act.

AMENDMENT OFFERED BY MR. GOODLATTE

Mr. GOODLATTE. Mr. Speaker, I have an amendment at the desk.

The Clerk read as follows:

Amendment offered by Mr. GOODLATTE:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Clarifying Amendment to Provide Terrorism Victims Equity Act'' or the ''CAPTIVE Act''.

SEC. 2. USE OF BLOCKED ASSETS TO SATISFY JUDGMENTS OF U.S. PERSONS AGAINST TERRORIST PARTIES.

Section 201(d) of the Terrorism Risk Insurance Act of 2002 (28 U.S.C. 1610 note) is amended—

(1) in paragraph (2)—

(A) in the matter preceding subparagraph (A), by striking ''means'';

(B) by amending paragraph (2)(A) to read as follows:

''(A) means any asset seized or frozen by the United States under section 5(b) of the Trading With the Enemy Act (50 U.S.C. App. 5(b)), under sections 202 and 203 of the International Emergency Economic Powers Act (50 U.S.C. 1701; 1702), or under section 805(b) of the Foreign Narcotics Kingpin Designation Act (21 U.S.C. 1904(b)); and'';

(2) by redesignating paragraph (4) as paragraph (5); and

(3) by inserting after paragraph (3) the following:

''(4) PERSON.—In subsection (a), the term 'person' means—

''(A) a natural person who, at the time the act of terrorism described in subsection (a) was committed upon which the judgment described in such subsection was obtained by that person, was either—

''(i) a national of the United States as defined in section 101(a)(22) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(22));

''(ii) a member of the Armed Forces of the United States; or

''(iii) otherwise an employee of the Government of the United States, or of an individual performing a contract awarded by the United States Government, acting within the scope of the employee's employment; or

''(B) if the person described in subparagraph (A) is deceased, the personal representative of the estate of that deceased person.''.

SEC. 3. APPLICABILITY.

The amendments made by this Act apply to any judgment described in section 201(a) of the Terrorism Risk Insurance Act of 2002 (28 U.S.C. 1610 note) that is entered before, on, or after the date of the enactment of this Act.

Mr. GOODLATTE (during the reading). Mr. Speaker, I ask unanimous consent that the reading be dispensed with.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

The amendment was agreed to.

The bill was ordered to be engrossed and read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

PROTECTING OUR LIVES BY INITIATING COPS EXPANSION ACT OF 2016

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that the Committee on the Judiciary be discharged from further consideration of the bill (S. 2840) to amend the Omnibus Crime Control and Safe Streets Act of 1968 to authorize COPS grantees to use grant funds for active shooter training, and for other purposes, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

The text of the bill is as follows:

S. 2840

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Protecting Our Lives by Initiating COPS Expansion Act of 2016'' or the ''POLICE Act of 2016''.

SEC. 2. ADDITIONAL AUTHORIZED USE OF COPS FUNDS.

Section 1701(b) of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3796dd(b)) is amended—

(1) in paragraph (16), by striking ''and'' at the end;

(2) by redesignating paragraph (17) as paragraph (18);

(3) by inserting after paragraph (16) the following:

''(17) to participate in nationally recognized active shooter training programs that offer scenario-based, integrated response courses designed to counter active shooter threats or acts of terrorism against individuals or facilities; and''; and

(4) in paragraph (18), as redesignated, by striking ''(16)'' and inserting ''(17)''.

The bill was ordered to be read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

DEPARTMENT OF THE INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS ACT, 2017

GENERAL LEAVE

Mr. CALVERT. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.R. 5538, and that I may include tabular material on the same.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 820 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the consideration of the bill, H.R. 5538.

The Chair appoints the gentleman from Illinois (Mr. HULTGREN) to preside over the Committee of the Whole.

□ 1637

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the consideration of the bill (H.R. 5538) making appropriations for the Department of the Interior, environment, and related agencies for the fiscal year ending September 30, 2017, and for other purposes, with Mr. HULTGREN in the chair.

The Clerk read the title of the bill.

The CHAIR. Pursuant to the rule, the bill is considered read the first time.

The gentleman from California (Mr. CALVERT) and the gentlewoman from Minnesota (Ms. MCCOLLUM) each will control 30 minutes.

The Chair recognizes the gentleman from California.

Mr. CALVERT. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, I am pleased to bring to the floor H.R. 5538, the fiscal year 2017 Interior, Environment, and Related Agencies Appropriations Act.

As we begin, I want to personally thank Chairman ROGERS for his leadership and support. I also want to thank my good friend and our ranking member, Ms. MCCOLLUM, for her partnership and work on this bill and to say a very happy birthday. Finally, I want to thank each of our subcommittee members for their assistance and hard work on the legislation before us.

The fiscal year 2017 Interior and Environment bill is funded at $32.095 billion, which is $64 million below the FY 2016 enacted level and $1 billion below the budget request.

The committee has provided robust wildland fire funding in this bill. Fire suppression accounts are again fully funded at the 10-year average level, which rose by $133 million from last year. The committee also addressed concerns about forest health and active forest management, and provided a $30 million increase for hazardous fuels.

This bill also makes critical investments in Indian Country. Overall, funding for the Bureaus of Indian Affairs and Education is increased by $72 million, or 3 percent, while funding for the Indian Health Service is increased by $271 million, or 6 percent, from fiscal year 2016 levels. This is the largest increase in this bill.

The bill provides for $2.9 billion for the National Park Service, including more than $65 million in new funding to address the maintenance backlog and other priorities related to the Park Service centennial.

The bill provides $480 million to fully fund payments in lieu of taxes, PILT, in year 2017.

We have also addressed a number of concerns within the Fish and Wildlife Service. The bill continues funding for popular cost-shared grant programs. It also provides additional funds to combat international wildlife trafficking, protects fish hatcheries from cuts and closures, continues fighting to fight invasive species, and reduces the backlog of species that are covered but not yet delisted.

The bill provides $322 million for the Land and Water Conservation Fund programs that enjoy broad, bipartisan support.

Funding for EPA is reduced by $164 million from fiscal year 2016 enacted levels. Again this year, there is a great deal of concern over the number of regulatory actions being pursued by EPA in the absence of legislation and without clear congressional direction. For this reason, the bill includes a number of provisions to stop unnecessary and damaging regulatory overreach by the Agency.

Before closing, I would like to make an additional point about the challenges facing Flint, Michigan, and other communities across the country addressing lead in drinking water. This is an issue of great concern to the committee members. It is not a partisan issue.

What occurred in Flint has called greater attention to aging infrastructure and the need for prudent management and oversight of water systems. This bill provides targeted investments and prioritizes resources that will help the EPA and Michigan respond to Flint and help other States and communities address the needs of their water systems.

The bill provides an increase of $207 million above the fiscal year 2016 enacted level for the Drinking Water State Revolving Fund. It also includes $50 million for the new Water Infrastructure Finance and Innovation, otherwise known as WIFIA, program, which may be leveraged through direct Federal loans or loan guarantees to fund up to $3 billion to $5 billion worth of water infrastructure projects nationwide.

In addition, the bill provides increases for State grants for improved State oversight and operations of drinking water systems and for communities to work on integrated plans for pipe replacement. The bill also directs the GAO to assess the number of lead service lines by State.

Lastly, the committee is taking an additional step to provide relief for communities like Flint by including bill language that allows States to use State revolving fund dollars to forgive a portion of a community's outstanding loans. This and other steps taken in this bill will have a real impact.

In closing, I want to thank the staff on both sides for their hard work on this bill. On the minority side, I would like to thank Rita Culp, Jocelyn Hunn, Joe Carlile, and Rebecca Taylor. Their work is very much appreciated.

On the majority side, I would like to thank our subcommittee staff: Kristin Richmond, Jackie Kilroy, Betsy Bina, Jason Gray, Darren Benjamin, and, of course, our chief clerk Dave LesStrang. I would also like to thank Ian Foley, Rebecca Keightley, Molly Lowe, and Tricia Evans on my personal staff, and my chief of staff, David Ramey.

Mr. Chairman, this is a good bill and it deserves Members' support.

I reserve the balance of my time.

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
TITLE I - DEPARTMENT OF THE INTERIOR					
BUREAU OF LAND MANAGEMENT					
Management of Lands and Resources					
Land Resources:					
Soil, water and air management	43,609	45,378	43,609	---	-1,769
Rangeland management	79,000	62,832	79,000	---	+16,168
Grazing administration management	---	16,500	---	---	-16,500
Grazing administration management offsetting collections	---	-16,500	---	---	+16,500
Forestry management	9,980	10,076	10,076	+96	---
Riparian management	21,321	22,920	21,321	---	-1,599
Cultural resources management	16,131	17,328	16,131	---	-1,197
Wild horse and burro management	80,555	80,108	80,555	---	+447
Subtotal	250,596	238,642	250,692	+96	+12,050
Wildlife and Fisheries:					
Wildlife management	89,381	108,691	102,131	+12,750	-6,560
Fisheries management	12,530	12,628	12,530	---	-98
Subtotal	101,911	121,319	114,661	+12,750	-6,658
Threatened and endangered species	21,567	21,698	21,567	---	-131
Recreation Management:					
Wilderness management	18,264	18,392	18,264	---	-128
Recreation resources management	51,197	53,465	51,197	---	-2,268
Subtotal	69,461	71,857	69,461	---	-2,396
Energy and Minerals:					
Oil and gas management	59,671	80,574	59,671	---	-20,903
Oil and gas permit processing	7,125	6,365	6,365	-760	---
Oil and gas inspection and enforcement	48,000	48,000	48,000	---	---
Subtotal, Oil and gas	114,796	134,939	114,036	-760	-20,903
Oil and gas permit processing fees	---	-48,000	---	---	+48,000
Subtotal, offsetting collections	---	-48,000	---	---	+48,000
Coal management	10,868	10,962	10,868	---	-94
Other mineral resources	11,879	10,978	10,978	-901	---
Renewable energy	29,061	29,189	29,061	---	-128
Subtotal, Energy and Minerals	166,604	138,068	164,943	-1,661	+26,875
Realty and Ownership Management:					
Alaska conveyance	22,000	17,327	22,000	---	+4,673
Cadastral, lands, and realty management	51,252	51,480	51,252	---	-228
Subtotal	73,252	68,807	73,252	---	+4,445
Resource Protection and Maintenance:					
Resource management planning	48,125	65,203	48,125	---	-17,078
Abandoned mine lands	19,946	20,036	19,946	---	-90
Resource protection and law enforcement	25,495	25,616	26,616	+1,121	+1,000
Hazardous materials management	15,612	15,463	15,463	-149	---
Subtotal	109,178	126,318	110,150	+972	-16,168
Transportation and Facilities Maintenance:					
Annual maintenance	38,942	39,125	39,125	+183	---
Deferred maintenance	31,387	29,201	31,387	---	+2,186
Subtotal	70,329	68,326	70,512	+183	+2,186

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Workforce and Organizational Support:					
Administrative support	50,942	51,139	51,139	+197	---
Bureauwide fixed costs	93,645	92,649	92,649	-996	---
Information technology management	25,958	26,077	26,077	+119	---
Subtotal	170,545	169,865	169,865	-680	---
Challenge cost share	2,413	---	---	-2,413	---
National landscape conservation system, base program	36,819	50,645	36,819	---	-13,826
Communication site management	2,000	2,000	2,000	---	---
Offsetting collections	-2,000	-2,000	-2,000	---	---
Subtotal, Management of lands and resources	1,072,675	1,075,545	1,081,922	+9,247	+6,377
Mining Law Administration:					
Administration	39,696	39,696	39,696	---	---
Offsetting collections	-56,000	-55,000	-55,000	+1,000	---
Subtotal, Mining Law Administration	-16,304	-15,304	-15,304	+1,000	---
Total, Management of Lands and Resources	1,056,371	1,060,241	1,066,618	+10,247	+6,377
Land Acquisition					
Land Acquisition	27,014	32,301	10,600	-16,414	-21,701
Emergencies, Hardships, and Inholdings	1,616	1,616	1,000	-616	-616
Acquisition Management	2,000	2,042	1,800	-200	-242
Recreational Access	8,000	8,000	6,000	-2,000	-2,000
Total, Land acquisition	38,630	43,959	19,400	-19,230	-24,559
Oregon and California Grant Lands					
Western Oregon resources management	95,255	94,445	94,445	-810	---
Western Oregon information and resource data systems	1,786	1,798	1,798	+12	---
Western Oregon transportation & facilities maintenance	9,602	9,628	9,628	+26	---
Western Oregon construction and acquisition	324	335	335	+11	---
Western Oregon national monument	767	779	779	+12	---
Total, Oregon and California Grant Lands	107,734	106,985	106,985	-749	---
Range Improvements					
Current appropriations	10,000	10,000	10,000	---	---
Service Charges, Deposits, and Forfeitures					
Service charges, deposits, and forfeitures	31,050	31,050	31,050	---	---
Offsetting fees	-31,050	-31,050	-31,050	---	---
Total, Service Charges, Deposits & Forfeitures	---	---	---	---	---
Miscellaneous Trust Funds and Permanent Operating Funds					
Current appropriations	24,000	24,000	24,000	---	---
TOTAL, BUREAU OF LAND MANAGEMENT	1,236,735	1,245,185	1,227,003	-9,732	-18,182
(Mandatory)	(34,000)	(34,000)	(34,000)	---	---
(Discretionary)	(1,202,735)	(1,211,185)	(1,193,003)	(-9,732)	(-18,182)

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
UNITED STATES FISH AND WILDLIFE SERVICE					
Resource Management					
Ecological Services:					
Listing	20,515	22,901	14,411	-6,104	-8,490
Planning and consultation	99,079	105,650	103,650	+4,571	-2,000
Conservation and restoration	32,396	34,562	32,646	+250	-1,916
(National Wetlands Inventory)	(3,471)	(4,671)	(3,471)	---	(-1,200)
(Coastal Barrier Resources Act)	(1,390)	(1,390)	(1,640)	(+250)	(+250)
Recovery	82,016	89,180	86,198	+4,182	-2,982
Subtotal	234,006	252,293	236,905	+2,899	-15,388
Habitat conservation:					
Partners for fish and wildlife	51,776	54,047	52,026	+250	-2,021
Coastal programs	13,375	13,494	13,625	+250	+131
Subtotal	65,151	67,541	65,651	+500	-1,890
National Wildlife Refuge System:					
Wildlife and habitat management	230,343	240,389	230,593	+250	-9,796
Visitor services	73,319	80,380	73,569	+250	-6,811
Refuge law enforcement	38,054	40,712	38,054	---	-2,658
Conservation planning	2,523	2,544	2,773	+250	+229
Refuge maintenance	137,188	142,594	139,872	+2,684	-2,722
Subtotal	481,427	506,619	484,861	+3,434	-21,758
Conservation and Enforcement:					
Migratory bird management	47,480	49,961	48,605	+1,125	-1,356
Law enforcement	74,725	75,053	75,053	+328	---
International affairs	14,696	15,816	15,196	+500	-620
Subtotal	136,901	140,830	138,854	+1,953	-1,976
Fish and Aquatic Conservation:					
National fish hatchery system operations	53,418	53,759	55,418	+2,000	+1,659
Maintenance and equipment	19,920	22,920	22,920	+3,000	---
Aquatic habitat and species conservation	74,918	76,150	74,918	---	-1,232
Subtotal	148,256	152,829	153,256	+5,000	+427
Cooperative landscape conservation	12,988	17,789	12,988	---	-4,801
Science Support:					
Adaptive science	10,517	11,522	10,517	---	-1,005
Service science	6,468	9,057	6,468	---	-2,589
Subtotal	16,985	20,579	16,985	---	-3,594
General Operations:					
Central office operations	40,722	42,149	40,569	-153	-1,580
Regional office operations	37,722	41,354	37,722	---	-3,632
Servicewide bill paying	35,177	35,778	35,177	---	-601
National Fish and Wildlife Foundation	7,022	7,022	7,022	---	---
National Conservation Training Center	22,414	25,129	25,014	+2,600	-115
Subtotal	143,057	151,432	145,504	+2,447	-5,928
Total, Resource Management	1,238,771	1,309,912	1,255,004	+16,233	-54,908
Construction					
Construction and rehabilitation:					
Line item construction projects	14,554	14,554	5,704	-8,850	-8,850
Bridge and dam safety programs	1,972	1,972	1,972	---	---
Nationwide engineering service	7,161	7,214	7,161	---	-53
Total, Construction	23,687	23,740	14,837	-8,850	-8,903

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Land Acquisition					
Acquisitions	35,911	35,884	23,800	-12,111	-12,084
Emergencies, Hardships, and Inholdings	5,351	5,351	4,500	-851	-851
Exchanges	1,500	1,500	1,000	-500	-500
Acquisition Management	12,773	12,955	10,000	-2,773	-2,955
Highlands Conservation Act Grants	10,000	---	10,000	---	+10,000
Recreational Access	2,500	2,500	1,000	-1,500	-1,500
Land Protection Planning	465	465	---	-465	-465
Total, Land Acquisition	68,500	58,655	50,300	-18,200	-8,355
Cooperative Endangered Species Conservation Fund					
Grants and administration:					
Conservation grants	10,508	12,603	12,603	+2,095	---
HCP assistance grants	9,485	7,390	9,485	---	+2,095
Administration	2,702	2,702	2,702	---	---
Subtotal	22,695	22,695	24,790	+2,095	+2,095
Land acquisition:					
Species recovery land acquisition	11,162	11,162	11,162	---	---
HCP land acquisition grants to states	19,638	19,638	19,638	---	---
Subtotal	30,800	30,800	30,800	---	---
Total, Cooperatiave Endangered Species Conservation Fund	53,495	53,495	55,590	+2,095	+2,095
National Wildlife Refuge Fund					
Payments in lieu of taxes	13,228	---	---	-13,228	---
North American Wetlands Conservation Fund					
North American Wetlands Conservation Fund	35,145	35,145	37,645	+2,500	+2,500
Neotropical Migratory Bird Conservation					
Migratory bird grants	3,910	3,910	3,910	---	---
Multinational Species Conservation Fund					
African elephant conservation fund	2,582	2,582	2,582	---	---
Rhinoceros and tiger conservation fund	3,440	3,440	3,440	---	---
Asian elephant conservation fund	1,557	1,557	1,557	---	---
Great ape conservation fund	1,975	1,975	1,975	---	---
Marine turtle conservation fund	1,507	1,507	1,507	---	---
Total, Multinational Species Conservation Fund	11,061	11,061	11,061	---	---
State and Tribal Wildlife Grants					
State wildlife grants (formula)	51,000	51,000	51,000	---	---
State wildlife grants (competitive)	5,487	9,981	7,237	+1,750	-2,744
Tribal wildlife grants	4,084	6,000	4,334	+250	-1,666
Total, State and tribal wildlife grants	60,571	66,981	62,571	+2,000	-4,410
TOTAL, U.S. FISH AND WILDLIFE SERVICE	1,508,368	1,562,899	1,490,918	-17,450	-71,981

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
NATIONAL PARK SERVICE					
Operation of the National Park System					
Park Management:					
Resource stewardship	328,216	340,352	329,078	+862	-11,274
Visitor services	253,010	276,206	258,516	+5,506	-17,690
Park protection	355,683	362,082	358,672	+2,989	-3,410
Facility operations and maintenance	740,468	842,453	792,721	+52,253	-49,732
Park support	511,616	522,537	515,457	+3,841	-7,080
Subtotal	2,188,993	2,343,630	2,254,444	+65,451	-89,186
External administrative costs	180,603	180,732	180,603	---	-129
Total, Operation of the National Park System	2,369,596	2,524,362	2,435,047	+65,451	-89,315
National Recreation and Preservation					
Recreation programs	589	853	589	---	-264
Natural programs	13,575	13,659	13,575	---	-84
Cultural programs	24,562	26,262	24,562	---	-1,700
International park affairs	1,648	1,656	1,648	---	-8
Environmental and compliance review	433	436	433	---	-3
Grant administration	2,004	2,079	2,004	---	-75
Heritage Partnership Programs	19,821	9,447	19,821	---	+10,374
Total, National Recreation and Preservation	62,632	54,392	62,632	---	+8,240
Historic Preservation Fund					
State historic preservation offices	46,925	46,925	46,925	---	---
Tribal grants	9,985	11,985	11,985	+2,000	---
Competitive grants	8,500	25,500	11,500	+3,000	-14,000
Save America's Treasures grants	---	---	5,000	+5,000	+5,000
Grants to Historically Black Colleges and Universities	---	3,000	3,000	+3,000	---
Total, Historic Preservation Fund	65,410	87,410	78,410	+13,000	-9,000
Construction					
General Program:					
Line item construction and maintenance	116,276	153,344	129,501	+13,225	-23,843
Emergency and unscheduled	3,855	3,855	3,855	---	---
Housing	2,200	2,203	2,200	---	-3
Dam safety	1,248	1,249	1,248	---	-1
Equipment replacement	13,500	17,545	17,545	+4,045	---
Planning, construction	7,266	15,518	9,516	+2,250	-6,002
Construction program management	36,771	46,431	40,021	+3,250	-6,410
General management plans	11,821	11,893	11,821	---	-72
Total, Construction	192,937	252,038	215,707	+22,770	-36,331
Land and Water Conservation Fund (rescission of contract authority)	-28,000	-30,000	-28,000	---	+2,000
Land Acquisition and State Assistance					
Assistance to States:					
State conservation grants (formula)	94,839	94,000	71,839	-23,000	-22,161
State conservation grants (competitive)	12,000	12,000	5,000	-7,000	-7,000
Administrative expenses	3,161	4,006	3,161	---	-845
Subtotal	110,000	110,006	80,000	-30,000	-30,006

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
National Park Service:					
Acquisitions	33,135	37,314	22,500	-10,635	-14,814
Recreational Access	2,000	2,000	1,000	-1,000	-1,000
American Battlefield Protection Program	10,000	10,000	10,000	---	---
Emergencies, Hardships, Relocations, and Deficiencies	3,928	3,928	2,500	-1,428	-1,428
Acquisition Management	9,679	10,000	8,752	-927	-1,248
Inholdings, Donations, and Exchanges	4,928	5,000	4,000	-928	-1,000
Subtotal	63,670	68,242	48,752	-14,918	-19,490
Total, Land Acquisition and State Assistance	173,670	178,248	128,752	-44,918	-49,496
Centennial Challenge	15,000	35,000	30,000	+15,000	-5,000
TOTAL, NATIONAL PARK SERVICE	2,851,245	3,101,450	2,922,548	+71,303	-178,902
UNITED STATES GEOLOGICAL SURVEY					
Surveys, Investigations, and Research					
Ecosystems:					
Status and trends	20,473	22,267	20,473	---	-1,794
Fisheries: Aquatic and endangered resources	20,886	24,083	21,136	+250	-2,947
Wildlife: Terrestrial and endangered resources	45,757	46,125	45,757	---	-368
Terrestrial, Freshwater and marine environments	36,224	43,352	38,415	+2,191	-4,937
Invasive species	17,330	19,877	17,580	+250	-2,297
Cooperative research units	17,371	18,234	17,371	---	-863
Total, Ecosystems	158,041	173,938	160,732	+2,691	-13,206
Climate and Land Use Change:					
Climate variability:					
Climate science centers	26,435	30,908	26,435	---	-4,473
Climate research and development	21,495	22,714	21,495	---	-1,219
Carbon sequestration	9,359	9,381	9,359	---	-22
Subtotal	57,289	63,003	57,289	---	-5,714
Land Use Change:					
Land remote sensing	72,194	96,506	78,194	+6,000	-18,312
Land change science	10,492	11,935	10,492	---	-1,443
Subtotal	82,686	108,441	88,686	+6,000	-19,755
Total, Climate and Land Use Change	139,975	171,444	145,975	+6,000	-25,469
Energy, Minerals, and Environmental Health:					
Mineral and Energy Resources:					
Minerals resources	48,371	48,695	48,371	---	-324
Energy resources	24,695	26,228	24,695	---	-1,533
Subtotal	73,066	74,923	73,066	---	-1,857
Environmental Health:					
Contaminant biology	10,197	11,465	10,197	---	-1,268
Toxic substances hydrology	11,248	13,095	11,248	---	-1,847
Subtotal	21,445	24,560	21,445	---	-3,115
Total, Energy, Minerals, and Environmental Health	94,511	99,483	94,511	---	-4,972
Natural Hazards:					
Earthquake hazards	60,503	62,196	63,303	+2,800	+1,107
Volcano hazards	26,121	26,238	26,121	---	-117

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Landslide hazards	3,538	4,054	3,538	---	-516
Global seismographic network	6,453	7,322	6,653	+200	-669
Geomagnetism	1,888	3,598	1,888	---	-1,710
Coastal and marine geology	40,336	46,293	41,360	+1,024	-4,933
Total, Natural Hazards	138,839	149,701	142,863	+4,024	-6,838
Water Resources:					
Water Availability and Use Science Program	42,226	54,388	43,802	+1,576	-10,586
Groundwater and Streamflow Information Program	71,535	72,957	72,957	+1,422	---
National Water Quality Program	92,791	94,147	92,801	+10	-1,346
Water Resources Research Act Program	6,500	6,500	6,500	---	---
Total, Water Resources	213,052	227,992	216,060	+3,008	-11,932
Core Science Systems:					
Science, synthesis, analysis, and research	24,299	24,930	24,299	---	-631
National cooperative geological mapping	24,397	24,486	24,486	+89	---
National Geospatial Program	62,854	68,979	65,048	+2,194	-3,931
Total, Core Science Systems	111,550	118,395	113,833	+2,283	-4,562
Science Support:					
Administration and Management	84,192	86,319	81,981	-2,211	-4,338
Information Services	21,419	24,273	23,630	+2,211	-643
Total, Science Support	105,611	110,592	105,611	---	-4,981
Facilities:					
Rental payments and operations & maintenance	93,141	109,978	93,141	---	-16,837
Deferred maintenance and capital improvement	7,280	7,280	7,280	---	---
Total, Facilities	100,421	117,258	100,421	---	-16,837
TOTAL, UNITED STATES GEOLOGICAL SURVEY	1,062,000	1,168,803	1,080,006	+18,006	-88,797
BUREAU OF OCEAN ENERGY MANAGEMENT					
Ocean Energy Management					
Renewable energy	24,278	23,887	23,393	-885	-494
Conventional energy	59,869	64,156	59,869	---	-4,287
Environmental assessment	68,045	68,399	68,045	---	-354
Executive direction	18,665	18,696	17,999	-666	-697
Subtotal	170,857	175,138	169,306	-1,551	-5,832
Offsetting rental receipts	-92,961	-88,487	-88,487	+4,474	---
Cost recovery fees	-3,661	-6,457	-6,457	-2,796	---
Subtotal, offsetting collections	-96,622	-94,944	-94,944	+1,678	---
TOTAL, BUREAU OF OCEAN ENERGY MANAGEMENT	74,235	80,194	74,362	+127	-5,832
BUREAU OF SAFETY AND ENVIRONMENTAL ENFORCEMENT					
Offshore Safety and Environmental Enforcement					
Environmental enforcement	8,314	8,314	8,314	---	---
Operations, safety and regulation	144,954	145,150	145,150	+196	---
Administrative operations	18,268	18,268	18,268	---	---
Executive direction	18,236	18,236	18,236	---	---
Subtotal	189,772	189,968	189,968	+196	---

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Offsetting rental receipts	-49,399	-37,922	-37,922	+11,477	---
Inspection fees	-59,000	-65,000	-53,000	+6,000	+12,000
Cost recovery fees	-7,808	-5,608	-5,608	+2,200	---
Subtotal, offsetting collections	-116,207	-108,530	-96,530	+19,677	+12,000
Rescission	---	---	-20,000	-20,000	-20,000
Total, Offshore Safety and Environmental Enforcement	73,565	81,438	73,438	-127	-8,000
Oil Spill Research					
Oil spill research	14,899	14,899	14,899	---	---
TOTAL, BUREAU OF SAFETY AND ENVIRONMENTAL ENFORCEMENT	88,464	96,337	88,337	-127	-8,000
OFFICE OF SURFACE MINING RECLAMATION AND ENFORCEMENT					
Regulation and Technology					
Environmental protection	91,832	90,138	89,450	-2,382	-688
Permit fees	40	1,900	40	---	-1,860
Offsetting collections	-40	-1,900	-40	---	+1,860
Technology development and transfer	15,205	21,485	15,205	---	-6,280
Financial management	505	713	505	---	-208
Executive direction	15,711	15,214	14,140	-1,571	-1,074
Civil penalties (indefinite)	100	100	100	---	---
Subtotal	123,353	127,650	119,400	-3,953	-8,250
Civil penalties (offsetting collections)	-100	-100	-100	---	---
Total, Regulation and Technology	123,253	127,550	119,300	-3,953	-8,250
Abandoned Mine Reclamation Fund					
Environmental restoration	9,480	9,825	9,480	---	-345
Technology development and transfer	3,544	6,367	3,544	---	-2,823
Financial management	6,396	6,440	6,396	---	-44
Executive direction	7,883	7,743	7,883	---	+140
State grants	90,000	---	90,000	---	+90,000
Total, Abandoned Mine Reclamation Fund	117,303	30,375	117,303	---	+86,928
TOTAL, OFFICE OF SURFACE MINING RECLAMATION AND ENFORCEMENT	240,556	157,925	236,603	-3,953	+78,678
BUREAU OF INDIAN AFFAIRS AND BUREAU OF INDIAN EDUCATION					
Operation of Indian Programs					
Tribal Budget System					
Tribal Government:					
Aid to tribal government	24,833	27,118	27,118	+2,285	---
Consolidated tribal government program	77,088	75,429	75,429	-1,659	---
Self governance compacts	162,321	162,346	162,346	+25	---
New tribes	464	---	---	-464	---

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Small and needy tribes	1,845	3,095	1,845	---	-1,250
Road maintenance	26,693	26,783	30,000	+3,307	+3,217
Tribal government program oversight	8,273	12,377	8,377	+104	-4,000
Subtotal	301,517	307,148	305,115	+3,598	-2,033
Human Services:					
Social services	45,179	57,343	55,500	+10,321	-1,843
Welfare assistance	74,791	74,773	74,773	-18	---
Indian child welfare act	15,641	18,946	18,509	+2,868	-437
Housing improvement program	8,021	9,708	9,708	+1,687	---
Human services tribal design	246	254	254	+8	---
Human services program oversight	3,126	3,137	3,137	+11	---
Subtotal	147,004	164,161	161,881	+14,877	-2,280
Trust - Natural Resources Management:					
Natural resources, general	5,168	7,953	4,953	-215	-3,000
Irrigation operations and maintenance	11,398	12,905	11,405	+7	-1,500
Rights protection implementation	37,638	40,161	40,161	+2,523	---
Tribal management/development program	9,263	14,266	9,266	+3	-5,000
Endangered species	2,684	3,685	2,685	+1	-1,000
Cooperative landscape conservation	9,955	13,056	9,956	+1	-3,100
Integrated resource information program	2,996	3,996	2,996	---	-1,000
Agriculture and range	30,751	30,769	30,769	+18	---
Forestry	51,914	52,155	52,155	+241	---
Water resources	10,367	15,000	10,450	+83	-4,550
Fish, wildlife and parks	13,646	15,658	14,414	+768	-1,244
Resource management program oversight	6,066	5,993	5,993	-73	---
Subtotal	191,846	215,597	195,203	+3,357	-20,394
Trust - Real Estate Services	127,486	136,192	121,192	-6,294	-15,000
Education:					
Elementary and secondary programs (forward funded)	553,458	574,075	575,075	+21,617	+1,000
(Tribal grant support costs)	(73,276)	(75,335)	(75,335)	(+2,059)	---
Post secondary programs (forward funded)	74,893	77,207	77,207	+2,314	---
Subtotal, forward funded education	628,351	651,282	652,282	+23,931	+1,000
Elementary and secondary programs	134,263	144,295	140,540	+6,277	-3,755
Post secondary programs	64,602	66,841	66,841	+2,239	---
Education management	25,151	50,012	33,223	+8,072	-16,789
Subtotal, Education	852,367	912,430	892,886	+40,519	-19,544
Public Safety and Justice:					
Law enforcement	347,976	341,281	352,551	+4,575	+11,270
Tribal courts	28,173	30,753	30,753	+2,580	---
Fire protection	1,274	1,426	1,426	+152	---
Subtotal	377,423	373,460	384,730	+7,307	+11,270
Community and economic development	40,619	42,844	42,844	+2,225	---
Executive direction and administrative services	229,662	243,954	231,784	+2,122	-12,170
(Amounts available until expended, account-wide)	(43,813)	(47,848)	(48,815)	(+5,002)	(+967)
Total, Operation of Indian Programs	2,267,924	2,395,786	2,335,635	+67,711	-60,151
Contract Support Costs					
Contract support costs	272,000	273,000	273,000	+1,000	---
Indian self-determination fund	5,000	5,000	5,000	---	---
Total, Contract Support Costs	277,000	278,000	278,000	+1,000	---

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Construction					
Education	138,245	138,257	138,257	+12	---
Public safety and justice	11,306	11,306	11,306	---	---
Resources management	34,488	36,513	36,513	+2,025	---
General administration	9,934	10,941	10,941	+1,007	---
Total, Construction	193,973	197,017	197,017	+3,044	---
Indian Land and Water Claim Settlements and Miscellaneous Payments to Indians					
Settlements and Miscellaneous Payments to Indians	49,475	55,155	49,025	-450	-6,130
Indian Guaranteed Loan Program Account					
Indian guaranteed loan program account	7,748	7,757	8,757	+1,009	+1,000
TOTAL, BUREAU OF INDIAN AFFAIRS AND INDIAN EDUCATION	2,796,120	2,933,715	2,868,434	+72,314	-65,281
DEPARTMENTAL OFFICES					
Office of the Secretary					
Leadership and administration	122,885	127,394	123,110	+225	-4,284
Management services	21,365	21,676	19,825	-1,540	-1,851
Office of Natural Resources Revenue	125,519	129,306	126,487	+968	-2,819
Payments in Lieu of Taxes (PILT)	452,000	---	480,000	+28,000	+480,000
Total, Office of the Secretary	721,769	278,376	749,422	+27,653	+471,046
Insular Affairs					
Assistance to Territories					
Territorial Assistance					
Office of Insular Affairs	9,448	9,863	9,448	---	-415
Technical assistance	15,504	21,064	15,504	---	-5,560
Maintenance assistance fund	1,081	5,000	1,081	---	-3,919
Brown tree snake	3,500	3,000	3,500	---	+500
Coral reef initiative	1,000	2,000	1,000	---	-1,000
Empowering Insular Communities	2,971	5,000	2,971	---	-2,029
Compact impact	3,000	3,000	3,000	---	---
Subtotal, Territorial Assistance	36,504	48,927	36,504	---	-12,423
American Samoa operations grants	22,752	22,752	22,752	---	---
Northern Marianas covenant grants	27,720	27,720	27,720	---	---
Total, Assistance to Territories	86,976	99,399	86,976	---	-12,423
(discretionary)	(59,256)	(71,679)	(59,256)	---	(-12,423)
(mandatory)	(27,720)	(27,720)	(27,720)	---	---
Compact of Free Association					
Compact of Free Association - Federal services	2,818	2,818	2,818	---	---
Enewetak support	500	500	500	---	---
Subtotal, Compact of Free Association	3,318	3,318	3,318	---	---
Compact payments, Palau (Title I, General Provision)	13,147	---	---	-13,147	---
Total, Compact of Free Association	16,465	3,318	3,318	-13,147	---
Total, Insular Affairs	103,441	102,717	90,294	-13,147	-12,423
(discretionary)	(75,721)	(74,997)	(62,574)	(-13,147)	(-12,423)
(mandatory)	(27,720)	(27,720)	(27,720)	---	---

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Office of the Solicitor					
Legal services	59,091	62,781	59,091	---	-3,690
General administration	4,971	4,940	4,971	---	+31
Ethics	1,738	1,727	1,738	---	+11
Total, Office of the Solicitor	65,800	69,448	65,800	---	-3,648
Office of Inspector General					
Audit and investigations	37,538	43,263	37,538	---	-5,725
Administrative services and information management	12,509	12,648	12,509	---	-139
Total, Office of Inspector General	50,047	55,911	50,047	---	-5,864
Office of Special Trustee for American Indians					
Federal Trust Programs					
Program operations, support, and improvements	136,998	138,335	136,998	---	-1,337
(Office of Historical Accounting)	(22,120)	(19,629)	(18,688)	(-3,432)	(-941)
Executive direction	2,031	2,044	2,031	---	-13
Total, Office of Special Trustee for American Indians	139,029	140,379	139,029	---	-1,350
TOTAL, DEPARTMENTAL OFFICES	1,080,086	646,831	1,094,592	+14,506	+447,761
(Discretionary)	(1,052,366)	(619,111)	(1,066,872)	(+14,506)	(+447,761)
(Mandatory)	(27,720)	(27,720)	(27,720)	---	---
DEPARTMENT-WIDE PROGRAMS					
Wildland Fire Management					
Fire Operations:					
Preparedness	323,685	332,784	332,784	+9,099	---
Fire suppression	291,673	276,291	302,701	+11,028	+26,410
Subtotal, Fire operations	615,358	609,075	635,485	+20,127	+26,410
Other Operations:					
Fuels Management	170,000	149,089	180,000	+10,000	+30,911
Resilient Landscapes	---	30,000	---	---	-30,000
Burned area rehabilitation	18,970	20,470	20,470	+1,500	---
Fire facilities	6,427	10,000	10,000	+3,573	---
Joint fire science	5,990	5,990	5,990	---	---
Subtotal, Other operations	201,387	215,549	216,460	+15,073	+911
Subtotal, Wildland fire management	816,745	824,624	851,945	+35,200	+27,321
Total, Wildland fire management	816,745	824,624	851,945	+35,200	+27,321
FLAME Wildfire Suppression Reserve Account					
FLAME wildfire suppression reserve account	177,000	---	92,000	-85,000	+92,000
Total, all wildland fire accounts	993,745	824,624	943,945	-49,800	+119,321
Suppression Cap Adjustment	---	290,000	---	---	-290,000
Total, Wildland Fire Management with cap adjustment	993,745	1,114,624	943,945	-49,800	-170,679

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Central Hazardous Materials Fund					
Central hazardous materials fund	10,010	13,513	10,010	---	-3,503
Natural Resource Damage Assessment Fund					
Damage assessments	2,500	2,071	2,000	-500	-71
Program management	2,192	2,438	2,192	---	-246
Restoration support	2,075	3,619	2,575	+500	-1,044
Oil Spill Preparedness	1,000	1,101	1,000	---	-101
Total, Natural Resource Damage Assessment Fund	7,767	9,229	7,767	---	-1,462
Working Capital Fund	67,100	111,524	67,100	---	-44,424
TOTAL, DEPARTMENT-WIDE PROGRAMS	1,078,622	1,248,890	1,028,822	-49,800	-220,068
Appropriations	(1,078,622)	(958,890)	(1,028,822)	(-49,800)	(+69,932)
Disaster Relief cap adjustment	---	(290,000)	---	---	(-290,000)
TOTAL, TITLE I, DEPARTMENT OF THE INTERIOR	12,016,431	12,242,229	12,111,625	+95,194	-130,604
Appropriations	(12,044,431)	(12,272,229)	(12,159,625)	(+115,194)	(-112,604)
Rescissions	---	---	(-20,000)	(-20,000)	(-20,000)
Rescissions of contract authority	(-28,000)	(-30,000)	(-28,000)	---	(+2,000)
(Mandatory)	(61,720)	(61,720)	(61,720)	---	---
(Discretionary without cap adjustment)	(11,954,711)	(11,890,509)	(12,049,905)	(+95,194)	(+159,396)
(Disaster Relief cap adjustment)	---	(290,000)	---	---	(-290,000)
TITLE II - ENVIRONMENTAL PROTECTION AGENCY					
Science and Technology					
Clean Air and Climate	116,541	128,154	110,880	-5,661	-17,274
(Climate protection program)	(8,018)	(8,127)	(8,018)	---	(-109)
Enforcement	13,669	14,608	13,125	-544	-1,483
Homeland security	37,122	37,205	37,122	---	-83
Indoor air and Radiation	5,997	7,510	5,997	---	-1,513
IT / Data management / Security	3,089	3,092	3,089	---	-3
Operations and administration	68,339	78,447	68,339	---	-10,108
Pesticide licensing	6,027	5,289	5,289	-738	---
Research: Air, climate and energy	91,906	101,151	88,282	-3,624	-12,869
Research: Chemical safety and sustainability	126,930	134,221	132,265	+5,335	-1,956
(Research: Computational toxicology)	(21,409)	(25,744)	(25,744)	(+4,335)	---
(Research: Endocrine disruptor)	(16,253)	(15,381)	(16,253)	---	(+872)
Research: National priorities	14,100	---	10,000	-4,100	+10,000
Research: Safe and sustainable water resources	107,434	106,257	107,434	---	+1,177
Research: Sustainable and healthy communities	139,975	134,327	134,327	-5,648	---
Water: Human health protection	3,519	3,923	3,923	+404	---
Total, Science and Technology	734,648	754,184	720,072	-14,576	-34,112
(by transfer from Superfund)	(18,850)	(15,496)	(15,496)	(-3,354)	---
Environmental Programs and Management					
Brownfields	25,593	25,906	25,593	---	-313
Clean air and climate	273,108	340,974	248,108	-25,000	-92,866
(Climate protection program)	(95,436)	(107,761)	(80,436)	(-15,000)	(-27,325)
Compliance	101,665	111,270	100,048	-1,617	-11,222
Enforcement	240,637	268,118	226,741	-13,896	-41,377
(Environmental justice)	(6,737)	(15,291)	(6,737)	---	(-8,554)

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Environmental protection: National priorities	12,700	---	15,000	+2,300	+15,000
Geographic programs:					
Great Lakes Restoration Initiative	300,000	250,000	300,000	---	+50,000
Chesapeake Bay	73,000	70,000	60,000	-13,000	-10,000
San Franciso Bay	4,819	4,040	4,040	-779	---
Puget Sound	28,000	30,034	28,000	---	-2,034
Long Island Sound	3,940	2,893	10,000	+6,060	+7,107
Gulf of Mexico	4,482	3,983	3,983	-499	---
South Florida	1,704	1,339	1,339	-365	---
Lake Champlain	4,399	1,399	1,399	-3,000	---
Lake Pontchartrain	948	948	948	---	---
Southern New England Estuaries	5,000	5,000	---	-5,000	-5,000
Other geographic activities	1,445	965	---	-1,445	-965
Subtotal	427,737	370,601	409,709	-18,028	+39,108
Homeland security	10,195	11,518	10,195	---	-1,323
Indoor air and radiation	27,637	29,908	29,148	+1,511	-760
Information exchange / Outreach	126,538	152,445	115,440	-11,098	-37,005
(Children and other sensitive populations: Agency coordination)	(6,548)	(7,842)	(6,548)	---	(-1,294)
(Environmental education)	(8,702)	(11,157)	---	(-8,702)	(-11,157)
International programs	15,400	18,099	13,100	-2,300	-4,999
IT / Data management / Security	90,536	126,974	90,536	---	-36,438
Legal/science/regulatory/economic review	111,414	145,683	89,234	-22,180	-56,449
Operations and administration	482,751	520,316	482,751	---	-37,565
Pesticide licensing	102,363	110,896	102,363	---	-8,533
Resource Conservation and Recovery Act (RCRA)	104,877	110,708	104,877	---	-5,831
Toxics risk review and prevention	92,521	99,043	92,521	---	-6,522
(Endocrine disruptors)	(7,553)	(4,329)	(7,553)	---	(+3,224)
Underground storage tanks (LUST / UST)	11,295	11,612	11,295	---	-317
Water: Ecosystems:					
National estuary program / Coastal waterways	26,723	27,191	26,723	---	-468
Wetlands	21,065	23,668	21,065	---	-2,603
Subtotal	47,788	50,859	47,788	---	-3,071
Water: Human health protection	98,507	109,437	100,507	+2,000	-8,930
Water quality protection	210,417	238,526	212,516	+2,099	-26,010
Total, Environmental Programs and Management	2,613,679	2,852,893	2,527,470	-86,209	-325,423
Hazardous Waste Electronic Manifest System Fund					
E-Manifest System Fund	3,674	7,433	3,178	-496	-4,255
Office of Inspector General					
Audits, evaluations, and investigations	41,489	51,527	41,489	---	-10,038
(by transfer from Superfund)	(9,939)	(8,778)	(8,778)	(-1,161)	---
Buildings and Facilities					
Homeland security: Protection of EPA personnel and infrastructure	6,676	7,875	6,676	---	-1,199
Operations and administration	35,641	44,203	27,791	-7,850	-16,412
Total, Buildings and Facilities	42,317	52,078	34,467	-7,850	-17,611
Hazardous Substance Superfund					
Audits, evaluations, and investigations	9,939	8,778	8,778	-1,161	---
Compliance	995	1,099	995	---	-104
Enforcement	166,375	175,657	160,375	-6,000	-15,282
Homeland security	36,362	32,616	32,616	-3,746	---
Indoor air and radiation	1,985	2,182	1,985	---	-197

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(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Information exchange / Outreach	1,328	1,366	1,328	---	-38
IT /data management/security	14,485	20,141	14,485	---	-5,656
Legal/science/regulatory/economic review	1,253	1,278	1,253	---	-25
Operations and administration	128,105	130,608	128,105	---	-2,503
Research: Chemical safety and sustainability	2,843	2,824	2,824	-19	---
Research: Sustainable communities	14,032	11,463	11,463	-2,569	---
Superfund cleanup:					
Superfund: Emergency response and removal	181,306	185,233	185,233	+3,927	---
Superfund: Emergency preparedness	7,636	7,931	7,931	+295	---
Superfund: Federal facilities	21,125	26,770	21,125	---	-5,645
Superfund: Remedial	501,000	521,043	537,433	+36,433	+16,390
Subtotal	711,067	740,977	751,722	+40,655	+10,745
Total, Hazardous Substance Superfund	1,088,769	1,128,989	1,115,929	+27,160	-13,060
(transfer out to Inspector General)	(-9,939)	(-8,778)	(-8,778)	(+1,161)	---
(transfer out to Science and Technology)	(-18,850)	(-15,496)	(-15,496)	(+3,354)	---
Leaking Underground Storage Tank Trust Fund (LUST)					
Enforcement	620	668	620	---	-48
Operations and administration	1,352	1,669	1,352	---	-317
Research: Sustainable communities	320	365	320	---	-45
Underground storage tanks (LUST / UST)	89,649	91,583	92,313	+2,664	+730
(LUST/UST)	(9,240)	(9,322)	(9,322)	(+82)	---
(LUST cooperative agreements)	(55,040)	(54,402)	(56,402)	(+1,362)	(+2,000)
(Energy Policy Act grants)	(25,369)	(27,859)	(26,589)	(+1,220)	(-1,270)
Total, Leaking Underground Storage Tank Trust Fund	91,941	94,285	94,605	+2,664	+320
Inland Oil Spill Program					
Compliance	139	160	139	---	-21
Enforcement	2,413	2,492	2,413	---	-79
Oil	14,409	20,461	14,409	---	-6,052
Operations and administration	584	1,763	584	---	-1,179
Research: Sustainable communities	664	534	534	-130	---
Total, Inland Oil Spill Program	18,209	25,410	18,079	-130	-7,331
State and Tribal Assistance Grants (STAG)					
Alaska Native villages	20,000	17,000	17,000	-3,000	---
Brownfields projects	80,000	90,000	80,000	---	-10,000
Clean water state revolving fund (SRF)	1,393,887	979,500	1,000,000	-393,887	+20,500
Diesel emissions grants	50,000	10,000	100,000	+50,000	+90,000
Drinking water state revolving fund (SRF)	863,233	1,020,500	1,070,500	+207,267	+50,000
Mexico border	10,000	5,000	5,000	-5,000	---
Targeted airshed grants	20,000	---	40,000	+20,000	+40,000
Subtotal, Infrastructure assistance grants	2,437,120	2,122,000	2,312,500	-124,620	+190,500
Categorical grants:					
Beaches protection	9,549	---	---	-9,549	---
Brownfields	47,745	49,500	47,745	---	-1,755
Environmental information	9,646	25,346	9,646	---	-15,700
Hazardous waste financial assistance	99,693	99,693	99,693	---	---
Lead	14,049	14,049	14,049	---	---
Nonpoint source (Sec. 319)	164,915	164,915	164,915	---	---
Pesticides enforcement	18,050	18,050	18,050	---	---
Pesticides program implementation	12,701	13,201	12,701	---	-500
Pollution control (Sec. 106)	230,806	246,164	230,806	---	-15,358
(Water quality monitoring)	(17,848)	(17,848)	(17,848)	---	---
Pollution prevention	4,765	4,765	4,765	---	---
Public water system supervision	101,963	109,700	109,700	+7,737	---
Radon	8,051	---	8,051	---	+8,051
State and local air quality management	228,219	268,229	228,219	---	-40,010
Toxics substances compliance	4,919	4,919	4,919	---	---

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Tribal air quality management	12,829	12,829	12,829	---	---
Tribal general assistance program	65,476	96,375	65,476	---	-30,899
Underground injection control (UIC)	10,506	10,506	10,506	---	---
Underground storage tanks	1,498	2,498	1,498	---	-1,000
Wetlands program development	14,661	17,661	14,661	---	-3,000
Multipurpose grants	21,000	---	---	-21,000	---
Subtotal, Categorical grants	1,081,041	1,158,400	1,058,229	-22,812	-100,171
Total, State and Tribal Assistance Grants	3,518,161	3,280,400	3,370,729	-147,432	+90,329
Water Infrastructure Finance and Innovation Program					
Administrative Expenses	---	5,000	5,000	+5,000	---
Direct Loan Subsidy	---	15,000	45,000	+45,000	+30,000
Total, Water Infrastructure Finance and Innovation Program	---	20,000	50,000	+50,000	+30,000
Administrative Provisions					
Cybersecurity	27,000	---	---	-27,000	---
Rescission	-40,000	---	---	+40,000	---
TOTAL, TITLE II, ENVIRONMENTAL PROTECTION AGENCY	8,139,887	8,267,199	7,976,018	-163,869	-291,181
Appropriations	(8,179,887)	(8,267,199)	(7,976,018)	(-203,869)	(-291,181)
Rescissions	(-40,000)	---	---	(+40,000)	---
(By transfer)	(28,789)	(24,274)	(24,274)	(-4,515)	---
(Transfer out)	(-28,789)	(-24,274)	(-24,274)	(+4,515)	---
TITLE III - RELATED AGENCIES					
DEPARTMENT OF AGRICULTURE					
FOREST SERVICE					
Forest and Rangeland Research					
Forest inventory and analysis	75,000	77,000	77,000	+2,000	---
Research and development programs	216,000	214,982	214,982	-1,018	---
Total, Forest and rangeland research	291,000	291,982	291,982	+982	---
State and Private Forestry					
Landscape scale restoration	14,000	23,513	14,000	---	-9,513
Forest Health Management:					
Federal lands forest health management	58,922	51,382	68,922	+10,000	+17,540
Cooperative lands forest health management	40,678	40,678	45,678	+5,000	+5,000
Subtotal	99,600	92,060	114,600	+15,000	+22,540
Cooperative Forestry:					
Forest stewardship	23,036	22,398	22,398	-638	---
Forest legacy	62,347	62,347	55,000	-7,347	-7,347
Community forest and open space conservation	2,000	2,000	2,000	---	---
Urban and community forestry	28,040	23,686	28,040	---	+4,354
Subtotal, Cooperative Forestry	115,423	110,431	107,438	-7,985	-2,993
International forestry	8,000	8,000	8,000	---	---
Total, State and Private Forestry	237,023	234,004	244,038	+7,015	+10,034

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
National Forest System					
Land management planning	36,998	---	36,998	---	+36,998
Inventory and monitoring	147,998	---	147,998	---	+147,998
Land management planning, assessment and monitoring	---	183,928	---	---	-183,928
Recreation, heritage and wilderness	261,719	263,942	263,942	+2,223	---
Grazing management	56,856	50,000	56,856	---	+6,856
Grazing administration management	---	15,000	---	---	-15,000
Grazing administration management offsetting collections	---	-15,000	---	---	+15,000
Forest products	359,805	359,805	384,805	+25,000	+25,000
Vegetation and watershed management	184,716	184,716	184,716	---	---
Wildlife and fish habitat management	140,466	140,466	140,466	---	---
Collaborative Forest Landscape Restoration Fund	40,000	40,000	40,000	---	---
Minerals and geology management	76,423	75,069	75,069	-1,354	---
Landownership management	77,730	71,440	71,440	-6,290	---
Law enforcement operations	126,653	131,630	129,153	+2,500	-2,477
Total, National Forest System	1,509,364	1,500,996	1,531,443	+22,079	+30,447
Capital Improvement and Maintenance					
Facilities:					
Maintenance	55,369	55,369	55,369	---	---
Construction	16,021	16,231	16,021	---	-210
Subtotal	71,390	71,600	71,390	---	-210
Roads:					
Maintenance	145,454	126,840	145,454	---	+18,614
Construction	26,640	23,160	26,640	---	+3,480
Subtotal	172,094	150,000	172,094	---	+22,094
Trails:					
Maintenance	69,777	70,597	69,777	---	-820
Construction	7,753	7,933	7,753	---	-180
Subtotal	77,530	78,530	77,530	---	-1,000
Deferred maintenance	3,150	3,150	3,150	---	---
Legacy road and trail remediation	40,000	40,000	40,000	---	---
Subtotal, Capital improvement and maintenance	364,164	343,280	364,164	---	+20,884
Deferral of road and trail fund payment	-16,000	-17,000	-16,000	---	+1,000
Total, Capital improvement and maintenance	348,164	326,280	348,164	---	+21,884
Land Acquisition					
Acquisitions	44,685	49,703	13,330	-31,355	-36,373
Acquisition Management	8,500	8,500	7,000	-1,500	-1,500
Cash Equalization	250	750	250	---	-500
Recreational Access	8,000	4,700	4,700	-3,300	---
Critical Inholdings/Wilderness	2,000	2,000	2,000	---	---
Total, Land Acquisition	63,435	65,653	27,280	-36,155	-38,373
Acquisition of land for national forests, special acts	950	950	950	---	---
Acquisition of lands to complete land exchanges	216	216	216	---	---
Range betterment fund	2,320	2,320	2,320	---	---
Gifts, donations and bequests for forest and rangeland research	45	45	45	---	---
Management of national forest lands for subsistence uses	2,500	2,441	2,500	---	+59

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Wildland Fire Management					
Fire operations:					
Wildland fire preparedness	1,082,620	1,082,620	1,147,620	+65,000	+65,000
Wildland fire suppression operations	811,000	873,904	933,434	+122,434	+59,530
Subtotal, Fire operations	1,893,620	1,956,524	2,081,054	+187,434	+124,530
Other operations:					
Hazardous fuels	375,000	384,126	395,000	+20,000	+10,874
(Hazardous Fuels Base Program)	(360,000)	(396,126)	(390,000)	(+30,000)	(-6,126)
(Biomass Grants)	(15,000)	(15,000)	(5,000)	(-10,000)	(-10,000)
Fire plan research and development	19,795	19,795	19,795	---	---
Joint fire sciences program	6,914	---	6,914	---	+6,914
State fire assistance	78,000	78,000	78,000	---	---
Volunteer fire assistance	13,000	13,000	13,000	---	---
Subtotal, Other operations	492,709	494,921	512,709	+20,000	+17,788
Subtotal, Wildland Fire Management	2,386,329	2,451,445	2,593,763	+207,434	+142,318
Appropriations	(2,386,329)	(2,451,445)	(2,593,763)	(+207,434)	(+142,318)
FLAME Wildfire Suppression Reserve Account					
FLAME wildfire suppression reserve account	823,000	---	315,000	-508,000	+315,000
Total, all wildland fire accounts	3,209,329	2,451,445	2,908,763	-300,566	+457,318
Suppression cap adjustment	---	864,096	---	---	-864,096
Total, Wildland Fire Management with cap adjustment	3,209,329	3,315,541	2,908,763	-300,566	-406,778
Total, Forest Service without Wildland Fire Management	2,455,017	2,424,887	2,448,938	-6,079	+24,051
TOTAL, FOREST SERVICE	5,664,346	5,740,428	5,357,701	-306,645	-382,727
Appropriations	(5,664,346)	(4,876,332)	(5,357,701)	(-306,645)	(+481,369)
Disaster Relief cap adjustment	---	(864,096)	---	---	(-864,096)
DEPARTMENT OF HEALTH AND HUMAN SERVICES					
INDIAN HEALTH SERVICE					
Indian Health Services					
Clinical Services:					
Hospital and health clinics	1,857,225	1,979,998	1,928,879	+71,654	-51,119
Dental health	178,286	186,829	186,029	+7,743	-800
Mental health	82,100	111,143	86,143	+4,043	-25,000
Alcohol and substance abuse	205,305	233,286	216,486	+11,181	-16,800
Purchased/referred care	914,139	962,331	960,831	+46,692	-1,500
Subtotal	3,237,055	3,473,587	3,378,368	+141,313	-95,219
Preventive Health:					
Public health nursing	76,623	82,040	82,040	+5,417	---
Health education	18,255	19,545	19,545	+1,290	---
Community health representatives	58,906	62,428	62,428	+3,522	---
Immunization (Alaska)	1,950	2,062	2,062	+112	---
Subtotal	155,734	166,075	166,075	+10,341	---

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Other services:					
Urban Indian health	44,741	48,157	48,157	+3,416	---
Indian health professions	48,342	49,345	49,345	+1,003	---
Tribal management grant program	2,442	2,488	2,488	+46	---
Direct operations	72,338	69,620	70,420	-1,918	+800
Self-governance	5,735	5,837	5,837	+102	---
Subtotal	173,598	175,447	176,247	+2,649	+800
Total, Indian Health Services	3,566,387	3,815,109	3,720,690	+154,303	-94,419
Contract Support Costs					
Contract support	717,970	800,000	800,000	+82,030	---
Indian Health Facilities					
Maintenance and improvement	73,614	76,981	76,464	+2,850	-517
Sanitation facilities construction	99,423	103,036	103,036	+3,613	---
Health care facilities construction	105,048	132,377	120,934	+15,886	-11,443
Facilities and environmental health support	222,610	233,858	233,858	+11,248	---
Equipment	22,537	23,654	23,654	+1,117	---
Total, Indian Health Facilities	523,232	569,906	557,946	+34,714	-11,960
TOTAL, INDIAN HEALTH SERVICE	4,807,589	5,185,015	5,078,636	+271,047	-106,379
NATIONAL INSTITUTES OF HEALTH					
National Institute of Environmental Health Sciences	77,349	77,349	77,349	---	---
AGENCY FOR TOXIC SUBSTANCES AND DISEASE REGISTRY					
Toxic substances and environmental public health	74,691	74,691	74,691	---	---
TOTAL, DEPARTMENT OF HEALTH AND HUMAN SERVICES	4,959,629	5,337,055	5,230,676	+271,047	-106,379
OTHER RELATED AGENCIES					
EXECUTIVE OFFICE OF THE PRESIDENT					
Council on Environmental Quality and Office of Environmental Quality	3,000	3,015	3,000	---	-15
CHEMICAL SAFETY AND HAZARD INVESTIGATION BOARD					
Salaries and expenses	11,000	12,436	11,000	---	-1,436
OFFICE OF NAVAJO AND HOPI INDIAN RELOCATION					
Salaries and expenses	15,000	15,431	15,431	+431	---
INSTITUTE OF AMERICAN INDIAN AND ALASKA NATIVE CULTURE AND ARTS DEVELOPMENT					
Payment to the Institute	11,619	11,835	11,619	---	-216
SMITHSONIAN INSTITUTION					
Salaries and Expenses					
Museum and Research Institutes:					
National Air and Space Museum	18,937	19,853	19,187	+250	-666
Smithsonian Astrophysical Observatory	24,141	24,393	24,141	---	-252
Major scientific instrumentation	4,118	6,118	4,118	---	-2,000

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Universe Center	184	184	184	---	---
National Museum of Natural History	48,503	49,205	48,503	---	-702
National Zoological Park	26,382	27,252	26,882	+500	-370
Smithsonian Environmental Research Center	3,956	4,171	3,956	---	-215
Smithsonian Tropical Research Institute	14,166	14,344	14,166	---	-178
Biodiversity Center	1,523	4,230	1,523	---	-2,707
Arthur M. Sackler Gallery/Freer Gallery of Art	6,111	6,197	6,111	---	-86
Center for Folklife and Cultural Heritage	2,581	3,122	2,581	---	-541
Cooper-Hewitt, National Design Museum	4,810	5,105	4,946	+136	-159
Hirshhorn Museum and Sculpture Garden	4,414	4,913	4,564	+150	-349
National Museum of African Art	4,263	4,576	4,343	+80	-233
World Cultures Center	284	792	792	+508	---
Anacostia Community Museum	2,116	2,329	2,116	---	-213
Archives of American Art	1,880	2,005	1,880	---	-125
National Museum of African American History and Culture	41,347	41,564	41,564	+217	---
National Museum of American History	23,122	26,142	24,528	+1,406	-1,614
National Museum of the American Indian	31,726	32,341	31,950	+224	-391
National Portrait Gallery	6,064	6,460	6,185	+121	-275
Smithsonian American Art Museum	9,587	10,115	9,782	+195	-333
American Experience Center	595	596	595	---	-1
Subtotal, Museums and Research Institutes	280,810	296,007	284,597	+3,787	-11,410
Mission enabling:					
Program support and outreach:					
Outreach	9,229	9,214	9,229	---	+15
Communications	2,594	2,632	2,594	---	-38
Institution-wide programs	14,784	14,984	14,784	---	-200
Office of Exhibits Central	3,009	3,057	3,009	---	-48
Museum Support Center	1,866	1,890	1,866	---	-24
Museum Conservation Institute	3,277	3,320	3,277	---	-43
Smithsonian Institution Archives	2,203	2,316	2,203	---	-113
Smithsonian Institution Libraries	10,654	11,275	10,654	---	-621
Subtotal, Program support and outreach	47,616	48,688	47,616	---	-1,072
Office of Chief Information Officer	50,400	54,641	50,400	---	-4,241
Administration	34,554	37,526	35,069	+515	-2,457
Inspector General	3,451	3,499	3,451	---	-48
Facilities services:					
Facilities maintenance	73,985	89,227	75,585	+1,600	-13,642
Facilities operations, security and support	205,229	229,636	215,769	+10,540	-13,867
Subtotal, Facilities services	279,214	318,863	291,354	+12,140	-27,509
Subtotal, Mission enabling	415,235	463,217	427,890	+12,655	-35,327
Total, Salaries and expenses	696,045	759,224	712,487	+16,442	-46,737
Facilities Capital					
Revitalization	92,788	83,650	80,560	-12,228	-3,090
Facilities planning and design	51,410	29,350	20,300	-31,110	-9,050
Construction	---	50,000	50,000	+50,000	---
Total, Facilities Capital	144,198	163,000	150,860	+6,662	-12,140
TOTAL, SMITHSONIAN INSTITUTION	840,243	922,224	863,347	+23,104	-58,877

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
NATIONAL GALLERY OF ART					
Salaries and Expenses					
Care and utilization of art collections	41,581	45,418	44,653	+3,072	-765
Operation and maintenance of buildings and grounds	33,858	35,011	35,011	+1,153	---
Protection of buildings, grounds and contents	22,643	24,231	24,231	+1,588	---
General administration	26,906	31,141	26,906	---	-4,235
Total, Salaries and Expenses	124,988	135,801	130,801	+5,813	-5,000
Repair, Restoration and Renovation of Buildings					
Base program	22,564	22,600	22,564	---	-36
TOTAL, NATIONAL GALLERY OF ART	147,552	158,401	153,365	+5,813	-5,036
JOHN F. KENNEDY CENTER FOR THE PERFORMING ARTS					
Operations and maintenance	21,660	22,260	22,260	+600	---
Capital repair and restoration	14,740	13,000	14,140	-600	+1,140
TOTAL, JOHN F. KENNEDY CENTER FOR THE PERFORMING ARTS	36,400	35,260	36,400	---	+1,140
WOODROW WILSON INTERNATIONAL CENTER FOR SCHOLARS					
Salaries and expenses	10,500	10,400	10,500	---	+100
NATIONAL FOUNDATION ON THE ARTS AND THE HUMANITIES					
National Endowment for the Arts					
Grants and Administration					
Grants:					
Direct grants	63,420	63,906	63,906	+486	---
Challenge America grants	7,600	7,600	7,600	---	---
Subtotal	71,020	71,506	71,506	+486	---
State partnerships:					
State and regional	37,262	37,517	37,517	+255	---
Underserved set-aside	10,084	10,154	10,154	+70	---
Subtotal	47,346	47,671	47,671	+325	---
Subtotal, Grants	118,366	119,177	119,177	+811	---
Program support	1,780	1,950	1,950	+170	---
Administration	27,803	28,722	28,722	+919	---
Total, Arts	147,949	149,849	149,849	+1,900	---
National Endowment for the Humanities					
Grants and Administration					
Grants:					
Special Initiative: The Common Good	5,500	10,190	7,230	+1,730	-2,960
Federal/State partnership	43,040	43,040	46,000	+2,960	+2,960
Preservation and access	15,200	14,385	14,385	-815	---
Public programs	13,454	12,730	12,730	-724	---
Research programs	14,536	13,755	13,755	-781	---
Education programs	13,040	12,000	12,000	-1,040	---
Program development	500	500	500	---	---

DEPARTMENT OF INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS BILL, 2017 (H.R. 5538)
(Amounts in thousands)

	FY 2016 Enacted	FY 2017 Request	Bill	Bill vs. Enacted	Bill vs. Request
Digital humanities initiatives	4,480	4,600	4,600	+120	---
Subtotal, Grants	109,750	111,200	111,200	+1,450	---
Matching Grants:					
Treasury funds	2,400	2,200	2,200	-200	---
Challenge grants	8,500	8,500	8,500	---	---
Subtotal, Matching grants	10,900	10,700	10,700	-200	---
Administration	27,292	27,948	27,948	+656	---
Total, Humanities	147,942	149,848	149,848	+1,906	---
TOTAL, NATIONAL FOUNDATION ON THE ARTS AND THE HUMANITIES	295,891	299,697	299,697	+3,806	---
COMMISSION OF FINE ARTS					
Salaries and expenses	2,653	2,762	2,762	+109	---
NATIONAL CAPITAL ARTS AND CULTURAL AFFAIRS					
Grants	2,000	1,400	2,000	---	+600
ADVISORY COUNCIL ON HISTORIC PRESERVATION					
Salaries and expenses	6,080	6,493	6,480	+400	-13
NATIONAL CAPITAL PLANNING COMMISSION					
Salaries and expenses	8,348	8,099	8,099	-249	---
UNITED STATES HOLOCAUST MEMORIAL MUSEUM					
Holocaust Memorial Museum	54,000	57,000	57,000	+3,000	---
DWIGHT D. EISENHOWER MEMORIAL COMMISSION					
Salaries and expenses	1,000	1,800	---	-1,000	-1,800
Construction	---	43,000	---	---	-43,000
Total, DWIGHT D. EISENHOWER MEMORIAL COMMISSION	1,000	44,800	---	-1,000	-44,800
TOTAL, TITLE III, RELATED AGENCIES	12,069,261	12,666,736	12,069,077	-184	-597,659
Appropriations	(12,069,261)	(11,802,640)	(12,069,077)	(-184)	(+266,437)
(Disaster Relief cap adjustment)	---	(864,096)	---	---	(-864,096)
GRAND TOTAL	32,225,579	33,176,164	32,156,720	-68,859	-1,019,444
Appropriations	(32,293,579)	(32,052,068)	(32,204,720)	(-88,859)	(+152,652)
Rescissions	(-40,000)	---	(-20,000)	(+20,000)	(-20,000)
Rescissions of contract authority	(-28,000)	(-30,000)	(-28,000)	---	(+2,000)
Disaster Relief cap adjustment	---	(1,154,096)	---	---	(-1,154,096)
(By transfer)	(28,789)	(24,274)	(24,274)	(-4,515)	---
(Transfer out)	(-28,789)	(-24,274)	(-24,274)	(+4,515)	---
(Discretionary total - less disaster relief category adjustment)	(32,158,859)	(31,960,348)	(32,095,000)	(-63,859)	(+134,652)

Ms. MCCOLLUM. Mr. Chairman, I yield myself such time as I may consume.

I would like to thank Chairman CALVERT for the warm birthday wishes. But I would also like to thank the chairman and his staff for their open and collaborative approach, and the wonderful staff on the Democratic side who will be helping me this evening.

This subcommittee has had a challenging portfolio of issues, and I commend the chairman's effort to find solutions in another yet difficult budget year.

This year's subcommittee held 14 budget hearings, 4 which involved Native American Indians and Alaska Natives.

□ 1645

The testimony provided by the 209 witnesses clearly articulated the serious need for programs and services under this subcommittee's jurisdiction. Unfortunately, the FY 2017 subcommittee allocation is $64 million less than last year's enacted level. This means the needs of many important programs that are vital to protecting our Nation's natural and cultural resources will not be met as they far outpace a stagnant allocation. Within this constrained top line number, difficult choices had to be made, and, sadly, the majority cut important programs that protect the American public and conserve our natural resources.

The most significant programmatic cut is to the Environmental Protection Agency, which is slashed by $164 million. This cut will impact the Agency's ability to protect human health and the health of our environment and to ensure clean air and clean water for our families and future generations.

This year, the critical need for the EPA was unmistakable as our Nation watched a tragedy unfold in Flint, Michigan, by which children were poisoned by lead in their drinking water. So I find it difficult to reconcile the cuts recommended in this bill with the public health challenges that are faced by this country. Flint is a culmination of years of weakening the EPA through budget cuts and an overreliance on State agencies to manage Federal environmental laws. All of our communities deserve and expect their government to provide clean water and basic public health protections.

Especially in light of Flint, I must strongly object to the majority's decision to reduce funding for clean water by $394 million, which is 28 percent below the 2016 enacted level. Clean water and safe drinking water go hand in hand. You cannot have one without the other.

The residents of Flint were betrayed by their State government, and, to this day, they still do not have safe drinking water available from their taps. The levels provided in this bill for the State Revolving Funds are inadequate to deal with the decaying infrastructure in our Nation, no less the emergency in Flint, Michigan.

In addition to the irresponsible cuts to the EPA, I am also troubled by the 30 percent reduction for the Endangered Species Listing. Reducing funding for this program opens the door for litigation, and it delays protecting and recovering vulnerable species.

The bill also shortchanges the Land and Water Conservation Fund, which, since its inception, has protected conservation and recreation land in every State and has supported tens of thousands of State and local projects. Yet, despite its merits, this bill slashes the Land and Water Conservation Fund program by a third.

Despite this bill's shortcomings in the environmental protection and resource conservation areas, I do, however, want to express how very proud I am of this subcommittee's nonpartisan approach in addressing the issues that are facing our Native American brothers and sisters. I am pleased that this bill recommends an increase of $343 million for programs that are critical to Indian Country.

However, I would be remiss if I did not point out, even with this increase, the funding for Native American programs is still $172 million less than the administration's request. Native American and Alaska Native populations face substantial hardships, and when compared to the total population, they have poorer health, lower earnings, and higher rates of poverty.

So we must continue to work together in our efforts to support these communities. That is why I applaud this bill for maintaining our commitment to provide Native American students with safe schools that are conducive to learning and for fully funding contract support costs so that tribes are not penalized for exercising their self-determination rights.

Another bright spot in this bill is the continued support for the National Parks Centennial Initiative. The bill recommends $80 million for the Centennial, which will strengthen the foundation for visitor services and make essential infrastructure investments.

I am also pleased that an additional $3 million is provided for the Civil Rights Initiative grant program and that funding is included for grants-in-aid to Historically Black Colleges and Universities.

I especially would like to thank the chairman for working with me to resurrect the Save America's Treasures program. This program funds and preserves nationally significant sites, structures, and artifacts. I am very proud that, in working together, we were able to restart this program, and I will work diligently with the chairman to make sure it is included in the final bill. Unfortunately, this bill neglects to act on many other opportunities to wisely invest taxpayers' dollars.

I am frustrated that the majority has, effectively, left $1.2 billion on the table by not adopting the commonsense reforms that are championed in Chairman SIMPSON's wildfire disaster funding bill. Every member of the Subcommittee on the Interior, Environment, and Related Agencies is a cosponsor of that bill—Democrat and Republican alike. Yet, once again, the majority has balked and cites committee jurisdiction. However, those jurisdictional issues did not hinder the majority's including dozens of harmful legislative riders. I must express my concern and disappointment with the 38 partisan riders in this bill. The number is outrageous, and, to me, the nature of the riders that are included panders to special interests at the expense of the public good.

For example, the bill contains a provision that would reverse the safety improvements that were developed following the Deepwater Horizon tragedy. Eleven lives were lost in that explosion. I must express my clear dismay that this bill puts the profits of big oil companies ahead of worker safety. The veto-bait provisions that seek to turn back protections for endangered species, to restrict control of greenhouse gas emissions, and to undermine clean water and clean air protections do not belong in this bill.

I acknowledge and I appreciate the efforts that have been made to accommodate Democratic priorities in this bill. However, I still cannot support this bill as it is drafted. Despite my current opposition, it is my clear intention to continue working with Chairman CALVERT through this year's appropriations process to produce a responsible bill that both parties can support. The gentleman has my word on that.

Mr. Chairman, I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I yield such time as he may consume to the gentleman from Kentucky (Mr. ROGERS), the chairman of the full Committee on Appropriations.

Mr. ROGERS of Kentucky. I thank the chairman for yielding.

Mr. Chairman, I rise to support this 5th of the 12 bills to be considered on the floor. This morning, the committee marked up the 11th of the 12 bills, and, tomorrow, the Committee on Appropriations will mark up the 12th bill so that those bills are ready for floor action. We would have been well on the way to completing all of these bills on the floor but for the abbreviated legislative year in which we have found ourselves because of the conventions and other legislation.

This bill provides nearly $32.1 billion for agencies that are charged with managing and protecting our natural resources and our Federal lands as well as Native American programs and other independent agencies.

Within this total, $3.9 billion is dedicated to fighting devastating wildfires—fully funding the 10-year average and increasing funding for programs that help prevent fires from happening in the first place.

The bill increases funding for our commitments to American Indians and

Alaska Natives, addressing public safety, health, and education, among other important services.

For rural communities that have nontaxable Federal lands and, as a result, face huge budget shortfalls that would hurt local government functions, the bill provides full funding for the payments in lieu of taxes program.

This legislation also makes good use of the congressional power of the purse by cutting the EPA by $164 million and slashing its regulatory programs to help stop this administration's heavy handed, onerous regulatory agenda.

Communities across the country rely on coal and other energy production for good jobs, and hardworking Americans expect reasonable energy bills to take care of their families. Relief from the EPA's job-killing regulations is paramount to the economic growth that our country desperately needs right now; so I am proud that the bill takes the necessary steps to cut this red tape.

This includes prohibiting funds to change the definition of ''waters'' under the Federal Water Pollution Control Act or to enforce the proposed Stream Buffer Zone Rule. The legislation also bars the EPA from implementing new greenhouse gas regulations on power plants, and it provides flexibility for States to implement new ozone standards.

In all, Mr. Chairman, this is a balanced bill. It invests taxpayer dollars in the right priorities and protects against the administration's harmful regulatory policies, which helps to ensure a brighter future for our Nation.

I congratulate and thank the chairman of the subcommittee. Mr. CALVERT has done a wonderful job, I think, on constructing this bill. It is a good bill that deserves all of our support, and I urge an ''aye'' vote.

Ms. MCCOLLUM. Mr. Chairman, I yield 4 minutes to the gentlewoman from New York (Mrs. LOWEY), the ranking member of the full Committee on Appropriations.

Mrs. LOWEY. I thank Chairman CALVERT, Ranking Member MCCOLLUM, and Chairman ROGERS for their work on this bill.

Mr. Chairman, the bill before us would provide $32.095 billion for the Department of the Interior and the Environmental Protection Agency, which is a decrease of $64 million from the enacted level and a staggering $1 billion below the President's request. As a result, the bill contains serious shortcomings. The drastic underfunding of the EPA, which is the agency tasked with protecting public health and safety, with a cut of $164 million from already inadequate funding levels, would decimate its operating budget.

The crisis in Flint is a horrifying reminder that we cannot afford to starve the EPA. Eight thousand children under the age of 6 have likely been exposed to lead contamination. The long-term impacts of that exposure are severe and will not end when the water is clean. Decades or even a lifetime of difficulty may plague those affected. Considering the severity of the Flint water crisis, I am shocked that this bill would cut the Clean Water State Revolving Funds. If the tragedy in Flint has shown us anything, it is that we must invest in our Nation's infrastructure.

Perhaps of greatest concern is the inclusion of partisan and dangerous policy riders. Yet again this year, these controversial riders imperil the appropriations process. These include blocking the administration's efforts to reduce greenhouse gas emissions; stopping the EPA from implementing its lead renovation, repair, and painting rule, preventing the EPA from protecting millions of at-risk children from increased exposure to lead; and, once again, attacking the Endangered Species Act, putting politics above science and jeopardizing the protection of precious species. Neither Democrats in Congress nor President Obama will agree to poison pill riders that cause harm to our environment and public health.

I concede there are a few positive elements in the bill, namely an $80 million increase for the National Parks Centennial Initiative and for the competitive historic preservation grant programs for Historically Black Colleges and Universities. Unfortunately, these are not enough to redeem the entire bill, and I must urge my colleagues to vote against it.

Mr. CALVERT. Mr. Chairman, I yield 2 minutes to the gentleman from Utah (Mr. BISHOP), the chairman of the full Committee on Natural Resources.

Mr. BISHOP of Utah. Mr. Chairman, this is not an easy budget area. In fact, it is a very complex one, but this subcommittee has worked to produce what, I believe, is one of the best bills we have seen in years in this particular area.

Is it perfect?

Of course not, but it does move the ball forward. It moves us forward.

□ 1700

I appreciate the efforts on the part of Chairman CALVERT, especially to work with us in the authorizing committee to try and see if we can coordinate as many of these programs that are in here. Because it is important to realize that this appropriation bill is not just about programs of the government.

Every one of these programs affects people. And if we are not moving it forward so that the people are helped instead of harmed, then we are doing something that is very myopic, and we put blinders on us, and we don't see where we are actually trying to go.

That is why I appreciate this particular bill. This is an effort to move us forward so we are actually doing programs that assist and help people. I want the committee, the appropriators here, to realize I do appreciate their effort to work with us on the authorizing side so that we can work together for a common goal. I am happy to be able to support this particular effort.

Ms. MCCOLLUM. Mr. Chairman, I yield 3 minutes to the gentleman from Washington State (Mr. KILMER), a member of the Appropriations Subcommittee on Interior, Environment, and Related Agencies.

Mr. KILMER. Mr. Chairman, I would like to thank Chairman CALVERT and Ranking Member MCCOLLUM for the work that went into this bill. I knew a lot of difficult decisions had to be made, given our current fiscal situation, and this bill manages to do some good.

I am pleased with the strong investments made to address the needs across Indian Country, for example. We have taken some real steps to bolster Indian health and education, not to mention providing some assistance to tribes facing the very real threat of rising sea levels.

I am also glad that the committee secured strong investments in the USGS budget for the West Coast early earthquake warning system and the volcano hazard program. These systems are critical to monitoring and detecting seismic and volcanic activity and giving Washingtonians and folks on the entire West Coast a few crucial seconds to get out of harm's way.

The bill we are debating today makes some real progress in these areas, but unfortunately it doesn't measure up in others, particularly when it comes to investing in the environment. This legislation is supposed to provide critical funding for our most treasured natural resources, and it fails to live up to what the folks we represent demand.

For one thing, the funding is inadequate. Among the agencies hardest hit is the Environmental Protection Agency, whose budget was cut by more than $164 million and, judging by the list of amendments we will be considering, I expect it will lose even more. That doesn't leave enough for the agency to do what it does best, like clean up polluted sites, protect our natural treasures, like Puget Sound, and make progress on fighting climate change. Not to mention, we don't provide any new funds to communities like Flint that are struggling to provide clean and safe water for their citizens.

Unfortunately, a number of important priorities for States like mine are left on the chopping block in the current bill.

In the Pacific Northwest, for example, Puget Sound is a gift, an iconic body of water that benefits our entire Nation. We have a plan in place to meet important restoration goals for it, but funds for the Puget Sound geographic program and the natural estuary program are not where they should be. These funds provide essential resources to empower Federal, State, local, and tribal agencies to mount a coordinated strategy to recover this iconic resource that is an economic driver for our region.

This really matters. It matters to tribes that have lived on the Sound

since time immemorial. It matters to the overall health and viability of our waterways and the livelihoods that depend on them.

We are passionate about the outdoors in Washington State, and that is why I am also disappointed to see this bill made serious cuts in the Land and Water Conservation Fund. In fact, it chops the funding 30 percent from last year. If we approve this approach, many shovel-ready projects will be forever lost. That is a shame because the Land and Water Conservation Fund is a key tool that builds public-private partnerships and ensures real on-the-ground work gets done. It is what we call a win-win. It is a vital tool for communities to invest in assets for local residents and for tourists who can enjoy our natural treasures and then spend some money at our local shops and restaurants.

We have seen hundreds of projects in Washington State as a result of this critical program, and that is why local leaders from across my State and others have been advocates for a permanent reauthorization of this important program. They recognize how valuable the Land and Water Conservation Fund is, not only for our environment and to recreation, but also to our ability to attract tourists and bolster our economy.

For all these reasons, as well as those highlighted by Ranking Member MCCOLLUM and others, I will not be able to support this legislation, but, again, I appreciate the hard work on it.

Mr. CALVERT. Mr. Chair, I yield 2 minutes to the gentleman from West Virginia (Mr. JENKINS).

Mr. JENKINS of West Virginia. Mr. Chair, I thank the chairman, the ranking member, and the staff for all their hard work on this legislation.

This bill is notable for what it funds and also for what it doesn't fund. West Virginians love our clean water. We love our clean air. We love our mountains and our forests.

We worked hard on this bill to ensure West Virginia's priorities were maintained and addressed. We included full funding, $480 million, for a program that provides important resources for local schools and counties like Pocahontas, Greenbrier, Nicholas, Webster, and Fayette in my district.

We have also provided an additional $90 million for the abandoned mine lands pilot program. This will continue to restore these sites in West Virginia and return them to productive economic use; agriculture, manufacturing, tourism, and much, much more.

What West Virginians do not love in this President's war on coal is its impact. West Virginians' jobs and our families' livelihoods are on the line. Once again, the President requested hundreds of millions of dollars to spend on regulations, programs, and lawyers to make it harder for West Virginians and our Nation to mine and use coal.

Our State has lost more than 10,000 coal jobs over the last 5 years, due to this administration's policies. Our counties are being devastated, losing revenue from the coal severance tax that funds schools, hospitals, emergency services, and so much more.

Our coal miners live with uncertainty, wondering if this is the day they will get a pink slip when they come out of the mines. The President's war on coal is bankrupting the health and retirement of seniors and widows, jeopardizing their financial security. Today, we say ''no'' to funding the war on coal and ''no'' to regulatory overreach.

In this bill, we hold the line on the EPA. We cut their regulatory budget. We maintain the lowest agency staffing level since 1989. We halt the harmful, job-killing rules at EPA and Office of Surface Mining, rules that would make electricity more expensive, rules like the stream buffer zone rule that would shut down even more mines, rules that would expand the EPA's reach and impose unrealistic standards on our communities.

The CHAIR. The time of the gentleman has expired.

Mr. CALVERT. Mr. Chair, I yield an additional 30 seconds to the gentleman.

Mr. JENKINS of West Virginia. I urge our colleagues on the other side of the aisle to recognize the devastating impact these rules are already having. Please support our efforts.

I encourage support of this excellent measure.

Ms. MCCOLLUM. Mr. Chairman, I yield 3 minutes to the gentlewoman from Maine (Ms. PINGREE), a member of the Appropriations Subcommittee on Interior, Environment, and Related Agencies.

Ms. PINGREE. Mr. Chair, I rise today in opposition to this bill, but want to take a moment to recognize the hard work our subcommittee has put into this legislation. I do appreciate the work of Chairman CALVERT and Ranking Member MCCOLLUM on this bill.

This bill is critical to our country, and there are so many programs in it that are vital to my constituents in Maine. Programs like the National Park Service, the Fish and Wildlife Service, and the Land and Water Conservation Fund, are all funded in this bill and all provide vital programs, resources, and research to my State and to the Nation as a whole.

Although we worked in a bipartisan fashion to create this bill, at the end of the day, the funding levels are still too low. The bill provides $64 million below the FY 2016 enacted level and $1 billion below the President's budget request.

Although I am very glad to see programs for our local arts communities, such as the NEA and NEH, are increased and that programs for our local infrastructure, such as the Clean Water Fund are funded slightly above the President's request, there is not enough money in the bill for our national needs. In particular, the EPA overall is not funded to the levels that we need as a Nation.

Back home in Maine, one of the most often cited needs of our communities is for more infrastructure resources. In some towns, that means transportation infrastructure, and in others, it means water and sewer infrastructure. In the past decade where there have been never-ending Federal, State, and local budget cuts, ensuring our communities have clean water is not an easy task. The tragedy in Flint, Michigan, reminded us all of that fact.

This year, the State revolving funds programs get an increase in the chairman's bill, and I want to thank him for that. But it is still too much lost time that needs to be made up for in these accounts.

The riders in the bill regarding the EPA are an even bigger concern, and would hinder the EPA's ability to regulate things from lead paint, to carbon pollution, to the cleanup of mines.

Again, we can do better. Our Nation deserves a better bill.

I urge my colleagues to oppose this bill.

Mr. CALVERT. Mr. Chair, may I inquire how much time remains?

The CHAIR. The gentleman from California has 17 minutes remaining, and the gentlewoman from Minnesota has 14 minutes remaining.

Mr. CALVERT. Mr. Chairman, I yield 2 minutes to the gentleman from Georgia (Mr. GRAVES) for a colloquy.

Mr. GRAVES of Georgia. Mr. Chairman, I want to thank Chairman CALVERT for the opportunity to dialogue for a moment and for his work and the subcommittee's work on this bill.

I want to just take a moment to highlight an important issue to many of my constituents that was addressed in the report accompanying last year's Interior appropriations bill. Since that time, the EPA has been working to provide the guidance called for in that report through a study now underway through their agency and through several other agencies dealing with the health impacts of recycled rubber infill that is on synthetic playing fields.

Now of particular concern, however, is that the research protocol to test these fields does not provide control for sources of possible contamination, which could be done by simply sampling nearby natural fields as well.

Now, since there has been much research done on this subject, I expect the EPA to consider available research and report its results in a way that relates it to established health-based guidelines that are currently in place.

Mr. Chairman, finally, it is important that the research is conducted in a timely manner, most importantly, during the first half of this next fiscal year to remove the uncertainty that continues to surround this issue and cause undue concern among parents, athletes, and field users alike.

I would like to thank Chairman CALVERT, again, for his work to address these issues, and I look forward to continuing to work with him and the subcommittee as we go forward.

Mr. CALVERT. Mr. Chair, I thank the Congressman from Georgia (Mr. GRAVES), a member of our committee who has been closely tracking this. I appreciate his attention to the issue and the update regarding EPA's activities to implement the direction in fiscal year 2016 report. I look forward to working with him to address this as we move forward with the fiscal year 2017 process.

Ms. MCCOLLUM. Mr. Chairman, I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I yield 2 minutes to the gentleman from Florida (Mr. MICA) for the purpose of a colloquy.

Mr. MICA. Mr. Chairman, I thank the gentleman for yielding and appreciate his tireless leadership in leading this appropriation subcommittee's work and ensuring our Nation's lands and parks are funded and protected.

I rise today, Mr. Chairman, under concern for a true national treasure that is in St. Augustine, Florida. It is the Castillo de San Marcos National Monument. In fact, actually 14 years ago, work began on a project to create a visitors center at the Castillo, which doesn't really have any facilities for more than 1.4 million visitors each year to that location. In fact, in Florida, it is the second highest visited National Park location, second only to the Everglades National Park.

They have been struggling over the years to keep pace and make the visit meaningful and educational for those who visit. We also know that at Fort Sumter and also at Fort McHenry, which actually fewer numbers of visitors, we have new visitors centers; but we don't have one in this location.

Since the passage of this law some 12 years ago, the Department of the Interior and National Park Service have completed extensive and necessary studies. I think we have probably spent $1 million. I brought one of the drafts and some of the other reports.

I am hopeful, through the Centennial Challenge Project or other National Park Service programs, that our many years of hard work to renovate the Castillo and also provide a visitors center can come to fruition through the project lead the gentleman has taken with the centennial fund. So that is the reason I rise. I ask your support as we move forward on this project.

□ 1715

Mr. CALVERT. Will the gentleman yield?

Mr. MICA. I yield to the gentleman from California.

Mr. CALVERT. I appreciate the gentleman raising this issue. I recognize your longstanding history of work on this effort, and I look forward to continuing to work with you on this important issue.

Ms. MCCOLLUM. Mr. Chairman, I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I yield 2 minutes to the gentleman from Ohio (Mr. GIBBS).

Mr. GIBBS. I thank the chairman for yielding.

Mr. Chairman, I rise today in support of H.R. 5538, the Department of the Interior, Environment, and Related Agencies Appropriations bill for fiscal year 2017. This bill responsibly ensures that EPA's regulatory overreach is checked by Congress. Key provisions in this legislation will stop the EPA's most burdensome and damaging regulations, including the waters of the United States rule.

WOTUS is nothing more than a power grab that will expand the Federal Clean Water Act jurisdiction. This rule would force farmers, ranchers, manufacturers, local governments, and property owners to seek permission from Federal bureaucrats before beginning any activity remotely related to water, and this must be stopped.

I am also pleased to see the committee supports fully funding an integrated planning approach to help communities affordably manage and meet their regulatory obligations under the Clean Water Act. Communities face enormous financial pressure to provide quality drinking and wastewater for their residents. Integrated planning will allow communities to work with the EPA to determine investments that ensure the greatest water quality benefit.

Lastly, this bill provides new funding for the Water Infrastructure Finance Innovation Act, otherwise known as WIFIA, that was authorized in WRRDA 2014. This loan and loan guarantee program works as a complement to the Clean Water SRF to provide communities with options and flexibility for their water infrastructure projects.

With each WIFIA dollar loaned able to leverage $10, I look forward to the EPA making the first WIFIA loans in FY 2017 and monitoring the program's success. I thank Chairman CALVERT for recognizing the importance of these provisions and for putting together a bill that sets appropriate levels for the agencies and programs.

Ms. MCCOLLUM. Mr. Chairman, I yield back the balance of my time.

Mr. CALVERT. Mr. Chairman, I yield back the balance of my time.

Ms. EDDIE BERNICE JOHNSON of Texas. Mr. Chair, I rise in strong opposition to H.R. 5538, the Department of the Interior, Environment, and Related Agencies Appropriations Act for FY2017. Whatever constructive provisions it may contain are far outweighed by those that will do real damage if enacted. H.R. 5538 is a bill that is riddled with anti-environment riders, among other harmful provisions, which are intended to diminish the ability of the Department of Interior and the Environmental Protection Agency to protect public health and the environment.

As Ranking Member of the Science Committee, I am certainly familiar with the anti-EPA rhetoric emanating from too many on the Majority side. Fortunately, their attempts to override the growing chorus of American voices demanding action on climate change is failing, and communities across the Nation are showing strong support for EPA's efforts to reduce harmful greenhouse gas emissions, implement tighter ozone standards, and protect public health.

Unfortunately, there are those in this House who apparently have turned a deaf ear to the American people, and instead provide a forum for those who seek to undermine EPA's work, seemingly at every turn. This bill is another vehicle for implementing those obstructive views.

There is no greater evidence of this reality than the blanket prohibition found in this bill on any EPA action ''to address methane emissions'' from the oil and gas industry. While the people in California are still reeling from the largest methane leak in U.S. history, it seems unconscionable to me that we would prohibit EPA from taking any action on issues related to methane emissions.

In addition, some of my Republican colleagues have grown fond of insisting that EPA should only rely on publically available scientific information to support their rules and actions. While the goal of a transparent government is laudable, the consequence of their insistence is not a more transparent EPA, but an EPA that would be limited as to what science they may consider. As my colleagues and I have said before, we cannot support a bill and accompanying report that limits, or prohibits, EPA from using the best and most relevant science.

Moreover, in response to perceived delays in providing documents requested by Congress, the authors of this legislation would seemingly punish the hardworking men and women of EPA's Congressional affairs office by reducing their budget request by 4 million dollars. If my colleagues really want to address EPA's inability to provide timely responses to an ever increasing amount of Congressional document requests, they would not cut the budget of the office tasked with providing those responses. It may feel good to those proposing the cut, but it is a self-defeating approach to addressing the ostensible problem.

Finally, I would note that a number of amendments have been made in order that, if adopted, will only make a bad bill worse. I intended to oppose them when they come up for votes.

In closing, I cannot support an appropriations bill that, among its defects, would diminish the ability of EPA to protect public health and the environment, and would prohibit EPA from using the best and most relevant science. I strongly urge my colleagues to oppose H.R. 5538.

Ms. LEE. Mr. Chair, first, let me thank Ranking Member MCCOLLUM, for her tremendous leadership on this subcommittee and all environmental issues.

Mr. Chair, I rise in strong opposition to H.R. 5538, the Fiscal Year 2017 Interior and Environment Appropriations Bill. This bill dangerously cuts spending by $64 million cut from FY16 and is $1 billion less than the President's FY2017 request.

And this is yet another spending bill filled with ideologically driven riders from House Republicans.

While there are few positives in this bill, like restoration of Historically Black Colleges and Universities (HBCU) grants under the Historic Preservation Fund and an increase in the Drinking Water State Revolving Fund and Water Infrastructure program, there are too

many poison riders and cuts to critical programs.

For instance, this bill still falls short of providing all of the necessary funding to address the Flint water crisis and fix our decaying water infrastructure.

As I've mentioned before, I was part of a Congressional Delegation that recently traveled to Flint, Michigan to listen to the residents of Flint regarding the horrendous impact of these government decisions that lead to the poising of those of children and families. The environmental injustice in Flint is an example of how many low-income communities of color are treated differently than affluent communities around the country.

That is why full funding for the EPA is more important than ever. Yet this bill cuts the EPA by $164 million from FY16 levels.

That is downright wrong.

This dramatic cut will harm our nation's ability to protect the health of our communities, our environment and to ensure clean water for our children.

Mr. Chair, as I said before, the numerous dangerous and offensive policy riders included in this bill—just to name a few—would block the EPA's Clean Power Plan and the Office of Surface Mining's stream protection rule, both of which help curtail dirty and harmful U.S. coal mining.

These appalling riders would roll back years of progress; undermine the Administration's ability to protect endangered species, and to keep our land, water, and air clean.

I hope my colleagues will join me in opposition to this bill until Republican appropriators stop the political gamesmanship and get serious about funding our government to meet our Nation's vital needs.

The CHAIR. All time for general debate has expired.

Pursuant to House Resolution 820, the bill shall be considered for amendment under the 5-minute rule and shall be considered read through page 184, line 21.

The text of the bill through page 184, line 21, is as follows:

H.R. 5538

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the following sums are appropriated, out of any money in the Treasury not otherwise appropriated, for the Department of the Interior, environment, and related agencies for the fiscal year ending September 30, 2017, and for other purposes, namely:

TITLE I

DEPARTMENT OF THE INTERIOR

BUREAU OF LAND MANAGEMENT

MANAGEMENT OF LANDS AND RESOURCES

For necessary expenses for protection, use, improvement, development, disposal, cadastral surveying, classification, acquisition of easements and other interests in lands, and performance of other functions, including maintenance of facilities, as authorized by law, in the management of lands and their resources under the jurisdiction of the Bureau of Land Management, including the general administration of the Bureau, and assessment of mineral potential of public lands pursuant to section 1010(a) of Public Law 96–487 (16 U.S.C. 3150(a)), $1,081,922,000, to remain available until expended, including all such amounts as are collected from permit processing fees, as authorized but made subject to future appropriation by section 35(d)(3)(A)(i) of the Mineral Leasing Act (30 U.S.C. 191), except that amounts from permit processing fees may be used for any bureau-related expenses associated with the processing of oil and gas applications for permits to drill and related use of authorizations; of which $3,000,000 shall be available in fiscal year 2017 subject to a match by at least an equal amount by the National Fish and Wildlife Foundation for cost-shared projects supporting conservation of Bureau lands; and such funds shall be advanced to the Foundation as a lump-sum grant without regard to when expenses are incurred.

In addition, $39,696,000 is for Mining Law Administration program operations, including the cost of administering the mining claim fee program, to remain available until expended, to be reduced by amounts collected by the Bureau and credited to this appropriation from mining claim maintenance fees and location fees that are hereby authorized for fiscal year 2017, so as to result in a final appropriation estimated at not more than $1,081,922,000, and $2,000,000, to remain available until expended, from communication site rental fees established by the Bureau for the cost of administering communication site activities.

LAND ACQUISITION

For expenses necessary to carry out sections 205, 206, and 318(d) of Public Law 94–579, including administrative expenses and acquisition of lands or waters, or interests therein, $19,400,000, to be derived from the Land and Water Conservation Fund and to remain available until expended.

OREGON AND CALIFORNIA GRANT LANDS

For expenses necessary for management, protection, and development of resources and for construction, operation, and maintenance of access roads, reforestation, and other improvements on the revested Oregon and California Railroad grant lands, on other Federal lands in the Oregon and California land-grant counties of Oregon, and on adjacent rights-of-way; and acquisition of lands or interests therein, including existing connecting roads on or adjacent to such grant lands; $106,985,000, to remain available until expended: *Provided*, That 25 percent of the aggregate of all receipts during the current fiscal year from the revested Oregon and California Railroad grant lands is hereby made a charge against the Oregon and California land-grant fund and shall be transferred to the General Fund in the Treasury in accordance with the second paragraph of subsection (b) of title II of the Act of August 28, 1937 (43 U.S.C. 1181f).

RANGE IMPROVEMENTS

For rehabilitation, protection, and acquisition of lands and interests therein, and improvement of Federal rangelands pursuant to section 401 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1751), notwithstanding any other Act, sums equal to 50 percent of all moneys received during the prior fiscal year under sections 3 and 15 of the Taylor Grazing Act (43 U.S.C. 315b, 315m) and the amount designated for range improvements from grazing fees and mineral leasing receipts from Bankhead-Jones lands transferred to the Department of the Interior pursuant to law, but not less than $10,000,000, to remain available until expended: *Provided*, That not to exceed $600,000 shall be available for administrative expenses.

SERVICE CHARGES, DEPOSITS, AND FORFEITURES

For administrative expenses and other costs related to processing application documents and other authorizations for use and disposal of public lands and resources, for costs of providing copies of official public land documents, for monitoring construction, operation, and termination of facilities in conjunction with use authorizations, and for rehabilitation of damaged property, such amounts as may be collected under Public Law 94–579 (43 U.S.C. 1701 et seq.), and under section 28 of the Mineral Leasing Act (30 U.S.C. 185), to remain available until expended: *Provided*, That notwithstanding any provision to the contrary of section 305(a) of Public Law 94–579 (43 U.S.C. 1735(a)), any moneys that have been or will be received pursuant to that section, whether as a result of forfeiture, compromise, or settlement, if not appropriate for refund pursuant to section 305(c) of that Act (43 U.S.C. 1735(c)), shall be available and may be expended under the authority of this Act by the Secretary to improve, protect, or rehabilitate any public lands administered through the Bureau of Land Management which have been damaged by the action of a resource developer, purchaser, permittee, or any unauthorized person, without regard to whether all moneys collected from each such action are used on the exact lands damaged which led to the action: *Provided further*, That any such moneys that are in excess of amounts needed to repair damage to the exact land for which funds were collected may be used to repair other damaged public lands.

MISCELLANEOUS TRUST FUNDS

In addition to amounts authorized to be expended under existing laws, there is hereby appropriated such amounts as may be contributed under section 307 of Public Law 94–579 (43 U.S.C. 1737), and such amounts as may be advanced for administrative costs, surveys, appraisals, and costs of making conveyances of omitted lands under section 211(b) of that Act (43 U.S.C. 1721(b)), to remain available until expended.

ADMINISTRATIVE PROVISIONS

The Bureau of Land Management may carry out the operations funded under this Act by direct expenditure, contracts, grants, cooperative agreements and reimbursable agreements with public and private entities, including with States. Appropriations for the Bureau shall be available for purchase, erection, and dismantlement of temporary structures, and alteration and maintenance of necessary buildings and appurtenant facilities to which the United States has title; up to $100,000 for payments, at the discretion of the Secretary, for information or evidence concerning violations of laws administered by the Bureau; miscellaneous and emergency expenses of enforcement activities authorized or approved by the Secretary and to be accounted for solely on the Secretary's certificate, not to exceed $10,000: *Provided*, That notwithstanding Public Law 90–620 (44 U.S.C. 501), the Bureau may, under cooperative cost-sharing and partnership arrangements authorized by law, procure printing services from cooperators in connection with jointly produced publications for which the cooperators share the cost of printing either in cash or in services, and the Bureau determines the cooperator is capable of meeting accepted quality standards: *Provided further*, That projects to be funded pursuant to a written commitment by a State government to provide an identified amount of money in support of the project may be carried out by the Bureau on a reimbursable basis. Appropriations herein made shall not be available for the destruction of healthy, unadopted, wild horses and burros in the care of the Bureau or its contractors or for the sale of wild horses and burros that results in their destruction for processing into commercial products: *Provided further*, That the Secretary shall approve any use of a right-of-way granted pursuant to the General Railroad Right-of-Way Act of 1875 (43 U.S.C. 934–939) if authorization of the use would have

been considered under Department policy to be within the scope of a railroad's authority as of the day before the effective date of the Department's Solicitor's Opinion M–37025, issued on November 4, 2011.

UNITED STATES FISH AND WILDLIFE SERVICE

RESOURCE MANAGEMENT

For necessary expenses of the United States Fish and Wildlife Service, as authorized by law, and for scientific and economic studies, general administration, and for the performance of other authorized functions related to such resources, $1,255,004,000, to remain available until September 30, 2018: *Provided*, That not to exceed $14,411,000 shall be used for implementing subsections (a), (b), (c), and (e) of section 4 of the Endangered Species Act of 1973 (16 U.S.C. 1533) (except for processing petitions, developing and issuing proposed and final regulations, and taking any other steps to implement actions described in subsection (c)(2)(A), (c)(2)(B)(i), or (c)(2)(B)(ii)), of which not to exceed $1,501,000 shall be used for any activity regarding the designation of critical habitat, pursuant to subsection (a)(3), excluding litigation support, for species listed pursuant to subsection (a)(1) prior to October 1, 2015; of which not to exceed $1,501,000 shall be used for any activity regarding petitions for species that are indigenous to the United States pursuant to subsections (b)(3)(A) and (b)(3)(B); and, of which not to exceed $1,504,000 shall be used for implementing subsections (a), (b), (c), and (e) of section 4 of the Endangered Species Act of 1973 (16 U.S.C. 1533) for species that are not indigenous to the United States.

CONSTRUCTION

For construction, improvement, acquisition, or removal of buildings and other facilities required in the conservation, management, investigation, protection, and utilization of fish and wildlife resources, and the acquisition of lands and interests therein; $14,837,000, to remain available until expended.

LAND ACQUISITION

For expenses necessary to carry out chapter 2003 of title 54, United States Code, including administrative expenses, and for acquisition of land or waters, or interest therein, in accordance with statutory authority applicable to the United States Fish and Wildlife Service, $50,300,000, to be derived from the Land and Water Conservation Fund and to remain available until expended, of which, notwithstanding section 200306 of title 54, United States Code, not more than $10,000,000 shall be for land conservation partnerships authorized by the Highlands Conservation Act of 2004, including not to exceed $320,000 for administrative expenses: *Provided*, That none of the funds appropriated for specific land acquisition projects may be used to pay for any administrative overhead, planning or other management costs.

COOPERATIVE ENDANGERED SPECIES CONSERVATION FUND

For expenses necessary to carry out section 6 of the Endangered Species Act of 1973 (16 U.S.C. 1535), $55,590,000, to remain available until expended, of which $24,790,000 is to be derived from the Cooperative Endangered Species Conservation Fund; and of which $30,800,000 is to be derived from the Land and Water Conservation Fund.

NORTH AMERICAN WETLANDS CONSERVATION FUND

For expenses necessary to carry out the provisions of the North American Wetlands Conservation Act (16 U.S.C. 4401 et seq.), $37,645,000, to remain available until expended.

NEOTROPICAL MIGRATORY BIRD CONSERVATION

For expenses necessary to carry out the Neotropical Migratory Bird Conservation Act (16 U.S.C. 6101 et seq.), $3,910,000, to remain available until expended.

MULTINATIONAL SPECIES CONSERVATION FUND

For expenses necessary to carry out the African Elephant Conservation Act (16 U.S.C. 4201 et seq.), the Asian Elephant Conservation Act of 1997 (16 U.S.C. 4261 et seq.), the Rhinoceros and Tiger Conservation Act of 1994 (16 U.S.C. 5301 et seq.), the Great Ape Conservation Act of 2000 (16 U.S.C. 6301 et seq.), and the Marine Turtle Conservation Act of 2004 (16 U.S.C. 6601 et seq.), $11,061,000, to remain available until expended.

STATE AND TRIBAL WILDLIFE GRANTS

For wildlife conservation grants to States and to the District of Columbia, Puerto Rico, Guam, the United States Virgin Islands, the Northern Mariana Islands, American Samoa, and Indian tribes under the provisions of the Fish and Wildlife Act of 1956 and the Fish and Wildlife Coordination Act, for the development and implementation of programs for the benefit of wildlife and their habitat, including species that are not hunted or fished, $62,571,000, to remain available until expended: *Provided*, That of the amount provided herein, $4,334,000 is for a competitive grant program for Indian tribes not subject to the remaining provisions of this appropriation: *Provided further*, That $7,237,000 is for a competitive grant program to implement approved plans for States, territories, and other jurisdictions and at the discretion of affected States, the regional Associations of fish and wildlife agencies, not subject to the remaining provisions of this appropriation: *Provided further*, That the Secretary shall, after deducting $11,571,000 and administrative expenses, apportion the amount provided herein in the following manner: (1) to the District of Columbia and to the Commonwealth of Puerto Rico, each a sum equal to not more than one-half of 1 percent thereof; and (2) to Guam, American Samoa, the United States Virgin Islands, and the Commonwealth of the Northern Mariana Islands, each a sum equal to not more than one-fourth of 1 percent thereof: *Provided further*, That the Secretary shall apportion the remaining amount in the following manner: (1) one-third of which is based on the ratio to which the land area of such State bears to the total land area of all such States; and (2) two-thirds of which is based on the ratio to which the population of such State bears to the total population of all such States: *Provided further*, That the amounts apportioned under this paragraph shall be adjusted equitably so that no State shall be apportioned a sum which is less than 1 percent of the amount available for apportionment under this paragraph for any fiscal year or more than 5 percent of such amount: *Provided further*, That the Federal share of planning grants shall not exceed 75 percent of the total costs of such projects and the Federal share of implementation grants shall not exceed 65 percent of the total costs of such projects: *Provided further*, That the non-Federal share of such projects may not be derived from Federal grant programs: *Provided further*, That any amount apportioned in 2017 to any State, territory, or other jurisdiction that remains unobligated as of September 30, 2018, shall be reapportioned, together with funds appropriated in 2019, in the manner provided herein.

ADMINISTRATIVE PROVISIONS

The United States Fish and Wildlife Service may carry out the operations of Service programs by direct expenditure, contracts, grants, cooperative agreements and reimbursable agreements with public and private entities. Appropriations and funds available to the United States Fish and Wildlife Service shall be available for repair of damage to public roads within and adjacent to reservation areas caused by operations of the Service; options for the purchase of land at not to exceed $1 for each option; facilities incident to such public recreational uses on conservation areas as are consistent with their primary purpose; and the maintenance and improvement of aquaria, buildings, and other facilities under the jurisdiction of the Service and to which the United States has title, and which are used pursuant to law in connection with management, and investigation of fish and wildlife resources: *Provided*, That notwithstanding 44 U.S.C. 501, the Service may, under cooperative cost sharing and partnership arrangements authorized by law, procure printing services from cooperators in connection with jointly produced publications for which the cooperators share at least one-half the cost of printing either in cash or services and the Service determines the cooperator is capable of meeting accepted quality standards: *Provided further*, That the Service may accept donated aircraft as replacements for existing aircraft: *Provided further*, That notwithstanding 31 U.S.C. 3302, all fees collected for non-toxic shot review and approval shall be deposited under the heading ''United States Fish and Wildlife Service—Resource Management'' and shall be available to the Secretary, without further appropriation, to be used for expenses of processing of such non-toxic shot type or coating applications and revising regulations as necessary, and shall remain available until expended: *Provided further*, that none of the funds made available to the Service by this Act may be used to close or otherwise terminate operations of any of the 90 units of the National Fish Hatchery System.

NATIONAL PARK SERVICE

OPERATION OF THE NATIONAL PARK SYSTEM

For expenses necessary for the management, operation, and maintenance of areas and facilities administered by the National Park Service and for the general administration of the National Park Service, $2,435,047,000, of which $10,032,000 for planning and interagency coordination in support of Everglades restoration and $134,461,000 for maintenance, repair, or rehabilitation projects for constructed assets shall remain available until September 30, 2018: *Provided*, That funds appropriated under this heading in this Act are available for the purposes of section 5 of Public Law 95–348.

NATIONAL RECREATION AND PRESERVATION

For expenses necessary to carry out recreation programs, natural programs, cultural programs, heritage partnership programs, environmental compliance and review, international park affairs, and grant administration, not otherwise provided for, $62,632,000.

HISTORIC PRESERVATION FUND

For expenses necessary in carrying out the National Historic Preservation Act (division A of subtitle III of title 54, United States Code), $78,410,000, to be derived from the Historic Preservation Fund and to remain available until September 30, 2018, of which $5,000,000 shall be for Save America's Treasures grants for preservation of national significant sites, structures, and artifacts as authorized by section 7303 of the Omnibus Public Land Management Act of 2009 (54 U.S.C. 3089): *Provided*, That an individual Save America's Treasures grant shall be matched by non-Federal funds: *Provided further*, That individual projects shall only be eligible for one grant: *Provided further*, That all projects to be funded shall be approved by the Secretary of the Interior in consultation with the House and Senate Committees on

Appropriations: *Provided further*, That of the funds provided for the Historic Preservation Fund, $500,000 is for competitive grants for the survey and nomination of properties to the National Register of Historic Places and as National Historic Landmarks associated with communities currently underrepresented, as determined by the Secretary, $11,000,000 is for competitive grants to preserve the sites and stories of the Civil Rights movement, and $3,000,000 is for grants to Historically Black Colleges and Universities: *Provided further*, That such competitive grants shall be made without imposing the matching requirements in section 302902(b)(3) of title 54, United States Code to States and Indian tribes as defined in chapter 3003 of such title, Native Hawaiian organizations, local governments, including Certified Local Governments, and nonprofit organizations.

CONSTRUCTION

For construction, improvements, repair, or replacement of physical facilities, and compliance and planning for programs and areas administered by the National Park Service, $215,707,000, to remain available until expended: *Provided*, That notwithstanding any other provision of law, for any project initially funded in fiscal year 2017 with a future phase indicated in the National Park Service 5–Year Line Item Construction Plan, a single procurement may be issued which includes the full scope of the project: *Provided further*, That the solicitation and contract shall contain the clause availability of funds found at 48 CFR 52.232–18: *Provided further*, That National Park Service Donations, Park Concessions Franchise Fees, and Recreation Fees may be made available for the cost of adjustments and changes within the original scope of effort for projects funded by the National Park Service Construction appropriation: *Provided further*, That the Secretary of the Interior shall consult with the Committees on Appropriations, in accordance with current reprogramming thresholds, prior to making any charges authorized by this section.

LAND AND WATER CONSERVATION FUND

(RESCISSION)

The contract authority provided for fiscal year 2017 by section 200308 of title 54, United States Code, is rescinded.

LAND ACQUISITION AND STATE ASSISTANCE

For expenses necessary to carry out chapter 2003 of title 54, United States Code, including administrative expenses, and for acquisition of lands or waters, or interest therein, in accordance with the statutory authority applicable to the National Park Service, $128,752,000, to be derived from the Land and Water Conservation Fund and to remain available until expended, of which $80,000,000 is for the State assistance program and of which $10,000,000 shall be for the American Battlefield Protection Program grants as authorized by chapter 3081 of title 54, United States Code.

CENTENNIAL CHALLENGE

For expenses necessary to carry out the provisions of section 101701 of title 54, United States Code, relating to challenge cost share agreements, $30,000,000, to remain available until expended, for Centennial Challenge projects and programs: *Provided*, That not less than 50 percent of the total cost of each project or program shall be derived from non-Federal sources in the form of donated cash, assets, or a pledge of donation guaranteed by an irrevocable letter of credit.

ADMINISTRATIVE PROVISIONS

(INCLUDING TRANSFER OF FUNDS)

In addition to other uses set forth in section 101917(c)(2) of title 54, United States Code, franchise fees credited to a sub-account shall be available for expenditure by the Secretary, without further appropriation, for use at any unit within the National Park System to extinguish or reduce liability for Possessory Interest or leasehold surrender interest. Such funds may only be used for this purpose to the extent that the benefitting unit anticipated franchise fee receipts over the term of the contract at that unit exceed the amount of funds used to extinguish or reduce liability. Franchise fees at the benefitting unit shall be credited to the sub-account of the originating unit over a period not to exceed the term of a single contract at the benefitting unit, in the amount of funds so expended to extinguish or reduce liability.

For the costs of administration of the Land and Water Conservation Fund grants authorized by section 105(a)(2)(B) of the Gulf of Mexico Energy Security Act of 2006 (Public Law 109–432), the National Park Service may retain up to 3 percent of the amounts which are authorized to be disbursed under such section, such retained amounts to remain available until expended.

National Park Service funds may be transferred to the Federal Highway Administration (FHWA), Department of Transportation, for purposes authorized under 23 U.S.C. 204. Transfers may include a reasonable amount for FHWA administrative support costs.

UNITED STATES GEOLOGICAL SURVEY

SURVEYS, INVESTIGATIONS, AND RESEARCH

For expenses necessary for the United States Geological Survey to perform surveys, investigations, and research covering topography, geology, hydrology, biology, and the mineral and water resources of the United States, its territories and possessions, and other areas as authorized by 43 U.S.C. 31, 1332, and 1340; classify lands as to their mineral and water resources; give engineering supervision to power permittees and Federal Energy Regulatory Commission licensees; administer the minerals exploration program (30 U.S.C. 641); conduct inquiries into the economic conditions affecting mining and materials processing industries (30 U.S.C. 3, 21a, and 1603; 50 U.S.C. 98g(1)) and related purposes as authorized by law; and to publish and disseminate data relative to the foregoing activities; $1,080,006,000, to remain available until September 30, 2018; of which $63,637,189 shall remain available until expended for satellite operations; and of which $7,280,000 shall be available until expended for deferred maintenance and capital improvement projects that exceed $100,000 in cost: *Provided*, That none of the funds provided for the ecosystem research activity shall be used to conduct new surveys on private property, unless specifically authorized in writing by the property owner: *Provided further*, That no part of this appropriation shall be used to pay more than one-half the cost of topographic mapping or water resources data collection and investigations carried on in cooperation with States and municipalities.

ADMINISTRATIVE PROVISIONS

From within the amount appropriated for activities of the United States Geological Survey such sums as are necessary shall be available for contracting for the furnishing of topographic maps and for the making of geophysical or other specialized surveys when it is administratively determined that such procedures are in the public interest; construction and maintenance of necessary buildings and appurtenant facilities; acquisition of lands for gauging stations and observation wells; expenses of the United States National Committee for Geological Sciences; and payment of compensation and expenses of persons employed by the Survey duly appointed to represent the United States in the negotiation and administration of interstate compacts: *Provided*, That activities funded by appropriations herein made may be accomplished through the use of contracts, grants, or cooperative agreements as defined in section 6302 of title 31, United States Code: *Provided further*, That the United States Geological Survey may enter into contracts or cooperative agreements directly with individuals or indirectly with institutions or nonprofit organizations, without regard to 41 U.S.C. 6101, for the temporary or intermittent services of students or recent graduates, who shall be considered employees for the purpose of chapters 57 and 81 of title 5, United States Code, relating to compensation for travel and work injuries, and chapter 171 of title 28, United States Code, relating to tort claims, but shall not be considered to be Federal employees for any other purposes.

BUREAU OF OCEAN ENERGY MANAGEMENT

OCEAN ENERGY MANAGEMENT

For expenses necessary for granting leases, easements, rights-of-way and agreements for use for oil and gas, other minerals, energy, and marine-related purposes on the Outer Continental Shelf and approving operations related thereto, as authorized by law; for environmental studies, as authorized by law; for implementing other laws and to the extent provided by Presidential or Secretarial delegation; and for matching grants or cooperative agreements, $169,306,000, of which $74,362,000, is to remain available until September 30, 2018, and of which $94,944,000 is to remain available until expended: *Provided*, That this total appropriation shall be reduced by amounts collected by the Secretary and credited to this appropriation from additions to receipts resulting from increases to lease rental rates in effect on August 5, 1993, and from cost recovery fees from activities conducted by the Bureau of Ocean Energy Management pursuant to the Outer Continental Shelf Lands Act, including studies, assessments, analysis, and miscellaneous administrative activities: *Provided further*, That the sum herein appropriated shall be reduced as such collections are received during the fiscal year, so as to result in a final fiscal year 2017 appropriation estimated at not more than $74,362,000: *Provided further*, That not to exceed $3,000 shall be available for reasonable expenses related to promoting volunteer beach and marine cleanup activities.

BUREAU OF SAFETY AND ENVIRONMENTAL ENFORCEMENT

OFFSHORE SAFETY AND ENVIRONMENTAL ENFORCEMENT

(INCLUDING RESCISSION OF FUNDS)

For expenses necessary for the regulation of operations related to leases, easements, rights-of-way and agreements for use for oil and gas, other minerals, energy, and marine-related purposes on the Outer Continental Shelf, as authorized by law; for enforcing and implementing laws and regulations as authorized by law and to the extent provided by Presidential or Secretarial delegation; and for matching grants or cooperative agreements, $136,968,000, of which $93,438,000 is to remain available until September 30, 2018, and of which $43,530,000 is to remain available until expended: *Provided*, That this total appropriation shall be reduced by amounts collected by the Secretary and credited to this appropriation from additions to receipts resulting from increases to lease rental rates in effect on August 5, 1993, and from cost recovery fees from activities conducted by the Bureau of Safety and Environmental Enforcement pursuant to the Outer Continental Shelf Lands Act, including studies, assessments, analysis, and miscellaneous

administrative activities: *Provided further*, That the sum herein appropriated shall be reduced as such collections are received during the fiscal year, so as to result in a final fiscal year 2017 appropriation estimated at not more than $93,438,000.

For an additional amount, $53,000,000, to remain available until expended, to be reduced by amounts collected by the Secretary and credited to this appropriation, which shall be derived from non-refundable inspection fees collected in fiscal year 2017, as provided in this Act: *Provided*, That to the extent that amounts realized from such inspection fees exceed $53,000,000, the amounts realized in excess of $53,000,000 shall be credited to this appropriation and remain available until expended: *Provided further*, That for fiscal year 2017, not less than 50 percent of the inspection fees expended by the Bureau of Safety and Environmental Enforcement will be used to fund personnel and mission-related costs to expand capacity and expedite the orderly development, subject to environmental safeguards, of the Outer Continental Shelf pursuant to the Outer Continental Shelf Lands Act (43 U.S.C. 1331 et seq.), including the review of applications for permits to drill.

Of the unobligated balances available for this account, $20,000,000 are permanently rescinded.

OIL SPILL RESEARCH

For necessary expenses to carry out title I, section 1016, title IV, sections 4202 and 4303, title VII, and title VIII, section 8201 of the Oil Pollution Act of 1990, $14,899,000, which shall be derived from the Oil Spill Liability Trust Fund, to remain available until expended.

OFFICE OF SURFACE MINING RECLAMATION AND ENFORCEMENT

REGULATION AND TECHNOLOGY

For necessary expenses to carry out the provisions of the Surface Mining Control and Reclamation Act of 1977, Public Law 95–87, $119,300,000, to remain available until September 30, 2018: *Provided*, That appropriations for the Office of Surface Mining Reclamation and Enforcement may provide for the travel and per diem expenses of State and tribal personnel attending Office of Surface Mining Reclamation and Enforcement sponsored training.

In addition, for costs to review, administer, and enforce permits issued by the Office pursuant to section 507 of Public Law 95–87 (30 U.S.C. 1257), $40,000, to remain available until expended: *Provided*, That fees assessed and collected by the Office pursuant to such section 507 shall be credited to this account as discretionary offsetting collections, to remain available until expended: *Provided further*, That the sum herein appropriated from the general fund shall be reduced as collections are received during the fiscal year, so as to result in a fiscal year 2017 appropriation estimated at not more than $119,300,000.

ABANDONED MINE RECLAMATION FUND

For necessary expenses to carry out title IV of the Surface Mining Control and Reclamation Act of 1977, Public Law 95–87, $27,303,000, to be derived from receipts of the Abandoned Mine Reclamation Fund and to remain available until expended: *Provided*, That pursuant to Public Law 97–365, the Department of the Interior is authorized to use up to 20 percent from the recovery of the delinquent debt owed to the United States Government to pay for contracts to collect these debts: *Provided further*, That funds made available under title IV of Public Law 95–87 may be used for any required non-Federal share of the cost of projects funded by the Federal Government for the purpose of environmental restoration related to treatment or abatement of acid mine drainage from abandoned mines: *Provided further*, That such projects must be consistent with the purposes and priorities of the Surface Mining Control and Reclamation Act: *Provided further*, That amounts provided under this heading may be used for the travel and per diem expenses of State and tribal personnel attending Office of Surface Mining Reclamation and Enforcement sponsored training.

In addition, $90,000,000, to remain available until expended, for grants to States for reclamation of abandoned mine lands and other related activities in accordance with the terms and conditions in the report accompanying this Act: *Provided*, That such additional amount shall be used for economic and community development in conjunction with the priorities in section 403(a) of the Surface Mining Control and Reclamation Act of 1977 (30 U.S.C. 1233(a)): *Provided further*, That of such additional amount, $75,000,000 shall be distributed in equal amounts to the 3 Appalachian States with the greatest amount of unfunded needs to meet the priorities described in paragraphs (1) and (2) of such section, and $15,000,000 shall be distributed in equal amounts to the 3 Appalachian States with the subsequent greatest amount of unfunded needs to meet such priorities: *Provided further*, That such additional amount shall be allocated to States within 60 days after the date of enactment of this Act.

BUREAU OF INDIAN AFFAIRS AND BUREAU OF INDIAN EDUCATION

OPERATION OF INDIAN PROGRAMS

(INCLUDING TRANSFER OF FUNDS)

For expenses necessary for the operation of Indian programs, as authorized by law, including the Snyder Act of November 2, 1921 (25 U.S.C. 13), the Indian Self-Determination and Education Assistance Act of 1975 (25 U.S.C. 450 et seq.), the Education Amendments of 1978 (25 U.S.C. 2001–2019), and the Tribally Controlled Schools Act of 1988 (25 U.S.C. 2501 et seq.), $2,335,635,000, to remain available until September 30, 2018, except as otherwise provided herein; of which not to exceed $8,500 may be for official reception and representation expenses; of which not to exceed $74,773,000 shall be for welfare assistance payments: *Provided*, That in cases of designated Federal disasters, the Secretary may exceed such cap, from the amounts provided herein, to provide for disaster relief to Indian communities affected by the disaster: *Provided further*, That federally recognized Indian tribes and tribal organizations of federally recognized Indian tribes may use their tribal priority allocations for unmet welfare assistance costs: *Provided further*, That not to exceed $652,282,000 for school operations costs of Bureau-funded schools and other education programs shall become available on July 1, 2017, and shall remain available until September 30, 2018: *Provided further*, That not to exceed $48,815,000 shall remain available until expended for housing improvement, road maintenance, attorney fees, litigation support, land records improvement, and the Navajo-Hopi Settlement Program: *Provided further*, That notwithstanding any other provision of law, including but not limited to the Indian Self-Determination Act of 1975 (25 U.S.C. 450f et seq.) and section 1128 of the Education Amendments of 1978 (25 U.S.C. 2008), not to exceed $75,335,000 within and only from such amounts made available for school operations shall be available for administrative cost grants associated with grants approved prior to July 1, 2017: *Provided further*, That any forestry funds allocated to a federally recognized tribe which remain unobligated as of September 30, 2018, may be transferred during fiscal year 2019 to an Indian forest land assistance account established for the benefit of the holder of the funds within the holder's trust fund account: *Provided further*, That any such unobligated balances not so transferred shall expire on September 30, 2019: *Provided further*, That in order to enhance the safety of Bureau field employees, the Bureau may use funds to purchase uniforms or other identifying articles of clothing for personnel.

CONTRACT SUPPORT COSTS

For payments to tribes and tribal organizations for contract support costs associated with Indian Self-Determination and Education Assistance Act agreements with the Bureau of Indian Affairs for fiscal year 2017, such sums as may be necessary, which shall be available for obligation through September 30, 2018: *Provided*, That notwithstanding any other provision of law, no amounts made available under this heading shall be available for transfer to another budget account.

CONSTRUCTION

(INCLUDING TRANSFER OF FUNDS)

For construction, repair, improvement, and maintenance of irrigation and power systems, buildings, utilities, and other facilities, including architectural and engineering services by contract; acquisition of lands, and interests in lands; and preparation of lands for farming, and for construction of the Navajo Indian Irrigation Project pursuant to Public Law 87–483, $197,017,000, to remain available until expended: *Provided*, That such amounts as may be available for the construction of the Navajo Indian Irrigation Project may be transferred to the Bureau of Reclamation: *Provided further*, That not to exceed 6 percent of contract authority available to the Bureau of Indian Affairs from the Federal Highway Trust Fund may be used to cover the road program management costs of the Bureau: *Provided further*, That any funds provided for the Safety of Dams program pursuant to 25 U.S.C. 13 shall be made available on a nonreimbursable basis: *Provided further*, That for fiscal year 2017, in implementing new construction, replacement facilities construction, or facilities improvement and repair project grants in excess of $100,000 that are provided to grant schools under Public Law 100–297, the Secretary of the Interior shall use the Administrative and Audit Requirements and Cost Principles for Assistance Programs contained in 43 CFR part 12 as the regulatory requirements: *Provided further*, That such grants shall not be subject to section 12.61 of 43 CFR; the Secretary and the grantee shall negotiate and determine a schedule of payments for the work to be performed: *Provided further*, That in considering grant applications, the Secretary shall consider whether such grantee would be deficient in assuring that the construction projects conform to applicable building standards and codes and Federal, tribal, or State health and safety standards as required by 25 U.S.C. 2005(b), with respect to organizational and financial management capabilities: *Provided further*, That if the Secretary declines a grant application, the Secretary shall follow the requirements contained in 25 U.S.C. 2504(f): *Provided further*, That any disputes between the Secretary and any grantee concerning a grant shall be subject to the disputes provision in 25 U.S.C. 2507(e): *Provided further*, That in order to ensure timely completion of construction projects, the Secretary may assume control of a project and all funds related to the project, if, within 18 months of the date of enactment of this Act, any grantee receiving funds appropriated in this Act or in any prior Act, has not completed the planning and design phase of the project and

commenced construction: *Provided further*, That this appropriation may be reimbursed from the Office of the Special Trustee for American Indians appropriation for the appropriate share of construction costs for space expansion needed in agency offices to meet trust reform implementation.

INDIAN LAND AND WATER CLAIM SETTLEMENTS AND MISCELLANEOUS PAYMENTS TO INDIANS

For payments and necessary administrative expenses for implementation of Indian land and water claim settlements pursuant to Public Laws 99–264, 100–580, 101–618, 111–11, and 111–291, and for implementation of other land and water rights settlements, $49,025,000, to remain available until expended.

INDIAN GUARANTEED LOAN PROGRAM ACCOUNT

For the cost of guaranteed loans and insured loans, $8,757,000, of which $1,182,000 is for administrative expenses, as authorized by the Indian Financing Act of 1974: *Provided*, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That these funds are available to subsidize total loan principal, any part of which is to be guaranteed or insured, not to exceed $120,050,595.

ADMINISTRATIVE PROVISIONS

The Bureau of Indian Affairs may carry out the operation of Indian programs by direct expenditure, contracts, cooperative agreements, compacts, and grants, either directly or in cooperation with States and other organizations.

Notwithstanding 25 U.S.C. 15, the Bureau of Indian Affairs may contract for services in support of the management, operation, and maintenance of the Power Division of the San Carlos Irrigation Project.

Notwithstanding any other provision of law, no funds available to the Bureau of Indian Affairs for central office oversight and Executive Direction and Administrative Services (except executive direction and administrative services funding for Tribal Priority Allocations, regional offices, and facilities operations and maintenance) shall be available for contracts, grants, compacts, or cooperative agreements with the Bureau of Indian Affairs under the provisions of the Indian Self-Determination Act or the Tribal Self-Governance Act of 1994 (Public Law 103–413).

In the event any tribe returns appropriations made available by this Act to the Bureau of Indian Affairs, this action shall not diminish the Federal Government's trust responsibility to that tribe, or the government-to-government relationship between the United States and that tribe, or that tribe's ability to access future appropriations.

Notwithstanding any other provision of law, no funds available to the Bureau of Indian Education, other than the amounts provided herein for assistance to public schools under 25 U.S.C. 452 et seq., shall be available to support the operation of any elementary or secondary school in the State of Alaska.

No funds available to the Bureau of Indian Education shall be used to support expanded grades for any school or dormitory beyond the grade structure in place or approved by the Secretary of the Interior at each school in the Bureau of Indian Education school system as of October 1, 1995, except that the Secretary of the Interior may waive this prohibition to support expansion of up to one additional grade when the Secretary determines such waiver is needed to support accomplishment of the mission of the Bureau of Indian Education. Appropriations made available in this or any prior Act for schools funded by the Bureau shall be available, in accordance with the Bureau's funding formula, only to the schools in the Bureau school system as of September 1, 1996, and to any school or school program that was reinstated in fiscal year 2012. Funds made available under this Act may not be used to establish a charter school at a Bureau-funded school (as that term is defined in section 1141 of the Education Amendments of 1978 (25 U.S.C. 2021)), except that a charter school that is in existence on the date of the enactment of this Act and that has operated at a Bureau-funded school before September 1, 1999, may continue to operate during that period, but only if the charter school pays to the Bureau a pro rata share of funds to reimburse the Bureau for the use of the real and personal property (including buses and vans), the funds of the charter school are kept separate and apart from Bureau funds, and the Bureau does not assume any obligation for charter school programs of the State in which the school is located if the charter school loses such funding. Employees of Bureau-funded schools sharing a campus with a charter school and performing functions related to the charter school's operation and employees of a charter school shall not be treated as Federal employees for purposes of chapter 171 of title 28, United States Code.

Notwithstanding any other provision of law, including section 113 of title I of appendix C of Public Law 106–113, if in fiscal year 2003 or 2004 a grantee received indirect and administrative costs pursuant to a distribution formula based on section 5(f) of Public Law 101–301, the Secretary shall continue to distribute indirect and administrative cost funds to such grantee using the section 5(f) distribution formula.

Funds available under this Act may not be used to establish satellite locations of schools in the Bureau school system as of September 1, 1996, except that the Secretary may waive this prohibition in order for an Indian tribe to provide language and cultural immersion educational programs for nonpublic schools located within the jurisdictional area of the tribal government which exclusively serve tribal members, do not include grades beyond those currently served at the existing Bureau-funded school, provide an educational environment with educator presence and academic facilities comparable to the Bureau-funded school, comply with all applicable Tribal, Federal, or State health and safety standards, and the Americans with Disabilities Act, and demonstrate the benefits of establishing operations at a satellite location in lieu of incurring extraordinary costs, such as for transportation or other impacts to students such as those caused by busing students extended distances: *Provided*, That no funds available under this Act may be used to fund operations, maintenance, rehabilitation, construction or other facilities-related costs for such assets that are not owned by the Bureau: *Provided further*, That the term ''satellite school'' means a school location physically separated from the existing Bureau school by more than 50 miles but that forms part of the existing school in all other respects.

DEPARTMENTAL OFFICES

OFFICE OF THE SECRETARY

DEPARTMENTAL OPERATIONS

For necessary expenses for management of the Department of the Interior, including the collection and disbursement of royalties, fees, and other mineral revenue proceeds, and for grants and cooperative agreements, as authorized by law, $749,422,000, to remain available until September 30, 2018; of which not to exceed $15,000 may be for official reception and representation expenses; and of which up to $1,000,000 shall be available for workers compensation payments and unemployment compensation payments associated with the orderly closure of the United States Bureau of Mines; and of which $10,000,000 for the Office of Valuation Services is to be derived from the Land and Water Conservation Fund and shall remain available until expended; and of which $38,300,000 shall remain available until expended for the purpose of mineral revenue management activities: *Provided*, That notwithstanding any other provision of law, $15,000 under this heading shall be available for refunds of overpayments in connection with certain Indian leases in which the Secretary concurred with the claimed refund due, to pay amounts owed to Indian allottees or tribes, or to correct prior unrecoverable erroneous payments.

ADMINISTRATIVE PROVISIONS

For fiscal year 2017, up to $400,000 of the payments authorized by the Act of October 20, 1976 (31 U.S.C. 6901–6907) may be retained for administrative expenses of the Payments in Lieu of Taxes Program: *Provided*, That no payment shall be made pursuant to that Act to otherwise eligible units of local government if the computed amount of the payment is less than $100: *Provided further*, That the Secretary may reduce the payment authorized by 31 U.S.C. 6901–6907 for an individual county by the amount necessary to correct prior year overpayments to that county: *Provided further*, That the amount needed to correct a prior year underpayment to an individual county shall be paid from any reductions for overpayments to other counties and the amount necessary to cover any remaining underpayment is hereby appropriated and shall be paid to individual counties: *Provided further*, That of the total amount made available by this title for ''Office of the Secretary—Departmental Operations'', $480,000,000 shall be available to the Secretary of the Interior for fiscal year 2017 for payments in lieu of taxes under chapter 69 of title 31, United States Code.

INSULAR AFFAIRS

ASSISTANCE TO TERRITORIES

For expenses necessary for assistance to territories under the jurisdiction of the Department of the Interior and other jurisdictions identified in section 104(e) of Public Law 108–188, $86,976,000, of which: (1) $77,528,000 shall remain available until expended for territorial assistance, including general technical assistance, maintenance assistance, disaster assistance, coral reef initiative activities, and brown tree snake control and research; grants to the judiciary in American Samoa for compensation and expenses, as authorized by law (48 U.S.C. 1661(c)); grants to the Government of American Samoa, in addition to current local revenues, for construction and support of governmental functions; grants to the Government of the Virgin Islands as authorized by law; grants to the Government of Guam, as authorized by law; and grants to the Government of the Northern Mariana Islands as authorized by law (Public Law 94–241; 90 Stat. 272); and (2) $9,448,000 shall be available until September 30, 2018, for salaries and expenses of the Office of Insular Affairs: *Provided*, That all financial transactions of the territorial and local governments herein provided for, including such transactions of all agencies or instrumentalities established or used by such governments, may be audited by the Government Accountability Office, at its discretion, in accordance with chapter 35 of title 31, United States Code: *Provided further*, That Northern Mariana Islands Covenant grant funding shall be provided according to those terms of the Agreement of the Special Representatives on Future United States Financial Assistance for the Northern Mariana

Islands approved by Public Law 104–134: *Provided further*, That the funds for the program of operations and maintenance improvement are appropriated to institutionalize routine operations and maintenance improvement of capital infrastructure with territorial participation and cost sharing to be determined by the Secretary based on the grantee's commitment to timely maintenance of its capital assets: *Provided further*, That any appropriation for disaster assistance under this heading in this Act or previous appropriations Acts may be used as non-Federal matching funds for the purpose of hazard mitigation grants provided pursuant to section 404 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5170c).

COMPACT OF FREE ASSOCIATION

For grants and necessary expenses, $3,318,000, to remain available until expended, as provided for in sections 221(a)(2) and 233 of the Compact of Free Association for the Republic of Palau; and section 221(a)(2) of the Compacts of Free Association for the Government of the Republic of the Marshall Islands and the Federated States of Micronesia, as authorized by Public Law 99–658 and Public Law 108–188.

ADMINISTRATIVE PROVISIONS

(INCLUDING TRANSFER OF FUNDS)

At the request of the Governor of Guam, the Secretary may transfer discretionary funds or mandatory funds provided under section 104(e) of Public Law 108–188 and Public Law 104–134, that are allocated for Guam, to the Secretary of Agriculture for the subsidy cost of direct or guaranteed loans, plus not to exceed three percent of the amount of the subsidy transferred for the cost of loan administration, for the purposes authorized by the Rural Electrification Act of 1936 and section 306(a)(1) of the Consolidated Farm and Rural Development Act for construction and repair projects in Guam, and such funds shall remain available until expended: *Provided*, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That such loans or loan guarantees may be made without regard to the population of the area, credit elsewhere requirements, and restrictions on the types of eligible entities under the Rural Electrification Act of 1936 and section 306(a)(1) of the Consolidated Farm and Rural Development Act: *Provided further*, That any funds transferred to the Secretary of Agriculture shall be in addition to funds otherwise made available to make or guarantee loans under such authorities.

OFFICE OF THE SOLICITOR

SALARIES AND EXPENSES

For necessary expenses of the Office of the Solicitor, $65,800,000.

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

For necessary expenses of the Office of Inspector General, $50,047,000.

OFFICE OF THE SPECIAL TRUSTEE FOR AMERICAN INDIANS

FEDERAL TRUST PROGRAMS

(INCLUDING TRANSFER OF FUNDS)

For the operation of trust programs for Indians by direct expenditure, contracts, cooperative agreements, compacts, and grants, $139,029,000, to remain available until expended, of which not to exceed $18,688,000 from this or any other Act, may be available for historical accounting: *Provided*, That funds for trust management improvements and litigation support may, as needed, be transferred to or merged with the Bureau of Indian Affairs and Bureau of Indian Education, ''Operation of Indian Programs'' account; the Office of the Solicitor, ''Salaries and Expenses'' account; and the Office of the Secretary, ''Departmental Operations'' account: *Provided further*, That funds made available through contracts or grants obligated during fiscal year 2017, as authorized by the Indian Self-Determination Act of 1975 (25 U.S.C. 450 et seq.), shall remain available until expended by the contractor or grantee: *Provided further*, That notwithstanding any other provision of law, the Secretary shall not be required to provide a quarterly statement of performance for any Indian trust account that has not had activity for at least 15 months and has a balance of $15 or less: *Provided further*, That the Secretary shall issue an annual account statement and maintain a record of any such accounts and shall permit the balance in each such account to be withdrawn upon the express written request of the account holder: *Provided further*, That not to exceed $50,000 is available for the Secretary to make payments to correct administrative errors of either disbursements from or deposits to Individual Indian Money or Tribal accounts after September 30, 2002: *Provided further*, That erroneous payments that are recovered shall be credited to and remain available in this account for this purpose: *Provided further*, That the Secretary shall not be required to reconcile Special Deposit Accounts with a balance of less than $500 unless the Office of the Special Trustee receives proof of ownership from a Special Deposit Accounts claimant: *Provided further*, That notwithstanding section 102 of the American Indian Trust Fund Management Reform Act of 1994 (Public Law 103–412) or any other provision of law, the Secretary may aggregate the trust accounts of individuals whose whereabouts are unknown for a continuous period of at least five years and shall not be required to generate periodic statements of performance for the individual accounts: *Provided further*, That with respect to the eighth proviso, the Secretary shall continue to maintain sufficient records to determine the balance of the individual accounts, including any accrued interest and income, and such funds shall remain available to the individual account holders.

DEPARTMENT-WIDE PROGRAMS

WILDLAND FIRE MANAGEMENT

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses for fire preparedness, fire suppression operations, fire science and research, emergency rehabilitation, fuels management activities, and rural fire assistance by the Department of the Interior, $851,945,000, to remain available until expended, of which not to exceed $10,000,000 shall be for the renovation or construction of fire facilities: *Provided*, That such funds are also available for repayment of advances to other appropriation accounts from which funds were previously transferred for such purposes: *Provided further*, That of the funds provided $180,000,000 is for hazardous fuels management activities: *Provided further*, That of the funds provided $20,470,000 is for burned area rehabilitation: *Provided further*, That persons hired pursuant to 43 U.S.C. 1469 may be furnished subsistence and lodging without cost from funds available from this appropriation: *Provided further*, That notwithstanding 42 U.S.C. 1856d, sums received by a bureau or office of the Department of the Interior for fire protection rendered pursuant to 42 U.S.C. 1856 et seq., protection of United States property, may be credited to the appropriation from which funds were expended to provide that protection, and are available without fiscal year limitation: *Provided further*, That using the amounts designated under this title of this Act, the Secretary of the Interior may enter into procurement contracts, grants, or cooperative agreements, for fuels management and resilient landscapes activities, and for training and monitoring associated with such fuels management and resilient landscapes activities, on Federal land, or on adjacent non-Federal land for activities that benefit resources on Federal land: *Provided further*, That the costs of implementing any cooperative agreement between the Federal Government and any non-Federal entity may be shared, as mutually agreed on by the affected parties: *Provided further*, That notwithstanding requirements of the Competition in Contracting Act, the Secretary, for purposes of fuels management and resilient landscapes activities, may obtain maximum practicable competition among: (1) local private, nonprofit, or cooperative entities; (2) Youth Conservation Corps crews, Public Lands Corps (Public Law 109–154), or related partnerships with State, local, or nonprofit youth groups; (3) small or micro-businesses; or (4) other entities that will hire or train locally a significant percentage, defined as 50 percent or more, of the project workforce to complete such contracts: *Provided further*, That in implementing this section, the Secretary shall develop written guidance to field units to ensure accountability and consistent application of the authorities provided herein: *Provided further*, That funds appropriated under this heading may be used to reimburse the United States Fish and Wildlife Service and the National Marine Fisheries Service for the costs of carrying out their responsibilities under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) to consult and conference, as required by section 7 of such Act, in connection with wildland fire management activities: *Provided further*, That the Secretary of the Interior may use wildland fire appropriations to enter into leases of real property with local governments, at or below fair market value, to construct capitalized improvements for fire facilities on such leased properties, including but not limited to fire guard stations, retardant stations, and other initial attack and fire support facilities, and to make advance payments for any such lease or for construction activity associated with the lease: *Provided further*, That the Secretary of the Interior and the Secretary of Agriculture may authorize the transfer of funds appropriated for wildland fire management, in an aggregate amount not to exceed $50,000,000, between the Departments when such transfers would facilitate and expedite wildland fire management programs and projects: *Provided further*, That funds provided for wildfire suppression shall be available for support of Federal emergency response actions: *Provided further*, That funds appropriated under this heading shall be available for assistance to or through the Department of State in connection with forest and rangeland research, technical information, and assistance in foreign countries, and, with the concurrence of the Secretary of State, shall be available to support forestry, wildland fire management, and related natural resource activities outside the United States and its territories and possessions, including technical assistance, education and training, and cooperation with United States and international organizations.

FLAME WILDFIRE SUPPRESSION RESERVE FUND

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses for large fire suppression operations of the Department of the Interior and as a reserve fund for suppression and Federal emergency response activities, $92,000,000, to remain available until expended: *Provided*, That such amounts are

only available for transfer to the ''Wildland Fire Management'' account following a declaration by the Secretary in accordance with section 502 of the FLAME Act of 2009 (43 U.S.C. 1748a).

CENTRAL HAZARDOUS MATERIALS FUND

For necessary expenses of the Department of the Interior and any of its component offices and bureaus for the response action, including associated activities, performed pursuant to the Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. 9601 et seq.), $10,010,000, to remain available until expended.

NATURAL RESOURCE DAMAGE ASSESSMENT AND RESTORATION

NATURAL RESOURCE DAMAGE ASSESSMENT FUND

To conduct natural resource damage assessment, restoration activities, and onshore oil spill preparedness by the Department of the Interior necessary to carry out the provisions of the Comprehensive Environmental Response, Compensation, and Liability Act (42 U.S.C. 9601 et seq.), the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.), the Oil Pollution Act of 1990 (33 U.S.C. 2701 et seq.), and subchapter II of chapter 1007 of title 54, United States Code, $7,767,000, to remain available until expended.

WORKING CAPITAL FUND

For the operation and maintenance of a departmental financial and business management system, information technology improvements of general benefit to the Department, cybersecurity, and the consolidation of facilities and operations throughout the Department, $67,100,000, to remain available until expended: *Provided*, That none of the funds appropriated in this Act or any other Act may be used to establish reserves in the Working Capital Fund account other than for accrued annual leave and depreciation of equipment without prior approval of the Committees on Appropriations of the House of Representatives and the Senate: *Provided further*, That the Secretary may assess reasonable charges to State, local and tribal government employees for training services provided by the National Indian Program Training Center, other than training related to Public Law 93–638: *Provided further*, That the Secretary may lease or otherwise provide space and related facilities, equipment or professional services of the National Indian Program Training Center to State, local and tribal government employees or persons or organizations engaged in cultural, educational, or recreational activities (as defined in section 3306(a) of title 40, United States Code) at the prevailing rate for similar space, facilities, equipment, or services in the vicinity of the National Indian Program Training Center: *Provided further*, That all funds received pursuant to the two preceding provisos shall be credited to this account, shall be available until expended, and shall be used by the Secretary for necessary expenses of the National Indian Program Training Center: *Provided further*, That the Secretary may enter into grants and cooperative agreements to support the Office of Natural Resource Revenue's collection and disbursement of royalties, fees, and other mineral revenue proceeds, as authorized by law.

ADMINISTRATIVE PROVISION

There is hereby authorized for acquisition from available resources within the Working Capital Fund, aircraft which may be obtained by donation, purchase or through available excess surplus property: *Provided*, That existing aircraft being replaced may be sold, with proceeds derived or trade-in value used to offset the purchase price for the replacement aircraft.

GENERAL PROVISIONS, DEPARTMENT OF THE INTERIOR

(INCLUDING TRANSFERS OF FUNDS)

EMERGENCY TRANSFER AUTHORITY—INTRA-BUREAU

SEC. 101. Appropriations made in this title shall be available for expenditure or transfer (within each bureau or office), with the approval of the Secretary, for the emergency reconstruction, replacement, or repair of aircraft, buildings, utilities, or other facilities or equipment damaged or destroyed by fire, flood, storm, or other unavoidable causes: *Provided*, That no funds shall be made available under this authority until funds specifically made available to the Department of the Interior for emergencies shall have been exhausted: *Provided further*, That all funds used pursuant to this section must be replenished by a supplemental appropriation, which must be requested as promptly as possible.

EMERGENCY TRANSFER AUTHORITY—DEPARTMENT-WIDE

SEC. 102. The Secretary may authorize the expenditure or transfer of any no year appropriation in this title, in addition to the amounts included in the budget programs of the several agencies, for the suppression or emergency prevention of wildland fires on or threatening lands under the jurisdiction of the Department of the Interior; for the emergency rehabilitation of burned-over lands under its jurisdiction; for emergency actions related to potential or actual earthquakes, floods, volcanoes, storms, or other unavoidable causes; for contingency planning subsequent to actual oil spills; for response and natural resource damage assessment activities related to actual oil spills or releases of hazardous substances into the environment; for the prevention, suppression, and control of actual or potential grasshopper and Mormon cricket outbreaks on lands under the jurisdiction of the Secretary, pursuant to the authority in section 417(b) of Public Law 106–224 (7 U.S.C. 7717(b)); for emergency reclamation projects under section 410 of Public Law 95–87; and shall transfer, from any no year funds available to the Office of Surface Mining Reclamation and Enforcement, such funds as may be necessary to permit assumption of regulatory authority in the event a primacy State is not carrying out the regulatory provisions of the Surface Mining Act: *Provided*, That appropriations made in this title for wildland fire operations shall be available for the payment of obligations incurred during the preceding fiscal year, and for reimbursement to other Federal agencies for destruction of vehicles, aircraft, or other equipment in connection with their use for wildland fire operations, such reimbursement to be credited to appropriations currently available at the time of receipt thereof: *Provided further*, That for wildland fire operations, no funds shall be made available under this authority until the Secretary determines that funds appropriated for ''wildland fire operations'' and ''FLAME Wildfire Suppression Reserve Fund'' shall be exhausted within 30 days: *Provided further*, That all funds used pursuant to this section must be replenished by a supplemental appropriation, which must be requested as promptly as possible: *Provided further*, That such replenishment funds shall be used to reimburse, on a pro rata basis, accounts from which emergency funds were transferred.

AUTHORIZED USE OF FUNDS

SEC. 103. Appropriations made to the Department of the Interior in this title shall be available for services as authorized by section 3109 of title 5, United States Code, when authorized by the Secretary, in total amount not to exceed $500,000; purchase and replacement of motor vehicles, including specially equipped law enforcement vehicles; hire, maintenance, and operation of aircraft; hire of passenger motor vehicles; purchase of reprints; payment for telephone service in private residences in the field, when authorized under regulations approved by the Secretary; and the payment of dues, when authorized by the Secretary, for library membership in societies or associations which issue publications to members only or at a price to members lower than to subscribers who are not members.

AUTHORIZED USE OF FUNDS, INDIAN TRUST MANAGEMENT

SEC. 104. Appropriations made in this Act under the headings Bureau of Indian Affairs and Bureau of Indian Education, and Office of the Special Trustee for American Indians and any unobligated balances from prior appropriations Acts made under the same headings shall be available for expenditure or transfer for Indian trust management and reform activities. Total funding for historical accounting activities shall not exceed amounts specifically designated in this Act for such purpose.

REDISTRIBUTION OF FUNDS, BUREAU OF INDIAN AFFAIRS

SEC. 105. Notwithstanding any other provision of law, the Secretary of the Interior is authorized to redistribute any Tribal Priority Allocation funds, including tribal base funds, to alleviate tribal funding inequities by transferring funds to address identified, unmet needs, dual enrollment, overlapping service areas or inaccurate distribution methodologies. No tribe shall receive a reduction in Tribal Priority Allocation funds of more than 10 percent in fiscal year 2017. Under circumstances of dual enrollment, overlapping service areas or inaccurate distribution methodologies, the 10 percent limitation does not apply.

ELLIS, GOVERNORS, AND LIBERTY ISLANDS

SEC. 106. Notwithstanding any other provision of law, the Secretary of the Interior is authorized to acquire lands, waters, or interests therein including the use of all or part of any pier, dock, or landing within the State of New York and the State of New Jersey, for the purpose of operating and maintaining facilities in the support of transportation and accommodation of visitors to Ellis, Governors, and Liberty Islands, and of other program and administrative activities, by donation or with appropriated funds, including franchise fees (and other monetary consideration), or by exchange; and the Secretary is authorized to negotiate and enter into leases, subleases, concession contracts or other agreements for the use of such facilities on such terms and conditions as the Secretary may determine reasonable.

OUTER CONTINENTAL SHELF INSPECTION FEES

SEC. 107. (a) In fiscal year 2017, the Secretary shall collect a nonrefundable inspection fee, which shall be deposited in the ''Offshore Safety and Environmental Enforcement'' account, from the designated operator for facilities subject to inspection under 43 U.S.C. 1348(c).

(b) Annual fees shall be collected for facilities that are above the waterline, excluding drilling rigs, and are in place at the start of the fiscal year. Fees for fiscal year 2017 shall be:

(1) $10,500 for facilities with no wells, but with processing equipment or gathering lines;

(2) $17,000 for facilities with 1 to 10 wells, with any combination of active or inactive wells; and

(3) $31,500 for facilities with more than 10 wells, with any combination of active or inactive wells.

(c) Fees for drilling rigs shall be assessed for all inspections completed in fiscal year 2017. Fees for fiscal year 2017 shall be:

(1) $30,500 per inspection for rigs operating in water depths of 500 feet or more; and

(2) $16,700 per inspection for rigs operating in water depths of less than 500 feet.

(d) The Secretary shall bill designated operators under subsection (b) within 60 days, with payment required within 30 days of billing. The Secretary shall bill designated operators under subsection (c) within 30 days of the end of the month in which the inspection occurred, with payment required within 30 days of billing.

BUREAU OF OCEAN ENERGY MANAGEMENT, REGULATION AND ENFORCEMENT REORGANIZATION

SEC. 108. The Secretary of the Interior, in order to implement a reorganization of the Bureau of Ocean Energy Management, Regulation and Enforcement, may transfer funds among and between the successor offices and bureaus affected by the reorganization only in conformance with the reprogramming guidelines described in this Act.

CONTRACTS AND AGREEMENTS FOR WILD HORSE AND BURRO HOLDING FACILITIES

SEC. 109. Notwithstanding any other provision of this Act, the Secretary of the Interior may enter into multiyear cooperative agreements with nonprofit organizations and other appropriate entities, and may enter into multiyear contracts in accordance with the provisions of section 3903 of title 41, United States Code (except that the 5-year term restriction in subsection (a) shall not apply), for the long-term care and maintenance of excess wild free roaming horses and burros by such organizations or entities on private land. Such cooperative agreements and contracts may not exceed 10 years, subject to renewal at the discretion of the Secretary.

MASS MARKING OF SALMONIDS

SEC. 110. The United States Fish and Wildlife Service shall, in carrying out its responsibilities to protect threatened and endangered species of salmon, implement a system of mass marking of salmonid stocks, intended for harvest, that are released from federally operated or federally financed hatcheries including but not limited to fish releases of coho, chinook, and steelhead species. Marked fish must have a visible mark that can be readily identified by commercial and recreational fishers.

EXHAUSTION OF ADMINISTRATIVE REVIEW

SEC. 111. Paragraph (1) of section 122(a) of division E of Public Law 112–74 (125 Stat. 1013) is amended by striking ''fiscal years 2012 through 2018,'' and inserting ''fiscal year 2012 and each fiscal year thereafter,''.

WILD LANDS FUNDING PROHIBITION

SEC. 112. None of the funds made available in this Act or any other Act may be used to implement, administer, or enforce Secretarial Order No. 3310 issued by the Secretary of the Interior on December 22, 2010.

CONTRACTS AND AGREEMENTS WITH INDIAN AFFAIRS

SEC. 113. Notwithstanding any other provision of law, during fiscal year 2017, in carrying out work involving cooperation with State, local, and tribal governments or any political subdivision thereof, Indian Affairs may record obligations against accounts receivable from any such entities, except that total obligations at the end of the fiscal year shall not exceed total budgetary resources available at the end of the fiscal year.

GREATER SAGE-GROUSE

SEC. 114. (a) None of the funds made available by this or any other Act may be used—

(1) to review the status of or determine whether the greater sage-grouse is an endangered species or a threatened species pursuant to section 4 of the Endangered Species Act of 1973 (16 U.S.C. 1533), or to issue a regulation with respect thereto that applies to any State with a State management plan;

(2) to make, modify, or extend any withdrawal pursuant to section 204 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1714) within any Sagebrush Focal Area published in the Federal Register on September 24, 2015 (80 Fed. Reg. 57635 et seq.), in a manner inconsistent with a State management plan; or

(3) to implement, amend, or otherwise modify any Federal resource management plan applicable to Federal land in a State with a State management plan, in a manner inconsistent with such State management plan.

(b) For the purposes of this section—

(1) the term ''Federal resource management plan'' means—

(A) a land use plan prepared by the Bureau of Land Management for public lands pursuant to section 202 of the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1712); or

(B) a land and resource management plan prepared by the Forest Service for National Forest System lands pursuant to section 6 of the Forest and Rangeland Renewable Resources Planning Act of 1974 (16 U.S.C. 1604);

(2) the term ''greater sage-grouse'' means the species *Centrocercus urophasianus* or the Columbia Basin distinct population segment of greater sage-grouse; and

(3) the term ''State management plan'' means a State-wide plan for the protection and recovery of greater sage-grouse that has been approved by the Governor of such State.

WATER CONVEYANCES

SEC. 115. None of the funds made available by this or any other Act may be used by the Secretary of the Interior to review, require approval of, or withhold approval for use of a right-of-way granted pursuant to the General Railroad Right-of-Way Act of 1875 (43 U.S.C. 934–939) if authorization of the use would have been considered under Department policy to be within the scope of a railroad's authority as of the day before the effective date of the Department's Solicitor's Opinion M–37025, issued on November 4, 2011.

INDIAN EDUCATION FUND

SEC. 116. Section 801 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 458ddd) is amended—

(1) by striking ''Foundation'' each place it appears and inserting ''Fund'';

(2) in subsection (a), by striking ''foundation'' and inserting ''fund'';

(3) in subsection (a), by adding at the end the following: ''The Fund shall be affiliated and may contract for services with a section 501(c)(3) national organization whose mission is to represent Native American students and educators for the improvement of schools and the education of Native children.'';

(4) In subsection (e)(1), by inserting ''or public'' after ''private'';

(5) in subsection (e)—

(A) in paragraph (2), by striking ''and'' at the end;

(B) in paragraph (3), by striking the period and inserting a semicolon; and

(C) by adding at the end the following:

''(4) to promote and facilitate public-private partnerships that maximize the involvement of the private sector, including nonprofit organizations and for-profit entities, in providing financial and in-kind support for the improvement or replacement of facilities and infrastructure and for the enhancement of telecommunications and technological capacity in Bureau-funded schools; and

''(5) to facilitate interagency agreements between the Department of the Interior and other Federal agencies in furtherance of the purposes of the Fund.'';

(6) in subsection (f)(2), by striking all that follows after the heading and inserting the following: ''The number of members of the Board, the manner of their selection (including the filling of vacancies), and their terms of office shall be as provided in the constitution and bylaws of the Fund. The Board shall have nine members, including the Secretary and the Assistant Secretary of the Interior for Indian Affairs who shall serve as ex officio nonvoting members and who shall appoint three voting members to staggered terms, and including the President and Executive Director of the 501(c)(3) national organization referenced in subsection (a) who shall serve as ex officio nonvoting members and who shall appoint two voting members to staggered terms.'';

(7) in subsection (f)(3), by striking ''are'' and all that follows through ''practicable,'' and inserting ''shall, to the extent practicable, be drawn from various disciplines related to the purposes of the Fund, and''; and

(8) in subsection (m)—

(A) in the heading, by inserting ''AND PROPERTY'' after ''FUNDS''; and

(B) by inserting ''and property'' after the first ''funds'' the first place it appears.

BLUE RIDGE NATIONAL HERITAGE AREA AND ERIE CANALWAY NATIONAL HERITAGE CORRIDOR

SEC. 117. (a) Section 140(i)(1) of Title I of P.L. 108–108, as amended (54 U.S.C. 320101 note), is further amended by striking ''$10,000,000'' and inserting ''$12,000,000''; and

(b) Section 810(a)(1) of Title VIII of Division B of Appendix D of P.L. 106–554, as amended (54 U.S.C. 320101 note), is further amended by striking ''$10,000,000'' and inserting ''$12,000,000''.

FISH HATCHERY PROGRAMS

SEC. 118. (a) IN GENERAL.—Not later than two years after the date of the enactment of this Act, the Secretary of the Interior, in consultation with the Director of the California Department of Fish and Wildlife, shall develop and implement the expanded use of conservation fish hatchery programs to enhance, supplement, and rebuild delta smelt (*Hypomesus transpacificus*) and other species listed as endangered species or threatened species under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.), under the biological opinion issued under that Act by the United States Fish and Wildlife Service, dated December 15, 2008, on the effects of the coordinated operations of the Central Valley Project and the State Water Project in California.

(b) PROGRAM DESIGN.—The conservation fish hatchery programs established under subsection (a) and their associated hatchery and genetic management plans shall be designed—

(1) to benefit, enhance, support, and otherwise recover naturally spawning fish species to the point where the measures under the Endangered Species Act of 1973 are no longer necessary for such species;

(2) to address the recommendations of the California Hatchery Scientific Review Group; and

(3) to minimize adverse effects to operations of the Central Valley Project and State Water Project (as those terms are used in the Central Valley Project Improvement Act of 2002 (title XXXIV of Public Law 102–575)).

(c) MISCELLANEOUS REQUIREMENTS.—In implementing this section, the Secretary—

(1) shall give priority to existing and prospective hatchery programs and facilities

within the Sacramento-San Joaquin Delta and the riverine tributaries thereto; and

(2) may enter into cooperative agreements for the operation of conservation hatchery programs with the State of California, tribes, and other non-Governmental entities for the benefit, enhancement, and support of naturally spawning fish species.

REISSUANCE OF FINAL RULES

SEC. 119. Before the end of the 60-day period beginning on the date of the enactment of this Act, the Secretary of the Interior shall reissue the final rule published on December 28, 2011 (76 Fed. Reg. 81666 et seq.) and the final rule published on September 10, 2012 (77 Fed. Reg. 55530 et seq.), without regard to any other provision of statute or regulation that applies to issuance of such rules. Such reissuances (including this section) shall not be subject to judicial review.

STREAM BUFFER

SEC. 120. None of the funds made available by this Act may be used by the Secretary to (1) further develop, finalize, carry out, or implement the proposed rule entitled ''Stream Protection Rule'' signed by the Assistant Secretary for Land and Minerals Management of the Department of the Interior on July 7, 2015 (80 Fed. Reg. 44436), or (2) develop, carry out, or implement any guidance, policy, or directive to reinterpret or change the historic interpretation of ''material damage to the hydrologic balance outside the permit area'' in section 510(b)(3) of the Surface Mining Control and Reclamation Act of 1977 (30 U.S.C. 1260(b)(3)), or 30 C.F.R. 816.57 or 30 C.F.R. 817.57, as promulgated on June 30, 1983 by the Office of Surface Mining Reclamation and Enforcement of the Department of the Interior (48 Fed. Reg. 30312).

BOTTLED WATER

SEC. 121. None of the funds made available by this Act may be used by the Director of the National Park Service to implement, administer, or enforce Policy Memorandum 11–03 or to approve a request by a park superintendent to eliminate the sale in national parks of water in disposable, recyclable plastic bottles.

OIL AND GAS ROYALTIES

SEC. 122. None of the funds made available by this Act may be used to finalize, implement, or enforce the Bureau of Land Management's proposed rule regarding Waste Prevention, Production Subject to Royalties, and Resource Conservation published February 8, 2016.

PROHIBITION ON USE OF FUNDS FOR CERTAIN HISTORIC DESIGNATION

SEC. 123. (a) IN GENERAL.—None of the funds made available in this Act may be used to take any action to designate a Federal property for inclusion on, or to add a Federal property to, the National Register of Historic Places, or to operate or maintain a property on that registry, if the managing agency of that Federal property objects to such designation or inclusion, including actions related to—

(1) cooperative agreements;

(2) general administration;

(3) maintenance of records and agreements; and

(4) any other functions necessary to designate, add, operate, or maintain such Federal property.

(b) EXCEPTION.—The prohibition in subsection (a) shall not apply to actions related to a managing agency request for expedited removal of Federal property from the National Register of Historic Places for reasons of national security.

DRILLING MARGINS

SEC. 124. None of the funds made available in this Act or any other Act for any fiscal year may be used to develop, adopt, implement, administer, or enforce any change to the regulations and guidance in effect on April 1, 2015, pertaining to drilling margins or static downhole mud weight (30 CFR 250.414(c)) including the provisions of the rules dated April 17, 2015, and April 29, 2016.

TRIBAL RECOGNITION

SEC. 125. None of the funds made available by this or any other Act may be used by the Secretary of the Interior to implement, administer, or enforce the final rule entitled ''Federal Acknowledgment of American Indian Tribes'' published by the Department of the Interior in the Federal Register on July 1, 2015 (80 Fed. Reg. 37862 et seq.).

ECHINODERMS

SEC. 126. Section 14.92(a)(1) of title 50, Code of Federal Regulations, is amended by inserting '', including echinoderms commonly known as sea urchins and sea cucumbers,'' after ''products''.

LIMITATION ON USE OF FUNDS FOR AIR QUALITY REGULATIONS

SEC. 127. (a) LIMITATION.—None of the funds made available by this Act or any other Act may be used by the Secretary of the Interior (referred to in this section as the ''Secretary'') to issue, finalize, or implement any final regulations addressing any subject of the proposed rule entitled ''Air Quality Control, Reporting, and Compliance'', published April 5, 2016 (81 Fed. Reg. 19717), before the date on which the Bureau of Ocean Energy Management—

(1) completes the two air modeling studies entitled ''Arctic Air Quality Impact Assessment Modeling (AK–13–01)'' and ''Air Quality Modeling in the Gulf of Mexico Region (GM–14–01)'', and publishes the results of such studies and all supporting data and documentation in a form available to the public;

(2) concludes, following peer review of such studies, publication of public notice, and 120 days of opportunity for public comment on the studies, that the activities expressly authorized under the Outer Continental Shelf Lands Act (43 U.S.C. 1331 et seq.) are significantly affecting the air quality of any State for purposes of compliance with the national ambient air quality standards, pursuant to, as required by section 5(a)(8) of such Act (43 U.S.C. 1334(a)(8)); and

(3) consults with the affected coastal states (as that term is used in that Act) on the results of such studies and analyses, and any actions that may be taken including any incremental burdens on such coastal states that may result.

(b) REPROPOSAL OF REGULATIONS.—The Secretary shall—

(1) before issuing any such final regulations—

(A) repropose the regulations; and

(B) provide a period of at least 180 days for the submission of public comment on such reproposed regulations; and

(2) delay the effective date of such final regulations for at least 180 days after the date they are published.

TRUST LAND

SEC. 128. All land taken into trust by the United States under or pursuant to the Act of June 18, 1934 (25 U.S.C. 465) before February 24, 2009, for the benefit of an Indian tribe that was federally recognized on the date that the land was taken into trust is hereby reaffirmed as trust land.

TITLE II

ENVIRONMENTAL PROTECTION AGENCY

SCIENCE AND TECHNOLOGY

For science and technology, including research and development activities, which shall include research and development activities under the Comprehensive Environmental Response, Compensation, and Liability Act of 1980; necessary expenses for personnel and related costs and travel expenses; procurement of laboratory equipment and supplies; and other operating expenses in support of research and development, $720,072,000, to remain available until September 30, 2018: *Provided*, That of the funds included under this heading, $10,000,000 shall be for Research: National Priorities as specified in the report accompanying this Act.

ENVIRONMENTAL PROGRAMS AND MANAGEMENT

For environmental programs and management, including necessary expenses, not otherwise provided for, for personnel and related costs and travel expenses; hire of passenger motor vehicles; hire, maintenance, and operation of aircraft; purchase of reprints; library memberships in societies or associations which issue publications to members only or at a price to members lower than to subscribers who are not members; administrative costs of the brownfields program under the Small Business Liability Relief and Brownfields Revitalization Act of 2002; and not to exceed $9,000 for official reception and representation expenses, $2,527,470,000, to remain available until September 30, 2018: *Provided*, That of the funds included under this heading, $15,000,000 shall be for Environmental Protection: National Priorities as specified in the report accompanying this Act: *Provided further*, That of the funds included under this heading, $409,709,000 shall be for Geographic Programs specified in the report accompanying this Act: *Provided further*, That the Administrator of the Environmental Protection Agency is authorized, in carrying out its responsibilities under section 2002(b) of the Solid Waste Disposal Act (42 U.S.C. 6912(b)), to use appropriations made available under this heading to evaluate the effectiveness of States using State solid waste management plans to ensure the efficient and effective implementation of the final regulations on coal combustion residuals that took effect on October 19, 2015, and codified in parts 257 and 261 of title 40 of the Code of Federal Regulations: *Provided further*, That the Administrator shall provide to the Committee on Appropriations and the appropriate authorizing Committees a report on the effectiveness of States using such plans in implementing the requirements of final coal combustion residual regulations in an efficient and effective manner.

HAZARDOUS WASTE ELECTRONIC MANIFEST SYSTEM FUND

For necessary expenses to carry out section 3024 of the Solid Waste Disposal Act (42 U.S.C. 6939g), including the development, operation, maintenance, and upgrading of the hazardous waste electronic manifest system established by such section, $3,178,000, to remain available until September 30, 2019.

OFFICE OF INSPECTOR GENERAL

For necessary expenses of the Office of Inspector General in carrying out the provisions of the Inspector General Act of 1978, $41,489,000, to remain available until September 30, 2018.

BUILDINGS AND FACILITIES

For construction, repair, improvement, extension, alteration, and purchase of fixed equipment or facilities of, or for use by, the Environmental Protection Agency, $34,467,000, to remain available until expended.

HAZARDOUS SUBSTANCE SUPERFUND

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses to carry out the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA), including sections 111(c)(3), (c)(5), (c)(6), and (e)(4) (42 U.S.C. 9611) $1,115,929,000,

to remain available until expended, consisting of such sums as are available in the Trust Fund on September 30, 2016, as authorized by section 517(a) of the Superfund Amendments and Reauthorization Act of 1986 (SARA) and up to $1,115,929,000 as a payment from general revenues to the Hazardous Substance Superfund for purposes as authorized by section 517(b) of SARA: *Provided*, That funds appropriated under this heading may be allocated to other Federal agencies in accordance with section 111(a) of CERCLA: *Provided further*, That of the funds appropriated under this heading, $8,778,000 shall be paid to the ''Office of Inspector General'' appropriation to remain available until September 30, 2018, and $15,496,000 shall be paid to the ''Science and Technology'' appropriation to remain available until September 30, 2018.

LEAKING UNDERGROUND STORAGE TANK TRUST FUND PROGRAM

For necessary expenses to carry out leaking underground storage tank cleanup activities authorized by subtitle I of the Solid Waste Disposal Act, $94,605,000, to remain available until expended, of which $68,016,000 shall be for carrying out leaking underground storage tank cleanup activities authorized by section 9003(h) of the Solid Waste Disposal Act; $26,589,000 shall be for carrying out the other provisions of the Solid Waste Disposal Act specified in section 9508(c) of the Internal Revenue Code: *Provided*, That the Administrator is authorized to use appropriations made available under this heading to implement section 9013 of the Solid Waste Disposal Act to provide financial assistance to federally recognized Indian tribes for the development and implementation of programs to manage underground storage tanks.

INLAND OIL SPILL PROGRAMS

For expenses necessary to carry out the Environmental Protection Agency's responsibilities under the Oil Pollution Act of 1990, $18,079,000, to be derived from the Oil Spill Liability trust fund, to remain available until expended.

STATE AND TRIBAL ASSISTANCE GRANTS

For environmental programs and infrastructure assistance, including capitalization grants for State revolving funds and performance partnership grants, $3,370,729,000, to remain available until expended, of which—

(1) $1,000,000,000 shall be for making capitalization grants for the Clean Water State Revolving Funds under title VI of the Federal Water Pollution Control Act; and of which $1,070,500,000 shall be for making capitalization grants for the Drinking Water State Revolving Funds under section 1452 of the Safe Drinking Water Act: *Provided*, That for fiscal year 2017, funds made available under this title to each State for Clean Water State Revolving Fund capitalization grants and for Drinking Water State Revolving Fund capitalization grants may, at the discretion of each State, be used for projects to address green infrastructure, water or energy efficiency improvements, or other environmentally innovative activities: *Provided further*, That notwithstanding section 603(d)(7) of the Federal Water Pollution Control Act, the limitation on the amounts in a State water pollution control revolving fund that may be used by a State to administer the fund shall not apply to amounts included as principal in loans made by such fund in fiscal year 2017 and prior years where such amounts represent costs of administering the fund to the extent that such amounts are or were deemed reasonable by the Administrator, accounted for separately from other assets in the fund, and used for eligible purposes of the fund, including administration: *Provided further*, That for fiscal year 2017, notwithstanding the provisions of sections 201(g)(1), (h), and (l) of the Federal Water Pollution Control Act, grants under Title II of the Federal Water Pollution Control Act for American Samoa, Guam, the Commonwealth of the Northern Marianas, the United States Virgin Islands, and the District of Columbia may also be made for the purpose of providing assistance: (1) solely for facility plans, design activities, or plans, specification, and estimates for any proposed project for the construction of treatment works; and (2) for the construction, repair, or replacement of privately owned treatment works serving one or more principal residences or small commercial establishments; *Provided further*, That for fiscal year 2017, notwithstanding the provisions of 201(g)(1), (h), and (l) and section 518(c) of the Federal Water Pollution Control Act, funds reserved by the Administrator for grants under section 518(c) of the Federal Water Pollution Control Act may also be used to provide assistance: (1) solely for facility plans, design activities, or plans, specifications, and estimates for any proposed project for the construction of treatment works; and (2) for the construction, repair, or replacement of privately owned treatment works serving one or more principal residences or small commercial establishments; Funds reserved under section 518(c) of such Act shall be available for grants only to Indian tribes, as defined in section 518(h) of such Act and former Indian reservations in Oklahoma (as defined by the Secretary of the Interior) and Native Villages (as defined in Public Law 92–203): *Provided further*, That for fiscal year 2017, notwithstanding any provision of the Clean Water Act and regulations issued pursuant thereof, up to a total of $2,000,000 of the funds reserved by the Administrator for grants under section 518(c) of the Federal Water Pollution Control Act may also be used for grants for training, technical assistance, and educational programs relating to the operation and management of the treatment works specified in section 518(c) of such Act; Funds reserved under section 518(c) of such Act shall be available for grants only to Indian tribes, as defined in section 518(h) of such Act and former Indian reservations in Oklahoma (as determined by the Secretary of the Interior) and Native Villages (as defined in Public Law 92–203): *Provided further*, That for fiscal year 2017, notwithstanding the limitation on amounts in section 518(c) of the Federal Water Pollution Control Act, up to a total of 2 percent of the funds appropriated, or $30,000,000, whichever is greater, and notwithstanding the limitation on amounts in section 1452(i) of the Safe Drinking Water Act, up to a total of 2 percent of the funds appropriated, or $20,000,000, whichever is greater, for State Revolving Funds under such Acts may be reserved by the Administrator for grants under section 518(c) and section 1452(i) of such Acts: *Provided further*, That for fiscal year 2017, notwithstanding the amounts specified in section 205(c) of the Federal Water Pollution Control Act, up to 1.5 percent of the aggregate funds appropriated for the Clean Water State Revolving Fund program under the Act less any sums reserved under section 518(c) of the Act, may be reserved by the Administrator for grants made under title II of the Federal Water Pollution Control Act for American Samoa, Guam, the Commonwealth of the Northern Marianas, and United States Virgin Islands: *Provided further*, That for fiscal year 2017, notwithstanding the limitations on amounts specified in section 1452(j) of the Safe Drinking Water Act, up to 1.5 percent of the funds appropriated for the Drinking Water State Revolving Fund programs under the Safe Drinking Water Act may be reserved by the Administrator for grants made under section 1452(j) of the Safe Drinking Water Act: *Provided further*, That 10 percent of the funds made available under this title to each State for Clean Water State Revolving Fund capitalization grants and 20 percent of the funds made available under this title to each State for Drinking Water State Revolving Fund capitalization grants shall be used by the State to provide additional subsidy to eligible recipients in the form of forgiveness of principal, negative interest loans, or grants (or any combination of these), and shall be so used by the State only where such funds are provided as initial financing for an eligible recipient or to buy, refinance, or restructure the debt obligations of eligible recipients where such debt was incurred on or after the date of enactment of this Act, or where such debt was incurred prior to the date of enactment of this Act if the State, with concurrence from the Administrator, determines that such funds could be used to help address a threat to public health from heightened exposure to lead in drinking water;

(2) $5,000,000 shall be for architectural, engineering, planning, design, construction and related activities in connection with the construction of high priority water and wastewater facilities in the area of the United States-Mexico Border, after consultation with the appropriate border commission; *Provided*, That no funds provided by this appropriations Act to address the water, wastewater and other critical infrastructure needs of the colonias in the United States along the United States-Mexico border shall be made available to a county or municipal government unless that government has established an enforceable local ordinance, or other zoning rule, which prevents in that jurisdiction the development or construction of any additional colonia areas, or the development within an existing colonia the construction of any new home, business, or other structure which lacks water, wastewater, or other necessary infrastructure;

(3) $17,000,000 shall be for grants to the State of Alaska to address drinking water and wastewater infrastructure needs of rural and Alaska Native Villages: *Provided*, That of these funds: (A) the State of Alaska shall provide a match of 25 percent; (B) no more than 5 percent of the funds may be used for administrative and overhead expenses; and (C) the State of Alaska shall make awards consistent with the Statewide priority list established in conjunction with the Agency and the U.S. Department of Agriculture for all water, sewer, waste disposal, and similar projects carried out by the State of Alaska that are funded under section 221 of the Federal Water Pollution Control Act (33 U.S.C. 1301) or the Consolidated Farm and Rural Development Act (7 U.S.C. 1921 et seq.) which shall allocate not less than 25 percent of the funds provided for projects in regional hub communities;

(4) $80,000,000 shall be to carry out section 104(k) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA), including grants, interagency agreements, and associated program support costs: *Provided*, That not more than 25 percent of the amount appropriated to carry out section 104(k) of CERCLA shall be used for site characterization, assessment, and remediation of facilities described in section 101(39)(D)(ii)(II) of CERCLA: *Provided further*, That at least 10 percent shall be allocated for assistance in persistent poverty counties: *Provided further*, That for purposes of this section, the term ''persistent poverty counties'' means any county that has had 20 percent or more of its population living in poverty over the past 30 years, as measured

by the 1990 and 2000 decennial censuses and the most recent Small Area Income and Poverty Estimates;

(5) $100,000,000 shall be for grants under title VII, subtitle G of the Energy Policy Act of 2005;

(6) $40,000,000 shall be for targeted airshed grants in accordance with the terms and conditions of the report accompanying this Act; and

(7) $1,058,229,000 shall be for grants, including associated program support costs, to States, federally recognized tribes, interstate agencies, tribal consortia, and air pollution control agencies for multi-media or single media pollution prevention, control and abatement and related activities, including activities pursuant to the provisions set forth under this heading in Public Law 104–134, and for making grants under section 103 of the Clean Air Act for particulate matter monitoring and data collection activities subject to terms and conditions specified by the Administrator, of which: $47,745,000 shall be for carrying out section 128 of CERCLA; $9,646,000 shall be for Environmental Information Exchange Network grants, including associated program support costs; $1,498,000 shall be for grants to States under section 2007(f)(2) of the Solid Waste Disposal Act, which shall be in addition to funds appropriated under the heading ''Leaking Underground Storage Tank Trust Fund Program'' to carry out the provisions of the Solid Waste Disposal Act specified in section 9508(c) of the Internal Revenue Code other than section 9003(h) of the Solid Waste Disposal Act; $17,848,000 of the funds available for grants under section 106 of the Federal Water Pollution Control Act shall be for State participation in national- and State-level statistical surveys of water resources and enhancements to State monitoring programs.

WATER INFRASTRUCTURE FINANCE AND INNOVATION PROGRAM ACCOUNT

For the cost of direct loans and for the cost of guaranteed loans, as authorized by the Water Infrastructure Finance and Innovation Act of 2014, $45,000,000, to remain available until expended: *Provided*, That such costs, including the cost of modifying such loans, shall be as defined in section 502 of the Congressional Budget Act of 1974: *Provided further*, That these funds are available to subsidize gross obligations for the principal amount of direct loans, including capitalized interest, and total loan principal, including capitalized interest, any part of which is to be guaranteed, not to exceed $5,487,000,000.

In addition, fees authorized to be collected pursuant to sections 5029 and 5030 of the Water Infrastructure Finance and Innovation Act of 2014 shall be deposited in this account to remain available until expended.

In addition, for administrative expenses to carry out the direct and guaranteed loan programs, notwithstanding section 5033 of the Water Infrastructure Finance and Innovation Act of 2014, $5,000,000, to remain available until September 30, 2018.

ADMINISTRATIVE PROVISIONS—ENVIRONMENTAL PROTECTION AGENCY

(INCLUDING TRANSFERS OF FUNDS)

For fiscal year 2017, notwithstanding 31 U.S.C. 6303(1) and 6305(1), the Administrator of the Environmental Protection Agency, in carrying out the Agency's function to implement directly Federal environmental programs required or authorized by law in the absence of an acceptable tribal program, may award cooperative agreements to federally recognized Indian tribes or Intertribal consortia, if authorized by their member tribes, to assist the Administrator in implementing Federal environmental programs for Indian tribes required or authorized by law, except that no such cooperative agreements may be awarded from funds designated for State financial assistance agreements.

The Administrator of the Environmental Protection Agency is authorized to collect and obligate pesticide registration service fees in accordance with section 33 of the Federal Insecticide, Fungicide, and Rodenticide Act, as amended by Public Law 112–177, the Pesticide Registration Improvement Extension Act of 2012.

Notwithstanding section 33(d)(2) of the Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA) (7 U.S.C. 136w-8(d)(2)), the Administrator of the Environmental Protection Agency may assess fees under section 33 of FIFRA (7 U.S.C. 136w-8) for fiscal year 2017.

The Administrator is authorized to transfer up to $300,000,000 of the funds appropriated for the Great Lakes Restoration Initiative under the heading ''Environmental Programs and Management'' to the head of any Federal department or agency, with the concurrence of such head, to carry out activities that would support the Great Lakes Restoration Initiative and Great Lakes Water Quality Agreement programs, projects, or activities; to enter into an interagency agreement with the head of such Federal department or agency to carry out these activities; and to make grants to governmental entities, nonprofit organizations, institutions, and individuals for planning, research, monitoring, outreach, and implementation in furtherance of the Great Lakes Restoration Initiative and the Great Lakes Water Quality Agreement.

The Science and Technology, Environmental Programs and Management, Office of Inspector General, Hazardous Substance Superfund, and Leaking Underground Storage Tank Trust Fund Program Accounts, are available for the construction, alteration, repair, rehabilitation, and renovation of facilities provided that the cost does not exceed $150,000 per project.

The Administrator of the Environmental Protection Agency shall base agency policies and actions regarding air emissions from forest biomass including, but not limited to, air emissions from facilities that combust forest biomass for energy, on the principle that forest biomass emissions do not increase overall carbon dioxide accumulations in the atmosphere when USDA Forest Inventory and Analysis data show that forest carbon stocks in the U.S. are stable or increasing on a national scale, or when forest biomass is derived from mill residuals, harvest residuals or forest management activities. Such policies and actions shall not pre-empt existing authorities of States to determine how to utilize biomass as a renewable energy source and shall not inhibit States' authority to apply the same policies to forest biomass as other renewable fuels in implementing Federal law.

The Administrator of the Environmental Protection Agency shall apply the criteria and procedures in effect as of the date of enactment of this Act for aquifer exemptions under the underground injection control regulatory framework, in a collaborative manner with the States and regulated industries, to promptly review and make decisions on all aquifer exemption applications using the criteria for exempted aquifers set forth in section 146.4 of title 40, Code of Federal Regulations (as in effect on April 1, 2016). The Administrator shall not use substantial program revisions for purposes of reviewing and making decisions on aquifer exemption applications involving underground injection authorized by permit, provided the injection is occurring into aquifers that meet the criteria for an exemption under such section 146.4 and the recommendations of key State resource agencies are taken in account.

For fiscal year 2017, and notwithstanding section 518(f) of the Federal Water Pollution Control Act (33 U.S.C. 1377(f)), the Administrator is authorized to use the amounts appropriated for any fiscal year under section 319 of the Act to make grants to federally recognized Indian tribes pursuant to sections 319(h) and 518(e) of that Act.

TITLE III

RELATED AGENCIES

DEPARTMENT OF AGRICULTURE

FOREST SERVICE

FOREST AND RANGELAND RESEARCH

For necessary expenses of forest and rangeland research as authorized by law, $291,982,000, to remain available through September 30, 2019: *Provided*, That of the funds provided, $77,000,000 is for the forest inventory and analysis program.

STATE AND PRIVATE FORESTRY

For necessary expenses of cooperating with and providing technical and financial assistance to States, territories, possessions, and others, and for forest health management, including treatments of pests, pathogens, and invasive or noxious plants and for restoring and rehabilitating forests damaged by pests or invasive plants, cooperative forestry, and education and land conservation activities and conducting an international program as authorized, $244,038,000, to remain available through September 30, 2018, as authorized by law, of which $55,000,000 is to be derived from the Land and Water Conservation Fund to be used for the Forest Legacy Program, to remain available until expended.

NATIONAL FOREST SYSTEM

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses of the Forest Service, not otherwise provided for, for management, protection, improvement, and utilization of the National Forest System, $1,531,443,000, to remain available through September 30, 2018: *Provided*, That of the funds provided, $40,000,000 shall be deposited in the Collaborative Forest Landscape Restoration Fund for ecological restoration treatments as authorized by 16 U.S.C. 7303(f): *Provided further*, That of the funds provided, $384,805,000 shall be for forest products: *Provided further*, That of the funds provided, up to $159,941,000 is for the Integrated Resource Restoration pilot program for Region 1, Region 2, Region 3, Region 4, and Region 5: *Provided further*, That of the funds provided for forest products, up to $161,560,000 may be transferred to support the Integrated Resource Restoration pilot program in the preceding proviso: *Provided further*, That the Secretary of Agriculture may transfer to the Secretary of the Interior any unobligated funds appropriated in a previous fiscal year for operation of the Valles Caldera National Preserve.

CAPITAL IMPROVEMENT AND MAINTENANCE

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses of the Forest Service, not otherwise provided for, $364,164,000, to remain available through September 30, 2018, for construction, capital improvement, maintenance and acquisition of buildings and other facilities and infrastructure; and for construction, reconstruction, decommissioning of roads that are no longer needed, including unauthorized roads that are not part of the transportation system, and maintenance of forest roads and trails by the Forest Service as authorized by 16 U.S.C. 532–538 and 23 U.S.C. 101 and 205: *Provided*, That $40,000,000 shall be designated for urgently

needed road decommissioning, road and trail repair and maintenance and associated activities, and removal of fish passage barriers, especially in areas where Forest Service roads may be contributing to water quality problems in streams and water bodies which support threatened, endangered, or sensitive species or community water sources: *Provided further*, That funds becoming available in fiscal year 2017 under the Act of March 4, 1913 (16 U.S.C. 501) shall be transferred to the General Fund of the Treasury and shall not be available for transfer or obligation for any other purpose unless the funds are appropriated: *Provided further*, That of the funds provided for decommissioning of roads, up to $24,543,000 may be transferred to the ''National Forest System'' to support the Integrated Resource Restoration pilot program.

LAND ACQUISITION

For expenses necessary to carry out the provisions of chapter 2003 of title 54, United States Code, including administrative expenses, and for acquisition of land or waters, or interest therein, in accordance with statutory authority applicable to the Forest Service, $27,280,000, to be derived from the Land and Water Conservation Fund and to remain available until expended.

ACQUISITION OF LANDS FOR NATIONAL FORESTS SPECIAL ACTS

For acquisition of lands within the exterior boundaries of the Cache, Uinta, and Wasatch National Forests, Utah; the Toiyabe National Forest, Nevada; and the Angeles, San Bernardino, Sequoia, and Cleveland National Forests, California, as authorized by law, $950,000, to be derived from forest receipts.

ACQUISITION OF LANDS TO COMPLETE LAND EXCHANGES

For acquisition of lands, such sums, to be derived from funds deposited by State, county, or municipal governments, public school districts, or other public school authorities, and for authorized expenditures from funds deposited by non-Federal parties pursuant to Land Sale and Exchange Acts, pursuant to the Act of December 4, 1967 (16 U.S.C. 484a), to remain available through September 30, 2018, (16 U.S.C. 516–617a, 555a; Public Law 96–586; Public Law 76–589, 76–591; and Public Law 78–310).

RANGE BETTERMENT FUND

For necessary expenses of range rehabilitation, protection, and improvement, 50 percent of all moneys received during the prior fiscal year, as fees for grazing domestic livestock on lands in National Forests in the 16 Western States, pursuant to section 401(b)(1) of Public Law 94–579, to remain available through September 30, 2018, of which not to exceed 6 percent shall be available for administrative expenses associated with on-the-ground range rehabilitation, protection, and improvements.

GIFTS, DONATIONS AND BEQUESTS FOR FOREST AND RANGELAND RESEARCH

For expenses authorized by 16 U.S.C. 1643(b), $45,000, to remain available through September 30, 2018, to be derived from the fund established pursuant to the above Act.

MANAGEMENT OF NATIONAL FOREST LANDS FOR SUBSISTENCE USES

For necessary expenses of the Forest Service to manage Federal lands in Alaska for subsistence uses under title VIII of the Alaska National Interest Lands Conservation Act (Public Law 96–487), $2,500,000, to remain available through September 30, 2018.

WILDLAND FIRE MANAGEMENT

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses for forest fire presuppression activities on National Forest System lands, for emergency fire suppression on or adjacent to such lands or other lands under fire protection agreement, hazardous fuels management on or adjacent to such lands, emergency rehabilitation of burned-over National Forest System lands and water, and for State and volunteer fire assistance, $2,593,763,000, to remain available through September 30, 2019: *Provided*, That such funds including unobligated balances under this heading, are available for repayment of advances from other appropriations accounts previously transferred for such purposes: *Provided further*, That such funds shall be available to reimburse State and other cooperating entities for services provided in response to wildfire and other emergencies or disasters to the extent such reimbursements by the Forest Service for non-fire emergencies are fully repaid by the responsible emergency management agency: *Provided further*, That notwithstanding any other provision of law, $6,914,000 of funds appropriated under this appropriation shall be available for the Forest Service in support of fire science research authorized by the Joint Fire Science Program, including all Forest Service authorities for the use of funds, such as contracts, grants, research joint venture agreements, and cooperative agreements: *Provided further*, That all authorities for the use of funds, including the use of contracts, grants, and cooperative agreements, available to execute the Forest and Rangeland Research appropriation, are also available in the utilization of these funds for Fire Science Research: *Provided further*, That funds provided shall be available for emergency rehabilitation and restoration, hazardous fuels management activities, support to Federal emergency response, and wildfire suppression activities of the Forest Service: *Provided further*, That of the funds provided, $395,000,000 is for hazardous fuels management activities, $19,795,000 is for research activities and to make competitive research grants pursuant to the Forest and Rangeland Renewable Resources Research Act, (16 U.S.C. 1641 et seq.), $78,000,000 is for State fire assistance, and $13,000,000 is for volunteer fire assistance under section 10 of the Cooperative Forestry Assistance Act of 1978 (16 U.S.C. 2106): *Provided further*, That amounts in this paragraph may be transferred to the ''National Forest System'', and ''Forest and Rangeland Research'' accounts to fund forest and rangeland research, the Joint Fire Science Program, vegetation and watershed management, heritage site rehabilitation, and wildlife and fish habitat management and restoration: *Provided further*, That of the funds provided, $65,000,000 shall be available for the purpose of acquiring aircraft for the next-generation airtanker fleet to enhance firefighting mobility, effectiveness, efficiency, and safety, and such aircraft shall be suitable for contractor operation over the terrain and forest ecosystems characteristic of National Forest System lands, as determined by the Chief of the Forest Service: *Provided further*, That the costs of implementing any cooperative agreement between the Federal Government and any non-Federal entity may be shared, as mutually agreed on by the affected parties: *Provided further*, That the funds provided herein may be used by the Secretary of Agriculture to enter into procurement contracts or cooperative agreements or to issue grants for hazardous fuels management activities and for training or monitoring associated with such hazardous fuels management activities on Federal land or on non-Federal land if the Secretary determines such activities benefit resources on Federal land: *Provided further*, That funds made available to implement the Community Forest Restoration Act, Public Law 106–393, title VI, shall be available for use on non-Federal lands in accordance with authorities made available to the Forest Service under the ''State and Private Forestry'' appropriation: *Provided further*, That the Secretary of the Interior and the Secretary of Agriculture may authorize the transfer of funds appropriated for wildland fire management, in an aggregate amount not to exceed $50,000,000, between the Departments when such transfers would facilitate and expedite wildland fire management programs and projects: *Provided further*, That of the funds provided for hazardous fuels management, not to exceed $5,000,000 may be used to make grants, using any authorities available to the Forest Service under the ''State and Private Forestry'' appropriation, for the purpose of creating incentives for increased use of biomass from National Forest System lands: *Provided further*, That funds designated for wildfire suppression, including funds transferred from the ''FLAME Wildfire Suppression Reserve Fund'', shall be assessed for cost pools on the same basis as such assessments are calculated against other agency programs: *Provided further*, That of the funds for hazardous fuels management, up to $46,653,000 may be transferred to the ''National Forest System'' to support the Integrated Resource Restoration pilot program.

FLAME WILDFIRE SUPPRESSION RESERVE FUND

(INCLUDING TRANSFERS OF FUNDS)

For necessary expenses for large fire suppression operations of the Department of Agriculture and as a reserve fund for suppression and Federal emergency response activities, $315,000,000, to remain available until expended: *Provided*, That such amounts are only available for transfer to the ''Wildland Fire Management'' account following a declaration by the Secretary in accordance with section 502 of the FLAME Act of 2009 (43 U.S.C. 1748a).

ADMINISTRATIVE PROVISIONS—FOREST SERVICE

(INCLUDING TRANSFERS OF FUNDS)

Appropriations to the Forest Service for the current fiscal year shall be available for: (1) purchase of passenger motor vehicles; acquisition of passenger motor vehicles from excess sources, and hire of such vehicles; purchase, lease, operation, maintenance, and acquisition of aircraft to maintain the operable fleet for use in Forest Service wildland fire programs and other Forest Service programs; notwithstanding other provisions of law, existing aircraft being replaced may be sold, with proceeds derived or trade-in value used to offset the purchase price for the replacement aircraft; (2) services pursuant to 7 U.S.C. 2225, and not to exceed $100,000 for employment under 5 U.S.C. 3109; (3) purchase, erection, and alteration of buildings and other public improvements (7 U.S.C. 2250); (4) acquisition of land, waters, and interests therein pursuant to 7 U.S.C. 428a; (5) for expenses pursuant to the Volunteers in the National Forest Act of 1972 (16 U.S.C. 558a, 558d, and 558a note); (6) the cost of uniforms as authorized by 5 U.S.C. 5901–5902; and (7) for debt collection contracts in accordance with 31 U.S.C. 3718(c).

Any appropriations or funds available to the Forest Service may be transferred to the Wildland Fire Management appropriation for forest firefighting, emergency rehabilitation of burned-over or damaged lands or waters under its jurisdiction, and fire preparedness due to severe burning conditions upon the Secretary's notification of the House and Senate Committees on Appropriations that all fire suppression funds appropriated under the headings ''Wildland Fire Management'' and ''FLAME Wildfire Suppression Reserve Fund'' will be obligated within 30 days: *Provided*, That all funds used pursuant to this

paragraph must be replenished by a supplemental appropriation which must be requested as promptly as possible.

Funds appropriated to the Forest Service shall be available for assistance to or through the Agency for International Development in connection with forest and rangeland research, technical information, and assistance in foreign countries, and shall be available to support forestry and related natural resource activities outside the United States and its territories and possessions, including technical assistance, education and training, and cooperation with U.S., private, and international organizations. The Forest Service, acting for the International Program, may sign direct funding agreements with foreign governments and institutions as well as other domestic agencies (including the U.S. Agency for International Development, the Department of State, and the Millennium Challenge Corporation), U.S. private sector firms, institutions and organizations to provide technical assistance and training programs overseas on forestry and rangeland management.

Funds appropriated to the Forest Service shall be available for expenditure or transfer to the Department of the Interior, Bureau of Land Management, for removal, preparation, and adoption of excess wild horses and burros from National Forest System lands, and for the performance of cadastral surveys to designate the boundaries of such lands.

None of the funds made available to the Forest Service in this Act or any other Act with respect to any fiscal year shall be subject to transfer under the provisions of section 702(b) of the Department of Agriculture Organic Act of 1944 (7 U.S.C. 2257), section 442 of Public Law 106–224 (7 U.S.C. 7772), or section 10417(b) of Public Law 107–171 (7 U.S.C. 8316(b)).

None of the funds available to the Forest Service may be reprogrammed without the advance approval of the House and Senate Committees on Appropriations in accordance with the reprogramming procedures contained in this Act.

Not more than $82,000,000 of funds available to the Forest Service shall be transferred to the Working Capital Fund of the Department of Agriculture and not more than $14,500,000 of funds available to the Forest Service shall be transferred to the Department of Agriculture for Department Reimbursable Programs, commonly referred to as Greenbook charges. Nothing in this paragraph shall prohibit or limit the use of reimbursable agreements requested by the Forest Service in order to obtain services from the Department of Agriculture's National Information Technology Center and the Department of Agriculture's International Technology Service.

Of the funds available to the Forest Service, up to $5,000,000 shall be available for priority projects within the scope of the approved budget, which shall be carried out by the Youth Conservation Corps and shall be carried out under the authority of the Public Lands Corps Act of 1993, Public Law 103–82, as amended by Public Lands Corps Healthy Forests Restoration Act of 2005, Public Law 109–154.

Of the funds available to the Forest Service, $4,000 is available to the Chief of the Forest Service for official reception and representation expenses.

Pursuant to sections 405(b) and 410(b) of Public Law 101–593, of the funds available to the Forest Service, up to $3,000,000 may be advanced in a lump sum to the National Forest Foundation to aid conservation partnership projects in support of the Forest Service mission, without regard to when the Foundation incurs expenses, for projects on or benefitting National Forest System lands or related to Forest Service programs: *Provided*, That of the Federal funds made available to the Foundation, no more than $300,000 shall be available for administrative expenses: *Provided further*, That the Foundation shall obtain, by the end of the period of Federal financial assistance, private contributions to match on at least one-for-one basis funds made available by the Forest Service: *Provided further*, That the Foundation may transfer Federal funds to a Federal or a non-Federal recipient for a project at the same rate that the recipient has obtained the non-Federal matching funds.

Pursuant to section 2(b)(2) of Public Law 98–244, up to $3,000,000 of the funds available to the Forest Service may be advanced to the National Fish and Wildlife Foundation in a lump sum to aid cost-share conservation projects, without regard to when expenses are incurred, on or benefitting National Forest System lands or related to Forest Service programs: *Provided*, That such funds shall be matched on at least a one-for-one basis by the Foundation or its sub-recipients: *Provided further*, That the Foundation may transfer Federal funds to a Federal or non-Federal recipient for a project at the same rate that the recipient has obtained the non-Federal matching funds.

Funds appropriated to the Forest Service shall be available for interactions with and providing technical assistance to rural communities and natural resource-based businesses for sustainable rural development purposes.

Funds appropriated to the Forest Service shall be available for payments to counties within the Columbia River Gorge National Scenic Area, pursuant to section 14(c)(1) and (2), and section 16(a)(2) of Public Law 99–663.

Any funds appropriated to the Forest Service may be used to meet the non-Federal share requirement in section 502(c) of the Older Americans Act of 1965 (42 U.S.C. 3056(c)(2)).

Funds available to the Forest Service, not to exceed $65,000,000, shall be assessed for the purpose of performing fire, administrative and other facilities maintenance and decommissioning. Such assessments shall occur using a square foot rate charged on the same basis the agency uses to assess programs for payment of rent, utilities, and other support services.

Notwithstanding any other provision of law, any appropriations or funds available to the Forest Service not to exceed $500,000 may be used to reimburse the Office of the General Counsel (OGC), Department of Agriculture, for travel and related expenses incurred as a result of OGC assistance or participation requested by the Forest Service at meetings, training sessions, management reviews, land purchase negotiations and similar nonlitigation-related matters. Future budget justifications for both the Forest Service and the Department of Agriculture should clearly display the sums previously transferred and the requested funding transfers.

An eligible individual who is employed in any project funded under title V of the Older Americans Act of 1965 (42 U.S.C. 3056 et seq.) and administered by the Forest Service shall be considered to be a Federal employee for purposes of chapter 171 of title 28, United States Code.

Notwithstanding any other provision of this Act, through the Office of Budget and Program Analysis, the Forest Service shall report no later than 30 business days following the close of each fiscal quarter all current and prior year unobligated balances, by fiscal year, budget line item and account, to the House and Senate Committees on Appropriations.

Funds appropriated to the Forest Service shall be available to categorically exclude from documentation in an environmental assessment or an environmental impact statement under the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.) a forest management activity on National Forest System lands when the primary purpose of the forest management activity is: (1) to address an insect or disease infestation; (2) to reduce hazardous fuel loads; (3) to protect a municipal water source; (4) to maintain, enhance, or modify critical habitat to protect it from catastrophic disturbances; (5) to increase water yield; or (6) any combination of these purposes: *Provided*, That the land on which the forest management activity is carried out may not exceed 3,000 acres.

DEPARTMENT OF HEALTH AND HUMAN SERVICES

INDIAN HEALTH SERVICE

INDIAN HEALTH SERVICES

For expenses necessary to carry out the Act of August 5, 1954 (68 Stat. 674), the Indian Self-Determination and Education Assistance Act, the Indian Health Care Improvement Act, and titles II and III of the Public Health Service Act with respect to the Indian Health Service, $3,720,690,000, together with payments received during the fiscal year pursuant to 42 U.S.C. 238(b) and 238b, for services furnished by the Indian Health Service: *Provided*, That funds made available to tribes and tribal organizations through contracts, grant agreements, or any other agreements or compacts authorized by the Indian Self-Determination and Education Assistance Act of 1975 (25 U.S.C. 450), shall be deemed to be obligated at the time of the grant or contract award and thereafter shall remain available to the tribe or tribal organization without fiscal year limitation: *Provided further*, That $960,831,000 for Purchased/Referred Care, including $53,000,000 for the Indian Catastrophic Health Emergency Fund, shall remain available until expended: *Provided further*, That of the funds provided, up to $37,000,000 shall remain available until expended for implementation of the loan repayment program under section 108 of the Indian Health Care Improvement Act: *Provided further*, That of the funds provided, $2,000,000 shall be used to supplement funds available for operational costs at tribal clinics operated under an Indian Self-Determination and Education Assistance Act compact or contract where health care is delivered in space acquired through a full service lease, which is not eligible for maintenance and improvement and equipment funds from the Indian Health Service, and $6,000,000 shall be for accreditation emergencies: *Provided further*, That the amounts collected by the Federal Government as authorized by sections 104 and 108 of the Indian Health Care Improvement Act (25 U.S.C. 1613a and 1616a) during the preceding fiscal year for breach of contracts shall be deposited to the Fund authorized by section 108A of the Act (25 U.S.C. 1616a-1) and shall remain available until expended and, notwithstanding section 108A(c) of the Act (25 U.S.C. 1616a-1(c)), funds shall be available to make new awards under the loan repayment and scholarship programs under sections 104 and 108 of the Act (25 U.S.C. 1613a and 1616a): *Provided further*, That the amounts made available within this account for the Substance Abuse and Suicide Prevention Program, for the Domestic Violence Prevention Program, for the Zero Suicide Initiative, for aftercare pilots at Youth Regional Treatment Centers, to improve collections from public and private insurance at Indian Health Service and tribally operated facilities, and for accreditation emergencies shall be allocated at the discretion of the Director of the Indian Health Service and shall remain available until expended: *Provided further*, That funds provided in this Act may

be used for annual contracts and grants that fall within 2 fiscal years, provided the total obligation is recorded in the year the funds are appropriated: *Provided further*, That the amounts collected by the Secretary of Health and Human Services under the authority of title IV of the Indian Health Care Improvement Act shall remain available until expended for the purpose of achieving compliance with the applicable conditions and requirements of titles XVIII and XIX of the Social Security Act, except for those related to the planning, design, or construction of new facilities: *Provided further*, That funding contained herein for scholarship programs under the Indian Health Care Improvement Act (25 U.S.C. 1613) shall remain available until expended: *Provided further*, That amounts received by tribes and tribal organizations under title IV of the Indian Health Care Improvement Act shall be reported and accounted for and available to the receiving tribes and tribal organizations until expended: *Provided further*, That the Bureau of Indian Affairs may collect from the Indian Health Service, tribes and tribal organizations operating health facilities pursuant to Public Law 93–638, such individually identifiable health information relating to disabled children as may be necessary for the purpose of carrying out its functions under the Individuals with Disabilities Education Act (20 U.S.C. 1400, et seq.): *Provided further*, That the Indian Health Care Improvement Fund may be used, as needed, to carry out activities typically funded under the Indian Health Facilities account.

CONTRACT SUPPORT COSTS

For payments to tribes and tribal organizations for contract support costs associated with Indian Self-Determination and Education Assistance Act agreements with the Indian Health Service for fiscal year 2017, such sums as may be necessary: *Provided*, That notwithstanding any other provision of law, no amounts made available under this heading shall be available for transfer to another budget account.

INDIAN HEALTH FACILITIES

For construction, repair, maintenance, improvement, and equipment of health and related auxiliary facilities, including quarters for personnel; preparation of plans, specifications, and drawings; acquisition of sites, purchase and erection of modular buildings, and purchases of trailers; and for provision of domestic and community sanitation facilities for Indians, as authorized by section 7 of the Act of August 5, 1954 (42 U.S.C. 2004a), the Indian Self-Determination Act, and the Indian Health Care Improvement Act, and for expenses necessary to carry out such Acts and titles II and III of the Public Health Service Act with respect to environmental health and facilities support activities of the Indian Health Service, $557,946,000, to remain available until expended: *Provided*, That notwithstanding any other provision of law, funds appropriated for the planning, design, construction, renovation or expansion of health facilities for the benefit of an Indian tribe or tribes may be used to purchase land on which such facilities will be located: *Provided further*, That not to exceed $500,000 may be used by the Indian Health Service to purchase TRANSAM equipment from the Department of Defense for distribution to the Indian Health Service and tribal facilities: *Provided further*, That none of the funds appropriated to the Indian Health Service may be used for sanitation facilities construction for new homes funded with grants by the housing programs of the United States Department of Housing and Urban Development: *Provided further*, That not to exceed $2,700,000 from this account and the ''Indian Health Services'' account may be used by the Indian Health Service to obtain ambulances for the Indian Health Service and tribal facilities in conjunction with an existing interagency agreement between the Indian Health Service and the General Services Administration: *Provided further*, That not to exceed $500,000 may be placed in a Demolition Fund, to remain available until expended, and be used by the Indian Health Service for the demolition of Federal buildings.

ADMINISTRATIVE PROVISIONS—INDIAN HEALTH SERVICE

Appropriations provided in this Act to the Indian Health Service shall be available for services as authorized by 5 U.S.C. 3109 at rates not to exceed the per diem rate equivalent to the maximum rate payable for senior-level positions under 5 U.S.C. 5376; hire of passenger motor vehicles and aircraft; purchase of medical equipment; purchase of reprints; purchase, renovation and erection of modular buildings and renovation of existing facilities; payments for telephone service in private residences in the field, when authorized under regulations approved by the Secretary; uniforms or allowances therefor as authorized by 5 U.S.C. 5901–5902; and for expenses of attendance at meetings that relate to the functions or activities of the Indian Health Service: *Provided*, That in accordance with the provisions of the Indian Health Care Improvement Act, non-Indian patients may be extended health care at all tribally administered or Indian Health Service facilities, subject to charges, and the proceeds along with funds recovered under the Federal Medical Care Recovery Act (42 U.S.C. 2651–2653) shall be credited to the account of the facility providing the service and shall be available without fiscal year limitation: *Provided further*, That notwithstanding any other law or regulation, funds transferred from the Department of Housing and Urban Development to the Indian Health Service shall be administered under Public Law 86–121, the Indian Sanitation Facilities Act and Public Law 93–638: *Provided further*, That funds appropriated to the Indian Health Service in this Act, except those used for administrative and program direction purposes, shall not be subject to limitations directed at curtailing Federal travel and transportation: *Provided further*, That none of the funds made available to the Indian Health Service in this Act shall be used for any assessments or charges by the Department of Health and Human Services unless identified in the budget justification and provided in this Act, or approved by the House and Senate Committees on Appropriations through the reprogramming process: *Provided further*, That notwithstanding any other provision of law, funds previously or herein made available to a tribe or tribal organization through a contract, grant, or agreement authorized by title I or title V of the Indian Self-Determination and Education Assistance Act of 1975 (25 U.S.C. 450), may be deobligated and reobligated to a self-determination contract under title I, or a self-governance agreement under title V of such Act and thereafter shall remain available to the tribe or tribal organization without fiscal year limitation: *Provided further*, That none of the funds made available to the Indian Health Service in this Act shall be used to implement the final rule published in the Federal Register on September 16, 1987, by the Department of Health and Human Services, relating to the eligibility for the health care services of the Indian Health Service until the Indian Health Service has submitted a budget request reflecting the increased costs associated with the proposed final rule, and such request has been included in an appropriations Act and enacted into law: *Provided further*, That with respect to functions transferred by the Indian Health Service to tribes or tribal organizations, the Indian Health Service is authorized to provide goods and services to those entities on a reimbursable basis, including payments in advance with subsequent adjustment, and the reimbursements received therefrom, along with the funds received from those entities pursuant to the Indian Self-Determination Act, may be credited to the same or subsequent appropriation account from which the funds were originally derived, with such amounts to remain available until expended: *Provided further*, That reimbursements for training, technical assistance, or services provided by the Indian Health Service will contain total costs, including direct, administrative, and overhead associated with the provision of goods, services, or technical assistance: *Provided further*, That the appropriation structure for the Indian Health Service may not be altered without advance notification to the House and Senate Committees on Appropriations.

NATIONAL INSTITUTES OF HEALTH

NATIONAL INSTITUTE OF ENVIRONMENTAL HEALTH SCIENCES

For necessary expenses for the National Institute of Environmental Health Sciences in carrying out activities set forth in section 311(a) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9660(a)) and section 126(g) of the Superfund Amendments and Reauthorization Act of 1986, $77,349,000.

AGENCY FOR TOXIC SUBSTANCES AND DISEASE REGISTRY

TOXIC SUBSTANCES AND ENVIRONMENTAL PUBLIC HEALTH

For necessary expenses for the Agency for Toxic Substances and Disease Registry (ATSDR) in carrying out activities set forth in sections 104(i) and 111(c)(4) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA) and section 3019 of the Solid Waste Disposal Act, $74,691,000, of which up to $1,000 per eligible employee of the Agency for Toxic Substances and Disease Registry shall remain available until expended for Individual Learning Accounts: *Provided*, That notwithstanding any other provision of law, in lieu of performing a health assessment under section 104(i)(6) of CERCLA, the Administrator of ATSDR may conduct other appropriate health studies, evaluations, or activities, including, without limitation, biomedical testing, clinical evaluations, medical monitoring, and referral to accredited healthcare providers: *Provided further*, That in performing any such health assessment or health study, evaluation, or activity, the Administrator of ATSDR shall not be bound by the deadlines in section 104(i)(6)(A) of CERCLA: *Provided further*, That none of the funds appropriated under this heading shall be available for ATSDR to issue in excess of 40 toxicological profiles pursuant to section 104(i) of CERCLA during fiscal year 2017, and existing profiles may be updated as necessary.

OTHER RELATED AGENCIES

EXECUTIVE OFFICE OF THE PRESIDENT

COUNCIL ON ENVIRONMENTAL QUALITY AND OFFICE OF ENVIRONMENTAL QUALITY

For necessary expenses to continue functions assigned to the Council on Environmental Quality and Office of Environmental Quality pursuant to the National Environmental Policy Act of 1969, the Environmental Quality Improvement Act of 1970, and Reorganization Plan No. 1 of 1977, and not to exceed $750 for official reception and representation expenses, $3,000,000: *Provided*, That notwithstanding section 202 of the National Environmental Policy Act of 1970, the

Council shall consist of one member, appointed by the President, by and with the advice and consent of the Senate, serving as chairman and exercising all powers, functions, and duties of the Council.

CHEMICAL SAFETY AND HAZARD INVESTIGATION BOARD

SALARIES AND EXPENSES

For necessary expenses in carrying out activities pursuant to section 112(r)(6) of the Clean Air Act, including hire of passenger vehicles, uniforms or allowances therefor, as authorized by 5 U.S.C. 5901–5902, and for services authorized by 5 U.S.C. 3109 but at rates for individuals not to exceed the per diem equivalent to the maximum rate payable for senior level positions under 5 U.S.C. 5376, $11,000,000: *Provided*, That the Chemical Safety and Hazard Investigation Board (Board) shall have not more than three career Senior Executive Service positions: *Provided further*, That notwithstanding any other provision of law, the individual appointed to the position of Inspector General of the Environmental Protection Agency (EPA) shall, by virtue of such appointment, also hold the position of Inspector General of the Board: *Provided further*, That notwithstanding any other provision of law, the Inspector General of the Board shall utilize personnel of the Office of Inspector General of EPA in performing the duties of the Inspector General of the Board, and shall not appoint any individuals to positions within the Board.

OFFICE OF NAVAJO AND HOPI INDIAN RELOCATION

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For necessary expenses of the Office of Navajo and Hopi Indian Relocation as authorized by Public Law 93–531, $15,431,000, to remain available until expended: *Provided*, That funds provided in this or any other appropriations Act are to be used to relocate eligible individuals and groups including evictees from District 6, Hopi-partitioned lands residents, those in significantly substandard housing, and all others certified as eligible and not included in the preceding categories: *Provided further*, That none of the funds contained in this or any other Act may be used by the Office of Navajo and Hopi Indian Relocation to evict any single Navajo or Navajo family who, as of November 30, 1985, was physically domiciled on the lands partitioned to the Hopi Tribe unless a new or replacement home is provided for such household: *Provided further*, That no relocatee will be provided with more than one new or replacement home: *Provided further*, That the Office shall relocate any certified eligible relocatees who have selected and received an approved homesite on the Navajo reservation or selected a replacement residence off the Navajo reservation or on the land acquired pursuant to 25 U.S.C. 640d-10: *Provided further*, That $200,000 shall be transferred to the Office of Inspector General of the Department of the Interior, to remain available until expended, for audits and investigations of the Office of Navajo and Hopi Indian Relocation, consistent with the Inspector General Act of 1978 (5 U.S.C. App.).

INSTITUTE OF AMERICAN INDIAN AND ALASKA NATIVE CULTURE AND ARTS DEVELOPMENT

PAYMENT TO THE INSTITUTE

For payment to the Institute of American Indian and Alaska Native Culture and Arts Development, as authorized by title XV of Public Law 99–498 (20 U.S.C. 56 part A), $11,619,000, to remain available until September 30, 2018.

SMITHSONIAN INSTITUTION

SALARIES AND EXPENSES

For necessary expenses of the Smithsonian Institution, as authorized by law, including research in the fields of art, science, and history; development, preservation, and documentation of the National Collections; presentation of public exhibits and performances; collection, preparation, dissemination, and exchange of information and publications; conduct of education, training, and museum assistance programs; maintenance, alteration, operation, lease agreements of no more than 30 years, and protection of buildings, facilities, and approaches; not to exceed $100,000 for services as authorized by 5 U.S.C. 3109; and purchase, rental, repair, and cleaning of uniforms for employees, $712,487,000, to remain available until September 30, 2018, except as otherwise provided herein; of which not to exceed $50,467,000 for the instrumentation program, collections acquisition, exhibition reinstallation, the National Museum of African American History and Culture, and the repatriation of skeletal remains program shall remain available until expended; and including such funds as may be necessary to support American overseas research centers: *Provided*, That funds appropriated herein are available for advance payments to independent contractors performing research services or participating in official Smithsonian presentations.

FACILITIES CAPITAL

For necessary expenses of repair, revitalization, and alteration of facilities owned or occupied by the Smithsonian Institution, by contract or otherwise, as authorized by section 2 of the Act of August 22, 1949 (63 Stat. 623), and for construction, including necessary personnel, $150,860,000, to remain available until expended, of which not to exceed $10,000 shall be for services as authorized by 5 U.S.C. 3109.

NATIONAL GALLERY OF ART

SALARIES AND EXPENSES

For the upkeep and operations of the National Gallery of Art, the protection and care of the works of art therein, and administrative expenses incident thereto, as authorized by the Act of March 24, 1937 (50 Stat. 51), as amended by the public resolution of April 13, 1939 (Public Resolution 9, Seventy-sixth Congress), including services as authorized by 5 U.S.C. 3109; payment in advance when authorized by the treasurer of the Gallery for membership in library, museum, and art associations or societies whose publications or services are available to members only, or to members at a price lower than to the general public; purchase, repair, and cleaning of uniforms for guards, and uniforms, or allowances therefor, for other employees as authorized by law (5 U.S.C. 5901–5902); purchase or rental of devices and services for protecting buildings and contents thereof, and maintenance, alteration, improvement, and repair of buildings, approaches, and grounds; and purchase of services for restoration and repair of works of art for the National Gallery of Art by contracts made, without advertising, with individuals, firms, or organizations at such rates or prices and under such terms and conditions as the Gallery may deem proper, $130,801,000, to remain available until September 30, 2018, of which not to exceed $3,620,000 for the special exhibition program shall remain available until expended.

REPAIR, RESTORATION AND RENOVATION OF BUILDINGS

For necessary expenses of repair, restoration and renovation of buildings, grounds and facilities owned or occupied by the National Gallery of Art, by contract or otherwise, for operating lease agreements of no more than 10 years, with no extensions or renewals beyond the 10 years, that address space needs created by the ongoing renovations in the Master Facilities Plan, as authorized, $22,564,000, to remain available until expended: *Provided*, That contracts awarded for environmental systems, protection systems, and exterior repair or renovation of buildings of the National Gallery of Art may be negotiated with selected contractors and awarded on the basis of contractor qualifications as well as price.

JOHN F. KENNEDY CENTER FOR THE PERFORMING ARTS

OPERATIONS AND MAINTENANCE

For necessary expenses for the operation, maintenance and security of the John F. Kennedy Center for the Performing Arts, $22,260,000.

CAPITAL REPAIR AND RESTORATION

For necessary expenses for capital repair and restoration of the existing features of the building and site of the John F. Kennedy Center for the Performing Arts, $14,140,000, to remain available until expended.

WOODROW WILSON INTERNATIONAL CENTER FOR SCHOLARS

SALARIES AND EXPENSES

For expenses necessary in carrying out the provisions of the Woodrow Wilson Memorial Act of 1968 (82 Stat. 1356) including hire of passenger vehicles and services as authorized by 5 U.S.C. 3109, $10,500,000, to remain available until September 30, 2018.

NATIONAL FOUNDATION ON THE ARTS AND THE HUMANITIES

NATIONAL ENDOWMENT FOR THE ARTS

GRANTS AND ADMINISTRATION

For necessary expenses to carry out the National Foundation on the Arts and the Humanities Act of 1965, $149,849,000 shall be available to the National Endowment for the Arts for the support of projects and productions in the arts, including arts education and public outreach activities, through assistance to organizations and individuals pursuant to section 5 of the Act, for program support, and for administering the functions of the Act, to remain available until expended.

NATIONAL ENDOWMENT FOR THE HUMANITIES

GRANTS AND ADMINISTRATION

For necessary expenses to carry out the National Foundation on the Arts and the Humanities Act of 1965, $149,848,000, to remain available until expended, of which $139,148,000 shall be available for support of activities in the humanities, pursuant to section 7(c) of the Act and for administering the functions of the Act; and $10,700,000 shall be available to carry out the matching grants program pursuant to section 10(a)(2) of the Act, including $8,500,000 for the purposes of section 7(h): *Provided*, That appropriations for carrying out section 10(a)(2) shall be available for obligation only in such amounts as may be equal to the total amounts of gifts, bequests, devises of money, and other property accepted by the chairman or by grantees of the National Endowment for the Humanities under the provisions of sections 11(a)(2)(B) and 11(a)(3)(B) during the current and preceding fiscal years for which equal amounts have not previously been appropriated.

ADMINISTRATIVE PROVISIONS

None of the funds appropriated to the National Foundation on the Arts and the Humanities may be used to process any grant or contract documents which do not include the text of 18 U.S.C. 1913: *Provided*, That none of the funds appropriated to the National Foundation on the Arts and the Humanities may be used for official reception and representation expenses: *Provided further*, That funds from nonappropriated sources may be used as necessary for official reception and

representation expenses: *Provided further*, That the Chairperson of the National Endowment for the Arts may approve grants of up to $10,000, if in the aggregate the amount of such grants does not exceed 5 percent of the sums appropriated for grantmaking purposes per year: *Provided further*, That such small grant actions are taken pursuant to the terms of an expressed and direct delegation of authority from the National Council on the Arts to the Chairperson.

COMMISSION OF FINE ARTS

SALARIES AND EXPENSES

For expenses of the Commission of Fine Arts under chapter 91 of title 40, United States Code, $2,762,000: *Provided*, That the Commission is authorized to charge fees to cover the full costs of its publications, and such fees shall be credited to this account as an offsetting collection, to remain available until expended without further appropriation: *Provided further*, That the Commission is authorized to accept gifts, including objects, papers, artwork, drawings and artifacts, that pertain to the history and design of the Nation's Capital or the history and activities of the Commission of Fine Arts, for the purpose of artistic display, study or education: *Provided further*, That one-tenth of one percent of the funds provided under this heading may be used for official reception and representation expenses.

NATIONAL CAPITAL ARTS AND CULTURAL AFFAIRS

For necessary expenses as authorized by Public Law 99–190 (20 U.S.C. 956a), $2,000,000.

ADVISORY COUNCIL ON HISTORIC PRESERVATION

SALARIES AND EXPENSES

For necessary expenses of the Advisory Council on Historic Preservation (Public Law 89–665), $6,480,000.

NATIONAL CAPITAL PLANNING COMMISSION

SALARIES AND EXPENSES

For necessary expenses of the National Capital Planning Commission under chapter 87 of title 40, United States Code, including services as authorized by 5 U.S.C. 3109, $8,099,000: *Provided*, That one-quarter of 1 percent of the funds provided under this heading may be used for official reception and representational expenses associated with hosting international visitors engaged in the planning and physical development of world capitals.

UNITED STATES HOLOCAUST MEMORIAL MUSEUM

HOLOCAUST MEMORIAL MUSEUM

For expenses of the Holocaust Memorial Museum, as authorized by Public Law 106–292 (36 U.S.C. 2301–2310), $57,000,000, of which $1,215,000 shall remain available until September 30, 2019, for the Museum's equipment replacement program; and of which $2,500,000 for the Museum's repair and rehabilitation program and $1,264,000 for the Museum's outreach initiatives program shall remain available until expended.

TITLE IV

GENERAL PROVISIONS

(INCLUDING TRANSFERS OF FUNDS)

RESTRICTION ON USE OF FUNDS

SEC. 401. No part of any appropriation contained in this Act shall be available for any activity or the publication or distribution of literature that in any way tends to promote public support or opposition to any legislative proposal on which Congressional action is not complete other than to communicate to Members of Congress as described in 18 U.S.C. 1913.

OBLIGATION OF APPROPRIATIONS

SEC. 402. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

REPROGRAMMING PROCEDURES, DISCLOSURE OF ADMINISTRATIVE EXPENSES, AND OPERATING PLANS

SEC. 403. (a) DEFINITIONS.—For the purposes of this section:

(1) ''Reprogramming'' includes:

(A) The reallocation of funds from one program, project, or activity, to another within any appropriation funded in this Act.

(B) For construction, land acquisition, and forest legacy accounts, the reallocation of funds, including unobligated balances, from one construction, land acquisition, or forest legacy project to another such project.

(C) An operating plan or any later modification thereof submitted under subsection (i) of this section.

(D) Proposed reorganizations even without a change in funding, including any change to the organization table presented in the budget justification.

(2) ''Program'', ''project'', and ''activity'' constitute the delineation below the appropriation account level of any agency funded by this Act, as shown in any table of the report accompanying this Act.

(3) ''Funds'' includes funds provided in this Act or previous appropriations Acts that are available for obligation in the current fiscal year and any amounts available for obligation in the current fiscal year derived from collections, fees or charges.

(4) ''Assessment'' is any overhead charge, deduction, reserve or holdback, including working capital fund and cost pool charges, from any program, project, and activity to support government-wide, departmental, agency, or bureau administrative functions or headquarters, regional, or central operations or to provide for contingencies.

(b) GENERAL GUIDELINES FOR REPROGRAMMING.—

(1) A reprogramming should be made only when an unforeseen situation arises, and then only if postponement of the project or the activity until the next appropriation year would result in actual loss or damage.

(2) Any project or activity, which may be deferred through reprogramming, shall not later be accomplished by means of further reprogramming, but instead, funds should again be sought for the deferred project or activity through the regular appropriations process.

(3) Except under the most urgent situations, reprogramming should not be employed to initiate new programs or increase allocations specifically denied or limited by the Congress, or to decrease allocations specifically increased by the Congress.

(4) New programs requested in the budget should not be initiated before enactment of the bill without notification to, and the approval of, the Committees on Appropriations of the House of Representatives and the Senate (hereinafter ''the Committees''). This restriction applies to all such actions regardless of whether a formal reprogramming of funds is required to begin the program.

(c) CRITERIA.—

(1) A reprogramming shall be submitted to the Committees in writing 30 days prior to implementation if—

(A) it exceeds $1,000,000 individually or cumulatively or results in a cumulative increase or decrease of more than 10 percent of funds annually in any affected program, project, or activity;

(B) it is a reorganization; or

(C) it is an operating plan or any later modification thereof as submitted under subsection (i) of this section: *Provided*, That such plan or modification thereof also meets any of the other criteria under subsection (c)(1) of this section.

(2) No funds shall be available for obligation or expenditure through a reprogramming until 30 days after the receipt by the Committees of a notice of proposed reprogramming.

(3) A reprogramming shall be considered approved 30 days after receipt if the Committees have posed no objection. However, agencies will be expected to extend the approval deadline if specifically requested by either Committee.

(d) EXCEPTIONS.—

(1) With regard to the tribal priority allocations of the Bureau of Indian Affairs, there is no restriction on reprogrammings among these programs. However, the Bureau shall report on all reprogrammings made during a given fiscal year no later than 60 days after the end of the fiscal year.

(2) With regard to the Environmental Protection Agency, State and Tribal Assistance Grants account, the Committees do not require reprogramming requests associated with States and Tribes Partnership Grants.

(e) ASSESSMENTS.—

(1) No assessment shall be levied or collected unless such assessment and the basis therefor are presented to the Committees in the budget justifications and are subsequently approved by the Committees. The explanation for any assessment in the budget justification shall show the amount of the assessment, the activities assessed, and the purpose of the funds.

(2) Proposed changes to estimated assessments, as such estimates were presented in annual budget justifications, shall be submitted through the reprogramming process set out in this section and shall be subject to the same dollar and reporting criteria as any other reprogramming.

(3) Each department, agency or bureau that utilizes assessments shall submit an annual report to the Committees which provides details on the use of all funds assessed from any other program, project, or activity.

(4) In no case shall contingency funds or assessments be used to finance agency actions disapproved or limited by the Congress.

(f) LAND ACQUISITIONS, EASEMENTS, AND FOREST LEGACY.—Lands shall not be acquired for more than the approved appraised value (as addressed in section 301(3) of Public Law 91–646), unless such acquisitions are submitted to the Committees for approval in compliance with these procedures.

(g) LAND EXCHANGES.—Land exchanges, wherein the estimated value of the Federal lands to be exchanged is greater than $1,000,000, shall not be consummated until the Committees have had a 30-day period in which to examine the proposed exchange. In addition, the Committees shall be provided advance notification of exchanges valued between $500,000 and $1,000,000.

(h) BUDGET STRUCTURE.—The program, project, and activity structure for any agency appropriation account shall not be altered without advance approval of the Committees.

(i) OPERATING PLANS.—Not later than 60 days after the date of enactment of this Act, each department or agency funded by this Act shall submit an operating plan to the Committees to establish the baseline for application of reprogramming for the current fiscal year. The operating plan shall include—

(1) a table for each appropriation with a separate column to display the President's budget request, adjustments made by the Congress, enacted rescissions, if appropriate, and the fiscal year enacted level;

(2) a delineation in the table for each appropriation by program, project, and activity for the respective appropriation; and

(3) an identification of items of special congressional interest.

MINING APPLICATIONS

SEC. 404. (a) LIMITATION OF FUNDS.—None of the funds appropriated or otherwise made available pursuant to this Act shall be obligated or expended to accept or process applications for a patent for any mining or mill site claim located under the general mining laws.

(b) EXCEPTIONS.—Subsection (a) shall not apply if the Secretary of the Interior determines that, for the claim concerned (1) a patent application was filed with the Secretary on or before September 30, 1994; and (2) all requirements established under sections 2325 and 2326 of the Revised Statutes (30 U.S.C. 29 and 30) for vein or lode claims, sections 2329, 2330, 2331, and 2333 of the Revised Statutes (30 U.S.C. 35, 36, and 37) for placer claims, and section 2337 of the Revised Statutes (30 U.S.C. 42) for mill site claims, as the case may be, were fully complied with by the applicant by that date.

(c) REPORT.—On September 30, 2018, the Secretary of the Interior shall file with the House and Senate Committees on Appropriations and the Committee on Natural Resources of the House and the Committee on Energy and Natural Resources of the Senate a report on actions taken by the Department under the plan submitted pursuant to section 314(c) of the Department of the Interior and Related Agencies Appropriations Act, 1997 (Public Law 104–208).

(d) MINERAL EXAMINATIONS.—In order to process patent applications in a timely and responsible manner, upon the request of a patent applicant, the Secretary of the Interior shall allow the applicant to fund a qualified third-party contractor to be selected by the Director of the Bureau of Land Management to conduct a mineral examination of the mining claims or mill sites contained in a patent application as set forth in subsection (b). The Bureau of Land Management shall have the sole responsibility to choose and pay the third-party contractor in accordance with the standard procedures employed by the Bureau of Land Management in the retention of third-party contractors.

CONTRACT SUPPORT COSTS, PRIOR YEAR LIMITATION

SEC. 405. Sections 405 and 406 of division F of the Consolidated and Further Continuing Appropriations Act, 2015 (Public Law 113–235) shall continue in effect in fiscal year 2017.

CONTRACT SUPPORT COSTS, FISCAL YEAR 2017 LIMITATION

SEC. 406. Amounts provided by this Act for fiscal year 2017 under the headings ''Department of Health and Human Services, Indian Health Service, Contract Support Costs'' and ''Department of the Interior, Bureau of Indian Affairs and Bureau of Indian Education, Contract Support Costs'' are the only amounts available for contract support costs arising out of self-determination or self-governance contracts, grants, compacts, or annual funding agreements for fiscal year 2017 with the Bureau of Indian Affairs or the Indian Health Service: *Provided*, That such amounts provided by this Act are not available for payment of claims for contract support costs for prior years, or for repayments of payments for settlements or judgments awarding contract support costs for prior years.

FOREST MANAGEMENT PLANS

SEC. 407. The Secretary of Agriculture shall not be considered to be in violation of subparagraph 6(f)(5)(A) of the Forest and Rangeland Renewable Resources Planning Act of 1974 (16 U.S.C. 1604(f)(5)(A)) solely because more than 15 years have passed without revision of the plan for a unit of the National Forest System. Nothing in this section exempts the Secretary from any other requirement of the Forest and Rangeland Renewable Resources Planning Act (16 U.S.C. 1600 et seq.) or any other law: *Provided*, That if the Secretary is not acting expeditiously and in good faith, within the funding available, to revise a plan for a unit of the National Forest System, this section shall be void with respect to such plan and a court of proper jurisdiction may order completion of the plan on an accelerated basis.

PROHIBITION WITHIN NATIONAL MONUMENTS

SEC. 408. No funds provided in this Act may be expended to conduct preleasing, leasing and related activities under either the Mineral Leasing Act (30 U.S.C. 181 et seq.) or the Outer Continental Shelf Lands Act (43 U.S.C. 1331 et seq.) within the boundaries of a National Monument established pursuant to the Act of June 8, 1906 (16 U.S.C. 431 et seq.) as such boundary existed on January 20, 2001, except where such activities are allowed under the Presidential proclamation establishing such monument.

LIMITATION ON TAKINGS

SEC. 409. Unless otherwise provided herein, no funds appropriated in this Act for the acquisition of lands or interests in lands may be expended for the filing of declarations of taking or complaints in condemnation without the approval of the House and Senate Committees on Appropriations: *Provided*, That this provision shall not apply to funds appropriated to implement the Everglades National Park Protection and Expansion Act of 1989, or to funds appropriated for Federal assistance to the State of Florida to acquire lands for Everglades restoration purposes.

TIMBER SALE REQUIREMENTS

SEC. 410. No timber sale in Alaska's Region 10 shall be advertised if the indicated rate is deficit (defined as the value of the timber is not sufficient to cover all logging and stumpage costs and provide a normal profit and risk allowance under the Forest Service's appraisal process) when appraised using a residual value appraisal. The western red cedar timber from those sales which is surplus to the needs of the domestic processors in Alaska, shall be made available to domestic processors in the contiguous 48 United States at prevailing domestic prices. All additional western red cedar volume not sold to Alaska or contiguous 48 United States domestic processors may be exported to foreign markets at the election of the timber sale holder. All Alaska yellow cedar may be sold at prevailing export prices at the election of the timber sale holder.

PROHIBITION ON NO-BID CONTRACTS

SEC. 411. None of the funds appropriated or otherwise made available by this Act to executive branch agencies may be used to enter into any Federal contract unless such contract is entered into in accordance with the requirements of Chapter 33 of title 41, United States Code, or Chapter 137 of title 10, United States Code, and the Federal Acquisition Regulation, unless—

(1) Federal law specifically authorizes a contract to be entered into without regard for these requirements, including formula grants for States, or federally recognized Indian tribes; or

(2) such contract is authorized by the Indian Self-Determination and Education Assistance Act (Public Law 93–638, 25 U.S.C. 450 et seq.) or by any other Federal laws that specifically authorize a contract within an Indian tribe as defined in section 4(e) of that Act (25 U.S.C. 450b(e)); or

(3) such contract was awarded prior to the date of enactment of this Act.

POSTING OF REPORTS

SEC. 412. (a) Any agency receiving funds made available in this Act, shall, subject to subsections (b) and (c), post on the public website of that agency any report required to be submitted by the Congress in this or any other Act, upon the determination by the head of the agency that it shall serve the national interest.

(b) Subsection (a) shall not apply to a report if—

(1) the public posting of the report compromises national security; or

(2) the report contains proprietary information.

(c) The head of the agency posting such report shall do so only after such report has been made available to the requesting Committee or Committees of Congress for no less than 45 days.

NATIONAL ENDOWMENT FOR THE ARTS GRANT GUIDELINES

SEC. 413. Of the funds provided to the National Endowment for the Arts—

(1) The Chairperson shall only award a grant to an individual if such grant is awarded to such individual for a literature fellowship, National Heritage Fellowship, or American Jazz Masters Fellowship.

(2) The Chairperson shall establish procedures to ensure that no funding provided through a grant, except a grant made to a State or local arts agency, or regional group, may be used to make a grant to any other organization or individual to conduct activity independent of the direct grant recipient. Nothing in this subsection shall prohibit payments made in exchange for goods and services.

(3) No grant shall be used for seasonal support to a group, unless the application is specific to the contents of the season, including identified programs or projects.

NATIONAL ENDOWMENT FOR THE ARTS PROGRAM PRIORITIES

SEC. 414. (a) In providing services or awarding financial assistance under the National Foundation on the Arts and the Humanities Act of 1965 from funds appropriated under this Act, the Chairperson of the National Endowment for the Arts shall ensure that priority is given to providing services or awarding financial assistance for projects, productions, workshops, or programs that serve underserved populations.

(b) In this section:

(1) The term ''underserved population'' means a population of individuals, including urban minorities, who have historically been outside the purview of arts and humanities programs due to factors such as a high incidence of income below the poverty line or to geographic isolation.

(2) The term ''poverty line'' means the poverty line (as defined by the Office of Management and Budget, and revised annually in accordance with section 673(2) of the Community Services Block Grant Act (42 U.S.C. 9902(2))) applicable to a family of the size involved.

(c) In providing services and awarding financial assistance under the National Foundation on the Arts and Humanities Act of 1965 with funds appropriated by this Act, the Chairperson of the National Endowment for the Arts shall ensure that priority is given to providing services or awarding financial assistance for projects, productions, workshops, or programs that will encourage public knowledge, education, understanding, and appreciation of the arts.

(d) With funds appropriated by this Act to carry out section 5 of the National Foundation on the Arts and Humanities Act of 1965—

(1) the Chairperson shall establish a grant category for projects, productions, workshops, or programs that are of national impact or availability or are able to tour several States;

(2) the Chairperson shall not make grants exceeding 15 percent, in the aggregate, of such funds to any single State, excluding grants made under the authority of paragraph (1);

(3) the Chairperson shall report to the Congress annually and by State, on grants awarded by the Chairperson in each grant category under section 5 of such Act; and

(4) the Chairperson shall encourage the use of grants to improve and support community-based music performance and education.

STATUS OF BALANCES OF APPROPRIATIONS

SEC. 415. The Department of the Interior, the Environmental Protection Agency, the Forest Service, and the Indian Health Service shall provide the Committees on Appropriations of the House of Representatives and Senate quarterly reports on the status of balances of appropriations including all uncommitted, committed, and unobligated funds in each program and activity.

REPORT ON USE OF CLIMATE CHANGE FUNDS

SEC. 416. Not later than 120 days after the date on which the President's fiscal year 2018 budget request is submitted to the Congress, the President shall submit a comprehensive report to the Committees on Appropriations of the House of Representatives and the Senate describing in detail all Federal agency funding, domestic and international, for climate change programs, projects, and activities in fiscal years 2016 and 2017, including an accounting of funding by agency with each agency identifying climate change programs, projects, and activities and associated costs by line item as presented in the President's Budget Appendix, and including citations and linkages where practicable to each strategic plan that is driving funding within each climate change program, project, and activity listed in the report.

PROHIBITION ON USE OF FUNDS

SEC. 417. Notwithstanding any other provision of law, none of the funds made available in this Act or any other Act may be used to promulgate or implement any regulation requiring the issuance of permits under title V of the Clean Air Act (42 U.S.C. 7661 et seq.) for carbon dioxide, nitrous oxide, water vapor, or methane emissions resulting from biological processes associated with livestock production.

GREENHOUSE GAS REPORTING RESTRICTIONS

SEC. 418. Notwithstanding any other provision of law, none of the funds made available in this or any other Act may be used to implement any provision in a rule, if that provision requires mandatory reporting of greenhouse gas emissions from manure management systems.

MODIFICATION OF AUTHORITIES

SEC. 419. (a) Section 8162(m)(3) of the Department of Defense Appropriations Act, 2000 (40 U.S.C. 8903 note; Public Law 106–79) is amended by striking ''September 30, 2016'' and inserting ''September 30, 2017''.

(b) For fiscal year 2017, the authority provided by the provisos under the heading ''Dwight D. Eisenhower Memorial Commission—Capital Construction'' in division E of Public Law 112–74 shall not be in effect.

FUNDING PROHIBITION

SEC. 420. None of the funds made available by this or any other Act may be used to regulate the lead content of ammunition, ammunition components, or fishing tackle under the Toxic Substances Control Act (15 U.S.C. 2601 et seq.) or any other law.

EXTENSION OF GRAZING PERMITS

SEC. 421. The terms and conditions of section 325 of Public Law 108–108 (117 Stat. 1307), regarding grazing permits issued by the Forest Service on any lands not subject to administration under section 402 of the Federal Lands Policy and Management Act (43 U.S.C. 1752), shall remain in effect for fiscal year 2017.

RECREATION FEE

SEC. 422. Section 810 of the Federal Lands Recreation Enhancement Act (16 U.S.C. 6809) is amended by striking ''September 30, 2017'' and inserting ''September 30, 2018''.

STEWARDSHIP CONTRACTING AMENDMENTS

SEC. 423. Section 604(d) of the Healthy Forests Restoration Act of 2003 (16 U.S.C. 6591c(d)) is amended—

(1) in paragraph (5), by adding at the end the following: ''Notwithstanding section 2 of the Act of July 31, 1947 (commonly known as the Materials Act of 1947; 30 U.S.C. 602), the Director may enter into an agreement or contract under subsection (b).''; and

(2) in paragraph (7)—

(A) by striking ''and the Director''; and

(B) by inserting ''entered into by the Chief'' after ''contracts and agreements''.

FUNDING PROHIBITION

SEC. 424. (a) None of the funds made available in this Act may be used to maintain or establish a computer network unless such network blocks the viewing, downloading, and exchanging of pornography.

(b) Nothing in subsection (a) shall limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities.

DEFINITION OF FILL MATERIAL

SEC. 425. None of the funds made available in this Act or any other Act may be used by the Environmental Protection Agency to develop, adopt, implement, administer, or enforce any change to the regulations in effect on October 1, 2012, pertaining to the definitions of the terms ''fill material'' or ''discharge of fill material'' for the purposes of the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.).

CLARIFICATION OF EXEMPTIONS

SEC. 426. Notwithstanding section 404(f)(2) of the Federal Water Pollution Control Act (33 U.S.C. 1344(f)(2)), none of the funds made available by this Act may be used to require a permit for the discharge of dredged or fill material under the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.) for the activities identified in subparagraphs (A) and (C) of section 404(f)(1) of the Act (33 U.S.C. 1344(f)(1)(A), (C)).

WATERS OF THE UNITED STATES

SEC. 427. None of the funds made available in this Act or any other Act for any fiscal year may be used to develop, adopt, implement, administer, or enforce any change to the regulations and guidance in effect on October 1, 2012, pertaining to the definition of waters under the jurisdiction of the Federal Water Pollution Control Act (33 U.S.C. 1251, et seq.), including the provisions of the rules dated November 13, 1986, and August 25, 1993, relating to said jurisdiction, and the guidance documents dated January 15, 2003, and December 2, 2008, relating to said jurisdiction.

HUNTING, FISHING, AND RECREATIONAL SHOOTING ON FEDERAL LAND

SEC. 428. (a) LIMITATION ON USE OF FUNDS.—None of the funds made available by this or any other Act for any fiscal year may be used to prohibit the use of or access to Federal land (as such term is defined in section 3 of the Healthy Forests Restoration Act of 2003 (16 U.S.C. 6502)) for hunting, fishing, or recreational shooting if such use or access—

(1) was not prohibited on such Federal land as of January 1, 2013; and

(2) was conducted in compliance with the resource management plan (as defined in section 101 of such Act (16 U.S.C. 6511)) applicable to such Federal land as of January 1, 2013.

(b) TEMPORARY CLOSURES ALLOWED.—Notwithstanding subsection (a), the Secretary of the Interior or the Secretary of Agriculture may temporarily close, for a period not to exceed 30 days, Federal land managed by the Secretary to hunting, fishing, or recreational shooting if the Secretary determines that the temporary closure is necessary to accommodate a special event or for public safety reasons. The Secretary may extend a temporary closure for one additional 90-day period only if the Secretary determines the extension is necessary because of extraordinary weather conditions or for public safety reasons.

(c) AUTHORITY OF STATES.—Nothing in this section shall be construed as affecting the authority, jurisdiction, or responsibility of the several States to manage, control, or regulate fish and resident wildlife under State law or regulations.

LEAD TEST KIT

SEC. 429. None of the funds made available by this Act may be used to enforce regulations under sections 745.84 and 745.86 of title 40, Code of Federal Regulations, or any subsequent amendments to such regulations, until the Administrator of the Environmental Protection Agency—

(1) publicizes Environmental Protection Agency recognition of a commercially available lead test kit that meets both criteria under section 745.88(c) of title 40, Code of Federal Regulations; or

(2) solicits public comment on alternatives to subpart E of part 745 of title 40, Code of Federal Regulations, following the date of enactment of this Act.

FINANCIAL ASSURANCE

SEC. 430. None of the funds made available by this Act may be used to develop, propose, finalize, implement, enforce, or administer any regulation that would establish new financial responsibility requirements pursuant to section 108(b) of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (42 U.S.C. 9608(b)).

GHG NSPS

SEC. 431. None of the funds made available by this Act shall be used to propose, finalize, implement, or enforce—

(1) any standard of performance under section 111(b) of the Clean Air Act (42 U.S.C. 7411(b)) for any new fossil fuel-fired electricity utility generating unit if the Administrator of the Environmental Protection Agency's determination that a technology is adequately demonstrated includes consideration of one or more facilities for which assistance is provided (including any tax credit) under subtitle A of title IV of the Energy Policy Act of 2005 (42 U.S.C. 15961 et seq.) or section 48A of the Internal Revenue Code of 1986;

(2) any regulation or guidance under section 111(b) of the Clean Air Act (42 U.S.C. 7411(b)) establishing any standard of performance for emissions of any greenhouse gas from any modified or reconstructed source that is a fossil fuel-fired electric utility generating unit; or

(3) any regulation or guidance under section 111(d) of the Clean Air Act (42 U.S.C. 7411(d)) that applies to the emission of any greenhouse gas by an existing source that is a fossil fuel-fired electric utility generating unit.

AVAILABILITY OF VACANT GRAZING ALLOTMENTS

SEC. 432. The Secretary of the Interior, with respect to public lands administered by

the Bureau of Land Management, and the Secretary of Agriculture, with respect to the National Forest System lands, shall make vacant grazing allotments available to a holder of a grazing permit or lease issued by either Secretary if the lands covered by the permit or lease or other grazing lands used by the holder of the permit or lease are unusable because of drought or wildfire, as determined by the Secretary concerned. The terms and conditions contained in a permit or lease made available pursuant to this section shall be the same as the terms and conditions of the most recent permit or lease that was applicable to the vacant grazing allotment made available. Section 102 of the National Environmental Policy Act of 1969 (42 U.S.C. 4332) shall not apply with respect to any Federal agency action under this section.

PROTECTION OF WATER RIGHTS

SEC. 433. None of the funds made available in this or any other Act may be used to condition the issuance, renewal, amendment, or extension of any permit, approval, license, lease, allotment, easement, right-of-way, or other land use or occupancy agreement on the transfer of any water right, including sole and joint ownership, directly to the United States, or any impairment of title, in whole or in part, granted or otherwise recognized under State law, by Federal or State adjudication, decree, or other judgment, or pursuant to any interstate water compact. Additionally, none of the funds made available in this or any other Act may be used to require any water user to apply for or acquire a water right in the name of the United States under State law as a condition of the issuance, renewal, amendment, or extension of any permit, approval, license, lease, allotment, easement, right-of-way, or other land use or occupancy agreement.

LIMITATION ON STATUS CHANGES

SEC. 434. None of the funds made available by this Act shall be used to propose, finalize, implement, or enforce any regulation or guidance under Section 612 of the Clean Air Act (42 U.S.C. 7671k) that changes the status from acceptable to unacceptable for purposes of the Significant New Alternatives Policy (SNAP) program of any hydrofluorocarbon used as a refrigerant or in foam blowing agents, applications or uses. Nothing in this section shall prevent EPA from approving new materials, applications or uses as acceptable under the SNAP program.

USE OF AMERICAN IRON AND STEEL

SEC. 435. (a)(1) None of the funds made available by a State water pollution control revolving fund as authorized by section 1452 of the Safe Drinking Water Act (42 U.S.C. 300j-12) shall be used for a project for the construction, alteration, maintenance, or repair of a public water system or treatment works unless all of the iron and steel products used in the project are produced in the United States.

(2) In this section, the term ''iron and steel'' products means the following products made primarily of iron or steel: lined or unlined pipes and fittings, manhole covers and other municipal castings, hydrants, tanks, flanges, pipe clamps and restraints, valves, structural steel, reinforced precast concrete, and construction materials.

(b) Subsection (a) shall not apply in any case or category of cases in which the Administrator of the Environmental Protection Agency (in this section referred to as the ''Administrator'') finds that—

(1) applying subsection (a) would be inconsistent with the public interest;

(2) iron and steel products are not produced in the United States in sufficient and reasonably available quantities and of a satisfactory quality; or

(3) inclusion of iron and steel products produced in the United States will increase the cost of the overall project by more than 25 percent.

(c) If the Administrator receives a request for a waiver under this section, the Administrator shall make available to the public on an informal basis a copy of the request and information available to the Administrator concerning the request, and shall allow for informal public input on the request for at least 15 days prior to making a finding based on the request. The Administrator shall make the request and accompanying information available by electronic means, including on the official public Internet Web site of the Environmental Protection Agency.

(d) This section shall be applied in a manner consistent with United States obligations under international agreements.

(e) The Administrator may retain up to 0.25 percent of the funds appropriated in this Act for the Clean and Drinking Water State Revolving Funds for carrying out the provisions described in subsection (a)(1) for management and oversight of the requirements of this section.

SOCIAL COST OF CARBON

SEC. 436. None of the funds made available by this or any other Act shall be used for the social cost of carbon (SCC) to be incorporated into any rulemaking or guidance document until a new Interagency Working Group (IWG) revises the estimates using the discount rates and the domestic-only limitation on benefits estimates in accordance with Executive Order 12866 and OMB Circular A-4 as of January 1, 2015: *Provided*, That such IWG shall provide to the public all documents, models, and assumptions used in developing the SCC and solicit public comment prior to finalizing any revised estimates.

LIMITATION ON USE OF FUNDS FOR DESIGNATED REPRESENTATIVES

SEC. 437. None of the funds made available by this or any other Act may be used to implement or enforce, or to require States to implement or enforce, the provisions of 40 CFR 170.311(b)(9) as published in the Federal Register on November 2, 2015.

OZONE

SEC. 438. To implement the national ambient air quality standards for ozone published in the Federal Register on October 26, 2015 (80 Fed. Reg. 65292):

(1) the Governor of each State shall designate areas of the State as attainment, nonattainment, or unclassifiable with respect to the standards not later than October 26, 2024;

(2) the Administrator of the Environmental Protection Agency shall promulgate final designations for all areas in all States with respect to the standards not later than October 26, 2025;

(3) each State shall submit the plan required by section 110(a)(1) of the Clean Air Act (42 U.S.C. 7410(a)(1)) for the standards not later than October 26, 2026;

(4) the standards shall not apply to the review and disposition of a preconstruction permit application required under part C or D of title I of the Clean Air Act (42 U.S.C. 7470 et seq.) if the Administrator or the State, local or tribal permitting authority, as applicable, has determined the application to be complete prior to the date of promulgation of final designations, or has published a public notice of a preliminary determination or draft permit before the date that is 60 days after the date of promulgation of final designations; and

(5) the provisions of subsections (1) through (4) above shall apply notwithstanding the deadlines set forth in Section 107(d) of the Clean Air Act (42 U.S.C. 7407(d)) and Section 110(a)(1) of the Clean Air Act (42 U.S.C. 7410(a)(1)).

METHANE EMISSIONS

SEC. 439. None of the funds made available by this Act shall be used to develop, propose, finalize, implement or enforce—

(1) any rule or guideline to address methane emissions from sources in the oil and natural gas sector under Sections 111(b) or (d) of the Clean Air Act (42 U.S.C. 7411(b), 7411(d));

(2) any rule changing the term ''adjacent'' for purposes of defining ''stationary source'' and ''major source'' as applied to the oil and gas sector under the Clean Air Act; and

(3) proposed Draft Control Techniques Guidelines for the Oil and Natural Gas Industry released September 18, 2015 (80 Fed. Reg. 56577).

ROYALTY RATES

SEC. 440. None of the funds made available by this Act may be used to implement any changes to royalty rates or product valuation regulations under Federal coal, oil, and gas leasing programs.

PROGRAM REVIEW

SEC. 441. (a) TERMINATION.—Secretarial Order 3338, issued by the Secretary of the Interior on January 15, 2016, shall have no force or effect on and after the earlier of—

(1) September 30, 2017; or

(2) the date of publication of notice under subsection (b).

(b) PUBLICATION OF NOTICE.—The Secretary of the Interior shall promptly publish notice of the completion of the Programmatic Environmental Impact Statement directed to be prepared under that order.

NATIONAL GALLERY OF ART

SEC. 442. Section 6301(2) of title 40, United States Code, is amended—

(1) in the matter preceding subparagraph (A), by striking ''The National Gallery of Art'' and inserting ''(A) The National Gallery of Art'';

(2) by redesignating subparagraphs (A), (B), and (C) as clauses (i), (ii), and (iii), respectively; and

(3) by adding at the end the following new subparagraph: ''(B) All other buildings, service roads, walks, and other areas within the exterior boundaries of any real estate or land or interest in land (including temporary use) that the National Gallery of Art acquires and that the Director of the National Gallery of Art determines to be necessary for the adequate protection of individuals or property in the National Gallery of Art and suitable for administration as a part of the National Gallery of Art.''.

BLM PLANNING 2.0 RULEMAKING ON LAND USE PLANNING PROCEDURES

SEC. 443. None of the funds made available by this Act may be used to promulgate, implement, administer, or enforce the rule published by the Bureau of Land Management in the Federal Register on February 25, 2016 (81 Fed. Reg. 9673 et seq.; Fed. Reg. Doc. No. 2016–03232), to amend subparts 1601 and 1610 of title 43, Code of Federal Regulations, which establish the procedures used to prepare, revise, or amend land use plans pursuant to the Federal Land Policy and Management Act of 1976 (43 U.S.C. 1701 et seq.), until the Secretary of the Interior provides an additional 90-day period for public comments on the proposed rule and holds at least one more public meeting on the proposed rule in each of the eleven contiguous Western States (as defined in section 103(o) of such Act (43 U.S.C. 1702(o))), Texas. and Oklahoma.

HUMANE TRANSFER OF EXCESS ANIMALS

SEC. 444. Notwithstanding any other provision of law, the Secretary of the Interior may transfer excess wild horses or burros

that have been removed from the public lands to other Federal, State, and local government agencies for use as work animals: *Provided*, That the Secretary may make any such transfer immediately upon request of such Federal, State, or local government agency: *Provided further*, That any excess animal transferred under this provision shall lose its status as a wild free-roaming horse or burro as defined in the Wild Free-Roaming Horses and Burros Act: *Provided further*, That any Federal, State, or local government agency receiving excess wild horses or burros as authorized in this section shall not destroy the horses or burros in a way that results in their destruction into commercial products, or sell or otherwise transfer the horses in a way that results in their destruction for processing into commercial products.

LIMITATION ON USE OF FUNDS FOR TREATMENT OF LESSER PRAIRIE CHICKEN UNDER ENDANGERED SPECIES ACT OF 1973

SEC. 445. None of the funds made available by this Act shall be used to treat the lesser prairie chicken as an endangered species or threatened species, or a candidate for listing as such a species, under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.).

INDIAN HEALTH GOVERNING BOARD

SEC. 446. Not later than six months after the date of receipt by the Secretary of Health and Human Services of a written request from the tribe or tribes served by a hospital operated by the Indian Health Service, the Secretary shall install a governance board exclusively for such hospital for a trial period of three years: *Provided*, That the governance board shall be comprised of Indian Health Service senior executives, elected tribal officials, and hospital administration experts outside of the Indian Health Service system: *Provided further*, that the governance board shall follow industry-wide best practices: *Provided further*, that the governance board shall approve, oversee the implementation of, and evaluate metrics of quality care, patient safety and satisfaction, and finance: *Provided further*, that the governance board shall work with the Indian Health Service on developing standards and procedures for employee recruitment, retention, training, communication, and dismissal to assure consistency with other high performing federally run health facilities: *Provided further*, that the hospital shall have a chief executive officer hired and accountable to the Director of the Indian Health Service who shall be a liaison between the Indian Health Service and the governance board: *Provided further*, that the chief executive officer shall retain authority for all hospital personnel matters in accordance with existing law: *Provided further*, that the chief executive officer and the governance board shall sign a memorandum of understanding to share all pertinent hospital information while protecting individual privacy rights in accordance with existing law: Provided further, that the Secretary shall replace the chief executive officer upon receipt of a written request by the governance board: *Provided further*, that the governance board shall meet at the hospital regularly: *Provided further,* that the governance board shall regularly communicate to the affected tribe or tribes, to the Secretary, and to the Congress: *Provided further*, that at the end of the trial period, the governance board shall publish and disseminate a report evaluating the aforementioned metrics and providing recommendations for any other tribe or tribes wanting to establish a similar governance board at any other hospital operated by the Indian Health Service: *Provided further,* that if a tribe moves from direct service delivery to delivery through contracting or compacting pursuant to Public Law 93–638, the tribe involved in the pilot has the opportunity to end the pilot and the opportunity to collaborate with the Indian Health Service to reconfigure a governance structure in which that Indian Health Service may upon request continue its participation in the governance structure in a contracted or compacted arrangement.

SCIENTIFICALLY SUPPORTED IMPLEMENTATION OF OMR FLOW REQUIREMENTS

SEC. 447. (a) To maximize water supplies for the Central Valley Project and the State Water Project, in implementing the provisions of the smelt biological opinion or salmonid biological opinion, or any successor biological opinions or court orders, pertaining to management of reverse flow in the Old and Middle Rivers, the Secretary of the Interior shall—

(1) consider the relevant provisions of the applicable biological opinions or any successor biological opinions;

(2) manage export pumping rates to achieve a reverse OMR flow rate of −5,000 cubic feet per second unless existing information or that developed by the Secretary of the Interior under paragraphs (3) and (4) leads the Secretary to reasonably conclude, using the best scientific and commercial data available, that a less negative OMR flow rate is necessary to avoid a significant negative impact on the long-term survival of the species covered by the smelt biological opinion or salmonid biological opinion. If the best scientific and commercial data available to the Secretary indicates that a reverse OMR flow rate more negative than −5,000 cubic feet per second can be established without an imminent negative impact on the long-term survival of the species covered by the smelt biological opinion or salmonid biological opinion, the Secretary shall manage export pumping rates to achieve that more negative OMR flow rate;

(3) document, in writing, any significant facts about real-time conditions relevant to the determinations of OMR reverse flow rates, including—

(A) whether targeted real-time fish monitoring pursuant to this section, including monitoring in the vicinity of Station 902, indicates that a significant negative impact on the long-term survival of species covered by the smelt biological opinion or salmonid biological opinion is imminent; and

(B) whether near-term forecasts with available models show under prevailing conditions that OMR flow of −5,000 cubic feet per second or higher will cause a significant negative impact on the long-term survival of species covered by the smelt biological opinion or salmonid biological opinion;

(4) show, in writing, that any determination to manage OMR reverse flow at rates less negative than −5,000 cubic feet per second is necessary to avoid a significant negative impact on the long-term survival of species covered by the smelt biological opinion or salmonid biological opinion, and provide, in writing, an explanation of the data examined and the connection between those data and the choice made, after considering—

(A) the distribution of Delta smelt throughout the Delta;

(B) the potential effects of documented, quantified entrainment on subsequent Delta smelt abundance;

(C) the water temperature;

(D) other significant factors relevant to the determination; and

(E) whether any alternative measures could have a substantially lesser water supply impact; and

(5) for any subsequent smelt biological opinion or salmonid biological opinion, make the showing required in paragraph (4) for any determination to manage OMR reverse flow at rates less negative than the most negative limit in the biological opinion if the most negative limit in the biological opinion is more negative than −5,000 cubic feet per second.

(b) NO REINITIATION OF CONSULTATION.—In implementing or at the conclusion of actions under subsection (a), the Secretary of the Interior or the Secretary of Commerce shall not reinitiate consultation on those adjusted operations unless there is a significant negative impact on the long-term survival of the species covered by the smelt biological opinion or salmonid biological opinion. Any action taken under subsection (a) that does not create a significant negative impact on the long-term survival to species covered by the smelt biological opinion or salmonid biological opinion will not alter application of the take permitted by the incidental take statement in the biological opinion under section 7(o)(2) of the Endangered Species Act of 1973.

(c) CALCULATION OF REVERSE FLOW IN OMR.—Within 90 days of the enactment of this title, the Secretary of the Interior is directed, in consultation with the California Department of Water Resources to revise the method used to calculate reverse flow in Old and Middle Rivers, for implementation of the reasonable and prudent alternatives in the smelt biological opinion and the salmonid biological opinion, and any succeeding biological opinions, for the purpose of increasing Central Valley Project and State Water Project water supplies. The method of calculating reverse flow in Old and Middle Rivers shall be reevaluated not less than every five years thereafter to achieve maximum export pumping rates within limits established by the smelt biological opinion, the salmonid biological opinion, and any succeeding biological opinions.

TEMPORARY OPERATIONAL FLEXIBILITY FOR FIRST FEW STORMS OF THE WATER YEAR

SEC. 448. (a) IN GENERAL.—Consistent with avoiding an immediate significant negative impact on the long-term survival upon listed fish species over and above the range of impacts authorized under the Endangered Species Act of 1973 and other environmental protections under subsection (d), the Secretary of the Interior and the Secretary of Commerce shall authorize the Central Valley Project and the California State Water Project, combined, to operate at levels that result in negative OMR flows at −7,500 cubic feet per second (based on United States Geological Survey gauges on Old and Middle Rivers) daily average as described in subsections (b) and (c) to capture peak flows during storm events.

(b) DAYS OF TEMPORARY OPERATIONAL FLEXIBILITY.—The temporary operational flexibility described in subsection (a) shall be authorized on days that the California Department of Water Resources determines the net Sacramento-San Joaquin River Delta outflow index is at, or above, 13,000 cubic feet per second.

(c) COMPLIANCE WITH ENDANGERED SPECIES ACT AUTHORIZATIONS.—In carrying out this section, the Secretary of the Interior and the Secretary of Commerce may continue to impose any requirements under the smelt biological opinion and salmonid biological opinion during any period of temporary operational flexibility as they determine are reasonably necessary to avoid additional significant negative impacts on the long-term survival of a listed fish species over and above the range of impacts authorized under the Endangered Species Act of 1973, provided that the requirements imposed do not reduce water supplies available for the Central Valley Project and the California State Water Project.

(d) OTHER ENVIRONMENTAL PROTECTIONS.—

(1) STATE LAW.—The actions of the Secretary of the Interior and the Secretary of Commerce under this section shall be consistent with applicable regulatory requirements under State law. The foregoing does not constitute a waiver of sovereign immunity.

(2) FIRST SEDIMENT FLUSH.—During the first flush of sediment out of the Sacramento-San Joaquin River Delta in each water year, and provided that such determination is based upon objective evidence, OMR flow may be managed at rates less negative than −5,000 cubic feet per second for a minimum duration to avoid movement of adult Delta smelt (*Hypomesus transpacificus*) to areas in the southern Sacramento-San Joaquin River Delta that would be likely to increase entrainment at Central Valley Project and California State Water Project pumping plants.

(3) APPLICABILITY OF OPINION.—This section shall not affect the application of the salmonid biological opinion from April 1 to May 31, unless the Secretary of Commerce finds, based on the best scientific and commercial data available, that some or all of such applicable requirements may be adjusted during this time period to provide emergency water supply relief without resulting in additional adverse effects over and above the range of impacts authorized under the Endangered Species Act of 1973. In addition to any other actions to benefit water supply, the Secretary of the Interior and the Secretary of Commerce shall consider allowing through-Delta water transfers to occur during this period if they can be accomplished consistent with section 3405(a)(1)(H) of the Central Valley Project Improvement Act. Water transfers solely or exclusively through the California State Water Project that do not require any use of Reclamation facilities or approval by Reclamation are not required to be consistent with section 3405(a)(1)(H) of the Central Valley Project Improvement Act.

(4) MONITORING.—During operations under this section, the Commissioner of Reclamation, in coordination with the United States Fish and Wildlife Service, National Marine Fisheries Service, and California Department of Fish and Wildlife, shall undertake expanded monitoring programs and other data gathering to improve Central Valley Project and California State Water Project water supplies, to ensure incidental take levels are not exceeded, and to identify potential negative impacts, if any, and actions necessary to mitigate impacts of the temporary operational flexibility to species listed under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.).

(e) EFFECT OF HIGH OUTFLOWS.—In recognition of the high outflow levels from the Sacramento-San Joaquin River Delta during the days this section is in effect under subsection (b), the Secretary of the Interior and the Secretary of Commerce shall not count such days toward the 5-day and 14-day running averages of tidally filtered daily Old and Middle River flow requirements under the smelt biological opinion and salmonid biological opinion, as long as the Secretaries avoid significant negative impact on the long-term survival of listed fish species over and above the range of impacts authorized under the Endangered Species Act of 1973.

(f) LEVEL OF DETAIL REQUIRED FOR ANALYSIS.—In articulating the determinations required under this section, the Secretary of the Interior and the Secretary of Commerce shall fully satisfy the requirements herein but shall not be expected to provide a greater level of supporting detail for the analysis than feasible to provide within the short timeframe permitted for timely decision making in response to changing conditions in the Sacramento-San Joaquin River Delta.

(g) OMR FLOWS.—The Secretary of the Interior and the Secretary of Commerce shall, through the adaptive management provisions in the salmonid biological opinion, limit OMR reverse flow to −5,000 cubic feet per second based on date-certain triggers in the salmonid biological opinions only if using real-time migration information on salmonids demonstrates that such action is necessary to avoid a significant negative impact on the long-term survival of listed fish species over and above the range of impacts authorized under the Endangered Species Act of 1973.

(h) NO REINITIATION OF CONSULTATION.—In implementing or at the conclusion of actions under this section, the Secretary of the Interior shall not reinitiate consultation on those adjusted operations if there is no immediate significant negative impact on the long-term survival of listed fish species over and above the range of impacts authorized under the Endangered Species Act of 1973. Any action taken under this section that does not create an immediate significant negative impact on the long-term survival of listed fish species over and above the range of impacts authorized under the Endangered Species Act of 1973 will not alter application of the take permitted by the incidental take statement in those biological opinions under section 7(o)(2) of the Endangered Species Act of 1973.

STATE WATER PROJECT OFFSET AND WATER RIGHTS PROTECTIONS

SEC. 449. (a) OFFSET FOR STATE WATER PROJECT.—

(1) IMPLEMENTATION IMPACTS.—The Secretary of the Interior shall confer with the California Department of Fish and Wildlife in connection with the implementation of this section on potential impacts to any consistency determination for operations of the State Water Project issued pursuant to California Fish and Game Code section 2080.1.

(2) ADDITIONAL YIELD.—If, as a result of the application of this section, the California Department of Fish and Wildlife—

(A) determines that operations of the State Water Project are inconsistent with the consistency determinations issued pursuant to California Fish and Game Code section 2080.1 for operations of the State Water Project; or

(B) requires take authorization under California Fish and Game Code section 2081 for operation of the State Water Project in a manner that directly or indirectly results in reduced water supply to the State Water Project as compared with the water supply available under the smelt biological opinion and the salmonid biological opinion; and as a result, Central Valley Project yield is greater than it otherwise would have been, then that additional yield shall be made available to the State Water Project for delivery to State Water Project contractors to offset that reduced water supply.

(3) NOTIFICATION RELATED TO ENVIRONMENTAL PROTECTIONS.—The Secretary of the Interior and Secretary of Commerce shall—

(A) notify the Director of the California Department of Fish and Wildlife regarding any changes in the manner in which the smelt biological opinion or the salmonid biological opinion is implemented; and

(B) confirm that those changes are consistent with the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.).

(b) AREA OF ORIGIN AND WATER RIGHTS PROTECTIONS.—

(1) IN GENERAL.—The Secretary of the Interior and the Secretary of Commerce, in carrying out the mandates of this section, shall take no action that—

(A) diminishes, impairs, or otherwise affects in any manner any area of origin, watershed of origin, county of origin, or any other water rights protection, including rights to water appropriated before December 19, 1914, provided under State law;

(B) limits, expands or otherwise affects the application of section 10505, 10505.5, 11128, 11460, 11461, 11462, 11463 or 12200 through 12220 of the California Water Code or any other provision of State water rights law, without respect to whether such a provision is specifically referred to in this section; or

(C) diminishes, impairs, or otherwise affects in any manner any water rights or water rights priorities under applicable law.

(2) SECTION 7 OF THE ENDANGERED SPECIES ACT.—Any action proposed to be undertaken by the Secretary of the Interior and the Secretary of Commerce pursuant to both this section and section 7 of the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) shall be undertaken in a manner that does not alter water rights or water rights priorities established by California law or it shall not be undertaken at all. Nothing in this subsection affects the obligations of the Secretary of the Interior and the Secretary of Commerce under section 7 of the Endangered Species Act of 1973.

(3) EFFECT OF ACT.—

(A) Nothing in this section affects or modifies any obligation of the Secretary of the Interior under section 8 of the Act of June 17, 1902 (32 Stat. 390, chapter 1093).

(B) Nothing in this section diminishes, impairs, or otherwise affects in any manner any Project purposes or priorities for the allocation, delivery or use of water under applicable law, including the Project purposes and priorities established under section 3402 and section 3406 of the Central Valley Project Improvement Act (Public Law 102–575; 106 Stat. 4706).

(c) NO REDIRECTED ADVERSE IMPACTS.—

(1) IN GENERAL.—The Secretary of the Interior and Secretary of Commerce shall not carry out any specific action authorized under this section that will directly or through State agency action indirectly result in the involuntary reduction of water supply to an individual, district, or agency that has in effect a contract for water with the State Water Project or the Central Valley Project, including Settlement and Exchange contracts, refuge contracts, and Friant Division contracts, as compared to the water supply that would be provided in the absence of action under this section, and nothing in this section is intended to modify, amend or affect any of the rights and obligations of the parties to such contracts.

(2) ACTION ON DETERMINATION.—If, after exploring all options, the Secretary of the Interior or the Secretary of Commerce makes a final determination that a proposed action under this section cannot be carried out in accordance with paragraph (1), that Secretary—

(A) shall document that determination in writing for that action, including a statement of the facts relied on, and an explanation of the basis, for the decision;

(B) may exercise the Secretary's existing authority, including authority to undertake the drought-related actions otherwise addressed in this title, or to otherwise comply with other applicable law, including the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.); and

(C) shall comply with subsection (a).

(d) ALLOCATIONS FOR SACRAMENTO VALLEY WATER SERVICE CONTRACTORS.—

(1) DEFINITIONS.—In this subsection:

(A) EXISTING CENTRAL VALLEY PROJECT AGRICULTURAL WATER SERVICE CONTRACTOR WITHIN THE SACRAMENTO RIVER WATERSHED.—The term ''existing Central Valley Project agricultural water service contractor within the Sacramento River Watershed'' means

any water service contractor within the Shasta, Trinity, or Sacramento River division of the Central Valley Project that has in effect a water service contract on the date of enactment of this section that provides water for irrigation.

(B) YEAR TERMS.—The terms ''Above Normal'', ''Below Normal'', ''Dry'', and ''Wet'', with respect to a year, have the meanings given those terms in the Sacramento Valley Water Year Type (40–30–30) Index.

(2) ALLOCATIONS OF WATER.—

(A) ALLOCATIONS.—Subject to subsection (c), the Secretary of the Interior shall make every reasonable effort in the operation of the Central Valley Project to allocate water provided for irrigation purposes to each existing Central Valley Project agricultural water service contractor within the Sacramento River Watershed in accordance with the following:

(i) Not less than 100 percent of the contract quantity of the existing Central Valley Project agricultural water service contractor within the Sacramento River Watershed in a ''Wet'' year.

(ii) Not less than 100 percent of the contract quantity of the existing Central Valley Project agricultural water service Contractor within the Sacramento River Watershed in an ''Above Normal'' year.

(iii) Not less than 100 percent of the contract quantity of the existing Central Valley Project agricultural water service contractor within the Sacramento River Watershed in a ''Below Normal'' year that is preceded by an ''Above Normal'' or ''Wet'' year.

(iv) Not less than 50 percent of the contract quantity of the existing Central Valley Project agricultural water service contractor within the Sacramento River Watershed in a ''Dry'' year that is preceded by a ''Below Normal'', ''Above Normal'', or ''Wet'' year.

(v) Subject to clause (ii), in any other year not identified in any of clauses (i) through (iv), not less than twice the allocation percentage to south-of-Delta Central Valley Project agricultural water service contractors, up to 100 percent.

(B) EFFECT OF CLAUSE.—Nothing in clause (A)(v) precludes an allocation to an existing Central Valley Project agricultural water service contractor within the Sacramento River Watershed that is greater than twice the allocation percentage to a south-of-Delta Central Valley Project agricultural water service contractor.

(3) PROTECTION OF ENVIRONMENT, MUNICIPAL AND INDUSTRIAL SUPPLIES, AND OTHER CONTRACTORS.—

(A) ENVIRONMENT.—Nothing in paragraph (2) shall adversely affect—

(i) the cold water pool behind Shasta Dam;

(ii) the obligation of the Secretary of the Interior to make water available to managed wetlands pursuant to section 3406(d) of the Central Valley Project Improvement Act (Public Law 102–575; 106 Stat. 4722); or

(iii) any obligation—

(I) of the Secretary of the Interior and the Secretary of Commerce under the smelt biological opinion, the salmonid biological opinion, or any other applicable biological opinion; or

(II) under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) or any other applicable law (including regulations).

(B) MUNICIPAL AND INDUSTRIAL SUPPLIES.—Nothing in paragraph (2)—

(i) modifies any provision of a water Service contract that addresses municipal or industrial water shortage policies of the Secretary of the Interior and the Secretary of Commerce;

(ii) affects or limits the authority of the Secretary of the Interior and the Secretary of Commerce to adopt or modify municipal and industrial water shortage policies;

(iii) affects or limits the authority of the Secretary of the Interior and the Secretary of Commerce to implement a municipal or industrial water shortage policy;

(iv) constrains, governs, or affects, directly or indirectly, the operations of the American River division of the Central Valley Project or any deliveries from that division or a unit or facility of that division; or

(v) affects any allocation to a Central Valley Project municipal or industrial water service contractor by increasing or decreasing allocations to the contractor, as compared to the allocation the contractor would have received absent paragraph (2).

(C) OTHER CONTRACTORS.—Nothing in subsection (b)—

(i) affects the priority of any individual or entity with Sacramento River water rights, including an individual or entity with a Sacramento River settlement contract, that has priority to the diversion and use of Sacramento River water over water rights held by the United States for operations of the Central Valley Project;

(ii) affects the obligation of the United States to make a substitute supply of water available to the San Joaquin River exchange contractors;

(iii) affects the allocation of water to Friant division contractors of the Central Valley Project;

(iv) results in the involuntary reduction in contract water allocations to individuals or entities with contracts to receive water from the Friant division; or

(v) authorizes any actions inconsistent with State water rights law.

SEC. 450. None of the funds in this Act shall be available to implement the Stipulation of Settlement (Natural Resources Defense Council, et al. v. Kirk Rodgers, et al., Eastern District of California, No. Civ. 9 S–88–1658 LKK/GGH) or subtitle A of title X of Public Law 111–11.

SEC. 451. None of the funds in this Act shall be available for the purchase of water in the State of California to supplement instream flow within a river basin that has suffered a drought within the last two years.

SEC. 452. The Commissioner of Reclamation is directed to work with local water and irrigation districts in the Stanislaus River Basin to ascertain the water storage made available by the Draft Plan of Operations in New Melones Reservoir (DRPO) for water conservation programs, conjunctive use projects, water transfers, rescheduled project water and other projects to maximize water storage and ensure the beneficial use of the water resources in the Stanislaus River Basin. All such programs and projects shall be implemented according to all applicable laws and regulations. The source of water for any such storage program at New Melones Reservoir shall be made available under a valid water right, consistent with the State water transfer guidelines and any other applicable State water law. The Commissioner shall inform the Congress within 18 months setting forth the amount of storage made available by the DRPO that has been put to use under this program, including proposals received by the Commissioner from interested parties for the purpose of this section.

SEC. 453. None of the funds made available by this Act may be used to make a Presidential declaration by public proclamation of a national monument under chapter 3203 of title 54, United States Code in the counties of Coconino, Maricopa, Mohave and Yavapai in the State of Arizona, in the counties of Modoc and Siskiyou in the State of California, in the counties of Chaffee, Conejos, Dolores, Moffat, Montezuma, and Park in the State of Colorado, in the counties of Carson City, Churchill, Clark, Douglas, Elko, Eureka, Humboldt, Lander, Lincoln, Lyon, Nye, Pershing, Storey and Washoe in the State of Nevada, in the county of Otero in the State of New Mexico, in the counties of Jackson, Josephine and, Malheur in the State of Oregon, in the counties of Beaver, Carbon, Duchesne, Emery, Garfield, Iron, Juab, Kane, Millard, Piute, San Juan, Sanpete, Sevier, Tooele, Uintah, Washington, and Wayne in the State of Utah, or in the county of Penobscot in the State of Maine.

SPENDING REDUCTION ACCOUNT

SEC. 454. The amount by which the applicable allocation of new budget authority made by the Committee on Appropriations of the House of Representatives under section 302(b) of the Congressional Budget Act of 1974 exceeds the amount of proposed new budget authority is $0.

The CHAIR. Are there any points of order against that portion of the bill?

POINT OF ORDER

Mr. BISHOP of Utah. Mr. Chairman, I raise a point of order against section 128—that is, page 71, lines 19 through 25—of an otherwise excellent H.R. 5538 for failure to comply with clause 2 of rule XXI. This provision proposes to construe existing law by approving after the fact certain actions of the Secretary of the Interior found to violate section 5 of the Indian Reorganization Act of 1939 by the Supreme Court in the case of Carcieri v. Salazar. That case held that lands taken into trust by the Secretary of the Interior for tribes that were not federally recognized on June 18, 1934, were invalid.

This constitutes legislation on an appropriations bill in violation of clause 2 of rule XXI. I ask for a ruling from the Chair.

The CHAIR. Does any other Member wish to be heard on the point of order?

The Chair recognizes the gentlewoman from Minnesota.

Ms. MCCOLLUM. Mr. Chairman, if I could ask Chairman BISHOP to a question, I just want to be clear. Is the chairman planning on moving the Carcieri language that has been in his committee for quite a while?

The CHAIR. The gentlewoman may argue on the point of order only.

Ms. MCCOLLUM. Oh, I am sorry. Thank you.

The CHAIR. Does any other Member wish to be heard on the point of order?

The Chair is prepared to rule.

The Chair finds that this provision construes existing law by deeming specified lands to be trust land. The provision, therefore, constitutes legislation in violation of clause 2 of rule XXI.

The point of order is sustained, and the provision is stricken from the bill.

No amendment to the bill shall be in order except those printed in House Report 114–683, amendments en bloc described in section 3 of House Resolution 820, and pro forma amendments described in section 4 of that resolution.

Each amendment printed in the report shall be considered only in the order printed in the report, may be offered only by a Member designated in

the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment except as provided by section 4 of House Resolution 820, and shall not be subject to a demand for division of the question.

It shall be in order at any time for the chair of the Committee on Appropriations or his designee to offer amendments en bloc consisting of amendments printed in the report not earlier disposed of. Amendments en bloc shall be considered as read, shall be debatable for 20 minutes equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations or their respective designees, shall not be subject to amendment except as provided by section 4 of House Resolution 820, and shall not be subject to a demand for division of the question.

During consideration of the bill for amendment, the chair and ranking minority member of the Committee on Appropriations or their respective designees may offer up to 10 pro forma amendments each at any point for the purpose of debate.

AMENDMENT NO. 1 OFFERED BY MS. CASTOR OF FLORIDA

The CHAIR. It is now in order to consider amendment No. 1 printed in House Report 114–683.

Ms. CASTOR of Florida. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 8, line 22, after the dollar amount insert ''(increased by $2,434,000)''.

Page 38, line 20, after the dollar amount insert ''(reduced by $2,434,000)''.

The CHAIR. Pursuant to House Resolution 820, the gentlewoman from Florida (Ms. CASTOR) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Florida.

Ms. CASTOR of Florida. Mr. Chairman, my amendment increases the law enforcement budget for America's national wildlife refuges by $2.4 million to match the President's budget request. The plus-up would be fully offset from the account relating to the Office of the Secretary.

Mr. Chairman, America's national wildlife refuges encompass millions and millions of acres of public conservation lands and waters that provide endless opportunities for families to fish and enjoy the great outdoors. Our wildlife refuges are extremely popular, with over 48 million visitors annually, but many folks do not know they are suffering from a serious shortfall in law enforcement protection.

In May of 2015, the International Association of Chiefs of Police recommended substantial increases to law enforcement resources for our national wildlife refuges. The report detailed the urgent need for officers to counter nefarious activities like drug production and smuggling, wildlife poaching, illegal border activity, assaults, and a variety of natural resource violations.

This is consistent with what I hear at home in the Tampa Bay area. I represent the Egmont Key National Wildlife Refuge. It is part of a massive 30,000-acre national wildlife refuge complex, the Chassahowitzka on the west coast of Florida along the Gulf of Mexico. That 30,000 acres has two law enforcement officers assigned to it, and this is a busy, busy tourist area. People really enjoy the wildlife refuges, but they are really suffering from a lot of nefarious activities.

We need these additional funds, and with the additional funds, the Service should prioritize hiring additional Federal wildlife officers to serve the urban refuges and obtain equipment that is necessary to protect the resources and protect the visitors.

In 2014, Service Federal wildlife officers managed over 42,000 service-related incidents, crimes, and request for services. That was a 20 percent increase from 2013, which included rapes, robberies, kidnappings, assaults, burglaries, larcenies, motor vehicle thefts, natural resource violations, timber thefts, arsons, trespassing, poaching, hunting and fishing violations, undocumented person apprehensions. In 2015, there were over 306 serious incidents reported, a 6 percent increase over the previous year.

My home State of Florida is blessed with beautiful bays and rivers and coastline. We have the most wildlife refuges in the country, with 29, including the three in Tampa Bay: The beautiful Egmont Key Wildlife Refuge, Pinellas, and Passage Key. These are areas we have to protect, and we have to protect the visitors that enjoy our wildlife refuges.

The number of visitors is increasing every year, and we can't ignore the shortage of law enforcement officers anymore. This is an ongoing shortage that must be addressed. I urge my colleagues to address this important public safety issue and adopt the Castor amendment.

I yield 1 minute to the gentlewoman from Minnesota (Ms. MCCOLLUM).

Ms. MCCOLLUM. Mr. Chairman, I rise in support of Ms. CASTOR's amendment.

This amendment seeks additional funding for the refuge law enforcement, which we saw here the national wildlife refuge highlight the need for adequate law enforcement to protect our national wildlife refuge.

This amendment will also ensure that refuge law enforcement, along with others in the Interior bill who provide law enforcement, will make sure that our visitors and our public employees and our natural resources all remain safe, and especially that these men and women can come home to their loved ones at the end of their shift.

I urge my colleagues to support this amendment.

Mr. CALVERT. Mr. Chairman, I rise in opposition to the amendment.

The CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chairman, I recognize and support the need for a right size law enforcement presence wherever people visit Federal lands, but this amendment would implement the budget request to hire 16 more Federal wildlife fire officers primarily in urban areas.

Urban areas already have a strong local law enforcement presence, so the Federal Government should first look to contract with local law enforcement before deciding to hire more Federal officers. Furthermore, of all the law enforcement responsibilities covered in this bill, the biggest gap exists on Indian reservations, where 911 response times are often measured in hours and days instead of minutes.

Before we pull more money out of the account that pays unsung civil servants to carry out the most fundamental functions of the department, let's make sure we are putting the dollars where they are needed the most. I encourage the rest of my colleagues to oppose the amendment.

Mr. Chairman, I reserve the balance of my time.

Ms. CASTOR of Florida. Mr. Chairman, I appreciate Chairman CALVERT's comments, but I can speak from personal experience. Our local law enforcement officers are overworked and often not equipped to handle the concerns on our national wildlife refuges. This is a Federal responsibility, to protect these conservation lands, to protect the visitors who are hunting and fishing who are sometimes disturbing natural resource areas.

I mean, look at that list. It is really surprising: rapes and robberies and kidnappings and assaults. We can do better than this. We have to do everything we can to keep our neighbors safe at home and to protect our natural lands.

I urge adoption of the Castor amendment so that we can address this important public safety issue.

Mr. Chairman, I yield back the balance of my time.

Mr. CALVERT. Mr. Chairman, I oppose the amendment, and I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentlewoman from Florida (Ms. CASTOR).

The question was taken; and the Chair announced that the noes appeared to have it.

Ms. CASTOR. Mr. Chairman, I demand a recorded vote.

The CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Florida will be postponed.

Mr. CALVERT. Mr. Chairman, I move to strike the last word.

The CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chairman, I yield to the gentleman from Oklahoma (Mr.

COLE), a valued member of our Interior Subcommittee, for the purpose of a colloquy.

Mr. COLE. Mr. Chairman, I thank the gentleman for yielding.

I would like to thank the chairman for his extraordinary work on this legislation. Furthermore, both he and Chairman BISHOP of the Committee on Natural Resources have graciously tried to resolve a matter of great significance to Indian Country.

Beginning in the late 16th century, the size of so-called Indian Country, in what later became the United States, has steadily diminished. To reverse this trend, in 1934 Congress passed a law which allowed the Federal Government to take land into trust for the benefit of Indian tribes. Interior has done so for the past 82 years.

Interior's ability to take land into trust for all tribes was questioned in 2009 following the Supreme Court's opinion in the Carcieri v. Salazar decision. The Carcieri opinion cast doubt on whether Interior has the ability to take land into trust for the benefit of tribes if they were not ''under Federal jurisdiction'' in 1934.

Since then, Indian tribes have been threatened by legal challenges to the status of their trust lands. The possibility of litigation chills economic and infrastructure development on trust lands.

Together we have worked closely with the House Committee on Natural Resources on a provision that would have settled any dispute as to the status of a trust land up to the Carcieri decision of 2009. I come to the House floor today to express my gratitude for that effort.

□ 1730

I would like to stress that this provision had nothing to do with promoting or enhancing the ability of tribes to build and operate a gaming facility away from reservations or existing land, though, of course, they have every right to operate on existing lands as long as they comply with the provisions of the Indian Gaming Regulatory Act of 1988.

In no way is this provision designed to promote off-reservation gaming. Quite frankly, the overwhelming majority of Indian trust lands are used to provide essential government services, such as education, health care, and housing.

Well in advance of the Interior Subcommittee markup, a meeting was held between myself, Chairman CALVERT, Chairman YOUNG, and Chairman BISHOP of the Natural Resources Committee. We believed an agreement had been reached between the authorizers and the appropriators. However, further staff discussions revealed that differences still remain. For that reason, we have decided to table this matter for the time being and continue working together on a solution amenable to all parties involved.

I would like to emphasize that both the authorizers and the appropriators have worked in good faith, and I promise that we will keep doing so.

Despite the fact that the so-called Cole provision was stricken from the Interior appropriation bill, I am encouraged with the progress we have made thus far. There is no easy solution for the Carcieri problem. But if we keep working at it, I am convinced that we can reach an agreement that is acceptable to all parties.

Again, I thank the chairman for his work.

Mr. CALVERT. Reclaiming my time, I thank my friend and distinguished colleague from Oklahoma and the Chickasaw Nation. He has been a true leader for Indian Country during his tenure on the Appropriations Committee. I think we can both be proud of the progress we have made, working together in a nonpartisan way with our friends on the other side of the aisle.

On the matter of land into trust and the Carcieri decision, I am grateful for the opportunity to work with you, as well as Chairman BISHOP and Chairman YOUNG of the Natural Resources Committee, to try to come to an agreement that would affirm land taken into trust before the Carcieri decision and would improve our understanding of how the Department of the Interior arrived at decisions to take land into trust after the Carcieri decision.

It has been over 7 years since the Carcieri decision, and tribal, municipal, and State governments continue to struggle in the aftermath. We need to bring clarity and certainty to the matter of land taken into trust on behalf of our American Indian brothers and sisters.

Mr. COLE, you have my commitment to continue to work with you and the rest of our colleagues on a solution.

Mr. Chair, I yield back the balance of my time.

AMENDMENT NO. 2 OFFERED BY MR. CICILLINE

The CHAIR. It is now in order to consider amendment No. 2 printed in House Report 114–683.

Mr. CICILLINE. Mr. Chair, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 15, line 13, after the first dollar amount, insert ''(increased by $2,500,000)''.

Page 38, line 20, after the dollar amount, insert ''(reduced by $2,500,000)''.

The CHAIR. Pursuant to House Resolution 820, the gentleman from Rhode Island (Mr. CICILLINE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Rhode Island.

Mr. CICILLINE. Mr. Chairman, I yield myself such time as I may consume.

I rise today to offer an amendment which would provide a modest increase to the operation of the National Park Service account.

This August 25 will mark the 100th anniversary of our National Park Service. Each year, more than 275 million people visit our national parks. Our national parks, heritage areas, monuments, and historical sights occupy more than 84 million acres of land in all 50 States and are home to more than 1,000 endangered and threatened animal species.

My home State of Rhode Island is home to one of the newest units in the National Park Service, the Blackstone River Valley National Historic Park. The Blackstone Valley marks the birthplace of the American industrial revolution and serves as a monument to the growth of our Nation. Sites like Old Slater Mill in Pawtucket and the Museum of Work and Culture in Woonsocket help tell the story of how America became an economic superpower.

It is essential that our national park system receives the funding that is necessary to help tell America's story and preserve it for generations to come.

Being one of the newest units of the park system, Blackstone relies on long-term partnerships built over several decades in cities and towns as well as other public and private partnerships to help define its boundaries and strengthen its economic and cultural impact. However, it relies on Federal dollars, as well, from the National Park Service for its operations, including seasonal and year-round staff, maintenance of its facilities, and ongoing planning for the park's development.

Unfortunately, this bill has underfunded the account for our national parks significantly below the budget request for fiscal year 2017. As a result, the more than 400 units of the National Park Service, including Blackstone, will be forced to do more with less. This will also be a step backward for the Blackstone River Valley National Historic Park.

While the budget increase for Blackstone was modest for this year, it was an essential step forward to continue the momentum needed to allow the park to continue meeting its potential as a vital part of the New England landscape and a driver of economic growth in Rhode Island and Massachusetts.

My amendment makes a modest reduction of $2.5 million from the departmental operations account for the Department of the Interior, which receives a funding level in this bill that is more than $470 million above the budget request, and moves it to the operation of the National Park Service account, which was underfunded by more than $89 million.

This small increase to the Office of National Park Service account will not be enough to make up for the constraints that the bill places on our national parks, nor will it, of course, guarantee that Blackstone will be able to receive all the resources it truly needs. What it will do is ensure that some additional funds are available that may help Blackstone continue to

increase the momentum it has built since its establishment in 2014. The extra funds this amendment provides will help provide some relief to our national parks, which provide a critical boost to our economy.

According to the National Parks Conservation Association, every dollar the Federal Government invests in our national parks generates $10 in economic activity. Let's continue to support these critical investments in our national parks, which are the envy of the world. I urge my colleagues to support my amendment.

Mr. CALVERT. Will the gentleman yield?

Mr. CICILLINE. I yield to the gentleman from California.

Mr. CALVERT. Mr. Chair, I would urge adoption of the gentleman's amendment.

Mr. CICILLINE. Mr. Chair, I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Rhode Island (Mr. CICILLINE).

The amendment was agreed to.

AMENDMENT NO. 3 OFFERED BY MR. HIMES

The CHAIR. It is now in order to consider amendment No. 3 printed in House Report 114–683.

Mr. HIMES. Mr. Chairman, as the designee of the gentleman from Connecticut (Mr. COURTNEY), I offer amendment No. 3.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 15, line 13, after the first dollar amount, insert ''(decreased by $300,000)(increased by $300,000)''.

The CHAIR. Pursuant to House Resolution 820, the gentleman from Connecticut (Mr. HIMES) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Connecticut.

Mr. HIMES. Mr. Chairman, I am delighted to offer an amendment that was authored by my good friend and colleague, JOE COURTNEY of Connecticut.

This is an amendment that would provide, on a budget-neutral basis, $300,000 to the national park system for the New England National Scenic Trail.

This is something that is very important to us in the region of New England. It is an environmental treasure that is located in the backyards of millions of Connecticut and Massachusetts residents. The trail was officially designated as a National Scenic Trail in 2009, but has long been enjoyed by all southern New Englanders.

The New England National Scenic Trail winds through 40 communities, and nearly 2 million people live within 10 miles of it. Starting in Guilford, Connecticut, just outside my district, on the shores of the Long Island Sound, the trail winds northward on a ridgeline tracing the Connecticut River, across the Pioneer Valley highlands in Massachusetts, and ends at Royalston Falls on the Massachusetts-New Hampshire border.

This budget-neutral amendment simply ensures that $300,000 within the operation of the National Park System account will be set aside to fund the New England National Scenic Trail.

Over a decade ago, the National Park Trail feasibility study recommended that the New England Trail would need an annual operating budget of $271,000 in Federal funding; but the trail has, unfortunately, received an average of less than half that—$127,000 annually, in the NPS operations funding. Of this funding, the National Park Service takes one-third, leaving only about $43,000 for each State to manage this 223-mile-long trail, a trail that winds through some of the most scenic areas of New England and some of the most historic parts of our country with respect to the Revolutionary War.

The Massachusetts-based Appalachian Mountain Club and the Connecticut Forest and Park Association have done an outstanding job leveraging the minimal $127,000 in funding, raising $1.5 million in non-Federal dollars in 2015 alone.

Mr. Chair, this amendment will ensure stable funding for the New England Trail and safeguard a high-quality recreational and wilderness experience for the many thousands of trail users in our small, densely populated region of the country. I respectfully urge my colleagues to support this budget-neutral amendment.

Mr. Chair, I reserve the balance of my time.

Mr. CALVERT. Mr. Chair, I rise in opposition to the amendment.

The CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chair, unfortunately, the bill before us already funds the New England National Scenic Trail at the requested level, so any additional funds are not necessary at this time. I reluctantly urge a ''no'' vote on this amendment.

Mr. Chair, I reserve the balance of my time.

Mr. HIMES. Mr. Chair, I yield back the balance of my time.

Mr. CALVERT. Mr. Chair, I request a ''no'' vote.

Mr. Chair, I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Connecticut (Mr. HIMES).

The question was taken; and the Chair announced that the noes appeared to have it.

Mr. HIMES. Mr. Chair, I demand a recorded vote.

The CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Connecticut will be postponed.

AMENDMENT NO. 4 OFFERED BY MR. GRIFFITH

The CHAIR. It is now in order to consider amendment No. 4 printed in House Report 114–683.

Mr. GRIFFITH. Mr. Chair, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 28, line 3, after the dollar amount insert ''(increased by $15,000,000)''.

Page 28, line 16, after the dollar amount insert ''(increased by $15,000,000)''.

Page 73, line 3, after the dollar amount insert ''(reduced by $15,000,000)''.

The CHAIR. Pursuant to House Resolution 820, the gentleman from Virginia (Mr. GRIFFITH) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Virginia.

Mr. GRIFFITH. Mr. Chairman, I yield myself such time as I may consume.

My amendment provides a modest increase in grant funding to Appalachian States for the reclamation of abandoned mine lands in conjunction with economic and community development and reuse goals. Funding for these reclamation grants was first established last fiscal year at $90 million, but was provided exclusively to the three Appalachian States with the greatest amount of unfunded reclamation needs.

Last year, I offered an amendment to expand this program to the next three Appalachian States with the greatest unmet needs. As you might imagine, Virginia is one of those three, with the other two being Alabama and Ohio. I am encouraged that the underlying bill heeds that call and expands these grants to do the next three Appalachian States, but the need is far too great in areas like southwest Virginia, and much more can be accomplished with a small increase in this program.

My amendment increases the funding level for these grants from $90 million to $105 million, with that additional funding dedicated to setting a more balanced distribution of funds among Appalachian States. This additional funding is needed to really get in and do some work to help these Appalachian coal communities that have been economically devastated, while at the same time helping reduce the environmental impact of unreclaimed mine lands.

My office has worked closely with the House Interior Appropriations Committee staff on this amendment language to come to a resolution that ensures that additional support for one Appalachian community does not come at the expense of another Appalachian coal community.

This additional support will have a significant impact on economic development work throughout Appalachia, while being offset by a slight reduction in the EPA's environmental programs and management account, totaling only one-half of 1 percent of that account, reducing it from $2.527 billion to $2.512 billion.

Additionally, I am encouraged that staff at the Congressional Budget Office have determined that my amendment would result in a reduction of $6 million in outlays for this fiscal year,

as the money would be spent out at a slower rate over the coming years than would have occurred under the EPA's environmental programs and management account.

This program is an essential tool to help reinvigorate coal communities throughout Appalachia struggling with restoring and reclaiming abandoned mine sites in a way that would help put people back to work. I urge Members to support this amendment and support these coal communities that are struggling now more than ever.

Mr. Chairman, I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I rise in opposition to the amendment.

The CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chair, I very strongly oppose this amendment. It takes more money away from an already starved Environmental Protection Agency. The bill severely cuts the EPA's main operating accounts by $92 million; $92 million this bill already cuts from the EPA's operating account.

The very air we breathe and the water we drink are endangered by funding and policy decisions already made in this bill, and their consequences will be negatively felt in communities all across this Nation.

Now, I understand that the EPA is an easy target cut for many of my colleagues across the aisle, but I want my colleagues to understand what this amendment would cut, if adopted.

The account funds programs that are important to both sides of the aisle, including permitting for construction projects across the country, toxics risk prevention, and the very successful brownfields program, as well as pesticide listing.

I appreciate the gentleman's amendment. It shows support for the administration's POWER Plus Plan, which is a program it is modeled after. And I understand that the amendment would direct more funding to States in Appalachia that, I agree, have suffered under the ravaging environmental harm caused by coal mining. But unfortunately, I cannot support a deeper cut to the EPA, and I must oppose the amendment.

Mr. Chair, I yield back the balance of my time.

□ 1745

Mr. GRIFFITH. Mr. Chairman, I yield to the gentleman from California (Mr. CALVERT).

Mr. CALVERT. Mr. Chairman, I rise in support of the amendment. I appreciate the work the gentleman from Virginia and his staff put into crafting an amendment that the committee could support. Any program to help promote economic development in an area so devastated as the Appalachia is worthy of our support, so I urge my colleagues to adopt this amendment.

Mr. GRIFFITH. Mr. Chairman, I would just say that I recognize the concerns that the opponents to this amendment have; but what we are trying to do is to take some money, direct it for an environmental purpose, but also help take the reclaimed mine lands, make them right, make them so that they are the way they are supposed to be, and have a purpose that will then allow us to use—whether it be recreational, whether it be some other form of business, but allow us to use those lands for economic development in an area where unemployment is now peaking up over 10 percent, where depopulation is constant and where, frankly, Mr. Chairman, we can't afford more wait-till-next-year approaches from Washington, D.C.

I yield back the balance of my time.

The CHAIR. The question is on the amendment offered by the gentleman from Virginia (Mr. GRIFFITH).

The amendment was agreed to.

AMENDMENT NO. 5 OFFERED BY MR. BEN RAY LUJÁN OF NEW MEXICO

The CHAIR. It is now in order to consider amendment No. 5 printed in House Report 114–683.

Mr. BEN RAY LUJÁN of New Mexico. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 29, line 12, after the dollar amount, insert ''(decreased by $1,000,000) (increased by $1,000,000)''.

The CHAIR. Pursuant to House Resolution 820, the gentleman from New Mexico (Mr. BEN RAY LUJÁN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New Mexico.

Mr. BEN RAY LUJÁN of New Mexico. Mr. Chairman, if Chairman CALVERT and Ranking Member MCCOLLUM are able to commit to work with me on this, I do plan to withdraw this amendment, and I appreciate the time to be able to share a few words with everybody about why this amendment is so important.

I want to say a few words about my amendment and the challenges facing people in my district in New Mexico. My amendment requires the Bureau of Indian Affairs to report, identify, and adjudicate to landowners egress and ingress easements where they do not exist for landowners on land parcels adjudicated under the Pueblo Lands Act of 1924.

While this sounds like a complex issue, Mr. Chairman, it is a very simple issue, and one that was created back in 1924 with the Pueblo Lands Act. This amendment, Mr. Chairman, is the result of an issue that is specific to the State of New Mexico and the 1924 Pueblo Lands Act.

In 1924, Congress passed the Pueblo Lands Act, which established the Pueblo Lands Board. This board was tasked with adjudicating land claims to Pueblo lands, and it took about 6 years, until 1930, for the board to adjudicate these claims between the Pueblos and non-tribal landowners.

For the last 80 years, families have been able to buy homes and build homes, pass land on from one generation to the next. Everything had been going well until recently, when the Bureau of Indian Affairs alleged a trespass on some of the county roads, the County of Santa Fe, which is a local government in the State of New Mexico, that provide egress and ingress to the non-tribal residents.

Now these residents have been given patents by the United States of America. That is what the Pueblo Lands Act did, giving the clearest title to land ownership in the United States of America.

But as a result of the BIA letter, the title insurance companies in the State of New Mexico began to refuse issuing title insurance. Now, as we all know, that complicates your ability to buy a home, sell a home, or even refinance a home so that way you can re-roof a home.

In some instances, some of the families were trying to refinance that home because of bills that they have incurred for healthcare purposes; but because they are not able to get title to their home, they are not able to do so.

Mr. Chairman, these are families who have their entire savings in their homes, like many of us across America. These are families who have been saving up to build a home in a community where they grew up, where their parents grew up, where their grandparents grew up, and now they are fortunate to have a piece of land there.

I want to share with you a paragraph from a constituent by the name of Jeff Archuleta that he sent to me. He writes:

''When I grew up and my wife and I started a family of our own, it was easy for me to decide where I wanted to raise our boys. I was fortunate enough to obtain an acre of land from my father. I don't know exactly how long this parcel of land had been in my family, but I can say that it was listed in the San Idelfonso report of 1929 addressing land titles between the pueblo and non-pueblo residents. This document references land that was in non-pueblo private landowner's possession prior to the Pueblo Lands Act of 1924. Reference is also made to a Spanish Grant approved by Congress December 22, 1858. At the time of this report, the land belonged to Demetrio and Catalina Roybal. They later deeded the land to one of their children, my great uncle Pedro Roybal, who went on to sell it to my father.''

Mr. Chairman, I worry that we need to address this issue, but that this dispute is tearing at the fabric of our communities. For more than 2 years now, I have tried to get anyone from the Bureau of Indian Affairs to provide assistance to me, to provide a way to get this solved.

I have asked the BIA for the process and any criteria they used to issue an alleged trespass, and to share their antiquated database with the public. I

have asked for maps and historical documents that the BIA considered. Nothing was produced.

I asked for the chain-of-command that was followed and the BIA's interpretation and understanding of the Pueblo Lands Act of 1924 and the actions of the Pueblo Lands Board. Nothing was produced.

I even asked the BIA for information related to mediation services, Mr. Chairman, because the fabric of these communities are being torn apart. That is why I felt compelled to offer this amendment.

Mr. Chairman, I yield to the gentleman from California (Mr. CALVERT).

Mr. CALVERT. Mr. Chairman, I thank the gentleman for yielding. I am happy to work with the gentleman and Ms. MCCOLLUM in a nonpartisan way to address the concerns of your constituents.

Mr. BEN RAY LUJÁN of New Mexico. Mr. Chairman, I thank the ranking member who has also encouraged us to find a way to work together.

I also want to thank Chairman CALVERT and his staff for being accommodating so we can sit down and look at this very important issue that is specific to the State of New Mexico.

I yield to the gentlewoman from Minnesota (Ms. MCCOLLUM), the ranking member.

Ms. MCCOLLUM. I look forward to working with the gentleman and with Chairman CALVERT on this issue.

Mr. BEN RAY LUJÁN of New Mexico. Mr. Chairman, I thank everyone. I thank all the staff.

Mr. Chair, I ask unanimous consent to withdraw my amendment.

The CHAIR. Is there objection to the request of the gentleman from New Mexico?

There was no objection.

The CHAIR. The amendment is withdrawn.

AMENDMENT NO. 6 OFFERED BY MR. BEN RAY LUJÁN OF NEW MEXICO

The CHAIR. It is now in order to consider amendment No. 6 printed in House Report 114–683.

Mr. BEN RAY LUJÁN of New Mexico. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 29, line 12, after the dollar amount, insert ''(decreased by $1,000,000)(increased by $1,000,000)''.

The CHAIR. Pursuant to House Resolution 820, the gentleman from New Mexico (Mr. BEN RAY LUJÁN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New Mexico.

Mr. BEN RAY LUJÁN of New Mexico. Mr. Chairman, this is an amendment that is related to the previous amendment that I offered. It was something that I uncovered as I was learning more and more about how to solve the egress-ingress issue pursuant to the 1924 Pueblo Lands Act.

Chairman CALVERT, again, with your commitment, and that of Ranking Member MCCOLLUM, if you are able to work with me on this issue, I plan to withdraw this amendment.

This amendment sought to reprogram $1 million in the Bureau of Indian Affairs funding to require the Bureau of Indian Affairs to update and digitize its inventory of rights-of-way records and to make them publicly available in a commonly used mapping format.

Unfortunately, the Bureau of Indian Affairs has long failed to adequately maintain rights-of-way records, and the Bureau is often unable to provide requested documentation to tribes and other stakeholders in a timely manner.

For example, when my office asked for information related to the rights-of-way in New Mexico, the Bureau of Indian Affairs could not share it with my office in a timely fashion.

And just today, Mr. Chairman, the Pueblo of Zia, a pueblo in the State of New Mexico, provided me documentation that the Pueblo of Zia has asked the Bureau of Indian Affairs for a request of specific rights-of-way information this past February, February 24, 2016, to be exact. It is now July. The Pueblo of Zia tells me that none of this information has been provided to the pueblo.

My argument is this, Mr. Chairman. If this information was made available to the public in a way that the Bureau of Indian Affairs, as I understand it, should already be making available, this information should be readily available.

This is simply unacceptable that the information is not being provided, and especially with the trust responsibilities the Bureau of Indian Affairs has with tribes as well. Thankfully, I believe there is a commonsense solution.

In February 2014, the Tribal Transportation Unity Caucus, the National Congress of American Indians, and the Intertribal Transportation Association, jointly developed recommendations for a highway reauthorization, including one to improve the Bureau of Indian Affairs' rights-of-way management.

They suggested requiring the BIA to update and computerize rights-of-way documentation and make them available in a commonly used mapping format. The National Congress of American Indians then passed a resolution endorsing these recommendations in April of 2014. Unfortunately, this commonsense provision didn't make it into the highway bill, which is why I am offering the amendment today.

Too often, the BIA's mismanagement of these records disrupts and slows down projects that are important to tribes and surrounding communities while creating unnecessary conflict.

Mr. Chairman, if we can map the human genome, then surely the BIA can map a few roads, manage its rights-of-way records, and build an accessible, public database to provide certainty to tribes, local governments, and State governments, and other stakeholders.

Mr. Chairman, I yield to the gentleman from California (Mr. CALVERT).

Mr. CALVERT. Mr. Chairman, again, I am happy to work with the gentleman and Ms. MCCOLLUM in a nonpartisan way to address these issues, and I look forward to working with him to resolve this for his constituents.

Mr. BEN RAY LUJÁN of New Mexico. I thank Chairman CALVERT again for his leadership and for his staff again. I appreciate the time to work together. And, again, Ranking Member MCCOLLUM, to you and the minority staff, thank you for all that you do.

Mr. Chairman, I ask unanimous consent to withdraw the amendment.

The CHAIR. Is there objection to the request of the gentleman from New Mexico?

There was no objection.

The CHAIR. The amendment is withdrawn.

The Chair understands that amendment No. 7 will not be offered.

The Committee will rise informally.

The Speaker pro tempore (Mr. RICE of South Carolina) assumed the chair.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Curtis, one of its clerks, announced that the Senate disagrees to the amendment of the House to the bill (S. 2012) ''An Act to provide for the modernization of the energy policy of the United States, and for other purposes.'', and agrees to the request by the House for a conference on the disagreeing votes of the two Houses thereon, and appoints Ms. MURKOWSKI, Mr. BARRASSO, Mr. RISCH, Mr. CORNYN, Ms. CANTWELL, Mr. WYDEN, and Mr. SANDERS to be the conferees on the part of the Senate.

The SPEAKER pro tempore. The Committee will resume its sitting.

DEPARTMENT OF THE INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS ACT, 2017

The Committee resumed its sitting.

AMENDMENT NO. 8 OFFERED BY MR. ELLISON

The CHAIR. It is now in order to consider amendment No. 8 printed in House Report 114–683.

Mr. ELLISON. Mr. Chairman, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 38, line 20, after the dollar amount, insert ''(reduced by $1,000,000) (increased by $1,000,000)''.

The CHAIR. Pursuant to House Resolution 820, the gentleman from Minnesota (Mr. ELLISON) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Minnesota.

Mr. ELLISON. Mr. Chairman, I want to thank Ranking Member BETTY MCCOLLUM.

We can raise the living standards for working families all over the country right now if we use Federal dollars to create good jobs. The United States Government is the largest buyer of goods and services in the world, and the United States Government should use that power to create good jobs and to create a high-road economy for all Americans.

My amendment would reprogram funds to create an Office of Good Jobs in the Interior Department that would do the following: it would help ensure the Department's procurement, grant-making, and regulatory decisions encourage the creation of decently paid jobs, collective bargaining rights, and responsible employment practices.

Mr. Chairman, it is important for all Americans to know that more than 1 in 5 Americans are employed by companies with Federal contracts. Right now the U.S. Government is America's leading low-wage job creator.

That is right. The United States Government, at this very hour, funds over 2 million low-paying jobs through contracts, loans, and grants with corporate America. That is why more than the total number—the total number of low-wage workers employed by Walmart and McDonalds combined do not equal the number of low-wage jobs funded by the United States Government.

□ 1800

That is right. Wal-Mart and McDonald's combined have fewer low-wage jobs than are funded by the Federal Government right now. U.S. contract workers earn so little that nearly 40 percent of them use public assistance programs like food stamps and Section 8 to feed and shelter their families.

Mr. Chairman, I yield 3 minutes to the gentlewoman from Minnesota (Ms. MCCOLLUM).

Ms. MCCOLLUM. Mr. Chairman, I rise to support this amendment. This Office of Good Jobs would help ensure that the Interior contracting employment decisions encourage the creation of decent paid jobs, implementation of fair labor practices, and responsible employer practices.

The Federal Government should set an example to the Nation when it comes to contracting decisions, and the office will guide Interior to make responsible contracting employment decisions.

Mr. Chairman, I urge adoption of the amendment.

Mr. CALVERT. Mr. Chairman, I rise in opposition to the gentleman's amendment.

The Acting CHAIR (Mr. RICE of South Carolina). The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chairman, this amendment is duplicative. It ignores the existing contractor award system that is already in place. Contracting officers must already consult the system for award management to ensure a contractor can be awarded a contract. Businesses on the excluded parties list system have been suspended or debarred through a due process system and may not be eligible to receive or renew Federal contracts for such cited offenses.

The best way to ensure that the government contracts with or provides grants to the best employers is to enforce the existing suspension and debarment system.

Bad actors who are in violation of the basic worker protections should not be awarded Federal contracts. That is why the Federal Government already has a system in place to deny Federal contracts to bad actors. If a contractor fails to maintain high standards of integrity and business ethics, agencies already have the authority to suspend or debar the employer from government contracting. In 2014, Federal agencies issued more than 1,000 suspensions and nearly 2,000 debarments to employers who bid on Federal contracts.

The amendment would delay the procurement process with harmful consequences. On numerous occasions, the nonpartisan Government Accountability Office has highlighted costly litigation stemming from complex regulatory rules, including from the Fair Labor Standards Act.

This amendment punishes employers who may unknowingly or unwillingly get caught in the Federal Government's maze of bureaucratic rules and reporting requirements. The procurement process is already plagued by delays and inefficiencies.

Mr. Chairman, I urge my colleagues to oppose this amendment.

I reserve the balance of my time.

Mr. ELLISON. Mr. Chairman, may I inquire how much time I have remaining?

The Acting CHAIR. The gentleman from Minnesota has 2½ minutes remaining.

Mr. ELLISON. Mr. Chairman, let me point out that the gentleman confuses the debarment process, which says that we are going to look at the very worst actors and exclude them and the Office of Good Jobs, which would say that we will use education and we will use prioritization to make sure that the best employers are the ones that the American taxpayer is going to employ in order to award contracts. It is just a simple matter of understanding the difference between excluding the very worst and rewarding the best.

I think that the American people would like to see the Federal Government say: You are a good employer, you pay good wages and good benefits, and we think that that kind of practice is the kind of thing we like to see, and, therefore, our Office of Good Jobs is going to prioritize such businesses.

Time and time again, we hear Members of the party opposite confuse the debarment process with the Office of Good Jobs concept. It is a big difference, and I think that the American people would agree that where we find the best practices, we should reward them, not simply create a big, big bottle, a big, big vat of the best competing with the mediocre, and then exclude the very, very worst.

I just want to make this point. This is good for good contractors in many ways, because if you are an excellent contractor and you go out of your way to reward good workers and help create a hybrid economy, you are still competing with the people who are doing the bare minimum they can just to avoid debarment. I think that is not fair to good contractors. I think good contractors ought to be rewarded.

I think that if we establish this Office of Good Jobs, what we will see is a general wave throughout our economy as the private sector will look to the Federal Government as to what the best ways to create a fair economy could be, and we would see a greater measure of economic equality and opportunity throughout the land.

I just want to say that if the system we had was adequate, why, then, would we have 40 percent of all people who work for Federal contractors eligible for Federal Government programs, like Section 8 and food stamps? Why would we see that? Well, because we are not prioritizing good jobs. We are just saying that if you are a lawbreaker, you will be excluded, but other than that, we don't really care. An Office of Good Jobs would change that.

Mr. Chairman, I urge a ''yes'' vote.

It is intended that the appropriation for Departmental Operations in the Office of the Secretary at the United States Interior Department be used to establish an Office of Good Jobs in the Department aimed at ensuring that the Department's procurement, grant-making, and regulatory decisions encourage the creation of decently paid jobs, collective bargaining rights, and responsible employment practices. The office's structure shall be substantially similar to the Centers for Faith-Based and Neighborhood Partnerships located within the Department of Education, Department of Housing and Urban Development, Department of Homeland Security, Department of Health and Human Services, Department of Labor, Department of Agriculture, and Department of Commerce, Department of Veterans Affairs, U.S. Department of State, Small Business Administration, Environmental Protection Agency, the Corporation for National and Community Service, and U.S. Agency for International Development.

I yield back the balance of my time.

Mr. CALVERT. Mr. Chairman, we have a process in place. I certainly won't support subjective Federal decision-makers deciding who is a good employer and who is a bad employer. As a former employer myself, I know that most employers in this country are good people who want to make sure that people have good jobs.

Mr. Chairman, I oppose this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Minnesota (Mr. ELLISON).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. ELLISON. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Minnesota will be postponed.

AMENDMENT NO. 9 OFFERED BY MR. NORCROSS

The Acting CHAIR. It is now in order to consider Amendment No. 9 printed in House Report 114–683.

Mr. NORCROSS. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 38, line 20, after the dollar amount insert ''(reduced by $13,060,000)''.

Page 40, line 7, after the dollar amount insert ''(reduced by $13,060,000)''.

Page 74, line 25, after the dollar amount insert ''(increased by $13,060,000)''.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from New Jersey (Mr. NORCROSS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New Jersey.

Mr. NORCROSS. Mr. Chairman, my simple amendment would add $13 million to the Hazardous Substance Superfund to equal the level requested by the EPA.

Superfund cleanup is the right thing for the environment, right for the economy, and certainly right for public health.

I am from the Garden State. We are known across the country for having the best tomatoes, corn, blueberries, and cranberries we grow. But in south Jersey, we have a history as a cornerstone of heavy industry. New Jersey found out the hard way what you can and what you can't dump into the lakes, backyards, and other facilities.

Then companies left, leaving our constituents holding the bag. Representative Jim Florio, who held my seat from 1975 to 1990, saw these very issues in south Jersey and across the country. That is why he authored the Superfund legislation back in 1980. Almost four decades later, the list of Superfund sites is still overflowing. There are well over 1,000 contaminated sites across the country, and I have 13 in my district alone.

In 2015, the GAO studied the progress of the Superfund program. The report found that, in real dollars, appropriations to the EPA Superfund program declined almost $1 billion from 1999 to 2013.

Congress has funded less than 40 percent of shovel-ready cleanup projects. The EPA is often forced to prioritize one seriously contaminated site over another, leaving those other sites to be contaminated, in some cases, up to 50 years.

This amendment would help the EPA clean up more contaminated materials in their parks, backyards, and commercial properties sooner rather than later.

Mr. Chairman, later the House will consider another amendment of mine that would designate an additional $15 million within the Superfund account, specifically for the enforcement division.

Not only do we consistently underfund Superfund cleanup activities, we have even underfunded the EPA office that is supposed to go after those polluters who have been found guilty of dumping and polluting our environment.

As I mentioned earlier, in my district alone, I have over 13 sites that lay contaminated today. I just briefly want to tell you about three of them. The sites are named after the company that was accused and has been found liable, that is the Sherwin-Williams site. These sites include the Sherwin-Williams/Hilliard's Creek site located in Gibbsboro, the Route 561 Dump Site in Gibbsboro, and United States Avenue Burn Site in Gibbsboro. Those other sites include part of Voorhees also.

Back in the 1930s, Sherwin-Williams opened a paint factory. For 20 years, they dangerously dumped these chemicals that were related to their synthetic varnish to be produced and dumped in around the Gibbsboro and Voorhees area.

These toxic chemicals from the varnish seeped into the groundwater, contaminating not only the commercial properties, but the streams, lakes, and homes for miles around. After the devastating events of Flint, Michigan, I know I don't have to tell you about the horrific effects of lead exposure on children's developmental issues and pregnant women. According to the EPA, long-term exposure to high levels of arsenic can lead to cancers like skin cancer, bladder cancer, and lung cancer.

This is why my constituents and, quite frankly, all Americans across the country are faced with this decision. They need relief today—not in a few years from now. We must hold companies like Sherwin-Williams accountable for the havoc that they have wreaked in communities like Gibbsboro and Voorhees. We owe it to our constituents to do everything in our power to protect their health.

Mr. Chairman, I urge a ''yes'' vote on this amendment.

I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I rise in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chairman, while I appreciate the intent of the gentleman's amendment to increase funding for the Superfund, something that we all support, it is important that Members understand two things: First, top line funding for the Superfund is already increased in the bill by $27 million from the FY16 enacted level.

Second, the gentleman proposes to reduce funding for the Payments in Lieu of Taxes, PILT, program which is critical to counties and local governments in 49 States, including New Jersey, the Commonwealth of Puerto Rico, and the U.S. territories. PILT is fully funded in this bill. It is a program supported by a large, bipartisan majority in the House. A reduction in the PILT funding would have a detrimental effect on counties and local governments across the country.

Mr. Chairman, I urge my colleagues to vote ''no'' on the gentleman's amendment.

I yield back the balance of my time.

Mr. NORCROSS. Mr. Chairman, this is about protecting public health from designated sites that have been contaminated for literally decades.

Mr. Chairman, I urge a ''yes'' vote.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from New Jersey (Mr. NORCROSS).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. NORCROSS. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from New Jersey will be postponed.

AMENDMENT NO. 10 OFFERED BY MR. BEYER

The Acting CHAIR. It is now in order to consider Amendment No. 10 printed in House Report 114–683.

Mr. BEYER. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 67, strike lines 4 through 19.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Virginia (Mr. BEYER) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Virginia.

Mr. BEYER. Mr. Chairman, this amendment simply strips the language that would block the implementation of the Stream Protection Rule.

We should not willfully delay or stop this rule. I am very familiar with mountaintop removal mining. When I was Lieutenant Governor of Virginia in the 1990s, mountaintop removal mining became the most prevalent coal mining technique in central Appalachia. I made more than 100 trips to Virginia's coalfields, and I know firsthand the negative impact mountaintop removal has had on the environment and on the health of these communities.

If we know of reasonable ways to mitigate negative effects, we should be doing everything in our power to implement them. That is why the Stream Protection Rule is so important.

During mountaintop removal, tens of thousands of cubic feet of mountaintops are blown off with explosives and

pushed over the sides, filling mountain valleys with enormous waste piles.

□ 1815

These valley fills, as they are called, bury headwater streams and everything else that once populated the valley. Already, mountaintop removal mining has flattened more than 500,000 acres of forested land and permanently buried over 2,000 miles of streams, destroying sources that feed our water.

Emerging science has documented a dramatic decline in the diversity, the abundance, and the biomass of fish in streams with pollution that results from mining. It is the coal industry that asked the government to clearly define the expectations for environmental protection, and that is what this rule does. By introducing verified scientific methods and testing, the government provides regulatory certainty and achieves the environmental protection that is required by law.

Without this rule, stream destruction continues to occur and the Office of Surface Mining Reclamation and Enforcement will remain vulnerable to more legal challenges. Local citizens will be forced to resort to the courts instead of having their government act to protect their welfare.

The stream protection rule is sufficiently flexible to accommodate the different regions where coal is mined. It is very different in Wyoming than it is in southwest Virginia. The rule is designed to prevent water pollution due to coal mining using current scientific understanding. It is designed to protect our families while protecting jobs. In fact, the Office of Surface Mining's analysis shows this rule will have minimal impact on coal companies and minimal job loss. The estimate is 10 lost jobs—10.

We have seen how necessary this rule is in Virginia. Water monitoring found that Kelly Branch Mine in Wise County dumped the toxic pollutant selenium into streams at levels way above State water quality standards and without a permit to allow such pollution. As a result of a citizen suit, Southern Coal Corporation has since agreed to perform environmental cleanup projects and pay penalties and attorney fees for these pollution violations.

But, Mr. Chairman, we shouldn't need lawsuits. This violation shouldn't happen in the first place. Now is the time to give the people of Appalachia and others around the country protections for their waterways that were promised to them by Congress.

I urge my colleagues to vote for this amendment.

I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chairman, in 2008, the Office of Surface Mining finalized revisions to the stream zone buffer rule in an open and transparent manner. After taking office, the Obama administration put on hold that rule and proposed a different rule last year without the input of the States.

The administration's approach under the new rule has been anything but collaborative and inclusive, and States have been totally shut out of the process. In response, the FY16 omnibus includes language to bring the States and the administration back together. To date, OSM has not shared all documents with the States and refuses to meet with the States that have requested meetings.

The American people expect more—more openness and transparency from their government—and that is why this funding prohibition must remain in the base bill.

I strongly urge my colleagues to vote ''no'' and reject this amendment.

I reserve the balance of my time.

Mr. BEYER. Mr. Chairman, may I ask how much time I have remaining.

The Acting CHAIR. The gentleman from Virginia has 2 minutes remaining.

Mr. BEYER. Mr. Chairman, I yield 1 minute to the gentlewoman from Minnesota (Ms. MCCOLLUM), the ranking member.

Ms. MCCOLLUM. Mr. Chairman, I rise in support of this amendment.

The amendment would allow OMS to deal with the continuing problems posed by mountaintop mining removal because this practice contaminates, destroys streams, and negatively impacts human health. Two lawsuits challenge this Bush-era rule, and in February 2014, U.S. District Court for the District of Columbia vacated a 2008 stream buffer rule.

It is important that we allow this to move forward, and I am going to simply state why.

In a study in 2011, it found that counties near mountaintop mining areas had higher rates for five out of six types of birth defects, including circulatory, respiratory, skeletomuscular, central nervous system, gastrointestinal, and I could go on and on. Clearly, we know that the health effects from mountaintop mining-related air and water contamination is cumulative and is dangerous to public health.

OSM must be allowed to go forward with this water protection rule to guarantee the public an opportunity to live a healthy life.

I urge my colleagues to support the Beyer amendment.

Mr. CALVERT. Mr. Chairman, I reserve the balance of my time.

Mr. BEYER. Mr. Chairman, with great respect to the subcommittee chairman, I was at the hearing all morning at Natural Resources a few months ago when we had the Director of the Office of Surface Mining Reclamation and Enforcement on this exact issue. He deeply resisted the idea, what he called, I think it was, the fix or the myth that we weren't working closely with the States.

I completely agree with the subcommittee chairman that the Office of Surface Mining should work very closely with the States to develop this rule and, in fact, insisted that they had from the beginning of the Obama administration, picking up on what the Bush administration had done, right through today. I agree that this is appropriate, but I resist the wisdom of the truth that the States have been shut out of the process.

One more small point, but a really important point. A 2009 report on the NIH Web site estimated that coal mining cost Appalachia five times more in premature deaths—$42 billion—than it provided the region in all jobs, taxes, and other economic benefits from coal mining—just $8 billion.

We are not trying to get rid of coal. There is no war on coal. We just want to make sure that the people who are doing the work who live there are protected.

I yield back the balance of my time.

Mr. CALVERT. Mr. Chairman, may I inquire of the Chair how much time is remaining.

The Acting CHAIR. The gentleman from California has 4 minutes remaining.

Mr. CALVERT. Mr. Chairman, I yield 2 minutes to the gentleman from West Virginia (Mr. JENKINS).

Mr. JENKINS of West Virginia. Mr. Chairman, this is a critically important issue—the prohibition that is contained in this bill—relating to this incredible overreach of the regulatory authority from this administration.

The stream buffer zone rule is similar in character to so many of the efforts of this administration to empower the EPA and, in this case, the Office of Surface Mining to do things that are without legal basis and authority under the law. What is very important about this provision in this bill is saying no to this administration, no, once again, to a regulatory overreach that is not founded in basis of law.

I strongly urge the rejection of this amendment so we maintain the language that is contained in the Interior appropriations bill saying no to this administration's overreach of the rules and regulations. I suggest and encourage a rejection of this amendment.

Mr. CALVERT. Mr. Chairman, I urge a ''no'' vote on this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Virginia (Mr. BEYER).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. BEYER. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Virginia will be postponed.

AMENDMENT NO. 11 OFFERED BY MR. HUFFMAN

The Acting CHAIR. It is now in order to consider amendment No. 11 printed in House Report 114–683.

Mr. HUFFMAN. Mr. Chairman, as the designee of the gentlewoman from New

Mexico (Ms. MICHELLE LUJAN GRISHAM), I offer amendment No. 11.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 68, strike lines 3 through 8.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from California (Mr. HUFFMAN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. HUFFMAN. Mr. Chairman, this amendment strikes section 122 from the underlying bill. That section would prevent the BLM from meeting its statutory obligations under the Mineral Leasing Act to ensure operators ''use all reasonable precautions to prevent waste of oil or gas.''

The BLM would also be prevented, if this underlying provision remains, from modernizing the existing 30-year-old oil and gas production rules to bring them into line with technological advancements in the industry. If that provision stays in the bill, States, tribes, and Federal taxpayers stand to lose royalty revenues when natural gas is wasted, which a 2010 GAO report estimated could amount to as much as $23 million, annually, in royalty revenue.

If this provision remains in the bill, BLM will not be able to update the current royalty rate or raise it as conditions may warrant. A recommendation has been made by both the GAO and the inspector general that they do that, that the conditions do indicate that an increase is in order.

So it is just good government to take this provision out, to update a 30-year-old set of regulations in order to better reflect the current operating climate and to ensure a fair royalty return.

I urge my colleagues to support this amendment.

I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I rise in opposition to this amendment.

The Acting CHAIR. The gentleman California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chairman, the bill includes section 122 because the Bureau of Land Management does not have the authority to regulate methane emissions. Congress has given that authority to the Environmental Protection Agency. BLM's proposed regulation is just another part of the administration's overly aggressive regulatory agenda and overly broad interpretation of current law.

I urge my colleagues to oppose this amendment.

I reserve the balance of my time.

Mr. HUFFMAN. Mr. Chairman, I yield such time as she may consume to the gentlewoman from Minnesota (Ms. MCCOLLUM).

Ms. MCCOLLUM. Mr. Chairman, I rise in support of this amendment.

Can you imagine a 30-year-old oil and gas production rule and not being able to update it? This amendment allows a 30-year-old rule to comply with today's technology to make sure that we are doing what is best practices in the industry and we can work with the industry to do proper oversight.

As was pointed out, if this provision stays in place, States, tribes, and Federal taxpayers would lose royalty revenues. We should be doing everything we can with our public lands to make sure the taxpayer receives full value whenever there is a lease.

I support this amendment, and I urge for its adoption.

Just once again, imagine not being able to update 30-year-old rules and not being able to update current royalty rates. We need to do better by the American taxpayer; we need to strike this provision; we need to do the updates; we need to update 30-year-old regulations; and we need to make sure that the American taxpayer gets a fair return on its royalties.

Mr. CALVERT. Mr. Chairman, I urge a ''no'' vote.

I yield back the balance of my time.

Mr. HUFFMAN. Mr. Chairman, I urge a ''yes'' vote.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. HUFFMAN).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. MCCOLLUM. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from California will be postponed.

AMENDMENT NO. 12 OFFERED BY MS. CASTOR OF FLORIDA

The Acting CHAIR. It is now in order to consider amendment No. 12 printed in House Report 114–683.

Ms. CASTOR of Florida. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 69, beginning at line 3, strike section 124.

The Acting CHAIR. Pursuant to House Resolution 820, the gentlewoman from Florida (Ms. CASTOR) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Florida.

Ms. CASTOR of Florida. Mr. Chairman, my amendment ensures that we keep the appropriate safety regulations in place for offshore oil drilling to reduce the risk of an offshore oil disaster and the devastating impacts on our economy and environment.

The Deepwater Horizon blowout of 2010 is still very fresh in our minds. I represent a Gulf Coast district in Florida, in Tampa Bay, and I remember very well the 87 days that oil spewed out of that Deepwater well, the 11 lives lost, and the huge economic losses.

One study said that, in Florida, we lost 50,000 jobs because of that blowout, not to mention the environmental catastrophe that it was, that we are still trying to determine the long-term impacts.

□ 1830

For 87 days, the well continued to pump 134 million gallons of toxic oil before it could be stopped. This tarred fisheries, wildlife, and fragile ecosystems. I will always remember the motel owner from Pinellas County who cried because all of her business had evaporated. We didn't even have oil on the Gulf Coast beaches around Tampa Bay, but all of the tourists left. Our lifeblood in Florida is the tourism industry and the fishing industry.

This is really inexplicable after years of working with industry, after congressional hearings to determine the causes of that disaster, after numerous investigative reports, including the bipartisan National Oil Spill Commission, led by former Florida Governor and Senator Bob Graham, and Republican and former EPA Administrator William Riley, where they zeroed in on the fact that it was the well casing and the blow-out preventer that was the source of the problem. Based upon all of those findings and investigations, the Bureau of Safety and Environmental Enforcement developed its final Well Control Rule, which focuses on the blow-out preventer and well control requirements, because this is America, and we can develop state-of-the-art technology for risky oil drilling no matter where it is occurring.

The final rule was developed after unprecedented outreach and consultation with industry and other stakeholders. It addresses the full range of systems and equipment that are related to well control operations, with a focus on blow-out preventer requirements, well design, well control casings, cementing, real-time monitoring, and subsea containment. These measures are designed to improve equipment reliability, especially for blow-out preventers. The most important thing is they protect our communities. They protect us from a disaster like the BP Deepwater Horizon from ever happening again.

It is really inexplicable that the Republicans on the House Appropriations Committee zeroed in on this safety rule in this appropriations bill and said we are not going to support it, that we are not going to fund it for this year. What is that going to do? Industry already supports most of these things. They don't want to be on the hook for billions and billions of dollars. It is just, clearly, inexplicable to put our communities at risk again for another disaster like that.

The Castor amendment eliminates this harmful provision, and it maintains the Department of the Interior's critical safety standards to prevent offshore oil disasters. The Gulf Coast is still reeling from the disaster of 2010, and local economies across the country cannot afford another catastrophe like

BP's. I urge the adoption of the Castor amendment.

Mr. Chairman, I yield 30 seconds to the gentlewoman from Minnesota (Ms. MCCOLLUM), the ranking member.

Ms. MCCOLLUM. I thank the gentlewoman.

Mr. Chairman, investigations were conducted by industry experts, and they determined the actual causes of the catastrophe of the Deepwater. Many of the requirements of this rule are not new, and they already exist in industry standards.

This rule has one goal for me, and that is to save lives. Eleven lives were lost in that explosion. We have learned from that event. It was a tragic event what happened with the Deepwater Horizon. We should do everything we can to put workers' safety ahead of Big Oil's profits.

Mr. SIMPSON. Mr. Chairman, I claim the time in opposition.

The Acting CHAIR. The gentleman from Idaho is recognized for 5 minutes.

Mr. SIMPSON. Mr. Chairman, at various hearings throughout the year, Chairman CALVERT expressed concern that the administration was taking a page out of its ''war on coal'' playbook and applying it to oil production.

The Department of the Interior has been attempting to make it as costly as possible to operate offshore so that companies will make the decision not to apply for a permit. They took that a step further last week with its Arctic regulations. In this instance, the Department set onerous requirements under the Well Control Rule that mandated that all wells should have the same thickness regardless of where you are drilling. Now, any engineer will tell you that these are site-specific decisions that are based on many factors and that the thickness will vary, depending on where the well is drilled.

Instead, the White House wants to lock in that decision from Washington, D.C. and ignore recommendations from technical experts. The result is an Obama administration de facto moratorium on oil production as part of the White House's ''keep it in the ground'' strategy. I urge a ''no'' vote on this amendment.

Mr. Chairman, I reserve the balance of my time.

Ms. CASTOR of Florida. Mr. Chairman, if you support the tourism industry, if you support the jobs in the fishing industry, if you support just saving lives, and being able to prevent disasters like the BP Deepwater Horizon from ever happening again, it is important that you stand up for these very basic, industry supported safety standards. The well rule was developed after months and years of investigations and study with stakeholder help.

The bottom line is we have to do everything we can to prevent this from ever happening again in order to protect our economy, to protect our jobs, to protect our natural environment; so I urge the adoption of the Castor amendment.

Mr. Chairman, I yield back the balance of my time.

Mr. SIMPSON. Mr. Chairman, I urge a ''no'' vote.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Florida (Ms. CASTOR).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. CASTOR of Florida. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Florida will be postponed.

AMENDMENT NO. 13 OFFERED BY MR. HUFFMAN

The Acting CHAIR. It is now in order to consider amendment No. 13 printed in House Report 114–683.

Mr. HUFFMAN. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 70, strike line 1 and all that follows through page 71, line 18.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from California (Mr. HUFFMAN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. HUFFMAN. Mr. Chairman, I am glad that my colleague from Florida brought up the Deepwater Horizon tragedy because it was 6 years ago this week, actually, after 87 terrible days of the worst oil spill in history, that the BP Deepwater Horizon's wellhead was finally capped. The toll of that disaster, as everyone knows, was horrific—11 workers killed, untold economic damage to communities around the Gulf of Mexico, and, of course, devastating and ongoing impacts on fish and wildlife.

This is a good time for us to reflect and to discuss the role of the Federal Government in reviewing the environmental impacts of oil and gas development, not just in the Gulf of Mexico, but in a place where the environmental damage could be even worse if and when something went wrong, say, in the Arctic Ocean.

My amendment would strike section 127 of the underlying bill. Doing that would allow the Bureau of Ocean Energy Management to move forward with its proposed update of regulation on air quality control reporting and compliance. It would allow that proposed rule to serve its intended purpose, which is to bring decades-old rules on offshore air emissions into the 21st century.

The BOEM, itself, is a new agency. It was born out of the response to the BP Deepwater Horizon spill, but it was also born out of an awareness that the old agency—the Minerals Management Service—was, frankly, too cozy with Big Oil, and that that is why that old agency never updated these old rules. These existing air pollution rules have been in place since 1988, and it is past time that we moved forward with new pollution standards, new modeling, and new technology.

The proposed rule, in this case, seeks to address the emissions of several very harmful air pollutants, including volatile organic compounds, nitrogen oxides, sulfur oxides, carbon monoxide, and particulate matter. The proposed rule does that with flexibility. Actually, in some cases, it reduces regulatory burdens by eliminating redundant reporting requirements and by allowing operators to use emissions credits.

The residents of the Arctic and other oil-producing regions and the workers in the industry shouldn't be subjected to additional air pollution from oil and gas development simply because of where they live and work. We should let these new rules go forward. If history teaches us anything, it teaches us that Big Oil cannot be trusted to do the right thing when it is left unregulated. I would hope that my colleagues on both sides of the aisle would agree that strong and consistent oversight is necessary. I ask for a ''yes'' vote.

Mr. Chairman, I reserve the balance of my time.

Mr. SIMPSON. Mr. Chairman, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentleman from Idaho is recognized for 5 minutes.

Mr. SIMPSON. Mr. Chairman, the administration has started the process to promulgate new air quality regulations for offshore operations with the intention of finalizing them by year's end; however, key studies are currently underway that will not be finished until sometime next year, in 2017. The administration wants to finalize these rules before these key studies are done.

The Bureau of Ocean Energy Management has allocated nearly $4 million for the studies to determine if there are any impacts to a State's air quality from offshore operations. Section 127 of this bill instructs the Department to wait until these studies are finalized and to restart only if the findings indicate there is a need for rulemaking.

This is one of those cases in which we say let the science be the science, and let's find out what the studies say before we make final decisions on this. There is a regulatory process which should be followed, and there is a scientific process that should be followed. That is coming from a Republican. The administration cannot circumvent one for the expediency of the other; so I urge a ''no'' vote on this amendment.

Mr. Chairman, I reserve the balance of my time.

Mr. HUFFMAN. Mr. Chairman, it always warms my heart to hear my Republican colleagues embrace science. It is a beautiful thing. I wish it happened a lot more often.

In this case, we have had 30 years of study. We know a lot. The administration has developed this rule to the

point at which it believes it is ready. It is an important rule; it is long overdue; and it is time to move forward. I continue to request a ''yes'' vote.

I yield back the balance of my time.

Mr. SIMPSON. Mr. Chairman, I urge Members to vote ''no'' on this amendment and to let the process go through and the studies and to find out what the studies say. Let's follow the science. I urge my colleagues to follow that and to vote ''no'' on this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. HUFFMAN).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. HUFFMAN. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from California will be postponed.

AMENDMENT NO. 14 OFFERED BY MR. SMITH OF MISSOURI

The Acting CHAIR. It is now in order to consider amendment No. 14 printed in House Report 114–683.

Mr. SMITH of Missouri. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 72, line 11, after the aggregate dollar amount, insert ''(reduced by $88,282,000)''.

Page 184, line 21, after the dollar amount, insert ''(increased by $88,282,000)''.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Missouri (Mr. SMITH) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Missouri.

Mr. SMITH of Missouri. Mr. Chairman, under the Obama administration, we have seen an explosion of new regulations that have impacted every area of our lives. From the way we heat our homes in the winter to the way that we choose our health care, this administration knows no bounds in its regulatory overreach.

The EPA leads the way on this front. According to a report that was released by the American Action Forum, the EPA now imposes nearly 200 million hours of paperwork to comply with its regulations. This is the equivalent of 95,000 Americans working full-time for a year. This represents an astonishing 23 percent increase from 2009 and a 34 percent increase since 2002 in the EPA's paperwork burden.

New regulations, such as the Clean Power Plan, waters of the United States, and the ozone rule, all contribute to this growing burden. Yet, this burden isn't limited to just the act of doing paperwork. These regulations raise the price of energy, cost Missourians jobs, and hurt their bottom lines. The EPA uses the Air, Climate and Energy, ACE, program to advance research and regulations that are geared toward a climate change agenda. Regulations to address climate change are costing Americans billions with there being very little actual impact on global temperatures to show for it. The result of ACE research furthers regulations, which burden our Nation's energy sector and communities across the country.

I urge my colleagues to support my amendment and cut the ACE program and leave us with one less program to advance the regulatory overreach of this administration's and save taxpayer dollars.

Mr. Chairman, I reserve the balance of my time.

□ 1845

Ms. PINGREE. Mr. Chairman, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Maine is recognized for 5 minutes.

Ms. PINGREE. Mr. Chairman, I rise in opposition to this amendment. This amendment would eliminate the funding for the EPA Air, Climate, and Energy research program. I think we all know that the Clean Air Act has resulted in one of the most effective public health programs in American history by addressing air quality in the United States.

What this amendment would do would be to set back any advances in new technology and new scientific tools that would help protect the American public from harmful exposure to air pollutants which, as we know, can damage our health, causing lung and heart disease, impact our immune, nervous, and reproductive systems, and shorten our lives.

Millions of people in America live in counties that do not meet air quality standards for one or more pollutants, and new threats from climate change expand the air quality challenges confronting our society.

The energy choices we make clearly influence air quality and climate change. Eliminating EPA funding to research and understand the impacts on air quality from alternative energy sources is, at a minimum, shortsighted.

The bill already reduces the EPA by $164 million from the FY 2016 enacted level. I think we have already done enough damage in that particular reduction.

For the health and welfare of our citizens, I urge my colleagues to reject this amendment.

I reserve the balance of my time.

Mr. SMITH of Missouri. Mr. Chairman, I yield back the balance of my time.

Ms. PINGREE. Mr. Chairman, I continue to urge my colleagues to reject this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Missouri (Mr. SMITH).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. PINGREE. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Missouri will be postponed.

AMENDMENT NO. 15 OFFERED BY MRS. LUMMIS

The Acting CHAIR. It is now in order to consider amendment No. 15 printed in House Report 114–683.

Mrs. LUMMIS. Mr. Chair, as the designee of the gentleman from Utah (Mr. CHAFFETZ), I offer amendment No. 15.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 73, line 3, after the dollar amount, insert ''(reduced by $14,000,000)''.

Page 74, line 12, after the dollar amount, insert ''(increased by $10,038,000)''.

The Acting CHAIR. Pursuant to House Resolution 820, the gentlewoman from Wyoming (Mrs. LUMMIS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Wyoming.

Mrs. LUMMIS. Mr. Chairman, this amendment transfers approximately $10 million to the EPA's Office of Inspector General from the $2.5 billion EPA environmental programs and management appropriations account. The amendment is necessary to support the EPA OIG's work related to preventing waste, fraud, and abuse, and identifying inefficiencies and potential cost savings at the EPA.

The EPA Office of Inspector General has faced significant funding challenges in recent years. Its full-time employees dropped from 349 to 289, a decrease of almost one-fifth of the office's workforce.

Despite significant resource challenges, the Office of Inspector General at EPA continued to conduct important investigations and audits that saved money for taxpayers and revealed misconduct and abuses at the agency. During FY14, EPA OIG reported $380 million in savings, which is a $7.35 return on investment for every dollar in the OIG budget. The EPA's Office of Inspector General identified $4.1 million in savings during the most recent semiannual reporting period.

The EPA OIG has also investigated gross misconduct and abuses at EPA that yielded savings for taxpayers. For instance, in 2013, the office conducted a criminal investigation into former EPA employee John Beale, who was found to have stolen government money and engaged in travel voucher fraud and time and attendance fraud. Beale committed these frauds by masquerading as an employee of the Central Intelligence Agency. Beale agreed to pay restitution of $890,000 to EPA and $500,000 to the Department of Justice. Beale was also sentenced to 32 months in prison.

The EPA Office of Inspector General also investigated allegations of gross

mismanagement at the Chemical Safety Board in 2012 and found hostility toward whistleblowers and a toxic, ineffective work environment undermined by the board's chemical accident investigations. The EPA OIG's investigation and pressure from Congress caused the President to remove the CSB chairman.

I want you to know that as the subcommittee chairman on our committee, that we have looked at the EPA and we have taken the Inspector General's reports and we have used them to make considerable changes that have increased morale, especially at the Chemical Safety Board; and that we have also saved taxpayer dollars because we have utilized the Office of Inspector General reports. They have shed light on a litany of other employee misconduct. This is a good investment of taxpayer dollars.

This amendment ensures that EPA OIG will have the resources it needs to continue to conduct these essential investigations. So the amendment increases funding for the EPA OIG by $10,038,000. It decreases EPA environmental programs and management appropriations by $14 million. That is actually awash when you look at the out years.

I strongly encourage adoption of the Chaffetz amendment to this legislation.

Mr. Chairman, with gratitude for your time, I yield back the balance of my time.

Ms. PINGREE. Mr. Chairman, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Maine is recognized for 5 minutes.

Ms. PINGREE. Mr. Chairman, I just want to make a few points about this amendment. As my colleague has said, this would reduce the funds from EPA operations by $14 million and increase the Inspector General by $10 million. I think we would certainly agree that it would be a good idea to increase the funding for the Inspector General, and we would like to see the other side increase those funds.

But we are uncomfortable with the idea of taking the funding from the operating account. This account has already been cut by $92 million, and it would reduce the operating account by $14 million, putting that money over there. This seems like too severe of a cut on top of what has already been done.

We don't disagree that the work of the Inspectors General across all agencies in Federal Government are necessary and very important and they do good work.

So, once again, I just oppose the shift in funding. I think it would be great if the other side wanted to enhance the funding for the Office of Inspector General, just not through this mechanism.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Wyoming (Mrs. LUMMIS).

The amendment was agreed to.

AMENDMENT NO. 16 OFFERED BY MR. GOSAR

The Acting CHAIR. It is now in order to consider amendment No. 16 printed in House Report 114–683.

Mr. GOSAR. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 73, line 3, after the dollar amount, insert ''(reduced by $70,000,000)''.

Page 95, line 13, after the dollar amount, insert ''(increased by $70,000,000)''.

Page 96, line 15, after the dollar amount, insert ''(increased by $70,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Arizona (Mr. GOSAR) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arizona.

Mr. GOSAR. Mr. Chairman, I rise to offer a commonsense amendment that redirects funds from EPA bureaucracy to the Forest Services' hazardous fuels account in order to prevent dangerous wildfires.

In 2015, over 10 million acres burned throughout the country, setting a new record. In that same year, fire season appropriations requests were approximately $4 billion for all wildfire programs. Shamefully, the President requested only $356 million of those funds go toward hazardous fuels reduction activities.

Thinning overgrown forests and removing hazardous fuels creates jobs and increases overall forest health. Unfortunately, extremist self-interest groups and Washington bureaucrats have failed to recognize this correlation. As a result, timber harvests are down 80 percent over the last 30 years.

Such flawed thinking also negatively impacts education and local communities. Historically, 25 percent of the receipts from timber harvests by the Federal Government go toward schools and important infrastructure projects.

The failure to prioritize hazardous fuels reduction activities is also bad for our environment, as sound data from NASA concludes that one catastrophic wildfire can emit more carbon emissions in a few days than total emissions in an entire State over the course of a year.

As it currently stands, the Forest Service consistently raids its own treasury when firefighting costs exceed their estimated yearly allotment, taking money from programs that clear brush and remove dead trees. This represents yet another classic example of Washington's misguided prioritization of Federal funds.

The Forest Service's own Fuel Treatment Effective Database reports that ''over 90 percent of the fuel treatments were effective in changing fire behavior and/or helping with control of the wildfire.''

Hazardous fuels reduction activities work. In eastern Arizona, areas that were treated in the Apache-Sitgreaves National Forest as part of the White Mountain Stewardship Project help prevent further destruction from the catastrophic Wallow Fire.

Today there are still healthy trees as firefighters were able to control previously thinned areas. On other lands that were untouched by thinning practices and managed by the Forest Service, all that is left behind is scorched earth and sterilized soil.

It is of the utmost urgency that the Federal Government adopt a forward-thinking, active management strategy that combats dangerous wildfires before they get started. My amendment helps accomplish that task by redirecting scarce resources to important hazardous fuels reduction activities.

I am honored that this amendment is supported by the Americans for Limited Government, Public Lands Council, National Cattlemen's Beef Association, Agribusiness & Water Council of Arizona, Lake Havasu Area Chamber of Commerce, New Mexico Wool Growers, New Mexico Federal Lands Council, Yavapai County Cattle Growers' Association, Yuma County Chamber of Commerce, and countless other organizations and individuals in my home State of Arizona.

I ask my colleagues to support this amendment. I thank the chairman and ranking member for their good work on this bill.

I reserve the balance of my time.

Ms. PINGREE. Mr. Chairman, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Maine is recognized for 5 minutes.

Ms. PINGREE. Mr. Chairman, I have to strongly oppose this amendment that would take even more money from the already starved EPA. The bill has already severely cut the Environmental Protection Agency's main operating account by $92 million. This would cut it by another $70 million. And so far tonight, we have agreed to another $29 million through amendments.

The very air we breathe and the water we drink are endangered by the funding and the policy decisions that are already made in this bill. Their consequences will be felt negatively in communities across this country.

I know it is often an easy target for my colleagues across the aisle to cut the EPA, but I do want my colleagues to understand what this amendment would mean if this cut was adopted.

The account funds programs that are important to both sides of the aisle, including permitting for construction projects across the country; toxics; risk prevention; part of the successful brownfields program; pesticides licensing, which, as we know, is a critical part of fighting the Zika crisis.

In my opinion, this very large cut would be irresponsible, and I urge my colleagues to oppose it.

I reserve the balance of my time.

Mr. GOSAR. Madam Chairman, I yield 1 minute to the gentleman from California (Mr. CALVERT).

Mr. CALVERT. Madam Chair, I believe that the Forest Service needs to be more proactive in managing our national forests. The latest estimates show that there are nearly 66 million dead and dying trees in California right now. This sets the stage for what could be a disastrous fire seed. We simply must get ahead of this situation. This is why we provided significant increases for hazardous fuel and management programs in this bill, but certainly we would support any additional help.

I would move to adopt this very important amendment.

□ 1900

Ms. PINGREE. Madam Chair, I continue to reserve the balance of my time.

Mr. GOSAR. Madam Chair, how much time do I have remaining?

The Acting CHAIR (Ms. ROS-LEHTINEN). The gentleman from Arizona has 1½ minutes remaining.

Mr. GOSAR. Madam Chair, while the bill does include nearly $2.9 billion for wildfire activities, which I am thankful for, most of these dollars are focused on suppression activities.

As I stated previously, the 2015 fire season set a new record, burning more than 10 million acres throughout the country. It is easy to make that statement when it is not your home burning. Clearly, we must focus on proactive solutions for our Nation's forests.

The best way to do so is by providing the Forest Service hazardous fuel account with appropriate funding in order to prevent hazardous wildfires. My amendment accomplishes that task by redirecting scarce resources from the EPA's bureaucracy.

The EPA is far from being underfunded. As it stands, this bill currently funds the EPA at over $7.98 billion. This marginal loss to a rogue administration that continues to circumvent Congress in order to implement lawless regulations is better spent through my amendment and will dramatically increase the Forest Service's ability to prevent dangerous wildfires. Again, I urge the support of my amendment.

Madam Chair, I yield back the balance of my time.

Ms. PINGREE. Madam Chair, I just want to reiterate again, this bill has already severely cut the EPA's main operating account by $92 million. Already tonight, amendments have cut it another $29 million. This agency is fundamental. The protection that they do is critical. This account funds programs that are important to us on both sides of the aisle.

No one disagrees that it is important to fund the disastrous wildfires that have taken over in our country, and we very much understand those challenges, but this amendment is irresponsible. I urge my colleagues to oppose it.

Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arizona (Mr. GOSAR).

The amendment was agreed to.

AMENDMENT NO. 17 OFFERED BY MR. WESTERMAN

The Acting CHAIR. It is now in order to consider amendment No. 17 printed in House Report 114–683.

Mr. WESTERMAN. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 73, line 3, after the dollar amount, insert ''(reduced by $12,000,000)''.

Page 90, line 7, after the dollar amount, insert ''(increased by $10,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Arkansas (Mr. WESTERMAN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arkansas.

Mr. WESTERMAN. Madam Chair, I would like to thank the gentleman from California, Chairman CALVERT, for allowing me the opportunity to offer this important amendment.

I rise today in support of my amendment. My amendment is simple. It removes $12 million from the EPA's environmental programs and management account and places $10 million into the U.S. Forest Service's forest and rangeland research account, which funds important scientific research through the Forest Inventory and Analysis Program and the Forest Products Laboratory. This will free up money from the Federal bureaucracy for use in on-the-ground scientific research into forest health, wood products, biomass, and threatened species.

To make sound forest management decisions, it is imperative to quantify the amount of standing timber, the harvest and usage rates, how much is lost to insects and disease infestation, how many trees are lost to wildfire, and how much net growth occurs in our forest. The Forest Inventory and Analysis Program does just that.

The data is used to assess the quantity and quality of our forestlands, both public and private. It lets us know if we are gaining or losing forestland, and it tells us if we have a net loss or net gain in trees and tree volume. This data is critical to calculate how much carbon storage we have in our forest, and without this data, we cannot understand our total carbon balance.

The Forest Service often finds itself on extended sampling periods, sometime as many as 6 or 7 years, leading to delayed analysis of our Nation's forest landscape. This forces States to increase their matching contributions in order to have sound, timely scientific data for statewide forest management plans.

FIA takes proactive, positive steps in the area of better forest management. FIA leads to scientific forest management practices that increase carbon storage and reduce the threat to wildfire. Additional funding to FIA will also give wood products and timber industries certainty in making business decisions. Forestry employs approximately 2.8 million people nationwide, and this is larger than the automotive industry.

The forest and rangeland research account also funds the Forest Products Laboratory. The Forest Products Laboratory conducts significant scientific research into wood products, forest biomass, the use of wood in tall buildings and threats to various species, such as white-nose syndrome. This amendment is a win-win for a healthy environment and scientific research.

Madam Chair, I again want to thank the gentleman from California, Chairman CALVERT, for the opportunity to offer this amendment.

Mr. CALVERT. Will the gentleman yield?

Mr. WESTERMAN. I yield to the gentleman from California.

Mr. CALVERT. I just want to make a point.

I appreciate the gentleman's interest in forestry issues and his support for changing the way we budget for catastrophic wildland fires. An increase in the Forest Service's research capability will help address our forest management issues. I support the amendment, and I certainly urge its adoption.

I thank the gentleman for yielding to me.

Mr. WESTERMAN. Madam Chair, I reserve the balance of my time.

Ms. PINGREE. Madam Chair, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Maine is recognized for 5 minutes.

Ms. PINGREE. Madam Chair, again, I must oppose this amendment because it continues to take more money from the already-starved EPA. The EPA's main operating account was cut by $92 million in the bill. With the last amendment that just passed, we have cut another $99 million tonight from the EPA account.

We are not arguing that funding for forest and rangeland research is a poor purpose, but it was fully funded in the budget, and it is starting to feel a little bit like we are just seeing amendment after amendment that is a way to starve the EPA.

The EPA is a critical agency. The very air that we breathe, the water that we drink are endangered by the funding and policy decisions that are being made in this bill. The consequences will be felt negatively in communities across the country.

I just cannot support taking money from an underfunded agency and putting it into a program that is already receiving an increase in this bill, so I oppose the amendment.

Madam Chair, I reserve the balance of my time.

Mr. WESTERMAN. Madam Chair, healthy forests are critical to clean air, clean water, better wildlife habitat, better recreation opportunities, and more biodiversity. This amendment will promote healthy forests, and I urge a ''yes'' vote.

Madam Chair, I yield back the balance of my time.

Ms. PINGREE. Madam Chair, we certainly support healthy forests. I represent the State of Maine, where we have a tremendous amount of forests and many people who work in the forest products industry, so we respect the value of this research. But it was fully funded in the budget, and this is just another cut to the EPA and will take away from the work that they are able to do to protect our clean air and clean water. I oppose the amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arkansas (Mr. WESTERMAN).

The amendment was agreed to.

AMENDMENT NO. 18 OFFERED BY MR. JOHNSON OF GEORGIA

The Acting CHAIR. It is now in order to consider amendment No. 18 printed in House Report 114–683.

Mr. JOHNSON of Georgia. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 73, line 17, insert ‘‘, consistent with Executive Order 12898,’’ after ‘‘implementation’’.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Georgia (Mr. JOHNSON) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Georgia.

Mr. JOHNSON of Georgia. Madam Chair, power companies are closing coal-fired power plants as we move toward cleaner, more sustainable ways to generate electricity. A material known as coal ash is a byproduct of this industry. Coal ash contains carcinogens, known carcinogens, such as arsenic, lead, and mercury.

The EPA is now regulating coal ash with its final rule on the disposal of coal combustion residuals from electric utilities. Many of the neighborhoods already exposed to dangerous levels of coal ash are in predominantly low-income and minority communities.

The problem of low-income and minority communities being disproportionately exposed to chemicals, hazardous waste, and toxic materials is neither new nor confined to one area of the country. More than 134 million Americans—their homes, schools, businesses, parks, and places of worship—are in harm's way from dangerous exposure to coal ash.

A 2014 study found that residents in vulnerable zones are disproportionately African American or Latino, have higher rates of poverty than the U.S. as a whole, and have lower housing values, incomes, and education levels. The poverty rate in these zones is 50 percent higher than the national average. The percentage of Blacks is 75 percent greater than for the U.S. as a whole, while the percentage of Latinos is 60 percent greater. This means that almost half of the people more likely to suffer from exposure are Black or Latino.

But make no mistake, Madam Chair, coal ash poisoning is not racially discriminatory. Rural White communities throughout north Georgia, North Carolina, Tennessee, and Oklahoma are suffering from exposure to coal ash dumping, leaking coal ash ponds, and coal ash dust from coal ash transport. We cannot allow people across the country to fall between the regulatory cracks simply because they live in a certain neighborhood or have certain income levels.

This amendment requires implementation of the EPA's coal ash rule to be consistent with Executive Order No. 12898. That executive order's purpose was to focus Federal attention on the environmental and public health effects that Federal regulations have on minority and low-income communities.

More coal ash is expected to be dumped in the State of Georgia. In Jesup, Georgia, a landfill has agreed to accept over 10,000 tons of coal ash per day. Duke Energy is moving their coal ash from North Carolina to a landfill in Banks County, Georgia. Elsewhere within Georgia, communities have been exposed to contaminated drinking water by existing coal ash facilities. Last month, arsenic, beryllium, and selenium were found in the groundwater of various coal ash sites in the State.

As we saw in Flint, we need to act at the Federal level before our failure to do so results in irreversible damage to the health and to the environment of the communities we represent. American families, regardless of income level, should not be unfairly and unreasonably exposed to toxic chemicals.

I ask for support for my amendment.

Mr. CALVERT. Will the gentleman yield?

Mr. JOHNSON of Georgia. I yield to the gentleman from California.

Mr. CALVERT. Madam Chair, because the gentleman's amendment restates current law and nothing more, I am more than willing to accept the amendment.

Mr. JOHNSON of Georgia. I thank the gentleman.

Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Georgia (Mr. JOHNSON).

The amendment was agreed to.

AMENDMENT NO. 19 OFFERED BY MS. ESTY

The Acting CHAIR. It is now in order to consider amendment No. 19 printed in House Report 114–683.

Mr. ESTY. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 74, line 25, after the dollar amount insert ‘‘(reduced by $10,000,000)’’.

Page 76, line 18, after the dollar amount insert ‘‘(increased by $10,000,000)’’.

Page 83, line 6, after the dollar amount insert ‘‘(increased by $10,000,000)’’.

The Acting CHAIR. Pursuant to House Resolution 820, the gentlewoman from Connecticut (Ms. ESTY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Connecticut.

Ms. ESTY. Madam Chair, my amendment would increase funding by $10 million to match the President's budget request for the State and Tribal Assistance Grants to clean up and revitalize brownfields.

Too many cities and towns across America with proud manufacturing legacies are now struggling with vacant brownfield properties. As our country transitioned away from manufacturing, plants and mills began to close, leaving too many communities to deal with these industrial sites on their own.

These former industrial sites have come to be known as brownfields, land where the presence or potential presence of contamination prevents expansion, redevelopment, or reuse of the land. Brownfield sites aren't limited to abandoned factories or buildings. They can also be former dry cleaning establishments or gas stations that are no longer in use. Every single congressional district in our Nation has at least one brownfield site, and some, in fact, have hundreds.

In April, I was in Torrington, Connecticut, a former mill town in my district where, like many communities in the Naugatuck River Valley, there are brownfields scattered throughout the city. I met with Mayor Carbone and other city and local officials to learn about plans to clean up and repurpose two industrial sites, which would create jobs and revitalize the downtown area.

□ 1915

The plan to revitalize downtown Torrington was made possible by funding provided through the EPA's brownfields grant program. However, to implement Torrington's transformative plan, we need additional funding in the brownfields program.

I think it is important to note that addressing brownfields is not simply an issue for our cities. Expanding funding for brownfields helps not only our cities, but also our suburbs and agricultural communities. Cleaning up and putting brownfields back into economic use in our cities helps preserve open space and surrounding communities by taking pressure off of demand for virgin or undeveloped land.

Additionally, taxpayer dollars go a long way in the brownfields program. For every dollar expended by the EPA's brownfields program, it leverages, on average, approximately $18 in additional public and private investment and, in many cases, property values have more than doubled when communities were given the resources necessary to repurpose brownfield sites.

According to a 2007 study, approximately 10 jobs are created for every acre of brownfields redevelopment, and with over 400,000 brownfields sites across the country, the work needed to clean up these sites is far from complete.

So let's do our job as elected officials by empowering our constituents with additional funding to clean up contaminated properties, attract new businesses, create jobs, safeguard public health, and revitalize our downtowns.

I encourage all of my colleagues to support the Esty amendment.

Madam Chair, I reserve the balance of my time.

Mr. CALVERT. Madam Chair, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Madam Chair, I certainly understand the value of EPA's brownfields program. It is highly leveraged and promotes economic development in communities by cleaning up lightly contaminated properties and returning them to beneficial use. These are good things, no doubt about it. That is why the FY 2017 Interior bill continues to provide the brownfields program with $80 million. That is equal to the enacted level.

With limited resources, we need to be strategic about where we provide increases. The FY 2017 bill increases funding to clean up most toxic contaminated Superfund sites across the Nation.

We will debate some Democratic amendments that seek to increase the Superfund account beyond what we have done in the bill in order to match the President's request. Certainly, no one wants to live next to a Superfund site. We have more than 1,300 sites on the Superfund list. These sites contain led, arsenic, cadmium, PCBs, and other highly toxic chemicals. We need to make progress on these 1,300 sites.

So, I must oppose the proposed cut to the Superfund and strongly urge my colleagues to do the same.

Madam Chair, I reserve the balance of my time.

Ms. ESTY. Madam Chair, again, with all due respect, I think, as my colleague has noted, these dollars make an enormous impact, and I would respectfully request and urge my colleagues to support the Esty amendment.

Madam Chair, I yield back the balance of my time.

Mr. CALVERT. Madam Chair, I urge opposition to the amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Connecticut (Ms. ESTY).

The amendment was rejected.

AMENDMENT NO. 20 OFFERED BY MR. PALMER

The Acting CHAIR. It is now in order to consider amendment No. 20 printed in House Report 114–683.

Mr. PALMER. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 76, line 18, after the dollar amount, insert ''(reduced by $100,000,000)''.

Page 84, line 1, after the dollar amount, insert ''(reduced by $100,000,000)''.

Page 184, line 21, after the dollar amount, insert ''(increased by $100,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Alabama (Mr. PALMER) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Alabama.

Mr. PALMER. Madam Chair, I commend the gentleman from California for his and his colleagues' work on this bill.

Madam Chair, my amendment would eliminate funding for the Diesel Emissions Reduction Act grant program, saving taxpayers $100 million. Funds from this program have gone to a number of questionable items, including $750,000 for cherry pickers in Utah, $1 million for electrified parking spaces at a truck stop in Delaware, and $1.2 for a new engine and generators for a 1950s locomotive in Pennsylvania.

This program was intended to be a short-term effort to assist States and local governments in meeting diesel emissions standards, but has joined a long list of temporary government programs for which there is no end in sight.

As Ronald Reagan famously said that, ''The nearest thing to eternal life we will ever see on this Earth is a government program.''

One of the things I have learned as a freshman Member of Congress is that we have an office tasked with holding Federal agencies accountable and reporting on their programs. That office is the Government Accountability Office. One of the things that has surprised me is how rarely we act on their recommendations. I hope that won't be the case with this program.

The GAO has noted that funding to reduce diesel emissions is fragmented across 14 programs at the Department of Energy, the Department of Transportation, and the Environmental Protection Agency. Surely we can make do with one less.

The $100 million provided in this bill represents an increase of 100 percent compared to last year's bill and an increase of 100 percent compared to the omnibus bill passed in December.

With a national debt exceeding $19 trillion, and growing every day, we cannot afford to double the budget of a program that clearly duplicates, at least in part, 13 other programs, and has a marginal impact at best.

The program was originally authorized in the Energy Policy Act of 2005, and was reauthorized for 5 years in 2010. This authorization expired in fiscal year 2016, making any appropriation an unauthorized one.

Congress should not provide $100 million for a wasteful and unauthorized program, and I urge my colleagues to support the amendment.

Madam Chair, I reserve the balance of my time.

Mr. CALVERT. Madam Chair, I rise in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Madam Chair, Ronald Reagan was mentioned in discussing the gentleman's amendment.

Ronald Reagan signed into law CalEPA in the State of California. He also signed into law the first air quality district to regulate air in the United States, the South Coast Air Quality Management District, in the State of California, which was authored by a former colleague of ours named Jerry Lewis.

Clean air is not a political or partisan issue. Certainly, in my area, which has some of the dirtiest air in the United States, we have done a lot to clean up air in our area in California.

We have included a great number of policy provisions to address EPA's regulatory overreach, which I agree with, in this bill. And we have cut the EPA's budget dramatically, which I am in favor of doing. However, I believe that this specific amendment targets a program that is yielding great benefits. When you have a program that is actually working, we ought to keep it.

Many counties across the Nation are currently not in containment with EPA's existing standards for particulate matter and ozone. In many instances, these counties have been in non-containment for years, and those communities need help to improve their air quality.

The Diesel Emission Reduction Act grant program, DERA, is a proven, cost-effective program that provides grants to States to retrofit old diesel engines. So it is a program that supports manufacturing jobs, while also reducing pollution significantly.

Another benefit is these grants are highly leveraged, producing $13 of economic benefit for every Federal dollar that is invested in this program.

Today, newer engines produce 90 percent less toxic emissions than the older diesel engines. However, only 30 percent of trucks and heavy-duty vehicles transition to these cleaner technologies. We need to follow the science and accelerate the replacement of old engines with newer, cleaner engines.

From fiscal year 2009 to fiscal year 2013, DERA grant funding has replaced or retooled almost 59,000 engines in vehicles, trucks, trains, and other equipment. Again, DERA is an effective, proven program that is delivering results.

I strongly urge Members to vote ''no'' on the gentleman's amendment.

Madam Chair, I reserve the balance of my time.

Mr. PALMER. Madam Chairman, I appreciate the gentleman's concerns.

Over the last 30 years or so, the air quality in the United States has improved dramatically, despite the fact that we have seen huge increases in vehicle miles traveled, a 30-something percent increase in our GDP, and a 30-something percent increase in population. Yet, we have seen dramatic improvement in air quality, and I appreciate the fact that government programs have had a part to play in that.

In regard to the savings, the EPA has said that for every dollar we spend, we will get $14 in benefits. I would also like to point out that they also say that the Clean Power Plan will help the economy and that EPA regulations haven't lost jobs. I think the EPA estimates on savings are a little suspect.

The program was funded at $30 million in FY 2015 and $50 million in 2016. Now we are considering a bill to increase it to $100 million in 2017. We cannot afford to continue spending without limits and pretend as if there are no consequences. Keep in mind that there are 14 programs. Surely, we can consolidate these into one effective program.

I also think it is important to note that this was supposed to expire after the first authorization. It was reauthorized for 4 more years. And that expires this year, making any appropriation for FY 2017 another wasteful, unauthorized program.

The Republican Study Committee budget recommended elimination and noted that the grants have gone to a number of wasteful programs.

Madam Chairman, I reserve the balance of my time.

Mr. CALVERT. Madam Chair, I want to point out that DERA is not a regulatory program. The power plant rule that was mentioned earlier is a regulatory program.

What DERA does is replace old technology with the new technology that is up to 90 percent cleaner than the old trucks, old diesel engines that we are presently using. This is working.

I am not in favor of programs and continuous studies and other oppressive methods by EPA that don't produce clean air. This does. It was mentioned that our air is getting cleaner. It is getting cleaner because of programs like DERA that actually work. It is measurable in the South Coast Air Quality Management District and other areas throughout the United States.

They have been able to take these dirty, old trucks off the road. You have all seen them. You have been on the freeway and you see an old diesel truck that is putting out more emissions than virtually everything else around them. You take that truck off the road and it has immediate results.

So let's not get rid of something that works. Let's work against these regulatory programs that oppress the economy and don't have any results.

I might point out, too, the administration has been opposed to DERA. Most of the environmental folks have been opposed because they don't want any carbon in the economy. So they don't want us to clean up diesel because they want to have electric vehicles or zero emission vehicles, which do not have the horsepower or the ability to deliver the goods that we need to have in this Nation.

So, I would urge a ''no'' vote on this amendment.

Madam Chair, I reserve the balance of my time.

Mr. PALMER. May I inquire as to how much time I have remaining?

The Acting CHAIR. The gentleman has 1 minute remaining.

Mr. PALMER. In regard to the EPA, the gentleman from California cited an EPA finding on the benefits and my response to that—that it is not a regulatory program—but that is beside the fact. What it is, is a duplication of other programs. It is unauthorized and it is wasteful.

Madam Chair, I yield back the balance of my time.

Mr. CALVERT. Madam Chair, I might point out that the FBI is not authorized at the present time. We continue to fund it.

I urge a ''no'' vote on this amendment.

Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Alabama (Mr. PALMER).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. PALMER. Madam Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Alabama will be postponed.

AMENDMENT NO. 21 OFFERED BY MR. BEN RAY LUJÁN OF NEW MEXICO

The Acting CHAIR. It is now in order to consider amendment No. 21 printed in House Report 114–683.

Mr. BEN RAY LUJÁN of New Mexico. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 76, line 18, after the dollar amount, insert ''(increased by $6,000,000)(reduced by $6,000,000)''.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from New Mexico (Mr. BEN RAY LUJÁN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New Mexico.

□ 1930

Mr. BEN RAY LUJÁN of New Mexico. Madam Chair, last August, the Environmental Protection Agency was responsible for the blowout at the Gold King Mine in Colorado that spilled 3 million gallons of wastewater, impacting New Mexico, Colorado, Utah, Arizona, and the Navajo Nation.

I was in Farmington, New Mexico, when the toxic plume turned the Animas River yellow. I met with the community and heard their concerns about the toll that the spill was taking on businesses, farmers, families, and individuals.

Madam Chair, we are almost 1 year removed from the spill, and in communities that have been impacted, there remains serious concerns about the long-term effects that the spill will have on the river and all that its water sustains, from drinking water to farming and livestock.

Long-term water quality monitoring is essential to ensure that communities along the Animas River have the data they need to protect the health of all those who rely on this water.

Unfortunately, the State of New Mexico and the EPA have been unable to agree on what the long-term monitoring should look like. As a result, the State has moved ahead with a lawsuit against the EPA.

Madam Chair, it is disappointing that it has come to this point of legal action. My amendment today seeks to address this issue by providing $6 million to direct the EPA to work with affected States and Indian Tribes to implement long-term monitoring programs for water quality on the Animas and San Juan Rivers in response to the Gold King Mine spill.

The State of New Mexico has worked with stakeholders to develop a robust monitoring plan that I believe can serve as a basis for a truly comprehensive effort. Monitoring now and well into the future is necessary to protect the health of all those who rely on this water, and I urge my colleagues to support this amendment.

I reserve the balance of my time.

Mr. CALVERT. Madam Chair, I rise in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Madam Chair, I certainly appreciate the gentleman's remarks. It is important that EPA right the wrong that caused the Gold King Mine spill, and ensure that the affected States and Tribes have the resources they need following the spill.

The FY17 bill includes language instructing the EPA to continue to operate a temporary water treatment plant to treat contaminated flows in the area until a more permanent water treatment solution is developed. And the FY16 omnibus instructed EPA to work with the States and tribes on an independent water monitoring plan.

At this time I must respectfully oppose the gentleman's amendment, but I would also ask the gentleman to work with me as the committee continues to monitor the implementation and what the EPA is continuing to do.

I reserve the balance of my time.

Mr. BEN RAY LUJÁN of New Mexico. Madam Chair, I appreciate the leadership of the chairman. He has been very

gracious, he and his staff, with several amendments that are important to New Mexico during this debate as well.

What has happened now is the temporary facility has been located in the State of Colorado as well, where this has taken place, where this blowout took place; but we are still seeing remnants of heavy metals all the way down to that contamination plume, and it just hasn't been enough.

I will read something that our Attorney General from the State of New Mexico recently said.

''The release of hazardous substances into waters that are the lifeblood of our economy and culture in New Mexico has had a devastating impact on our historical rural, agricultural and tribal communities . . . It is inappropriate for the EPA to impose weak testing standards in New Mexico and I am demanding the highest testing standards that the EPA would impose in any other state in the nation to protect the health and well-being of our citizens. Additionally, remediation and compensation dollars have been far too minimal for these very special agricultural and cultural communities who depend on this precious water source for irrigation and drinking water. They must be properly compensated and there must be appropriate independent monitoring to prevent future dangers to public health and the economy.''

Attorney General Hector Balderas.

Mr. CALVERT, I really want to be able to get a vote on this one. I understand the opposition here, but I really want to force this point home to the EPA and the administration, that what has been put on the table, which is $2 million, is simply not enough to help us in New Mexico.

I reserve the balance of my time.

Mr. CALVERT. Again, I appreciate what the gentleman is up to. I wouldn't expect you not to have a vote if you choose to have a vote. Just know that we are working on this, and we will continue to work on this. We will continue to work with your office, but at this point I have to reluctantly oppose the bill.

I reserve the balance of my time.

Mr. BEN RAY LUJÁN of New Mexico. Madam Chair, I yield back the balance of my time.

Mr. CALVERT. Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from New Mexico (Mr. BEN RAY LUJÁN).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. BEN RAY LUJÁN of New Mexico. Madam Chair, I demand a recorded vote.

The CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from New Mexico will be postponed.

AMENDMENT NO. 22 OFFERED BY MRS. DINGELL

The CHAIR. It is now in order to consider amendment No. 22 printed in House Report 114–683.

Mrs. DINGELL. Madam Chair, I have an amendment at the desk.

The CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 106, strike lines 8 through 22.

The CHAIR. Pursuant to House Resolution 820, the gentlewoman from Michigan (Mrs. DINGELL) and a Member opposed each will control 5 minutes.

The gentlewoman from Michigan is recognized for 5 minutes.

Mrs. DINGELL. Madam Chair, I yield myself such time as I may consume.

Madam Chair, my amendment strikes language in the bill that would exempt a number of potentially damaging activities in our national forests from full consideration under the National Environmental Policy Act. Simply put, this sort of language has no place in an appropriations bill.

Our national forests are a true public legacy that sustains both our environment and our economy. They provide clean air, clean water, precious wildlife habitat, and they support approximately 450,000 jobs throughout the country. We should all be coming together to ensure that our forests are healthy and that future generations will be able to enjoy them.

Yet, the language that my amendment proposes to strike could allow many types of damaging activities to occur in our national forests without a full review under the National Environmental Policy Act, or NEPA, as we call it.

NEPA has a simple premise; you look before you leap. This landmark law gives the public an opportunity to review and comment on actions proposed by the government, adding unique perspectives to the evaluation process that highly specialized, mission-driven agencies might otherwise ignore.

The underlying legislation proposes to make six different activities in our national forests eligible for a categorical exclusion under NEPA, which means a full review would not be conducted and the public would not have the right to be heard.

While some of these activities may be appropriate to consider for a categorical exclusion, they should be evaluated on a case-by-case basis and should not automatically be eligible for categorical exclusion, as this legislation proposes.

As the Council on Environmental Quality has stated: ''Categorical exclusions are appropriate in many circumstances but should not be relied on if they thwart the purposes of NEPA, compromising the quality and transparency of agency decisionmaking or the opportunity for meaningful public participation.''

I couldn't agree with them more. CEQ was right, and that is exactly what this bill proposes to do.

As an example, the underlying bill proposes to exclude all activities related to reducing hazardous fuel loads from a full NEPA review. This makes little sense. If a hazardous fuel load reduction is not done properly, it could destroy an entire forest. This is exactly the sort of activity that should have a thorough and comprehensive NEPA review.

I hope my colleagues will join me in standing up for public participation in government decisionmaking by supporting this amendment.

Madam Chair, I reserve the balance of my time.

Mr. CALVERT. Madam Chair, I rise in opposition to the gentlewoman's amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Madam Chair, I yield to the gentleman from Arkansas (Mr. WESTERMAN).

Mr. WESTERMAN. Madam Chair, I must say, as I rise in opposition to this amendment, that I serve on the Natural Resources Committee with the gentlewoman from Michigan, and I know that we hold a common idea to be good stewards of our resources. We just happen to have a difference of opinion on the best way to do that on this issue, so I must rise in opposition to her amendment.

Our Nation's forests are in dire health, and Congress must provide the Forest Service additional tools to allow more management of our national forest system.

This amendment would needlessly deny the Forest Service an opportunity to more quickly address a forest system that is overgrown and prone to wildfire, disease, and insect infestation.

Last summer I was proud to sponsor H.R. 2647, the Resilient Federal Forest Act, which passed the House with a strong bipartisan majority. This bill included several provisions to allow the Forest Service to engage in urgently needed restoration in a more timely fashion.

These are forest stands that are already being destroyed by natural occurrences; and in order to restore those forest habitats, we have to act in an urgent and a timely manner.

One specific provision would allow the Forest Service to treat up to 3,000 acres of land at a time under a categorical exclusion from NEPA within limited circumstances. Some of these circumstances include treating a forest infected by invasive species, if a forest has been affected by a natural disaster such as a hurricane or tornado, or if work is needed to protect a municipal water source.

This provision was based on a carefully crafted provision in the 2014 farm bill that the Forest Service has used successfully to reduce the threat of catastrophic wildfire in our rural communities. I am pleased that Chairman CALVERT chose to include this provision in the fiscal year 2017 Interior Appropriations bill.

The Natural Resources Committee has heard testimony from stakeholders

across the country about the dire need to better manage our forests. We have heard from the Forest Service that nearly 60 million acres of land are in need of some form of treatment. While we wait for the Senate to act on wildfire legislation, we must continue to seek opportunities to help reduce the threat of wildfire to communities across the country.

This amendment would strip this important provision from the appropriations bill. We should be doing more to shorten the timeframe for the Forest Service to engage in restoration work. I urge my colleagues to join me in opposing this amendment.

Mrs. DINGELL. Madam Chair, I want to quickly respond to the comments made by my dear friend. We are good friends, and we all do need to work together to protect our great lands in this country, but I would respectfully disagree. I have nothing but the utmost respect for both of my Republican colleagues that I hate disagreeing with, and we agree on the same goal, but I respectfully disagree on your disagreeing on my amendment.

Some of these activities may be appropriate for a categorical exclusion, but that should be decided by the agency on a case-by-case basis, not be dictated by Congress, which you tell us many times, in an appropriations bill.

Make no mistake, mandating the use of categorical exclusions, like this bill proposes, is simply a ruse to make an end run around NEPA and the public process that is so important to it.

We often hear that NEPA is a scapegoat for projects being delayed, and I would not want that to be the case; but GAO and others have found that outside issues, including the complexity of the project, local opposition and, most importantly, funding issues, are almost always the cause of the delays.

We shouldn't be limiting public comments and involvement in government decisions, but, instead, should be enhancing them. This bill does the opposite, and I urge my colleagues to support this amendment.

I yield back the balance of my time.

Mr. CALVERT. Madam Chair, I just want to make a point. At this time there are about 66 million dead and dying trees in my State. It is estimated that over the next few years, we could lose up to 120 million trees. That is 20 percent of the entire State of California's total. The trees are dying from drought, severe insect and disease infestation, which only intensifies the potential for disastrous and potentially catastrophic fires.

Unfortunately, we have already seen the loss of life and property from the fast-moving wildfires this year, just most recently, right in the Majority Leader's Congressional District, where people, unfortunately, lost their lives.

I have worked with the senior Senator from California on this. We have used this to the benefit of our State, and other States have used it to the benefit of theirs. This provision is truly limited in nature.

□ 1945

It can only be used on small acreages about 3,000 acres or less.

Madam Chairman, I urge opposition to this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Michigan (Mrs. DINGELL).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mrs. DINGELL. Madam Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Michigan will be postponed.

Mr. CALVERT. Madam Chairwoman, I move to strike the last word.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Madam Chair, I yield to the gentleman from Utah (Mr. CHAFFETZ) for the purpose of colloquy.

Mr. CHAFFETZ. Madam Chair, Federal land management agencies are biting off more than they can chew. Not only are these agencies tasked with managing one-third of the entire landmass in the United States of America, but they are also asked to provide law enforcement and police support to some 660 million acres on the Federal estate.

Land management agencies should not be in the business of policing. Currently, the Nation's largest land management agency, the Bureau of Land Management, has just one office—one person—per 1 million acres of Federal land. This is an inadequate system that does not serve the public, Federal lands, or local communities very well.

Local county sheriffs, on the other hand, and local law enforcement deputies are in a better position to police lands within their county. These individuals are known by members of their community. They are trusted, they are better equipped, and there are more of them. Already local law enforcement agencies contract with the Federal Government to carry out the very same law enforcement functions that Federal agencies require. We need to expand this concept and take actions to limit the role of land management agency law enforcement officials.

Madam Chair, I believe we must work to transfer authorities and, ultimately, funding to those local jurisdictions and sheriffs. There will come a time when the Appropriations Committee will play a key role in executing this strategy. I request that the chairman work with Chairman ROB BISHOP of the Committee on Natural Resources, me, and other Members to accomplish this important policy change.

Mr. CALVERT. Reclaiming my time, I am pleased the gentleman has raised this issue. It is important to work together to ensure law enforcement arrangements are best suited to the populations they serve. I appreciate the gentleman's dedication to this issue, and I look forward to working together to assess the role of law enforcement.

Madam Chairwoman, I yield back the balance of my time.

The Acting CHAIR. The Chair understands that amendment No. 23 will not be offered.

It is now in order to consider amendment No. 24 printed in House Report 114–683.

AMENDMENT NO. 25 OFFERED BY MR. CARTWRIGHT

The Acting CHAIR. It is now in order to consider amendment No. 25 printed in House Report 114–683.

Mr. CARTWRIGHT. Madam Chairman, I have an amendment at the desk, and I ask that it be considered.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Strike section 425.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Pennsylvania (Mr. CARTWRIGHT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Pennsylvania.

Mr. CARTWRIGHT. Madam Chair, I yield myself such time as I may consume.

Madam Chair, this amendment is very simple. It strikes section 425 of H.R. 5538. Section 425 would prohibit the EPA from updating the definition of the terms ''fill material'' or ''discharge of fill material'' under the Clean Water Act.

These definitions underlie section 404 of the Clean Water Act, which governs dredge and fill permitting, one of the act's most important components. Put more simply, section 425 would continue giving real legal cover to mountaintop mining companies to dump mining waste into valley streams. As such, section 425 is an attack on the Clean Water Act.

Now, mountaintop mining for coal produces a lot of unusable excess material, known as overburden. The cheapest and easiest way for industry to dispose of overburden is to bulldoze it into valleys and waterways surrounding these decapitated mountains. This had been illegal because the Clean Water Act categorized overburden as waste, which cannot be disposed of in that manner. However, in a 2002 giveaway to the mountaintop mining industry, the George W. Bush administration reclassified overburden as fill. This cleared the path for it to be dumped in mountain valleys once teeming with life.

As if mining overburden were not enough, the definition of fill was expanded to also include material such as wood chips, construction debris, and plastic. As a result, every year, 120 miles of headwater streams are buried in mining debris. These so-called valley fills can be more than 1 mile long, each, and hundreds of feet deep.

This overburden doesn't just take up space; it is also an environmental hazard. Mining debris can contain chemicals and toxins that pose health risks to humans and ecosystems alike. For example, studies have found substantially higher levels of selenium, a mineral that is toxic to fish in high doses, in rivers near mountaintop mine sites. These hazardous substances also pose real dangers to the downstream users of the water.

Overburden dumping and the mining that causes it produce soil erosion and waterway siltation. A 2008 EPA study found that 90 percent of the streams downstream of surface mining had impaired aquatic life. The U.S. Fish and Wildlife Service estimates that the loss of forest and aquatic habitat to mountaintop mining affects almost 250 species, including several listed species.

This practice also destroys an archetypal American landscape, one which gave rise to a unique culture which has shaped generations of Appalachian residents and which has left its imprint on the broader American culture.

Allowing mountaintop mining operations to continue dumping their waste into our Nation's streams and rivers is both dangerous and irresponsible. I urge my colleagues to join me in putting an end to it. Allow EPA to do their work and protect the environment and the public's health. Support my amendment striking section 425.

Madam Chairman, I reserve the balance of my time.

Mr. CALVERT. Madam Chairman, I rise in opposition to this amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Madam Chairman, the language in section 425 simply maintains the status quo regarding the definition of fill material for purposes of the Clean Water Act. The existing definition was put in place through a rulemaking initiated by the Clinton administration and finalized by the Bush administration. That rule harmonized the definition on the books of the Corps and EPA so both agencies were working within the same definition.

Any attempts to redefine this important definition could significantly negatively impact the ability of all earthmoving industries—road and highway construction and private and commercial enterprise—to obtain vital CWA section 404 permits.

Changing the definition of fill material could result in the loss of up to 375,000 high-paying mining jobs and jeopardize over 1 million jobs that are dependent upon the economic output generated by these operations.

For these reasons, I support the underlying language and oppose the amendment.

Madam Chairman, I reserve the balance of my time.

Mr. CARTWRIGHT. Madam Chairwoman, the gentleman's points are well taken that the status quo is preserved, and that is the problem. Section 425 would prohibit any change in the status quo and would prohibit the EPA from updating the definitions of the terms ''fill material'' or ''discharge of fill material'' under the Clean Water Act, thereby hamstringing the EPA from making any kind of sensible updating of those terms. Any attempt at this point to enumerate the number of jobs that could be lost in some as yet undefined change of those terms simply lacks credibility at this point.

There is no point in hamstringing the EPA in this fashion by refusing to allow any further clarification of the terms ''fill material'' or ''discharge of fill material.''

Madam Chairman, I yield back the balance of my time.

Mr. CALVERT. Madam Chairwoman, I yield 1 minute to the gentleman from West Virginia (Mr. JENKINS).

Mr. JENKINS of West Virginia. Madam Chairman, I do also rise in opposition to this amendment. As a Member representing southern West Virginia, I know firsthand the effect a rewrite of the fill material regulations would have on coal mining operations. What this amendment would do would freeze operations and lead to even further layoffs on top of the more than 10,000 jobs we have lost in just the last 5 years.

As the chairman referenced, in last year's omnibus, Congress included—Congress included—similar legislation preventing the EPA and the Corps of Engineers from changing the definition of fill material. Unfortunately, redefining fill material would harm both existing and future operations in the coal mining business, resulting in the loss of thousands of good jobs.

Congress should include this provision to prohibit the EPA from changing the definition of fill material, and I urge opposition.

Mr. CALVERT. Mr. Chairman, I oppose this amendment.

I yield back the balance of my time.

The Acting CHAIR (Mr. CARTER of Georgia). The question is on the amendment offered by the gentleman from Pennsylvania (Mr. CARTWRIGHT).

The amendment was rejected.

AMENDMENT NO. 26 OFFERED BY MRS. LAWRENCE

The Acting CHAIR. It is now in order to consider amendment No. 26 printed in House Report 114–683.

Mrs. LAWRENCE. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 147, strike lines 10 through 21.

The Acting CHAIR. Pursuant to House Resolution 820, the gentlewoman from Michigan (Mrs. LAWRENCE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Michigan.

Mrs. LAWRENCE. Mr. Chairman, I rise today to offer an amendment that would strike section 427 from the underlying bill.

My amendment would preserve the Army Corps of Engineers' and the Environmental Protection Agency's final rule that revises regulations and defines the scope of waters protected under the Clean Water Act. More than 1 million public comments were submitted during this process, a majority of which support the waters of the United States rule. In issuing the final rule, the agencies' intention was to clarify questions of the Clean Water Act's jurisdiction, consistent with the agencies' scientific and technical expertise.

One in three Americans rely on public drinking water systems not previously protected by the Clean Water Act. This rule changes that.

The water crisis in Flint, Michigan, and the crumbling drinking water infrastructure in neighborhoods and communities around the country reinforces the need to protect our streams, ponds, and wetlands. These challenges impact millions of lives and disproportionately affect poor and minority communities.

Our country faces a very difficult choice. We can either overlook the challenges facing our existing water infrastructure and the millions of lives it affects and the billions of dollars that it costs us, or we can all work together to find solutions that ensure that all Americans have access to safe, clean, and affordable drinking water.

The waters of the United States rule is a commonsense reform designed to secure our water sources, while guaranteeing protections to millions of Americans.

□ 2000

This rule represents a commitment to protecting and restoring the national water resources that are vital for our health, environment, and economy.

Mr. Chairman, I ask unanimous consent to withdraw my amendment.

The Acting CHAIR. Is there objection to the request of the gentlewoman from Michigan?

There was no objection.

The Acting CHAIR. The amendment is withdrawn.

AMENDMENT NO. 27 OFFERED BY MR. CARTWRIGHT

The Acting CHAIR. It is now in order to consider amendment No. 27 printed in House Report 114–683.

Mr. CARTWRIGHT. Mr. Chairman, as the designee of the gentlewoman from New York (Mrs. LOWEY), I offer amendment No. 27.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 149, strike lines 3 through 17.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Pennsylvania (Mr. CARTWRIGHT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Pennsylvania.

Mr. CARTWRIGHT. Mr. Chairman, I yield myself such time as I may consume.

My amendment would strike section 429, which delays implementation of the EPA's lead renovation, repair, and painting rule.

According to the Centers for Disease Control, at least 4 million households have children who are exposed to high levels of lead. This includes 535,000 children younger than the age of 5. The problem is particularly prevalent in low-income communities.

Yet, even as lead poisoning is a front page news story, the majority ignores another threat from lead and paint. There is no safe blood level of lead for children. That is why it is so imperative that we do everything we can to help families avoid lead poisoning.

The Environmental Protection Agency has proposed reasonable requirements for workers to train and follow lead-safe work practices. It is important to mention that the rule does not apply to do-it-yourselfers or those making improvements to newer homes.

Opponents argue that when EPA first proposed the rule back in 2008, the rule offered a training exemption for those contractors who used an EPA-approved test kit that meets specific criteria. There are now three EPA recognized test kits available on the market.

In light of the tragedy in Flint, Michigan, it is unfathomable that this bill would actively strip one of EPA's tools for addressing lead paint in homes. If we do not remove this harmful rider, we are choosing to endanger the health of our children.

I urge my colleagues to support this amendment, the Lowey amendment.

I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chairman, let me be clear, the language in the bill does not block EPA's implementation of the rule.

To date, EPA has not yet approved a test kit that meets the false positive and false negative standards. It is yet another example of EPA finalizing a rule with unattainable standards.

Therefore, the FY17 bill prompts the EPA to finish what it intended to do 7 years ago—approve a lead test kit as an alternative to costly third-party lab testing so as to prevent delays and reduce the cost of in-home renovations. Otherwise, EPA should solicit formal public comment on alternatives. The language in the bill prevents EPA from collecting fines for paperwork and recordkeeping violations until EPA solicits public comments on alternatives.

It is straightforward, commonsense language. As such, I urge a ''no'' vote on the amendment.

I reserve the balance of my time.

Mr. CARTWRIGHT. Mr. Chairman, may I ask the Chair how much time I have remaining?

The Acting CHAIR. The gentleman from Pennsylvania has 3 minutes remaining.

Mr. CARTWRIGHT. Mr. Chairman, I yield 2 minutes to the gentleman from New York (Mr. ISRAEL).

Mr. ISRAEL. Mr. Chairman, I thank my distinguished friend from Pennsylvania.

Mr. Chairman, I rise in very strong support of the Lowey amendment.

This amendment would strike a provision of the bill that waives part of the EPA's lead renovation, repair, and painting rule.

Mr. Chairman, after Flint, we have become more aware of the growing need to protect our communities from the devastating impacts of lead exposure. According to the CDC, at least 4 million households have children who are exposed to high levels of lead, especially in low-income communities.

EPA's rule has been in effect since 2008, so why now, 8 years later, is the majority trying to undermine these protections? Why now? Why after Flint?

Mr. Chairman, lead paint is still present in millions of homes. Now is not the time, it is absolutely the wrong time, to give industry a pass at the expense of America's children.

I urge adoption of the amendment to protect the health and well-being of the American people.

Mr. CARTWRIGHT. Mr. Chairman, I thank my colleague from New York for those important words.

Either we protect our children from lead paint or we don't.

Mr. Chairman, I don't think anybody here would want to live in a home or send their children to a school that was renovated by a company that recklessly did not have lead-safe training. We owe it to our children and grandchildren to take every step possible to prevent harmful lead exposure.

Vote for my amendment, vote for the Lowey amendment, to improve this bill and help ensure that fewer children will suffer lead poisoning.

I yield back the balance of my time.

Mr. CALVERT. Mr. Chairman, again, we are talking about an agency that can't even get a test right after 7 years. Until they do that, it is yet another example of EPA finalizing a rule with unattainable standards.

I oppose this amendment, and I urge a ''no'' vote.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Pennsylvania (Mr. CARTWRIGHT).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. CARTWRIGHT. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Pennsylvania will be postponed.

AMENDMENT NO. 28 OFFERED BY MR. BECERRA

The Acting CHAIR. It is now in order to consider amendment No. 28 printed in House Report 114–683.

Mr. BECERRA. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 149, strikes lines 18 through 25.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from California (Mr. BECERRA) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. BECERRA. Mr. Chairman, my amendment strikes section 430 from the underlying bill. Section 430 blocks efforts by the Environmental Protection Agency to ensure that industries which handle hazardous substances set aside sufficient funds, in the form of bonds or insurance, to clean up toxic spills or releases that are attributable to their hazardous activities.

Under current law, the EPA is required to set financial responsibility requirements for industries at high risk of polluting the environment to the point of creating these toxic Superfund sites. Congress required the EPA to establish financial responsibility requirements to ensure that taxpayers do not have to pay for the cost of cleaning up contaminated sites.

Communities across America experience firsthand what it is like to live and breathe through the contamination of a serial polluter. Right now, thousands of people in my hometown of Los Angeles are living through this very nightmare. After nearly 30 years of operating a lead recycling battery plant, Exide Technologies in the Los Angeles area shut its operations down after contaminating some 10,000 thousand homes with lead—let me repeat that—10,000 homes with lead in the Los Angeles area.

It has been more than a year since Exide shut down this plant and we still don't know who will foot the bill for cleaning those nearly 10,000 homes with each home carrying up to a $40,000 price tag to get cleaned up. A $40,000 price tag, 10,000 homes—do the math—$400 million. And that $400 million only deals with the cleanup, it doesn't deal with the health effects that those 10,000-plus people will have to deal with for their children and for themselves having suffered from the contamination of lead in and around their property.

Mr. Chairman, section 430 lets polluters off the hook and leaves the American taxpayer on the hook for cleaning up their messes. I don't believe the American people intend for American taxpayers to have to take on the cost of cleaning up someone else's pollution.

That is why I have introduced this amendment to strike section 430 from

the bill, so that polluters, not American taxpayers, take the responsibility for cleaning up their mess.

I urge passage of my amendment to ensure that polluters, not taxpayers, clean up their pollution.

I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chairman, unfortunately, EPA is under a court order to propose a rule by December 2016, according to a suit brought by the environmentalists, to compel EPA to move forward with more regulation on a schedule they dictate.

BLM, the Forest Service, and the States already impose financial assurance regulations. Therefore, any EPA regulations proposed would be duplicative.

The Western Governors' Association, along with others, have indicated a willingness to work together to ensure that there aren't gaps in the existing regulatory framework so such requirements remain protective. Therefore, there already is a process in place, and language that has been included in the bill, to alleviate the need for EPA to expend taxpayer resources to develop yet another set of duplicative rules.

I urge a ''no'' vote on this amendment.

I reserve the balance of my time.

Mr. BECERRA. Mr. Chairman, may I ask how much time is remaining?

The Acting CHAIR. The gentleman from California has 2½ minutes remaining.

Mr. BECERRA. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, section 430 in this bill provides a blanket prohibition of the EPA having the opportunity to make sure that financial responsibility requirements are imposed on polluters. There may be some provisions in this bill to try to deal with some of these aspects of pollution, but there is nothing that would require the polluter to show financial responsibility if we don't get rid of section 430.

Therefore, in this bill, we would essentially be making lawful polluters polluting communities and not having to take responsibility for cleaning them up. I don't believe the American people, and certainly not American taxpayers, are expecting Congress to be passing bills that put the burden on taxpayers to clean up someone else's pollution.

Beyond the cost of the pollution is the cost to our families. Children who are infected by lead contamination could suffer a permanent effect. I think that we want to make sure we are providing our children and our families with every bit of safety they expect, especially when they had no responsibility for the contamination of the pollution that exists in their neighborhoods.

I urge my colleagues to consider this amendment which simply would strike this provision so that EPA can do the work that we expect it to do, and that is to preserve the safety and health of our communities by making sure if you are going to have a business that pollutes, that you be responsible for cleaning it up.

I yield back the balance of my time.

Mr. CALVERT. Mr. Chairman, I encourage opposition to this amendment.

I yield back the balance of my time.

Ms. ROYBAL-ALLARD. Mr. Chair, if a business pollutes, then it is the responsibility of that business, not the taxpayer, to pay for the cleanup. It is that simple and it is morally right and fair.

I represent Vernon, California, where a lead-acid battery recycling plant, for years, blanketed families in and around Vernon with lead, arsenic, and other toxins.

The plant eventually closed but tragically, its environmental damage remains, leaving an estimated 10,000 contaminated homes.

Because there are no clear requirements for financial responsibility, the response to the lead contamination in my district was delayed, and after more than a year, it still has not been resolved. Families living in these areas continue to live in fear for their children while others struggle to care for children who, as a result of this contamination, are suffering from learning disabilities, cancer and other health related issues.

To allow section 430 to prohibit the EPA from issuing financial responsibility requirements for businesses that handle hazardous substances which can pollute our communities across the country is madness, Mr. Speaker.

We must pass this amendment to ensure that polluters who cheat the system pay the bill, not the American taxpayer.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. BECERRA).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. BECERRA. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from California will be postponed.

AMENDMENT NO. 29 OFFERED BY MR. PETERS

The Acting CHAIR. It is now in order to consider amendment No 29 printed in House Report 114–683.

Mr. PETERS. Mr. Chairman, as the designee of the gentleman from New Jersey (Mr. PALLONE), I offer amendment No. 29.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 150, strike line 1 and all that follows through page 151, line 2.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from California (Mr. PETERS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. PETERS. Mr. Chairman, everyone who doesn't deny the science understands that climate change is real and dangerous. Uncontrolled carbon pollution is going into the atmosphere, trapping more heat, and warming the planet.

Americans are experiencing the results in every part of this country. From more devastating fires in the West, including San Diego, to flooding in West Virginia, to coastal erosion in superstorms along the east coast, we are experiencing climate change today and it is getting worse.

□ 2015

We have a choice—pretend it is not happening and abandon future generations, or start to clean up the carbon pollution that is driving climate change.

As President Obama recently said: ''Climate change is no longer some far-off problem. It is happening here. It is happening now.''

We can't wait for some future generation to take action. To that end, the EPA finalized a workable plan to reduce carbon emissions from power plants, which are the largest uncontrolled source of man-made greenhouse gases in the United States.

The Clean Power Plan gives the States tremendous flexibility to choose how to achieve those reductions. The goals are State-specific and cost-effective. This is a moderate and reasonable approach that ensures flexibility, affordability, reliability, and investment in clean energy technologies; and polls show that the public supports the Clean Power Plan by large majorities. It outlines a path to cleaner air, better health, a safer climate, and a stronger economy. If we make these investments in cleaner energy, the United States can be the world leader in industries of the future.

The majority wants to stop this. They want to deny the science, pretend climate change isn't happening, and let power plants keep spewing carbon pollution without control. They refuse to act to limit carbon pollution, and now they are outraged that President Obama is keeping his word and using his authority under the Clean Air Act to act because we in Congress won't. So they included language in the underlying bill that aims to block the implementation of the Clean Power Plan and the EPA's carbon pollution standards for new and modified power plants. This is a ''just say 'no''' agenda. My amendment strikes the harmful rider from the bill.

Let's not heed the arguments on behalf of companies that profit from the status quo. These are defeatist arguments. They aren't interested in developing a plan to help us reduce emissions while maintaining a reasonably and reliably priced electricity system. We have already wasted enough time on legislation to ''just say 'no''' to climate action. Now Congress must move on. What we cannot do, as President Obama said, is ''condemn our children to a planet beyond their capacity to repair it.''

I strongly urge my colleagues to support my amendment. The Clean Power Plan is an important, long overdue, and critical tool in our fight against global climate change.

Mr. Chair, I reserve the balance of my time.

Mr. CALVERT. Mr. Chair, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California (Mr. CALVERT) is recognized for 5 minutes.

Mr. CALVERT. Mr. Chair, the Supreme Court has ruled on a number of occasions that the EPA does not have the authority to rewrite the Clean Air Act, as it has been attempting to do. In February, the Supreme Court issued a stay on the EPA's greenhouse gas rule. It is no surprise that the EPA finds itself on shaky legal ground as it attempts to rely on limited authorities to write a rule that would vastly expand its reach.

This administration's policies, regulations, and rhetoric are all aimed at making energy more expensive in America. The administration cannot be allowed to change the laws of the land administratively, which is why the language in this bill should remain in this bill.

I urge a ''no'' vote on the amendment to strike.

Mr. Chair, I reserve the balance of my time.

Mr. PETERS. Mr. Chair, may I inquire as to how much time I have remaining?

The Acting CHAIR. The gentleman from California (Mr. PETERS) has 2½ minutes remaining.

Mr. PETERS. Mr. Chair, I yield 2 minutes to the gentleman from New York (Mr. ISRAEL).

Mr. ISRAEL. Mr. Chair, I rise in support of this amendment.

The effects of climate change are real, and they are being felt by Americans every day. NASA says that climate change is causing drought and increased forest fire frequency in the West, flooding in the Midwest, declining water supplies in the Southeast. Ninety-seven percent of all climate experts agree that human activity, specifically the combustion of fossil fuels and the release of carbon into the atmosphere, is changing our climate; yet this Congress continues to deny that there is a crisis, and it refuses to take the action that is necessary to protect the safety, the health, and the well-being of our constituents.

Mr. Chair, the standards that the administration has proposed are just about protecting the health of our children and putting this Nation on a path to a 30 percent reduction in carbon pollution from the power sector by 2030.

We cannot continue to deny that there is something happening with our weather. We cannot continue to deny that there is something happening with our climate nor can we continue to deny that, if we do this right, we will create a new generation of jobs and careers in new technologies. For those reasons, I urge my colleagues to support this amendment.

Mr. CALVERT. Mr. Chair, I yield 2 minutes to the gentleman from West Virginia (Mr. JENKINS).

Mr. JENKINS of West Virginia. Mr. Chair, we, as a country, should be pursuing a true all-of-the-above approach to energy-electricity generation. Unfortunately, this administration's power plant rules would pick winners and losers. It would determine the market for coal, cost miners their jobs, and raise energy prices for all Americans.

The EPA has exceeded its legal authority by double regulating coal-fired power plants and by forcing States to fundamentally shift their energy portfolios away from coal. It sets standards for new coal-fired power plants that are based on technologies which have not even been proven to be commercially available.

While this administration is using every regulatory effort that is possible to put our hardworking coal miners in the unemployment line, we are pushing back here on the Appropriations Committee. We included this important provision in this bill to protect miners, to protect families, and to protect businesses and our economy.

The chairman is exactly right when he references the United States Supreme Court. The other side would simply take casually the fact that there is no legal authority for the administration to pursue the rules and regulations like in this particular case. It is critically important that we oppose this amendment.

Mr. PETERS. Mr. Chair, I understand the gentleman's concern about coal. Without the implementation of the Clean Power Plan, coal has been affected by the market, not by the EPA, and the availability of natural gas has certainly, I think, hurt the coal industry. I understand that, but this is a sensible approach to dealing with air quality and climate change; and I urge my colleagues to support it.

I yield back the balance of my time.

Mr. CALVERT. Mr. Chair, I urge opposition to this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. PETERS).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. PETERS. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from California will be postponed.

AMENDMENT NO. 30 OFFERED BY MR. PETERS

The Acting CHAIR. It is now in order to consider amendment No. 30 printed in House Report 114–683.

Mr. PETERS. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 152, strike lines 14 through 24.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from California (Mr. PETERS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. PETERS. Mr. Chair, my amendment would strike section 434, a harmful policy rider that limits the ability of our environmental agencies to take action to improve public health and to fight the root causes of climate change.

If we are to lower the impact of greenhouse gas emissions, we need Federal action. The largest source of greenhouse gas emissions in the United States is from burning fossil fuels, which raises atmospheric levels of CO_2. Greenhouse gas emissions can affect coastal regions, energy, defense, food supplies, wildfire preparedness, and our quality of life.

This rider blocks the Environmental Protection Agency's ongoing efforts to reduce the damage that hydrofluorocarbons do to our climate. Hydrofluorocarbons, or HFCs, are factory-made gasses that are used in air-conditioning and refrigeration and are up to 10,000 times more potent pound for pound than carbon dioxide.

While not as abundant as carbon dioxide, super pollutants, like HFCs and methane, have contributed up to 40 percent of observed global warming. Unless we act now, the United States' HFC emissions are expected to double by 2020 and to triple by 2030.

By limiting the EPA's authority under the Clean Air Act to propose, finalize, or enforce any regulation or guidance regarding HFCs, this rider would undercut its ability to protect public health and to demonstrate American leadership in emissions reductions.

The EPA's Significant New Alternatives Policy Program, or SNAP, requires us to evaluate substitutes that are already being developed by industry for super pollutants like HFCs. Through SNAP, we can ensure a more smooth transition to safer alternatives for our country's industrial sector. Last year, the SNAP finalized a new rule on HFCs that the Environmental Investigation Agency estimates will reduce emissions by 2030 by the equivalent of taking 21 million cars off the road.

The standards set by the EPA will drive U.S. and international innovation and the market development of low-emission and energy-efficient refrigeration, air-conditioning, foam blowing agents, and aerosol technologies. These innovations will actually get at one of the root causes of climate change before we are forced to react to increasingly extreme weather and sea level rise.

By embracing these forward-thinking proposals, we can tackle the low-hanging fruit while adopting alternatives that are actually much more energy efficient than current HFCs. This is one

example of how embracing the clean energy revolution doesn't just limit damage to our climate but also increases America's competitiveness and creates economic opportunity. Last year, we saw major companies, including Coca-Cola, Carrier, DuPont, Honeywell, PepsiCo, and other industry leaders commit to voluntarily reducing harmful HFC emissions.

I appreciate the concerns of some in the industry about the pace at which they are required to transition to lower emission materials, but the answer to that is not to halt this process entirely. Preventing the SNAP program from functioning when less harmful materials are being developed is not the right approach. My amendment strikes this shortsighted rider so that America can continue to be a leader in advancing innovative solutions to reducing our emissions. We should not be handcuffing the important work being done at the EPA to reduce super pollutants. I ask my colleagues to support the amendment.

Mr. Chair, I reserve the balance of my time.

Mr. CALVERT. Mr. Chair, I rise in opposition to this amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chair, last year, the EPA issued a final rule to disqualify many refrigerants and other chemicals. The rule contained aggressive deadlines for the phase-out of many chemicals. Some of those deadlines applied within 6 months. Historical experience with the Montreal Protocol indicated that manufacturers needed 6-plus years to successfully transition between new materials.

It is nice if the Fortune 100 companies, as the gentleman mentioned, are able to quickly transfer their technologies, but a lot of Main Street people can't. They just simply go broke. Clearly, the EPA chose winners and losers, and for the losers, the timelines are absolutely unworkable. Manufacturers need time to implement engineering and technology changes and to address new risk and safety challenges.

No sooner did the EPA finalize its regulation last year to disqualify certain products than the EPA initiated version 2.0—that the rulemaking is now in the works. This is truly an out-of-control process that is driven by the White House's agenda.

I urge my colleagues to vote ''no'' on this amendment.

Mr. Chair, I reserve the balance of my time.

Mr. PETERS. Mr. Chair, I take the gentleman's point. I would just say again that, if there are concerns about the timeline, I would be more than willing to work—and I am sure my colleagues would—on a better timeline, but stopping all activity is not the answer. That is why I think this is the appropriate response; so I urge my colleagues to support the amendment.

I yield back the balance of my time.

Mr. CALVERT. Mr. Chair, I urge my colleagues to oppose this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. PETERS).

The amendment was rejected.

AMENDMENT NO. 31 OFFERED BY MR. PETERS

The Acting CHAIR. It is now in order to consider amendment No. 31 printed in House Report 114–683.

Mr. PETERS. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 154, strike line 22 and all that follows through page 155, line 8.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from California (Mr. PETERS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. PETERS. Mr. Chair, the social—or real—cost of carbon is the monetary estimate of the damages caused by carbon dioxide emissions to the environment, health, and economic growth.

Today's bill contains an unnecessary and harmful policy rider that would delay, indefinitely, incorporating that cost in rulemaking or guidance documents. My amendment would strike that bad rider and would, instead, put us on a path of responsible policymaking that reflects the realities of changing climates and increasingly extreme weather events.

□ 2030

Former New York City Mayor Michael Bloomberg's bipartisan Risky Business report notes that accounting for the real cost of carbon emissions and preparing for climate change is a smart business practice.

If we continue on our current path, by 2050, between $66 billion and $106 billion worth of existing coastal property will likely be below sea level nationwide. Eighty percent of California's GDP is derived from our coastal counties.

Greenhouse gas-driven changes in temperature by burning fossil fuels will necessitate construction of new power generation that Mayor Bloomberg's report estimates will cost residential and commercial ratepayers as much as $12 billion per year. That is $12 billion that could be spent by families to put their kids through school or to buy a home. It could be spent by businesses to hire more employees or give annual bonuses.

Accounting for the social cost of carbon now provides greater certainty and greater freedom in the future.

I anticipate my colleagues in opposition to this amendment will suggest that the harmful rider merely delays using the social cost of carbon until a new working group can update the data we use to guide rulemaking. In practice, this would send this rule back to the drawing board when the data we have now about how carbon emissions damage our economy and our health is perfectly adequate and backed by peer-reviewed science.

By adding more layers of bureaucracy, this rider rejects a forward-thinking approach already used by the private sector and backed by science in favor of the status quo, in favor of doing nothing.

There is a real cost to our environment and our prosperity associated with delaying this rule. For too long we have heard that we have had to choose between supporting prosperity and a clean environment. The implication is we can't have both, but that is a false choice we can't afford to make. We have to provide both economic opportunity and clean water and air for future generations.

I want to take a cue from the private sector, from businesses that already account for the cost of carbon, and let's be sensible and support this amendment.

I want to thank my friends—Congressman POLIS, Congressman LOWENTHAL, Congresswoman ESTY, Congressman BEYER, and Congressman WELCH—for backing this effort.

I urge my colleagues to support this amendment.

I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes

Mr. CALVERT. Mr. Chairman, I have long been concerned with how the EPA conducts its cost-benefit analysis to justify its rulemaking. This is something that the committee has discussed with the EPA on a number of occasions. The Supreme Court recently ruled that EPA's approach to examining costs in their regulations was, at the least, flawed.

The administration's revised estimates for the social cost of carbon help justify, on paper, larger benefits from reducing carbon emissions in any proposed rule. If the administration can inflate the price tag so that the benefits always exceed the costs, then the administration can gold plate required regulations from any department or any agency.

Section 436 says that the administration should reconvene a working group to revise the estimates in a more transparent manner and to make that information available to the public.

I oppose the gentleman's amendment, and I urge my colleagues to vote ''no.''

I reserve the balance of my time.

Mr. PETERS. Mr. Chairman, may I ask how much time I have remaining.

The Acting CHAIR. The gentleman has 2½ minutes remaining.

Mr. PETERS. Mr. Chairman, I yield 1 minute to the gentleman from California (Mr. LOWENTHAL).

Mr. LOWENTHAL. Mr. Chairman, the majority has repeatedly brought bills to this same House floor that add

requirements for Federal agencies to use more cost-benefit analyses; but now, when we are dealing with climate change, we are told that we should remove requirements to honestly consider the cost of climate change.

Which way do you want it? Is cost-benefit analysis only a good thing when it suits the majority's purpose to slow regulation and a bad thing when it may shed some light on the true cost of our carbon-based actions?

Ignoring the facts because we don't like them won't make the problem go away. Greenhouse gas emissions from human activities are causing climate change with profound monetary costs for our health, infrastructure, food security, and national security.

Let's bring more information and transparency into the Federal rulemaking process by using the social cost of carbon to quantify those costs. That way we can understand the risks and make sound investments in our Nation's future.

Mr. PETERS. Mr. Chairman, I yield 1 minute to the gentleman from Colorado (Mr. POLIS).

Mr. POLIS. Mr. Chairman, this is ironic because we hear from Republicans all the time about the importance of cost-benefit analyses before this regulation, before that regulation. Well, of course, we acknowledge and I acknowledge that there are costs to regulation with regard to emissions, there is no doubt. There are also benefits.

I have a tourism-dependent district. We have great ski areas like Vail, Breckenridge. Well, guess what. That is climate dependent. We have agriculture in my district—climate dependent.

You know what? I would also acknowledge, of course, all the costs, all the benefits, those are estimates.

You know, what? No model is perfect, but I guarantee you that the model is far superior to just throwing it out altogether and having no model. There are real costs to carbon emissions, and it is completely appropriate to use the best science-driven data to estimate those in any type of regulation.

It is important to look at costs as benefits, and I feel we are making the argument our Republican friends usually make. But here, in this case, they don't happen to like these particular costs. Maybe they don't think they are real. Maybe they don't believe in them. But we let science guide us.

The fact that I have a weather-dependent district and we have a climate-dependent economy across our country is powerful testimony towards including the social cost of carbon.

I urge my colleagues to adopt the amendment.

Mr. CALVERT. Mr. Chairman, I yield 2 minutes to the gentleman from West Virginia (Mr. JENKINS).

Mr. JENKINS of West Virginia. Mr. Chair, folks, here is what is going on: the EPA and other Federal agencies are increasingly using this thing called social cost of carbon in their environmental rulemaking.

So what is social cost of carbon? It is an ambiguous and confusing matrix that has been used simply to justify the validity of many of the administration's clean air environmental regulations that target the direct and indirect carbon dioxide emissions from various sources.

Since its very first use, the administration has recalculated the models multiple times in order to inflate the supposed cost of small increases in CO_2 in the atmosphere and, thus, supposed benefits.

What is most outrageous is that the administration, which the minority here says is just simply trying to put in the economic factors, is actually ignoring the Office of Management and Budget's circular A–4, which explicitly states that ''a real discount rate of 7 percent should be used as a base-case for regulatory analysis.''.''

Guess what. They ran the numbers. Seven percent doesn't get them what they need from the social costs, so what they do is ignore OMB and come up with their own factors. That is the deceptive nature of their supposed cost factor. Change the underlying assumptions, change the factors, get the results you want that justify your findings.

Folks, that is not how we should be doing it. I strongly urge opposition to this amendment.

Mr. PETERS. Mr. Chairman, how much time do I have remaining?

The Acting CHAIR. The gentleman has 30 seconds remaining.

Mr. PETERS. Mr. Chairman, I would just say, again, I think the gentleman makes an excellent point that 7 percent is a pretty aggressive discount rate and maybe we should talk about the methodology. But what we should not do is prevent the discussion in its entirety, which is what that language does.

So I hope that my colleagues will support our amendment and that we will be able to get it right. We can agree on a methodology that fairly represents this issue, and I would be happy to work with my colleague. I hope they will support my amendment so we can, at least, have this discussion.

I yield back the balance of my time.

Mr. CALVERT. Mr. Chairman, this is voodoo environmentalism, so I would absolutely have opposition to this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. PETERS).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. PETERS. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from California will be postponed.

AMENDMENT NO. 32 OFFERED BY MR. GRIJALVA

The Acting CHAIR. It is now in order to consider amendment No. 32 printed in House Report 114–683.

Mr. GRIJALVA. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 155, strike lines 9 through 15.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Arizona (Mr. GRIJALVA) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arizona.

Mr. GRIJALVA. Mr. Chairman, I yield myself such time as I may consume.

I rise to speak on behalf of the amendment that I have offered to protect farmworkers throughout this Nation.

Every day, farmworkers work long hours under the scorching sun in one of the most dangerous industries in this country, and they suffer the highest rates of chemical injuries and skin disorders due to pesticide exposure. The U.S. Environmental Protection Agency estimates that up to 3,000 farmworkers suffer acute pesticide poisoning every year through their work-related exposure.

Every year, an estimated 1.1 billion pounds of pesticides are applied to agricultural crops in the United States. According to the EPA, 10,000 to 20,000 farmworkers suffer pesticide poisoning annually. Exposure to pesticides increases the risk of chronic health problems amongst adult and child farmworkers, such as cancer, infertility, neurological disorders, and respiratory conditions.

There are approximately half a million child farmworkers in the U.S., and farmworker children face increased risks of cancer and birth defects. It should be noted that this workplace, in the farms and working crops, is the only area in this country where child labor laws do not apply. Should we then increase the children's risk and exposure because they are not covered by a law that covers the rest of the children in this country?

Research also shows that both farmworkers and their children may suffer decreased intellectual functioning from even low levels of exposure to insecticides, which are widely used in agriculture.

After more than 20 years, the Environmental Protection Agency finally made the long overdue updates to the worker protection standards for farmworkers. The standards provide basic workplace protections to farmworkers to reduce harmful exposures and result in fewer pesticide-related injuries, illnesses, birth defects, and deaths among farmworkers and their family members.

Farmworkers play a critical role in our economy, ensuring that our constituents have nutritious, quality food

on their tables. The 2017 Department of the Interior, Environment, and Related Agencies Appropriation Act contains a harmful provision, section 437, that will remove farmworkers' rights to a designated representative.

A designated representative in this process is a critical part of improving access to pesticide information for workers in various situations. There are times when a worker may need the help of a spouse, family member, or coworker to obtain information. For instance, if a worker is injured or hurt and cannot be there in person, the information could be requested by the treating medical personnel. This standard is in practice in other sectors where workers are exposed to toxic substances and is consistent with the access to exposure records that those workers now have.

To protect the health of those who harvest the food for our constituents and put it on our tables, it is critical to have a uniform Federal standard that applies to all workers, and that is the right to have a designated representative.

In the amendment that I offer, I would simply strike section 437 in order to protect farmworkers' rights and also provide health protections.

I urge my colleagues to support the Grijalva-Sanchez amendment to strike section 437. This amendment is important to the health and safety of farmworkers and their families. We must ensure that farmworkers can appropriately access information on pesticides so they can protect themselves and their families while doing their jobs that are so vital to our Nation and to our economy.

I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chairman, prior to finalizing the worker protection rule, the EPA shared a draft with the House Committee on Agriculture. The draft did not contain a section that authorized the use of designated representatives. It was later inserted by the EPA without congressional consultation, and the EPA failed to follow the law that requires consultation with the authorizers on these pesticide rules.

However, the broader concern is the substance of the rule. Farmers are concerned they will have little recourse but to turn over their documents to unauthorized individuals. The section of the rule is ill-advised, and unintended consequences were clearly not considered. The EPA needs to reengage with the authorizing committee and the agricultural community on this.

In the meantime, I urge a ''no'' vote on the amendment.

I reserve the balance of my time.

□ 2045

Mr. GRIJALVA. Mr. Chairman, at the urging of many organizations, and at the urging of being consistent and uniform with the protections extended to workers who work with toxic substances throughout this country, which includes the provision that a representative may represent the interests, seek information, and provide transparency for that worker in order for them to pursue their health and their safety.

I think this section, the worker protection section, if we strike this section, all we are doing is making the process uniform for every industry. To deny farmworkers, and more particularly children, as I mentioned, that is the only workplace sector in which the child labor laws do not apply, to provide them, their families, and children with the simple ability to be treated like every other worker, in every other industry, that deals with toxic substances, I think, is just merely playing a fair game, treating all workers equally, and in this instance, this amendment would be consistent with what is going on in the rest of the Nation and the protections extended to all workers.

Mr. Chairman, I yield back the balance of my time.

Mr. CALVERT. Mr. Chairman, I urge opposition to this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arizona (Mr. GRIJALVA).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. GRIJALVA. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Arizona will be postponed.

AMENDMENT NO. 33 OFFERED BY MR. POLIS

The Acting CHAIR. It is now in order to consider amendment No. 33 printed in House Report 114–683.

Mr. POLIS. Mr. Chairman, I have an excellent amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 156, strike line 23 and all that follows through page 157, line 11.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Colorado (Mr. POLIS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Colorado.

Mr. POLIS. Mr. Chairman, I am proud to offer this amendment, along with my colleagues, Ms. DEGETTE, Mr. CARTWRIGHT, Mr. LOWENTHAL, Mr. SARBANES, Mr. HUFFMAN, and Ms. LUJAN GRISHAM.

It is a very simple amendment. It just strikes a policy rider, section 439 of the bill. This section would block the EPA from doing its job. It would block the EPA's commonsense standards for sources of emissions of methane in the oil and gas industry, an issue that is literally in our backyards in the State of Colorado.

It would even prevent the EPA from doing research into existing drill sites for methane standard purposes, and, most astonishing, it would actually prevent the EPA from clarifying the scope of emission sources, which would continue to make sure that we know less and are less protected rather than more protected.

The President and the EPA are taking action to protect our country, our planet, from methane emissions. It is past time that we take bold action to combat climate change and reduce the impact of impending catastrophic changes to our climate, to our world, reducing national security and hurting our economy in tourism and agriculture-dependent districts like mine. Taking aggressive action now is, quite simply, a moral imperative, not only within the purview of the EPA, but the actual charge that Congress is giving the Environmental Protection Agency.

The sad reality is that right now, the majority of our energy still comes from fossil fuels. That is why while of course we need to invest in renewables, at the same time, we can't wait to transition entirely to renewable energy before we address the extraction process that releases dangerous chemicals, such as methane as a by-product. Pound for pound, methane pollution from oil and gas wells is 80 times more potent than carbon dioxide and is responsible for one-quarter of human-made climate change, according to scientists.

These EPA rules are long overdue standards for the oil and gas industry, which will reduce methane pollution and provide certainty for the industry. Although I wish, frankly, these new rules went further, I wish, frankly, that Congress had taken bold action, these stricter standards are a good start, and they are necessary. Scientists have recently published even more convincing data showing that the methane released during natural gas extraction is a deadly climate threat.

New scientific mapping shows that 12.4 million people live within a half mile of the 1.2 million active oil and gas facilities in the United States, many in my home of Colorado. This threat radius is a very conservative estimate of the distance from which toxic air emissions from oil and gas facilities have an adverse impact on public health. It is why in many areas of northern Colorado and Wyoming, we have worse air quality than downtown Los Angeles.

We must not prevent the EPA from moving forward to protect our air, our water, and our planet, which is what Congress has charged them to do. It is time for us to allow them to do their science-based work. It is time to make the fossil fuel industry and fracking play by the same set of rules the rest of the country plays by, instead of letting them emit tons of chemicals, literally tons of chemicals into our air that put our health and the future of the planet in jeopardy.

Mr. Chairman, I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chairman, in May, EPA issued regulations for new and existing oil and gas operations. These are the latest steps in the President's climate agenda. EPA pulled the rug out from underneath these companies, working in good faith to share information with the Agency. The industry was making tremendous progress to reduce emissions through voluntary measures. By any measurable degree, they were making tremendous progress.

But this administration feels the need to overregulate the oil and gas industry at every single turn, to use their police powers to bring this industry to their knees. I urge my colleagues to oppose this amendment.

Mr. Chairman, I reserve the balance of my time.

Mr. POLIS. Mr. Chairman, voluntary measures are just that, voluntary. While there might, and perhaps there are a few good actors willing to abide by them in some States, like my home State of Colorado, have implemented air standards. What we care about is the aggregate. We want to discourage a race to the bottom among producers and have a national baseline for methane emissions.

While, again, frankly, I think this rule should go a lot further, at least it provides that baseline, provides the industry certainty, and helps begin the process of us getting a handle on ensuring that the air we breathe is clean and reducing climate change.

Mr. Chairman, I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I yield 2 minutes to the gentleman from West Virginia (Mr. JENKINS.)

Mr. JENKINS of West Virginia. Mr. Chairman, here we go again. Just two amendments ago we had something called the social cost of carbon. Well, yes, the administration has now put out a new methane rule. Guess what. Social cost of methane is now being put forth as the economic justification for their rules.

I pointed out just a moment ago that despite the OMB's circular recommending a certain discount rate, unfortunately when running the numbers, apparently the Agency doesn't get the results they want, so what they do is change the underlying assumptions.

I rise in opposition to this amendment. This amendment would remove a critical provision to protect against new, expansive methane regulations that could harm the economy, would harm the economy, and strangle our domestic energy portfolio. These regulations are being developed using the same overly aggressive interpretation of the Clean Air Act that was responsible for the costly, burdensome Clean Power Plan.

What is interesting on this one, however, is that even the EPA found that the methane rule would provide only marginal benefits. But they plow ahead regardless of that finding. I urge the opposition to this amendment.

Mr. POLIS. Mr. Chairman, you can't just pretend that things don't have costs. Of course, carbon emissions have a cost. Of course, methane emissions have a cost. It doesn't mean that people are proposing we abolish carbon emissions from our economy. It means we want to look at, in this case, methane emissions and their cost. Colorado has implemented similar rules already that the industry has adopted. There are actors in the industry who want this very certainty so they know what they need to do with regard to methane emissions. There are plenty of companies providing new recapture technologies.

All this does is begin to get a handle on it. Again, in my opinion, it doesn't go far enough. In my opinion, it isn't the kind of action I would hope a bold Congress would take. But at the very least, let's have standards for methane emissions. Let's prevent a ban on research into existing drill sites for methane standard purposes.

If this section is left intact, not only does it strike the emission standards, it prevents the EPA from doing research into what the standards should be or could be, so we are never going to reach ''the right answer.'' It should be beholden on those who believe that this is not the right answer to actually support the very kind of research for methane standard purposes that is blocked by this very section, which our amendment will remove from the bill. I ask for your support on this simple, commonsense amendment to remove this policy rider and help keep our air clean.

Mr. Chairman, I yield back the balance of my time.

Mr. CALVERT. Mr. Chairman, I oppose the amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Colorado (Mr. POLIS).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. POLIS. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Colorado will be postponed.

AMENDMENT NO. 34 OFFERED BY MR. LOWENTHAL

The Acting CHAIR. It is now in order to consider amendment No. 34 printed in House Report 114–683.

Mr. LOWENTHAL. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 157, strike lines 13 through 16.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from California (Mr. LOWENTHAL) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. LOWENTHAL. I yield myself such time as I may consume.

Mr. Chairman, my amendment would strike a misguided policy rider that could cost taxpayers hundreds of millions of dollars, and it maintains a sweetheart, below-market deal for the fossil fuel industry.

My amendment would strike section 440 of the underlying bill, a section that would prevent the Interior Department from updating royalty rates and valuation methodologies for coal, oil, and natural gas resources on public lands.

Now, I would think that saving the taxpayer money by charging a fair return for the development of our public resources is something that both sides of the aisle could agree upon. So maybe the sponsors behind this policy rider didn't know the true magnitude of the cost to taxpayers that their rider to this appropriations bill would impose upon Americans.

To make sure that we all understand, Mr. Chair, what we would be costing the taxpayer if we were to vote to keep this harmful rider, Mr. Chair, I would like to share some eye-opening research on this matter.

The nonpartisan Congressional Budget Office, the CBO, just released in April a detailed study that reviewed possible changes to the oil and gas fiscal system. That report explicitly analyzed how much money the American taxpayer is losing from the current below-market onshore oil and gas royalty rates.

CBO concluded that the U.S. Treasury would receive $200 million additional and the Western States another $200 million over 10 years if the Interior Department were to simply raise the onshore royalty rates to parity with the current offshore royalty rates.

So, to be clear, keeping this misguided policy rider would prevent an additional $200 million from being sent to the Western States and another $200 million to the Federal taxpayer.

Mr. Chairman, I have also heard specious arguments that claim raising onshore royalty rates will decrease production, put all oil and gas companies out of business and actually reduce the return to the taxpayer. This is false, and here is why: The CBO analyzed these effects and found that this was not the case. The CBO found that the effects on production would be negligible, and that the increases in Federal and State revenues are net increases that include the decreases in income from bonus bids and production changes. Furthermore, production would not simply move to State or private lands to find lower royalty rates because private mineral owners and Western States, like Wyoming, New

Mexico, Louisiana, North Dakota, Montana, even Oklahoma and Texas, all of them charge higher royalty rates.

Thus, I hope these facts will disabuse those who used to believe in keeping onshore oil and gas royalty rates below market price, and now will, instead, support the Lowenthal amendment No. 34 that will allow the Interior Department to provide the taxpayer and Western States with hundreds of millions of dollars in additional revenue.

Mr. Chairman, I reserve the balance of my time.

□ 2100

Mr. CALVERT. Mr. Chair, I rise in opposition to this amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chair, we included a provision in this prohibiting the Department of the Interior from changing royalty rates in its valuation regulation for coal, oil, and gas on Federal land in order to stem the hemorrhaging of jobs we are seeing in coal country and throughout the United States.

I yield 3 minutes to the gentleman from Montana (Mr. ZINKE).

Mr. ZINKE. Mr. Chairman, I rise in opposition to Mr. LOWENTHAL's amendment to strike the language that would defund the administration's efforts to kill coal, oil, and gas development.

My colleagues and I included this language for good reason. We are trying to protect our schools, our infrastructure, our communities, and the very livelihoods that depend on these revenues.

I know that royalty and valuation mean very little outside these walls, but to my constituents across Montana, it means funding schools and empowering local communities.

Mike Johnson, an operating engineer from Billings, I think sums it up best:

I am a working man from Montana. I am not a doctor or a lawyer or anything, but I personally suffered from the Federal mismanagement of our public lands in western Montana. I am a displaced worker from a paper mill. I now work in eastern Montana, and people don't understand the impact these jobs have on our lives. I saw five about five of my friends commit suicide after the mill closed. My wife had cancer, and I lost my health care, and I lost darn good-paying jobs.

The chairman of the great Crow Nation, Old Coyote, said:

A war on coal is a war on the Crow people.

Without Crow revenue, without revenue from coal, the Crow people faced a lifetime of despair and poverty. They have very few options but coal. Yet, this administration, at every turn, tries to prevent the Crow Nation from being sovereign and from having their choice to export and use their resource as they want. These words capture the real problem, and the cost is real people.

I know that many don't understand where Montana is. Montana is the same size as from here to Chicago, plus 2 miles. I understand Montana. I understand that Montana is blessed with resources, and we want to use them in a responsible way. But I also have to protect our families, our ability to provide a living in Montana.

For this reason, I ask my colleagues to vote against this amendment and stand with American workers, families, and the great Crow Nation.

Mr. LOWENTHAL. Mr. Chair, may I ask how much time I have remaining?

The Acting CHAIR. The gentleman from California (Mr. LOWENTHAL) has 1 minute remaining.

Mr. LOWENTHAL. Mr. Chair, we heard a very passionate plea that this amendment of mine would hurt jobs, would hurt schools, would kill coal. It is just the opposite.

As I pointed out, the CBO's report just indicated that production would not go down. In fact, the largest impact upon production, the dominant factor that controls production, is the price of crude oil and natural gas, not the royalty rates.

I also would like to remind those on the other side of the aisle that States like Montana already at the State level and also on private property charge much higher than we are asking at the Federal level.

I would agree to the same charge that Montana charges residents for its own oil and gas and coal production.

Mr. Chairman, I request an ''aye'' vote on this very reasonable amendment that really brings money back to both States and also to the Federal Treasury.

I yield back the balance of my time.

Mr. CALVERT. Mr. Chairman, it is interesting. We hear the devastating effects from people who represent these States that are rich in natural resources and what is happening in coal country and to the oil industry and the rest. I respect their opinion and I, obviously, oppose this amendment.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. LOWENTHAL).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. LOWENTHAL. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from California will be postponed.

It is now in order to consider amendment No. 35 printed in House Report 114–683.

PERMISSION TO CONSIDER AMENDMENT NOS. 35, 36, 37, 38, 39, AND 40 OFFERED BY MR. MCNERNEY OF CALIFORNIA EN BLOC

Mr. CALVERT. Mr. Chairman, I ask unanimous consent that amendment Nos. 35, 36, 37, 38, 39, and 40 printed in House Report 114–683, be considered en bloc.

The Acting CHAIR. Is there objection to the request of the gentleman from California?

There was no objection.

AMENDMENTS EN BLOC OFFERED BY MR. MCNERNEY OF CALIFORNIA

Mr. MCNERNEY. Mr. Chairman, I offer amendment Nos. 35, 36, 37, 38, 39, and 40.

The Acting CHAIR. The Clerk will designate the amendments.

The text of the amendments is as follows:

AMENDMENT NO. 35 OFFERED BY MR. MCNERNEY OF CALIFORNIA

Page 162, beginning on line 14, strike section 447.

AMENDMENT NO. 36 OFFERED BY MR. MCNERNEY OF CALIFORNIA

Page 166, beginning on line 19, strike section 448.

AMENDMENT NO. 37 OFFERED BY MR. MCNERNEY OF CALIFORNIA

Page 172, beginning on line 4, strike section 449.

AMENDMENT NO. 38 OFFERED BY MR. MCNERNEY OF CALIFORNIA

Page 182, beginning on line 18, strike section 450.

AMENDMENT NO. 39 OFFERED BY MR. MCNERNEY OF CALIFORNIA

Page 182, beginning on line 24, strike section 451.

AMENDMENT NO. 40 OFFERED BY MR. MCNERNEY OF CALIFORNIA

Page 183, beginning on line 3, strike section 452.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from California (Mr. MCNERNEY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. MCNERNEY. Mr. Chairman, I am submitting an amendment to strike provisions from Mr. VALADAO's bill, H.R. 2898, that were included as riders in this year's Interior and EPA appropriations bill.

I am disappointed that my Republican colleagues continue to attach bad policy on important appropriations bills. In this case, they have attached the same damaging riders to the Interior appropriations bill that would drain the California delta with over pumping. These provisions would ravage the ecology of the delta, destroy the local fish and wildlife, and harm communities we serve.

They would undermine 40 years of progress in protecting our land and resources. They override environmental protection for California rivers, fisheries, threatening thousands of fishing jobs, and weaken the Endangered Species Act. Fish will go extinct. But my Republican colleagues claim that this bill will not harm fish.

These sections violate existing biological opinions protecting salmon and other endangered fish, which would impact the salmon industry across the entire Pacific Coast.

These riders do nothing to prepare our communities for droughts in the future. These are droughts we know are coming. They misstate California water law and encourage further regional divides in the West when we need to work together to bridge those differences.

H.R. 2898 has been opposed by the State and key stakeholders, including commercial and sport fishermen, Native American tribes, environmental groups, and recreational employers. And the Obama administration has already threatened to veto it, but my Republican colleagues keep claiming that water is being wasted.

Hydrological conditions have played a primary role in water deliveries since the start of California's drought. The 2014 water year was the third driest in California's recorded history, and some experts conclude that the current drought may be the State's most severe in 1,200 years.

Currently, 100 percent of the State is experiencing some level of drought, and more than 40 percent is experiencing ''exceptional drought,'' the most severe drought classification according to the U.S. Drought Monitor.

The Department of the Interior estimates that the Endangered Species Act accounted for a mere 2 percent of the water supply reduction in the Central Valley Project water deliveries in 2014, and current estimates suggest a similarly small impact in 2014. California's State Water Resources Control Board estimated that in 2015, only 2 percent of this water flowed out to the ocean solely for environmental protection.

The water that Donald Trump said was being shoved out to sea was actually used to prevent saltwater intrusion that would permanently damage some of the most valuable farmland in the world. Water being released for salinity control protects Central Valley farms from being contaminated.

California and Federal officials have been able to increase exports from the California delta using existing authority. This action has helped maximize the use of what little water exists in the State. A lack of water is our biggest threat, not operational flexibility. And my colleagues still wonder where some of that water went.

Well, according to the Bay Institute, earlier this year, approximately two-thirds of storm runoff was captured or diverted, with only one-third of the runoff making it through the delta estuary. And for the period of October 1 of last year to January 31, 60 percent of storm water was diverted or stored.

Water scarcity in California is caused by longstanding and severe drought and the slow pace of investments in efficiency, water recycling, and other supplies. Many senior water right holders have received 100 percent of their allocation this year. According to State law, they are supposed to get that amount. The other junior right holders got much less, but that is what it means to be a junior water right holder—you don't get as much water in a drought.

California has the right to stop seawater intrusion, protect water quality for our communities and farms, and distribute allocations according to their water right system. Even the junior water right holders have proven their resiliency. In fact, the National Agriculture Statistics Service projects a record almond crop in California this year. The orchards will yield an estimated 2.05 billion pounds, up from an even 2 billion the year before. It would eclipse the record.

I am deeply disappointed this bill has been included in this year's Interior appropriations bill, and I hope my amendment passes to strike out these harmful provisions.

Mr. Chairman, I yield back the balance of my time.

Mr. CALVERT. Mr. Chair, I rise in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chair, we all know there has been a drought in California, except for this year. This year, we have had some relief from the historic drought conditions that have been certainly made worse by Federal actions, which have, undoubtedly, led to increased pressure on California's ability to provide water throughout the State.

I have been following the flows of water through the delta virtually every day. I remember one day there was 185,000 cubic feet per second moving through the delta. And for whatever reason, decisions were made to only pump 2,500 cubic feet per second when you are allowed under the biological opinion to pump 5,000. I am just going to give that as one example.

I yield 3 minutes to the gentleman from California (Mr. VALADAO), who has been working very hard in the Central Valley for the farms and his constituents.

Mr. VALADAO. Mr. Chairman, 380 million gallons a day; that is a number that should have been quoted. When you hear about 380 million gallons a day of sewage being dumped in this estuary that they talk about, this environment they are trying to protect, when you think about that much sewage being dumped into the delta on a daily basis, you hear the same people talking about trying to protect it.

There are things going on in that delta. And they have been restricting our water for the last 20 years, and it has not saved that species. There are provisions in these bills that actually help. We attacked the invasive species that is attacking the delta smelt, the striped bass. We have offered that provision many times.

We are offering many solutions. Like the author mentioned earlier, we have had language in probably five different pieces of legislation going through the House over to the Senate. We have begged for an open and transparent process where we can debate this and have some commonsense ideas brought forward and voted and signed into law so that we can help both our communities.

If you truly care about the delta, stop polluting it. If you truly care about the people of California and what it costs to feed your families, if you truly care about farm workers, if you truly care about these small communities, you would care about water and doing this right and having an honest debate.

Now, I have been approached off camera a million times now to have another off-camera conversation about this, and we have said all along: No more conversation like that. Everything on the floor. This is an open, transparent process. Five pieces of legislation have this language in it. And we are going to continue to push until we can get some support so we can fix this problem.

□ 2115

So those little communities in my district that people claim to care about could actually turn on a faucet and fill a pot of water so they can make themselves some food to eat and some dinner, maybe bathe their children, because that is where we are today. We have houses that, when they turn on a faucet, they no longer have water.

And I get the whole junior water rights concern, but if they were truly concerned about the environment, they would give up some of their water. But you look at Hetch Hetchy, that has had 100 percent of their water and continues to deliver that water via pipeline all the way to San Francisco without one conversation about that water being able to help some of these rivers and some of these species, but they are not willing to give up any of their water. They are willing to take other people's water. It is the same thing we hear about on so many different issues; take someone else's product, or someone else's water and try to solve another problem with it.

And the problem has to be solved the right way: language that we have offered, that has been offered into these amendments, into these bills, and that we have pushed over to the Senate, and the conversation has to be had in an open, transparent process like our Senators have told us they wanted.

So we are here. We are ready for that conversation. We want an honest debate, and we want to talk about the way we actually fix these problems.

We are not going to try to accommodate communities dumping their sewage in the delta, but we want to help those species, and there is language in there to do that, even language in there to help capture some of the water. Use some of the infrastructure we have paid for as taxpayers and allow it to be used to its full capacity so we can continue to store water that we do have and not waste it.

This is an honest piece of language that could actually help solve California's problems, and I think we need to continue to have an honest debate.

Mr. CALVERT. Obviously, this is an emotional subject. It is not just water that is going to the Central Valley, also to the southern California region for the millions of people who live there.

We don't want to see water wasted. This year, we saw hundreds and hundreds of thousands of acre-feet of water being released through the delta, really, with not saving one fish. Even independent agencies will privately agree that they were overly conservative

when they were managing the pump operations of late.

So this suffering that is going on is terrible. It needs to come to an end. I certainly oppose this amendment and urge a ''no'' vote.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendments en bloc offered by the gentleman from California (Mr. MCNERNEY).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. MCNERNEY. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendments offered by the gentleman from California will be postponed.

AMENDMENT NO. 41 OFFERED BY MR. GRIJALVA

The Acting CHAIR. It is now in order to consider amendment No. 41 printed in House Report 114–683.

Mr. GRIJALVA. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

Page 183, strike line 23 and all that follows through page 184, line 15.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Arizona (Mr. GRIJALVA) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arizona.

Mr. GRIJALVA. Mr. Chairman, I offer an amendment to strike section 453 from the underlying bill.

Section 453 restricts funds from being used to establish a national monument pursuant to the Antiquities Act in several Western counties, including Maricopa County in Arizona, a portion of which I represent in Congress.

I understand the Member who inserted this language into the bill during committee consideration is generally opposed, if not totally opposed, to the use of the Antiquities Act.

This section restricts the use of the Antiquities Act on over 160 million acres of public land, nearly one-quarter of all Federal land in the lower 48. I know that many of the Members of Congress who represent these areas do not support this blanket restriction on the use the Antiquities Act.

So that we are absolutely clear, these monuments can be established only on land already owned by the Federal Government. This is how Federal lands should be preserved. It is not about adding more land to the Federal estate.

Since Theodore Roosevelt's designation of the first national monument, Devils Tower in Wyoming, 16 Presidents from both parties have used the Antiquities Act to protect more than 160 of America's best known and most loved landscapes; only 3 Presidents have not.

America's public places are becoming more and more inclusive, more representative of all Americans, and as President Obama has demonstrated with the use of the Antiquities Act, more representative of the real reality, history, culture, and special places of this Nation that represent all people. That is why, presently, I am working with the region's Native American communities and, in earnest, I have asked the President to designate the Greater Grand Canyon Heritage National Monument on public land surrounding the Grand Canyon.

Section 435 of this bill will jeopardize not only that effort, but other efforts around the country to honor, recognize, and protect our most cherished cultural, historic, and natural resources, and it should be removed from the bill.

I urge my colleagues to stand up in defense of the Antiquities Act and support my amendment to strike Section 435 from this bill.

Mr. Chairman, I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I rise in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. Mr. Chairman, I yield 2 minutes to the gentleman from Utah (Mr. STEWART).

Mr. STEWART. Mr. Chairman, some 20 years ago, President Clinton went to Arizona and he pointed across the border into Utah, in my district, and he said: I'm creating a national monument over there—nearly 2 million acres.

He did not have the courage to come to Utah to defend this monument nor to create it because he knew that the local people did not support it. That monument has been incredibly unpopular since then. It has kicked ranchers off the range. It has decimated the local economies, until we have reached this point, where some of the local school districts have had to declare an emergency because their schools are dying and their children are having to ride a bus for 2 hours, one way, 2 hours, to go to school. Why? Because there are no jobs that can support a family, and people are having to leave.

Local input is so important to the creation of these monuments, and there are examples where local input and where people collaborating have worked together and come to a great solution. ROB BISHOP has done that. Just yesterday, we held a bipartisan press conference where we had local mayors, Republicans and Democrats, on what we called the Mountain Accord.

I am asking President Obama, please, come to my State. Talk to the people in my district. See what they think about this monument. Come talk to us and see how this will impact them.

Now, let me close with this. There is a reason I live in Utah. I love to ski. I love to rock climb. I love to hike. I love to sit on my porch and look at the beautiful landscape around me. I want to preserve this. All of us do. But there is a right way to do this and there is a wrong way to do this, and the Antiquities Act and the stroke of a pen of a President who won't even come to the State to defend his action is not the right way.

Mr. GRIJALVA. Mr. Chairman, I yield 1 minute to the gentlewoman from Maine (Ms. PINGREE).

Ms. PINGREE. Mr. Chairman, I thank my friend for yielding the time.

I really want to support this important amendment offered by the gentleman from Arizona. It is important because it will strike a section of this bill that will hurt a small group of States, including my State of Maine.

As we all know, the Congress gave the President the right to create a national monument over 100 years ago. Since then, the President has used that authority to create national monuments like Yellowstone, Grand Canyon National Park, and Acadia National Park in my district.

National monuments bring economic benefits to States, and the use of the Antiquities Act has been an important conservation tool for over a century. For my State of Maine, a national monument would bring new visitors to the area and create jobs, not just in the immediate region, but throughout the State.

For example, we already have a national park in Maine, Acadia National Park. Acadia started out as a national monument 100 years ago this very month, and it brings about 3 million visitors a year to the region.

Mr. Chair, this bill has very problematic language in that it will block the creation of national monuments, even in areas where one might be supported by our local communities. We need to strip this provision out of the underlying bill.

I urge my colleagues to strongly support the Grijalva amendment.

Mr. CALVERT. Mr. Chair, I yield 2 minutes to the gentleman from Arizona (Mr. GOSAR).

Mr. GOSAR. Mr. Chairman, Congressman GRIJALVA, who represents southwestern Arizona, is seeking to lock up 1.7 million acres in northern Arizona, at the behest of special interest groups, for the sole purpose of preventing mining, retiring grazing permits, closing roads to OHV users, and preventing forest thinning activities. There is significant opposition in Arizona to this proposed land grab, as Americans for Responsible Recreational Access recently reported that a scientific poll found that 71.6 percent of Arizonans are opposed.

In April, I held a public meeting to hear concerns about this proposal, and hundreds of local stakeholders showed up in opposition. More than 30 Arizona witnesses submitted formal testimony against this land grab, including Arizona's Governor, the Arizona Chamber of Commerce and Industry, numerous businesses, sportsmen's groups, ag

groups, local officials, and countless taxpayers. In fact, several of the comments pertaining to today are out of line.

In fact, in this proposal, the entire town of Tusayan, which is in Coconino County, would be swallowed up by this proposed monument. Town managers testified against it.

Arizona State Land Department Commissioner Lisa Atkins submitted testimony stating: ''Of the 1.7 million acres included in the proposal for the Grand Canyon Watershed National Monument, 64,000 acres belong solely to the Common Schools beneficiary: K–12 education.''

The list goes on and on and on. I asked everybody. In fact, Arizona Governor Doug Ducey stated: ''Imposition of a preservation management objective overlay on 1.7 million acres of land in Arizona thwarts Arizona's land management objectives and values, and it does so by bypassing a public process that would most certainly result in a much more thoughtful result. The Grand Canyon Watershed National Monument is not narrow, targeted, warranted, or being considered through an open cooperative public process.''

I, last but not least, bring up that attorneys also have testified that this proposed monument will tie up future surface water use and future groundwater use.

I urge a ''no'' vote on amendment 41.

Mr. CALVERT. Mr. Chairman, is there any time left for the opposition?

The Acting CHAIR. The gentleman from California has 1½ minutes remaining.

Mr. CALVERT. Mr. Chairman, I reserve the balance of my time.

Mr. GRIJALVA. Mr. Chairman, I yield 1 minute to the gentlewoman from Nevada (Ms. TITUS).

Ms. TITUS. Mr. Chairman, I rise in support of Mr. GRIJALVA's amendment.

I represent the heart of the Las Vegas Valley, which attracts more than 42 million visitors from around the globe every year to the world famous Strip to visit our first-class casinos, restaurants, shopping, and shows.

But that is not the only reason people come to Nevada. They come to see the West as it was hundreds, even thousands, of years ago. They come to see the iconic bighorn sheep, the Joshua tree, the petroglyphs that tell the history of the first people who called southern Nevada home.

Congress rightfully entrusted in the President the authority to designate such special places for protection, but this bill would eliminate his or her ability to do that, to protect those places that tell America's stories.

I urge my colleagues to support Mr. GRIJALVA's amendment to strip out this section from the bill.

Mr. CALVERT. Mr. Chairman, I reserve the balance of my time.

Mr. GRIJALVA. Mr. Chairman, in closing, let me say, since the item came up of the Grand Canyon, the Grand Canyon is an icon to this whole Nation and is supported overwhelmingly by public opinion to create a monument that protects it from degradation from uranium mining, that protects the watershed that feeds water to 23 million people across the West, Nevada, California, Arizona. To say that this is merely a grabbing and a taking is to misrepresent history, misrepresent the reality of that resource; and, in the long term, understand that this icon, the Grand Canyon, is there to be preserved and protected by this Congress, not to be turned over for exploitation.

I urge support of the amendment to protect the prerogatives of not only a President, but the prerogatives of our natural resources to be protected in perpetuity for generations and generations to come.

Mr. Chairman, I yield back the balance of my time.

Mr. CALVERT. Mr. Chairman, I oppose the amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arizona (Mr. GRIJALVA).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. GRIJALVA. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Arizona will be postponed.

□ 2130

AMENDMENT NO. 42 OFFERED BY MRS. BLACK

The Acting CHAIR. It is now in order to consider amendment No. 42 printed in House Report 114–683.

Mrs. BLACK. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ___. None of the funds made available by this Act may be used by the Environmental Protection Agency to finalize, implement, administer, or enforce section 1037.601(a)(1) of title 40, Code of Federal Regulations, as proposed to be revised under the proposed rule entitled ''Greenhouse Gas Emissions and Fuel Efficiency Standards for Medium- and Heavy-Duty Engines and Vehicles-Phase 2'' published by the Environmental Protection Agency in the Federal Register on July 13, 2015 (80 Fed. Reg. 40138 et seq.), or any rule of the same substance, with respect to glider kits and glider vehicles (as defined in section 1037.801 of title 40, Code of Federal Regulations, as proposed to be revised under such proposed rule).

The Acting CHAIR. Pursuant to House Resolution 820, the gentlewoman from Tennessee (Mrs. BLACK) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Tennessee.

Mrs. BLACK. Mr. Chairman, I rise today to offer an amendment to protect American workers and small manufacturing businesses from a misguided provision in a proposed EPA rule. Last year, the EPA released its phase 2 fuel efficiency and emissions standard for new medium- and heavy-duty trucks.

While many in the trucking industry are not opposed to the phase 2 rule as a whole, one section in the proposal wrongly applies these standards to what are known as glider kits.

A glider kit is a group of vehicle parts that can include a brand new truck frame, cab, or axles, but which does not include an engine or transmission. Since a glider kit is less expensive to purchase than a new heavy-duty truck and can extend the investment and working life of a truck, businesses and drivers with a damaged or older vehicle may choose to purchase a glider kit instead of buying a new one.

Gliders extend the useful life of truck engines while frequently having a higher resale price against comparable trucks. Due to their rebuilt engines, they can also often be a more fuel-efficient option, allowing trucking companies and drivers to use less fuel.

Unfortunately, the EPA is proposing to apply the new phase 2 standards to glider kits even though gliders are not really new vehicles. Further, it is unclear whether the EPA even has the authority to regulate the replacement parts like gliders. While the EPA's stated goal with phase 2 is to reduce emissions, the agency has not studied the emissions impact of remanufactured engines and gliders compared to new vehicles.

It appears the agency's actual motivation is to force businesses and drivers that would like to use glider kits to instead buy new trucks. Applying the phase 2 standards to glider kits would certainly harm the workers and owners in the glider industry, leading to possible closure of these businesses and job losses at both manufacturers and dealerships. Additionally, the EPA's rule would limit consumer choice in the marketplace. Under this proposal, many operators and businesses would simply choose to continue using current vehicles, leaving older trucks on the road longer.

My amendment would protect these businesses and American manufacturing jobs by prohibiting the EPA from finalizing, implementing, administering, or even enforcing phase 2 standards on glider kits.

To be clear, this amendment would not—and I repeat, would not—bar the EPA from implementing the whole phase 2 rule for medium and heavy-duty trucks. It would simply clarify that glider kits and glider vehicles are not new trucks as the EPA claims.

I urge my colleagues to support this commonsense amendment to help support American manufacturing and stop the EPA from attempting to shut down the glider industry.

Mr. Chair, I reserve the balance of my time.

Mr. ISRAEL. Mr. Chair, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentleman from New York is recognized for 5 minutes.

Mr. ISRAEL. Mr. Chair, last year, the Environmental Protection Agency and the National Highway Traffic Safety Administration issued proposed fuel efficiency standards for medium- and heavy-duty trucks as required by the Energy Independence and Security Act.

This amendment would prohibit EPA from finalizing, implementing, administering, or enforcing this proposed rule or any rule of the same substance with respect to glider vehicles. These new standards are designed to improve fuel efficiency and cut carbon pollution to reduce the impact of climate change.

To be specific, Mr. Chair, these standards are expected to lower CO_2 emissions by roughly 1 billion metric tons, cut fuel costs by $170 million, and reduce oil consumption by up to 1.8 billion barrels over the lifetime of the vehicles sold under the program. Now, heavy-duty trucks account for 5 percent of the vehicles on the road, and yet they create 20 percent of the greenhouse gas emissions created by all transportation sectors.

I would note for my colleagues that this amendment doesn't actually suspend all aspects of the new rule; it simply carves out an exemption for one particular industry, the industry that produces what are known as glider vehicles.

Glider vehicles are heavy-duty vehicles that place an older or remanufactured engine on a new truck chassis. These are engines that date back to 2001 or older. They have emissions that are 20 to 40 times higher than today's clean diesel engines.

In essence, Mr. Chair, this amendment would allow an entire segment of the truck manufacturing industry to avoid compliance with the new criteria pollutant standards that are in the rule. These are engines that will continue to emit greenhouse gases and slow down our progress in reducing the impacts of climate change. In short, Mr. Chair, this amendment creates a loophole that you could drive a truck through by allowing dirty engines to continue to pollute our environment.

I urge my colleagues to oppose this amendment.

Mr. Chair, I reserve the balance of my time.

Mrs. BLACK. Mr. Chair, I yield 1 minute to the gentleman from California (Mr. CALVERT) the chairman.

Mr. CALVERT. Mr. Chair, it is my understanding that the overall rule is supported broadly by many in the truck and the manufacturing industry. However, as any rule, there are some specifics that do need to be ironed out, and my colleague has narrowly tailored this amendment to address concerns within the EPA's rule. So you really can't drive a truck through it.

I support this language in the Interior bill.

Mr. Chair, I urge Members to vote ''aye'' on this amendment.

Mr. ISRAEL. Mr. Chair, I reserve the balance of my time.

Mrs. BLACK. Mr. Chair, this proposed language from the EPA is improper and ill-conceived with no regard to jobs. If the EPA is going to promulgate rules that raise the costs and hurt jobs in districts like mine, the least they can do is to have a few facts prepared to back them.

Communities where these kits are manufactured are already struggling with above average unemployment, and would see more job opportunities put out of reach.

Furthermore, there seems to have been little time for the glider industry to even respond and to have little to no economic consideration given prior.

Our constituent, dealers and employees, glider truck owners and operators, and remanufacturing businesses will disproportionately be affected by the EPA's decision to effectively ban the products that they sell, service, and drive. The U.S. truck industry has been a bright spot in the recovery of the national economy, and applying new standards to the gliders would increase expenses for our businesses and their drivers.

Congress has recognized the value of remanufactured parts and components. The United States Senate and House of Representatives have voted overwhelmingly in support of legislation, the Federal Vehicle Repair Cost Savings Act, which was signed into law just last year, to encourage Federal agencies to consider using remanufactured parts in the Federal vehicle fleet. So it is happening in the Federal Government. This is going to affect the private sector.

To restrict the usage of manufactured engines under this rulemaking appears to be counter to the congressional intent.

I will reiterate that gliders, by definition, aren't a motor vehicle, and they therefore should be used outside the EPA's authority.

Mr. Chairman, I urge my colleagues to support this amendment.

I yield back the balance of my time.

Mr. ISRAEL. Mr. Chair, I would just restate that this amendment creates a loophole. It creates a loophole for one industry. It picks winners and losers. The winners would be one segment of the truck industry. The losers would be jobs, our health, and our environment.

Mr. Chair, I ask for opposition to this amendment.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Tennessee (Mrs. BLACK).

The amendment was agreed to.

AMENDMENT NO. 43 OFFERED BY MRS. BLACKBURN

The Acting CHAIR. It is now in order to consider amendment No. 43 printed in House Report 114–683.

Mrs. BLACKBURN. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. Each amount appropriated or otherwise made available by this Act that is not required to be appropriated or otherwise made available by a provision of law is hereby reduced by 1 percent.

The Acting CHAIR. Pursuant to House Resolution 820, the gentlewoman from Tennessee (Mrs. BLACKBURN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Tennessee.

Mrs. BLACKBURN. Mr. Chairman, I appreciate the recognition. I want to begin by saying I think the committee has done an amazing job with consistently making reductions in what they are spending. It is appropriate that we do that because we are $19.3 trillion in debt.

My amendment is a very simple reduction in spending. It is a penny out of a dollar—1 percent—across the board. I know it is not popular. I know everybody says it goes too far. But this will save us $321 million—of course, not a lot when you look at the total budget, but it is very appropriate that we begin to take these steps.

I think it is so interesting talking about Ronald Reagan and how he approached things. He would always say: Let's take a little bit, a few steps at a time and begin to get behind some of this and get our economy and get our government back in shape, right-size it.

That is exactly what he did, and it paid off for our country with economic growth, making certain that our economy was growing, and that our revenues were growing. Indeed, Mr. Chairman, since that time, we have seen our country doesn't have a revenue problem. What we have is a spending problem. What we have is a priority problem. What we fail to do time and time again is to realize that the taxpayers tell us they are overtaxed, our government is overspent, and they want us to consistently make as many spending reductions as we possibly can.

So I come, once again, to the floor with this 1 percent across-the-board spending cut. What it will do is to make that reduction of another $321 million to build on the success the committee has already shown with coming $64 million below the 2016 enacted levels. They are to be commended for that. But let's get in behind it. Let's compound these savings and begin to get our fiscal house in order.

Mr. Chairman, I reserve the balance of my time.

Mr. ISRAEL. Mr. Chairman, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentleman from New York is recognized for 5 minutes.

Mr. ISRAEL. Mr. Chairman, I believe that our colleagues will be treated to a rare display of bipartisan harmony on this amendment.

Mr. Chair, I strongly oppose the amendment.

Look, this is not a perfect bill, and there are clear differences on this amendment, but we should not be underfunding what, in my view, is already underfunded. If this amendment were to pass, we are looking at fewer patients that would be seen at the Indian Health Service, fewer safety inspectors ensuring that accidents do not occur, and deferred maintenance on our Nation's drinking water and sanitation infrastructure. More generally, Mr. Chairman, investments in our environmental infrastructure and our public lands will be halted, and jobs will be lost.

The bill is already underfunded in my view, and this amendment would not encourage the agencies to do more with less. Simply put, it would force agencies and our constituents to do less with less. I strongly urge my colleagues to oppose this amendment.

Mr. CALVERT. Will the gentleman yield?

Mr. ISRAEL. I yield to the gentleman from California.

Mr. CALVERT. I thank the gentleman for yielding.

I certainly appreciate the gentlewoman's amendment and her intent to reduce spending. As she well knows, we have reduced this bill somewhat over the years, as we have on all of the discretionary accounts that the Appropriations Committee is responsible for.

This really is a decision based upon discussion regarding discretionary accounts versus nondiscretionary accounts. If we could have cut the nondiscretionary accounts as much as we have cut discretionary accounts, we could probably balance the budget plus. But unfortunately, we are not there.

So I rise in opposition to this amendment. I commend my colleague for her consistent work to protect taxpayer dollars, but this is not an approach I can support. While the President's proposed budget exceeds the bill, the increases were paid for with proposals and gimmicks that would never be enacted. This bill makes the tough choices with an allocation that adheres to the current law.

We may not agree that it is enough, but that is what the current law is. So we made trade-offs, and we have done many difficult choices to make this work.

Mr. Chair, I urge opposition to this amendment.

Mr. ISRAEL. Mr. Chair, I reserve the balance of my time.

□ 2145

Mrs. BLACKBURN. Mr. Chairman, I have heard every excuse that there is—always do—and I know that spending reductions are not popular around here. I get it. I know it. But let me tell you what I think also is not proper.

I think that it is immoral for us to spend money that we don't have—it is not our money; it is taxpayer money—and to spend it on programs that our constituents don't want.

I think it is also immoral for us to not get our spending under control and to pass along all this debt to our children and our grandchildren. Just think about it. My grandsons, who are 7 and 8 years old, by the time they begin paying taxes, these programs, many of them, will have outlived their usefulness. The utilization of these dollars will be gone.

Do I hope we have the political will to look at the mandatory spending side of the column? Absolutely.

A couple of other points. I would hope that bipartisanship will come to reducing what we spend in this Chamber, that there will be agreement that we are, indeed, overtaxed and overspent, and the fiscal health of this Nation needs to be addressed.

I also think that what we need to look at is the burden of taxation has caused many of our constituents to face deferred maintenance on their homes, on their businesses, on their dreams, because they are having to pay their taxes, they are having to pay what the Federal Government takes out of those paychecks, first right of refusal on those paychecks. It also causes job loss.

It is time for us to address our overspending and our national debt. I do hope we see some work on the mandatory side of the column.

I urge a ''yes'' vote.

I yield back the balance of my time.

Mr. ISRAEL. Mr. Chairman, may I ask how much time I have remaining?

The Acting CHAIR. The gentleman from New York has 2½ minutes remaining.

Mr. ISRAEL. Mr. Chairman, the gentlewoman notes that it is the taxpayers' money. She is right, it is the taxpayers' money. Taxpayers expect that their money will be spent safeguarding their infrastructure. They expect that their money will be spent on maintenance, maintaining their infrastructure. They expect that their money will be spent making sure that when they turn on the faucets in Flint, Michigan, toxic water doesn't come out. They expect that if they have health problems, they will be able to get some monitoring and that their health will be taken care of. They expect us to spend their dollars wisely.

As I said before, Mr. Chairman, this is not a perfect bill. But the chairman is correct, this bill adheres to the law. While we would say we are not investing enough, and while the chairman would say we are investing about what we have, the gentlewoman's amendment would actually force us to do much less with even less.

Those are not priorities we can support, Mr. Chairman, which is why I urge my colleagues to join the chairman and our ranking member in opposing this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Tennessee (Mrs. BLACKBURN).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mrs. BLACKBURN. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Tennessee will be postponed.

AMENDMENT NO. 44 OFFERED BY MR. BOUSTANY

The Acting CHAIR. It is now in order to consider amendment No. 44 printed in House Report 114–683.

Mr. BOUSTANY. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used by the Secretary of the Interior to implement, administer, or enforce any rule or guidance of the same substance as the proposed rule regarding Risk Management, Financial Assurance and Loss Prevention for which advanced notice of proposed rulemaking was published by the Bureau of Ocean Energy Management on August 19, 2014 (79 Fed. Reg. 49027) or the National Notice to Lessees and Operators of Federal Oil and Gas and Sulphur Leases, Outer Continental Shelf (OCS) issued by such Bureau (NTL No. 2016–N03).

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Louisiana (Mr. BOUSTANY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Louisiana.

Mr. BOUSTANY. Mr. Chairman, my amendment would prohibit the use of funds by the Secretary of the Interior for the purpose of implementation, administering, or enforcing any rule or guidance similar to the proposed guidance that the Bureau of Ocean Energy Management released regarding financial assurances for oil and gas operations on the Outer Continental Shelf.

The Federal Government currently requires American offshore oil and gas companies to buy liability bonds ranging from tens of thousands of dollars to tens of millions of dollars for every offshore lease. In August of 2014, BOEM published an Advance Notice of Proposed Rulemaking seeking industry input on ''risk management, financial assurance, and loss prevention.''

Inexplicably, BOEM elected to circumvent the rulemaking process it initiated and, instead, released proposed guidance in August 2015 that creates new rules that will change the way the oil and gas industry funds these decommissioning costs—also referred to as ''plugging'' or ''abandonment''—of wells, pipelines, and other facilities in the Gulf of Mexico's Outer Continental Shelf.

The Obama administration ignored warnings from stakeholders that this proposed guidance could drive many companies into bankruptcy precisely at a time when the industry is suffering from a commodity price collapse. A lot of workers in Louisiana

and across the Gulf Coast have been laid off.

BOEM has asserted that these rule changes are necessary to prevent taxpayers from being left with the tab for decommissioning work in light of a number of recent bankruptcy filings by OCS shelf operators. Ironically, BOEM's solution will likely trigger the major risk that it is trying to protect against. If implemented, these changes will pose an existential threat to many OCS shelf operators, discourage future investment, cost thousands of jobs, and dramatically reduce the royalties to U.S. taxpayers.

For example, under the new rules, each party would be assessed 100 percent on shared leases, and a joint operating agreement is no longer accepted as a reflection of actual liability.

This means that if there are four companies sharing a project and it would cost an estimated $20 million to remove that particular platform, BOEM would, nevertheless, require each party to post a $20 million bond to remove the platform. It hardly seems necessary to require $80 million in bonding for a $20 million project.

The new rules also require full bonding up front for all possible wells in the exploratory plan, despite the fact that the wells may never be drilled. The P&A liability, in many cases, will not accrue for many, many years. For facilities already in production, BOEM will require capital assurance for the lifetime production value of the property every year, meaning that each year a lessee will be responsible for 100 percent of the P&A liability for every production facility exploration activity in production value.

In fact, many of the industry experts have expressed concern that BOEM has not even provided a clear definition of the problem that the agency is trying to solve nor has there been any justification provided as to the need for major changes to the existing regulatory framework. Experts throughout the industry remain concerned that if this proposed guidance were to be finalized, it would dramatically limit the industry's ability to successfully explore and extract oil and gas from the Gulf of Mexico.

A new rule, guidance, or any other form of notice from BOEM on supplemental bonding will stifle oil and gas production on the OCS and throughout the Gulf of Mexico. This is not in the interest of the United States.

I urge adoption of my amendment.

I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I claim the time in opposition to the gentleman's amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chairman, this amendment would clearly block the Bureau of Ocean Energy Management from finalizing guidance to clarify financial assurances for oil and gas companies operating in the Outer Continental Shelf.

The guidance is important because it details the procedures that will be used to determine the lessee's financial ability to carry out its obligations so that we, the taxpayer, our constituents, can be sure that the oil company can pay for all of its costs associated with offshore drilling. The guidance is necessary to ensure that oil companies have the financial capability to properly decommission outer shelf facilities instead of abandoning them and leaving the American taxpayer, our constituents, on the hook to pay the cost.

The guidance will modernize the financial assurance regulations to match the current industry practices, provide updated criteria for determining the lessee's ability to self-insure its liabilities based on the lessee's financial capacity and financial strength. We should be working together to ensure that the U.S. taxpayer never pays to decommission an OCS facility and that the environment is protected at the same time.

This amendment protects the special interests of Big Oil at the taxpayer's expense, so I must protect the taxpayer and oppose this amendment.

I reserve the balance of my time.

Mr. BOUSTANY. Mr. Chairman, how much time do I have remaining?

The Acting CHAIR. The gentleman from Louisiana has 1 minute remaining.

Mr. BOUSTANY. Mr. Chairman, I yield the remainder of my time to the gentleman from Louisiana (Mr. GRAVES).

Mr. GRAVES of Louisiana. Mr. Chairman, I want to thank the gentleman from Louisiana for bringing this amendment up.

Here is the reality. This is largely a solution in search of a problem. There has not been a single case in the history of offshore energy production where the government has been left holding the bag. It doesn't exist. So, yes, we should be working together. Representing one of the most ecologically productive coastal areas in the United States, we are very concerned about what happens with our coastal area.

But, again, we are proposing solutions in search of problems. All this is going to do is it is going to result in a decrease in competition for offshore energy production, a decrease in competition, and a decrease in revenue for the United States Treasury. This funds the Land and Water Conservation Fund, something that your side often stands up for and fights for. This has provided nearly $200 billion for the United States Treasury, one of the largest revenue streams for the United States Government outside of taxes.

Mr. Chairman, I urge support of this amendment. This policy, this notice to lessees, is ill-advised. It simply has been done in the dark of night, and it is a solution in search of a problem.

Mr. BOUSTANY. Mr. Chairman, I yield back the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, we need in this day and age to make sure that the American taxpayer is protected. We have seen time and time again when environmental disasters happen and brownfields are left behind or what is going on in Flint, the taxpayer picks up the bill.

I just really believe that this guidance is necessary to ensure that oil companies have the financial capability—that they have on the books the financial capability to properly decommission their Outer Continental Shelf facilities instead of abandoning them, leaving the American taxpayer to pay for the cleanup.

Mr. Chairman, I oppose the amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Louisiana (Mr. BOUSTANY).

The amendment was agreed to.

AMENDMENT NO. 45 OFFERED BY MR. BOUSTANY

The Acting CHAIR. It is now in order to consider amendment No. 45 printed in House Report 114–683.

Mr. BOUSTANY. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may used by the Secretary of the Interior to implement, administer, or enforce any rule of the same substance as the proposed rule entitled ''Oil and Gas and Sulphur Operations in the Outer Continental Shelf-Blowout Preventer Systems and Well Control'' and published April 17, 2015 (80 Fed. Reg. 21504), the final rule issued by the Bureau of Safety and Environmental Enforcement with that title (Docket ID: BSEE-2015-0002; 15XE1700DX EEEE500000 EX1SF0000.DAQ000), or any rule of the same substance as such proposed or final rule.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Louisiana (Mr. BOUSTANY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Louisiana.

Mr. BOUSTANY. Mr. Chairman, my amendment will prohibit any money being spent for the implementation or enforcement of any rule or guidance similar to the well-controlled rule offered by the Bureau of Safety and Environmental Enforcement, or BSEE.

Unfortunately, according to experts throughout the oil and gas industry, many of the prescriptive requirements contained within the final well-controlled rule will neither improve safety nor reduce environmental risk in drilling, but will actually have unintended consequences of increasing risk beyond that of existing regulations.

Additionally, the final rule will create significant additional expenses and burdens for those engaged in exploration development and production activities on the Outer Continental Shelf.

Ultimately, these added economic and compliance cost tens of billions of

dollars over 10 years, and together with other regulatory burdens, they could force some smaller operators out of business and drive larger operators from the Federal OCS toward countries with less prescriptive regulatory environments or other opportunities. This means that the negative impacts of this destructive rule will likely be felt throughout all 50 States.

To my colleagues who represent States that do not have offshore development, I would argue that you should support this amendment because BSEE's well-controlled rule is yet another example of the Obama administration not listening to real experts in this industry and, instead, forcing rules and regulations into place that will hurt the domestic industry and our U.S. economy.

In effect, the well-controlled rule ultimately could increase risk and decrease safety on the Outer Continental Shelf. It is a one-size-fits-all proposal that really is not realistic.

□ 2200

It will also negatively impact the attractiveness of the Gulf of Mexico for future oil and gas investment, and it will likely result in oil and gas operators choosing to develop energy resources in other parts of the world, taking those jobs and those investment opportunities with them.

As the House's Task Forces on Reducing Regulatory Burdens and Restoring Constitutional Authority explains in its mission statement, we as a government should be working to ''make it easier to invest, produce, and build in America with a modern and transparent regulatory system that relieves the burden on small businesses and other job creators and encourages financial independence while balancing environmental stewardship, public safety, and consumer interests.''

BSEE's well control rule does not do this. America cannot continue to be the global energy leader without policies that foster this kind of innovation, investment, and development of our energy resources. Safety, not convenience, must always be the driving force behind these initiatives. BSEE'S well control rule not only leaves industry with numerous questions about compliance, but it also has experts concerned that these new measures will increase risk.

Mr. Chair, I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chair, I claim the time in opposition to this amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chair, I am surprised this amendment is being offered because there is already a rider in the bill that pretty much accomplishes what the gentleman's amendment would do. Let's be clear what this amendment does.

It reverses the safety improvements that were developed following the Deepwater Horizon tragedy. It would delay or prevent the implementation of a rule that was developed directly from the recommendations of numerous investigations. There was a full investigation. These are the recommendations from it. The investigations were conducted by industry experts, and they determined the actual cause of the Deepwater Horizon tragedy and the impact on the Gulf of Mexico and on the surrounding States and on the local communities, as we heard Ms. CASTOR from Florida talk about earlier.

Many of the requirements of this rule are not new. They were already in existence as industry standards, notice to lessees and guidance and equipment and operation requirements that were already part of the regulation. What the rule does is consolidates these requirements into one section and makes them enforceable—yes, enforceable. The Department of the Interior estimates that the regulation amendment blocks would prevent between $657 million and $4.4 billion of damage caused by well blowouts over 10 years.

Most importantly, this estimate does not take into account the human element of these protections. I think we can all agree that you cannot put a price on human life. The Deepwater Horizon was a tragic event. Eleven lives were lost in that explosion. It is unconscionable that this amendment, once again, looks to put the profits of big oil companies ahead of workers' safety; so I oppose this amendment.

Mr. Chair, I reserve the balance of my time.

Mr. BOUSTANY. Mr. Chair, how much time do I have remaining?

The Acting CHAIR. The gentleman from Louisiana has 2 minutes remaining.

Mr. BOUSTANY. Mr. Chair, I yield 1 minute to the gentleman from Louisiana (Mr. GRAVES).

Mr. GRAVES of Louisiana. Mr. Chair, I appreciate the gentleman from Louisiana for yielding and also for bringing up this amendment.

Let's talk about reality versus fiction. Here is the reality.

The reality is that these regulations have not been out there. They were not subject to investigations and studies. I was the lead trustee for the State of Louisiana. I was the tip of the spear who was fighting BP during the entire Deepwater Horizon, and I was the natural resource manager for the coast of Louisiana under which over 600 miles of our coast was oiled.

I appreciate the gentleman for stepping in and trying to defend our environment and our resources. For the constituents whom I represent who lost family members, the reality is this: 60 percent of the wells since the Deepwater Horizon couldn't even be drilled under this proposed rule. The reality is that the Department of the Interior's cost estimate said it was going to cost $883 million to comply with when a private study said it was going to be $93 billion.

The reality is this: you have a bunch of bureaucrats who are sitting around in a vacuum who have no idea what they are doing and who are proposing things under the auspices of safety but that actually threaten the lives of our citizens in south Louisiana who are producing energy for this Nation—in fact, approximately 17 percent of the energy for the United States.

Ms. MCCOLLUM. Mr. Chair, how much time do I have remaining?

The Acting CHAIR. The gentlewoman from Minnesota has 3 minutes remaining.

Ms. MCCOLLUM. Mr. Chair, in closing, that is why I do not understand the redundancy, the duplicity—why we keep doing this over and over and over again. This bill already undoes a lot of what the regulation would do to protect the environment and to protect workers' safety.

I read from the bill at page 69, line 4, section 124, and this is about drilling margins:

''None of the funds made available in this act or any other act for any fiscal year may be used to develop, adopt, implement, administer, or enforce any change to regulations and guidance.'' It goes on.

This amendment would reverse the safety improvements that were developed following the Deepwater Horizon tragedy, something to which, I think, America said no more: no more loss of life, no impact like this on our environment.

I oppose this amendment, and I urge my colleagues to vote ''no.''

Mr. Chair, I yield back the balance of my time.

Mr. BOUSTANY. Mr. Chair, in Louisiana, we understand quite clearly how good environmental policy, economic policy, energy policy march hand in hand. We also know that the men and women who work on these rigs are our friends, our neighbors, our family, and safety is first. We also know from experts across the industry that this proposed rule is a one-size-fits-all proposal that increases risk. It makes it more risky, and we will not stand to allow this rule to go forward. That is why I urge the adoption of this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Louisiana (Mr. BOUSTANY).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. MCCOLLUM. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Louisiana will be postponed.

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, proceedings will now resume on those amendments printed in House Report 114–683 on

which further proceedings were postponed, in the following order:

Amendment No. 1 by Ms. CASTOR of Florida.

Amendment No. 3 by Mr. HIMES of Connecticut.

Amendment No. 8 by Mr. ELLISON of Minnesota.

Amendment No. 9 by Mr. NORCROSS of New Jersey.

Amendment No. 10 by Mr. BEYER of Virginia.

Amendment No. 11 by Mr. HUFFMAN of California.

Amendment No. 12 by Ms. CASTOR of Florida.

Amendment No. 13 by Mr. HUFFMAN of California.

Amendment No. 14 by Mr. SMITH of Missouri.

Amendment No. 20 by Mr. PALMER of Alabama.

Amendment No. 21 by Mr. BEN RAY LUJÁN of New Mexico.

Amendment No. 22 by Mrs. DINGELL of Michigan.

Amendment No. 27 by Mr. CARTWRIGHT of Pennsylvania.

Amendment No. 28 by Mr. BECERRA of California.

Amendment No. 29 by Mr. PETERS of California.

Amendment No. 31 by Mr. PETERS of California.

The Chair will reduce to 2 minutes the time for any electronic vote after the first vote in this series.

AMENDMENT NO. 1 OFFERED BY MS. CASTOR OF FLORIDA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentlewoman from Florida (Ms. CASTOR) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The vote was taken by electronic device, and there were—ayes 197, noes 225, not voting 11, as follows:

[Roll No. 417]

AYES—197

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bilirakis
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Buchanan
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costello (PA)
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fitzpatrick
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanna
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Katko
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meehan
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
Nugent
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Poliquin
Polis
Price (NC)
Quigley
Rangel
Reichert
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (NJ)
Smith (WA)
Speier
Stefanik
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Yarmuth

NOES—225

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bishop (MI)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costa
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (TX)
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—11

Bishop (UT)
Dold
Foxx
Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai
Wilson (FL)

□ 2229

Messrs. HANNA, GUTIÉRREZ, and FITZPATRICK changed their vote from ''no'' to ''aye.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

Stated against:

Mr. DOLD. Mr. Chair, on rollcall No. 417, I was unavoidably detained. Had I been present, I would have voted "no."

AMENDMENT NO. 3 OFFERED BY MR. HIMES

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Connecticut (Mr. HIMES) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 183, noes 241, not voting 9, as follows:

[Roll No. 418]

AYES—183

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Costello (PA)
Courtney
Crowley
Cuellar
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
Dent
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard

Gallego
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Guinta
Gutiérrez
Hahn
Hanna
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Katko
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Poliquin
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Stefanik
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—241

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Cramer
Crawford
Crenshaw
Culberson
Cummings
Curbelo (FL)
Davidson
Davis, Rodney
DelBene
Denham
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garamendi
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guthrie
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Kaptur
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McCollum
McDermott
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schiff
Schrader
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—9

DeSaulnier
Foxx
Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (Mr. COLLINS of Georgia) (during the vote). There is 1 minute remaining.

□ 2231

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 8 OFFERED BY MR. ELLISON

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Minnesota (Mr. ELLISON) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 173, noes 251, not voting 9, as follows:

[Roll No. 419]

AYES—173

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Frankel (FL)
Fudge
Gabbard
Gallego
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Higgins
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Pingree
Pocan
Price (NC)
Quigley
Rangel
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—251

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Cooper
Costa
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Franks (AZ)
Frelinghuysen
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Himes
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peters
Peterson
Pittenger
Pitts
Poliquin
Polis
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert

Renacci
Ribble
Rice (NY)
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schrader
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—9

Foxx
Hastings
Jolly
Marino
Poe (TX)
Richmond
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 2236

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 9 OFFERED BY MR. NORCROSS

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from New Jersey (Mr. NORCROSS) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 143, noes 282, not voting 8, as follows:

[Roll No. 420]

AYES—143

Barletta
Bass
Beatty
Becerra
Bera
Beyer
Boyle, Brendan F.
Brady (PA)
Brooks (IN)
Brown (FL)
Bustos
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Clyburn
Cohen
Conyers
Cooper
Courtney
Crowley
Cuellar
Cummings
Davis, Danny
Delaney
DeLauro
DeSaulnier
Deutch
Dingell
Doggett
Donovan
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Fitzpatrick
Foster
Frankel (FL)
Fudge
Garrett
Gibson
Grayson
Green, Al
Green, Gene
Gutiérrez
Hahn
Higgins
Himes
Hinojosa
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Katko
Keating
Kelly (IL)
Kennedy
Kind
Kuster
Lance
Langevin
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
LoBiondo
Loebsack
Lofgren
Lowey
Lynch
MacArthur
Maloney, Carolyn
McGovern
McNerney
Meehan
Meeks
Meng
Moolenaar
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Pingree
Pocan
Poliquin
Price (NC)
Quigley
Rangel
Richmond
Roybal-Allard
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Scott, David
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Smith (NJ)
Speier
Stefanik
Swalwell (CA)
Thompson (MS)
Tonko
Torres
Tsongas
Upton
Van Hollen
Vargas
Veasey
Velázquez
Wasserman Schultz
Waters, Maxine
Watson Coleman
Wilson (FL)
Yarmuth

NOES—282

Abraham
Adams
Aderholt
Aguilar
Allen
Amash
Amodei
Ashford
Babin
Barr
Barton
Benishek
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Blumenauer
Bonamici
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brownley (CA)
Buchanan
Buck
Bucshon
Burgess
Butterfield
Byrne
Calvert
Capps
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Cleaver
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Connolly
Cook
Costa
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis (CA)
Davis, Rodney
DeFazio
DeGette
DelBene
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Farr
Fincher
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Gabbard
Gallego
Garamendi
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grijalva
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Honda
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Kaptur
Kelly (MS)
Kelly (PA)
Kildee
Kilmer
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Larsen (WA)
Latta
Lipinski
Long
Loudermilk
Love
Lowenthal
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Maloney, Sean
Marchant
Massie
Matsui
McCarthy
McCaul
McClintock
McCollum
McDermott
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Messer
Mica
Miller (FL)
Miller (MI)
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nolan
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perlmutter
Perry
Peters
Peterson
Pittenger
Pitts
Polis
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (NY)
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Ruiz
Russell
Salmon
Sanford
Scalise
Schrader
Schweikert
Scott (VA)
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (TX)
Smith (WA)
Stewart
Stivers
Takano
Thompson (CA)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Trott
Turner
Valadao
Vela
Visclosky
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Weber (TX)
Webster (FL)
Welch
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—8

Foxx
Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 2239

Mr. GARRETT changed his vote from ''no'' to ''aye.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 10 OFFERED BY MR. BEYER

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Virginia (Mr. BEYER) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 190, noes 235, not voting 8, as follows:

[Roll No. 421]

AYES—190

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Crowley
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fitzpatrick
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Herrera Beutler
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind

Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmuter
Peters
Pingree
Pocan
Poliquin
Polis
Price (NC)
Quigley
Rangel
Reichert
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (NJ)
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—235

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costa
Costello (PA)
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—8

Foxx
Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 2242

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 11 OFFERED BY MR. HUFFMAN

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from California (Mr. HUFFMAN) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 184, noes 240, not voting 9, as follows:

[Roll No. 422]

AYES—184

Adams
Aguilar
Bass
Beatty
Becerra
Bera
Beyer
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Grijalva
Gutiérrez
Hahn
Hanna
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—240

Abraham
Aderholt
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green, Al
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jackson Lee
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)

Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—9

Foxx
Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Serrano
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 2245

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 12 OFFERED BY MS. CASTOR OF FLORIDA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentlewoman from Florida (Ms. CASTOR) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 186, noes 237, not voting 10, as follows:

[Roll No. 423]

AYES—186

Adams
Aguilar
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Buchanan
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clawson (FL)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Crowley
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Grijalva
Gutiérrez
Hahn
Hanna
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
Nugent
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Poliquin
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (NJ)
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—237

Abraham
Aderholt
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costa
Costello (PA)
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green, Al
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jackson Lee
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tipton
Trott
Turner
Upton
Valadao
Vela
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—10

Foxx
Hastings
Jolly
Joyce
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai
Tiberi

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 2249

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 13 OFFERED BY MR. HUFFMAN

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from California (Mr. HUFFMAN) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 181, noes 244, not voting 8, as follows:

[Roll No. 424]

AYES—181

Adams
Aguilar
Bass
Beatty
Becerra
Bera
Beyer
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Crowley
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Grijalva
Gutiérrez
Hahn
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell

Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Reichert
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—244

Abraham
Aderholt
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costa
Costello (PA)
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Green, Gene
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Vela
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—8

Foxx
Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting Chair (during the vote). There is 1 minute remaining.

□ 2252

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 14 OFFERED BY MR. SMITH OF MISSOURI

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Missouri (Mr. SMITH) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 208, noes 217, not voting 8, as follows:

[Roll No. 425]

AYES—208

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cramer
Crawford
Crenshaw
Culberson
Davidson
Davis, Rodney
Denham
DeSantis
DesJarlais
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fleischmann
Fleming
Flores
Forbes
Franks (AZ)
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hardy
Harper
Harris
Hartzler
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Kelly (MS)
Kelly (PA)
King (IA)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
Lamborn
Latta
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Moolenaar
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Pearce
Perry
Pittenger
Pitts
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Smith (MO)
Smith (NE)
Smith (TX)
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOES—217

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Crowley
Cuellar
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Dent
DeSaulnier
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fitzpatrick
Fortenberry
Foster
Frankel (FL)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanna
Heck (NV)
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Joyce
Kaptur
Katko
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
King (NY)
Kirkpatrick
Kuster
LaMalfa
Lance
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
McSally
Meeks
Meng
Miller (MI)
Mooney (WV)
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Paulsen
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Poliquin
Polis
Price (NC)
Quigley
Rangel
Reichert
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Simpson
Sinema
Sires
Slaughter
Smith (NJ)
Smith (WA)
Speier
Stefanik
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Upton
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walters, Mimi
Walz

Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—8

Foxx
Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting Chair (during the vote). There is 1 minute remaining.

□ 2255

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 20 OFFERED BY MR. PALMER

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Alabama (Mr. PALMER) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 175, noes 250, not voting 8, as follows:

[Roll No. 426]

AYES—175

Abraham
Aderholt
Allen
Amash
Babin
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Buchanan
Buck
Burgess
Carter (GA)
Chabot
Chaffetz
Clawson (FL)
Coffman
Collins (GA)
Conaway
Cramer
Crawford
Culberson
Davidson
Davis, Rodney
DeSantis
DesJarlais
Duffy
Duncan (SC)
Duncan (TN)
Emmer (MN)
Farenthold
Fincher
Fleischmann
Fleming
Flores
Forbes
Franks (AZ)
Garrett
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graves (GA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson, Sam
Jones
Jordan
Joyce
Kelly (MS)
Kline
Knight
Labrador
LaHood
Lamborn
Latta
Long
Loudermilk
Love
Luetkemeyer
Lummis
Marchant
Massie
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
Meadows
Messer
Mica
Miller (FL)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Neugebauer
Newhouse
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Ribble
Rice (SC)
Rigell
Roe (TN)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shuster
Sinema
Smith (MO)
Smith (NE)
Smith (TX)
Stewart
Thompson (PA)
Tiberi
Tipton
Turner
Wagner
Walberg
Walden
Walker
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (IA)
Zeldin
Zinke

NOES—250

Adams
Aguilar
Amodei
Ashford
Barletta
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Bost
Boyle, Brendan F.
Brady (PA)
Brooks (IN)
Brown (FL)
Brownley (CA)
Bucshon
Bustos
Butterfield
Byrne
Calvert
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Carter (TX)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Cole
Collins (NY)
Comstock
Connolly
Conyers
Cook
Cooper
Costa
Costello (PA)
Courtney
Crenshaw
Crowley
Cuellar
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSaulnier
Deutch
Diaz-Balart
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Edwards
Ellison
Ellmers (NC)
Engel
Eshoo
Esty
Farr
Fitzpatrick
Fortenberry
Foster
Frankel (FL)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Gibbs
Graham
Granger
Graves (LA)
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanna
Heck (WA)
Herrera Beutler
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Kaptur
Katko
Keating
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kuster
LaMalfa
Lance
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lucas
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Matsui
McCarthy
McCollum
McDermott
McGovern
McNerney
McSally
Meehan
Meeks
Meng
Miller (MI)
Moore
Moulton
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Noem
Nolan
Norcross
Nugent
Nunes
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Reed
Reichert
Renacci
Rice (NY)
Richmond
Roby
Rogers (AL)
Rogers (KY)
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Shimkus
Simpson
Sires
Slaughter
Smith (NJ)
Smith (WA)
Speier
Stefanik
Stivers
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thornberry
Titus
Tonko
Torres
Trott
Tsongas
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walorski
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth
Young (AK)
Young (IN)

NOT VOTING—8

Foxx
Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting Chair (during the vote). There is 1 minute remaining.

□ 2258

So the amendment was rejected.

The result of the vote was announced as above recorded.

Stated against:

Ms. SINEMA. Mr. Chair, during rollcall vote No. 426 on H.R. 5538, I mistakenly recorded my vote as "yes" when I should have voted "no."

AMENDMENT NO. 21 OFFERED BY MR. BEN RAY LUJÁN OF NEW MEXICO

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from New Mexico (Mr. BEN RAY LUJÁN) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 219, noes 207, not voting 7, as follows:

[Roll No. 427]

AYES—219

Adams
Aguilar
Amash
Ashford
Bass
Beatty
Becerra
Benishek
Bera
Beyer
Bishop (GA)
Bishop (UT)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Buck
Burgess
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chaffetz
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Costello (PA)
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Dent
DeSaulnier
Deutch
Dingell
Doggett
Dold
Donovan
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fitzpatrick
Fortenberry
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gohmert
Gosar
Graham
Graves (LA)
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Herrera Beutler
Higgins
Hill
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
King (NY)
Kirkpatrick
Kuster
Lamborn
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Love
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Lynch
Maloney, Carolyn

Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
McSally
Meeks
Meng
Mooney (WV)
Moore
Moulton
Mulvaney
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Newhouse
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Rice (SC)
Richmond
Rohrabacher
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanford
Sarbanes
Schakowsky
Schiff
Schrader
Schweikert
Scott (VA)
Scott, David
Sensenbrenner
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Stewart
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tipton
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—207

Abraham
Aderholt
Allen
Amodei
Babin
Barletta
Barr
Barton
Bilirakis
Bishop (MI)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Bucshon
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
Denham
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fleischmann
Fleming
Flores
Forbes
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Goodlatte
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Hice, Jody B.
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lance
Latta
LoBiondo
Long
Loudermilk
Lucas
Luetkemeyer
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mullin
Neugebauer
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Scalise
Scott, Austin
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stivers
Thompson (PA)
Thornberry
Tiberi
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—7

Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 2302

Mr. SIRES and Ms. MCSALLY changed their vote from ''no'' to ''aye.''

So the amendment was agreed to.

The result of the vote was announced as above recorded.

AMENDMENT NO. 22 OFFERED BY MRS. DINGELL

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentlewoman from Michigan (Mrs. DINGELL) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 170, noes 256, not voting 7, as follows:

[Roll No. 428]

AYES—170

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kind
Kirkpatrick
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Whitfield
Wilson (FL)
Yarmuth

NOES—256

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bera
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costa
Costello (PA)
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Curbelo (FL)
Davidson
Davis, Rodney
DeFazio
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garamendi
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
Kilmer
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Kuster
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McDermott
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nolan
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schrader
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Walz
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder

Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—7

Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 2305

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 27 OFFERED BY MR. CARTWRIGHT

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Pennsylvania (Mr. CARTWRIGHT) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 195, noes 231, not voting 7, as follows:

[Roll No. 429]

AYES—195

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Costello (PA)
Courtney
Crowley
Cuellar
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fitzpatrick
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Katko
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Miller (MI)
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Poliquin
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (NJ)
Smith (WA)
Speier
Stefanik
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Upton
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—231

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Cramer
Crawford
Crenshaw
Culberson
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jordan
Joyce
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schrader
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (TX)
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—7

Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 2308

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 28 OFFERED BY MR. BECERRA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from California (Mr. BECERRA) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 190, noes 236, not voting 7, as follows:

[Roll No. 430]

AYES—190

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanna
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
MacArthur
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)

Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Stefanik
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—236

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—7

Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 2311

Mr. CURBELO of Florida changed his vote from ''no'' to ''aye.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 29 OFFERED BY MR. PETERS

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from California (Mr. PETERS) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 182, noes 244, not voting 7, as follows:

[Roll No. 431]

AYES—182

Adams
Aguilar
Bass
Beatty
Becerra
Bera
Beyer
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanna
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Serrano
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—244

Abraham
Aderholt
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Sewell (AL)
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—7

Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 2314

Mr. MURPHY of Pennsylvania changed his vote from ''aye'' to ''no.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 31 OFFERED BY MR. PETERS

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from California (Mr. PETERS) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 185, noes 241, not voting 7, as follows:

[Roll No. 432]

AYES—185

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Blumenauer
Bonamici
Boyle, Brendan F.
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cummings
Curbelo (FL)
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Dold
Doyle, Michael F.
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Gibson
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanna
Heck (WA)
Higgins
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Moore
Moulton
Murphy (FL)
Nadler
Napolitano
Neal
Nolan
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rangel
Rice (NY)
Richmond
Ros-Lehtinen
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters, Maxine
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOES—241

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (GA)
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Davidson
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Donovan
Duffy
Duncan (SC)
Duncan (TN)
Ellmers (NC)
Emmer (MN)
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice, Jody B.
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Katko
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kirkpatrick
Kline
Knight
Labrador
LaHood
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poliquin
Pompeo
Posey
Price, Tom
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Salmon
Sanford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Sewell (AL)
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—7

Hastings
Jolly
Marino
Poe (TX)
Sanchez, Loretta
Stutzman
Takai

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 2317

So the amendment was rejected.

The result of the vote was announced as above recorded.

Mr. CALVERT. Mr. Chair, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. BYRNE) having assumed the chair, Mr. COLLINS of Georgia, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 5538) making appropriations for the Department of the Interior, environment, and related agencies for the fiscal year ending September 30, 2017, and for other purposes, had come to no resolution thereon.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF SENATE AMENDMENT TO HOUSE AMENDMENT TO S. 764, NATIONAL SEA GRANT COLLEGE PROGRAM AMENDMENTS ACT OF 2015; PROVIDING FOR CONSIDERATION OF S. 304, MOTOR VEHICLE SAFETY WHISTLEBLOWER ACT; AND WAIVING A REQUIREMENT OF CLAUSE 6(A) OF RULE XIII WITH RESPECT TO CONSIDERATION OF CERTAIN RESOLUTIONS REPORTED FROM THE COMMITTEE ON RULES

Mr. WOODALL, from the Committee on Rules, submitted a privileged report (Rept. No. 114–686) on the resolution (H. Res. 822) providing for consideration of the Senate amendment to the House amendment to the bill (S. 764) to reauthorize and amend the National Sea Grant College Program Act, and for other purposes; providing for consideration of the bill (S. 304) to improve motor vehicle safety by encouraging the sharing of certain information; and waiving a requirement of clause 6(a) of rule XIII with respect to consideration of certain resolutions reported from the Committee on Rules, which was referred to the House Calendar and ordered to be printed.

DEPARTMENT OF THE INTERIOR, ENVIRONMENT, AND RELATED AGENCIES APPROPRIATIONS ACT, 2017

The SPEAKER pro tempore. Pursuant to House Resolution 820 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the further consideration of the bill, H.R. 5538.

Will the gentleman from Georgia (Mr. COLLINS) kindly take the chair.

□ 2321

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole

House on the state of the Union for the further consideration of the bill (H.R. 5538) making appropriations for the Department of the Interior, environment, and related agencies for the fiscal year ending September 30, 2017, and for other purposes, with Mr. COLLINS of Georgia (Acting Chair) in the chair.

The Clerk read the title of the bill.

The Acting CHAIR. When the Committee of the Whole rose earlier today, amendment No. 31 printed in House Report 114–683 offered by the gentleman from California (Mr. PETERS) had been disposed of.

AMENDMENT NO. 46 OFFERED BY MR. BRAT

The Acting CHAIR. It is now in order to consider amendment No. 46 printed in House Report 114–683.

Mr. BRAT. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill, before the short title, insert the following:

SEC. ____. None of the funds made available by this Act may be used to enforce contracts or other agreements under the Land and Water Conservation Fund program that were entered into with States or units of local government more than 20 years before the date of the enactment of this Act.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Virginia (Mr. BRAT) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Virginia.

Mr. BRAT. Mr. Chairman, I rise to offer an amendment to H.R. 5538, Department of the Interior, Environment, and Related Agencies Appropriations Act.

Mr. Speaker, the Land and Water Conservation Fund requires property acquired and developed with the LWCF assistance to be retained and used for public outdoor recreation. Any property so acquired and/or developed may not be converted to other uses without approval of the National Park Service, NPS, indefinitely.

Federal funding through the LWCF grant shouldn't let the NPS enforce conditions on the use of State and local lands forever. A quid pro quo condition in exchange for funds for some period might be reasonable, but eventually federalism needs to kick in again.

This amendment would prevent the NPS from enforcing the conditions on an LWCF grant for a 20-year period. This allows the State or locality to use its property as it sees fit, without needing permission from the NPF.

After a generation or more, it is only reasonable for State and local governments to reassess land use on behalf of their citizens.

I urge my colleagues to support my amendment to put our constituents back in control of local matters.

I yield back the balance of my time.

Mr. ISRAEL. Mr. Chairman, I rise in opposition to this amendment,

The Acting CHAIR. The gentleman from New York is recognized for 5 minutes.

Mr. ISRAEL. Mr. Chairman, this amendment nullifies the terms of the Land and Water Conservation Fund contracts that are more than 20 years old.

When States, counties, and other municipal governments receive funds from the LWCF State assistance grant program, they do so with the understanding that the land acquired with these funds will be used for public recreation purposes in perpetuity. If they no longer need the land for this purpose, there is an established administrative process that allows for a simple conversion.

Since LWCF's establishment over 50 years ago, this conversion process has been successfully executed thousands of times. Under this amendment, however, any parcel acquired more than 20 years ago could be converted to private use or even sold on the open market without any compensation to the American taxpayer. This is a misguided outcome, Mr. Chairman. Our constituents deserve a fair return on their investment, and we shouldn't allow one town's unwillingness to play by the rules to upend 50 years of success.

I urge my colleagues to defend the integrity of the LWCF and reject this amendment.

I yield to the gentleman from Idaho (Mr. SIMPSON).

Mr. SIMPSON. Mr. Chairman, I agree with the comments just made by the gentleman from New York.

The LWCF, these local communities know what they are entering into when they enter into it. And if they choose to do that, they have the right to do that and they have to live by the decisions that they have made.

We have a lot of LWCF projects in communities that I have lived in in Idaho, and they get the benefit of that LWCF.

I will tell you, if there is a local problem that the gentleman would like to deal with, I know that the committee and the chairman of the committee would be more than willing to work with you to try to address that and try to address the concerns that the local community has because there is a way that, yes, with the agreement of the Federal Government, they can get out of the deals that they have made.

I know, in my community, we had an indoor swimming pool that was actually built for our community. It was a great thing. It became very expensive when the price of energy went up. They wanted to take the roof off of the indoor swimming pool so it wasn't indoor anymore, and the Federal Government wouldn't let them. Now, we are glad they didn't. So these decisions are made for a very good reason.

I would oppose the amendment, and I agree with the gentleman from New York.

Mr. ISRAEL. Mr. Chairman, the distinguished leader of the subcommittee, the gentleman from Idaho, and the ranking member from Minnesota agree that this amendment would have a misguided outcome.

I urge my colleagues to oppose the amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Virginia (Mr. BRAT).

The amendment was rejected.

AMENDMENT NO. 47 OFFERED BY MR. BUCK

The Acting CHAIR. It is now in order to consider amendment No. 47 printed in House Report 114–683.

Mr. BUCK. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill, before the short title, add the following:

SEC. ____. None of the funds made available under this Act may be used to enter into a cooperative agreements with or make any grant or loan to an entity to establish in any of Baca, Bent, Crowley, Huerfano, Kiowa, Las Animas, Otero, Prowers, and Pueblo counties, Colorado, a national heritage area, national heritage corridor, national heritage canal way, national heritage tour route, national historic district, or cultural heritage corridor.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Colorado (Mr. BUCK) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Colorado.

Mr. BUCK. Mr. Chairman, I appreciate the opportunity to speak about this important amendment to the Department of the Interior, Environment, and Related Agencies Appropriations Act.

This amendment protects private property in southeast Colorado by prohibiting the use of funds for the creation or expansion of environmental or cultural protection areas. These zones, often known as national heritage areas, are just another backdoor method for the government to impose Federal zoning on private property.

The heritage areas amount to a forced conservation agreement for private landowners. An appointed management entity imposes its views and ideas on the property holders, changing the way they can use their property without compensating them.

Private property is an essential element of a free democracy. The citizens of Southeast Colorado have fought this government overreach for years now, desperate to save their farms and ranches that have been passed down for generations.

This amendment will ensure that private property rights are restored in southeast Colorado.

I urge my colleagues to support this commonsense amendment.

I reserve the balance of my time.

Mr. ISRAEL. Mr. Chairman, I claim the time in opposition to this amendment.

The Acting CHAIR. The gentleman from New York is recognized for 5 minutes.

Mr. ISRAEL. Mr. Chairman, this amendment stops the Department of the Interior from entering into cooperative agreements or providing financial assistance of any kind for the purpose of protecting natural, cultural, or historic resources in several counties in southeast Colorado.

It is my understanding that the sponsor aims to preemptively prevent an expansion of the Federal footprint in his district, specifically due to concerns with the application of Executive Order No. 13287.

I would remind the sponsor that the Preserve America Executive Order was issued by President George W. Bush, a Republican, and emphasizes private-public partnerships that limit, not expand, Federal ownership.

If there are specific concerns about Federal management in the region, the sponsor, I hope, would work with the authorizing committee to make sure they are addressed, not use the appropriations process to wall off a section of the country from partnering with the Federal Government to preserve its historic, cultural, and natural resources. That is why I oppose this amendment.

I reserve the balance of my time.

Mr. BUCK. Mr. Chairman, I yield back the balance of my time.

Mr. ISRAEL. Mr. Chairman, again, I would urge opposition to this amendment. There are opportunities for the gentleman to work with the authorizing committee. The Appropriations Committee should not be used as a vehicle to wall off sections of specific areas.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Colorado (Mr. BUCK).

The amendment was agreed to.

□ 2330

AMENDMENT NO. 48 OFFERED BY MR. BURGESS

The Acting CHAIR. It is now in order to consider amendment No. 48 printed in House Report 114–683.

Mr. BURGESS. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title) insert the following new section:

SEC. ___. None of the funds made available by this Act may be used by the Administrator of the Environmental Protection Agency to hire or pay the salary of any officer or employee of the Environmental Protection Agency under subsection (f) or (g) of section 207 of the Public Health Service Act (42 U.S.C. 209) who is not already receiving pay under either such subsection on the date of enactment of this Act.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Texas (Mr. BURGESS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. BURGESS. Mr. Chairman, I rise this evening to offer an amendment on an issue that I have worked on, as well as the Committee on Energy and Commerce, for the last 6 years.

In 2006, the Committee on Appropriations, without consultation with the Committee on Energy and Commerce, included a provision in the annual Interior-EPA appropriations bill to allow the Environmental Protection Agency to begin using a special pay program that was explicitly and exclusively authorized for use by the Public Health Service Administration under the Department of Health and Human Services.

This special pay mechanism allows a government employee to leave the normal GS pay scale and receive nearly uncapped compensation. This special provision was intended to be used only in unique circumstances for leaders in the healthcare industry who would never leave the private sector to work for the Federal Government but for special higher salaries. This justification can never be used at the EPA.

Indeed, some of the employees that the Environmental Protection Agency pays under title 42, the part of the U.S. Code that allows for this special pay, were previous government workers and were merely moved to the special pay scale because they wanted more money. The Environmental Protection Agency claims that, because the EPA is a health organization, it may use this statute to pay special hires; and the Committee on Appropriations has agreed to let them, despite the authorizing committee's objection.

Originally, the EPA was granted only a handful of slots to fill with title 42 hires. That number has now ballooned to over 50. The cost to the taxpayers for these employees is tens of millions of dollars. That is unconscionable.

This amendment would prevent the Environmental Protection Agency from hiring any new employees under title 42 or transferring any current employees from the GS scale to title 42. It would not affect current employees being paid by this provision. This would give the Committee on Energy and Commerce, the authorizing committee, the time it needs to address whether the EPA truly deserves this special pay consideration.

The General Accountability Office looked into HHS' abuse of title 42 several years ago and found problems with the implementation of the program. That is within the Department of Health and Human Services, where it arguably could be allowed. Why would Congress ever allow the Environmental Protection Agency to implement the same problematic pay structure?

In multiple hearings in the Committee on Energy and Commerce, both Administrator Lisa Jackson and Gina McCarthy refused to give specifics regarding the program. A Freedom of Information Act request by the EPA union, the American Federation of Government Employees, sent to my office showed that title 42 hires at EPA are sowing dissent among the workers, with the union asking the Congress stop this abusive and unfair hiring technique.

Both Chairman Emeritus BARTON and I have introduced legislation further clarifying that the Public Health Services Act, written for HHS, does not permit the EPA to use this language to hire employees under a special pay structure. I urge adoption of the amendment.

Mr. Chairman, I reserve the balance of my time.

Mr. ISRAEL. Mr. Chairman, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentleman from New York is recognized for 5 minutes.

Mr. ISRAEL. Mr. Chairman, title 42 authority is a flexible hiring mechanism that allows agencies to attract and retain staff with outstanding scientific, technical, and clinical skills. It is not always easy for the Federal Government to attract high-level professionals who have invested many years in school and can easily make more in private practice or even in academia, and that is why the Federal Government needs to allow these agencies to provide some additional incentives to recruit these employees.

With our Nation facing so many crises like Zika, we really should be investing in our scientists. This amendment unfairly attacks Federal employees who devote their life to public service. I urge defeat of this amendment.

Mr. Chairman, I reserve the balance of my time.

Mr. BURGESS. Mr. Chairman, I yield the balance of my time to the gentleman from Texas (Mr. BARTON).

Mr. BARTON. Mr. Chairman, may I inquire as to how much time remains.

The Acting CHAIR. The gentleman from Texas (Mr. BURGESS) has 1½ minutes remaining.

Mr. BARTON. Mr. Chair, I want to thank the gentleman from Tarrant County and Denton County for offering this amendment. I am a cosponsor.

It is unconscionable that we are using a provision in Federal law that was first passed during World War II to give a handful of elite medical professionals the capability to get a little bit more than the average Federal pay scale. This has ballooned over at the EPA, and, as has been pointed out, as far as we know, there are in the neighborhood of 50 people who are now getting this above-average pay.

We ought to be eliminating the program. We ought to be just putting the nail through the coffin in this program at EPA. Instead, because of the generosity of my good friend, Dr. BURGESS, he is just saying don't hire any more. Surely this House of Representatives, with a $500 billion budget deficit, can see it within our heart to accept the Burgess amendment and let us in the

authorizing committee hold hearings and hopefully next year pass a law that puts an end to this program.

I rise in strong support of the Burgess amendment and would ask for its adoption.

Mr. BURGESS. Mr. Chairman, I yield back the balance of my time.

Mr. ISRAEL. Mr. Chairman, we have such an array of public health and science emergencies: we have Zika; we have Ebola; we have public health emergencies; we have pandemics, epidemics. Now is the time for us to recruit the best and the brightest in the scientific community. Title 42 gives us the ability to do that. This amendment would undermine that ability, and it should be defeated.

Mr. BARTON. Will the gentleman yield?

Mr. ISRAEL. I yield to the gentleman from Texas.

Mr. BARTON. Does the gentleman understand that we are talking about people at EPA? We are not talking about public health in the HHS. We are talking about EPA.

Mr. ISRAEL. Reclaiming my time, the EPA uses scientists engaged in research on pesticides. It uses scientists engaged in other health-related emergencies. We have a difference of opinion as to how to deploy those scientists, where to deploy those scientists. I, as a Member of Congress, don't want to make that decision. I want to make sure that the Federal Government is deploying the scientific community across a broad range of challenges, which is why I oppose this amendment.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. BURGESS).

The amendment was agreed to.

AMENDMENT NO. 49 OFFERED BY MR. BYRNE

The Acting CHAIR. It is now in order to consider amendment No. 49 printed in House Report 114–683.

Mr. BYRNE. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ___. None of the funds made available by this Act may be used to propose or develop legislation to redirect funds allocated under section 105(a)(2)(A) of the Gulf of Mexico Energy Security Act of 2006 (43 U.S.C. 1331 note).

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Alabama (Mr. BYRNE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Alabama.

Mr. BYRNE. Mr. Chairman, I am pleased to introduce this amendment, along with two of my colleagues, Representatives CHARLES BOUSTANY and GARRET GRAVES, both of Louisiana.

My straightforward amendment would prohibit any effort to redirect funds allocated under the Gulf of Mexico Energy Security Act, also referred to as GOMESA. GOMESA was passed in 2006 and created a revenue-sharing agreement for offshore oil revenue between the Federal Government and four States in the Gulf of Mexico: Texas, Louisiana, Mississippi, and Alabama.

Under GOMESA, a certain percentage of the revenues generated from selected oil and gas lease sales in the Outer Continental Shelf of the Gulf of Mexico are returned to the Gulf States. This money must be used in coastal areas for important purposes like coastal restoration and hurricane preparedness.

There is a reason the law was structured this way. These Gulf States not only provide a significant share of the infrastructure and workforce for the industry in the Gulf, but they also have inherent environmental and economic risks. Unfortunately, in his budget proposal this year, President Obama recommended the money be taken away from the Gulf States and instead be spread around the country to implement his radical climate agenda.

Not only does this proposal directly contradict the current Federal statute, it vastly undermines the purpose of this law: to keep revenues from these lease sales in the States that supply the workforce and have the inherent risk of a potential environmental disaster.

This is not the first time the President has made this proposal, and so far Congress has stood strong in opposition. I hope we will do so again today.

My simple amendment will support our coastal communities on the Gulf Coast while preserving the rule of law. We should not allow the President to turn our revenue-sharing agreements into a slush fund for politically driven climate projects.

I urge my colleagues to support this straightforward amendment.

Mr. Chairman, I reserve the balance of my time.

Mr. ISRAEL. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from New York is recognized for 5 minutes.

Mr. ISRAEL. Mr. Chairman, this amendment is simply an overreaction to a policy proposal in the administration's fiscal year 2017 budget request. The budget request proposed to redirect funds currently allocated to payments to States and shift them toward Federal programs that serve the Nation more broadly.

□ 2340

The proposal wasn't included in the bill because the Committee on Appropriations rejected it. The appropriation process is just that, it is a process.

The administration submitted a proposal, the committee evaluated it, and the power to accept or reject the proposal lay with the committee.

This amendment would unnecessarily stifle any proposal to amend the current formula, which is unnecessary, because Congress would need to enact legislation before any changes could be made to the formula. The Department of the Interior does not have the authority to change the formula through rulemaking or other administrative action.

Basically, Mr. Chairman, this would prohibit the Department from even suggesting an idea for Congress to consider. I urge my colleagues to preserve the integrity of the appropriations process and the Committee on the Appropriations and oppose this amendment.

Mr. Chair, I reserve the balance of my time.

Mr. BYRNE. Mr. Chairman, I yield 1 minute to the gentleman from Louisiana (Mr. GRAVES).

Mr. GRAVES of Louisiana. Mr. Chairman, I want to provide some context here.

Under the Mineral Leasing Act, States shared in 50 percent of the revenues from production of energy on Federal lands—in the State of Alaska, it is actually 90 percent of the revenues—up until 2006, when we reached a bipartisan agreement to share not 50 percent, not 90 percent, but 37½ percent of the revenues associated with offshore energy production. 2006. The revenue sharing, in effect, doesn't actually turn on until next year.

These funds in the State of Louisiana are dedicated by our constitution to restoring the coast, restoring our coastal wetlands, improving the sustainability of our communities that have been pounded by hurricanes in recent years.

Mr. Chairman, this amendment is actually designed to save taxpayers dollars to restore our coastal ecosytem that has been destroyed. And to allow the administration year after year to come in and create this air of uncertainty by attempting to rescind these funds and treating us differently than they treat all the other States that produce onshore is simply bad policy and it creates uncertainty for efforts to restore coastal Louisiana, which has lost 1,900 square miles as a result of Federal actions in the State of Louisiana.

I urge adoption of this amendment.

Mr. ISRAEL. Mr. Chairman, I reserve the balance of my time.

Mr. BYRNE. Mr. Chairman, this administration has been reversed by the United States Supreme Court more than any other administration in the history of the United States of America. There is nothing that this administration won't do to further its radical agenda, including going against the clear statement of a statute of the United States Congress.

So we have to have language that affirmatively tells them they can't spend this money. Otherwise, they will take the radical step of going against a Federal statute and cynically wait on the United States Supreme Court to tell them they can't do it.

So that is why we have to have this. This is very important not just to the Gulf States, but to the rule of law in the United States of America.

I urge my colleagues to support this amendment.

Mr. Chairman, I yield back the balance of my time.

Mr. ISRAEL. Mr. Chairman, there is nothing radical about any administration, Democrat or Republican, making a decision, making a rule that would shift funds from specific States to broader national purposes.

I understand the gentleman's and his colleagues' concern for this particular policy, but this is an overreach, Mr. Chairman. This amendment would prohibit the Department from even suggesting an idea for Congress to consider.

This is not worthy of the appropriations process. It ought to be considered as part of a broader approach by the gentleman, not in this bill, and I urge defeat of this amendment.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Alabama (Mr. BYRNE).

The amendment was agreed to.

AMENDMENT NO. 50 OFFERED BY MR. BYRNE

The Acting CHAIR. It is now in order to consider amendment No. 50 printed in House Report 114–683.

Mr. BYRNE. Mr. Chairman, I have an amendment at the desk related to the National Ocean Policy.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

LIMITATION ON USE OF FUNDS FOR EXECUTIVE ORDER RELATING TO STEWARDSHIP OF OCEANS, COASTS, AND THE GREAT LAKES

SEC. ____. None of the funds made available by this Act may be used to implement, administer, or enforce Executive Order No. 13547 (75 Fed. Reg. 43023, relating to the stewardship of oceans, coasts, and the Great Lakes), including the National Ocean Policy developed under such Executive Order.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Alabama (Mr. BYRNE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Alabama.

Mr. BYRNE. Mr. Chairman, I am pleased to introduce this amendment with two of my colleagues, Representative BILL FLORES of Texas and Representative JOHN FLEMING of Louisiana.

Mr. Chairman, I represent coastal Alabama, and I have spent my entire life living on the Gulf Coast. Like many of my friends and neighbors, my family has always enjoyed fishing, swimming, boating, and spending time in the Gulf of Mexico. It is safe to say that living on the Gulf becomes a way of life.

For some people, the Gulf also provides for economic well-being, whether through the commercial seafood industry, tourism, or something else.

No one is a better steward of the shores and our waters than those of us who live and work in the Gulf. Since the water provides our way of life and our economic well-being, we are going to do everything we can to protect and preserve our resources. We don't need the Federal Government to tell us what to do.

That is why I am so concerned by the National Ocean Policy, which was created under President Obama's Executive Order No. 13547 in 2010. The policy requires that various bureaucracies work together to ''zone the ocean'' and the sources thereof, largely affecting the ways in which we utilize our ocean resources.

The National Ocean Policy is executive overreach at its very worst. The policy not only restricts ocean and inland activities, but it redirects Federal money away from congressionally directed priorities for over 20 Federal agencies that meet as part of the National Ocean Council, tasked with implementing the National Ocean Policy—a council that has no statutory authority to exist and no congressional appropriation.

Numerous and varied industries will suffer as a result of this well-meaning but ill-conceived policy, including but not limited to agriculture, energy, fisheries, mining, and marine retail enterprises, just to name a few.

Those who are affected most by the policy don't have a say or any representation in the rulemaking process. There is no current system of oversight in place for the regional planning agencies created as an arm of the National Ocean Council.

I urge my colleagues to stand up for our coastal communities, say no to more executive overreach, and support this amendment.

Mr. Chairman, I reserve the balance of my time.

Ms. PINGREE. Mr. Chairman, I rise in opposition to the Byrne-Flores amendment.

The Acting CHAIR. The gentlewoman from Maine is recognized for 5 minutes.

Ms. PINGREE. Mr. Chair, I disagree with my colleague. I think that the National Ocean Policy is a vital tool that we have to help ensure that our coastal communities and their stakeholders work together and coordinate their ideas and make plans to achieve local goals. I think as a Congress we need to recognize the importance of our oceans and ocean planning.

Unfortunately, each year, we come to the floor of this body on various appropriations bills to defend the vital work of the National Ocean Policy. We have debated over 15 riders on this issue in the past two Congresses. Instead, we ought to be talking about the progress that our local communities are making on ocean planning. In New England, we are actually making progress. And this year, we have the New England regional ocean plan to be proud of.

No process is perfect, I will give you that, but at least we have begun the discussion. Fisherman, lobstermen, and other community leaders have been included in the development of these voluntary regional ocean plans.

I urge my colleagues to oppose this misguided attempt to stop the National Ocean Policy and the important work it does.

Mr. Chair, I reserve the balance of my time.

Mr. BYRNE. Mr. Chairman, we have heard the phrase ''land grab.'' This is an ocean grab. There is no cooperation here. This is dictation by the Federal Government to people that live along the coast of the United States of America.

It is time to take our oceans and the water of the United States back, not for the bureaucrats in Washington, but for the people of the United States. That is who actually owns this water, not some faceless bureaucrat in Washington who wants to tell us what to do.

So I urge my colleagues to vote ''yes'' on this amendment and take back control of our oceans for the people of the United States and not allow it to be directed by bureaucrats in Washington who couldn't care less what we feel like on the coast.

Mr. Chairman, I yield back the balance of my time.

Ms. PINGREE. Mr. Chair, I yield 1½ minutes to the gentleman from Rhode Island (Mr. LANGEVIN), my good friend and colleague.

□ 2350

Mr. LANGEVIN. Mr. Chairman, I rise in opposition to this amendment, and in support of the National Ocean Policy established by President Obama, an issue also championed by our junior Senator from Rhode Island, Senator SHELDON WHITEHOUSE.

Far from being government overreach, National Ocean Policy is an excellent example of how government engages and partners with our States and local communities.

In the Northeast, we recently celebrated the release of the draft Northeast Ocean plan for management of Federal waters off the coast of New England.

Since 2012, the Regional Planning Body has worked with our constituents to build a plan that will be responsive to our region's needs. This type of collaboration would not have been possible without the implementation of the National Ocean Policy, which requires agencies to work together in a more efficient and collaborative manner.

Due to this important program, we are now moving toward a more effective use of our common ocean resources.

Mr. Chairman, our oceans are enjoyed and utilized by beachgoers, commercial fishermen, boaters, recreational anglers, wind farms, and others. With proper collaboration, these mixed uses can thrive.

So I ask all of my colleagues to oppose this amendment. By supporting National Ocean Policy, we can continue to engage our citizens, effectively use our resources, and ensure that our ocean is sustainable for years to come.

Ms. PINGREE. Mr. Chair, would you please give me a sense of how much time I have remaining?

The Acting CHAIR. The gentlewoman from Maine has 2½ minutes remaining.

Ms. PINGREE. Mr. Chair, I thank my colleague from Rhode Island for once again describing what is a very important policy.

I have to disagree with my colleague from Alabama (Mr. BYRNE). I do not think that this is Federal top-down. In fact, I think this is better decisionmaking, bottoms-up, not top-down. It gives opportunities for local communities to have an input.

I want to unequivocally state that we spend no money on ocean planning. The NOP does not create any Federal regulations or supersede any local or State regulations. But what it does do is it leverages taxpayer dollars to reduce duplication between Federal, State and local agencies, to streamline data collection, and to strengthen public involvement. That is exactly what we want to have happen in our coastal communities.

Our oceans and coasts support 3 million ocean-related jobs, generate $360 billion through tourism, development, commercial fishing, recreational fishing, boating, energy, shipping, and other activities. This is a very effective planning tool to reconcile and coordinate those activities. It does not prevent them.

And just in closing, I will say that my colleague from Alabama may look at this one way, but I represent the State of Maine, which has a tremendous amount of coastline. I represent about half the coastline off the coast of Maine, and I have also represented many coastal communities prior to coming to Congress as a State legislator.

I live on an island. I take a ferry for 1 hour to get home, unlike virtually any other Member of Congress. Everybody in my community is dependent on the ocean. Every island I represent is dependent on the ocean.

Every coastal community has to have a working waterfront, fishermen. It has to have tourism, fishing, all of them working together. I don't think that in the State of Maine we don't understand ocean planning.

We know our oceans are desperately troubled. They are in danger. They need our attention, and Congress has to pay attention to that. We can't do this in a haphazard way. We have to have it coordinated.

So I ask my colleagues to oppose this rider, as we have many, many times, and to support National Ocean Policy.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Alabama (Mr. BYRNE).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. MCCOLLUM. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Alabama will be postponed.

AMENDMENT NO. 51 OFFERED BY MR. CRAMER

The Acting CHAIR. It is now in order to consider amendment No. 51 printed in House Report 114–683.

Mr. CRAMER. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to develop, propose, finalize, implement or enforce the rule entitled ''Management of Non-Federal Oil and Gas Rights'' and published by the United States Fish and Wildlife Service on December 11, 2015 (80 Fed Reg. 77200), or any rule of the same substance.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from North Dakota (Mr. CRAMER) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from North Dakota.

Mr. CRAMER. Mr. Chairman, in February of 2014, the United States Fish and Wildlife Service issued an advance notice of proposed rulemaking called—and it is important to know what it is called—Management of Non-Federal Oil and Gas Rights. In December of last year, the proposed rule was posted and comments were due in February of this year.

Mr. Chairman, States—States, not the Federal Government, States—largely regulate oil and gas operations except in circumstances where the Federal Government has ownership of the mineral rights. That obviously is not the case in this rule, given its title.

Where there is Federal ownership, it is the Bureau of Land Management that has regulatory authority. And for an agency that has hundreds of personnel and decades of experience, even they have a hard time keeping up with the workload and maintaining adequate expertise in their agency.

But, Mr. Chairman, not only do States have the authority and the expertise to regulate oil and gas industry, they have the most natural and obvious incentive to do it well. The State regulators live in the States where the minerals reside.

Now, the U.S. Fish and Wildlife Service does not have the personnel or the expertise to regulate oil and gas operations, as demonstrated by GAO recommendations. Concerns outlined by the Fish and Wildlife Service are concerns that are addressed by several other regulatory bodies, including State regulators and, therefore, any attempt by Fish and Wildlife Service to also regulate would be redundant and duplicative. Enough already with redundant and duplicative regulations.

The added regulation will only serve to increase the delays and the costs to U.S. energy producers and, consequently, ultimately to the consumers.

Mr. Chairman, my amendment simply prevents funding to move this jobkilling rule any further, and I encourage my colleagues to support jobs by voting ''yes'' on my amendment.

I reserve the balance of my time.

Mr. KILMER. Mr. Chairman, I rise in opposition to this amendment.

The Acting CHAIR. The gentleman from Washington is recognized for 5 minutes.

Mr. KILMER. Mr. Chairman, this new rule updates 50-year-old regulations that govern the exercise of non-Federal oil and gas rights within refuge units. The objectives of this new rule are to improve the effectiveness of the regulations so that they can protect refuge resources and values, and provide clarity for both operators and for the service.

Updating this regulation avoids regulatory uncertainty, providing more clarity and guidance to oil and gas operators and refuge staff, instituting a simple process for compliance, and incorporating technological improvements in exploration and drilling technology, ensures that non-Federal oil and gas operations are conducted in a manner that avoids or minimizes impacts to refuge resources.

This amendment prohibits the service from making positive advances and allowing non-Federal oil and gas operations to occur on refuge lands, while protecting these natural habitats for the benefit of future generations. I strongly oppose this amendment.

I reserve the balance of my time.

Mr. CRAMER. Mr. Chairman, I would just respond to my colleague's concern by stating that the concerns that he raises, that the Fish and Wildlife Service raises, are legitimate concerns. But they are concerns that are already being addressed by other regulatory bodies, including the States who have both the legal authority and the expertise as well as, as I said earlier, the natural incentive to do it well. It is where they live.

I think it is also important to understand that it is sort of private property law 101, that the minerals are often bifurcated from the surface, and that is the case we are talking about. And in that case, at least in North Dakota, the minerals supersede, actually, the surface rights. So this rule conflicts with not only common sense, but even with basic private property law.

I, again, urge a ''yes'' vote, and assure my colleagues that the concerns raised are being addressed by other regulatory bodies. Duplication is not necessary.

I yield back the balance of my time.

Mr. KILMER. Mr. Chairman, I would just point out that what this rule is

about is non-Federal operators operating on refuge lands, and I think part of our job should be to make sure that the Fish and Wildlife Service can do their job.

I oppose this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from North Dakota (Mr. CRAMER).

The amendment was agreed to.

AMENDMENT NO. 52 OFFERED BY MR. CRAWFORD

The Acting CHAIR. It is now in order to consider amendment No. 52 printed in House Report 114–683.

Mr. CRAWFORD. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill, before the short title, insert the following:

SEC. ____. None of the funds made available by this Act may be used by the Administrator of the Environmental Protection Agency to enforce the requirements of part 112 of title 40, Code of Federal Regulations, with respect to any farm (as that term is defined in section 112.2 of such title).

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Arkansas (Mr. CRAWFORD) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arkansas.

□ 0000

Mr. CRAWFORD. Mr. Chairman, I offer this amendment in defense of agricultural producers across the country who continue to face the heavy hand of EPA regulations.

The EPA's Spill Prevention, Control, and Countermeasure rule for on-farm fuel storage requires farmers and ranchers to make costly infrastructure improvements to their oil storage facilities to reduce the possibility of an oil spill.

These regulations fail to take into account, however, the relative risk of oil spills on farms, and they do not recognize the simple fact that family farmers are already careful stewards of the land and water. It is clear that no one has more at stake in the health of their land than those who work on the ground from which they derive their livelihoods. Even if EPA wants to resist common sense, USDA actually studied risk of oil spills on farms. It determined that more than 99 percent of farmers have never experienced a spill.

In the 2014 Water Resources Development Act, we made modifications to the exemption threshold and required EPA to go back to the drawing board and conduct a study to determine how to balance the needs of financial resources of small producers with their assessed spill risk. Instead, the EPA defied Congress' wishes and hastily put together a study without evaluating risk specific to agriculture. It offered the same unsubstantiated conclusions that it found in the original SPCC rule and could not cite a single incident of a spill on a farm.

Mr. Chairman, I reserve the balance of my time.

Mr. KILMER. Mr. Chairman, I claim the time in opposition to this amendment.

The Acting CHAIR. The gentleman from Washington is recognized for 5 minutes.

Mr. KILMER. Mr. Chairman, this amendment prohibits the EPA from enforcing its Spill Prevention, Control, and Countermeasure rule against farms, giving special interest to one industry. The EPA's spill rule is not based upon the type of facility or type of operations, but upon the storage of oil or petroleum products.

If you store greater than 1,320 gallons and if a discharge from aboveground storage would reach waterways, you fall under these regulations and must develop and implement a spill prevention plan. Now, some large farm operations store up to 60,000 gallons of fuel in one location, and it is reckless to not require them to have some sort of spill response plan.

EPA has already made efforts to accommodate farms and made compliance with the rule easier. The Agency amended its rule to provide a self-certification option for the facilities, including farms that store under 10,000 gallons of oil, thereby avoiding the expense of a professional engineer. EPA also provided a template for a spill control plan for farmers to use.

Compliance with this rule is not difficult or costly. In fact, about 95 percent of farms subject to the rule are eligible to self-certify their spill prevention plans.

This amendment could have devastating consequences and harmful impacts on our Nation's waterways. Mr. Chairman, I ask my colleagues to join me in opposing this amendment.

I reserve the balance of my time.

Mr. CRAWFORD. Mr. Chairman, to require that all of our producers make a significant investment to prevent such an unlikely event seems out of touch with reality and disregards the already overwhelming number of safeguards our farmers already employ.

My amendment would restrict the EPA's ability to enforce SPCC regulations on farms so that farmers and ranchers can go about their business of producing America's food and fiber without having to worry about unnecessary compliance costs and red tape.

Let me say that on three separate occasions, the House unanimously passed my bipartisan legislation, the FUELS Act, which rolled back these same SPCC regulations on farms. We passed this same amendment during last year's consideration of the Interior and environmental appropriations bill.

Mr. Chairman, I urge my colleagues to again support our farmers and ranchers and vote ''yes'' on this amendment.

I yield back the balance of my time.

Mr. KILMER. Mr. Chairman, I once again reiterate my opposition to this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arkansas (Mr. CRAWFORD).

The amendment was agreed to.

AMENDMENT NO. 53 OFFERED BY MR. CRAWFORD

The Acting CHAIR. It is now in order to consider amendment No. 53 printed in House Report 114–683.

Mr. CRAWFORD. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used in contravention of section 1913 of title 18, United States Code.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Arkansas (Mr. CRAWFORD) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arkansas.

Mr. CRAWFORD. Mr. Chairman, first let me start by thanking the gentleman from Washington for joining me as a cosponsor of this amendment.

Our amendment is simple. It prohibits the EPA and other agencies from using funds in violation of a longstanding law, formally known as the Anti-Lobbying Act. Earlier this year, the Government Accountability Office ruled that the EPA violated the law by engaging in grassroots solicitation intended to urge the public to support the waters of the United States rule, a vast expansion of Federal jurisdiction. The GAO found that EPA went to unprecedented lengths using social media and other online tools to manufacture public support for the rule and to sway the opinions of Members of Congress. GAO cited two specific violations by the EPA that occurred during the critical time when the Agency was preparing the final WOTUS rule.

The first violation was an effort through an Internet tool called Thunderclap which enabled the EPA to reach 1.8 million people who simultaneously shared a message supporting the WOTUS rule. Not only did EPA write the message itself, but it disseminated the message covertly, failing to identify itself as the author.

Secondly, the GAO found that EPA violated the law by hyperlinking its own Web site to an outside advocacy group's grassroots campaign effort. The site asked members of the public to take action by contacting their Members of Congress using a form letter written in support of the WOTUS rule.

These unprecedented actions were crafted by the EPA in a deliberate effort to undermine Congress and advance its extremist environmental agenda. Even though the independent, nonpartisan GAO ruled EPA's actions

clearly violated the law, nobody at EPA was ever held accountable, and no appropriate remedial action has been taken to prevent this from happening again.

Mr. Chairman, I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I claim the time in opposition to this amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chairman, maybe the gentleman is aware, or maybe perhaps you are not aware, that there is an existing prohibition on lobbying that applies to all Federal employees that has been in place since 1919. I can cite it for you. So, in my opinion, this is unnecessary and redundant.

I would also remind my colleagues that Federal employees are not prohibited from providing information to Congress on legislation, policies, or programs. But there must be an open dialogue between legislative and executive branches to ensure laws are being implemented appropriately and that programs achieve their intended goals. We cannot, or we should not, operate in an information vacuum.

Mr. Chairman, I reserve the balance of my time.

Mr. CRAWFORD. Mr. Chairman, as I indicated before, the GAO cited two specific violations by the EPA that did, in fact, violate the Anti-Lobbying Act that was mentioned by my colleague from Minnesota. That occurred during a critical time, as I indicated before.

The Anti-Lobbying Act allows agencies to promote their own policies, but it prohibits them from engaging in covert propaganda efforts intended to influence the American public. Our amendment simply reinforces this important law. It will prevent agencies like the EPA from undermining Congress through the use of publicity and propaganda tools that interfere with the lawmaking process. The amendment serves as another important reminder to executive agencies of its proper constitutional role.

Congress, not unaccountable Agency bureaucrats, is responsible for writing the laws that our citizens must live by.

I urge my colleagues to support this amendment.

Mr. Chairman, I yield back the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, there is an existing prohibition on lobbying. We have agreed with that. It applies to all Federal employees, and it has been in place since 1919. If a Federal employee breaks that, then a Federal employee needs to be held accountable.

So, in closing, Mr. Chairman, I believe we do not need an extraneous, redundant provision to a bill that is already overburdened with harmful legislative riders. I urge my colleagues to oppose the amendment.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arkansas (Mr. CRAWFORD).

The amendment was agreed to.

AMENDMENT NO. 54 OFFERED BY MR. RODNEY DAVIS OF ILLINOIS

The Acting CHAIR. It is now in order to consider amendment No. 54 printed in House Report 114–683.

Mr. RODNEY DAVIS of Illinois. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. (a) None of the funds made available by this Act under the heading ''Environmental Programs and Management'' may be used for the Office of Congressional and Intergovernmental Relations of the Environmental Protection Agency.

(b) The amount otherwise provided by this Act for ''Environmental Programs and Management'' is hereby reduced by $4,235,000.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Illinois (Mr. RODNEY DAVIS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Illinois.

Mr. RODNEY DAVIS of Illinois. Mr. Chairman, it is truly unfortunate that I actually have to offer this amendment. You would think an Office of Congressional Affairs that was set up to specifically deal with Members of Congress, our staff, and the different committees that all of us populate would be able to respond to simple questions.

I had a very eloquent speech put together, but it is getting very late out here in Washington, D.C., so I am going to condense it.

The bottom line is, Mr. Chairman, over 2 years ago, I offered language in the farm bill to create a specific committee on the Science Advisory Board to deal with agriculture to make sure that somebody in a concrete building out here in Washington, D.C., was able to actually be at the table when the EPA came up with a rule to regulate milk spills like oil spills.

□ 0010

I wish somebody would have raised their hands and said, Which one can you clean up with cats?

Mr. Chairman, since the public comment deadline ended on September 8, 2015, the EPA has failed to appoint one single person. Also, over 30 questions were submitted by Republicans and Democrats from the House Agriculture Committee in February after Gina McCarthy, the Administrator of the EPA, came to testify at a hearing, and we have yet to get a single response.

Time and time again, Mr. Chairman, I have asked the same questions over and over to many people at the EPA in numerous committees that I serve on, and time and time again, we get nothing. We get crickets.

It is an unfortunate situation that we have to go to this extreme, but it is the only way that we can send a message to an office in an agency that is completely unresponsive to this institution and our constitutional responsibilities of oversight. It is wrong. Their lack of responsiveness is not only disrespectful, it is unconstitutional.

I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chairman, I want the gentleman to know that I, at times, have shared his frustration with getting answers back from the administration. His amendment, I think, is going to get everybody's attention. Unfortunately, his amendment seeks to restrict the information provided from the EPA by just eliminating the funding for the Office of Congressional/Legislative Affairs.

I use that office quite a bit. Sometimes I agree with them, sometimes I don't, but we have a dialogue going forward. In order to make educated and informed decisions on environmental legislation, I believe Congress should have all of the material available, including from the administration.

What I am hearing from the gentleman is that they are not responding to him in an adequate fashion. I hear his passion in this and, at times, I have shared his frustration.

I would suggest that we work together to figure out ways to improve communication dialogue and hold them accountable when they don't get it—put a bright spotlight on it—but I oppose eliminating it.

I urge my colleagues to reject this amendment.

I yield back the balance of my time.

Mr. RODNEY DAVIS of Illinois. Mr. Chairman, I thank my colleague. I appreciate her frustration. I hope she would advocate on behalf of not just me, but the entire House Agriculture Committee, that gets zero response. It is not just the House Ag Committee, it is our House T&I Committee. It is individual congressional offices that don't have that interaction. There is such a lack of action that I didn't take this amendment lightly. We came here to the floor tonight this late because there is a lack of respect and constitutional responsibility coming from this agency of the executive branch.

Mr. Chairman, I include in the RECORD a letter to the EPA dated June 14, 2016.

JUNE 14, 2016.

Hon. GINA MCCARTHY,
Administrator, Environmental Protection Agency, Washington, DC.

DEAR ADMINISTRATOR MCCARTHY, We are frustrated and concerned that in over two years, the Environmental Protection Agency (EPA) has failed to create the Agriculture-Related Committee within its Science Advisory Board (SAB). On February 7, 2014, the Agricultural Act of 2014 was signed into law

(Pub.L. 113–79). Section 12307 of the Act directed the EPA to ''establish a standing agriculture-related committee'' to provide farmers a stronger voice in the federal rule making process regarding regulations which impact agriculture.

On December 10, 2014, nearly one year after this provision was signed into law, the EPA released a Federal Register Notice announcing its establishment of the SAB Agricultural Science Committee and set a deadline of January 26, 2015, to nominate members. On January 26, 2015, the EPA extended the nomination deadline to March 30, 2015. Eventually, on August 19, 2015, after creating a list of 88 potential candidates, the EPA invited public comment on the candidates.

Since the public comment deadline on September 8, 2015, the EPA has failed, despite numerous requests, to keep Members, who supported this important provision, informed of meaningful actions or updates regarding the process. Our questions regarding the implementation of the committee have been met with empty responses, which point to a further delayed implementation process.

To our knowledge, all other components of the Act have been successfully implemented. Unfortunately, the EPA's inability to timely execute the creation of the Agriculture Science Committee, pursuant to Section 12307, has only fueled the growing disconnect between the agriculture community in rural America and the EPA.

To bridge this gap, it is vital the EPA establish the Agriculture Science Committee. Please respond to this request providing when you anticipate publishing the final candidate list. Thank you for your consideration of this request and we look forward to your prompt reply.

Sincerely,

Rodney Davis; Suzan DelBene; Mike Conaway; Collin C. Peterson; David Rouzer; Kurt Schrader; Tim Walz; Randy Neugebauer; Mike Bost; Doug LaMalfa; Austin Scott; Vicky Hartzler; Frank Lucas; Dan Newhouse; Trent Kelly; Bob Goodlatte; Scott DesJarlais, M.D.; Brad Ashford; David Scott; Cheri Bustos; Bob Gibbs; Ted S. Yoho, DVM; Steve King; Jackie Walorski; Glenn 'GT' Thompson; Filemon Vela; Ann Kirkpatrick; Mike D. Rogers; Ralph Abraham, MD; Ann McLane Kuster; Richard M. Nolan; Michelle Lujan Grisham; John Moolenaar; Gwen Graham.

Mr. RODNEY DAVIS of Illinois. Mr. Chairman, I have got 11 people on this letter wondering why they haven't appointed a single person to the Science Advisory Board Committee that is supposed to deal with agricultural issues that was written in the farm bill that passed in 2014.

I hate to do this amendment, but it is the only way we can send a message to the EPA and to the specific office that Congress means business in actually implementing our oversight responsibilities that the Constitution gives us that our Forefathers gave us.

Mr. Chairman, I urge a ''yes'' vote on this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Illinois (Mr. RODNEY DAVIS).

The amendment was agreed to.

The Acting CHAIR. The Chair understands that amendment Nos. 55 and 56 will not be offered.

AMENDMENT NO. 57 OFFERED BY MR. GOODLATTE

The Acting CHAIR. It is now in order to consider amendment No. 57 printed in House Report 114–683.

Mr. GOODLATTE. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used by the Environmental Protection Agency to take any of the actions described as a ''backstop'' in the December 29, 2009, letter from EPA's Regional Administrator to the States in the Watershed and the District of Columbia in response to the development or implementation of a State's watershed implementation and referred to in enclosure B of such letter.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Virginia (Mr. GOODLATTE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Virginia.

Mr. GOODLATTE. Mr. Chairman, this evening, I rise to urge support for my amendment which would reaffirm and preserve the rights of the States to write their own water quality plans.

My amendment simply prohibits the EPA from using its Chesapeake Bay total maximum daily load and the so-called watershed implementation plans to hijack States' water quality strategies.

Over the last several years, the EPA has implemented a total maximum daily load, or TMDL, blueprint for the six States in the Chesapeake Bay watershed, which strictly limits the amount of nutrients that can enter the Chesapeake Bay. Through its implementation, the EPA has basically given every State in the watershed an ultimatum—either the State does exactly what the EPA says, or it faces the threat of an EPA takeover of its water quality programs.

Congress intended that the implementation of the Clean Water Act be a collaborative approach through which the States and the Federal Government work together. This process was not meant to be subject to the whims of politicians and bureaucrats in Washington, D.C. Therefore, my amendment instructs the EPA to respect the important role States play in implementing the Clean Water Act.

I want to make it perfectly clear that my amendment would not stop the EPA from working with the States to restore the Chesapeake Bay, nor would it undermine the cleanup efforts already underway. My language only removes the ability of the EPA to take over a State's plan or to take retaliatory actions against a State if it does not meet EPA-mandated goals. Again, it ensures States' rights remain intact and not usurped by the EPA.

It is important to point out the correlation between the EPA's outrageous waters of the United States rule and the bay TMDL. At the heart of both issues is the EPA's desire to control conservation and water quality improvement efforts throughout the country and to punish all those who dare to oppose them.

Mr. Chairman, the bay is a national treasure, and I want to see it restored. But we know that in order to achieve this goal, the States and the EPA must work together. The EPA cannot be allowed to railroad the States and micromanage the process. With this amendment, we are simply telling the EPA to respect the important role States play in implementing the Clean Water Act and preventing another Federal power grab by the administration.

I reserve the balance of my time.

Mr. KILMER. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from Washington is recognized for 5 minutes.

Mr. KILMER. Mr. Chairman, this amendment would allow those that pollute the Chesapeake Bay to ignore the Environmental Protection Agency's water quality standards.

We finally have an administration that has made the Chesapeake Bay a priority by establishing mandatory water quality standards and providing financial assistance to help States, localities, and businesses actually meet the new standards.

This amendment also would put the funding in this bill for the Chesapeake at risk. The Federal funding is tied to the requirements for results. So how long do you think the States and localities will meet their obligations that they agreed to this past December in an historic agreement if the Federal financial assistance goes away?

If this amendment were to become law, it would block EPA's ability to enforce the court ordered settlement requiring the farm community and agribusiness to meet watershed specific pollution limits. It would not, however, relieve the farms and agri-businesses from the requirements in this settlement.

In the end, operators should be responsible for controlling the pollution that they dump into our rivers and streams across this country, both for the Chesapeake and elsewhere. The courts have already sided with the EPA on this matter.

Again, I urge defeat of this amendment.

I reserve the balance of my time.

Mr. GOODLATTE. Mr. Chairman, how much time do I have remaining?

The Acting CHAIR. The gentleman from Virginia has 2½ minutes remaining.

Mr. GOODLATTE. Mr. Chairman, I yield 2 minutes to the gentleman from Pennsylvania (Mr. THOMPSON), chairman of the Agriculture Subcommittee.

Mr. THOMPSON of Pennsylvania. Mr. Chairman, I thank the gentleman for yielding, and I thank the gentleman for his leadership with this amendment.

This amendment is meant to address the overreach, a punitive approach that the EPA is taking, intervening itself within a process that the States are taking the leadership of cleaning up a treasure—the Chesapeake Bay. We are not talking about taking away funding. As chairman of the Conservation and Forestry Subcommittee, there are significant conservation dollars that go into cleaning watersheds. Watersheds are part of the jurisdiction of the subcommittee that I chair in this House on the Agriculture Committee.

This amendment is identical to one approved by the House last year in consideration of the Interior appropriations bill, Mr. Speaker. I have been hearing since 2009 from my constituents, many of which own farms, about the significant challenges and the costs of the Chesapeake Bay total maximum daily load, or TMDL, mandate.

□ 0020

These significant concerns also extend to the State and local governments because of the billions of dollars in direct costs and new regulatory burdens the TMDL imposes. The Agriculture Committee's Conservation and Forestry Subcommittee, which I have the honor of chairing, has also listened to the concerns of stakeholders over the past few Congresses. While each and every one of these witnesses wholeheartedly supports the restoration of the Chesapeake Bay, there remains great concern over the lack of consistent models, the heavy-handed approach of the TMDL, and the lack of needed flexibility while implementing the watershed implementation plans, or WIPS. This amendment is needed in order to allow for that flexibility at the State and local levels.

Pennsylvania has been very innovative in our efforts to do our part with the bay restoration, and that restoration will continue into the future. However, rather than acting punitive, the EPA must work collaboratively with the States.

I strongly support this amendment, and I urge my colleagues to vote ''yes.''

Mr. KILMER. Mr. Chair, I reserve the balance of my time.

Mr. GOODLATTE. Mr. Chair, I yield myself the balance of my time.

I am going to repeat what I said earlier. My amendment does not remove the TMDL or the watershed implementation plans. It only removes the retaliatory actions threatened by the EPA.

Those who oppose this amendment are right in that the States have made great improvements. The States have made great strides in cleaning up the bay; so why continue to threaten them with an EPA takeover of their water quality plans?

I urge my colleagues to support this amendment.

Mr. Chair, I yield back the balance of my time.

Mr. KILMER. Mr. Chair, in closing, I will say a few things. One, our country has some extraordinary gems, and the Chesapeake Bay is one of them.

This language, as was rightfully pointed out, was part of a bill last year, but that language was removed in conference. Part of the reason it was removed in conference is that this is part of a court-ordered settlement in which water quality standards were established, and financial assistance was tied to results. If this amendment were to pass, I think it would put in jeopardy that funding, and it would put in jeopardy one of our Nation's true gems.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Virginia (Mr. GOODLATTE).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Mr. KILMER. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Virginia will be postponed.

AMENDMENT NO. 58 OFFERED BY MR. GOSAR

The Acting CHAIR. It is now in order to consider amendment No. 58 printed in House Report 114–683.

Mr. GOSAR. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title) insert the following:

SEC. ____. None of the funds made available by this Act may be used to implement, administer, or enforce the draft technical report entitled ''Protecting Aquatic Life from Effects of Hydrologic Alteration'' published by the Environmental Protection Agency and the United States Geological Survey on March 1, 2016 (81 Fed. Reg. 10620).

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Arizona (Mr. GOSAR) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arizona.

Mr. GOSAR. Mr. Chair, I rise to offer a simple amendment that will protect private water rights and prohibit the EPA's attempt to expand Clean Water Act regulation beyond what Congress has intended.

This amendment prohibits the use of funds to carry out the draft EPA-USGS technical report, entitled, ''Protecting Aquatic Life from Effects of Hydrologic Alteration,'' which is agency guidance that aims to expand the scope of the Clean Water Act and Federal control over waters currently under the jurisdiction of States.

A March 1, 2016, Scientific Investigations Report from the Environmental Protection Agency argues that the Clean Water Act gives the EPA the authority to regulate not just the quality of waters of the U.S. but also the quantity, or amount, of water in the Nation's river and water systems.

The management of water rights and allocation quantities from all natural streams, lakes, and other collections is an authority that is enshrined in State constitutions and compacts across the West—legal protections that are explicitly designed to exclude interference from the Federal Government. Under the expanded scope of the authority, the EPA suggests in their report that the Federal Government could require an individual private water owner or a local municipality to obtain a Federal permit any time it alters the amount of water available in streams or other water systems.

In their comments on the draft report, the Family Farm Alliance stated, ''The report relies heavily on concepts rather than real science'' and that the legal strategies advocated in the report ''could embolden some regulators and special interest groups to seek flow requirements on water projects, even if doing so has no support in Federal or State law.''

Unfortunately, this is par for the course for the Obama administration to push an economically disastrous agenda at the expense of science, the rule of law, and basic common sense.

In their statement endorsing my amendment, Americans for Tax Reform explained, ''American citizens cannot afford more economic hurdles and the commandeering of State powers over precious water supplies from an overzealous, unaccountable Federal Government. States, local governments, and private water rights holders should not be subjected to such costly and burdensome Federal overreach.''

In addition, the Family Farm Alliance, the Americans for Tax Reform, and dozens of national, regional, and local organizations have endorsed my amendment to rein in this Federal overreach and have expressed serious concerns regarding the EPA's dubious report.

In their comments on the draft report, the U.S. Chamber of Commerce stated, ''The Chamber is concerned that the agencies will use these arguments to further expand Federal jurisdiction over land and water features without proper constitutional authority.''

The National Association of Conservation Districts echoed that very same sentiment, stating, ''NACD believes that the report attempts to expand the Clean Water Act beyond Congress' original intent.''

The American Petroleum Institute stated, ''The draft report constitutes rulemaking in the guise of guidance. The draft report is vague and ambiguous, and owing to these concerns, EPA and USGS should withdraw the draft report and not finalize it.''

In my home State, the Arizona Farm Bureau Federation stated, ''Not only is this Federal overreach, but it becomes a bureaucratic and logistical nightmare for individuals and businesses.''

I think the Mohave Livestock Association summed up the issue best when they stated, ''The last thing our producers need is another layer of costly

and time-consuming permitting. The States understand water use in their respective ecological territories better than any centralized bureaucracy from Washington, D.C.''

I am honored that this amendment is supported by the American Farm Bureau Federation, Americans for Limited Government, the American Public Power Association, Americans for Tax Reform, the Council for Citizens Against Government Waste, the Family Farm Alliance, the National Association of Conservation Districts, the National Water Resources Association, and countless other organizations and individuals throughout the country.

My amendment prohibits the EPA from implementing, administering, or enforcing their misguided attempt to usurp States' rights and control the quantity of water used by individual owners and local municipalities. I ask my colleagues to support this amendment.

I thank the chairman and the ranking member for their good work on this bill.

Mr. Chair, I reserve the balance of my time.

Mr. KILMER. Mr. Chair, I claim the time in opposition.

The Acting CHAIR. The gentleman from Washington is recognized for 5 minutes.

Mr. KILMER. Mr. Chair, this amendment would prohibit funding to implement, administer, or enforce the draft technical report, entitled, ''Protecting Aquatic Life from Effects of Hydrologic Alteration,'' published by the EPA and by the USGS on March 1, 2016.

This draft technical report is not a policy. It is not guidance. It is not a criteria document. It shows no advocacy. It doesn't require States to do anything. This technical document provides information to help States and tribes and territories and water resource managers and other stakeholders actually understand how water flows impact water quality, and it gives examples of what some States have chosen to do to address flow concerns.

The EPA and the USGS collaborated to develop this report in response to State and EPA regional requests. The draft report had a 105-day comment period, which closed on June 17, 2016, and it received more than 100 submissions from Federal and State partners, watershed groups, mining and farming associations, and other highly engaged stakeholders. Now that the comment period has ended, the EPA and the USGS will consider the comments and revise the document and then publish a final document, which will serve as a source of technical information for States, tribes, territories, and other stakeholders.

Why would we prohibit producing a resource document? The EPA is targeting the release date for the final publication as September 30, 2016, which is the end of fiscal year 2016, meaning the final report will supersede the prohibition on the draft technical report in the fiscal year 2017 bill.

This draft technical document received extensive internal and external technical peer review by scientists with expertise in environmental flow. If the report is not finalized, States will not be able to benefit from critical scientific information or from the effective solutions shared by other States.

I urge my colleagues to oppose this amendment.

Mr. Chair, I reserve the balance of my time.

Mr. GOSAR. Mr. Chair, as I have said, it is well-established legal doctrine that the Constitution and the Clean Water Act strictly limit the Federal Government's authority to usurp State water rights and compacts.

I urge my colleagues to join me in protecting State authority, private property rights, and in reining in yet another EPA Federal overreach. I urge a ''yes'' vote on Gosar amendment No. 58.

I yield back the balance of my time.

Mr. KILMER. Mr. Chair, again, I will just say in closing that this is a draft technical report that doesn't set policy, that doesn't set guidance, that doesn't have advocacy, that doesn't require States to do anything. This is a resource document, and I don't know why we would prohibit producing a resource document.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arizona (Mr. GOSAR).

The amendment was agreed to.

The Acting CHAIR. The Chair understands that amendment Nos. 59 and 60 will not be offered.

It is now in order to consider amendment No. 61 printed in House Report 114–683.

□ 0030

AMENDMENT NO. 62 OFFERED BY MR. JENKINS OF WEST VIRGINIA

The Acting CHAIR. It is now in order to consider amendment No. 62 printed in House Report 114–683.

Mr. JENKINS of West Virginia. Mr. Chair, I rise to offer my amendment, No. 62, as printed in the rule.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ___. None of the funds made available by this Act may be used by the Environmental Protection Agency to develop, finalize, promulgate, implement, administer, or enforce any rule under section 112 of the Clean Air Act (42 U.S.C. 7412) that applies to glass manufacturers that do not use continuous furnaces.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from West Virginia (Mr. JENKINS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from West Virginia.

Mr. JENKINS of West Virginia. Mr. Chairman, my amendment to the bill today is very straightforward. What it would do is preserve our Nation's specialty glass manufacturers from EPA overregulation.

Specialty glass manufacturers, these are the small businesses. These are facilities typically employing less than 50 employees. Yet, they produce the stained glass windows that adorn our churches, decorative vases, commemorative and artisan products.

West Virginia has a proud tradition of specialty glass manufacturing. In fact, one of the oldest companies is Blenko Glass in Milton, West Virginia, which is in my district. Its limited edition pieces are prized by collectors and have been handed down through generations.

Let me give my colleagues a sense of where some of the Blenko Glass is today: Colonial Williamsburg, Westminster Abbey—the replacement glass for antique windows at the White House is from Blenko Glass. Jackie Kennedy actually used Blenko Glass at the White House—the Cadet Chapel at the Air Force Academy in Colorado, St. Patrick's Cathedral in New York City. And that beautiful award from the Country Music Association that is given out to the recipient, it is a piece of Blenko Glass.

This is proud American tradition, and that tradition is now in jeopardy. Blenko, like all other specialty glass manufacturers in the Nation, is facing changes to the standards that would make it harder to make glass. The EPA is considering revising the current regulation to make it harder for these small businesses to simply make glass.

My amendment would simply protect specialty glass manufacturers that use noncontinuous furnaces for their glassmaking. The rules for continuous furnaces for the bigger glass-producing facilities, which produce items like glass bottles, cookware, and windows, would still apply under current regulation.

I urge my colleagues' support for this amendment to protect our Nation's small, specialty, and often family-owned, glass manufacturers.

I reserve the balance of my time.

Mr. KILMER. Mr. Speaker, I claim time in opposition.

The Acting CHAIR. The gentleman from Washington is recognized for 5 minutes.

Mr. KILMER. Mr. Chairman, this amendment would impede the EPA's ability to regulate toxic air pollutants from glass manufacturers. EPA currently requires glass manufacturers to limit their air toxic emissions, which contain carcinogenic heavy metals like arsenic and lead.

My good friend, Mr. JENKINS', amendment seeks to block these requirements from refined glass manufacturers that do not use continuous furnaces or that produce less than 50 tons of glass per year.

I point out at the present time there are no Federal air toxic emission regulations that cover those types of glass

facilities. So this amendment tries to fix a problem that doesn't really exist, and in the process, it would hamstring the EPA's ability to protect public health.

Just this year, we saw that glass manufacturers who do not use a continuous furnace may also pose a significant health risk to neighboring communities in Oregon, just to the south of me. Air monitoring data showed that glass manufacturers using a batch process were emitting high levels of arsenic and chromium. The EPA has been investigating the situation to ensure that other communities are not exposed to these harmful contaminants.

While these manufacturers are only a small portion of the market, reports have shown that these facilities can be alarmingly close to homes and even to schools, having serious implications for the health of nearby families and kids. We should be shielding these communities from these toxic air emissions instead of limiting the EPA's ability to take necessary action to protect public health, as this amendment would do.

This amendment preempts regulation and carves out an exemption for one particular industry. I urge my colleagues to oppose this amendment.

I reserve the balance of my time.

Mr. JENKINS of West Virginia. Mr. Chairman, again, let me make reference to what the existing EPA regulations do. There are current regulations, but the exemptions from the current regulation, as it stands right now, are for those glass manufacturers that are noncontinuous furnaces and produce under a certain amount of tonnage of glass each year.

The EPA is looking at changing those regulations. We are not trying to carve-out a new exemption. We are just trying to sustain and contain in the current law the exemptions for the noncontinuous furnaces and those under a certain amount of tonnage. So we are not making any changes. We are simply trying to maintain the current exemption because we see the EPA out looking to make changes to eliminate the current exemptions that exist in the law.

Once again, another step of the EPA overreach that will be jeopardizing the small glass manufacturers that mean so much to not only our employment base, but also our heritage.

I encourage support for my amendment.

I yield back the balance of my time.

Mr. KILMER. Mr. Chairman, I would just say, again, in closing, I have seen much of this glasswork. It is really impressive. But, as impressed and grateful as I am for that artistry, I also care a lot about kids and making sure that they are not exposed to toxic air pollutants. With that, I oppose this amendment.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from West Virginia (Mr. JENKINS).

The amendment was agreed to.

AMENDMENT NO. 63 OFFERED BY MS. GRAHAM

The Acting CHAIR. It is now in order to consider amendment No. 63 printed in House Report 114–683.

Ms. GRAHAM. Mr. Chair, as the designee of the gentleman from Florida (Mr. JOLLY), I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to research, investigate, or study offshore drilling in any portion of the Eastern Gulf of Mexico Planning Area of the Outer Continental Shelf that under section 104 of the Gulf of Mexico Energy Security Act of 2006 (43 U.S.C. 1331 note) may not be offered for leasing, preleasing, or any related activity.

The Acting CHAIR. Pursuant to House Resolution 820, the gentlewoman from Florida (Ms. GRAHAM) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Florida.

Ms. GRAHAM. Mr. Chair, I would like to recognize my colleagues, Mr. JOLLY and Mr. CLAWSON, who are my good friends and cosponsors of this amendment.

Second, I would also like to remind my colleagues that this amendment passed by voice during last year's debate, and I am hopeful we can do the same again this year.

As many of my colleagues know from across the country, who have visited Florida at some point and have enjoyed our beautiful beaches, sunshine, water, white sand—and I don't mean to brag, but we really do live in a paradise. That is why for years we have fought oil drilling off of our beaches, and, thankfully, the Federal Government has listened to the people of Florida and banned drilling in the eastern Gulf of Mexico.

This amendment would strengthen that ban and our commitment to protect Florida's beaches by prohibiting exploration and testing for oil in the eastern Gulf. Our military opposes it, conservationists oppose it, and Florida's tourism industry opposes it.

I am proud to work with Mr. JOLLY and Mr. CLAWSON on this important amendment for Florida, and I hope my colleagues will join us in supporting this amendment to protect Florida's Gulf beaches.

I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California is recognized for 5 minutes.

Mr. CALVERT. I understand this amendment dovetails with the current congressional moratorium that exists through 2022. Therefore, the amendment isn't necessary for this year. I urge a ''no'' vote.

I reserve the balance of my time.

Ms. GRAHAM. Mr. Chair, as I previously said, the purpose of this is to strengthen the ban. And, again, I was on the beaches following the BP oil spill and saw the tar washing up on the shores. I am proud to represent many military installations in the State of Florida and in north Florida, and they don't wish to have this either for training purposes for our military.

□ 0040

I would like to just reiterate this is something that, in a bipartisan nature, has been approved of. It was just approved last year, and I would just like to respectfully request that it be approved again this year by voice vote.

Mr. Chairman, I reserve the balance of my time.

Mr. CALVERT. Mr. Chairman, I am in opposition to the amendment. I urge a ''no'' vote. We already have a moratorium in effect.

Mr. Chairman, I yield back the balance of my time.

Ms. GRAHAM. Mr. Chairman, I will just close by reminding my colleagues that this has been a longstanding, bipartisan consensus that, for military as well as economic reasons, should be strengthened, and we should not be drilling in the eastern Gulf. I urge my colleagues to support the amendment.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Florida (Ms. GRAHAM).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. GRAHAM. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from Florida will be postponed.

AMENDMENT NO. 64 OFFERED BY MR. KING OF IOWA

The Acting CHAIR. It is now in order to consider amendment No. 64 printed in House Report 114–683.

Mr. KING of Iowa. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act, including the amendments made by this Act, may be used to implement, administer, or enforce the prevailing rate of wage requirements in subchapter IV of chapter 31 of title 40, United States Code (commonly referred to as the Davis-Bacon Act).

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Iowa (Mr. KING) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Iowa.

Mr. KING of Iowa. Mr. Chairman, my amendment is an amendment that I have brought in past years. What it

does, it says none of the funds made available by this act, including the amendments made by this act, may be used to implement, administer, or enforce a prevailing rate of wage requirements in subchapter 4, which is basically referred to normally as the Davis-Bacon Act.

The Davis-Bacon Act is a bill that was passed back in the early 1930s. The purpose of it was to lock the labor out from Alabama that was going, during the Depression years, up into New York to build Federal buildings and competing with the labor unions up there that happened to be locking Black workers out of the workforce in New York. It was brought to us by a Senator and by a House Member from New York—both Republicans, by the way. It is the remaining Jim Crow law that I know of on the books, and it imposes what is called a prevailing wage on all contractors doing Federal contracts that are $2,000 or more.

King Construction has been in business since 1975. That is 41 years. We have dealt with this Davis-Bacon wage scale for a long time. Not only is it expensive, and it costs the taxpayers extra money on every single project on which it is imposed, but it also brings about inefficiencies that are brought about because of the reporting requirements, the confusion that is there.

We happen to have seen on our jobs people that jump from machine to machine to try to get to the highest paying machine, not the most efficient one. That is just one picture of what Davis-Bacon does. There are many others. Our numbers from our company are someplace between 8 and 35 percent, depending on your project, that the cost of these projects are increased unnecessarily. It does not reflect prevailing wage. It reflects an imposed union scale.

This is something that this Congress has to come to grips with if we are going to ever get to balance and be responsible with the taxpayer dollars. I urge its adoption.

I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I claim the time in opposition to this amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chairman, over the past few years, we have taken several votes on whether or not we should waive prevailing wage requirements that are contained in Davis-Bacon. In each and every instance, the Congress has rejected these efforts because there is strong bipartisan support for fair labor standards for construction contracts.

Davis-Bacon is a pretty simple contract, and it is a fair one. What the Davis-Bacon Act does is it protects the government as well as workers in carrying out a policy of paying a decent wage on government contracts. Davis-Bacon simply requires workers on federally funded construction projects be paid no less than the wages paid in the community for similar work. I want to stress this again—Federal construction projects to be paid no less than wages paid in communities for similar work.

It requires every contractor for which the government is a party in excess of $2,000 contain a provision defining minimum wages paid to various classes of laborers and mechanics. This law has helped workers in all trades all over the Nation, and there is no need to abandon those workers today. I urge my colleagues to oppose the King amendment.

I reserve the balance of my time.

Mr. KING of Iowa. Mr. Chairman, I would say in response to the gentlewoman from Minnesota that the actual application of the Davis-Bacon wage act is not what we would call a fair labor standard, not when you have some hacks that sit in a room once a year and decide whether and who gets how much of a raise. It is not free enterprise. It is not merit. It is based on backroom deals. It is based on imposing union scale and making the taxpayers pay for that.

If I don't hear that this year, it is the first year I haven't heard it, and that is the argument that the quality of the work isn't there. Well, the honor of our employees for 41 years, and many other merit shop employees, is on the line. We meet plans and specifications. They are Federal projects. They are inspected, and the standard of the work is indiscernible, except that we don't happen to have union squabbles on our jobs, and we pay the wage that is necessary to keep good help, and we have had some of the lowest unemployment rates that anybody has had. In fact, my rates were zero because we kept our people on year round. We take care of our employees. We provide a benefits package. So do the merit shop people I know.

So often I hear from the other side of the aisle that the Federal Government has no business interfering in a relationship between two or more consenting adults, and this is one of those cases. It is a contract of labor between the employer and the employee. The Federal Government needs not be involved in that. When they are, it invariably costs the taxpayers more money.

We can dredge five harbors instead of four. We can repair five locks and dams instead of four if we pass this amendment. Why would we, with the starvation of resources to our interior, why would we deny those resources the most efficient application?

I urge the adoption of my amendment.

Mr. Chairman, I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, may I inquire how much time I have remaining.

The Acting CHAIR. The gentlewoman from Minnesota has 3½ minutes remaining.

Ms. MCCOLLUM. Mr. Chairman, I yield 1 minute to the gentleman from Washington (Mr. KILMER).

Mr. KILMER. I thank the gentlewoman from Minnesota for yielding.

Mr. Chairman, I oppose this amendment because I support Davis-Bacon. Studies have shown that Davis-Bacon actually doesn't increase the cost to taxpayers, but what happens is that, if this amendment were to pass, you would see a reduction in wages. You would see an increase with these protections from Davis-Bacon being pulled away, an increase in on-the-job injuries. You would have fewer workers with health benefits.

Davis-Bacon is about preventing wage exploitation. It is about preventing, undercutting local wages.

I will tell you this. This is about ensuring that when the Federal Government builds a project with taxpayer money that it is not just about building a road or a bridge or a facility. It is about building the middle class, and it is about building the next generation of workers. It is about providing training and providing a good wage for people to be able to live and earn a good living and live with dignity.

Mr. KING of Iowa. Mr. Chairman, I have to say in contradiction to the gentleman who just spoke, on-the-job injuries, I don't know what would support that, whether or not there is a Davis-Bacon wage scale on that. That has to do with your safety policy on the job. It has to do with the culture of the company, and it has to do, to a degree, with the culture of the projects that you are on.

The fewer benefits side of this thing, I think it goes the other way, because Davis-Bacon requires that you add dollars into this Federal-mandated union scale to pay benefits; and when that happens, you are paying a benefit figure on a dollar figure to the employees rather than, say, a health insurance package that is going to take care of them far better and in the long term.

I point out also today that we had testimony from the Secretary of Transportation from the State of Oklahoma, Secretary Gary Ridley, who said that they run into the inefficiencies driven by Davis-Bacon where you have as many as three or more different pay scales on a single project that might stretch out over 6, 8, or 10 miles. They end up in different wage scales. So the contractors have to keep track of who crosses that line in what machine. The confusion of all that adds to the inefficiencies as well.

The most important thing is this: the taxpayers are paying an unnecessary premium for projects that we could be far ahead of where we are right now if we hadn't had all these years of this Davis-Bacon wage scale. I would reiterate: it is ironic that it is the Democrats who are always on the floor defending the last Jim Crow law on the books.

It is time to get rid of the last Jim Crow law on the books. Let free enterprise prevail. Let the taxpayers be the beneficiaries of this. I urge the adoption of my amendment.

Mr. Chairman, I yield back the balance of my time.

□ 0050

Ms. MCCOLLUM. Mr. Chairman, while I would just like to point out that corporate interests and their advocates often claim that Davis-Bacon increases taxpayers costs, there isn't a study that proves that. In fact, a study of school construction costs in the Great Plains States shows that prevailing wage laws did not only not raise constructions costs, but also that repealing such wage laws hurt taxpayers and workers.

After Kansas' prevailing wage law was repealed, wages fell 11 percent, training programs declined by 28 percent, and job site injuries rose 19 percent. Highway construction costs are actually higher when workers are paid less, according to an analysis of the Federal Highway Administration data by the Construction Labor Research Council. The studies showed that the cost to build 1 mile in States average $17.65 per hour, compared with low wages of $9.97 per hour, on average. Money was actually saved, on average, by higher productivity. Better productivity, better wages.

In Wisconsin, a study of the State's prevailing wage laws shows that potential savings from wage cuts were never outweighed by the cost of income to communities. Annual costs of repealing the law has estimated between $123 million in lost income and net tax revenues to a loss of $6.8 million. In Missouri, a similar study showed a loss to the State of $380 million to $384 million. Cost overruns are more likely without prevailing wages.

As a member of the Democratic-Farmer-Labor Party, I urge my colleagues to oppose the King amendment and pay people in the community a prevailing wage under Davis-Bacon.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Iowa (Mr. KING).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. MCCOLLUM. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Iowa will be postponed.

The Acting CHAIR. It is now in order to consider amendment No. 65 printed in House Report 114–683.

AMENDMENT NO. 66 OFFERED BY MR. LAMBORN

The Acting CHAIR. It is now in order to consider amendment No. 66 printed in House Report 114–683.

Mr. LAMBORN. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to implement, administer, or enforce the final rule entitled ''Hydraulic Fracturing on Federal and Indian Lands'' as published in the Federal Register on March 26, 2015 and March 30, 2015 (80 Fed. Reg. 16127 and 16577, respectively).

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Colorado (Mr. LAMBORN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Colorado.

Mr. LAMBORN. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, the process of hydraulic fracturing, often used in combination with horizontal drilling, has unlocked vast new American energy resources, making the United States the largest energy producer in the world. This creates tens of thousands of good-paying jobs and lower energy prices for consumers.

Despite this technological advancement, the Obama administration, acting through the Bureau of Land Management, has sought to regulate it out of existence by trying to institute new, onerous regulations regarding well construction and water management for hydraulic fracturing operations that take place on Federal and Indian lands.

Thankfully, the U.S. District Court in Wyoming recently struck down BLM's hydraulic fracturing rule, finding that the BLM lacks authority from Congress to regulate the process of fracking, and was acting contrary to law. As expected, the Obama administration has filed an appeal to the Tenth Circuit Court.

Despite being illegal, these burdensome regulations simply do not recognize the extensive work done by the States to regulate hydraulic fracturing within their borders.

The Natural Resources Committee has heard from numerous witnesses from Utah, Wyoming, Colorado, and other States, who have testified to the tireless process these States went through to draft and implement their regulations—regulations that are very successful.

My home State of Colorado has been safely using hydraulic fracturing for over 40 years, and has the toughest Hydraulic Fracturing Disclosure Rule in the Nation. Even our Democratic Governor, John Hickenlooper, who has actually drunk hydraulic fracturing fluid to show that it is safe, believes it is the State's responsibility to regulate industry. And this amendment will do exactly that by ensuring that States like Colorado can continue to safely regulate energy production based on local geology and conditions without unnecessary and unlawful interference from the Federal Government.

One size does not fit all and the States frequently—I think always—know better than the Federal bureaucrats in Washington do what their geology is like, what their water is like, and so son.

So I ask that you support my amendment and allow the current energy renaissance to continue ensuring a stable supply of affordable and reliable energy. This will help drive down prices for gasoline, electricity, and home heating.

Mr. Chairman, I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. This amendment would prohibit the Bureau of Land Management from implementing a uniform national standard for hydraulic fracking on public lands. This amendment would prohibit the BLM from implementing a uniform national standard for hydraulic fracking on public lands. Public lands only. Such a standard is necessary to ensure that operations on public and tribal lands are safe and environmentally responsible.

Of the 32 States with potential for oil and gas development on federally managed mineral resources, only slightly more than half have rules in place to address hydraulic fracturing. And those that do have rules vary greatly in their requirements.

So BLM continues to offer millions of acres of public land for conventional and renewable energy production, and it is critical that the public have confidence and transparency that effective State and environmental protections are in place.

So, as I said before, there are 32 States, and half of them don't even have anything in place that BLM could use. BLM is looking to have an implementation of a rule in State offices, and they are in the process of meeting with their State counterparts, undertaking State-by-State comparisons and regulatory requirements. I believe what the gentleman has told me about Colorado; it looks like that would be best practices and something BLM would want to look at and maybe model under.

So they are trying to establish memorandums of understanding. Unfortunately, what your amendment does is stop that from going forward. I think that, for right now, BLM needs to come up with a transparent standard so that when people are interacting with BLM State by State and when the taxpayers are looking at what BLM is doing, there is transparency, there is clarity, and there is uniformity.

Unfortunately, I have to oppose the gentleman's amendment.

Mr. Chairman, I reserve the balance of my time.

Mr. LAMBORN. Mr. Chairman, the gentlewoman has raised an interesting point. On the surface, there is some merit to what she says. However, there is one big flaw. She wasn't aware because she wasn't in the hearing, but when BLM came and spoke to our committee, I said to them: States like Colorado are doing a good job already.

Why don't you just regulate the States that don't have their own regulation?

Well, they said: No. We want to regulate everybody.

They really didn't care whether States had good regulations in place or not. So I think they gave away the game. They just wanted to put more regulation on industry. What that means is that you have two sets of regulations to have to wade through, and that is going to shut out marginal plays, it is going to shut out jobs of people that would have been in those marginal plays.

So BLM really wasn't interested in listening to the States. They rejected that suggestion, and they just want to regulate everybody.

Let's let the States do what they do best. They know their territory, they know their water, they know their geology. They are doing a great job already. No one ever raised any examples of where the States had not done a good job.

So let's pass this amendment and BLM can manage the land and not do what the States are already doing. That is the way it should be.

Mr. Chairman, I yield back the balance of my time.

□ 0100

Ms. MCCOLLUM. I thank the gentleman for an interesting discussion, but here is the challenge I see: 32 States with the potential of oil and gas development on federally managed lands, only slightly more than half have rules in place. So then, if the Federal Government is considering possible development on its own land and it is in a State that doesn't have a rule, they need to have a rule. They need to have transparency. They need to have accountability to the taxpayer, to our constituents.

So they are trying to form rules and regulations, and I am hopeful that BLM—and I will make some inquiries—is in the process of meeting with their State counterparts and taking best practices to develop rules, to develop transparency, to develop accountability in the States where no rules exist.

At this current time, I really have to oppose the gentleman's amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Colorado (Mr. LAMBORN).

The amendment was agreed to.

AMENDMENT NO. 67 OFFERED BY MR. LAMBORN

The Acting CHAIR. It is now in order to consider amendment No. 67 printed in House Report 114–683.

Mr. LAMBORN. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to implement or enforce the threatened species or endangered species listing of any plant or wildlife that has not undergone a review as required by section 4(c)(2) of the Endangered Species Act of 1973 (16 U.S.C. 1533(c)(2) et seq.).

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Colorado (Mr. LAMBORN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Colorado.

Mr. LAMBORN. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, my amendment is straightforward. It simply ensures that the U.S. Fish and Wildlife Service is following current law, specifically, section 4(c)(2) of the Endangered Species Act, by conducting a review of all threatened and endangered plants and wildlife at least once every 5 years.

Time after time, the Federal Government refuses to follow the Endangered Species Act. The government designates land as critical habitat, despite not meeting the ESA, Endangered Species Act, definition; and the government consistently refuses to remove plants and animals from threatened or endangered status, even when these species are flourishing and are no longer in need of ESA protections.

But you may ask yourself: How does the government know when the species should be removed from the endangered or threatened list? How does the government know if a species is recovering?

The answer can be found in the ESA and its requirement that the Federal Government reviews all plants or species that are currently listed as endangered or threatened every 5 years.

Under the act, the purpose of a 5-year review is to ensure that threatened or endangered species have the appropriate level of protection. The reviews assess each threatened and endangered species to determine whether its status has changed since the time of its listing, or its last status review, and whether it should be removed from the list, delisted; reclassified from endangered to threatened, which is downlisted; reclassified from threatened to endangered, uplisted; or just maintain the species' current classification, the status quo.

And because the act grants extensive protection to a species, including harsh penalties for landowners and other citizens, it makes sense to regularly verify if a plant or animal is being properly classified or should be delisted. Despite this commonsense requirement, the U.S. Fish and Wildlife Service has acknowledged that it has neglected its responsibility to conduct the required reviews for hundreds of listed species.

For example, in Florida alone, it was found that 77 species, out of a total of 124 protected species in the State, were overdue for a 5-year review. In other words, the government had not followed the law for a staggering 62 percent of species in that State.

In California, the U.S. Fish and Wildlife Service acknowledged that it had failed to follow the law for roughly two-thirds of the State species listed under the Endangered Species Act and was forced by the courts to conduct the required reviews of 194 species.

By enforcing the 5-year review, my amendment will ensure that the U.S. Fish and Wildlife Service is using the best available scientific information in implementing its responsibilities under the Endangered Species Act, including incorporating new information through public comment and assessing ongoing conservation efforts.

I encourage my colleagues to join me in ensuring that the U.S. Fish and Wildlife Service follows the Endangered Species Act and that we do not provide money in this bill that would violate current law. I ask you to support my amendment.

I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I claim the time in opposition to this amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chairman, the service attempts to comply with the statutory mandate to review the status of listed species every 5 years to determine whether or not the classifications of threatened or endangered are still appropriate, and you gave some eloquent answers.

However, the service has a backlog of such reviews due to the funding limitation, such as the 30 percent listing reduction contained in this bill—$3 million less than they had last year. This has been cumulative time and time again.

So if you don't have the resources, if you don't have the staff, if you don't have the wherewithal to get out in the field and do the job, a backlog occurs. The reason why, that they are behind with the backlog on this, is because they don't have the resources to do their job.

And whose responsibility is that?

It is Congress' responsibility to make sure that they have the funding necessary to get up, go to work in the morning, and get rid of this backlog and do their job. We have a responsibility to put the tools in the toolbox for them to be able to do their job properly; and this Congress, and this piece of legislation, fails to give them the tools in the toolbox, and so the backlog will continue.

So I oppose the gentleman's amendment because it is not U.S. Fish and Wildlife's lack of wanting to do their job. It is their lack of ability, through the lack of funding, to do the job the way that they would like to do it.

I reserve the balance of my time.

Mr. LAMBORN. Mr. Chairman, depending on how you look at the budget, we are talking about, like, let's say $11 billion, and they just have to do a better job of prioritizing their work. It is not our fault that they are not doing

the required 5-year species review. I think we agree that that should be done.

So sometimes you just have to tell the bureaucracy that they need to get on the ball and do the right thing, and that's all this amendment does. And they just have to have a better set of priorities. If they are not following the current law, they just need to get up and do it.

So let's pass this amendment. Let's make them follow the law. It is better for all the species involved if we know whether they are being conserved and the efforts behind them are working or not. We need to know that.

So let's pass this amendment, make them follow the law.

Mr. Chairman, I yield back the balance of my time.

Ms. MCCOLLUM. Once again, I thank the gentleman for being here because I think we have had some discussions about the work that needs to be done on the policy committees and some of the challenges that we have in this bill with our limited resources.

As my grandmother would say, and maybe you had a grandparent who had a similar saying: You can't get water out of a rock.

We keep asking the Fish and Wildlife Service, National Park Service, all kinds of wonderful people who get up every morning wanting to do the best job possible and protecting our natural resources, to do more and more and more and more with less. At some point, they just can't do any more because they don't have the full-time equivalents. They don't have the scientists that they can hire. They don't have the resource managers who can get out and work in the local community. They are hamstrung.

So for only that reason, I oppose the gentleman's amendment. If they were fully funded and I could look them in the eye and say, ''You have all the tools in the toolbox; get the job done,'' I would be with you, sir. But they do not have all the tools in the toolbox, and this Congress has underfunded them repeatedly, and that is why we have the backlog. I urge my colleagues to oppose this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Colorado (Mr. LAMBORN).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. MCCOLLUM. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Colorado will be postponed.

□ 0110

AMENDMENT NO. 68 OFFERED BY MR. LAMBORN

The Acting CHAIR. It is now in order to consider Amendment No. 68 printed in House Report 114–683.

Mr. LAMBORN. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ___. None of the funds made available by this Act may be used to implement or enforce the threatened species listing of the Preble's meadow jumping mouse under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.).

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Colorado (Mr. LAMBORN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Colorado.

Mr. LAMBORN. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, this is my third and last amendment on this bill, and I am hopeful that maybe this is one we can agree on.

Mr. Chairman, the Preble's meadow jumping mouse is a tiny rodent with a body approximately 3 inches long, a 4- to 6-inch long tail, and large hind feet adapted for jumping. This largely nocturnal mouse lives primarily in stream side ecosystems along the foothills of southeastern Wyoming south to Colorado Springs in my district along the eastern ridge of the Front Range of Colorado.

To evade predators, the mouse can jump like a miniature kangaroo up to 18 inches high using its long, whip-like tail as a rudder to switch directions in mid-air. But the little acrobat's most famous feet was its leap onto the Endangered Species list in May, 1998, a move that has hindered development from Colorado Springs, Colorado, to Laramie, Wyoming.

Among projects that have been affected: the Jeffco Parkway southeast of Rocky Flats, an expansion of Chatfield Reservoir, and housing developments in El Paso County along tributaries of Monument Creek. Builders, landowners, and local governments in affected areas have incurred hundreds of millions of dollars in added costs because of this mouse. And protecting the Preble's mouse has even been placed ahead of protecting human life.

On September 11, 2013, Colorado experienced a major flood event that damaged or destroyed thousands of homes, important infrastructure, and public works projects. As a result of the Preble's mouse's listing as an endangered species, many restoration projects were delayed as Colorado sought a waiver. In fact, FEMA was so concerned that they sent out a notice that stated: ''Legally required review may cause some delay in projects undertaken in the Preble's mouse habitat.'' It goes on to warn that ''local officials who proceed with projects without adhering to environmental laws risk fine and could lose Federal funding for their projects.''

While a waiver was eventually granted, the scientific evidence simply does not justify these delays or the millions of taxpayer dollars that go toward protecting a mouse that is actually part of a larger group that roams throughout half of the North American continent.

Scientific studies have concluded that the Preble's mouse does not warrant protection because it isn't a subspecies at all, and is actually related to the Bear Lodge jumping mouse. Even the scientist that originally classified this mouse as a subspecies has since recanted his work. Moreover, the Preble's mouse has a low conservation parity score—meaning the hundreds of millions of dollars already spent on protection efforts could have been better spent on other, more fragile species.

My amendment would correct the injustice that has been caused by the inaccurate listing of the Preble's meadow jumping mouse and refocus the U.S. Fish and Wildlife Service's efforts on species that have been thoroughly scientifically vetted and that should be managed by the Endangered Species Act.

Mr. Chairman, I encourage my colleagues to support the amendment.

I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chairman, this amendment would prohibit Fish and Wildlife from implementing or enforcing a threatened species listing of the Preble's meadow jumping mouse under the Endangered Species Act.

On April 11, 2016, the service announced the availability of a draft recovery plan for the Preble's meadow jumping mouse which the public could review and comment on until June 10, 2016.

Now the service is currently reviewing and considering all the comments that they received, so nothing is final yet. So this is premature. You are predicting an outcome that I don't know whether or not you would agree with. So under this amendment, the service would not be able to continue to recover this species because the Endangered Species Act would still apply. The service would not be able to work with agencies. It would not be able to work with developers. It would not be able to work with landowners in order to abide ESA compliance.

Additionally, the amendment will also limit the service from undertaking required status reviews of the subspecies from being able to implement any rulemaking down-listing or delisting the species if they thought it was appropriate after they were done with their review.

Sadly, the gentleman's amendment would undermine the service's ability to work collaboratively with States, local governments, communities, and landowners to conserve this imperiled species, and the amendment would create uncertainty for landowners and

also make them vulnerable to lawsuits. So I think we should be supporting Fish and Wildlife to finish doing the job that it started and not blocking it from doing the job it is currently getting ready to do when it comes to this species.

So because nothing is final yet, I urge my colleagues to reject this amendment.

Mr. Chairman, I yield back the balance of my time.

Mr. LAMBORN. Mr. Chairman, I would just like to point out that this species should have never been listed in the first place. It is highly disputed and contentious science that it was ever even listed at all.

So on the previous amendment I think we discussed how the Fish and Wildlife Service is already too busy in your State and they don't have enough money to do what they need to do right now. Let's free up a lot of their workload and take this one off the table because it shouldn't have been listed in the first place. Then they will have more time to do everything else that they claim to want to do.

Mr. Chairman, I ask for an ''aye'' vote on this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Colorado (Mr. LAMBORN).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. MCCOLLUM. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Colorado will be postponed.

AMENDMENT NO. 69 OFFERED BY MR. LOUDERMILK

The Acting CHAIR. It is now in order to consider amendment No. 69 printed in House Report 114–683.

Mr. LOUDERMILK. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to finalize, implement, administer, or enforce the proposed rule entitled ''Greenhouse Gas Emissions and Fuel Efficiency Standards for Medium- and Heavy-Duty Engines and Vehicles-Phase 2'' published by the Environmental Protection Agency in the Federal Register on July 13, 2015 (80 Fed. Reg. 40138 et seq.), with respect to trailers.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Georgia (Mr. LOUDERMILK) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Georgia.

Mr. LOUDERMILK. Mr. Chairman, under the Clean Air Act, Congress directed the EPA to regulate ''any air pollutant from any class or classes of new motor vehicles or new motor vehicle engines, which may be reasonably anticipated to endanger public health or welfare.''

Congress further defined ''motor vehicle'' as a ''self-propelled vehicle designed for transporting persons or property on a street or highway.''

Mr. Chairman, any reasonable person would understand that self-propelled vehicle means a vehicle that can propel itself of its own initiative. One would think of pickup trucks, semis, vans, or cars. One thing that does not come to mind is the back portion of a tractor trailer being the trailer portion which has no way of self-propelling itself.

Unfortunately, the EPA doesn't seem to see it that way. In last year's proposed rules for greenhouse gas emissions and fuel efficiency standards for on-road heavy-duty vehicles and engines, the EPA attempted to regulate truck trailers as self-propelled vehicles.

Furthermore, the EPA has a voluntary program called SmartWay that provides engineering guidelines for aerodynamics and reduced truck weight. SmartWay, which is voluntary, is intended to improve fuel efficiency for combined tractor tailers.

However, SmartWay only improves fuel efficiency when tractor trailers are traveling at highway speeds of more than 50 miles per hour. SmartWay provides no benefits whatsoever when the tractor trailers are traveling at less than 50 miles per hour around towns which are where most of the tractor trailers are used in the United States. But EPA wants to mandate all trailers to be governed by SmartWay, even those that travel less than 50 miles per hour.

In fact, if the government manipulates the weight of trailers, cargo gets displaced which results in more tractor trailers on the road, higher consumer prices, and more greenhouse gas emissions just to meet current freight demands.

Mr. Chairman, the trailers that EPA is proposing to regulate are highly customized to the individual specifications of each customer. Trailer manufacturers should not be forced to comply with a one-size-fits-all standard especially when given that so many trailers do not gain any fuel efficiency benefits from SmartWay.

My amendment would prevent the EPA from using any funds in the bill to regulate trailers under the greenhouse gas rule. Not only should these guidelines remain voluntary because they only benefit some trailers, EPA has no business regulating trailers under the Clean Air Act given that they are not self-propelled.

This proposed regulation by the EPA is another example of a Federal agency overstepping its bounds and attempting to enact a regulation that benefits some parts of the economy but harms others.

□ 0120

If this attempted overreach by the EPA is enforced, it will be costly and counterproductive because the private sector is moving faster to improve fuel efficiency and reduce air pollution than the EPA can move.

Congress would be wise to stop this regulation and keep the SmartWay program voluntary and let trailer manufacturers do what they know is best for their individual customers.

I urge all Members to support this amendment.

I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chairman, the fuel standards for the trailers that they are studying were jointly proposed by the EPA and the Department of Transportation.

Does the gentleman have a rider in anything from the Department of Transportation to prohibit their funding?

Mr. LOUDERMILK. We do not at this time.

Ms. MCCOLLUM. That answers part of my question, because even if he was to be successful with his amendment in the way the amendments are going—I am kind of predicting that he might be on a voice vote—it would still be moving forward under the Department of Transportation.

The standards that they are looking at are to help achieve greenhouse gas emissions and reductions. In my opinion, that is a good thing to do. The amendment would prohibit the EPA from finalizing, implementing, or enforcing its greenhouse gas rules by carving out this exemption for trailers.

Now, the other reason why I am opposing the amendment, and I am being consistent with this, is the proposed regulation is still currently open for public comment. We don't know what the final comment is going to be. We don't know what is going to happen in the future, so I don't think we should be interfering with a rulemaking process on an appropriations bill.

I urge my colleagues to oppose the amendment.

I yield back the balance of my time.

Mr. LOUDERMILK. Mr. Chairman, once again, as we have seen with the agencies, there is a lot of overreach. Quite often, if you give them an inch, they take a mile.

I think it is imperative that we be proactive in this issue to ensure that we protect an industry that has done a good job of regulating itself.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Georgia (Mr. LOUDERMILK).

The amendment was agreed to.

AMENDMENT NO. 70 OFFERED BY MRS. LUMMIS

The Acting CHAIR. It is now in order to consider amendment No. 70 printed in House Report 114–683.

Mrs. LUMMIS. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to finalize, implement, administer, or enforce the proposed rule entitled ''Health and Environmental Protection Standards for Uranium and Thorium Mill Tailings'' published by the Environmental Protection Agency in the Federal Register on January 26, 2015 (80 Fed. Reg. 4156 et seq.), or any rule of the same substance.

The Acting CHAIR. Pursuant to House Resolution 820, the gentlewoman from Wyoming (Mrs. LUMMIS) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Wyoming.

Mrs. LUMMIS. Mr. Chairman, I would like to observe that I am the third of three daughters, and my father used to always say nothing good ever happens after midnight, which is why he gave us a midnight curfew. I am hoping he was talking about mountain daylight time instead of eastern daylight time, especially with regard to my amendment.

Mr. Chairman, my amendment is intended to prohibit funding to complete EPA's proposed rule for environmental protection standards for uranium and thorium mill tailings.

The rule is intended to protect groundwater from potential future contamination due to in situ uranium production. The intent is not bad, but EPA officials acknowledge there is no evidence in situ uranium recovery, a process that has been used for more than four decades, has ever caused an adverse impact to adjacent, nonexempt aquifers.

Also, the EPA lacks jurisdiction to impose these standards. The EPA has general standard setting authority; but Congress has designated the Nuclear Regulatory Commission, and its agreement states, as the lead when it comes to implementation and enforcement, a concern raised by the NRC's general counsel.

Now, the uranium industry has offered to work with the EPA to review existing data and conduct additional sampling, if warranted. The industry made this offer in May 2015, and the EPA never responded, which is a problem, which has been acknowledged earlier this evening with regard to an amendment about inquiries by stakeholders and Congress regarding the EPA. They are so busy making rules that they forget to respond to stakeholders and Members of Congress.

American uranium production already faces intense competition from overseas production and Federal uranium sales, where our stockpile is being sold onto the market, depressing domestic prices and causing additional importation of uranium into the U.S. The U.S. imports upwards of 90 percent of the uranium we need for our power plants.

The proposed rule's 30-year postproduction monitoring requirements will present a significant burden on already struggling producers in Texas, Wyoming, and the West, and it could lead to more mining bankruptcies. Employment in the industry has already dropped by 21 percent. Why are we putting miners out of work and employing them in other countries where we import the same product?

The EPA recently said the agency planned to finalize this rule before the end of the Obama administration is on track. This amendment may be Congress' last chance to stop the rule and save the domestic uranium industry. For that reason, Mr. Chairman, I offer and support amendment No. 70 to H.R. 5538 and ask for its adoption.

I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chairman, once again, my primary reason for getting up and opposing the amendment is it blocks the EPA from finalizing regulations. The amendment would ensure that there are no public health or environmental standards tailored specifically to address the technologies and challenges associated with this most widely used method of uranium recovery.

What the EPA is looking at doing is establishing requirements for leaching, which is a mining process in which boreholes are drilled into a deposit of uranium, and liquid solution is injected into the holes to absolve the uranium deposits to make sure that the aquifers are protected.

I believe that the EPA should be looking at standards that will establish requirements to ensure that groundwater is restored to pre-mine levels, that restoration is stable before a site is abandoned, and that these rules should be, moving forward, being finalized.

To the gentlewoman from Wyoming—and I don't say this on the floor very often, and I think she knows this—who I consider a dear friend and I will miss upon her not running for reelection, I am concerned when I hear my colleagues say that they are not hearing back from people in a timely fashion. So I am going to be looking into that. But right now, at this particular time, because we are in the process of finalizing regulations and we don't know what they are going to look like as of right now, I have to oppose this amendment.

Mr. Chairman, I yield back the balance of my time.

Mrs. LUMMIS. Mr. Chairman, with great respect for the gentlewoman from Minnesota with whom I have had the privilege to serve for these past 8 years and whom I admire for her diligence and thoughtful representation of her constituents and our country, I would assert that the Nuclear Regulatory Commission, and its agreement states, are the lead when it comes to implementation and enforcement, and even the NRC's general counsel has raised this issue. The States and the Nuclear Regulatory Commission are in control of this issue. It is adequately regulated. It is appropriately regulated in a manner that protects groundwater. The injection wells and the recovery wells are from nonpotable water sources, and there are no instances where a nonpotable aquifer has contaminated a potable water aquifer.

□ 0130

For those reasons, I believe that this amendment is appropriate, and I encourage its adoption.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Wyoming (Mrs. LUMMIS).

The amendment was agreed to.

AMENDMENT NO. 71 OFFERED BY MR. WESTERMAN

The Acting CHAIR. It is now in order to consider amendment No. 71 printed in House Report 114–683.

Mr. WESTERMAN. Mr. Chair, I rise as the designee of the gentleman from New Jersey (Mr. MACARTHUR), and I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds in this Act may be used to enforce permit requirements pursuant to part 14 of title 50, Code of Federal Regulations, with respect to the export of squid, octopus, and cuttlefish products.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Arkansas (Mr. WESTERMAN) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arkansas.

Mr. WESTERMAN. Mr. Chair, I rise on behalf of the gentleman from New Jersey (Mr. MACARTHUR).

Prior to 2008, squid, octopus, and cuttlefish exports were permitted exclusively by the FDA as fish intended for human consumption. In 2008, the Fish and Wildlife Service also began regulating these species as protected species even though they are not. This allows them to charge excessive fees to seafood processors and to delay perishable shipments.

This amendment will prohibit funding from going to the Fish and Wildlife Service to inspect squid, octopus, and cuttlefish. The FDA will still regulate these products for food safety, as they do other fishery products that are meant to be consumed as food. It is a simple amendment.

Mr. Chair, I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chair, I rise in opposition to this amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chair, Fish and Wildlife inspections serve an important role for ensuring sustainability in regularly harvested species, which is essential to preserving the economic interests of the industry as well as the ocean ecosystems.

The Interior, Environment, and Related Agencies Subcommittee has been discussing the perishability of ecoderms for many years. Yet it has not had any other in-depth discussions about any other species.

I know the authorizing committee has been looking at this issue, and I would suggest that they are the proper committee to address any changes to permanent requirements that are requested in this amendment—permanent requirements.

Unlike the ecoderms, it is my understanding that these species are frozen seafood products instead of fresh.

Is it true they are frozen seafood products instead of fresh?

I yield to the gentleman from Arkansas so he may answer that question.

Mr. WESTERMAN. I believe these are fresh products.

Ms. MCCOLLUM. Mr. Chair, in reclaiming my time, it is my understanding that they are frozen. Therefore, they are not perishable as are the other ecoderms we had been speaking to.

I would ask that Members oppose this amendment and consider any legislation produced from the House Natural Resources Committee as the appropriate vehicle to resolve this issue.

I asked the gentleman a question about whether they are frozen seafood products or not. That seems to be in doubt. I have it under good information that they are. The gentleman is not sure. Therefore, I think it is really appropriate that this amendment be tabled, or voted down, until the proper committee has had a chance to review it, because what we are about to engage in here is a radical, radical change in what current law is.

I oppose this amendment.

Mr. Chair, I reserve the balance of my time.

Mr. WESTERMAN. Mr. Chair, these harmless seafood products are treated as if they were listed under the Endangered Species Act or listed as injurious under the Lacey Act or in violation of the Convention on International Trade in Endangered Species, which these products are not. They are being regulated by both the Fish and Wildlife and the FDA, and they will still be regulated under the FDA.

I encourage a positive vote on this amendment.

Mr. Chair, I yield back the balance of my time.

Ms. MCCOLLUM. Mr. Chair, without doing inspections, we have no way of knowing whether or not these are potentially endangered species. They are not. They would be exempted from the Lacey Act. That is why I am saying that this amendment is so radical in its nature of changing what current practice is.

I am pretty confident that these are frozen seafood products. What we were looking to address in the report language in the discussions that we have had in the committee is, for example, sea urchins, which are highly perishable, and that you have to have a quick turnaround in working with Fish and Wildlife to make sure that those inspections are taking place like that so that the fishermen and -women aren't put at an economic disadvantage.

I am very strongly in opposition to this amendment. I think the gentleman is going to go forward with it, but I really wish this could be tabled so that we could have a full discussion about what we are talking about. I think, with the best of intentions, the gentleman will go someplace, and I am not sure we will fully understand what the final product will be at the end. I oppose the amendment strongly.

Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arkansas (Mr. WESTERMAN).

The amendment was agreed to.

AMENDMENT NO. 72 OFFERED BY MR. MURPHY OF FLORIDA

The Acting CHAIR. It is now in order to consider amendment No. 72 printed in House Report 114–683.

Mr. MURPHY of Florida. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to carry out seismic airgun testing or seismic airgun surveys in the Eastern Gulf of Mexico Outer Continental Shelf Planning Area, the Straits of Florida Outer Continental Shelf Planning Area, or the South Atlantic Outer Continental Shelf Planning Area located within the exclusive economic zone (as defined in section 107 of title 46, United States Code) bordering the State of Florida.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Florida (Mr. MURPHY) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. MURPHY of Florida. Mr. Chair, I thank the chairman and the ranking member for their hard work in staying up so late and doing our business here.

I rise to offer the Murphy-Jolly-Castor-Clawson-Deutch-Graham-Hastings-Posey-Ros-Lehtinen-Wilson amendment to block the use of seismic airgun testing off Florida's coasts.

As you can see from the list of cosponsors, offshore drilling is not a partisan issue. In our State of Florida, the health of our economy relies on clean waters and beaches. Seismic testing puts the health of our environment and, by extension, our economy at risk. Blasting seismic waves into the waters off our coasts is the first step in the wrong direction.

Oil and gas exploration off the coasts of Florida poses too great a risk to our environment and to our economy. Seismic testing can have negative impacts on marine life, including endangered whales and dolphins, by disrupting their ability to communicate and navigate to find food as well as to locate mates and their young. It can also have negative effects on sea turtles, such as the endangered loggerhead, that have key nesting grounds along the Treasure Coast and Palm Beaches in the district I am so proud to represent.

Additionally, this practice has the potential to displace commercial and recreational fishing stocks. Estimates are that this practice can reduce catch rates in Atlantic cod, haddock, rockfish, herring, sand eel, and blue whiting by anywhere between 40 and 80 percent. This is unacceptable for Florida's fishing industry and the very livelihoods it sustains.

Floridians from every political persuasion do not want to risk an oil spill off our coasts, as we are home to more coastline than any other State in the continental United States. That is why 30 cities from both the left-leaning and right-leaning parts of our State have passed resolutions that ban seismic testing. Those closest to the ground know seismic testing is bad for business in a State with over 280,000 jobs that are supported by healthy ocean ecosystems. Protecting our shores is not a Republican or a Democratic issue. It is a Florida issue, both environmentally and economically.

I am proud that our delegation continues to stand strong against efforts to open the door to offshore drilling by working to block seismic testing off our shores. I ask my colleagues on both sides of the aisle to trust our State and our delegation. The Sunshine State is united. We do not want this. Support this bipartisan amendment.

Mr. Chair, I reserve the balance of my time.

Mr. CALVERT. Mr. Chair, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from California (Mr. CALVERT) is recognized for 5 minutes.

Mr. CALVERT. Mr. Chair, this administration has already developed the most restrictive policies for the use of seismic airguns for offshore exploration to date. We do not need to place a moratorium on the use. The gentleman specifies two planning areas off the Florida coasts, but the amendment affects many other States than just his own. As such, I urge my colleagues to vote ''no.''

I reserve the balance of my time.

Mr. MURPHY of Florida. Mr. Chair, I yield such time as she may consume to the gentlewoman from Florida (Ms. GRAHAM), another champion for the environment and a champion for Florida.

□ 0140

Ms. GRAHAM. Mr. Chairman, I thank Mr. MURPHY for yielding. I appreciate this opportunity of speaking for the same purpose I spoke to about an hour ago, but a different amendment.

I would just like to say, living in north Florida, I have seen firsthand the devastation that the BP oil spill created for our coastal communities. There are communities in my district that have still not recovered. I support energy independence, but Florida's beaches add billions of dollars to our economy. Drilling off our coast is not worth the risk to our environment or our economy.

This amendment reaffirms the current drilling ban by preventing seismic testing off Florida's beaches. I am proud to support it with my fellow Floridians in a bipartisan nature, and I hope my colleagues will join us in protecting Florida's beaches.

Mr. CALVERT. Mr. Chair, I urge a ''no'' vote, and I yield back the balance of my time.

Mr. MURPHY of Florida. Mr. Chair, I appreciate the chairman's hard work on this bill, and I hope he will take a moment to consider the united front that we stand in Florida on a bipartisan measure to be against this. But we oppose this practice because of its many impacts on the State and the animals that move around. They are not simply off our shore. They are all over the place. I hope the gentleman considers that.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. MURPHY).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. MURPHY of Florida. Mr. Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Florida will be postponed.

AMENDMENT NO. 73 OFFERED BY MR. NEWHOUSE

The Acting CHAIR. It is now in order to consider amendment No. 73 printed in House Report 114–683.

Mr. NEWHOUSE. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used by the Secretary of the Interior to treat any gray wolf in any of the 48 contiguous States or the District of Columbia as an endangered species or threatened species under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) after June 13, 2017.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Washington (Mr. NEWHOUSE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Washington.

Mr. NEWHOUSE. Mr. Chairman, I rise today to offer an amendment that would prohibit the Department of the Interior and the U.S. Fish and Wildlife Service from using any funds to continue treating the gray wolf under ESA after June 13, 2017—providing these agencies with funding to continue managing the gray wolf for nearly a year—more than half enough time to work with States to develop and implement individual State management plans that would go into effect when Federal management ends.

Mr. Chairman, this is an issue of extreme importance to my home State of Washington where the gray wolf is listed in the western two-thirds of the State but is delisted in the eastern third. This fragmented listing means there are no geographic barriers to prevent wolves from traveling between listed and delisted areas, posing a risk to people's lives, farming, and ranching in the region.

Unfortunately, this issue should already be settled. On June 13, 2013, the Service published a proposed rule to remove the gray wolf from the List of Endangered and Threatened Wildlife. It made this determination after evaluating ''the classification status of gray wolves currently listed in the contiguous U.S.'' and found the ''best available scientific and commercial information indicates that the currently listed entity is not a valid species under the Act.''

The statutory purpose of ESA is to recover a species to the point where it no longer is considered endangered or threatened. The gray wolf is currently found in nearly 50 countries around the world, and the Wolf Specialist Group at the International Union for Conservation Nature has placed the species in the category of ''least concern globally'' for risk of extinction.

Mr. Chairman, the gray wolf population has grown substantially across its range and is now considered to be recovered, and, therefore, it no longer merits protection under ESA. However, my amendment does not delist the gray wolf but encourages the Service to move forward with its proposed delisting rule.

It restricts funding for Federal management after June 13, 2017—4 years after the original delisting rule was first published—providing more than enough time for the Service to finalize the rule, as well as to work with individual States to develop and implement their respective State management plans. This approach will support an orderly transition to State-level management and allow State wildlife officials to more effectively manage wolf populations, which has proven successful in States such as Idaho, Montana, Wyoming, Minnesota, Wisconsin, and Michigan.

My amendment is simple. It provides Interior and the Service with an incentive to move forward with the delisting that the agency itself said is necessary and supported by the best available science evidence and data.

I urge my colleagues to support this commonsense amendment.

I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I claim time in opposition to the amendment.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chair, as the gentleman pointed out, the wolf is an animal which exists in the great State of Minnesota, where I am from. This is not an issue that I am unfamiliar with, having worked on it in the State house when the Federal Government and the State were coming to fruition on how to protect this iconic American species.

But this amendment is an attack on that species. The work of the Keystone species, as we both know, plays a vital role in keeping our ecosystem healthy. Deer populations, the gentleman and I, being familiar with that, know how important they are to the entire ecosystem. It is also an animal to my Native American brothers and sisters in Minnesota and the surrounding area that have a deep kinship and bond with. In fact, at a wolf roundtable I had, I heard directly from many tribal leaders that the protections that are afforded under the Endangered Species Act for gray wolves is the only way in which they have been able to keep wolf hunts away or out of the tribal reservation boundaries.

I understand many of my colleagues have very strong feelings about listing and delisting and the way it affects their States, but currently, this is in the courts right now. We don't know how the courts are going to come down on its ruling, so I think we should not interfere in what is a court process.

The Endangered Species Act also exists to offer necessary protections and ensures species survival, which the majority of my constituents and constituents all across the United States support.

And this is the same law that helped successfully restore another iconic American system: the bald eagle.

This amendment would restrict the Department of the Interior's ability to implement the Endangered Species Act. However, it does not alter the protection for the endangered wolves in the State. Regardless of one's position on species protections, the amendment is problematic.

Its restrictions will ultimately hurt farmers, ranchers, landowners, and business owners because under this amendment the Fish and Wildlife Service would not be able to offer any exemptions or permits for incidental killings of wolves to landowners, ranchers, and other parties who might need them. Right now, the way the law stands, they can do that. If this amendment were to pass, they would not be able to do that.

The prohibition against accidental kills or takes would remain, and it would still be legally enforceable. Constituents in these States would either have to stop any activity that led to the taking of wolves or they would be put in harm's way to lawsuits and heavy penalties.

So I urge my colleagues to oppose the amendment.

I reserve the balance of my time.

Mr. NEWHOUSE. Mr. Chairman, I do appreciate the gentlewoman's knowledge and work on this issue in her home State of Minnesota.

However, I think it is time that we in this country declare a success, declare a win when it comes to the gray wolf. There are at least 6,000 wolves in the Great Lakes States, the Rocky Mountain States, the Pacific and Northwest States; 14,000 in the whole United States. As I said before, this is no longer an endangered species. It does not fit the criteria for endangered species.

□ 0150

My own State Fish and Wildlife Department 3 years in a row has sent letters to Congress asking and pointing out the reasons why the wolf could be, should be delisted.

You talk about coexisting with other species. If you look at the elk population of Yellowstone, in the 10 years between 1996 and 2006, the population has been decimated by 50 percent. If you look at the Shiras moose population of Utah, it has been decimated by 90 percent because of these healthy populations of wolves. I think there are issues that we are experiencing because of being unable to manage them in ways that States have proven that they are capable of doing.

It does not take away the ability for States to do those kind of things. The Federal Government fully has, until June 30 of 2017, to continue managing the wolf in the way it does now. This just sets a timeline, provides an incentive for the agency to move forward with its own rule and the process that has been in place.

Mr. Chairman, I yield back the balance of my time.

Ms. MCCOLLUM. I thank the gentleman. I think we just disagree on the timing of this amendment and what this amendment would actually lead to have happen in our States and our communities. It is in the courts right now. The courts could very well rule in a way that you would be very pleased and very satisfied with, and I think we should let the court procedure take place.

Simply put, in my opinion, this amendment is bad for wolves, bad for our ecosystem, bad for business, and my constituents think it would be a really bad thing to have move forward. I urge my colleagues to oppose the amendment.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Washington (Mr. NEWHOUSE).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Ms. MCCOLLUM. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Washington will be postponed.

AMENDMENT NO. 74 OFFERED BY MR. NEWHOUSE

The Acting CHAIR. It is now in order to consider amendment No. 74 printed in House Report 114–683.

Mr. NEWHOUSE. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. _____. None of the funds made available by this Act may be used by the Administrator of the Environmental Protection Agency to issue any regulation under the Solid Waste Disposal Act (42 U.S.C. 6901 et seq.) that applies to an animal feeding operation, including a concentrated animal feeding operation and a large concentrated animal feeding operation, as such terms are defined in section 122.23 of title 40, Code of Federal Regulations.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Washington (Mr. NEWHOUSE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Washington.

Mr. NEWHOUSE. Mr. Chairman, I rise today to offer an amendment that I know the gentlewoman from Minnesota will like on an issue critical to livestock farmers, not just in my State and district, but across the country.

In 2013, the Environmental Protection Agency approached four dairies in Washington State about high nitrate levels in nearby wells, suspecting semi-permeable manure lagoons may be the cause. The dairies entered into a consent decree with EPA to identify and treat the cause if it was, in fact, stemming from the dairies.

Disturbingly, an environmental group FOIA'd the information the dairies provided to EPA and used it to file a citizen suit under the Resource Conservation and Recovery Act of 1976, or RCRA, against the dairies.

Unfortunately, in early 2014 a Federal judge ruled with the environmental group, asserting that dissolved nitrates constituted a solid waste under the law, and high nitrate levels constituted open dumping.

There are a number of problems with this case. However, the biggest one by far is the very law used to file the lawsuit. To be clear, there are a number of laws and regulations both at the State and the Federal level which apply to nutrient management, such as the Safe Drinking Water Act or the Clean Water Act. The problem is, Congress never intended RCRA to be used to regulate agriculture. In fact, EPA expresses that RCRA does not apply to agricultural waste, including manure and crop residue, returned to the soil as fertilizers or soil conditioners.

I don't know how you can get much clearer than nutrient management was not intended to be governed under this law; and, unfortunately, this ruling has left agriculture producers in a legal gray area trying to figure out exactly how to comply with the law that was not intended to regulate them.

All this decision has done is to create a culture of fear and distrust between farmers and regulatory agencies. If you are a good steward and come forward to proactively address problems, all you are doing is making yourself a target for lawsuits. Also, it creates a fear that a judge could capriciously decide that you are subject to a law despite clear intent that the law does not apply to you. Mr. Chairman, farmers rely on the land and water being clean and want to be good environmental stewards, and this self-defeating culture is not one we want to cultivate.

Mr. Chairman, my amendment does nothing to prevent EPA from enforcing current regulations under RCRA. It does nothing to prevent EPA from issuing or enforcing Clean Water Act or Safe Drinking Water Act rules. All my amendment does is prevent EPA from issuing and expanding new regulations under RCRA that would reflect this poor interpretation of current law.

While I am not aware of a desire by EPA to do this, unfortunately, there have been a number of other recent legal precedents directing EPA to take actions they didn't want to take. This amendment will ensure EPA's current regulations stand until Congress has the ability to weigh in and reassert its intent.

Mr. Chairman, no one is saying livestock producers, like all Americans, do not share in the responsibility of good environmental stewardship. They certainly do. But there already exists appropriate laws and regulations intended to govern these activities, and there are ones that are not intended to. We, as Members of Congress, have a responsibility to make that clarification, which is what my amendment takes steps to do.

I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I claim time in opposition.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes in opposition.

Ms. MCCOLLUM. Mr. Chairman, to my colleague, I think we both would agree that drinking water is critical and limited in some of our rural communities, and we need to work together to address real threats to those sacred and precious resources. We should be protecting those communities from irresponsible factory farms rather than shielding large corporations from liability when their actions do make people sick. I think we probably both agree on that.

But your amendment isn't about drinking water. It is about RCRA. Your amendment prohibits the EPA from, maybe in the future, regulating an animal feed operation under RCRA, which is the Resource Conservation and Recovery Act.

Right now, the EPA does not regulate animal feeding operations, and the Agency has no immediate plans to develop or issue such regulations, so this amendment is unnecessary, and I strongly oppose it because it also gets involved in blocking the EPA Administrator from working on possibly anything else in the future that we might agree that would affect drinking water, which I don't think is part of this.

So the fact that RCRA does not regulate animal feeding operations underneath this statute and the Agency has no immediate plans to do it, and the way that the defunding is happening, I just have to oppose this amendment at this time.

Mr. Chair, if I could just say something about some of these amendments, I understand that sometimes people are fearful of what may or may not happen in the future, and so we have had many amendments that have either interjected before a court has ruled or interjected before a final rulemaking has taken place or interjected before all the public comment has been taken in consideration.

I just think that the authorizing committee needs to be looking at what happens in public comment, and then if the Congress disagrees with a rule that comes out, that is when our role is most appropriate. I don't think we should have a role in predicting the future. I oppose this amendment.

I yield back the balance of my time.

Mr. NEWHOUSE. Mr. Chairman, I do appreciate the gentlewoman's statement that we must work together to protect critical resources, and that is exactly why I am presenting this amendment for our consideration, so that dairies that want to do a good job know which rules they need to follow. Is it the Clean Water Act, is it the Safe Drinking Water Act or is it the RCRA rules? They need to know, and they can't be brought to court, being sued under rules that they didn't realize that they were supposed to be following.

It is like if you are driving down the freeway going 70 miles an hour, and the State patrolman pulls up and says, I am sorry, sir, today the speed limit is only 45. How are you supposed to know that if it is not posted? That is the kind of simplistic direction certainty that we are trying to give farmers across the country, so that is the reason for the amendment.

Certainly, I agree, EPA is not making plans to use RCRA to promulgate new rules, which is exactly why it shouldn't be a problem for us to be able to put that forward, because they are not. It shouldn't be a problem, so we are not going to be standing in their way.

□ 0200

Dairies are being sued by environmental groups, and judges are making rulings using RCRA rules as a basis for the decisions. And so that is why I think it is important for us to reassert Congress' original intention as well as EPA's clear regulations. We have to reassert that to keep clarity and certainty for our farmers and ranchers so that they can better protect our natural resources.

Mr. Chairman, I urge adoption of the amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Washington (Mr. NEWHOUSE).

The amendment was agreed to.

AMENDMENT NO. 75 OFFERED BY MR. NEWHOUSE

The Acting CHAIR. It is now in order to consider amendment No. 75 printed in House Report 114–683.

Mr. NEWHOUSE. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. For ''United States Fish and Wildlife Service–Resource Management'' to reinstate the wolf-livestock loss demonstration program as authorized by Public Law 111–11, there is hereby appropriated, and the amount otherwise provided by this Act for ''Environmental Protection Agency–Environmental Programs and Management'' is hereby reduced by, $1,000,000.

The Acting CHAIR. Pursuant to House Resolution 820, the gentleman from Washington (Mr. NEWHOUSE) and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Washington.

Mr. NEWHOUSE. Mr. Chairman, I rise this morning to offer an amendment that would restore funding for the Wolf Livestock Loss Demonstration Program.

This program assists livestock producers in undertaking proactive, nonlethal activity to reduce the livestock loss from predation by wolves, and addresses livestock losses caused by wolves.

Mr. Chairman, this demonstration program was authorized in 2009 under a Democratic administration, and $1 million in funding was appropriated in the FY 2010 Interior and Environment Appropriations Act.

Since its inception, the Wolf Livestock Demonstration Program has played a critical role in minimizing conflicts with wolves while providing ranchers with much-needed support for non-lethal activities and another tool to minimize their livestock losses from wolves.

Grants provided by this program go to 10 States with significant wolf populations, including my home State of Washington, and support each State's highest priority needs in assisting livestock producers in dealing with predation by wolves. The grants provided by this program are administered by the U.S. Fish and Wildlife Service and stipulates that the Federal cost share not exceed 50 percent.

Mr. Chairman, this program has been funded every year since 2010. My amendment would continue this funding at the 2010 level, respecting our country's current fiscal situation and tight budgetary guidelines.

The Wolf Livestock Loss Demonstration Program encourages the wider use of nonlethal programs by livestock owners and ranchers who frequently rely on lethal control methods to address livestock-wolf conflict.

As wolf populations continue to grow across the Lower 48, it is vital that we continue this demonstration program in order to benefit livestock producers willing to take proactive measures to protect not only their livestock, but wolves as well.

Mr. Chairman, I reserve the balance of my time.

Ms. MCCOLLUM. Mr. Chairman, I claim the time in opposition.

The Acting CHAIR. The gentlewoman from Minnesota is recognized for 5 minutes.

Ms. MCCOLLUM. Mr. Chairman, I want to be very clear. I think people who lose livestock to wolf predation should be reimbursed. I want to be very, very clear about that. I supported that as a State legislator, and I support it now. However, in 2014, this program for recouping farmers and ranchers is in the Agriculture bill. The Agriculture bill hasn't come to the floor yet.

EPA has been cut enough. We aren't doing enough for clean drinking water. You have seen the cuts that have been on the floor to fund other programs today.

We have funded this out of Fish and Wildlife, and now you are taking the funds for the Fish and Wildlife out of the Environmental Protection Agency. This belongs in the Agriculture bill.

And so, in effect, what you are doing—because you continue to fund it out of the Interior bill, we are going to have a significant reduction to the EPA. The EPA was already reduced $164 million below 2016. These deep reductions impact the ability of the EPA to protect human health and the health of our environment. It jeopardizes our ability to ensure that there is clean air and clean water for families today and for future generations.

I just cannot support reducing the EPA any longer. I will join you on an amendment to fund this out of where it belongs—from the 2014 Agriculture bill—but I cannot support it coming out of the EPA. It belongs in the Agriculture bill, where it is authorized.

For that reason, I urge my colleagues to reject this amendment.

Mr. Chairman, I yield back the balance of my time.

Mr. NEWHOUSE. Mr. Chairman, I would just remind the gentlewoman

that the original program, the demonstration program, was authorized in 2009, and then $1 million was appropriated in the 2010 Interior and Environment Appropriations Act. And so it is just being consistent with what we have done as a Congress before I got here.

Ms. MCCOLLUM. Will the gentleman yield?

Mr. NEWHOUSE. I yield to the gentlewoman from Minnesota.

Ms. MCCOLLUM. In 2009. We passed a law in 2014. The legislation that is in charge of this program now, in 2014, current law, is not in this bill anymore. It is in the Agriculture bill.

And I thank the gentleman for yielding.

Mr. NEWHOUSE. Reclaiming my time, I believe that that is authorizing legislation and this is appropriating legislation. So that would be the only difference that I could see.

I certainly respect the gentlewoman has much more experience than I have, but I would still offer this amendment. It has been a good program in helping livestock producers as well as also being safer for the wolf population.

Mr. Chairman, I ask for support of the amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Washington (Mr. NEWHOUSE).

The amendment was agreed to.

Mr. CALVERT. Mr. Chairman, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. NEWHOUSE) having assumed the chair, Mr. COLLINS of Georgia, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 5538) making appropriations for the Department of the Interior, environment, and related agencies for the fiscal year ending September 30, 2017, and for other purposes, had come to no resolution thereon.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. JOLLY (at the request of Mr. MCCARTHY) for today on account of a death in the family.

Ms. JACKSON LEE (at the request of Ms. PELOSI) for today until 10 p.m. on account of official business.

SENATE CONCURRENT RESOLUTION REFERRED

A concurrent resolution of the Senate of the following title was taken from the Speaker's table and, under the rule, referred as follows:

S. Con. Res. 44. Concurrent resolution recognizing the sunflower as the flower for military caregivers; to the committee on Armed Services.

ADJOURNMENT

Mr. COLLINS of Georgia. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 2 o'clock and 9 minutes a.m.), under its previous order, the House adjourned until today, Wednesday, July 13, 2016, at 10 a.m. for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

5988. A letter from the Acting Under Secretary, Personnel and Readiness, Department of Defense, transmitting a letter authorizing Rear Admiral (lower half) Timothy G. Szymanski, United States Navy, to wear the insignia of the grade of rear admiral, pursuant to 10 U.S.C. 777(b)(3)(B); Public Law 104-106, Sec. 503(a)(1) (as added by Public Law 108-136, Sec. 509(a)(3)); (117 Stat. 1458); to the Committee on Armed Services.

5989. A letter from the Acting Under Secretary, Personnel and Readiness, Department of Defense, transmitting a letter authorizing Brigadier General Douglas M. Gabram, United States Army, to wear the insignia of the grade of major general, pursuant to 10 U.S.C. 777(b)(3)(B); Public Law 104-106, Sec. 503(a)(1) (as added by Public Law 108-136, Sec. 509(a)(3)); (117 Stat. 1458); ; to the Committee on Armed Services.

5990. A letter from the Under Secretary, Acquisition, Technology, and Logistics, Department of Defense, transmitting a letter notifying Congress that the report on the inventory of the activities performed during the preceding fiscal year should be submitted by August 2016, pursuant to 10 U.S.C. 2330a(c)(1); Public Law 107-107, Sec. 801(c); (115 Stat. 117); to the Committee on Armed Services.

5991. A letter from the Acting Under Secretary, Personnel and Readiness, Department of Defense, transmitting the National Guard Youth Challenge Program Annual Report for Fiscal Year 2015, pursuant to 32 U.S.C. 509(k); Public Law 105-85, Sec. 1076(a); (111 Stat. 1914); to the Committee on Armed Services.

5992. A letter from the Alternate OSD FRLO, Office of the Secretary, Department of Defense, transmitting the Department's Major final rule — Transition Assistance Program (TAP) for Military Personnel [Docket ID: DOD-2013-OS-0236] (RIN: 0790-AJ17) received July 11, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Armed Services.

5993. A letter from the Director, Office of Legislative Affairs, Federal Deposit Insurance Corporation, transmitting the Corporation's final rule — Record Retention Requirements (RIN: 3064-AE25) received July 11, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Financial Services.

5994. A letter from the Director, Office of Legislative Affairs, Federal Deposit Insurance Corporation, transmitting the Corporation's interim final rule — Rules of Practice and Procedure (RIN: 3064-AE43) received July 11, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Financial Services.

5995. A letter from the Director, Office of Legislative Affairs, Federal Deposit Insurance Corporation, transmitting the Corporation's final rule — Treatment of Financial Assets Transferred in Connection With a Securitization or Participation (RIN: 3064-AE38) received July 11, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Financial Services.

5996. A letter from the Regulations Coordinator, Substance Abuse and Mental Health Services Administration, Department of Health and Human Services, transmitting the Department's Major final rule — Medication Assisted Treatment for Opioid Use Disorders (RIN: 0930-AA22) received July 7, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5997. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's direct final rule — Air Plan Approval; NC; Fine Particulate Matter National Ambient Air Quality Standards Revision [EPA-R04-OAR-2016-0106; FRL-9948-95-Region 4] received July 7, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5998. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Implementation Plans; Washington: Spokane Second 10-Year Carbon Monoxide Limited Maintenance Plan [EPA-R10-OAR-2016-0290; FRL-9948-97-Region 10] received July 7, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5999. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval of Iowa's Air Quality Implementation Plans; Polk County Board of Health Rules and Regulations, Chapter V, Revisions [EPA-R07-OAR-2016-0045; FRL-9948-84-Region 7] received July 7, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

6000. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Determination of Attainment; Atlanta, Georgia; 2008 Ozone National Ambient Air Quality Standards [EPA-R04-OAR-2015-0839; FRL-9948-93-Region 4] received July 7, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

6001. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Expedited Approval of Alternative Test Procedures for the Analysis of Contaminants Under the Safe Drinking Water Act; Analysis and Sampling Procedures [EPA-HQ-OW-2016-0281; FRL-9948-54-OW] received July 7, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

6002. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — National Emission Standards for Hazardous Air Pollutant Emissions: Petroleum Refinery Sector Amendments [EPA-HQ-OAR-2010-0682; FRL-9948-92-OAR] (RIN: 2016-AS83) received July 7, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

6003. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Air Quality Designations for the 2010 Sulfur Dioxide (SO2) Primary

National Ambient Air Quality Standard — Round 2 [EPA-HQ-OAR-2014-0464; FRL-9948-87-OAR] received July 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

6004. A letter from the Chief of Staff, Media Bureau, Federal Communications Commission, transmitting the Commission's final rule — Amendment of Section 73.622(i), Post-Transition Table of DTV Allotments, Television Broadcast Stations (Cordele, Georgia) [MB Docket No.: 16-123] (RM-11766) received July 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

6005. A letter from the Chief of Staff, Media Bureau, Federal Communications Commission, transmitting the Commission's final rule — Amendment of Section 73.622(i), Post-Transition Table of DTV Allotments, Television Broadcast Stations (Tolleson, Arizona) [MB Docket No.: 16-93] (RM-11764) received July 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

6006. A letter from the Chief Executive Officer, U.S. Anti-Doping Agency, transmitting the Agency's 2015 Annual Report and Financial Audit, pursuant to 21 U.S.C. 2002(b); Public Law 109-469, Sec. 702(b); (120 Stat. 3534); to the Committee on Energy and Commerce.

6007. A letter from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting the Department's final rule — Amendments to Existing Validated End-User Authorization in the People's Republic of China: Advanced Micro Devices, Inc. [Docket No.: 160303186-6186-01] (RIN: 0694-AG91) received July 5, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Foreign Affairs.

6008. A letter from the Assistant Secretary for Export Administration, Bureau of Industry and Security, Department of Commerce, transmitting the Department's final rule — Temporary General License: Extension of Validity [Docket No.: 160106014-6530-03] (RIN: 0694-AG82) received July 5, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Foreign Affairs.

6009. A letter from the Director, International Cooperation, Office of the Under Secretary, Acquisition, Technology, and Logistics, Department of Defense, transmitting informing the Congress of the Department's intent to sign a Memorandum of Understanding with the United Kingdom of Great Britain and Northern Ireland Transmittal No. 19-16, pursuant to 22 U.S.C. 2767(f); Public Law 90-629, Sec. 27(f) (as amended by Public Law 113-27 6, Sec. 208(a)(4)); (128 Stat. 2993); to the Committee on Foreign Affairs.

6010. A letter from the Director, Office of Economic Impact and Diversity, Department of Energy, transmitting the Department's FY 2015 No FEAR Act report, pursuant to Public Law 107-174, 203(a); (116 Stat. 569); to the Committee on Oversight and Government Reform.

6011. A letter from the Attorney-Advisor, Department of Transportation, transmitting a notification of the designation of acting officer and change in previously submitted reported information, pursuant to 5 U.S.C. 3349(a); Public Law 105-277, 151(b); (112 Stat. 2681-614); to the Committee on Oversight and Government Reform.

6012. A letter from the Senior Vice President and Chief Financial Officer, Federal Home Loan Bank of San Francisco, transmitting the Federal Home Loan Bank of San Francisco 2015 Annual Report and management statement on the system of internal controls, pursuant to 31 U.S.C. 9106(a)(1); Public Law 97-258 (as amended by Public Law 101-576, Sec. 306(a)) (104 Stat. 2854); to the Committee on Oversight and Government Reform.

6013. A letter from the Chairman, National Transportation Safety Board, transmitting a list of activities performed by federal government sources for the executive agency that are not inherently governmental functions, pursuant to 31 U.S.C. 501 note; Public Law 105-270, Sec. 2(c)(1)(A); (112 Stat. 2382); ; to the Committee on Oversight and Government Reform.

6014. A letter from the Assistant Secretary, Land and Minerals Management, Department of the Interior, transmitting the Department's Major final rule — Oil and Gas and Sulfur Operations on the Outer Continental Shelf — Requirements for Exploratory Drilling on the Arctic Outer Continental Shelf [Docket ID: BSEE-2013-0011; 16XE1700DX EX1SF0000.DAQ000 EEEE500000] (RIN: 1082-AA00) received July 7, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Natural Resources.

6015. A letter from the Acting Director, Office of Sustainable Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's temporary rule — Fisheries of the Northeastern United States; Atlantic Sea Scallop Fishery; Closure of the Nantucket Lightship North Access Area to General Category Individual Fishing Quota Scallop Vessels [Docket No.: 151210999-6348-02] (RIN: 0648-XE681) received July 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Natural Resources.

6016. A letter from the Assistant Attorney General, Department of Justice, transmitting the annual report entitled, ''PRO IP Act FY 2015'', pursuant to 42 U.S.C. 3713d(a); Public Law 110-403, Sec. 404(a); (122 Stat. 4274); to the Committee on the Judiciary.

6017. A letter from the Shareholder, Elliott Davis Decosimo, LLC, transmitting the annual 2015 financial report for the Congressional Medal of Honor Society of the United States of America, in accordance with Public Law 88-504, (36 U.S.C. 1101); to the Committee on the Judiciary.

6018. A letter from the President, National Council on Radiation Protection and Measurements, transmitting the Council's 2015 Annual Report, pursuant to 36 U.S.C. 10101(b)(1) and 150909; to the Committee on the Judiciary.

6019. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Ocean Disposal; Amendments to Restrictions on Use of Dredged Material Disposal Sites in the Central and Western Regions of Long Island Sound; Connecticut [EPA-R01-OW-2016-0068; FRL-9948-61-Region 1] received July 7, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

6020. A letter from the Office Program Manager, Office of Regulation Policy and Management, Office of the Secretary (00REG), Department of Veterans Affairs, transmitting the Department's direct final rule — Authority to Solicit Gifts and Donations (RIN: 2900-AP75) received July 8, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Veterans' Affairs.

6021. A letter from the Federal Register Certifying Officer, Office of the Chief Counsel, Department of the Treasury, transmitting the Department's final rule — Sale and Issue of Marketable Book-Entry Treasury Bills, Notes, and Bonds received July 11, 2016, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Ways and Means.

6022. A letter from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting the metrics for achieving widespread electronic health record interoperability, pursuant to 42 U.S.C. 1395w-4 note; Public Law 114-10, Sec. 106(b)(1); (129 Stat. 138); jointly to the Committees on Energy and Commerce and Ways and Means.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. HENSARLING: Committee on Financial Services. H.R. 5421. A bill to amend the Securities Act of 1933 to apply the exemption from State regulation of securities offerings to securities listed on a national security exchange that has listing standards that have been approved by the Commission (Rept. 114–684). Referred to the Committee of the Whole House on the state of the Union.

Mr. GOODLATTE: Committee on the Judiciary. H.R. 3394. A bill to amend the Terrorism Risk Insurance Act of 2002 to allow for the use of certain assets of foreign persons and entities to satisfy certain judgments against terrorist parties, and for other purposes; with an amendment (Rept. 114–685). Referred to the Committee of the Whole House on the state of the Union.

Ms. FOXX: Committee on Rules. House Resolution 822. Resolution providing for consideration of the Senate amendment to the House amendment to the bill (S. 764) to reauthorize and amend the National Sea Grant College Program Act, and for other purposes; providing for consideration of the bill (S. 304) to improve motor vehicle safety by encouraging the sharing of certain information; and waiving a requirement of clause 6(a) of rule XIII with respect to consideration of certain resolutions reported from the Committee on Rules (Rept. 114–686). Referred to the House Calendar.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. KINZINGER of Illinois (for himself, Mrs. BLACKBURN, Mr. YOUNG of Indiana, Mr. NUNES, Mr. SHIMKUS, Mr. ABRAHAM, Mr. MILLER of Florida, Mr. GIBSON, Mr. OLSON, Mr. HECK of Nevada, Mr. HUNTER, Mr. DIAZ-BALART, Mr. CURBELO of Florida, Mr. CULBERSON, Mrs. BLACK, Mr. CRAMER, Mrs. WAGNER, Mr. BOUSTANY, Mr. MESSER, Mr. HOLDING, Mr. ROONEY of Florida, and Mr. KING of New York):

H.R. 5727. A bill to impose sanctions on persons that threaten the peace or stability of Iraq or the Government of Iraq; to the Committee on Foreign Affairs, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. KATKO (for himself, Mr. MCCAUL, Mr. HUDSON, and Mr. CUELLAR):

H.R. 5728. A bill to prohibit scheduled passenger air transportation between the United States and Cuba until a study has been completed regarding security measures and equipment at Cuba's airports, to amend title

49, United States Code, to clarify the role of the Secretary of Homeland Security regarding security standards at foreign airports, and for other purposes; to the Committee on Homeland Security, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. PITTENGER:

H.R. 5729. A bill to prohibit the Secretary of the Treasury from issuing certain licenses in connection with the export or re-export of a commercial passenger aircraft to the Islamic Republic of Iran, to require annual reports by the Secretary of the Treasury and the Export-Import Bank on financing issues related to the sale or lease of such a commercial passenger aircraft or spare parts for such an aircraft, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committee on Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MESSER (for himself, Ms. STEFANIK, and Mr. HURD of Texas):

H.R. 5730. A bill to amend the Internal Revenue Code of 1986 to exclude room and board costs and certain research expenses from gross income of certain students; to the Committee on Ways and Means.

By Mr. CROWLEY:

H.R. 5731. A bill to establish SAVE UP Accounts, and for other purposes; to the Committee on Ways and Means.

By Mr. ENGEL (for himself, Mr. ROYCE, Ms. ROS-LEHTINEN, Mr. DEUTCH, Mr. POE of Texas, Mr. KILDEE, Mr. MESSER, Mr. TED LIEU of California, Mr. KINZINGER of Illinois, Mrs. MCMORRIS RODGERS, Mr. BEYER, Mr. ELLISON, and Mr. LOWENTHAL):

H.R. 5732. A bill to halt the wholesale slaughter of the Syrian people, encourage a negotiated political settlement, and hold Syrian human rights abusers accountable for their crimes; to the Committee on Foreign Affairs, and in addition to the Committees on the Judiciary, and Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BOST:

H.R. 5733. A bill to amend the Agricultural Act of 1961 to modify the limitations applicable to qualified conservation loan guarantees, and for other purposes; to the Committee on Agriculture.

By Mr. CARTER of Texas (for himself, Mr. RUPPERSBERGER, Mr. JONES, Mr. WILLIAMS, Mr. NEUGEBAUER, Mr. ROONEY of Florida, Ms. KAPTUR, Mr. RYAN of Ohio, Mr. HURD of Texas, Mr. FARENTHOLD, Mr. CALVERT, Mr. JOYCE, Mr. OLSON, Mr. POE of Texas, Mr. ROUZER, Mr. YOUNG of Iowa, Mr. CUELLAR, Mr. ADERHOLT, Mr. COOK, Mr. GIBSON, Mr. WEBSTER of Florida, Mr. CRENSHAW, Mr. FRANKS of Arizona, Mr. JODY B. HICE of Georgia, Mr. THORNBERRY, Ms. STEFANIK, Mr. KING of Iowa, Mr. LAMBORN, Mr. COFFMAN, Mr. ZINKE, Mr. AMODEI, Mr. BISHOP of Georgia, Mrs. ELLMERS of North Carolina, Mrs. BLACK, Mr. SENSENBRENNER, Mr. YOUNG of Alaska, Mr. CULBERSON, Mr. LONG, Ms. GRANGER, Mr. MARINO, Mr. FORBES, Mr. SAM JOHNSON of Texas, Mr. YOHO, Mr. LAMALFA, Mr. WOMACK, Mr. FLORES, Mr. HANNA, Mr. KILMER, Mr. GOHMERT, Mr. SMITH of Texas, Mr. COLE, Mr. DIAZ-BALART, Mr. HARRIS, Mr. DESJARLAIS, Mr. MCCAUL, Mr. BABIN, Mr. GARRETT, Mr. MACARTHUR, and Mr. WEBER of Texas):

H.R. 5734. A bill to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to provide for an operation on a live donor for purposes of conducting a transplant procedure for a veteran, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. CHABOT:

H.R. 5735. A bill to authorize the Secretary of State and the Administrator of the United States Agency for International Development to prioritize efforts to support access to primary and secondary education for displaced children, and for other purposes; to the Committee on Foreign Affairs.

By Mr. CURBELO of Florida (for himself and Ms. GRAHAM):

H.R. 5736. A bill to direct the Commissioner of Internal Revenue to conduct a study on the feasibility of notifying a taxpayer that a tax return has been filed in the taxpayer's name; to the Committee on Ways and Means.

By Mr. DANNY K. DAVIS of Illinois (for himself, Mr. LEWIS, Mr. MCDERMOTT, and Mr. LANGEVIN):

H.R. 5737. A bill to ensure that foster children are able to use their Social Security and Supplemental Security Income benefits to address their needs and improve their lives; to the Committee on Ways and Means.

By Ms. FUDGE (for herself and Mr. SCOTT of Virginia):

H.R. 5738. A bill to amend the Elementary and Secondary Education Act of 1965 to establish the Stronger Together Program; to the Committee on Education and the Workforce.

By Mr. GALLEGO (for himself, Mr. HONDA, Ms. LEE, Ms. KELLY of Illinois, Ms. CLARK of Massachusetts, and Mr. CAPUANO):

H.R. 5739. A bill to prohibit the transfer, loan, or other disposition of a machinegun or semiautomatic assault weapon to an individual under 16 years of age; to the Committee on the Judiciary.

By Mr. ISRAEL:

H.R. 5740. A bill to hold war crimes suspects and Nazi war criminals accountable by encouraging foreign governments to more efficiently prosecute, extradite, deport, or accept for deportation such war crimes suspects and Nazi war criminals, and for other purposes; to the Committee on Foreign Affairs.

By Ms. JENKINS of Kansas (for herself, Mr. GUINTA, Mr. OLSON, and Mr. ROKITA):

H.R. 5741. A bill to amend title 44, United States Code, to require the Director of the Government Publishing Office to distribute the Federal Register to Congressional offices only in an electronic format, and for other purposes; to the Committee on Oversight and Government Reform, and in addition to the Committee on House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. KIND:

H.R. 5742. A bill to amend the Immigration and Nationality Act to provide for the admission of certain sons and daughters of citizens of the United States, which citizens served on active duty in the Armed Forces of the United States abroad, and for other purposes; to the Committee on the Judiciary.

By Mr. KING of New York (for himself, Mr. PASCRELL, and Mr. REICHERT):

H.R. 5743. A bill to require adequate reporting on the Public Safety Officers' Benefit program, and for other purposes; to the Committee on the Judiciary.

By Mr. SCHWEIKERT (for himself and Mr. GALLEGO):

H.R. 5744. A bill to amend the FAA Modernization and Reform Act of 2012 with respect to categorical exclusions granted for next generation flight procedures, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. SMITH of New Jersey (for himself, Mr. ENGEL, Mr. ROYCE, and Mr. MEEKS):

H. Res. 821. A resolution urging the Government of Gabon to respect democratic principles during the August 2016 presidential elections; to the Committee on Foreign Affairs.

By Ms. FOXX (for herself, Mr. COHEN, Mr. CONNOLLY, and Mr. WHITFIELD):

H. Res. 823. A resolution condemning in the strongest terms the terrorist attacks in Istanbul, Turkey, on June 28, 2016, that resulted in the loss of at least 44 lives; to the Committee on Foreign Affairs.

By Ms. NORTON:

H. Res. 824. A resolution expressing support for dancing as a form of valuable exercise and of artistic expression, and for the designation of July 30, 2016, as National Dance Day; to the Committee on Energy and Commerce.

MEMORIALS

Under clause 3 of rule XII, memorials were presented and referred as follows:

281. The SPEAKER presented a memorial of the Legislature of the State of New Hampshire, relative to House Concurrent Resolution 40, requesting the Congress of the United States call a convention of the states to propose amendments to the Constitution of the United States; to the Committee on the Judiciary.

282. Also, a memorial of the General Assembly of the State of Ohio, relative to House Concurrent Resolution No. 7, urging the President and the Congress of the United States to preserve the tax-exempt status of municipal bonds; to the Committee on Ways and Means.

283. Also, a memorial of the Legislature of the State of Louisiana, relative to House Concurrent Resolution No. 12, to memorialize the United States Congress to take such actions as are necessary to review and consider eliminating provisions of federal law which reduce Social Security benefits for those receiving pension benefits from federal, state, or local government retirement or pension systems, plans, or funds; to the Committee on Ways and Means.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. KINZINGER of Illinois:

H.R. 5727.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the U.S. Constitution

By Mr. KATKO:

H.R. 5728.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18—To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United

States or in any Department or Officer thereof.

By Mr. PITTENGER:

H.R. 5729.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3, the Commerce Clause.

By Mr. MESSER:

H.R. 5730.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 of Section 8 of Article I:

By Mr. CROWLEY:

H.R. 5731.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 Section 8 of Article 1:

The Congress shall have the power to lay and collect Taxes, Duties, Imposts, and Excises, to pay the Debts, and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States.

By Mr. ENGEL:

H.R. 5732.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution.

By Mr. BOST:

H.R. 5733.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 of Section 8 of Article I of the United States Constitution, which provides Congress with the ability to enact legislation necessary and proper to effectuate its purpose in taxing and spending.

By Mr. CARTER of Texas:

H.R. 5734.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 1 of the Constitution, which grants Congress the power to provide for the common Defense and general Welfare of the United States.

By Mr. CHABOT:

H.R. 5735.

Congress has the power to enact this legislation pursuant to the following:

Congress has the ability to authorize the Secretary of State and the Administrator of the United States Agency for International Development to advance ongoing efforts for programs that are in the best interest of the United States.

By Mr. CURBELO of Florida:

H.R. 5736.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the United States Constitution

By Mr. DANNY K. DAVIS of Illinois:

H.R. 5737.

Congress has the power to enact this legislation pursuant to the following:

Article I of the Constitution and its subsequent amendments and further clarified and interpreted by the Supreme Court of the United States.

By Ms. FUDGE:

H.R. 5738.

Congress has the power to enact this legislation pursuant to the following:

Article 1, section 8, clause 3, the Commerce Clause.

By Mr. GALLEGO:

H.R. 5739.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

By Mr. ISRAEL:

H.R. 5740.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8.

By Ms. JENKINS of Kansas:

H.R. 5741.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18.

''To make all Law which shall be necessary and proper for carrying into Execution the foregoing powers . . .''

By Mr. KIND:

H.R. 5742.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8, Clause 4.

By Mr. KING of New York:

H.R. 5743.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1

The Congress shall have Power to lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;

By Mr. SCHWEIKERT:

H.R. 5744.

Congress has the power to enact this legislation pursuant to the following:

Article 1, section 8

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resoultions, as follows:

H.R. 112: Mr. THOMPSON of Mississippi.
H.R. 213: Ms. SPEIER.
H.R. 379: Mr. DEFAZIO and Mr. MCKINLEY.
H.R. 465: Mr. ROSKAM.
H.R. 499: Mr. COFFMAN.
H.R. 508: Mr. CURBELO of Florida and Mr. DELANEY.
H.R. 546: Mr. RUIZ.
H.R. 816: Mr. DAVIDSON.
H.R. 825: Mr. MCCLINTOCK.
H.R. 835: Mr. LUCAS.
H.R. 842: Mr. MCCLINTOCK.
H.R. 863: Mr. MULLIN and Mr. PETERS.
H.R. 997: Mr. CARTER of Georgia.
H.R. 1220: Mr. EMMER of Minnesota.
H.R. 1343: Ms. HAHN.
H.R. 1347: Mr. COHEN and Mr. HUFFMAN.
H.R. 1459: Mr. TAKANO, Mr. HUFFMAN, Mr. KIND, Ms. NORTON, Mr. QUIGLEY, Ms. SLAUGHTER, and Mr. FOSTER.
H.R. 1545: Mr. MCKINLEY.
H.R. 1559: Mr. POLIQUIN.
H.R. 1859: Mr. ZINKE.
H.R. 1943: Mr. HUFFMAN.
H.R. 1961: Ms. CLARKE of New York.
H.R. 2103: Mr. HONDA, Mr. HASTINGS, Ms. KAPTUR, Mr. GALLEGO, Mr. LANGEVIN, and Ms. ROYBAL-ALLARD.
H.R. 2156: Mr. CALVERT.
H.R. 2216: Mr. MURPHY of Florida.
H.R. 2274: Mr. BEN RAY LUJÁN of New Mexico.
H.R. 2315: Mr. SENSENBRENNER and Mrs. BLACK.
H.R. 2403: Mr. SMITH of New Jersey.
H.R. 2404: Mr. KENNEDY.
H.R. 2663: Mr. CURBELO of Florida and Mr. DELANEY.
H.R. 2680: Mr. MICHAEL F. DOYLE of Pennsylvania.
H.R. 2694: Mr. COOPER and Mr. FOSTER.
H.R. 2726: Mr. HARPER, Mr. HECK of Nevada, Mr. RENACCI, Mr. JOYCE, Mr. STEWART, and Mr. LARSEN of Washington.
H.R. 2737: Mr. PALAZZO, Mr. COSTA, and Mr. WEBER of Texas.
H.R. 2739: Mr. MCKINLEY and Ms. EDWARDS.
H.R. 2883: Mr. CURBELO of Florida and Mr. DELANEY.
H.R. 2903: Mr. VALADO and Mr. BRENDAN F. BOYLE of Pennsylvania.
H.R. 2931: Mr. JOLLY.
H.R. 3012: Mr. ISSA.
H.R. 3051: Mr. THOMPSON of Mississippi.
H.R. 3229: Mr. MEADOWS.
H.R. 3294: Mr. GIBSON.
H.R. 3323: Mr. ZINKE.
H.R. 3411: Ms. MENG.
H.R. 3437: Mr. BRAT.
H.R. 3564: Mr. HUFFMAN.
H.R. 3683: Ms. WASSERMAN SCHULTZ.
H.R. 3742: Mrs. BLACKBURN and Mr. ROKITA.
H.R. 3765: Mr. BOUSTANY.
H.R. 3799: Mr. BROOKS of Alabama.
H.R. 3815: Mr. MARINO and Mr. POLIS.
H.R. 3817: Mr. GENE GREEN of Texas.
H.R. 3886: Mr. GENE GREEN of Texas.
H.R. 3892: Mr. FRELINGHUYSEN.
H.R. 3926: Mr. CUMMINGS and Mr. SERRANO.
H.R. 4143: Mr. BRAT.
H.R. 4155: Mr. PETERS.
H.R. 4177: Mr. COHEN, Ms. ESHOO, Mr. KIND, Mr. CÁRDENAS, Ms. SLAUGHTER, and Mr. COOPER.
H.R. 4184: Mr. THOMPSON of California.
H.R. 4214: Mr. MCGOVERN and Mr. GRAYSON.
H.R. 4223: Ms. VELÁZQUEZ.
H.R. 4247: Mr. FRANKS of Arizona.
H.R. 4298: Mr. YOUNG of Alaska.
H.R. 4310: Mr. BRAT.
H.R. 4365: Mrs. ELLMERS of North Carolina.
H.R. 4428: Mr. GRAVES of Georgia.
H.R. 4442: Mr. PETERS.
H.R. 4479: Mr. SERRANO.
H.R. 4481: Mr. CROWLEY.
H.R. 4559: Mr. GOSAR, Mr. HURT of Virginia, Mr. COLE, Mr. FLEMING, Mr. KLINE, and Mr. BABIN.
H.R. 4567: Mr. GIBSON.
H.R. 4584: Mr. REICHERT.
H.R. 4597: Mr. BRAT.
H.R. 4602: Mr. CONYERS, Ms. JACKSON LEE, Mr. BISHOP of Michigan, and Mr. NADLER.
H.R. 4603: Mr. THOMPSON of Mississippi and Mr. CUMMINGS.
H.R. 4625: Mr. MACARTHUR.
H.R. 4760: Mr. WEBER of Texas.
H.R. 4762: Mr. SENSENBRENNER.
H.R. 4764: Mr. COHEN.
H.R. 4795: Mr. WENSTRUP.
H.R. 4816: Mr. ROUZER and Mr. JENKINS of West Virginia.
H.R. 4828: Mr. MOONEY of West Virginia, Mrs. LOVE, and Mr. GRAVES of Georgia.
H.R. 4867: Mr. MCKINLEY.
H.R. 4932: Mr. RANGEL.
H.R. 4959: Mr. CROWLEY, Mrs. BLACKBURN, Mrs. NOEM, and Mr. ZINKE.
H.R. 5014: Mr. YOUNG of Alaska.
H.R. 5015: Mr. DUFFY.
H.R. 5064: Mr. CARTER of Georgia.
H.R. 5067: Mr. DAVID SCOTT of Georgia, Ms. BROWNLEY of California, Mr. BEYER, Mr. LEVIN, Mr. CICILLINE, and Mr. AL GREEN of Texas.
H.R. 5090: Mr. GIBBS, Mr. MACARTHUR, Mr. HANNA, Mr. UPTON, and Mr. WILLIAMS.
H.R. 5167: Mr. EMMER of Minnesota.
H.R. 5177: Ms. BROWNLEY of California and Mr. DELANEY.
H.R. 5180: Mr. WOODALL, Mr. STEWART, Mr. BABIN, Mr. WILLIAMS, Mr. BISHOP of Utah, and Mr. GENE GREEN of Texas.
H.R. 5182: Mr. MOULTON, Mr. ASHFORD, Mrs. NAPOLITANO, and Mr. MOONEY of West Virginia.
H.R. 5187: Mr. BOST and Mr. LUCAS.
H.R. 5195: Mr. SERRANO, Mr. MCGOVERN, Mr. CARSON of Indiana, and Ms. HAHN.
H.R. 5230: Mr. BISHOP of Utah.
H.R. 5282: Mr. TAKANO and Mrs. NAPOLITANO.
H.R. 5292: Mr. PETERS, Mr. SERRANO, Mr. SMITH of Washington, Mr. MCGOVERN, and Mr. PAYNE.
H.R. 5324: Mr. ROKITA.
H.R. 5351: Mr. ROYCE.
H.R. 5372: Miss RICE of New York.
H.R. 5428: Mr. KNIGHT, Ms. STEFANIK, Mr. BISHOP of Utah, and Mr. GIBSON.

H.R. 5436: Mr. CONYERS and Mr. POCAN.
H.R. 5457: Mr. BOST.
H.R. 5466: Mr. CARTER of Georgia.
H.R. 5488: Mr. FRANKEL of Florida and Miss RICE of New York.
H.R. 5489: Mr. PETERSON, Mrs. WALORSKI, and Mr. BLUM.
H.R. 5506: Mrs. NAPOLITANO.
H.R. 5560: Ms. LEE, Mr. RANGEL, and Mr. POCAN.
H.R. 5568: Mr. MOULTON.
H.R. 5577: Mr. BOUSTANY, Mr. ABRAHAM, Mr. FLEMING, and Mr. GENE GREEN of Texas.
H.R. 5578: Ms. KUSTER.
H.R. 5587: Mr. KENNEDY and Mr. HUFFMAN.
H.R. 5589: Mr. SESSIONS.
H.R. 5593: Mr. HONDA and Mr. ROUZER.
H.R. 5600: Mr. MOULTON.
H.R. 5608: Mr. DESJARLAIS.
H.R. 5614: Mr. RANGEL.
H.R. 5625: Mr. CARNEY and Miss RICE of New York.
H.R. 5628: Mr. ROGERS of Alabama.
H.R. 5631: Mr. SCALISE, Mrs. MCMORRIS RODGERS, Mr. SESSIONS, Mrs. MILLER of Michigan, Mr. MCCAUL, Mr. ROYCE, Mr. NUNES, Mr. THORNBERRY, and Mr. MCCLINTOCK.
H.R. 5646: Mr. PITTENGER and Mr. SMITH of Texas.
H.R. 5654: Mr. CARTER of Georgia, Mr. BOST, Mr. ROUZER, Mr. SMITH of Texas, Mr. TOM PRICE of Georgia, Mr. AMODEI, and Mr. SESSIONS.
H.R. 5659: Mr. ROSKAM.
H.R. 5666: Mr. LUETKEMEYER and Mr. ROUZER.
H.R. 5683: Mr. MOULTON.
H.R. 5686: Ms. SCHAKOWSKY.
H.R. 5691: Mr. SWALWELL of California.
H.R. 5695: Mr. VEASEY.
H.R. 5697: Mr. MULVANEY, Mrs. NOEM, and Mr. CARTER of Georgia.
H.R. 5715: Mr. POMPEO, Mr. KING of New York, Mr. TIBERI, Mr. HOLDING, Mr. DESJARLAIS, Mr. DIAZ-BALART, Mr. KELLY of Pennsylvania, and Mr. SCHWEIKERT.
H.R. 5722: Mr. KELLY of Pennsylvania, Mr. KILMER, Mr. CROWLEY, Mr. BOUSTANY, Ms. GABBARD, Mr. SMITH of Missouri, Mr. SCALISE, Mr. WENSTRUP, Ms. MOORE, Mr. HASTINGS, Mr. RICHMOND, Mr. KILDEE, Mrs. BEATTY, Mr. MULVANEY, Mr. MESSER, Mr. MULLIN, Mr. RUIZ, and Mr. CONNOLLY.
H.J. Res. 22: Mr. CASTRO of Texas and Mr. COOPER.
H. Con. Res. 40: Ms. PLASKETT and Mr. PIERLUISI.
H. Con. Res. 51: Mr. CICILLINE.
H. Con. Res. 114: Mr. DESJARLAIS.
H. Con. Res. 140: Ms. JENKINS of Kansas.
H. Con. Res. 141: Mr. GIBSON, Mr. JONES, Mr. BRADY of Texas, Mr. BRADY of Pennsylvania, Mr. CONYERS, Mr. AL GREEN of Texas, and Mr. BILIRAKIS.
H. Con. Res. 143: Mr. BEYER and Mr. GRIJALVA.
H. Res. 28: Mr. MOULTON and Mr. DENHAM.
H. Res. 94: Mr. WALZ.
H. Res. 112: Mr. CARNEY.
H. Res. 402: Mr. MCCLINTOCK.
H. Res. 467: Mr. PASCRELL, Ms. HAHN, Mr. MOULTON, Mr. MICHAEL F. DOYLE of Pennsylvania, Mr. BUTTERFIELD, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. KILDEE, Mr. JOHNSON of Georgia, Mr. CARNEY, Mr. BECERRA, and Mr. SCHIFF.
H. Res. 567: Mr. MCCLINTOCK.
H. Res. 590: Mr. MESSER.
H. Res. 625: Mr. BRENDAN F. BOYLE of Pennsylvania and Mr. COSTELLO of Pennsylvania.
H. Res. 683: Ms. ESHOO.
H. Res. 728: Ms. JACKSON LEE and Ms. HAHN.
H. Res. 729: Mr. GRIFFITH, Mr. STUTZMAN, Mr. MEEHAN, Mrs. TORRES, Mr. PITTS, Ms. ADAMS, and Mr. HULTGREN.
H. Res. 776: Mr. KIND, Mr. POCAN, Mr. KELLY of Mississippi, and Ms. ESTY.
H. Res. 795: Mr. WALZ.
H. Res. 807: Mr. SMITH of Washington.
H. Res. 808: Mr. HUFFMAN.
H. Res. 810: Mr. MILLER of Florida and Mr. POCAN.
H. Res. 811: Mr. DEFAZIO.
H. Res. 817: Mr. MCCLINTOCK and Mr. BYRNE.

DELETIONS OF SPONSORS FROM PUBLIC BILLS AND RESOLUTIONS

Under clause 7 of rule XII, sponsors were deleted from public bills and resolutions, as follows:

H.R. 5545: Mr. POLIS.

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Senate

The Senate met at 10 a.m. and was called to order by the President pro tempore (Mr. HATCH).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Our Father in Heaven, may Your Name be honored. Today, lead our Senators along the road of humility so that You can exalt them in due time. May they have the wisdom to reap the bountiful harvest that comes from planting the seeds of lowliness and reverential awe.

Lord, make them wise and strong as they face national challenges that threaten our freedom. Guide them, strong Deliverer, for they are pilgrims in time who are headed for eternity. Continue in everything to work for the good of those who love You, who are the called according to Your purposes. Keep us, O God, so dedicated to You and Your purposes that we may do justly, love mercy, and walk humbly with You.

We pray in Your majestic Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER (Mr. COTTON). The majority leader is recognized.

TRAGEDY IN DALLAS

Mr. MCCONNELL. Mr. President, today the city of Dallas will hold a memorial service in honor of the five police officers slain in the senseless shooting during last week's peaceful protest. The victims are individuals who, like law enforcement officials in each of our communities, willingly put their lives on the line every day to keep us safe. Their loss is a tragic reminder of the courage and selflessness they possessed, just as it is a reminder of the burdens their family bear on our behalf. Today we remember each of them.

I know I speak for the entire Senate in saying our hearts are with the families and friends of each of these victims, the others wounded, the entire law enforcement community, and the city of Dallas.

Our Nation experienced a great deal of suffering and heartbreak last week. We must come together now to overcome these tragedies and allow healing to prevail.

CARA AND MILCON-VA AND ZIKA VIRUS FUNDING LEGISLATION

Mr. MCCONNELL. Now, Mr. President, let me speak on an entirely different matter.

Angie was ''a beautiful girl with a heart of gold and a smile that would light up a room'' before her life was changed by heroin. Angie described her addiction to her mother, saying: ''Mom, I need this drug like I need air to breathe.'' It would take Angie experiencing an overdose and her mom begging her to quit before she agreed to seek treatment. Unfortunately, though, like so many addicts, Angie left the treatment facility and started using again. She told her mother: ''I'm in a black hole and I can't get out.'' Angie would end up dying from an overdose, her body dumped callously at the bottom of a muddy creek by her drug dealer.

Tragically, Angie's story is just one glimpse into the widespread prescription opioid and heroin epidemic sweeping our country. In fact, drug overdoses now claim 129 lives a day in America. The families of these victims know more must be done to prevent others from enduring the pain of drug addiction and overdose.

Antidrug groups and law enforcement officials also know more must be done to prevent the widespread loss communities have experienced at the hands of this crisis. That is why nearly 250 antidrug and law enforcement groups across the country have voiced their support for the Comprehensive Addiction and Recovery Act conference report.

Just last week, these groups collectively sent a letter urging passage of this legislation, which they called a ''truly comprehensive response to the opioid epidemic'' that represents ''the critical response we need.'' These groups represent States from coast to coast, from Lifehouse Recovery Connection in California to Justice and Recovery Advocates in Maryland, to Friends of Recovery in New York, among dozens and dozens of others. They have seen the crisis firsthand, and they know the positive impact this bipartisan comprehensive response can have.

Here is what I mean. The National Association of Counties and the National League of Cities have asked Congress to ''act quickly'' and pass the CARA conference report. They call it ''a pivotal step towards stemming the tide of this epidemic.''

The Addiction Policy Forum has warned Congress ''not [to] play politics'' by blocking passage of this CARA conference report. They call it ''a monumental step forward—a tipping point to better addressing the paralyzing opioid epidemic.''

The Faces and Voices of Recovery has urged support too. They call it ''the most expansive Federal, bipartisan legislation to date for addiction support services,'' and they say it can ''help save the lives of countless people.''

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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The Fraternal Order of Police has asked Congress ''to adopt the conference report'' on behalf of its more than 330,000 members. They call it another ''tool to reduce the deaths from this epidemic.''

So we are just one step away from sending this legislation to the President's desk. The House overwhelmingly passed it by a vote of 407 to 5. With continued cooperation, the Senate can send it to the President this week.

Remember, this Senate has provided more than twice as much funding for opioid-related issues as under the previous Senate majority. Let me say that again. This Senate has provided more than twice as much funding for opioid-related issues as under the previous Senate majority. The passage of CARA would represent another crucial step toward combating this crisis.

Of course, this wouldn't have been possible without the unwavering commitment of Members like Senator PORTMAN, Senator AYOTTE, Senator GRASSLEY, and Senator ALEXANDER to move this bill forward. From raising awareness about this crisis to serving as voices for the voiceless and working across the aisle to develop this comprehensive legislative response, these Senators were resolute in their support. In no small part, because of their efforts to drive this bill forward, communities will be better equipped to prevent heroin and prescription opioid abuse in the first place, just as they will be better equipped to save lives and foster treatment and recovery.

I also want to recognize the work of Democratic Members like Senator WHITEHOUSE and Senator KLOBUCHAR for their efforts to help garner support for this bill and move it through the legislative process. There is no reason every Senator shouldn't support it now. The sooner we send this bill to the President's desk, the sooner we can help our communities begin to heal from the prescription opioid and heroin crisis.

Another way to do that is by passing the conference report that would fight Zika and enact record levels of funding for veterans' medical services, including millions for substance abuse and treatment. Democrats are clearly very nervous about their decision to attack women's health and veterans with the filibuster of the anti-Zika funding bill. Who can blame them? They put forth a variety of tortured excuses that don't stand up to scrutiny. They have offered a proposal they hoped would provide political cover by ditching funding for our Nation's veterans. That is clearly not a solution.

I don't know how Democrats plan to explain any of this to veterans this summer. I certainly don't know how Democrats plan to explain this to pregnant mothers. Either Democrats believe Zika is a crisis that requires immediate action or they do not. Republicans believe we ought to pass this bill now because this is a crisis. Our friends across the aisle will have to decide if they feel the same or if a partisan political group is worth delaying funding to protect families from Zika or funding our veterans.

There is only one option to get anti-Zika funding on the President's desk before September; that is, passing the compromise Zika control and veterans funding legislation that is before us and sending it down to the President for signature.

The rules don't allow for a conference report to be amended, and repassing the same bill that went to conference will not put a bill on the President's desk, it will not create a vaccine, it will not kill a single mosquito, and it will not help a single pregnant mother. So let's do the right thing for our Nation and pass the legislation that is before us.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

CARA AND MILCON-VA AND ZIKA VIRUS FUNDING LEGISLATION

Mr. REID. Mr. President, the tortured explanation from my friend the Republican leader this morning about two important issues—opioids and Zika—is an indication of why the Republicans will no longer have the majority come election day. That is very clear. You can't go on doing what they are doing and expect people to support you.

In the morning, we are going to vote on opioid legislation. It is important we do that. Everyone in this Chamber knows we have to do something to stop this epidemic. It has claimed the lives of too many Americans, and it is doing it every day. Our CARA conference report is a start, but it is a missed opportunity to do something really substantive to stem the number of opioid overdoses across the country, and the reason for that is Republicans refused to allocate money for this legislation.

To have my friend talk about we have done twice as much as we did under the previous majority—why wasn't anything done before? Because it was filibustered. We couldn't do it. There is not enough money to do all the authorizing we have done for these programs. There is not enough money.

In conference, Republicans again rejected our efforts to insert funding into the report. Authorizing legislation is a start, but without resources it is very meaningless. Without any real funding, the conference report comes up really short.

For example, editorials around the country have said as much, and I will pick on one—the New York Times editorial board. This morning, in their piece entitled ''Congress Is Voting on an Inadequate Opioid Bill,'' they say:

> Congress is about to pass a bill meant to deal with the nation's opioid epidemic. It contains some good ideas. It will also be far less effective at saving lives than it should be.
>
> The Senate is expected to vote on this measure, approved by the House on Friday by an overwhelming 407-to-5 majority. It would authorize addiction treatment and prevention programs to stem what has become a scourge and a disgrace—more than 28,600 overdose deaths in 2014.

And it has gotten worse, not better, but this legislation contains not a penny to support any of these initiatives.

Continuing to read from the article:

> The bill would allow the federal government to award grants to states to treat people who are hooked on prescription painkillers and illicit drugs like heroin. In Congress, however, getting a program authorized is only half the battle. Republican leaders say they will allocate funding when lawmakers return to Washington after a seven-week break that begins at the end of this week and ends after Labor Day. Yet there is no good reason for Congress to put off a vote on funding, given the urgency of the problem.

Quoting again, the editorial ends with a further funding caution:

> Many lawmakers, especially those who are up for reelection, clearly want to show voters they are doing something about opioids. This bill amounts to progress, but it will not change the trajectory of this epidemic.

That says it all.

Without real funding, this legislation is far from adequate. If we want to stop the increasing number of opioid overdoses, then we need to get serious about finding a way to do it. One way is funding our Nation's response to this scourge.

So I repeat, it is no wonder that there will be a change in the majority of this body with what went on, as evidenced by this morning's statement by my friend the Republican leader. To talk about a tortured explanation on Zika, the Zika problem we have in America today is significant. Last night, 39 new cases were reported in 1 day in America.

These mosquitoes are ravaging—basically two breeds of mosquitoes are causing these problems. They are vicious. They are awful. Mosquitoes have been bad for generations, making people sick and causing people to die, but this is new. Never in the history of all the problems mosquitoes have caused have they caused birth defects. But they do now, and they do it big-time. The President is aware of the issue. He is aware of the issue. It is a very, very frightening thing for our country.

In May, the Senate passed a bipartisan compromise to address this crisis. The bill wasn't perfect. The legislation called for $1.1 billion in funding and was well short of the $1.9 billion health experts said was needed to address the crisis, but it was OK. It was certainly a step forward, and 89 Senators—Democrats and Republicans—agreed it was a good step forward. The Senate compromise at the very least was a step in the right direction. That is why, in spite of our serious reservations about the lack of adequate funding, we voted for this legislation, and I am glad we

did. The overwhelming majority of Republicans voted for this bill, and I am glad they did. The Zika compromise passed, as I said, with 89 votes. Only the most extreme, conservative Members of this body voted against it. That was 2 months ago. But since then, it has become increasingly clear in the last 2 months that Republicans are not serious. They are playing games again because they are not responding to the threat posed by these mosquitoes and by this horrible, horrible condition that they are causing for human beings.

Instead of working to send the bill to the President's desk, the Republicans derailed the bipartisan response—89 Senators who voted—to send that to the House of Representatives. There was a conference. The Republicans chose a very reckless approach. They ignored what went on here in the Senate, even as more and more Americans are getting infected every day. There are almost 4,000 people in the United States and territories that have Zika right now. At least 600 pregnant women have shown evidence of infection. We don't know how many of those pregnant women who have this infection—this virus—are going to bear very, very sick babies. We don't know how many, but it is going to be a lot.

We should be working to fight Zika. We should be working together. We should be providing public health experts with the tools they need to fight this virus. It is not being done, as the Republican leader says. In the Senate, we are stuck in limbo as the Republican leader forces an unnecessary revote on this failed proposal we got from the House of Representatives and approved by the Republicans in the Senate—this conference report. We don't need to vote on this again. It was already rejected. It will be rejected again. Why? For very good reasons.

It is an abomination of a conference report. It restricts funding for birth control provided by Planned Parenthood. My friend talked about pregnant women. If we want to talk about pregnant women, we ought to talk about women who don't want to get pregnant. Where do they go? The vast majority of women in America go to Planned Parenthood. Millions go. This legislation that the Republicans are trying to foist on the American people stops them from being able to do that. It restricts funding for birth control provided by Planned Parenthood. Planned Parenthood is a whipping boy for the Republicans.

This legislation also exempts pesticide spraying from the Clean Water Act. They had to get Planned Parenthood, and they had to do something to the environmental community. Here is what they are going to do to whack the environmental community: We will just not have the Clean Water Act apply.

Veterans—my friend the Republican leader talks about veterans funding. Understand that the legislation being proposed to help fight Zika takes $500 million—one-half billion dollars—from the veterans program. That money was to be used for processing claims for veterans, which are way behind. We need that extra money. That is going to be gone.

The so-called salvation of the Zika problem also rescinds $543 million from ObamaCare. Right now, I could raise a point of order, and that would go. That would be gone. It rescinds $543 million from ObamaCare. They have to do this.

They are so ideological: Let's go after Planned Parenthood; let's go after the environmental community; let's make sure we do something about ObamaCare; and, just for good measure, because Ebola is not an emergency this very second, let's take more money from that. Two years ago, Ebola was a big emergency, and it will be again. And, just for good measure, to satisfy the right-wing—as Speaker Boehner called them—crazies over there, they said: We will strike a provision on the Confederate flag that was in the House bill.

How is that for an effort to do something constructive? We all know the Senate will not pass this Republican conference report. President Obama will not sign it into law. So why waste more time on this? We should pass the bipartisan Senate compromise as soon as possible. My friend said: Well, we can't amend the conference report. Of course, we can do anything here. With unanimous consent, we can do all kinds of good things.

That is obviously the responsible path forward, and we need to get this legislation to the President's desk. In order to do that, we must bring the Zika compromise legislation before the Senate as a stand-alone. I tried yesterday to do that. I asked unanimous consent that the Senate move to the compromise legislation and the Senate vote on that passage. But despite his previous support for this bipartisan legislation, the Republican leader objected. Senate Democrats are not going to be deterred.

Is there a State in the Union that is going to suffer more than Florida? No. So the senior Senator from Florida is going to come to the floor in a little while this morning, and he is going to ask consent that the Senate proceed to the Zika compromise as a stand-alone bill. It can be done. We should do that. Florida has been hit really hard, and the worst is yet to come. Yesterday alone, as I indicated, there were new cases reported. According to the Palm Beach Post, that brings the number of Floridians—just Floridians—affected with Zika today to almost 300, including 43 pregnant women. So I hope they are going to consider the request by Senator NELSON. We are willing to work with Republicans to get this done. The Senate is going to adjourn for the long, 7-week vacation once we get this done.

Our country is facing an emergency. It is time for the Republicans to start treating it as such. ''Opioids,'' ''Zika'' are only words from the Republicans. I repeat for the third time this morning, it is so clear why the Republicans are going to lose the majority in the U.S. Senate. All you have to do is listen to what the Republican leader had to say today.

Will the Chair announce the business of the Senate this morning.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER. Under the previous order, the leadership time is reserved.

COMPREHENSIVE ADDICTION AND RECOVERY ACT OF 2016—CONFERENCE REPORT

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of the conference report to accompany S. 524, which the clerk will report.

The assistant bill clerk read as follows:

Conference report to accompany S. 524, a bill to authorize the Attorney General to award grants to address the national epidemics of prescription opioid abuse and heroin use.

The PRESIDING OFFICER. Under the previous order, the time until 12:30 p.m. will be equally divided between the two leaders or their designees.

The Senator from Illinois.

ZIKA VIRUS FUNDING

Mr. DURBIN. Mr. President, 5 months—5 months—that is how long it has been since the National Institutes of Health and the Centers for Disease Control and Prevention formally asked the U.S. Congress to respond to a public health emergency to combat the Zika virus—5 months.

In that time, we have seen the number of Americans infected with Zika soar to 3,667. Of those, 599 are pregnant women. In Illinois, there are 26 confirmed cases of Zika—5 months. To date, seven infants have been born with Zika-related birth defects in the United States. Five pregnancies have ended because of Zika-related birth defects—5 months. Last week, Utah health officials announced the first U.S. death related to the Zika virus—5 months. In Puerto Rico, where this situation gets worse by the day, officials reported a 1-week jump of 40 percent in the number of pregnant women on the island diagnosed with Zika—5 months. Three thousand, six hundred sixty-seven Americans to date are infected with Zika that we know of, 599 pregnant women, 7 babies born with severe birth defects, 5 ended because of the virus, and the first Zika-related death—5 months since the President of the United States said this was a public health crisis.

The Republican-controlled Congress has waited 5 months to respond to this crisis, and now we are on the verge of leaving town for 7 more weeks—until

September, after the conventions—and we will leave without providing our Federal health agencies the money they urgently need to fight Zika. By the time Congress returns, it will be 7 months since the President asked Congress on an emergency basis to deal with this public health crisis of Zika. Every single American should be disgusted by this, and every single Member of Congress should be embarrassed.

What is perhaps most infuriating about this situation is that we have a bipartisan Zika funding bill ready to go, and the President would sign it tomorrow if he could. In May, the Senate passed a bill. I will concede, it was 3 months after the President asked for it, but we did pass a bill. We had 89 votes supporting a bill to provide $1.1 billion to fight this public health disaster. It was less than the President asked, but was a good-faith, bipartisan effort supporting mosquito control programs, lab capacity, surveillance efforts, and maternal health services. It wasn't the bill that Democrats would have written or the President asked for. It wasn't really the bill that the Republicans wanted to start with. It was a bipartisan, good-faith compromise.

But what happened to that bill after it left the Senate? Instead of that bipartisan bill moving through the House and quickly to the President, it went into a conference committee, and that is when things went terribly bad. Right before adjourning for the Fourth of July recess, the House Republicans decided to take our bipartisan bill with 89 votes and load it up like a right-wing Christmas tree. They decided to attack environmental protection by overturning the clean water regulations. They decided to block money to women's health providers. Most people remember when the Republicans were prepared to shut down the government of the United States over the funding of Planned Parenthood. Now, in this bill that they have sent back to us from conference, they are prepared to shut down our response to this public health crisis of the Zika virus in order to defund Planned Parenthood.

It also undermines the Affordable Care Act, which has been a traditional whipping boy of the rightwing, and it raids Ebola funds. They knew the Democrats wouldn't accept these riders. They made it as disgusting and repugnant politically as it could be. They said: Remember, we don't need Ebola funds. It turns out we do.

To this day, the CDC still has 80 disease specialists stationed in West Africa. A few months ago, there was an Ebola cluster in Guinea. In order to respond to that unexpected outbreak, the CDC had to vaccinate 1,700 people, track 20,000 people through surveillance, and open five emergency operation centers in two different countries.

The Republicans say: Well, we will just take the money away from Ebola, maybe things will work out fine in Africa.

The Republican bill proposes decimating our Ebola prevention funding and diverting the resources. The majority leader and majority whip claim the House Zika bill is a compromise and bipartisan. Let me be clear. It is neither. It is not a compromise, and it is not bipartisan. Not a single Democrat signed the conference report that came out of the House. Despite the fact that 89 Senators of both parties had voted for bipartisan funding in the Senate, when they took it into conference, it turned into a political football.

This is a cynical attempt by the Republicans in the House to hijack a public health crisis and push a grab bag of their favorite unrelated poison pill riders. That is why their bill, as shown by the vote here last month, is a nonstarter in the Senate, and it is a nonstarter with the American people.

What is being lost during this entire posturing and politicizing is the very real toll Zika is taking. During the past 5 months, we have discovered new and alarming things about Zika. We know the Zika virus can be transmitted through sexual contact. Women infected with Zika in their first trimester can face a 13-percent likelihood of a baby born with a serious problem. Even if a pregnant woman doesn't show any signs of infection, her baby can be born with serious, physical, and neurological disorders.

It has been 5 months since the President asked for funding. This Republican-led Congress just can't get it right. Eighty-nine Senators, Democrats and Republicans, came up with a bipartisan answer, they couldn't get it through the House of Representatives, and we sit here today languishing in this political mess.

Researchers are examining the links to other negative health consequences: eye infections that lead to blindness, autoimmune disorders that cause paralysis related to Zika virus.

What about the impact of maternal stress on the baby? I spent the last several weeks meeting with maternal and fetal health care providers and community health leaders in Chicago. Yesterday I was in the Belleville area. They shared with me the fear and stress their patients are experiencing. Hundreds of pregnant women in Illinois are seeking care and advice from doctors. They have undergone tests to make sure their babies are safe. Sadly, three of those Illinois women have learned they are already infected with Zika. I am sick and tired of this political game being played by the House and Senate Republicans when it comes to a public health crisis.

The President got it right 5 months ago. Why can't this Congress get it right now before we leave for this 7-week vacation? Enough is enough. It is time for the Republican majority in the House and the Senate to do their job: respond to this public health crisis in a sensible, bipartisan way, just as our bill that passed the Senate with 89 votes addressed, instead of making this a political test for the most outrageous claims.

Did I mention the fact that in conference, the House and Senate Republicans decided to add another provision when it came to this public health crisis? That provision would allow the display of Confederate flags in veterans cemeteries. Give me a break. What does that have to do with this public health crisis or honoring our men and women in the military or our veterans who have served our country well?

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Wyoming.

PRIVATE SECTOR PENSIONS

Mr. ENZI. Mr. President, as chairman of the Budget Committee, I come to the floor on a regular basis and give some bad news, hopefully in small doses. If the small doses don't work, I am going to have to go to larger doses, but we do have a crisis of overspending. We are going to have some more opportunities to talk about that spending.

Private sector pensions are what I am going to talk about today. Private sector pensions are relied upon by millions of Americans for retirement security. They are agreements that are made between an employer and its employees or a union and its members which allow the recipients to receive payments in retirement. Those payments are based on a formula that includes a number of factors, including years of service.

I have worked on pension policy for all of my professional life. I have dealt with pensions as a young accountant, as the mayor of the city of Gillette, as a member of the Wyoming Legislature, as a member of the Senate Pensions Committee, as chairman of the Senate Pensions Committee, as a member of the Senate Finance Committee, as chairman of the Senate Retirement Security Subcommittee, as chairman of the Senate Budget Committee, and as chairman of the conference committee on the 2006 Pension Protection Act that saved pensions for thousands of workers without wholesale business bankruptcy.

I also authored the 2006 Pension Protection Act, which dramatically altered the funding rules and made single-employer pension plans much more stable. The act also made significant changes to defined contribution plans that drastically improved participation. I believe it is safe to say I speak from my experience as a Member of this body, with a large background in pension policy, and I am concerned about where we are heading.

Out of the 24,361 single-employer pension plans that we have information on, 4,486 are underfunded. The most recent actuarial estimations of the underfunding by the Pension Benefit Guaranty Corporation is over $758 billion. That should concern us because the assets of the Pension Benefit Guaranty Corporation's single-employer insurance program are $85 billion. Let's see. Single-employer pensions are underfunded by $758 billion. That is

rounding it down, actually. It should be $759 billion, with assets of $85 billion.

Let me say that another way and say it again. The insurance program for that $758 billion only has $85 billion in assets. That is not even our biggest pension problem. Out of the 1,361 multiemployer pension plans, that means the collectively bargained agreements we have information on, 1,238 are underfunded. The most recent actuarial estimations of that underfunding is just over $611 billion.

What are the assets of the Pension Benefit Guaranty Corporation? They are $1.9 billion. In other words, the safety net for $611 billion is one and nine-tenths billion. I would equate that to trying to catching a whale shark with a net made for minnows.

This shouldn't come as a surprise to anyone. The PBGC wrote in its 2015 annual report that ''it is more likely than not that the multiemployer program's assets will be depleted in 2025.'' The insurance policy for collectively bargained pensions is on track to become insolvent in less than a decade. In fact, if the Central States Pension Fund goes under, it will reduce that amount considerably.

Altogether, private sector pensions are underfunded by $1.35 trillion, or to put it in better perspective, $1,350 billion. On top of that, per the most recent actuarial data available for State and local pensions, the total amount of underfunding in public sector pension plans is $1.2 trillion, or $1,200 billion.

The total amount of unfunded liabilities in both private and public sector pension plans is around $2,600 billion. That means these pension plans have agreed to pay out $2.6 trillion more than they have available. For reference, $2.6 trillion is $2,600 billion. It is more than double what our current annual spending is that Congress gets to make decisions on. That includes defense, transportation, agriculture, and education—twice what we spend on the things we get to make decisions on.

I have heard from some of my colleagues who have come to the Senate floor and speak to the troubling predicaments of specific pension plans. Many of them are currently advocating for shoring up the United Mine Workers of America pension plan, which is just one of the 1,238 union pension plans that are underfunded. I am concerned about this for several reasons.

First, if we take the steps my colleagues are advocating for with regard to the United Mine Workers of America, what are we going to do with the next underfunded pension plan that comes around looking for assistance? What about the plan after that? There are hundreds of private-sector pension plans in critical and declining or endangered status throughout America today so I am not sure how Congress would help the United Mine Workers of America and not the others. Paraphrasing President Washington: We are walking on untrodden ground. There is scarcely any part of our conduct which may not hereafter be drawn into precedent.

I have frequently heard my colleagues try to differentiate this case by speaking of a promise of a pension that was made to retirees in this particular union, but that agreement was between the members and the union. It was not an agreement with the Federal Government.

Second, I find it necessary to remind my colleagues this country is $19 trillion in debt and consistently increasing its spending. We don't have the money to shore up pension plans. To be clear, despite proponents arguing that this legislation is paid for by coal companies' contributions to the Abandoned Mine Land Trust, in reality, it would be paid for by the taxpayers.

The Surface Mining Control and Reclamation Act is funded by a tax levied on mining operators per tonnage of coal harvested. Interest from the abandoned mine land fund can be transferred to three trusts to support United Mineworkers' health care benefits of orphaned miners. Orphaned miners are those whose companies no longer exist but whose health plans still exist. If the abandoned mine land interest does not cover these health care costs, the three United Mine Workers' health care plans are entitled to payments from the U.S. Treasury.

The AML interest payments are often not sufficient to meet the three United Mine Workers' health care plans' needs so the general fund of the Treasury provides the balance. For example, in fiscal year 2012, interest from the abandoned mine land fund paid $48.4 million toward the health care funds, and the U.S. Treasury general fund, the taxpayer dollars, provided $205.6 million. The AML interest cannot take on another obligation. Now my colleagues are asking taxpayers to pay even more than the health care for the United Mine Workers' beneficiaries.

The portion of funds coming from the U.S. Treasury will only increase. As I mentioned, the AML trust is funded by a tax levied on coal harvested. The key word is ''harvested.'' It breaks my heart to say this, but according to the U.S. Energy Information Administration, U.S. coal production, or harvesting, is projected to be down over 25 percent this year compared to 2014. In large part, that is due to the mercury air toxics standards rule, the stream protection rule, the Clean Power Plan, the freeze on Federal coal leases, the proposed increase in coal royalty rates, and everything else the administration is doing to shut down coal. Less coal being harvested means less taxes will be paid into the abandoned mine land trust fund. As those abandoned mine land dollars dry up, more and more of the money this bill proposes to use for United Mine Workers' health care and pensions will come from taxpayer dollars.

Again, I will point out this agreement was made between the members and the union, not between the members and the American taxpayer. That bears repeating. The United Mine Workers of America agreement was made between the members and the United Mine Workers of America, not between the members and the American taxpayer.

It is also worth noting that the AML fund is not unique in that it is comprised of fees paid by a specific industry or user base. One of the most significant pension problems we hear about today is the Central States Pension Fund, which I mentioned earlier and which includes a large number of truckers. That fund is going broke. So I will offer my colleagues an analogy using that fund. To be sure that there are roads to drive on, trucking companies pay a higher tax on their diesel fuel as well as taxes on truck and trailer sales, heavy tires, and heavy vehicle usage. Together with a tax that all consumers pay on every gallon of gasoline purchased, these taxes fund the highway trust fund. This trust fund for highways builds roads and pays for repairs and new bridges that the trucking industry and all drivers rely on. Using a dwindling AML trust fund to shore up the United Mine Workers of America pension would be like shoring up the Central States Pension Fund with the fund that builds highways because truckers pay into the highway fund. That is what the United Mine Workers of America is asking us to do.

My guess is that, if we examined all of the pension plans in critical and declining or endangered status, we could probably identify a fund that relevant employers or employees paid into in some way. If we go down this road, what is to stop those funds from being raided to shore up the quasi-related pensions? Where do we draw the line?

Lastly, I worry about the claims that we are helping all coal miners with this proposal when, in reality, the policy does absolutely nothing for miners who are not members of the United Mine Workers of America. According to Bureau of Labor Statistics, nearly 11,000 workers in the coal industry have lost their jobs in the last year, largely due to this administration's policies. Yet my colleagues have proposed a bill that would help only a portion of those people, and the bill wouldn't help put those folks back to work, developing the energy source that generated 33 percent of America's electricity last year. Instead, proponents of this bill are saying: If you are a member of the United Mine Workers of America, we want to help you with your health care benefits and pensions, but if you are not or if you want your job back, then too bad.

I am not without sympathy for the United Mine Workers of America's coal miners. Remember, I helped the miners get their health care. Coal miners play an integral part in our economy, and my colleagues have heard me say time and again that America runs on coal. Nowhere is that more evident than in

my home State of Wyoming, which produces 40 percent of the Nation's coal. In fact, we produce more coal than the second through the sixth States in coal production combined.

I have the deepest respect for coal miners and am worried about those who have been laid off in Wyoming and across the country. I understand the unique health care needs of miners, and I respect the health care promise this country has made to the miners over many decades. I have supported those health care needs in the past, most specifically by working across the aisle to shore up the three United Mine Workers of America's health care funds back in the mid-2000s. I believe it is important that coal miners continue to receive quality health care. I also believe it is crucial that they, as well as all Americans, have the opportunity to live out their retirement years in financial solvency, but I also want America to remain financially solvent. I don't believe the efforts of my colleagues advocating for this United Mine Workers of America bill help the mine workers in a way that is fair to the Federal taxpayers or to the other coal miners across America. I also know the troubling truth about some of America's pension plans, as I pointed out on this chart, that are underfunded, as well as the faces of the participants within those plans. I have met with them and heard their stories throughout my professional life. There are facets of our retirement system that we can fix to help retirees, but I remain concerned about the use of Federal tax dollars to shore up specific pension plans and to make false promises.

I thank the Presiding Officer, and I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant bill clerk proceeded to call the roll.

Mr. NELSON. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. FLAKE). Without objection, it is so ordered.

UNANIMOUS CONSENT REQUEST—H.R. 5243

Mr. NELSON. Mr. President, I come to the floor for the purpose of making a unanimous consent request with regard to Zika.

I ask unanimous consent that the Senate proceed to the consideration of H.R. 5243, which is at the desk; that all after the enacting clause be stricken; that the substitute amendment, which is the text of the Blunt-Murray amendment to provide $1.1 billion of funding for Zika, be agreed to; that there be up to 1 hour of debate equally divided between the two leaders or their designees; that upon the use or yielding back of time, the bill, as amended, be read a third time and the Senate vote on passage of the bill, as amended, with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

UNANIMOUS CONSENT REQUEST—CONFERENCE REPORT TO ACCOMPANY H.R. 2577

Mr. MCCONNELL. Mr. President, reserving the right to object, let me just walk through this one more time in case anybody is confused about where we are.

As I said yesterday, Republican Senators are eager to pass the conference report which is before us and send it to the President's desk for signature. We should do that today—this very day. That would accomplish several important things before we leave for the week. First, it would provide $1.1 billion in immediate funding to combat Zika. That is the exact amount of money in the Democrats' request. However, the Democrats' request includes only funding for Zika and leaves the rest of the important priorities behind.

The conference report that the House passed includes full funding for Zika, funding for military construction, funding for veterans programs, and temporary but meaningful reforms to ensure that we are able to combat mosquito-borne illnesses during the summer months, which are upon us.

We should pass the conference report today—this very day. Therefore, I ask unanimous consent that the Senate proceed to the consideration of the conference report to accompany H.R. 2577 and that the conference report be agreed to with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

Mr. NELSON. Mr. President, reserving the right to object—first of all, did I hear an objection from the majority leader to my unanimous consent request?

The PRESIDING OFFICER. The majority leader has not yet objected.

Mr. MCCONNELL. Mr. President, I believe I reserved the right to object and then offered an alternative unanimous consent request to which I think the Senator from Florida is about to respond.

Mr. NELSON. Mr. President, reserving the right to object, now here we are in the same old political games. With a much needed bill, MILCON-VA—a very good bill—attaching a Zika bill that is loaded down with poison pills, that takes away family planning funds and also takes money out of the Affordable Care Act. So here again it is the same political games, and for that reason, I object.

The PRESIDING OFFICER. Objection is heard to the majority leader's request.

Is there objection to the request of the Senator from Florida?

Mr. MCCONNELL. Mr. President, reserving the right to object—and I will be objecting—let me just say to my good friend from Florida that regardless of the substantive arguments he is making, as a practical matter, if we were to repass the Senate bill, it would not pass the House, so it would not achieve the result we are looking for. So I guess who is playing political games is in the eye of the beholder.

If we want to get an outcome, if we want to get $1.1 billion appropriated to combat Zika and do it now, and if we want to fund the military construction bill, the proposal the Senator from Florida is asking for will not achieve that; therefore, I object.

The PRESIDING OFFICER. Objection is heard.

The Senator from Florida.

Mr. NELSON. Mr. President, I would just say to the majority leader that one of the items in his proposal takes money away from Puerto Rico. By seeing the unanimous vote we had—not unanimous—the overwhelming vote last week for the financial assistance plan to help Puerto Rico get out of its financial woes—part of those financial woes is in the health care sector. We know that experts have told us that 20 percent of the population of Puerto Rico is estimated to be infected with the Zika virus by the end of this summer. So there is just one example of why we should not take an approach that is taking money out of the Affordable Care Act and taking money away from family planning, but specifically with regard to its effect upon Puerto Rico.

As I shared with the Senate last week, I represent the State that had 11 new cases of the Zika virus last week. Well, lo and behold, we now have 13 more new cases, bringing the total in our State to 276, which includes 43 pregnant women, and that is just one of the 50 States in the Union, not including the territories. The number of cases being reported across the country continues to rise. There have been seven infants born in the United States with Zika-related birth defects, and you know what I am talking about because you have seen the pictures of how, when the virus attacks the fetus in its development, it does not allow the development properly of the head and of the brain.

Right now in America, the CDC is monitoring 599 pregnant women. Public health experts estimate that caring for a child born with Zika-related microcephaly could amount to $10 million in medical costs over that child's lifetime. That is just speaking about the dollars; that is not talking about the tragedy. By that estimate, it would cost up to $2 billion to care for 200 children born with microcephaly. That is $100 million more than the amount this Senator and the minority leader had asked for in the first place, reflecting the President's request of $1.9 billion that the experts say is needed to curb the spread of the virus. That request was made 4 months ago, and we still haven't done anything about it.

At what point do the majority and the majority leader decide to stop playing these games and simply do what is needed?

Mr. REID. Mr. President, will my friend yield for a question?

Mr. NELSON. Of course.

Mr. REID. Is it true that your family first came to Florida in 1829 or somewhere in there—a long time ago?

Mr. NELSON. Can the Senator ask that again? I cannot hear.

Mr. REID. Is it true that your family came to the State of Florida around the turn of the 19th century?

Mr. NELSON. Through the Chair, Mr. President, I would answer the Senator. Yes, my family came to Florida right after Florida was acquired as a territory from Spain.

Mr. REID. Is it true that during your lifetime, you have served in various elected offices in the State of Florida. You were, as I recall, the State treasurer, which included insurance commissioner, and you represented the State of Florida in the House of Representatives; is that true?

Mr. NELSON. Mr. President, that is true.

Mr. REID. And you have been in this body since 2000; is that true?

Mr. NELSON. For 15½ years, that is true.

Mr. REID. Is it also true that during your tenure as a Floridian, you had the good fortune to be an American astronaut?

Mr. NELSON. Not only the good fortune but the great privilege, and now I have the opportunity to work on the policy for the Nation's space program.

Mr. REID. The point I am trying to outline here for the Senator from Florida, I think, without any stretch of the imagination, that you know the State of Florida pretty well, don't you?

Mr. NELSON. The good Lord willing, I know it pretty much like the back of my hand.

Mr. REID. And you understand as much, if not more, than anyone else the dangers of these mosquitoes that are ravaging your State and other States and, of course, the American citizens of Puerto Rico; is that true?

Mr. NELSON. Yes, sir. And I know that mosquitoes are all over Florida, but now this one strain of mosquito, the aegypti, for dinner feeds not on one human but on four. If the mosquito has the Zika virus, each of those four would then be infected with the virus after the mosquito has had its dinner.

Mr. REID. And you understand, I ask the Senator from Florida, that for generations of time, mosquitoes have caused all kinds of medical problems for people who are infected from different bites from mosquitoes; is that right?

Mr. NELSON. If you think of the building of the Panama Canal, mosquitoes transmitted malaria. So mosquitoes are a vector which transmits a lot of diseases. This strain of mosquito can lay its larvae in stagnant water contained in something as small as a bottle cap.

Mr. REID. It is true, is it not, that in generations past, mosquitoes have caused death and illness that we have tried to handle for the last 100 years?

Mr. NELSON. That is correct, and we usually meet those emergencies with emergency funding.

Mr. REID. Isn't it true that this strain of mosquito is now causing, for the first time in history that we know of, not only death and sickness but also causing women to give birth to babies who are very ill?

Mr. NELSON. There is a direct link, I would say, Mr. President, in response to the Senator, between a pregnant woman being infected with the Zika virus and the probability that she will deliver a child who is deformed.

Mr. REID. Is the Senator aware that what we passed out of here by 89 votes was $1.1 billion in emergency funding for the State of Florida and the rest of our States and, of course, the citizens of Puerto Rico?

Mr. NELSON. Not only that, but with bipartisan support early on in this whole dialogue. And now we are seeing the resistance of the majority leader to take up the very bill that passed with those overwhelming numbers of bipartisan support.

Mr. REID. And the Senator is aware that what we got back from the House of Representatives and what this Republican Senate signed on to is a bill that is an abomination. Is the Senator aware that what it does, among other things, is it allows the flying of Confederate flags at cemeteries; it takes $543 million from ObamaCare; it takes money from emergencies we have today with Ebola? Is the Senator aware that they are taking a whack at the Clean Water Act with our inability to spray? Is the Senator aware that there are so many women who go to Planned Parenthood to handle the problems that women have, including wanting help to not get pregnant? Are you aware that the legislation they sent back to us prevents Planned Parenthood from being involved in this?

Mr. NELSON. It is a political message that is so reviled by the people of America. They want us to get down to the business.

If Senator MCCONNELL had a flood or an earthquake in Kentucky, we would all support him with emergency funding to meet that emergency. We have an emergency now. Why are they adding all of these poison pills, such as those the Democratic leader has just enumerated, in this bill?

Mr. President, I think the Senator from Nevada has with his cross-examination exposed exactly what the problem is, and it is too bad. The clock continues to tick. At the end of this week, we will go out. We won't come back until the day after Labor Day, which is in the first week of September. And all along, the Government of the United States is going to have to figure out how it will get the money to the local mosquito control districts and how it will get the money to the drug companies to continue the R&D to find and produce a vaccine and all the other health-related expenses.

Mr. DURBIN. Will the Senator yield through the Chair for a question?

Mr. NELSON. I certainly will yield to the Senator from Illinois.

Mr. DURBIN. Through the Chair, I would ask the Senator from Florida whether it is true that it has been 5 months since President Obama declared this public health emergency and asked the Congress to respond to that emergency in a timely way. He asked for emergency funding of $1.9 billion for mosquito abatement, for medical research, for expanding lab facilities, and for investing in developing a vaccine to protect Americans, if not this year, next year.

Mr. NELSON. It is true, and not only is it true that the President requested it, but immediately, a whole bunch of us out here filed a bill and brought it to the attention of the Senate, and it is now 5 months later.

Mr. DURBIN. I ask the Senator through the Chair, in dealing with a public health emergency, a public health crisis, the potential of an epidemic that we now think could infect 25 percent of the population of Puerto Rico, is a timely response an important part of the congressional response?

Mr. NELSON. Amen to that, and here we are dithering with these political games. We wonder why the American public is so turned off when they see what is going on up here, and here is one of the very best examples of an emergency.

Mr. DURBIN. I ask the Senator—and I see my colleague, Senator MURRAY of Washington, on the floor, who is in a very important position, and she is going to address this issue in a few moments. But is it not true that we worked out a bipartisan compromise in the Senate—not to give $1.9 billion, which, on the Democratic side, is our aspiration, but at least to agree with the Republicans in the Senate to $1.1 billion to respond to the President's request for an emergency response; and that we passed the bill in the Senate with 89 votes—an overwhelming bipartisan vote—with an agreement and a compromise in May, and this was sent over to the House of Representatives in May of this year?

Mr. NELSON. Not only is it true, but with 100 Senators, when something passes with 89 votes, that is a pretty strong consensus.

Mr. DURBIN. I would ask the Senator through the Chair—so we have the President identifying a public health emergency and the President telling us—and the CDC as well—that delaying this makes a possibility or probability of an epidemic even worse. We have a response by the Senate, on a bipartisan basis with 89 votes, to provide over $1 billion for the President to get to work to protect America and to develop a vaccine. And is it not true that the House was given this measure with 89 votes and failed to send it back to us on a timely basis?

Mr. NELSON. Not only is that true, those four things, but then the House of Representatives put it on a very good bill, the MILCON appropriations, and they sent it down here thinking that we were going to have to take it at the eleventh hour with all of those poison pills, which include the Confederate flag.

Mr. DURBIN. I ask the Senator from Florida, through the Chair, is it also true that the bill sent to us by the House, after we passed a bipartisan bill with 89 votes, had no Democratic signatories—no House Members of the Democratic Party signing onto this conference report that was sent over to us—so it was a totally Republican conference report?

Mr. NELSON. Not only is that true, but it is also indicative of how ideologically driven and how partisan driven so much of the activity here in this Capitol building is, which is what is very distasteful to the American people.

Mr. DURBIN. I ask the Senator from Florida, through the Chair, is it also not true, based on the statements made by the Republican majority leader, Senator MCCONNELL of Kentucky, that he is going to give us one last chance in the next 48 hours to either take this partisan version of the bill, addressing this public health crisis, or do nothing for the next 7 weeks?

Mr. NELSON. That, of course, I say to the Senator from Illinois, is such a poor, poor choice.

Mr. DURBIN. I would ask the Senator from Florida my last question. I know my other colleagues are waiting to ask questions. Your State, the State of Florida, appears to be vulnerable—more vulnerable than most States—because of your proximity to Puerto Rico and other places and the number of travelers coming into the State of Florida from areas where we know for certain that the Zika virus is starting to be manifest. I ask the Senator from Florida: What are you hearing back in your State about the need for a timely, bipartisan effort in Congress to deal with the public health crisis of the Zika virus?

Mr. NELSON. I say to the Senator from Illinois, with 276 cases of infection, with 43 pregnant women that we know of just in the State of Florida, is it any wonder that 5 months ago, when we filed the $1.9 billion request of the administration, my colleague from Florida, my friend who I get along with, the junior Senator, Mr. RUBIO, cosponsored the bill with me.

Mr. DURBIN. Well, I said it was the last question. I will ask one more, if I may, through the Chair. I would ask the Senator from Florida this: So you have Senator RUBIO, a well-known Republican from Florida, and Senator BILL NELSON, maybe the best known Democrat from Florida, agreeing that this is an emergency that needs to be dealt with on a timely basis, that the President's request for $1.9 billion is a reasonable request, that we pass a bipartisan measure—Senate Democrats and Senate Republicans—and that we are moving toward solving this problem and responding to it. Is it not true that this measure fell apart or broke down when it ended up in the Republican-controlled House of Representatives, where they did not take a bipartisan approach to the issue?

Mr. NELSON. Not only is that true, I say to the Senator, but there is the fact that this is an emergency, which has always been dealt with in the history of this Senate as a bipartisan thing to meet the situation of the emergency, and now this has been used—because it is so urgent to get the appropriations—as a political message and ideological, partisan-driven bill.

Mr. DURBIN. I thank the Senator

Mr. NELSON. Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. Mr. President, I want to thank my colleague from Florida for his leadership on this issue and the Senators from Nevada and Illinois for their great questions illuminating us.

I am just going to sum up here in a minute. If the Republican leader wants to get something done, instead of putting this bill on the floor again, he would go over to the House and tell them to vote for the bipartisan bill that he voted for and we all voted for of $1.1 billion. I say something else to my friend from Kentucky. When he was in the minority, he kept saying to us: Leadership means working together.

Well, he is in charge now. We have a crisis. Instead of working together, he is putting a bill on the floor that had no input from our side and that doesn't do the job and is loaded with poison pills. Is that leadership? Does that show that the Senate is working again? He is back to the old ways when we have a crisis. Again, if the majority leader of this body wanted to get something done about Zika, he would ask the House to pass our bipartisan bill.

Instead, he puts the same political document on the floor that shows no leadership, that shows no bipartisanship, and that will not pass. So there is no drama. There is no suspense. I don't even know why he is doing it again, but probably because he knows there is a crisis and he is unwilling, reluctant, afraid, to confront the House with their gamesmanship that was driven by 40 Freedom Caucus members who don't believe the government should spend money on anything.

The only way he could get the votes was to put in all these poison pills which he knew would kill the bill to begin with. So the bottom line is very simple. If the House would put our bipartisan bill on the floor of the House it would pass right now. We would get something done. Instead, the very bipartisanship that the majority leader is trying to make as a hallmark of his leadership is being made a joke of by his putting a partisan bill that has failed once on the floor once again in the closing days of this session.

I would urge the majority leader—it is really on his shoulders—to reconsider. I would urge him to make a good faith effort to get something done. I would urge him not to play the game of putting this bill, laden with poison pills, not doing the job, on the floor, and, instead, go call Speaker RYAN and say: We have to get something done. Let's do something in a bipartisan way.

I yield the floor.

The PRESIDING OFFICER. The Senator from Washington.

Mrs. MURRAY. Mr. President, I too want to thank the Senator from Florida for his strong effort to get this done. I thank my colleagues who are here speaking as well. There are just a few days left in this legislative session. I am so frustrated that instead of finally coming out of their partisan corner and getting to work to fight the Zika virus, Republican leaders, as we just saw, have doubled down on their politics-first approach.

It has been more than 5 months since President Obama first put forward a strong emergency funding proposal to respond to Zika. Rather than giving that proposal a serious consideration, Republicans simply refused to even consider it. Instead, they found excuse after excuse, delay after delay, and refused to listen to public health experts and women and families who made it clear that Congress needed to act.

They tried to jam a partisan, political bill through Congress on the way out of town on the Fourth of July. Now, look, as we just heard, it was a bill that included harmful, political provisions on everything from women's health to the Confederate flag to the environment.

Now, as this Republican-controlled Congress is headed out of town again, Republicans are somehow trying to claim that they have done everything they need to do when it comes to Zika. They are saying that by putting forward now a partisan bill full of harmful and unnecessary policy riders, they can throw up their hands and go home.

Well, that might be how Republicans in Congress want it to work, but the women and families I talk to could not disagree more. They are worried about what this virus could mean to their families. They want Congress to take action. Republicans should know that Democrats are going to keep pushing until that happens. It is especially frustrating that, despite all of the partisanship and tea party pandering we have seen from the other side of the aisle, Republicans and Democrats in this Senate did reach an agreement on Zika 2 months ago that got the support of every Democrat and nearly half of the Republicans—89 votes.

It did not provide the full amount President Obama requested, but it would have been a strong down payment. It would have helped to accelerate the development of a vaccine. It would strengthen vector control in communities across the United States and the territories and critically expand access to desperately needed family planning and other health care services.

Had Republicans been willing to stay the bipartisan course that we set and push aside the extreme members who insist on using women's health every time as a political football, that agreement would now have been signed into

law, and it would be on its way to communities, as we speak. I am deeply frustrated that has not happened.

This is truly urgent. In fact, just last week, the Puerto Rico Department of Health noted a 40-percent increase in the number of pregnant women with Zika on the island. So, frankly, it is appalling that given what we know about the impacts of this virus, Republicans would put an ideological, partisan bill in front of us and say: My way or the highway. That is why today Democrats are here giving Republicans another chance to do the right thing. We are urging them to support women and families instead of the tea party and Heritage Action and join us to get a strong bipartisan emergency funding package to communities at risk because of the Zika virus.

This bill has already passed the Senate, as we know, with 89 votes. Democrats supported it. Most Republicans supported it. So we are here to urge Republican leaders: Don't waste another minute. Join us in moving a bipartisan bill forward. Women and families across the country have waited long enough for action on Zika. Let's not make them wait any longer.

I yield the floor.

The PRESIDING OFFICER. The Senator from New Hampshire.

TRAGEDY IN DALLAS

Ms. AYOTTE. Mr. President, I rise today to offer my thoughts and prayers to the five Dallas police officers and their families who were killed in the line of duty on July 7, 2016. I want to recognize them on the Senate floor for the sacrifices they have made, for their heroic service to protect the people of Dallas, and also to recognize our law enforcement officers for what they do every single day on our behalf.

On July 7, 2016, unfortunately, killed in the line of duty—adding to the roll-call, and whose names will be added to the Law Enforcement Memorial in Washington—are Sergeant Michael Smith, a former Army Ranger who also served our Nation and who had been with the department since 1989; Senior Corporal Lorne Ahrens, 48, who had been with the department since 2002; Officer Michael Krol, 40, who had been with the department since 2007; Officer Patrick Zamarripa, 32, a former Navy Seal and Iraq war veteran, who had been with the department since 2011; DART Officer Bart Thompson, 43, a former marine who had been with the department since 2009. Thompson was the first DART officer who was killed in the line of duty since the department's inception in 1989.

Having served as attorney general for the State of New Hampshire, we have, unfortunately, been through this with our law enforcement officers in New Hampshire when we lose an officer in the line of duty. This is such a tragedy for the Dallas community, but it is a tragedy for our country. So, today, we stand with those mourning in Dallas. We stand with the law enforcement community. We stand with all of those who serve our Nation because they go out every single day when we are home with our families and on holidays.

When we are home late at night, when we are sleeping, they are out in the streets patrolling, keeping us safe, the ''Thin Blue Line'' between us and those who want to do us harm.

So, as we look at what is happening around our Nation, law enforcement is the solution to bringing us together. They work in our communities every single day. I have seen the phenomenal work that our law enforcement community does in New Hampshire. I have been to the Police Athletic League and seen what they are doing with the youth in our community. I have seen the outreach they do every day on this horrible drug epidemic that we are facing in the State of New Hampshire. I have seen the difficult situations they face with those struggling with mental illness—every single challenge they are taking on in our communities.

So, today, let's remember those five brave officers who gave their lives in the line of duty, and let's remember all those who have given their lives in the line of duty to keep us safe every single day. Without our brave law enforcement officers, we would not be able to enjoy the freedoms we have and not be able to enjoy our own families and our way of life. So we are grateful to all of those who serve. We stand with you. We thank you for what you do every single day on our behalf.

To your family members, we say to you as well, thank you, because families do serve as well. And when your loved ones go out on our streets to keep us safe, we know you worry about their safe return. So we stand with you as well, and we say thank you for your service and sacrifice to keep the rest of us safe.

Mr. President, I would also like to speak today about a very important piece of legislation that I hope we will be considering on the Senate floor this week. I rise in support of the conference report for a critical piece of legislation called the Comprehensive Addiction and Recovery Act, otherwise known as CARA. I have now been working on this piece of legislation with Senators PORTMAN, WHITEHOUSE, and KLOBUCHAR for about 2 years, and I thank them for their leadership on this legislation and their partnership in the work we have done, along with hundreds of coalition groups that have helped us put this legislation together.

CARA passed this body in March by a vote of 94 to 1. Not much passes the Senate with a vote of 94 to 1. Numbers like that speak volumes to the fact that every community is facing a heroin and opioid epidemic right now, and we need to take national action. And after conferencing the Senate version with a package of House bills related to opioid abuse, just this past Friday the House of Representatives passed the conference report by an overwhelming vote of 407 to 5—407 to 5 in the House of Representatives.

Those are very powerful numbers in support of this legislation, but I want to touch on the numbers that matter the most and why we need to act on this legislation—numbers like 129, the number of people who die each day in our country from a drug overdose; or 248, the number of stakeholder groups who have endorsed the final version of CARA because they know it takes the right legislative approach to fighting back against this public health crisis. That number includes some groups from my home State of New Hampshire whom I have had the honor of working with. I appreciate so much their phenomenal work on the frontlines in helping those struggling with addiction, including HOPE for New Hampshire Recovery; Hope on Haven Hill; the Kingston Lions Club in Kingston, NH; and Project Recovery in Newton, NH. And I know there are many other individuals and groups on the frontlines in New Hampshire who are making a difference.

CARA is also supported by nearly 40 chiefs of police from across our State, the New Hampshire Association of Chiefs of Police, and the National Fraternal Order of Police because our law enforcement knows we need a comprehensive response. I have heard so many times from our police officers that we cannot arrest our way out of this public health crisis.

Another number never far from my mind is 439—the number of individuals in my home State of New Hampshire who died from a drug overdose last year. And just this year alone, 2016, 161 have died. So unfortunately we are looking at even greater numbers with what we see happening on the streets of New Hampshire.

I will never forget those numbers because they are so much more than numbers; they are the lives of loved ones we have lost, and they represent the overwhelming heartbreak felt by too many families.

Every time I am out in New Hampshire, I have another family, unfortunately, whom I meet and who tells me about their story of losing someone they loved or a loved one they are trying to get help for who is struggling with addiction. That is why in this debate we must give a voice to those who no longer have a voice of their own. We must put faces, names, and stories to this epidemic because it is affecting families and communities all across our country.

I want to share some stories from those in New Hampshire who are driving us to take action. In passing CARA, we are remembering them, and we are honoring them and making a change that can help save lives. We are making sure we have the right legislative framework in place as we push for more funding to get to the States to address this epidemic. I am spurred to action by these stories, and it is my hope that by sharing this here today, my colleagues will join me in passing this legislation.

I just spoke to a woman yesterday from Plaistow, NH—Kathy. Kathy's son Thomas was a hero in his local community. He was compassionate and caring to his peers and even helped a fellow student who was living alone in the woods rededicate himself to studying and eventually graduate. He literally went out in the woods to find a homeless student and brought him into his home.

Around 7 years ago, this bright young man became addicted to painkillers. This is a story we hear all too often. He had an injury, he became addicted to painkillers, and his family was shocked at how many pills he was legally prescribed for his back pain. It wasn't long before he turned to something else—heroin.

In fact, the national data shows that four out of five people who turn to heroin actually started with misusing or overusing prescription drugs.

Thomas's life, unfortunately, took a turn for the worse, and he spent time in jail before eventually passing away from an overdose.

When I spoke with Kathy, she told me that more needs to be done to help others struggling with a substance use disorder. She wants to see more resources for early education. She wants to fight back against the stigma associated with addiction.

In having this debate on the Senate floor, that is something we need to turn around—the stigma. This is a public health crisis. This is a disease, and we need to get help for those struggling with addiction.

But Kathy is not alone. A woman in Goffstown wrote to me after losing her brother to a heroin overdose:

From here forward, we will never have another holiday where our family is complete. At Thanksgiving, when our close, loving family gathers, there will be an empty seat where he once sat. An unfilled stocking at Christmas will remind us of the void we feel each day. Come his 25th birthday this year, we will visit his grave site where he is buried instead of hugging him in our arms and wishing him another wonderful year.

A father in Brentwood, NH, lost his son to an overdose and told me:

I cannot describe the pain, feeling of helplessness and grave despair [my wife] and I went through upon finding our son dead. This has been a tragedy we in the end were not able to fix, and a war we were not able to win. Our son is now part of the statistics.

A woman in Wakefield wrote that her niece's dreams were crushed when she became addicted to heroin. She wrote:

Her death has left the family heartbroken, and we have chosen to tell everyone the truth in hopes that her death will not have been in vain.

A mother in Manchester said:

I wake up every morning with the fear of finding my son dead. I am crying out for help.

A mother from Greenville, NH, who spends her days helping people living with substance abuse disorders only to come home and see her own son struggling with using heroin, told me:

As I tried to comfort those who have been affected by this tragedy, I think that my son will be next.

In Laconia, a man helps those struggling to get treatment, but he feels helpless when he is faced with a 5-month waiting period to get into a facility. He wrote:

In 5 months, these individuals will be dead.

A parent from Salem contacted me and told me her son is struggling with heroin addiction, and she needed help finding a treatment program for him since she couldn't afford to pay for treatment herself, like the mother of these three children who had to revive her son from an overdose before the paramedics could arrive, or like the Griffin family, Pam and Doug and Shannon Griffin from Newton, NH, whom I have gotten to know well. The Griffin family lost their beautiful 20-year-old daughter Courtney to a fentanyl and heroin overdose. Courtney's father, Doug Griffin, and his wife, Pam, have made it their life's mission to raise awareness about this terrible epidemic to help save lives and help others going through the same difficulty and tragedy.

Doug and so many other dedicated people in New Hampshire are working tirelessly to turn the tide against this epidemic. Earlier this year, I met with families from New Hampshire who actually traveled to Washington to urge Congress to take up and pass CARA. If we don't act, what kind of message are we sending to these families who need our help and need us to act? That is why we need CARA and we need to ensure this framework is passed.

CARA authorizes resources for treatment, prevention, recovery, and first responders—critical facets of a comprehensive approach. And CARA is an authorizing vehicle. Some have made this argument around here: Why should we pass an authorization vehicle if the funding is not attached? Under that reasoning, we wouldn't have passed the Violence Against Women Act, we wouldn't have passed the Head Start Program, we wouldn't have passed a program for vaccines for children, we wouldn't have passed the Second Chance Act, and there are so many more. The reality is that in the appropriations bill there have been increases in funding for CARA, and we are going to fight for even more increases in funding. In fact, at the end of the day, the Senate appropriations bills include a 46-percent increase in spending on opioid addiction programs since last year. So we can do more, but if we don't pass CARA, then we will do a great disservice to the American people.

President Obama's Director of the Office of National Drug Policy, Michael Botticelli, told me at a hearing in New Hampshire last year: ''Certainly the CARA Act, I think, highlights many of the issues and fills really critical gaps not only in terms of funding but in terms of policy around this issue.''

Mr. President, I hope this is not a partisan issue. Unfortunately, we know, whether you are a Republican, a Democrat, or an Independent—it doesn't matter what your political background is—we have so many families in New Hampshire and across this country who are struggling with addiction, and it is time for us to rise above the politics and pass this important legislation.

I again thank Senator PORTMAN. I thank Senator KLOBUCHAR and Senator WHITEHOUSE for the passion and leadership they have shown on this legislation.

There is an urgent and pressing need for this legislation, and I call on my colleagues to come together and make sure we duplicate what happened in the House of Representatives, where there was an overwhelming vote to pass this legislation, so we can get it to the President's desk and make sure this legislation is funded.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Republican leader.

Mr. MCCONNELL. Mr. President, before the Senator from New Hampshire leaves the floor, I just want to say again what I said previously. We wouldn't be where we are today on the Comprehensive Addiction and Recovery Act without the Senator from New Hampshire, who made an extraordinary contribution to this early on and played an important leadership role. So on behalf of all Members of the Senate, Republicans and Democrats, I want to thank the Senator from New Hampshire for all she did to bring this forward.

ENERGY POLICY MODERNIZATION ACT OF 2015

Mr. MCCONNELL. Mr. President, I ask the Chair to lay before the Senate the House message accompanying S. 2012.

The Presiding Officer laid before the Senate the following message from the House of Representatives:

Resolved, That the House insist upon its amendment to the bill (S. 2012) entitled ''An Act to provide for the modernization of the energy policy of the United States, and for other purposes,'' and ask a conference with the Senate on the disagreeing votes of the two Houses thereon.

COMPOUND MOTION

Mr. MCCONNELL. I move that the Senate disagree to the amendment of the House, agree to the request by the House for a conference, and the Presiding Officer appoint the following conferees: Senators MURKOWSKI, BARRASSO, RISCH, CORNYN, CANTWELL, WYDEN, and SANDERS.

CLOTURE MOTION

I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to read the motion.

The senior assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby

move to bring to a close debate on the motion to disagree to the House amendment, agree to the request from the House for a conference, and the Presiding Officer appoint the following conferees: Senators Murkowski, Barrasso, Risch, Cornyn, Cantwell, Wyden, and Sanders with respect to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

John McCain, John Cornyn, Marco Rubio, Deb Fischer, Rob Portman, Roger F. Wicker, Richard Burr, Joni Ernst, David Vitter, James M. Inhofe, Dean Heller, Pat Roberts, Lamar Alexander, Ron Johnson, Tom Cotton, Thom Tillis, Mitch McConnell.

Mr. MCCONNELL. I ask unanimous consent that the mandatory quorum call be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MCCONNELL. I ask unanimous consent that this cloture vote occur at 3:30 p.m. today, with the time from 2:15 p.m. until 2:30 p.m. controlled by Senator BOXER or her designee; further, that the time from 2:30 p.m. until 3 p.m. be controlled by the majority, and the time from 3 p.m. until 3:30 p.m. be equally divided between the two managers.

The PRESIDING OFFICER. Without objection, it is so ordered.

The PRESIDING OFFICER. The Senator from Minnesota.

RECENT TRAGEDIES IN MINNESOTA AND THE COUNTRY

Ms. KLOBUCHAR. Mr. President, I come to the Senate floor today to remember those who have been affected by the tragic events in my State and across the country over the last week. I am here today to remember the loss, to share in the grief, and to stand with our community as we seek justice and healing and solutions together.

Last week was a tough week in Minnesota. There have been and there will be a lot of bleak moments, when all anyone can do is to hug their family and their friends and ask why. How can this happen? How can we make sense of the senseless? How can we go on as people and as a community that is hurting so badly?

But amidst all the horror, I also saw hope this weekend. Sunday, I spoke at Pilgrim Baptist Church in St. Paul, as well as Greater Friendship Missionary Baptist Church in Minneapolis. When I looked around that room, I saw the horror, the frustration, the anger, but I also saw the hope. Being there with the grieving members of our community gave me that hope because I knew that they supported one another, that their hearts must mend, that the neighborhoods must heal. I literally heard them talk about how the love they had within the walls of that church must go beyond to the greater community.

We have lost so many this week. What can you say to a mother whose precious baby boy—a 2-year-old—is killed in a drive-by shooting while sitting in his father's car in north Minneapolis? And what do you say to that same mother whose precious other child—the little boy's baby sister—was also injured by that gunfire?

What can you say to comfort elementary school children who have suddenly lost that friendly face in the lunchroom who always gave them a smile, a kind word, a healthy snack? There are no words that can take away the pain of losing a beloved son, partner, and friend. Philando Castile was beloved—a ''gentle soul,'' in his mother's words. He loved the kids at his school, and they loved ''Mr. Phil'' right back. He knew all the kids' names. There were more than 500 of them. He learned who had allergies and who might need a little extra help. And, yes, with a little playful nagging, he got them to eat their vegetables. In short, he cared about them, and he let them know it. Everyone knew it. My State's outpouring of grief, especially from his school, and the love and support in the wake of his loss means something.

The loss of that little 2-year-old is also a powerful reminder that being a friend is never a wasted effort—that even the smallest kindness shown to the smallest person makes this world better.

Then there were the five officers lost in Dallas. Officer Brent Thompson had just gotten married a few weeks ago. His bride was a fellow transit officer. Officer Michael Smith served in the Dallas Police Department for 26 years and volunteered as a mentor to at-risk kids. Officer Patrick Zamarripa served three tours of duty in Iraq in the U.S. Navy. The only thing he loved more than the Texas Rangers and the Dallas Cowboys was his 2-year-old daughter, Lincoln.

How about the 21 police officers in St. Paul who were injured Saturday night? There were so many peaceful protests—and there continue to be peaceful protests—involving Black Lives Matter and other groups in our State over Philando Castile's death. That is part of our democracy. That is how we make change. But what happened on Saturday night on Highway 94 was far from a peaceful process. We cannot achieve justice through injustice.

So where do we go from here? We know that nothing we can say will take away the hurt, but here is what we can do to narrow the gap between us:

First, we must pursue justice. When I served for 8 years as Hennepin County attorney, which is the chief prosecutor of our county, the largest county in our State, I always believed that my job—and the principle we would use when we looked at a case—was to convict the guilty and protect the innocent. That is what justice calls us to do. That is why I have joined with other members of the Federal delegation—Senator FRANKEN, Congresswoman MCCOLLUM, and Congressman ELLISON—in calling for a Federal investigation into Philando Castile's death. We need to understand what happened and how we can prevent this from happening again. Philando, his family, and all those children who loved him deserve nothing less.

Second, we must fight for a criminal justice system that works for everyone. We all know people who have been caught up in a criminal justice system that can be harsh and unfair. It can do the right thing and it can protect victims, but it can also destroy individual people and it can pull families apart. That is why we must pass criminal justice reform. I have long supported important policy changes. My State was one of the first that videotaped interrogations, and that ended up being a good thing, not only for the defendants but actually for our police officers and those seeking convictions. I have supported reforms to the eyewitness process. I have supported body cameras, diversity in hiring, law enforcement resources and training—very important as we go ahead and look at what we should be focused on in the next year—and meaningful, meaningful work between law enforcement and our citizens.

What else do we need? In my mind, we need commonsense gun reform. I was proud to join my colleagues on the Senate floor demanding changes to make our communities safer. One of those changes, in addition to the terror watch list bill, was to make sure we find some kind of consensus on improving background checks. The Senate's failure to pass bipartisan background check legislation has been a big disappointment. Here we had two A-rated NRA Senators that came together. Senator TOOMEY as well as Senator MANCHIN came up with a bill that would have closed some loopholes that would have made it safer. We know that States that have those background checks in place have reduced rates of suicides by guns, and they also have reduced rates of domestic homicides. I still remember those Sandy Hook parents in my office advocating for that change in the bill. They knew that wouldn't have saved their babies, but they also knew it was one of the things that could best save lives going forward and could best bring consensus in this Chamber.

From my time as county attorney, I remember those little children lost to violence:

Byron Phillips was a little boy killed on his north Minneapolis front porch. We had to put up billboards in the community saying: If you know who killed me, come forward. Eventually, it worked, and we put the guy in jail.

Tyesha Edwards was killed by a bullet while doing her homework at her kitchen table. Her mom said: Get your homework done, and you can go out with us to the mall. That is how she died. Again, we put the guys that did it in jail, but that is not compensation for what happened to that family.

Americans from across the Nation and across the political spectrum support commonsense proposals. They support commonsense background checks closing the loophole at gun shows by wide margins. In honor of those we have lost in Charleston and Orlando,

San Bernardino, Newtown, Aurora, north Minneapolis, and cities across the Nation, I will continue to stand with my colleagues until we take action on these commonsense measures.

I am reminded of President Obama's beautiful words at a service remembering more Americans lost to gun violence—this time in Charleston, SC. He said this:

> For too long, we've been blind to the unique mayhem that gun violence inflicts upon this nation. Sporadically, our eyes are open: When eight of our brothers and sisters are cut down in a church basement, 12 in a movie theater, 26 in an elementary school. But I hope we also see the 30 precious lives cut short by gun violence in this country every single day; the countless more whose lives are forever changed—the survivors crippled, the children traumatized and fearful every day as they walk to school, the husband who will never feel his wife's warm touch, the entire communities whose grief overflows every time they have to watch what happened to them happen to some other place.

My friends, we must stem the tide. But we also know that justice in our laws—which means the criminal justice reform that I noted earlier, which means commonsense gun reforms, which means making sure that these cases are investigated and the law is followed no matter what the victims' race or ethnic background or how much money they have—must happen to bring justice to these families. But the other part of this, as I look at our neighborhoods that are affected by this every single day, is economic justice. In the famous words of Dr. Martin Luther King:

> We know that it isn't enough to integrate lunch counters. What does it profit a man to be able to eat at an integrated lunch counter if he doesn't earn enough money to buy a hamburger and a cup of coffee?

When we see lingering disparities—and ''lingering'' is kind of a nerdy word for what we are talking about here. When we see these disparities of economics, when we see health disparities, when we see far too many families working so hard but still struggling to get ahead, and stubborn achievement gaps in our schools, we know there is so much more work to do. The solutions here are a deep commitment to an economic future for the people that live in our cities, to make sure they have access to the jobs that are starting to open up all over this country, that they are trained—that we look at what is happening in their schools and make sure that the training they get matches jobs that are open. We have jobs all over our State now in technology, in science, in manufacturing and welding, and this is giving those kids hope—not just in community colleges and regular colleges, not just in high school, but in middle school—that they are going to be able to get one of these jobs. That is economic hope. It is about training our kids, keeping them in school, opening the doors of our businesses, big and small, to people of neighborhoods like the one that I was in yesterday in St. Paul.

Finally, we must all work to protect the innocents among us. That is what I started talking about—how we must convict the guilty and protect the innocent, especially our children. Two-year-olds should not be shot and killed on the streets of north Minneapolis. Four-year-olds should not watch a man die in the car seat right in front of them. Nobody should have to explain to a classroom of children why their beloved friend ''Mr. Phil'' doesn't feed them lunch anymore. We are better than this.

I recently visited a mosque in Minneapolis and heard the story of a Muslim family who had gone out to eat at a restaurant—two parents, two kids. The parents, by the way, had been through 9/11 and understood what had happened then but have been able to live in our community, where we have the largest Somali population in our country, without a lot of discrimination, without a lot of hateful words even after 9/11. But not this time. They were in the restaurant with their little kids, and a guy walked by and said: You four go home. You go home to where you came from.

The little girl looked up at her mom and said: Mom, I don't want to go home. You said we could eat dinner out tonight. I don't want to go home and eat dinner.

Those are the innocent words of a child. As sweet and funny as it is, think about this: She knows no other home. She didn't even know what that guy was talking about because she knows no other home, because Minnesota is her home, because the United States of America is her home.

America is better than angry words directed at strangers in a restaurant. America is better than babies being shot on the street in broad daylight. America is better than Philando Castile losing his life. And America is better than throwing concrete chunks at police officers in St. Paul and five Dallas cops being taken from their beat forever.

So I am here today to stand with the people who are not satisfied with how things are—the people who are ready to work to make things better, the people who are the helpers and the peacemakers. Together, we can make this world a better place, and more just.

Mr. President, I yield the floor.

The PRESIDING OFFICER (Mr. LANKFORD). The Senator from Utah.

COMPREHENSIVE ADDICTION AND RECOVERY BILL

Mr. HATCH. Mr. President, the Senate will soon vote on the conference report for the Comprehensive Addiction and Recovery Act. The importance of this bill cannot be overstated. People are dying, families are suffering, communities are being torn apart. We can help, but we must do so now.

I urge my colleagues to vote in favor of this legislation, which passed in the House last week with only five votes in opposition. The bill is intended to address the growing national crisis with regard to opioid abuse and addiction.

The staggering statistics surrounding this issue are well known and are worth repeating. Every day, approximately 7,000 people show up in an emergency room for problems associated with opioid abuse. Every 30 minutes, on average, someone in our country dies from conditions that are opioid related.

My home State of Utah has been particularly hard hit. In 2014, 289 Utahans died due to opioid abuse. That is more than half of all drug overdose related deaths in the State. The CARA conference report represents a thoughtful set of policies that tackle the problems experienced by the real people—with families, children, and friends—who are represented by these statistics.

A letter signed by over 200 advocacy organizations supporting the conference report states that the report addresses the ''six pillars'' of a comprehensive response to drug addiction crises. These pillars are prevention, treatment, recovery support, criminal justice reform, overdose reversal, and law enforcement.

I am proud of the role I played in not only supporting the CARA effort but in helping to shape the conference report. As the chairman of the Finance Committee, it was important to me that the report include key improvements for Medicare in the fight against opioid abuse. I am glad to say we were successful in that regard. The legislation allows Medicare Part D prescription drug plans to identify only one physician to prescribe and one pharmacy to fill all of an at-risk patient's opioid prescriptions.

Senator TOOMEY, who has worked closely with Senator BROWN, has been an important leader on this policy. Both of them have been excellent. He should be commended for his work that, in the end, will improve patient care, reduce abuse, and give at-risk beneficiaries more opportunities to get the help they need.

Additionally, the conference report contains significant provisions related to medication-assisted treatment, or MAT, which has long been a priority for me. I have a long history of working to improve access to drugs like buprenorphine as a prescription treatment for opioid-use disorders, including heroin and prescription drug addiction.

I was the author, together with Senators LEVIN and BIDEN of the DATA 2000 law that first made it possible for patients to be prescribed buprenorphine. I would also like to note that colleagues like Senators MARKEY and PAUL have also been very able champions in our recent efforts to expand access to this effective drug treatment, including the introduction of legislation and our push to get the administration to use its regulatory authority to address this need.

Our efforts helped to encourage the drafting of an HHS rule that was finalized on July 6, the same day as the CARA conference meeting. This rule

raises an individual doctor's patient cap for buprenorphine from 100 patients to 275 patients. Thanks to these combined administrative and legislative efforts, patients will have greater access to the medication-assisted treatment they need in their recovery from substance abuse disorders.

I am pleased, as well, to see provisions included in this legislation that encourage the National Institutes of Health to intensify fundamental, translational, and clinical research on the understanding of pain. The hope is that this kind of research will lead to alternatives to opioids for effective pain treatment. These few lines within the legislation will have a significant influence on our understanding of how opioid abuse and chronic pain impact our families and communities.

Another set of highlights in the conference report are the provisions designed to protect infants born to mothers suffering from opioid addiction. Reuters reported that, roughly every 19 minutes, a child is born with an opioid dependency in the United States. That statistic is astounding.

My home State is not spared from this heartbreaking problem. A recent Utah Health Status Update indicated that, between 2009 and 2012, more than 100 babies each year tested positive for illicit drugs at birth. Once enacted, CARA will strengthen the existing plan of safe care for infants born and identified as affected by substance abuse or withdrawal symptoms, as well as fetal alcohol spectrum disorder. Hopefully, this will be an effective step to address what is a tragic problem for too many American children.

As you can see, these are issues that have been in need of sensible solutions for some time. As such, I wish to emphasize that the process that has brought us here to the precipice of passing CARA is nearly as impressive as the conference report itself.

Senator PORTMAN, from Ohio, longtime advocate on these issues, has worked tirelessly alongside Senator WHITEHOUSE, from Rhode Island, for roughly 3 years to shepherd this effort through the Senate. Those two gentlemen deserve a lot of credit and support, and I am glad that politics around this situation have been reduced so they can get this bill through.

Senator AYOTTE, who also deserves a tremendous amount of support and respect here, has also been a champion for those afflicted by these problems. Also, Senator AYOTTE deserves a lot of praise for all of her hard work. She understands this problem probably more than a lot of others, as her work in law enforcement helped her to do so. Senators PORTMAN, WHITEHOUSE, and AYOTTE heard from the individuals and families who are afflicted in dealing with these issues, and they did an outstanding job to craft policies to address these needs. All three of them deserve a great deal of respect and support.

Under Chairman GRASSLEY's leadership, CARA was reported out of the Senate Judiciary Committee. He did a great job in committee. I was on the committee. The original bill then came to the Senate floor, where Senators were able to offer amendments. The Senate passed the amended version by a vote of 94 to 1.

A similar process played out in the House, with the House passing its opioid package by a vote of 400 to 5. I was pleased to serve on the conference committee that produced what should be the final draft of this report legislation. There were many similarities between the House and Senate bills, and we were able to resolve our few differences in a way that produced an improved CARA bill.

I want to commend Representative FRED UPTON, the chairman of the House Energy and Commerce Committee—he is a great friend of mine—who was instrumental to the House effort and who also very ably chaired the conference committee. FRED UPTON is one of the great people in this body, as are the others that I mentioned.

As I alluded to earlier, the House passed the conference report this past Friday by a vote of 407 to 5. In other words, over the past several months, there have been three major votes in the two congressional Chambers, and the support has been overwhelming. Counting every vote collectively, the bill has received around 900 yea votes in Congress and less than a dozen nays. Do you know how many of those votes in opposition have been cast by a Democrat? One. A single House Democrat voted against passage of the original House opioid package. Every voting Democrat in the Senate voted in favor of our version of the bill. I commend them for that.

Last week, every House Democrat who was present voted in favor of the conference report. I commend them for that. I note these facts not to unduly inject partisanship into this discussion but because we have heard rumblings that a number of Senate Democrats may want to hold up the process in order to extract more concessions. Some have actually suggested that, despite regular order and the overwhelmingly bipartisan support this legislation has enjoyed thus far, Senate passage of the CARA conference report is in doubt. I find this hard to believe, and I hope it is not true.

A few weeks ago, the White House urged Democrats in Congress to ''slowdown'' the effort to finalize an opioid package. Thankfully, this was met appropriately with outrage. All of us, Republicans and Democrats, now have a tremendous opportunity to give vital assistance to many Americans in need and to do so with, hopefully, an almost unanimous voice. These days, we don't often get to do that around here. We should not let partisan politics get in the way of this pressing issue.

Like I said, more than 200 advocacy and stakeholder groups that have been involved throughout this process have urged passage of this conference report. Individuals suffering from these afflictions, as well as their families and friends, are crying out for help. The House of Representatives heeded their call. The Senate must do the same.

I want to commend the majority leader for moving swiftly to bring this important legislation up for a vote. I think it is absolutely essential that we act before Congress breaks for the recess.

I urge my colleagues to vote in favor of the CARA conference report. Let's send it to the President's desk this week and deliver results for those Americans who are depending on us.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Connecticut.

TRAGEDY IN DALLAS AND GUN POLICY

Mr. MURPHY. Mr. President, I am coming to the floor once again to express my condolences to the families of those who were lost in Dallas—the families of Brent Thompson, Michael Krol, Patrick Zamarripa, Lorne Ahrens, and Michael Smith. In Connecticut, we know the ripples of loss that really never end in a community like Dallas and a community like Orlando. There is going to be a long period of healing. Our thoughts and our prayers and any help we can provide from those of us who represent Connecticut and Sandy Hook, specifically, extend to those in Dallas.

In the wake of another tragedy, I wanted to come down to the floor for a short period of time—I know my colleagues are waiting to speak—to talk about some of the very irresponsible rhetoric that gets tossed around when it comes to this debate over the future of gun policy in this country. I want to take 5 or 10 minutes to talk about what is the biggest lie used by the gun lobby in this debate, and it is this: The only thing that stops a bad guy with a gun, is a good guy with a gun.

This isn't true. It has never been true. It will never be true. It is, quite simply, an invention designed by the gun industry to sell more guns, to convince Americans that laws and rules cannot protect them, and that the only thing that can keep them safe from being shot is to buy expensive weapons and expensive ammunition that pad the profits of the big gun companies.

It is time we call this lie what it is. It is a marketing gimmick for gun companies, plain and simple: The only thing that stops a bad guy with a gun, is a good guy with a gun.

Let me be clear. I don't quarrel with anyone who decides to buy a weapon for self-defense. That is your decision. That is your call. Last week I met in my office with women from Connecticut who came to my office to tell me about their belief that owning a weapon is instrumental to their ability to protect themselves. One woman told me a story of repelling an attacker with a gun that was in her purse, and her sincere belief is she would not be alive today if it weren't for the weapon that was on her person.

I support the Second Amendment, and I accept that the Supreme Court has made it clear that this amendment protects the ability of anyone to buy a weapon for self-defense, subject to certain commonsense limitations. But if you are buying a weapon because you think that owning one makes you less likely to be killed by a gun, then you are wrong. If you are standing in the way of policies that crack down on illegal or dangerous weapons on our street because you believe in some kind of gun control Darwinism—a world in which the good guys with guns eventually shoot all the bad guys with guns—then you have it backwards because that is not how it works.

You know how I know this? Because study after study tells us that owning a gun makes you more likely to be killed by that gun than to use it to kill someone who threatens you. Studies show that in countries and States with more guns, there are generally not less gun deaths but more gun deaths, like the study in the New England Journal of Medicine that showed a gun in your house doesn't make you less likely to be killed. It isn't even risk neutral. Having a gun in your home actually increases your chance of getting killed by a gun by anywhere from 40 percent to 170 percent.

How about the study in the American Journal of Epidemiology that showed that people living in a house with a gun are 90 percent more likely to die from a homicide than a person who lives in a house without a gun.

What about the study from the Violence Policy Center that showed that instances of guns being used in self-defense are so rare that on average there are 44 criminal homicides with guns for every time a gun is used for protection in a justifiable homicide.

How about one more study. The Harvard Injury Control Research Center study showed that in States and communities with greater gun availability, gun homicide rates were higher, not lower, than in communities and States with lower gun availability. It is your decision whether or not to buy a gun. There are certainly instances where it may make sense, and I don't begrudge the individual who makes that decision, but the data tells us only one story. The actual real, live experience of living in a nation awash in guns shows that contrary to the gun lobby sloganeering, the opposite of their claim is actually true. The more good guys there are who have guns, the more good guys die from guns. We have no clear or more horrifying example of this truth than last weekend in Dallas, TX.

Texas is an open carry State, meaning that anyone who can legally buy a semiautomatic weapon can walk around the streets of Dallas or any other community with that weapon attached to them. Reports suggest that there were perhaps 30 people openly carrying AR–15-style weapons at Saturday's protest. Some were also wearing camouflage, bulletproof vests, and gas masks. There were also dozens and dozens of police officers on hand, all of them expertly trained and heavily armed. Between the 30 heavily armed civilians and dozens of police officers, there were more good guys with guns in the vicinity of this one very bad guy with a gun than at nearly any other crime scene in recent memory, and it led to chaos.

Here is what Dallas Police Chief Brown said in the wake of the shooting:

> We're trying as best we can as a law enforcement community to make it work so that citizens can express their Second Amendment rights, but it's increasingly challenging when people have AR–15s slung over their shoulder and they're in a crowd. We don't know who the good guy is versus the bad guy when everyone starts shooting.

All of those guns in the hands of good-hearted civilians and trained police officers—and what killed the sniper, Micah Johnson? It wasn't a gun. It was an explosive device attached to the end of a robot on wheels. Eleven brave police officers fired their weapons at Micah Johnson. Dozens of armed civilians theoretically had the opportunity to defend themselves and their fellow protesters, but one deranged man, armed with an antique rifle and 30-round magazines strategically positioned above his targets, was unharmed by all of those good guys with guns, just as Jared Lee Loughner was unharmed by a civilian with a gun in the parking lot of the supermarket where he shot Congresswoman Gabby Giffords in the head, and just as the armed security guard in Pulse nightclub couldn't do anything about Omar Matteen as he executed 49 young men and women. It is just like what happened to Nancy Lanza, who thought the guns in her home would protect her and her son from harm, only for them to be used by her son to murder her in her sleep and then massacre 20 first graders and 6 of their educators.

If you want to buy a gun for self-defense, that is your call, but before making that purchase, understand that the gun lobby is lying to you. If a bad guy has a gun and wants to kill, there is very little that can be done to stop him once the tragedy is in motion. The best policy is to stop madmen and killers from getting these dangerous weapons in the first place.

Dallas Police Chief Brown said to us:

> Do your job. We are doing ours. We're putting our lives on the line. The other aspects of government need to step up and help us.

When Connecticut implemented a law requiring a permit to be issued before a gun is issued, gun homicides dropped by 40 percent. In States that require background checks for private handgun sales—listen to this—48 percent fewer law enforcement officers are shot to death by handguns, and in States with universal background checks, women are 46 percent less likely to be shot by their intimate partner than in States without universal checks.

This isn't conjecture. Good laws save lives. Concentrate on passing laws that keep dangerous weapons out of the hands of criminals and killers, and you will save lives. Load up your streets, schools, and shopping malls with weapons and just hope that the good guys will eventually outshoot the bad guys, and people will be killed.

People across this country have figured it out, and that is why they support expanded background checks by an astounding ratio of 90 percent to 10 percent. There is no public policy in this country that is supported by 90 percent of Americans. They know that smart firearms laws save lives, and so they support universal background checks by a ratio of 9 to 1. It is also why there are fewer and fewer American families buying guns. It makes sense for some people, and I am not denying that. A new CBS News poll shows that gun ownership is at a near 40-year low with only 36 percent of Americans reporting that they own a gun. That is down 17 points from its highest rate in 1994 and down a whopping 10 points from just 4 years ago, but be forewarned, this development will simply propel the gun lobby to be even bolder in spreading its lies about the effects of gun ownership.

Just two weekends ago the head of the NRA went on national TV and told Americans that the only way to protect themselves from terrorism is to have a personal defense plan. That means, if you didn't parse his words, to go out and buy a gun from a gun company and help the industry stem this tide of declining gun ownership all in the name of collective self-defense. Well, it is a lie. Good guys with guns generally don't stop bad guys with guns. They didn't in Dallas. Good laws that keep illegal and dangerous weapons off of our streets, that make sure that only law-abiding, peaceful citizens are obtaining weapons—those laws stop bad guys. When you strip away all of the rhetoric driven by the gun industry profit motivations, that is the truth.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. THUNE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. THUNE. Mr. President, I ask unanimous consent to complete my remarks.

The PRESIDING OFFICER. Without objection, it is so ordered.

FAA REAUTHORIZATION BILL

Mr. THUNE. Mr. President, over the past 4 months, the Islamic State has carried out two deadly terrorist attacks at airports. Taken together, these two attacks—one at Brussels Airport and one at Istanbul's Ataturk Airport—resulted in more than 500 injuries and more than 70 deaths.

Since September 11, airport security efforts have emphasized securing aircraft against hijackings, but the Brussels and Istanbul bombings highlight other airport security vulnerabilities. As these attacks demonstrate, it is not just planes that are vulnerable. Both the Brussels and Istanbul attacks sought to exploit the largely unprotected areas outside the principal security checkpoints where the attackers could detonate bombs outside of screening. The large crowds of people who congregate in nonsecured areas of an airport—like security checkpoints, check-in counters, and baggage claim—make appealing targets for terrorists who like nothing better than maximum loss of life with minimum effort.

This week, the Senate will take up the Federal Aviation Administration reauthorization bill, which will directly address the vulnerabilities exposed by these attacks. It will ensure that attacks like those that happened in Brussels and Istanbul don't happen at American airports.

While this bill has gained new urgency in the wake of the bombings in Istanbul and Brussels, the reforms in this bill are not a hasty response to these attacks. Instead, they are the product of months of Commerce Committee oversight of our Nation's transportation safety agencies and extensive Commerce Committee analysis of airport security vulnerabilities.

I am proud that the bill we are considering today is the most significant airport security reform bill that Congress has considered in a decade. As I have already mentioned, one problem that the Brussels and Istanbul attacks highlighted in great detail is the tempting terrorist target offered by large crowds of people in unsecured areas of airports. The FAA bill addresses that problem in a number of ways. For starters, this bill includes provisions to get more Americans enrolled in the TSA's PreCheck program. Expanding enrollment in PreCheck will reduce wait times at security, which will help reduce the size of crowds waiting in unsecured areas.

The bill also directs the TSA to more effectively deploy its personnel during high-volume travel times to speed up wait time at checkpoints. It also requires the TSA to develop and test new security systems that expedite the movement of passengers through security. Another important measure we can take to prevent attacks like those in Brussels and Istanbul is increasing the security presence in unsecured areas of airports.

The FAA bill adds more prevention and response security teams, which often include K–9 units, and expands training for local airport security personnel so the airports are better able to deter or respond to bombers or active shooter threats. Increasing security at our Nation's airports and expediting security checks will go a long way toward preventing terrorist attacks, but threats at U.S. airports are not only threats facing U.S. airline passengers. Americans travel internationally on a regular basis, and on their return flights they depend on the quality of airport security in other countries. Part of protecting the traveling public is making sure that Americans traveling to other countries are safe when they return to the United States.

To increase security for Americans traveling abroad, the FAA bill that we will pass this week authorizes the TSA to donate unneeded screening equipment to foreign airports with direct flights to the United States. It will strengthen cooperation between U.S. security officials and security officials in other countries and authorize the TSA to support training for foreign airport security personnel. It requires the TSA to conduct assessments of security that have received less attention at foreign airports and foreign cargo security programs.

Another aspect of airport security that has received less attention but is equally important is the need to make sure that individuals who work behind the scenes at airports don't pose a threat. In October of 2015, terrorists killed 224 people when they brought down Russian Metrojet flight 9268 shortly after it departed Sharm el-Sheikh airport in Egypt. Many experts believe that the terrorists responsible had help from an airport worker. Ensuring that airport workers are trustworthy is essential to keeping passengers safe. However, at times the security badges that permit individuals to work behind the scenes at airports have been issued to individuals who have no business holding them. Right now in the United States individuals with convictions for crimes, including embezzlement, sabotage, racketeering, immigration violations, and assault with a deadly weapon can all obtain security badges granting them access to restricted sections of an airport.

While most criminals are not terrorists, there are too many criminals who, for the right price, would happily expand their criminal activities even if it involved assisting terrorists. In fact, in March of this year, an airline ramp agent was arrested in a Florida airport with $282,400 in cash that he allegedly intended to hand off to an unknown individual. News reports indicated that he was aware the money was connected to illegal activity but knew little else. In other words, he could easily have been transporting money to terrorists without being any the wiser.

The FAA bill that we will pass this week tightens vetting of anyone with access to secure areas of an airport and expands the list of criminal convictions that could disqualify someone from holding a security badge. This bill also provides for an increase in random searches of behind-the-scenes airport workers who are not always subject to security screening the way passengers are.

I am very proud of everything this FAA bill achieves in terms of security. This is the most comprehensive airport security package in a decade, and it will help us make real progress toward keeping airline passengers safer, and that is not all.

In addition to its robust security package, this bill puts in place a number of other important measures, among them new consumer protections. For example, this legislation will require airlines to refund package fees for lost or unreasonably delayed baggage so passengers will not have to spend a ton of time tracking down a refund when the airline doesn't deliver. It will also make sure airlines have policies that will help families traveling with children sit together on flights. It also takes steps to improve air travel for individuals with disabilities, and it ensures that Americans in rural areas will continue to have access to reliable air service.

The bill also takes measures to support the general aviation community. It streamlines the requirements for the third-class medical certificate for noncommercial pilots so private pilots don't face unnecessary bureaucracy when obtaining their medical qualification, and to reduce the risk of accidents for low-altitude fliers like agricultural applications, the bill requires highly visible markings on small towers that could impose a hazard to pilots.

On the aviation safety front, this bill updates current law to reflect the rapid advances in technology we have seen over the last few years—most notably drones. This bill includes provisions to deploy technology that will work to keep drones out of the path of airliners, which is particularly important given reports of near-miss collisions by airline pilots. It will also deter drone operators from interfering with emergency response efforts like wildfire suppression, and, in addition to fostering drone safety, this bill authorizes expanded research opportunities and operations that will further the integration of drones into our Nation's airspace.

Since we took control of the Senate in January of 2015, Republicans have focused on passing legislation to address the challenges facing the American people in our country. I am proud that with this bill, we have found a way to make our increasingly dangerous world a little safer for Americans. I am grateful to my colleagues who contributed to this bill, particularly my Democratic counterpart in the conference committee, Senator NELSON.

Senator AYOTTE also led numerous subcommittee hearings in the Aviation Subcommittee to get the bill on a path to success, and both of us appreciate the contributions of Senator CANTWELL, our Aviation Subcommittee ranking member.

This bill is an example of what can happen when Democrats and Republicans work together to get things done for the American people. I look forward

to sending our legislation to the President for his signature later this week.

UNITED STATES APPRECIATION FOR OLYMPIANS AND PARALYMPIANS BILL

Mr. President, I also wish to speak for just a moment, if I can today, about a bill that hopefully will pass the Senate later today as well.

In just a few weeks, our Olympic athletes will head to Rio de Janeiro, Brazil, for the 2016 Olympic games. The following month, America's Paralympic athletes will compete in the Rio Paralympic games. These athletes represent what is best about our country. They embody the timeless values of hard work, dedication, and sportsmanship.

Our Olympic and Paralympic athletes—and their families—have made innumerable sacrifices over the many years of training it takes to become a world-class competitor. Training is not cheap, and the vast majority of our amateur athletes put it all on the line without the help of sponsors or endorsement deals to subsidize their expenses.

Many of these athletes have spent virtually their entire lives training for this moment, and I have absolutely no doubt these brave young men and women will represent our Nation with great honor and distinction.

America's Olympic and Paralympic medal winners, in particular, will be greeted with much enthusiasm and great appreciation upon their return. Local communities across America will find ways to honor their returning hometown heroes. Unfortunately, one of the ways the Federal Government will welcome home our Olympic and Paralympic champions is by greeting them with a new tax bill. That is right. The Internal Revenue Service considers these medals to be income and will tax the value of any gold, silver, or bronze medal awarded in competition as well as any incentive award our athletes receive from the U.S. Olympic Committee.

I believe this tax penalty on our Olympic heroes is wrong, and that is why earlier this year I introduced S. 2650, the United States Appreciation for Olympians and Paralympians Act.

This legislation—introduced with Senators SCHUMER, GARDNER, GILLIBRAND, and ISAKSON—would ensure that America rewards the sacrifice and hard work of Team USA by exempting from Federal tax the medals and cash prizes they win at the Olympics and Paralympics.

I am pleased my legislation will pass the Senate later today, sending a strong signal to our athletes as they depart to the 2016 games that their Nation stands behind them. I urge the House of Representatives to take up and pass this legislation before the House adjourns for the August recess.

America's Olympic and Paralympic athletes deserve not only our admiration and respect but also a tax system that acknowledges the many years of training and sacrifice they have endured. Because training for the Olympics is not considered a business enterprise, our athletes cannot deduct the substantial costs they incur over the years as they prepare to represent America on the world stage.

Most countries not only compensate their athletes but also subsidize their training expenses with taxpayer dollars. Our athletes make considerable financial sacrifices to train for the Olympics and Paralympics and as amateurs receive no compensation for their training. The very least we can do is ensure they don't receive a tax penalty when they successfully represent our Nation in the highest level of athletic competition.

Simply put, when it comes to our victorious Olympic and Paralympic athletes, we should celebrate their achievements rather than tax their success.

CONGRATULATING PAIGE MCPHERSON

Mr. President, I would also like to take this opportunity to extend my congratulations and best wishes to one of Team USA's shining stars; that is, South Dakota's own Paige McPherson.

Paige grew up in Sturgis, SD, graduating from Black Hills Classical Christian Academy in 2009. She will be competing in Taekwondo at the Rio games and will be striving for her second medal in a row, after claiming a bronze medal at the London Olympic Games in 2012.

I know Paige will represent America—and South Dakota—with great distinction next month, as will all of our Olympic and Paralympic competitors.

I wish to thank the original cosponsors of my legislation, whom I mentioned earlier, as well as Finance Committee Chairman HATCH and Senators SULLIVAN and MORAN for their support. I look forward to seeing our legislation enacted into law this year, and I wish all of our Olympians and Paralympians the very best of luck in Rio.

Mr. President, I yield the floor.

RECESS

The PRESIDING OFFICER. Under the previous order, the Senate stands in recess until 2:15 p.m.

Thereupon, the Senate, at 12:53 p.m., recessed until 2:15 p.m. and reassembled when called to order by the Presiding Officer (Mr. PORTMAN).

ENERGY POLICY MODERNIZATION ACT OF 2015—Continued

The PRESIDING OFFICER. Under the previous order, the time until 2:30 p.m. will be controlled by the Senator from California, Mrs. BOXER, or her designee; the time from 2:30 p.m. to 3 p.m. will be controlled by the majority; and the time from 3 p.m. to 3:30 p.m. will be controlled by the two managers.

The Senator from California.

Mrs. BOXER. Mr. President, I ask unanimous consent that I be permitted to speak for 15 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRAGEDY OF VIOLENCE

Mrs. BOXER. Mr. President, I stand here as one of the two Senators from the largest State in the Union to recognize that there is a hole in the heart of America today as we cope with the tragedy of violence on all sides. I am working on comprehensive remarks because I am doing it more, in a way, for myself, and those are not prepared right now, but right now I want to send my deepest condolences to those who are suffering, who have lost loved ones, be those loved ones police officers or community members, and for that matter, so many Americans, so many American families who suffer losses because of violence every day. It is critical that we address this issue. I compliment the voices on all sides—the voices of compassion, reason, and love—and I hope I can add my voice to their voices.

CLIMATE CHANGE

Mr. President, what several of us are doing on another topic is calling attention to the web of denial that is being peddled in our Nation by special interests and their think tanks and organizations that are working to undermine peer-reviewed climate science. Their goal is to create uncertainty and to delay action on the biggest environmental and public health threat we face today.

Climate change is real, human activities are the primary cause, and the warming planet poses a significant threat to our people and to our environment. That is not my opinion. I am the first one to say I am not a scientist. I rely on scientists, and 97 percent of them have said that climate change is real and human activity is the primary cause.

The level of scientific certainty on manmade climate change is about the same as the consensus among top scientists that cigarettes are deadly, but some of you may remember that up until the late 1990s, the tobacco industry scoffed at the best available science proving that tobacco is addictive and causes cancer. No one in today's world would argue with the fact that tobacco is addictive and causes cancer. In the 1990s, there was a campaign of denial, just as there is for climate change now. Year after year, the tobacco industry attacked the science that showed the link between cigarettes and the threat to human health, as well as the Surgeon General's warning that nicotine was as addictive as heroin and cocaine. Let me share a few of the statements made by or on behalf of the tobacco industry.

In 1970, the Tobacco Institute advertised that the scientific finding that proved a connection between cigarette smoking and lung cancer was wrong. They said: ''The Tobacco Institute does not—and the public should not—accept these claims at face value.''

In 1971, Joseph Cullman, the chairman of Philip Morris, said: ''We do not

believe cigarettes are hazardous; we don't accept that.''

In 1988, a lobbyist from the Tobacco Institute submitted written testimony for a congressional hearing stating: ''In sum, there is no medical or scientific basis for viewing cigarette smoking as an 'addiction.' The effort to disparage cigarette smoking as an 'addiction' can only detract from our society's attempt to meet its serious drug problem.'' That was what the cigarette companies said.

At congressional hearings in 1994, executives from the seven biggest tobacco companies testified that they believed nicotine was not addictive. Do you remember the picture of them swearing to that fact?

A tobacco industry doctor said: ''The proposed addiction warning and the assumption upon which it is founded are based neither in science nor fact and will have unintended harmful results.'' This is the tobacco company doctor saying that if you warn people, it will have unintended harmful results. Sure—for his bosses, the tobacco companies, who are paying his salary.

In 1998, Walker Merryman, vice president and chief spokesman for the Tobacco Institute, said: ''We don't believe it has ever been established that smoking is the cause of disease.''

The reason I spent so much time going through that painful history is that a lot of people died of cancer because the tobacco companies and their think tanks would not tell the truth to the American people. That is why a lot of people died.

At the end of the day, the tobacco companies failed, but there are so many bodies out there because of their heavily funded propaganda campaign. When the people knew the truth, America's smoking dropped from 42 percent in 1964 to 15 percent in 2015. To anybody out there who is still addicted, I pray God that they will get help. There are very few things where we know the cause and effect. We know the cause and effect of smoking—it is not good.

Investigative reporting has clearly shown that those who led the fight against health warnings on tobacco have been involved in the climate denial movement from the beginning. Just as Big Tobacco denied that smoking was dangerous to people's health, Big Oil and other special interests have tried to undermine scientists' warnings about harmful climate pollution by claiming that climate change does not exist.

So we had Big Tobacco spreading the big lie that smoking was nonaddictive—they even said at one point that it was good for you—and Big Oil telling us that there is no climate change, that it is a hoax. But if we look at the 97 percent of scientists, what have they told us we are going to see? Higher temperatures, more extreme weather, severe droughts, increased wildfires, decreasing polar ice, and rising sea levels. That is what 97 percent of the scientists said would happen. Guess what. It is happening.

Don't take my word for it. Let me give specifics. Mr. President, 2015 was the hottest year on record. Every month of this year continues to set records. Sea levels are rising many times faster than they have in the last 2,800 years. The 2015 wildfire season was the costliest on record, with $1.71 billion spent. California, my fantastic home State, is suffering from its worst drought in modern history, and scientists are predicting megadroughts. Rising temperatures are expected to worsen air quality and threaten public health.

The American public sees what is happening, and they understand the need to act. Seventy-one percent of Americans supported the historic Paris agreement to address climate change by reducing harmful carbon pollution. A March 2016 Gallup Poll shows that 64 percent of Americans—the highest percentage since 2008—are worried about climate change. Gallup also found that between 2009 and 2015, a decline in public concern about climate change was linked to a well-publicized campaign of misinformation about climate science.

The fossil fuel industry took a page right out of the tobacco company's playbook, supporting a network of organizations that create a false sense of uncertainty. So let me tell you that I have joined my colleagues on a resolution condemning the effort by the fossil fuel industry to discredit climate science, just as the tobacco industry worked to discredit science that proved tobacco causes cancer.

I want to work with my colleagues to call attention to this web of denial. There are organizations out there—they have beautiful names. They are funded by ExxonMobil, they are funded by the Koch brothers, and organizations like DonorsTrust, which hides the identities of funders and was called the Dark Money ATM in the press. Dark money is a good description because the deep pockets of Big Oil and other special interests have been misleading the American people for many years.

As I close my presentation, I want to talk to you briefly about three organizations based in my home State: the Reason Foundation, the Pacific Research Institute for Public Policy, and the Hoover Institution. These three organizations have been involved in efforts to undermine climate science.

The Reason Foundation has been churning out materials to raise uncertainty. The Hoover Institution, which is affiliated with Stanford University—which has so many wonderful things to commend it, but in my opinion not this—has been identified by the researchers as part of the climate countermovement. I have great respect for the work former Secretary of State George Shultz and others are doing at Hoover. However, I have to point out many articles published under Hoover's name have created uncertainty about climate science, trying to undermine the need for action.

The third organization is Pacific Research Institute, which is a free market think tank that published a number of anti-climate science materials, including the ''Almanac of Environmental Trends.'' Just last month, 31 major scientific organizations basically said there is strong evidence that ongoing climate change is having broad negative impacts on society, including natural resources, the global economy, and human health.

For the United States, climate change impacts include greater threats of extreme weather, sea level rise, increased risk of regional water scarcity, heat waves, wildfires, disturbance of biological systems. We expect to see this increase. This is what the real scientists are saying, the ones who care about our people, our environment. They don't get their paychecks from Big Oil and those who stand to lose if we turn to clean energy.

So the scientists who work for that money from the Koch brothers, this is what they say: The world is warming far less quickly than we thought. A little warming will also extend growing seasons. Now consider the dire prediction regarding global warming and think of climate like golf. It is easy to see where the ball has landed but difficult to construct a model to predict with much confidence where the next ball will land.

We have many other comments by these sham groups that are funded by Big Oil, by the special interests, just like the tobacco industry had think tanks that supported them. You know, fool me once, OK. Fool me again, I am going to find out. We know about these organizations.

ExxonMobil gave a total of $381,000 to Reason; $295,000 to Hoover; $615,000 to the Pacific Research Institute—ExxonMobil. Foundations associated with the Koch brothers provided more than $1 million to the Reason Foundation and to the Pacific Research Institute. So we know what is going on here, but there is good news. The American people are not asleep at the wheel. They understand what happened with Big Tobacco. They understand the phony science that was put forward by Big Tobacco. Thanks to the leadership of my colleague SHELDON WHITEHOUSE, who has done an extraordinary job—he knows the truth. He knows the truth that these organizations are puppets of the big fossil fuel industry. You know what. They are going to be found out.

The people already do not, in any way, support them. That is why I am optimistic and came to the floor today. The truth will have its day. The people understand. They look out the window and they know.

I yield the floor.

The PRESIDING OFFICER. The Senator from Alaska.

Mr. SULLIVAN. Mr. President, I ask unanimous consent to enter into a colloquy for 30 minutes with the Senators from Montana, North Carolina, and Iowa.

The PRESIDING OFFICER. Without objection, it is so ordered.

DEPARTMENT OF DEFENSE APPROPRIATIONS BILL

Mr. SULLIVAN. Mr. President, last week we had a lot going on in terms of national security and foreign policy facing our country and, most importantly, facing our troops, facing our military. The President, the Secretary of Defense, the top leaders in the military were asking a lot of our troops in 1 week. Let me just give you a little example of that.

Just yesterday, Secretary of Defense Ash Carter announced, from where he is in Iraq, that the United States will be deploying 560 more troops to Iraq in our fight against ISIS. Make no doubt about it, the White House might spin what we are doing over there, but our troops are definitely in combat, fighting to protect us.

At the NATO summit on Friday, President Obama announced that the United States will be deploying an additional 1,000 troops and a separate brigade headquarters to Poland. A lot of us—I think bipartisan—support what is going on at the NATO summit and congratulate the President for a successful summit.

On Wednesday, the President announced he plans to leave 8,400 American troops in Afghanistan—more than he originally planned, a number that a lot of us had been advocating for, maybe even more—to combat the Taliban; again, our troops in action.

On Saturday, we learned that North Korea launched a submarine ballistic missile off the coast of the eastern part of the country. Over the weekend, the Wall Street Journal reported that even after reaching the Iran nuclear deal, the Iranians continue to try to illegally procure nuclear equipment from Germany. Finally, just today, there was an important ruling from The Hague, the tribunal there, about what is going on in the South China Sea, in keeping sealanes open where we just recently had two carrier battle groups—two U.S. carrier battles groups, thousands of sailors in that part of the world.

So what did the Senate do with regard to all the activities facing our troops? What did the Senate do to support these troops whom the President and the Secretary of Defense are asking so much of? Well, a lot of Americans did not see it, but in the late night, on Thursday night, led by the minority leader, unfortunately our colleagues on the other side of the aisle filibustered defense spending, filibustered the Defense appropriations bill.

This is not the first time that has happened. Indeed, that is the bill the other side seems to like to target. Amazingly, they like to target funding for our troops and our military. That is not the first time. It is not the second time. It is not the third time. It is the fourth time, inside of a year, our colleagues on the other side of the aisle filibustered funding our troops, at a time when national security challenges and what we are asking our military to do are at an alltime high.

What I want to do with my colleagues is talk about this, try to let the American people know this is not what we should be doing. Perhaps the media will talk about this and highlight this a little bit more because we are going to vote again on this appropriations bill, which, by the way, came out of committee unanimously. The Democrats on the committee voted for it.

Yet, somehow, when it comes to the floor, they are going to do another filibuster. They did it last Thursday. It is our hope—and one of the reasons we are on the floor right now—to convince our colleagues to change their ways. I am sure they don't want to have to go home after recess and have to explain to their constituents why they voted not once, not twice, not three times, not four times but five times to filibuster spending for our troops. I hope they don't have to do that. We are going to vote on that again this week.

I am honored to be on the floor with some distinguished Members of the Senate, some of the Members of the class of 2014. I am going to ask the junior Senator from Iowa—who knows a little bit about what she is talking about when it comes to the U.S. military, with 23 years of military service, having just retired as a lieutenant colonel in the Iowa National Guard. I am honored to have her open up and say some words about something that is remarkable that is going on, on the Senate floor—filibustering the spending for our troops at this dangerous time.

It is not what we should be doing. Our colleagues know it. I guarantee you the American people know it. If you ask people, Democratic or Republican: Should we be funding our troops at this moment, the answer, clearly, in every State and every part of the country, would be yes.

Senator ERNST.

Mrs. ERNST. I say thank you to Senator SULLIVAN, the distinguished Senator from Alaska. Thank you for your passion as well. You have served in the Marines, in the Marine Reserves. I thank you for that, for your dedication and your commitment to our United States of America through your service as a marine and now through your service in the Senate.

We are also joined by the Senators from Montana and from North Carolina. I would like to thank my colleagues for joining in a colloquy. The filibuster we have seen on the other side of the aisle sends a message to our troops that we don't care about their security, and we don't care about the Nation's security. We must fund our troops, at a time when, as you stated, the world is virtually imploding.

We see actions going on all around the globe, whether it is from North Africa into Iraq, Syria, North Korea, China, Iran, Afghanistan. We could go on and on, where our troops are needed for safety and security, where they are needed to keep the fight away from our homeland.

So I thank everyone who is joining in today. I appreciate the thoughts we will be sharing with our constituents and with the audience we have. Hopefully, we will see this projected nationwide, with an outcry of outrage that the Democrats are blocking—are daring to block funding for our national security.

This is a bipartisan bill—a bipartisan bill. The Senate version cleared out of our Senate Appropriations Committee by a vote of 30 to 0, Democrats and Republicans. We came together, bipartisan, 30 to 0.

In total, this bill appropriates $515.9 billion for our national security. Some $900 million of this is funding for the National Guard, a critical arm to the security of the United States and where I ended my 23-plus-year career last November in the Iowa Army National Guard.

In fact, my old unit, the battalion I commanded in the Iowa Army National Guard, that battalion headquarters is currently forward-deployed. So the men and women I served alongside, they are out there protecting our freedoms. They are out there securing an area far away from home. They are doing it not just for me and not just for the Senators who are here, but they are doing that for all of you.

The fact that we would reject funding for our forward-deployed troops is appalling to me. Those are my brothers and sisters. These are my friends, my neighbors, my colleagues. They are fighting on behalf of the United States. The United States is now turning its back, with a filibuster, on these troops. So how dare our colleagues block a bill to fund our military, while our troops are forward-deployed. They are out on our frontlines.

I know my colleague from Montana has had some troops who have just recently returned. I know he would like to join us in this discussion as well.

Mr. DAINES. Mr. President, I want to thank the Senator from Alaska. I also want to thank Lieutenant Colonel and Senator ERNST for her service to our Nation. Senator ERNST is the first female combat veteran to ever serve in the Senate. It is an honor to serve with her, and I thank her for her service to our country both as a soldier as well as a Senator.

As I speak today, my friends from across the aisle have already—not once, not twice, but three times—blocked consideration of the Department of Defense Appropriations Act of 2017, which will deny our troops the proper funding and support they deserve. I am proud to be standing here with some of my freshmen colleagues, imploring my friends on the other side of the aisle to stop the political games and get back to work, and that starts with funding our military.

We shouldn't be playing these petty political games on legislation that is

and should be historically bipartisan. In fact, this bill, the Department of Defense Appropriations Act, passed the House of Representatives in June on a bipartisan vote of 282 to 138, and that included 48 Democrats. That is a very strong bipartisan vote. Over on the Senate side—as a member of the Committee on Appropriations, I recall it clearly—it passed our committee 30 to 0. That is called running up the score—30 to 0 out of the Committee on Appropriations on May 26. Not one Democrat opposed this bill in committee. I ask my colleagues: What in the world has changed? Why did we go from 30 to 0 in the committee and now we are seeing a filibuster here on the floor of the Senate?

Just so we are all clear, when Senate Democrats vote no, here is what they are saying no to: 1.2 million military Active-Duty servicemembers and 800,000 reservists. They are saying no to 10,000 troops engaged in combat in Afghanistan and the additional military in harm's way in Iraq, Syria, and other places throughout the world.

We are seeing ISIS expanding into places like Libya. They are attacking Western targets like Paris, Brussels, and the homeland here, in places like San Bernardino and Orlando. We need to make sure our military forces have the tools they need to win. As Senator MARCO RUBIO once said: It is either we win or they win. There is no middle ground here. Let us give them the tools they need to win. I can tell you one thing: Our enemies are not waiting around for Senate Democrats to fund our military to make it a fair fight.

This bill provides money to replace the munitions and other consumable items being used to defend America against the likes of ISIS, Al Qaeda, and the Taliban. Passing this also gives confidence to our Eastern European allies.

Back in my home State of Montana, we have a rich legacy of service. I am the son of a U.S. marine. My dad served in the 50th Rifle Company in Billings, MT. In fact, our Nation's ''peace through strength'' strategy can be seen clearly at Montana's Malmstrom Air Force Base. You see, up in Montana, we have one-third of the Nation's intercontinental ballistic missiles. We play a critical role in meeting our Nation's security and military needs. In fact, I have the utmost faith—and always do—in the 1,200 defenders at Malmstrom that provide security for the missiles that silently sit across Montana. I know these airmen will not fail our Nation, but Washington, DC is failing them. Senate Democrats are failing them, and that is unacceptable.

At Malmstrom, the motto on the commander's coin says this: ''Scaring the hell out of America's enemies since 1962.'' And they do so because this body chose duty over politics.

So how can Democrats continue to stand here and say no to our military when so much is at stake, when the House passed a bipartisan bill, when this body passed a bill by a unanimous vote of 30 to 0 out of committee? We must say yes to our military who fight for us every day and say no to petty politics in Washington, DC. We must stand up for the rights and the freedoms we enjoy. Senate Democrats, stop saying no. Let us debate the DOD appropriations bill.

Finally, I urge my Senate colleagues across the aisle to have the courage to vote against the wishes of their leaders and help us move this legislation forward.

Again, I am proud to stand here with some of my Senate freshmen colleagues and the distinguished Senator from North Carolina, THOM TILLIS. I know Senator TILLIS has some real concerns about what is going on here on the Senate floor.

Mr. TILLIS. Mr. President, I want to thank my friends and colleagues from Montana, Alaska, and Iowa for being here. I particularly want to thank Lieutenant Colonel ERNST for her service. She is now a veteran, but she served bravely. I want to thank my friend from Alaska. He is a marine, and he still answers the call. He is doing the work here in the Senate, but he is prepared to go on a moment's notice wherever we have to go to defend freedom.

I come from North Carolina. This is almost getting personal with me. I am going to talk a little bit about that, but I want to explain to the people who may be watching this on television or to those in the Senate Gallery what we are talking about.

We use the word filibuster, and it is kind of hard to understand, but it is actually pretty straightforward. The Democratic conference has decided to say no to funding our troops. They have decided to say no to providing them a much deserved pay raise. They have decided to say no to funding important training that is necessary to make sure they can complete these highly dangerous and complex missions wherever a threat may occur.

Now, why is it personal to me in North Carolina? Because I have about 100,000 Active-Duty personnel in North Carolina. Fort Bragg in North Carolina is the home of the Global Response Force. That is the base that gets the call from the President when, on a moment's notice, we may have to send hundreds or thousands of men and women to drop out of airplanes anywhere in the world. It is not just jumping out with a parachute. It is jumping out with a hundred pounds of equipment attached to them, it is dropping earthmovers, weather stations, a small city operation anywhere in the world to support a relief effort or to support a combat mission. That takes training. That takes constant training. It takes hours and hours of training to make sure they can complete their mission but, even as important, to make sure they do it safely and that they themselves do not get injured or killed in the process.

Now, we have already heard it said multiple times before, but I think it bears repeating. Why on Earth would the minority leader prevent us from moving to a vote? A filibuster is nothing more than saying no to sending this bill to the President's desk, after 30 Democratic members in the Appropriations Committee said yes. We only need six of them to move this bill to the President's desk.

I guess the minority leader has a hammerlock on all of the Members who want to vote for this bill. They won't come to the floor and show the courage and commitment to the men and women in uniform to do the right thing. That is where we are. That is why it is personal to me.

What do I tell the 100,000 Active-Duty military in North Carolina when I go home? I am sorry, but the minority leader has decided you are not a priority, in spite of the fact that we go to Committee on Armed Services hearings weekly and we hear the threat level has never been greater and in spite of the fact that we see the rise of ISIS across all of the Middle East, now in Europe, and it is threatening our homeland.

In spite of all of these threats, we tell the men and women in uniform and their commanders that politics win over the principle of funding our troops and saving our Nation and protecting our Nation. I think that is despicable.

We know we have enough votes to send this bill to the President because they voted for it before. We only need a third of them to vote for this now and send it to the President's desk.

I could go on, and if we have time, I hope Senator SULLIVAN will ask me some questions because I have spent a lot of time down at Camp Lejeune and Fort Bragg. Ask me about whether or not the leader of FORSCOM and the leaders down there responsible for the 82nd Airborne Division and the XVIII Airborne Corps think they have enough money and they can keep our men and women safe. Ask them about the conditions at Camp Lejeune and the conditions we ask these men and women to serve in after we tell them we are not going to give you money to keep you safe so that you can complete your mission.

This is politics at its worst. We need to send this bill to the President's desk. We need to show respect for the men and women who have sworn an oath to lay down their life for the cause of freedom. This is a failure on the part of the minority leader and on the part of any other person who would sit there and refuse to move to a bill that every single one of them in the Appropriations Committee supported.

I appreciate Senator SULLIVAN's elevating this dialogue to the extent that he will, and we shouldn't stop until we fulfill the promise that is our first and foremost constitutional obligation, which is to protect this Nation. The

people voting against this bill and preventing it from getting to the President's desk, in my opinion, are failing to live up to their oath.

I want to thank Senator SULLIVAN and Senator ERNST again for their service, and I thank my colleague for bringing this to the attention of the American people.

Mr. SULLIVAN. I thank Senator TILLIS, and he put his finger on it when he said it is personal. I think it is personal to all of us.

Senator ERNST talked about it. She literally has her former colleagues, the troops she commanded, in Afghanistan right now. There is nothing more personal than that.

Just like Senator TILLIS and Senator DAINES, the great State of Alaska also has thousands and thousands of Active-Duty Army, Air Force, Coast Guard, and Marines servicemembers, reservists, and veterans, and they are wondering why. I get asked: Why would the minority leader filibuster spending for America's troops? Isn't that like the most important thing the Congress does—national defense? Why?

Why on Earth would they consider doing it a fifth time before we go home on recess? The one thing we should be doing before we take a 2-month recess—when, as Senator ERNST said, the whole world is imploding with national security challenges—is voting to fund our troops. So why? I really don't know the answer.

At one point, the minority leader came to the floor last year and said the bill was ''a waste of time.'' I am not sure most Americans would agree with him on that. Then they made some kind of excuse: Well, we need to make sure the appropriations bill fits with the bipartisan budget agreement from last year. Well, it does. Nobody is making that argument. He was even recently quoted as saying he doesn't want his party to be ''at the mercy of Republicans.'' In essence, that blocking our defense budget gives his political party leverage. Well, I will tell you who gets leverage from blocking this funding—our enemies and our adversaries, not our troops.

There is one other myth here, and I hear it a lot. When these procedural votes happen in the Senate, the troops don't really see it. They do not really understand it. Heck, this vote they took to block it last time on Thursday night was almost at midnight. Maybe nobody saw it. But I want to ask Senator ERNST: Do you think the troops see this? Do you think they understand what is going on? Do you think your troops in Afghanistan or in the Iowa National Guard or all the other military members we have gotten to know through our positions on the Committee on Armed Services see what is happening? How do you think that impacts morale?

Mrs. ERNST. I thank my colleague. Yes, of course, they pay attention. They see what is going on in the Senate. We track this. I tracked this when I was a young captain serving in Kuwait and Iraq. We track this because it is so important that we have the funding necessary for our personnel—just basic funding of our human resources obligations to the U.S. Armed Forces.

As to our personnel, we have to have funding to update our equipment, and we have to have the funding for the training necessary so that our men and women are ready and able to forward deploy. Even when they are forward deployed—in Iraq, Afghanistan, or you name it—they pay attention.

It is vitally important that what we do here today is to vote on the DOD appropriations bill. We have to stop this filibuster. Our troops are paying attention. Their families are paying attention. Their families here in the United States want to know the Senate is doing the right thing by protecting our military, making sure we have the troops necessary, the equipment necessary, the training necessary to make sure that when they forward deploy, they come home safe again. That is No. 1—making sure they are properly trained, equipped, and manned so they come home safe.

So yes, Senator SULLIVAN, they do pay attention. As we are standing here debating the importance of this appropriations bill, we have almost 10,000 troops serving today—right now—in Afghanistan. We have almost 5,000 troops in Iraq. Our special operators are deployed throughout the world protecting our Nation.

Just last week I had the opportunity to visit a hospital and see one of those special operators, and I am going to come back to that special operator in just a second.

I stated before that the world is imploding, and we only have to look at the headlines over the past several days to see what a risk our globe is in. North Korea test fires a ballistic missile from a submarine on July 9. The Chinese Navy holds a live fire drill in the South China Sea—even after the international court has ruled against their claims in the region. Iran, which is now, oddly enough, being fueled by taxpayer dollars after the horrific nuclear deal our administration entered in, drove their boats dangerously close to ours once again. They came dangerously close to American ships. And U.S. intelligence reports come forward saying ISIS is ''adapting'' to our current efforts.

These are the things, folks, that keep me up at night. These are the things that keep many of us up at night. But what lets us rest a little more at ease is knowing that we have our airmen, marines, soldiers, and sailors who are forward-deployed guarding our homeland. What puts my mind at rest is knowing we have these brave men and women doing their job for us. They are not failing us.

Back to the special operator I visited in the hospital last week, this young man—forward-deployed into a theater in the Middle East—had been shot four times. Two weeks ago when I went into his hospital room, he was standing up. This special operator was pretty proud to show me his wounds—standing up, shot four times. He didn't bemoan the fact that he had been injured severely; what he was bemoaning was the fact that he was not with his unit.

He said: Ma'am, I have no idea how long it is going to take me to heal, but I am ready to go back and serve with my unit. I am ready to go back.

These are the men and women we need to be funding, folks. They are our defense—our national defense. So I am asking that the filibuster end and that we take a vote on the DOD appropriations bill.

I know we would like to hear a little more from my colleagues—again, I thank them for coming to the floor—the Senator from Montana, the Senator from North Carolina. And I thank the Senator from Alaska for leading us in this discussion today.

I yield the floor to the Senator from Montana.

Mr. DAINES. Mr. President, it is certainly an honor to think that we are standing here as Senators with two distinguished veterans: Lieutenant Colonel Ernst and Senator SULLIVAN, who served in the U.S. Marines. In fact, tonight I will be at the Iwo Jima memorial, at a parade, with my daughter, honoring my dad, a marine, and honoring the men and women who served and wore the great uniform of the U.S. military.

There is one group who is cheering right now, and that is our enemies. They are cheering the fact that this body cannot get a defense appropriations bill passed. Maybe we should tie congressional pay to this bill. You know what. We could ask the minority leader: Let's put congressional pay in here. Maybe that will get the body to act, to move forward, if we say: If we are not going to fund our military, let's not fund this body right here. If we can't pass the Defense appropriations bill, we shouldn't get a paycheck here in Washington, DC.

We ought to stand with the men and women who depend on the appropriations. What this body is saying no to—this filibuster is saying no to military personnel; it is saying no operations; it is saying no to the procuring we need to take the fight to the enemy; and it is saying no to research and development, testing and evaluation to make sure our men and women who wear the uniform of the U.S. military have the very best tools they need to defeat a very real enemy.

I thank my freshmen colleagues for coming to the floor today. I thank Senator SULLIVAN for leading this effort as we are discussing why we need to stop the filibuster and pass the Defense appropriations bill.

Mr. TILLIS. Senator SULLIVAN asked Senator ERNST whether people in uniform are watching. Let's talk about other people watching. What about the families of those men and women in

uniform, the ones whom Democrats have decided to say no to for a pay raise?

My wife and I have adopted Fort Bragg, where she started a program called Baby Bundles where we create these bundles to give to expectant families, E4s and below. These men and women have very little. They are serving their Nation and are not making a lot of money. We are trying to do our best to make up for that by providing them with these gifts as they bring a child into the world.

But what about the mother or father who is left behind as their loved one is somewhere in harm's way? What are they thinking about when they come home during training and say: You know, we are just not getting the jumps we were getting. We are not getting the equipment we were getting. And, sweetie, I am about to be deployed.

That is happening. That is what this ''no'' stands for. That is what this action on the part of the Democrats stands for.

We need to vote for this bill. We need to show military families and men and women in uniform that we support them. I encourage my colleagues on the other side of the aisle to move this bill to the President's desk.

The PRESIDING OFFICER. The Senator from Alaska.

Mr. SULLIVAN. Mr. President, I ask unanimous consent for 1 minute to conclude this colloquy.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. SULLIVAN. Mr. President, I thank my colleagues who bring honor to the Senate by coming down here and talking about this important issue.

Those watching at home should be calling their Senators and telling them: Fund our troops. Fund our troops.

When there are so many national security challenges out there, we need to make sure we do not go on a 2-month recess without funding our troops and moving forward on this bill. We should not move forward on a vote to have another filibuster vote, the fifth one in a year—the only bill that seems to get the focus of our colleagues and the minority leader to filibuster.

We need to do the right thing. We need to do the right thing by the American people, and we need to do the right thing by our troops. Fund the troops. Break the filibuster. We need to move forward.

I certainly hope my colleagues on the other side are going to finally see the light and vote to move forward funding for our military, national security, our troops, and our families.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The time now will be controlled by the two managers.

The Senate minority leader.

Mr. REID. Mr. President, what does the previous order say?

The PRESIDING OFFICER. The time is equally divided until 3:30 p.m.

Mr. REID. Mr. President, I will take some of that time.

The PRESIDING OFFICER. The Senator has that right.

ZIKA VIRUS FUNDING

Mr. REID. Mr. President, the Senate's work is that of legislating. The art of legislating is rooted in good faith, and, always, legislation by definition is the art of compromise. In order to accomplish things for the American people, the Senate must work together in good faith, but I am seeing very few good-faith efforts from the Republicans on Zika, among other things. What I am seeing is one cynical Republican ploy after another.

It is clear now that Republicans are not going to provide President Obama and the country with the $1.9 billion in emergency Zika funds that public health officials need, but Democrats still want to get as much funding as the experts tell us they need in order to stop Zika. To that end, the President of the United States, Leader PELOSI, and I have made several entreaties to the Republican leaders—that is, Senator MCCONNELL and Speaker RYAN—pleading with them to work with us. Last Thursday, the administration tried to schedule a meeting with Speaker RYAN and Senator MCCONNELL in the same room with Health and Human Services Secretary Sylvia Burwell and Director Shaun Donovan, the leader of the Office of Management and Budget. This was an opportunity for Republicans in Congress and the administration to get on the same page about Zika and chart a path forward. Speaker RYAN and Senator MCCONNELL said no to me. They wouldn't even meet with two members of the President's Cabinet.

Democrats are disappointed, but we continue to look for solutions. The only solution at this point that would get doctors, researchers, and public health experts the immediate Zika funding they need is to pass the bipartisan Senate compromise as soon as possible. We were willing to do more, but the Senate compromise I just mentioned passed this body with 89 votes and could pass again today if it were brought up by the Republican leader for a vote.

I spoke with the Republican leader personally and asked him to consider this legislation as a stand-alone bill. And we would be willing to do even more. I told him that. He would not commit one way or the other. Yesterday, I had my staff reach out to the Republican leader's staff. We haven't heard back. Instead of getting back to my office with a substantive response, the Republican leader came to the floor this morning and made accusations that were wild and unfair about what we are proposing. I guess that was the Republican leader's response to our good-faith offer. I guess that was it. But that is not the way the Senate should operate.

Now it is clear that the Republican leader has been stringing us along. He never had any intention of coming back to negotiate a deal. Republicans have no desire to work with us to get a bipartisan Zika funding bill to the President now or at any time in the near future. It has all been a charade. Republicans are interested in one thing only: attacking Planned Parenthood. Zika is the sideshow. What Republicans really show their interest in is undermining women's health by taking potshots at Planned Parenthood. They are good at this. They have been doing this for years, and they will use Zika, Ebola, and anything else to do it.

There is a frightening shortage of integrity in this body, and it is getting worse every day. It doesn't have to be that way. Democrats and Republicans can work together and should work together, and we should work in good faith.

The chair and ranking member of the Senate Energy and Natural Resources Committee have an agreement that if Democrats agree to go to conference on this Energy bill, Senator MURKOWSKI has given her word to side with Senator CANTWELL in order to produce a consensus-based conference report they can both support. She made that same commitment to me personally. So Senator MURKOWSKI and Senator CANTWELL will work together to represent the Senate at the conference—not represent Democrats or Republicans but the Senate. That is terrific. Senators CANTWELL and MURKOWSKI have proven in the past that they can work on good, strong legislation without poison pills and with strong bipartisan support. So I look forward to them working with other conferees to complete a final energy bill that Democrats can support and the President will sign.

The basis of this legislation has been going on for 4 or 5 years—4 or 5 years. The effort was led by Senator SHAHEEN for years. We almost got it done, but we had Republican obstruction on it. So we are where we are now. We can't legislate for things done in the past, but the Republican leader should take a cue from the senior Senator from Alaska.

We still want to work together with Republicans to get something done on Zika. It is important to the American people. That would require a good-faith approach from our Republican colleagues. That is not here right now, and it is too bad.

I yield the floor.

Mr. President, I ask unanimous consent that the time in the quorum call that I am about to suggest be charged equally against both sides.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

Mr. REID. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Ms. MURKOWSKI. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. LANKFORD). Without objection, it is so ordered.

Ms. MURKOWSKI. Mr. President, in just a matter of minutes this afternoon, we will proceed to a motion to go to a formal conference on S. 2012, which is the Energy Policy Modernization Act of 2016. There is no doubt in my mind that we should agree to go to conference with the House on this broad bipartisan measure.

I want to begin my remarks with a reminder of both the process that we followed to reach this point and the many, many good provisions that the process has allowed the Senate to include within our Energy bill. From the very beginning, we have committed to the regular order, committee-oriented process.

I want to acknowledge the strong working relationship with my friend and colleague on the committee, the ranking member, Senator CANTWELL from Washington. We set out working this together. We set out with a view in mind that we needed to update our country's energy laws. In order to get a good product, we were going to have to work cooperatively and collaboratively and in an open, transparent, and inclusive process. That is what we did. That has been a goal that was worth working toward, and I think the effort that we made as a chair and as a ranking member brought in support from both sides of the aisle and allowed us to come to this place today.

Our Energy Policy Modernization Act is the result of listening sessions, legislative hearings, bipartisan negotiations, a multiday markup held last July, and a multimonth floor process earlier this year. That process concluded with an overwhelmingly bipartisan vote, as 85 Senators voted in favor of the first major Energy bill to pass this Chamber in nearly a decade.

After we passed our bill, it went over to the House. They responded with a series of measures that had already passed their Chamber. While what they sent back has been criticized by some, I certainly think the House was restrained in its process. They could have passed a highly partisan package that would have been more difficult to reconcile with our bill, but I think they developed a more measured response and chose by voice vote to ask the Senate to conference with them. Now it is our turn.

The very last procedural step is for the Senate to vote to proceed to go to a formal conference. After waiting more than a month—actually, I think we are probably at about 6 weeks now—we will have that vote in the next 10 minutes or so. In looking at all the significant provisions included within our bill, all of which are at stake today, I think this should be a very easy choice for all of us to make.

Our bill includes priorities from 80 different Members of the Senate, including 42 members of the Democratic caucus. When we vote to go to conference, it is no exaggeration to say that at least 80 of us within this body will be voting on whether or not to advance our own ideas and our own policy suggestions.

Let me give you a couple of examples. Our bill contains a bipartisan provision from Senators BARRASSO and HEINRICH, as well as 16 others that would streamline the LNG export approval process. The bill contains an entire title on energy efficiency that was written by Senator PORTMAN and Senator SHAHEEN, as well as 13 other Members.

The resources title that I developed with the ranking member is a balanced package of some 30 lands and water bills, including a bipartisan sportsmen's provision that the Senate adopted by a vote of 97 to 0. We made innovation a key priority to promote the developing of promising technologies. We have Senators ALEXANDER, PETERS, CAPITO, MANCHIN, WYDEN, and many others to thank for that.

We also focused on grid modernization, cyber security, the National Park Centennial, and conservation policies. These are all bipartisan efforts. All of those are a part of this bill.

Now we have to vote to determine whether we will keep going in the last stretch of this legislative process or whether the Senate says: All that work that you did—we are not going to move forward with it. I don't think that is a good option, and I hope it is an option this Chamber will reject.

My very strong preference is that we keep going. I think we should agree to conference with the House of Representatives because I know the conference process can produce a worthy bill that becomes law. I think it is fair to say that it will not include everything that is on the table right now, but anyone who has looked at what each Chamber has passed knows there is plenty out there that we can agree on.

I have a few assurances from Members who may be a little bit hesitant to move forward this afternoon. First, I will reiterate my personal commitment to a final bill that can pass both Chambers and be signed into law by the President. That doesn't mean we are going to unilaterally disarm ourselves in conference negotiations, but my objective here is to deliver a law. That means it can't be the House product necessarily or the Senate product necessarily. It has to be something the Chambers can both agree on and the President can sign into law. I intend to lead the conference committee the way I led the Senate process—by looking for common ground, by being open, by being fair and inclusive, and by seeking consensus over partisan division.

You don't have to take just my word for it. A couple of weeks ago, the two House chairmen who will be most heavily involved in the Energy bill conference also released a joint statement that reinforces how we intend to proceed. Here is what the House Energy and Commerce chair, FRED UPTON, as well as the House Natural Resources chairman, ROB BISHOP, said on June 20:

> At the end of the day, our goal is to get something to the President that he will sign into law. From our perspective, a bill that the President will veto is a waste of time and effort and casts aside the hard work we've put in up to this point. We remain committed to working in a bicameral, bipartisan manner and remain hopeful that we can set aside our differences and move ahead with a formal conference between the two chambers.

In addition to my approach and the approach the two House chairmen have embraced, there are institutional protections that will help ensure that this process stays on track. If Members are part of the conference committee and decide at the end they don't want to sign the conference report, then they don't have to sign it. As we have seen in recent days, conference reports require 60 votes to end debate on them, meaning our bill will need to remain bipartisan in order to pass.

To me, the best argument for going to conference on an energy bill is still the one we started with; that is, it is way past time. It has been almost a decade now. The last time Congress passed a major energy bill was December of 2007. With almost a decade's worth of changes in technologies and markets taking place since then, our policies have simply become outdated.

There is a whole list of organizations and individuals that have urged us as a Chamber to get moving with a conference, whether it is the Alliance to Save Energy, the Bipartisan Policy Center, the Business Council for Sustainable Energy, the American Chemistry Council, the chamber of commerce. They go and on.

There is an urgent need to update and reform our Nation's energy policies. We are overdue. Our policies are deficient. We have advanced many, many good ideas, but we need to get this over the finish line. That is exactly what going to conference will allow us to do.

The Energy Policy Modernization Act gives us a chance to do all of that. We have a chance now to take that next step forward on this broad bipartisan bill—keep it going, proceed to conference, allow ourselves to write a good final bill that we can then send to the President's desk.

With that, Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Washington.

Ms. CANTWELL. Mr. President, I join my colleague from Alaska, the chair of the Senate Energy Committee, to urge my colleagues today to move forward on going to conference on the Energy bill.

My colleagues will remember we passed a bill 85 to 12, I think it was, and included a great deal of provisions on—my colleague just said—modernizing the electricity grid, building next-generation investments in energy, smart buildings, advanced composite

materials, energy storage and improving cyber security, critical infrastructure, and the energy workforce for tomorrow.

This was a very worked-over process, both in committee and on the Senate floor, and it was a very collaborative effort among our colleagues on both sides of the aisle. It did take some discussion with our House colleagues because the package they passed was a very different product. I will say, it was a very less worked product on a bipartisan basis and certainly a product that had a lot of veto threats in it.

Our House colleagues have made some comments about that legislation that have made it helpful for us to move forward. We met with our colleagues, the Natural Resources and Energy Committee chairs, Mr. BISHOP and Mr. UPTON. They basically said: Look, they didn't want to waste time on things that would be vetoed by the President of the United States, so we took that as a good sign that they were willing to sit down and talk about legislation that could move forward in a positive fashion.

Senator MURKOWSKI's staff, my staff, and we together have rolled up our sleeves and tried to look at ways in which we could talk about how we move forward from here so that all of our colleagues could have confidence that we are going to work on something that would be a final product that really would get to the President's desk. I thank my colleague from Alaska for her indulgence in that process. I know she had conversations with Senator REID about no poison pills and wasn't going to sign off on those kinds of activities.

We are here to say to our colleagues: Let's continue the good bipartisan effort that existed in the Senate bill and work with our colleagues in the House to resolve these issues. As my colleagues know, there are many thorny issues that still need to be addressed. Even though the Senate worked out many of its issues, there are still several thorny issues that are in the House bill, such as water, fire, and a variety of other issues which will take some dialogue and give us an opportunity to talk. If we can reach a conclusion, great, but if we can't, I think we have all decided that moving forward on the basis of an energy policy we can agree to is a very important concept for all of us.

As my colleague from Alaska said, it is time to move forward on an energy policy, and I encourage my colleagues to vote yes on this motion. Let us continue to work to protect these key provisions and move forward so we can get a bill to the President's desk.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The bill clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the motion to disagree to the House amendment, agree to the request from the House for a conference, and the Presiding Officer appoint the following conferees: Senators Murkowski, Barrasso, Risch, Cornyn, Cantwell, Wyden, and Sanders with respect to S. 2012, an original bill to provide for the modernization of the energy policy of the United States, and for other purposes.

John McCain, John Cornyn, Marco Rubio, Deb Fischer, Rob Portman, Roger F. Wicker, Richard Burr, Joni Ernst, David Vitter, James M. Inhofe, Dean Heller, Pat Roberts, Lamar Alexander, Ron Johnson, Tom Cotton, Thom Tillis, Mitch McConnell.

The PRESIDING OFFICER. By unanimous consent, the mandatory quorum call has been waived.

The question is, Is it the sense of the Senate that debate on the motion to disagree to the House amendment, agree to the request by the House for a conference, and to appoint conferees with respect to S. 2012, a bill to provide for the modernization of the energy policy of the United States, and for other purposes, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The bill clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from Wyoming (Mr. BARRASSO), the Senator from Indiana (Mr. COATS), the Senator from Mississippi (Mr. COCHRAN), the Senator from Texas (Mr. CORNYN), the Senator from Texas (Mr. CRUZ), the Senator from South Carolina (Mr. GRAHAM), the Senator from Oklahoma (Mr. INHOFE), the Senator from Kansas (Mr. ROBERTS), the Senator from South Dakota (Mr. ROUNDS), the Senator from Alabama (Mr. SHELBY), the Senator from Louisiana (Mr. VITTER) and the Senator from Mississippi (Mr. WICKER).

Further, if present and voting, the Senator from Texas (Mr. CORNYN) would have voted ''yea.''

Mr. DURBIN. I announce that the Senator from Vermont (Mr. SANDERS) is necessarily absent.

The PRESIDING OFFICER. Are there any other Senators in the Chamber desiring to vote?

The yeas and nays resulted—yeas 84, nays 3, as follows:

[Rollcall Vote No. 125 Leg.]

YEAS—84

Alexander	Corker	Hirono
Ayotte	Cotton	Hoeven
Baldwin	Crapo	Isakson
Bennet	Daines	Johnson
Blumenthal	Donnelly	Kaine
Blunt	Durbin	King
Booker	Enzi	Kirk
Boozman	Ernst	Klobuchar
Boxer	Feinstein	Lankford
Brown	Fischer	Leahy
Burr	Flake	Lee
Cantwell	Franken	Manchin
Capito	Gardner	Markey
Cardin	Gillibrand	McCain
Carper	Grassley	McCaskill
Casey	Hatch	McConnell
Cassidy	Heinrich	Menendez
Collins	Heitkamp	Merkley
Coons	Heller	Mikulski
Moran	Risch	Tester
Murkowski	Rubio	Thune
Murphy	Sasse	Tillis
Murray	Schatz	Toomey
Nelson	Schumer	Udall
Peters	Sessions	Warner
Portman	Shaheen	Warren
Reed	Stabenow	Whitehouse
Reid	Sullivan	Wyden

NAYS—3

Paul	Perdue	Scott

NOT VOTING—13

Barrasso	Graham	Shelby
Coats	Inhofe	Vitter
Cochran	Roberts	Wicker
Cornyn	Rounds	
Cruz	Sanders	

The PRESIDING OFFICER. On this vote, the yeas are 84, the nays are 3.

Three-fifths of the Senators duly chosen and sworn having voted in the affirmative, the motion is agreed to.

Cloture having been invoked, the question is on agreeing to the compound motion.

The motion was agreed to.

The PRESIDING OFFICER. The majority leader.

COMPREHENSIVE ADDICTION AND RECOVERY ACT OF 2016—CONFERENCE REPORT—Continued

Mr. MCCONNELL. Mr. President, I ask that the Chair lay before the Senate the conference report to accompany S. 524.

The PRESIDING OFFICER. The clerk will report the conference report to accompany S. 524.

The bill clerk read as follows:

Conference report to accompany S. 524, a bill to authorize the Attorney General to award grants to address the national epidemics of prescription opioid abuse and heroin use.

The PRESIDING OFFICER. The Senator from Tennessee.

(The remarks of Mr. ALEXANDER pertaining to the introduction of S. 3169 are printed in today's RECORD under ''Statements on Introduced Bills and Joint Resolutions.'')

The PRESIDING OFFICER. The Senator from Wisconsin.

JUDICIAL VACANCIES

Ms. BALDWIN. Mr. President, the American public is well aware that there is a vacancy on our U.S. Supreme Court and, in addition, that there is obstruction going on in terms of our path to do what the Senate is supposed to do—confirm a President's nomination to the Supreme Court. Because it is the Supreme Court, because that term has come to an end and we have seen a number of 4-to-4 ties, because of the consequence and the gravity of what it is that the Supreme Court does, that has garnered a lot of attention. It has resulted in the calling for the Republicans in the Senate to do their job, to not obfuscate and declare that they won't hold hearings or won't schedule a vote on President Obama's nominee, Merrick Garland. As a consequence, that vacancy may persist for well over a year when all is said and done.

I rise today to draw attention to the fact that that is not the only judicial

vacancy we have here in the United States of America. We currently have 83 vacancies in the Federal courts, and 29 of those vacancies have been declared judicial emergencies, meaning that the continuing vacancy has caused serious problems and concerns, so they are deemed judicial emergencies.

Currently, because of the work that has been done by individual Senators, consulting with the President, and what the President has done in terms of forwarding nominees to the Senate so that we can exercise our role of advice and consent, so we can hold votes on confirmations, and because of the work of the Senate Judiciary Committee, currently there are 24 judicial nominees on the Executive Calendar. All of them—every one of them—have garnered majority support of the members of the Senate Judiciary Committee in order to advance to the Executive Calendar. Every one of them is deserving of a full Senate vote.

I rise to draw attention to one particular vacancy; that is, a vacancy on the Seventh Circuit Court. One of Wisconsin's seats on the Seventh Circuit has been vacant for more than 6½ years. Let me repeat that. It has been vacant for more than 6½ years. Currently, and not surprisingly, it is the longest Federal circuit court vacancy in the country. Today marks 2,378 days that this circuit court seat has been vacant.

The people of Wisconsin and our neighbors in Illinois and Indiana deserve a fully functioning appeals court. We have a highly qualified nominee who deserves a vote from this body.

Don Schott was nominated by the President on January 12 to fill this Seventh Circuit Court vacancy. He has strong bipartisan support. Both Senator JOHNSON and I have returned our blue slips. Bipartisan majorities of the Wisconsin judicial nominating commission have given their support to Don Schott and have voted to advance his nomination, a bipartisan group of the Senate Judiciary Committee voted to advance his nomination, and a bipartisan group of former Wisconsin bar presidents support him. Don Schott has the experience, qualifications, and temperament to be an outstanding Federal judge. He was rated unanimously ''well qualified'' by the American Bar Association. In talking to people in Wisconsin about this nomination, I have heard only tremendous praise for Don Schott.

This nomination deserves a vote. As such, I rise today to urge the majority leader, the Republican leader, to schedule a vote on Don Schott, as well as all of the other judicial nominees who are on the Executive Calendar. The American people deserve a fully functioning Federal judiciary.

I yield the floor.

The PRESIDING OFFICER. The Senator from West Virginia.

MINERS PROTECTION ACT

Mr. MANCHIN. Mr. President, I rise today in defense of the bipartisan Miners Protection Act. This is a little bit of a history class that is going to be rolled into the facts of what we are dealing with today.

Our coal miners are some of the hardest working people in America. Any of you who come from a family who had one as a relative—maybe your grandfather, father, uncle—you know those patriarchs are tough. They are hardworking but extremely patriotic. They basically dedicated their lives to powering our Nation. We would not be the Nation we are today if it had not been for the miners, who now seem to have been cast aside and forgotten about. They powered this Nation. They brought us into the Industrial Revolution, if you will, the industrial age, and created the middle class and one of the largest unions, the United Mine Workers of America. Back in the 1930s and 1940s, especially, if you were working in the mines, you were in the United Mine Workers union. That is just the way things were. But by the end of this year, tens of thousands of our miners are going to receive notices that they are going to lose their health benefits. They are going to lose their health benefits.

I have come to the floor again to answer the points that were called into question by my friend Senator ENZI from Wyoming. First, Senator ENZI specifically questioned the promise that was made to the miners in 1946. He questioned the promise that was made to them in 1946, saying that it was made between the coal companies and the unions, not the Federal Government, so therefore we should not have an obligation to be involved. He said there was never an agreement with the Federal Government.

I don't know how else to say this except that I believe my good friend was totally misinformed. That is not correct, not at all. Now I will give you the facts. This is a lesson.

In May of 1946, the United States was in the midst of a robust post-World War II economic recovery. I mean, everybody was working during the war. We were trying to survive as a nation, trying to defeat tyranny and basically save the world as we know it today. So everybody was working. Now the war is over. We were fearing a shutdown of our economy, and somehow we had to continue to keep this energy we needed to keep the country and the economy moving.

The United Mine Workers were actively negotiating. They were actively negotiating their contracts the way you do in a civil bargaining agreement. You sit down and you work through that. President Harry Truman knew the vital role the coal industry played in the economic recovery efforts, and he feared a prolonged strike. He issued an Executive order because he thought a strike would grind our recovery to a halt. He feared a prolonged strike, and he issued an Executive order directing the Secretary of the Interior to take possession of the bituminous coal mines—can you believe that—take possession of all of the bituminous coal mines in the United States and negotiate with the unions. So basically he stepped in and started negotiating with the unions, taking over the mines.

Senator ENZI stated that this agreement was made between the members and the companies, not between the members and the American taxpayer. In fact, the first line of the Krug-Lewis agreement—this was the agreement that was signed, the historic document that created the promise of health benefits and retirement security for our Nation's miners. This agreement is between the Secretary of the Interior acting as Coal Mines Administrator under the authority of Executive Order No. 9728, dated May 21, 1946, and the United Mine Workers of America. The title of this agreement says ''Executed at the White House, Washington, D.C., May 29 of 1946.''

I ask unanimous consent to have a copy of this agreement printed in the RECORD, and I will be sending a copy to my dear friend.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

NATIONAL BITUMINOUS WAGE AGREEMENT

EFFECTIVE MAY 29, 1946, DURING THE PERIOD OF GOVERNMENT OPERATION OF MINES EXECUTED AT THE WHITE HOUSE, WASHINGTON, D.C., MAY 29, 1946

AGREEMENT

THIS AGREEMENT between the Secretary of the Interior, acting as Coal Mines Administrator under the authority of Executive Order No. 9728 (dated May 21, 1946, 11 F. R. 5593), and the United Mine Workers of America, covers for the period of Government possession the terms and conditions of employment in respect to all mines in Government possession which were as of March 31, 1946, subject to the National Bituminous Coal Wage Agreement, dated April 11, 1945.

1. Provisions of National Bituminous Coal Wage Agreement Preserved

Except as amended and supplemented herein, this Agreement carries forward and preserves the terms and conditions contained in all joint wage agreements effective April 1, 1941, through March 31, 1943, the supplemental agreement providing for the six (6) day work week, and all the various district agreements executed between the United Mine Workers and the various Coal Associations and Coal Companies (based upon the aforesaid basic agreement) as they existed on March 31, 1943, and the National Bituminous Coal Wage Agreement, dated April 11, 1945.

2. Mine Safety Program

(a) Federal Mine Safety Code

As soon as practicable and not later than 30 days from the date of the making of the Agreement, the Director of the Bureau of Mines after consultation with representatives of the United Mine Workers and such other persons as he deems appropriate, will issue a reasonable code of standards and rules pertaining to safety conditions and practices in the mines. The Coal Mines Administrator will put this code into effect at the mines. Inspectors of the Federal Bureau of Mines shall make periodic investigations of the mines and report to the Coal Mines Administrator any violations of the Federal Safety Code. In cases of violation the Coal Mines Administrator will take appropriate

action which may include disciplining or replacing the operating manager so that with all reasonable dispatch said violation will be corrected.

From time to time the Director of the Bureau of Mines may, upon request of the Coal Mines Administrator or the United Mine Workers, review and revise the Federal Mine Safety Code.

(b) Mine Safety Committee

At each mine there shall be a Mine Safety Committee selected by the Local Union. The Mine Safety Committee may inspect any mine development or equipment used in producing coal for the purpose of ascertaining whether compliance with the Federal Safety Code exists. The Committee members while engaged in the performance of their duties shall be paid by the Union, but shall be deemed to be acting within the scope of their employment in the mine within the meaning of the Workmen's Compensation Law of the state where such duties are performed.

If the Committee believes conditions found endanger the life and bodies of the mine workers, it shall report its findings and recommendations to the management. In those special instances where the Committee believes an immediate danger exists and the Committee recommends that the management remove all mine workers from the unsafe area, the operating manager or his managerial subordinate is required to follow the recommendation of the Committee, unless and until the Coal Mines Administrator, taking into account the inherently hazardous character of coal mining, determines that the authority of the Safety Committee is being misused and he cancels or modifies that authority.

The Safety Committee and the operating manager shall maintain such records concerning inspections, findings, recommendations and actions relating to this provision of the Agreement as the Coal Mines Administrator may require and shall supply such reports as he may request.

3. Workmen's Compensation and Occupational Disease

The Coal Mines Administrator undertakes to direct each operating manager to provide its employees with the protection and coverage of the benefits under Workmen's Compensation and Occupational Disease Laws, whether compulsory or elective, existing in the states in which the respective employees are employed. Refusal of any operating manager to carry out this direction shall be deemed a violation of his duties as operating manager. In the event of such refusal the Coal Mines Administrator will take appropriate action which may include disciplining or replacing the operating manager or shutting down the mine.

4. Health and Welfare Program

There is hereby provided a health and welfare program in broad outline—and it is recognized that many important details remain to be filled in—such program to consist of three parts, as follows:

(a) A Welfare and Retirement Fund

A welfare and retirement fund is hereby created and there shall be paid into said fund by the operating managers 5¢ per ton on each ton of coal produced for use or for sale. This fund shall be managed by three trustees, one appointed by the Coal Mines Administrator, one appointed by the President of the United Mine Workers, and the third chosen by the other two. The fund shall be used for making payments to miners, and their dependents and survivors, with respect to (i) wage loss not otherwise compensated at all or adequately under the provisions of Federal or State law and resulting from sickness (temporary disability), permanent disability, death, or retirement, and (ii) other related welfare purposes, as determined by the trustees. Subject to the stated purposes of the fund, the trustees shall have full authority with respect to questions of coverage and eligibility, priorities among classes of benefits, amounts of benefits, methods of providing or arranging for provision of benefits, and all related matters.

The Coal Mines Administrator will instruct the operating managers that the obligation to make payments to the welfare and retirement fund becomes effective with reference to coal produced on and after June 1, 1946; the first actual payment is to be made on August 15, 1946, covering the period from June 1 to July 15; the second payment to be made on September 15, covering the period from July 15 to August 31; and thereafter payments are to be made on the 15th day of each month covering the preceding month.

(b) A Medical and Hospital Fund

There shall be created a medical and hospital fund, to be administered by trustees appointed by the President of the United Mine Workers. This fund shall be accumulated from the wage deductions presently being made and such as may hereafter be authorized by the Union and its members for medical, hospital and related purposes. The trustees shall administer this fund to provide, or to arrange for the availability of, medical, hospital, and related services for the miners and their dependents. The money in this fund shall be used for the indicated purposes at the discretion of the trustees of the fund; and the trustees shall provide for such regional or local variations and adjustments in wage deductions, benefits and other practices, and transfer of funds to local unions, as may be necessary and as are in accordance with agreements made within the framework of the Union's organization.

The Coal Mines Administrator agrees (after the trustees make arrangements satisfactory to the Coal Mines Administrator) to direct each operating manager to turn over to this fund, or to such local unions as the trustees of the fund may direct, all such wage deductions, beginning with a stated date to be agreed upon by the Administrator and the President of the United Mine Workers: Provided, however, that the United Mine Workers shall first obtain the consent of the affected employees to such turn-over. The Coal Mines Administrator will cooperate fully with the United Mine Workers to the end that there may be terminated as rapidly as may be practicable any existing agreements that earmark the expenditure of such wage deductions, except as the continuation of such agreements may be approved by the trustees of the fund.

Present practices with respect to wage deductions and their use for provisions of medical, hospital and related services shall continue until such date or dates as may be agreed upon by the Coal Mines Administrator and the President of the United Mine Workers.

(c) Coordination of the Welfare and Retirement Fund and the Medical and Hospital Fund

The Coal Mines Administrator and the United Mine Workers agree to use their good offices to assure that trustees of the two funds described above will cooperate in and coordinate the development of policies and working agreements necessary for the effective operation of each fund toward achieving the result that each fund will, to the maximum degree practicable, operate to complement the other.

5. Survey of Medical and Sanitary Facilities

The Coal Mines Administrator undertakes to have made a comprehensive survey and study of the hospital and medical facilities, medical treatment, sanitary, and housing conditions in the coal mining areas. The purpose of this survey will be to determine the character and scope of improvements which should be made to provide the mine workers of the Nation with medical, housing and sanitary facilities conforming to recognized American standards.

6. Wages

(a) All mine workers, whether employed by the day, tonnage or footage rate, shall receive $1.85 per day in addition to that provided for in the contract which expired March 31, 1946.

(b) Work performed on the sixth consecutive day is optional, but when performed shall be paid for at time and one-half or rate and one-half.

(c) Holidays, when worked, shall be paid for at time and one-half or rate and one-half. Holidays shall be computed in arriving at the sixth and seventh day in the week.

7. Vacation Payment

An annual vacation period shall be the rule of the industry. From Saturday, June 29, 1946, to Monday, July 8, 1946, inclusive, shall be a vacation period during which coal production shall cease. Day-men required to work during this period at coke plants and other necessarily continuous operations or on emergency or repair work shall have vacations of the same duration at other agreed periods.

All employees with a record of one year's standing (June 1, 1945, to May 31, 1946) shall receive as compensation for the above-mentioned vacation period the sum of One Hundred Dollars ($100), with the following exception: Employees who entered the armed services and those who returned from the armed services to their jobs during the qualifying period shall receive the $100 vacation payment.

All the terms and provisions of district agreements relating to vacation pay for sick and injured employees are carried forward to this Agreement and payments are to be made in the sum as provided herein.

Pro rata payments for the months they are on the payroll shall be provided for those mine workers who are given employment during the qualifying period and those who leave their employment.

The vacation payment of the 1946 period shall be made on the last pay day occurring in the month of June of that year.

8. Settlement of Disputes

Upon petition filed by the United Mine Workers with the Coal Mines Administrator showing that the procedure for the adjustment of grievances in any coal producing district is inequitable in relation to the generally prevailing standard of such procedures in the industry, the Coal Mines Administrator will direct the operating managers at mines in the district shown to have an inequitable grievance procedure to put into effect within a reasonable period of time the generally prevailing grievance procedure in the industry.

9. Discharge Cases

The Coal Mines Administrator will carry out the provision in agreements which were in effect on March 31, 1946, between coal mine operators and the United Mine Workers that cases involving the discharge of employees for cause shall be disposed of within 5 days.

10. Fines and Penalties

No fines or penalties shall be imposed unless authorized by the Coal Mines Administrator. In the event that such fines or penalties are imposed by the Coal Mines Administrator, the funds withheld for that reason

shall be turned over to the trustees of the fund provided for in Section 4 (b) hereof, to be used for the purpose stated therein.

11. Supervisors

With respect to questions affecting the employment and bargaining status of foremen, supervisors, technical and clerical workers employed in the bituminous mining industry, the Coal Mines Administrator will be guided by the decisions and procedure laid down by the National Labor Relations Board.

12. Safety

Nothing herein shall operate to nullify existing state statutes, but this Agreement is intended to supplement the aforesaid statutes in the interest of increased mine safety.

13. Retroactive Wage Provisions

The wage provisions of this Agreement shall be retroactive to May 22, 1946.

14. Effective Date

This Agreement is effective as of May 29, 1946, subject to approval of appropriate Government agencies.

Signed at Washington, D.C. on this 29th day of May, 1946.

J. A. KRUG,
Coal Mines Administrator.
JOHN L. LEWIS,
President, United Mine Workers of America.

Mr. MANCHIN. I believe the Secretary of the Interior and the White House were representatives of the Federal Government back in 1946, just as they are today.

Second, my colleague from Wyoming stated: I worry about the claim that we are helping all coal miners with this proposal.

West Virginia coal miners—union and nonunion—continue to suffer from the devastating effects of the ongoing coal bankruptcies.

Senator, we are willing to help all miners. We truly are. Anybody who has been devastated in this downturn, if you will, of the industry, but we are focusing this particular effort on the United Mine Workers of America.

They try to make this: Well, you are picking union over nonunion. We are not picking union over nonunion. The agreement was made with the UMWA because everybody working in the mines during that period of time belonged to the UMWA. So we have to protect that promise that was made in that Executive order that was signed and made 70 years ago. So I invite the Presiding Officer and all of my colleagues to help us find a way to move forward and help put this to rest.

Also, Senator ENZI stated he wants America to remain financially solvent. Well, there is no one who wants that more than I do. I understand that if you can't get your financial house in order you can't do anything else.

In fact, let me tell you what happens if we do not pass the Miners Protection Act. The Pension Benefit Guaranty Corporation, which we have in place, will shoulder the burden of the outstanding liabilities. In a January letter to Congressman MCKINLEY from West Virginia, one of my colleagues on the other side, the Director of the Pension Benefit Guaranty Corporation confirmed that if the UMWA becomes insolvent, the Pension Benefit Guaranty Corporation of America will actually have to assume billions of dollars in liabilities causing negative ripple effects for many more and for the financial insolvency of our country.

Passing the Miners Protection Act now means covering $3.5 billion in health and pension benefits. If we do not enact this law, the pension liability alone will carry a pricetag of over $6 billion. So, along with my good friend from Wyoming, Senator ENZI, I do care about making prudent decisions. That is a savings of $2.5 billion if we pass this legislation—$2.5 billion in saving to the taxpayers.

The Miners Protection Act is important to my home State of West Virginia because West Virginia has more retired union miners than any other State in the Nation. Out of the 90,594 retired United Mine Workers in the country in 2014, more than 27,000 still live in my State.

I will say this. As to a lot of the devastation we have seen with the floods we have had in West Virginia over the last couple of weeks, it was horrific what happened. Every one of those little communities was a coal mining community that got hit. So you just add more tragedy on top of the already devastating tragedy that we have.

But the impact is going to be felt in every State in the Union, including Wyoming. In fact, the Miners Protection Act will help over 900 health beneficiaries and over 2,000 pension beneficiaries in the State of Wyoming. So I would just ask: What do my colleague who opposes this legislation or any of my colleagues who might not be for this legislation expect the widows and pensioners to do? First of all, they have an executive order by the President of the United States in 1946, over 70 years ago. On top of that, this pension plan was solvent and sound until 2008. It wasn't their fault the crash happened. The greed of Wall Street took down so many pension plans.

Most of these widows are making $550 a month. That is their pension—$550 a month. So we are not talking about large amounts of money, but if they lose that, it means the difference of whether they do certain things out of necessity. What do they give up? How do you explain to them that a 70-year-old commitment is now going to go unanswered? We didn't care. We didn't mean it.

It is our responsibility to keep the promise to our miners who answered the call whenever their country needed them. So I ask Senator ENZI and all my colleagues to work with me to keep our promise to these miners. Let us sit down and work together and make sure we all agree on the facts.

I have always said this, and it has been said to me many times, we are all entitled to our opinions. We are just not entitled to our own facts. So the facts are very clear here. This is not only a promise, it is a commitment and a responsibility we have to the United Mine Workers of America and all those people who gave us the greatest country on Earth, gave us the greatest amount of abundant energy—reliable, affordable, and dependable. There is a transition going on now, and we are working through this transition, but the bottom line is that to walk away from an obligation and a commitment we made 70 years ago, which helped us be the superpower of the world and the country we are today, would be a gross neglect of our responsibilities and an injustice to the United Mine Workers of America, the widows, and the families who still depend on this. We have a responsibility to oblige and make sure we take care of them.

With that, I hope the Chair will help me in moving forward on this. We hope to get a vote in September. We were promised a vote in the first part of September, when we come back, and that is one we are counting on to carry this forward. I am hoping we will have our colleagues supporting this.

With that, Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. DURBIN. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Ms. AYOTTE). Without objection, it is so ordered.

CLIMATE CHANGE

Mr. DURBIN. Madam President, I come to the floor today to speak on the issue of climate change. Before I do, I would like to read a quote.

> What is a conservative after all but one who conserves, one who is committed to protecting and holding close the things by which we live . . . and we want to protect and conserve the land on which we live—our countryside, our rivers and mountains, our plains and meadows and forests. This is what we leave to our children. And our great moral responsibility is to leave it to them either as we found it or better than we found it.

These are the words of President Ronald Reagan, and I agree with those words. Climate change is one of the greatest threats to our planet Earth. When I look at my beautiful grandkids, I feel a moral responsibility to leave this world as well as I found it or even better.

We can't continue to ignore the problem of climate change. How will future generations judge us if we deny the reality of climate change and say that it is just too hard to do something that might leave them a safer, cleaner, better world? I don't think they will look on us kindly. Future generations actually count on us.

Climate change is no longer debatable. The facts are in. Climate change is real, and it is not some distant threat. From Hurricane Katrina to Superstorm Sandy, from severe flooding on the Mississippi River in 2011 in Illinois to the historic low water levels

just 1 year later and to the devastating drought and wildfires that are searing the West Coast, extreme weather is the new normal.

So why are there still so many in the Chamber who deny the threat of climate change, not to mention failing to do anything to solve the problem? I have said on the floor before, and I will say again, that there is only one major political party in the world today that denies climate change, only one—the Republican Party of the United States of America.

Well, part of the reason is because for decades the fossil fuel industry and those who cater to them have tried to blur this debate, to blur the science, to create divisions among us, instead of looking for what we have in common to try to solve this problem rationally and reasonably.

Make no mistake, there is a deliberate campaign, financed by the fossil fuel industry—a campaign that uses the pseudoscience of manufactured doubt. It is coordinated. I have seen the likes of it before.

In 2006, the major tobacco companies in the United States were found guilty of ''a massive 50-year scheme to defraud the public.'' Decades before, tobacco company research had already shown that tobacco was truly harmful and addictive. Instead of letting science and the moral imperative behind it promote public health, the companies launched an extensive campaign sowing seeds of doubt about the dangers of tobacco.

I know about this firsthand. I was a Member of the House of Representatives about 27 years ago. I introduced a bill to ban smoking on airplanes. It was opposed by the tobacco lobby, and the leadership in both political parties—Democratic and Republican elected leaders in the House of Representatives—opposed me. We called it for a vote, and to the amazement of everyone, it passed. It turns out Members of Congress are the largest frequent flyer club in the world, and they knew how outrageous it was to suggest there were smoking and nonsmoking sections on an airplane.

I led that initiative to ban smoking on airplanes, and I was joined by the late Senator Frank Lautenberg who took up the cause in the Senate, and 26 years ago we banned smoking. It made a difference. We had to fight the tobacco lobby all the way. They denied that nicotine was addictive. They denied there was a linkage between tobacco and cancer. They created a pseudoscience. They paid scientists to come up with theories that said tobacco really wasn't that dangerous.

Well, sadly, we are seeing that same thing today when it comes to climate change. Just as the tobacco industry created a campaign of manufactured doubt to protect their financial interests and profits, a web of fossil fuel industry groups, aided and abetted by one of the very groups that resisted anti-smoking laws, are behind this web of climate denial.

A 1998 American Petroleum Institute, or API, memo has become public. I just read it on my computer upstairs. At the time, the American Petroleum Institute consisted of a dozen lobbyists, think tank members, and public relations gurus. Science wasn't on their side in 1998, so the group decided that misleading the public about the reality of climate change—sowing seeds of doubt about whether there was really climate change underway—was the best way to go. The 1998 API memo claimed that ''victory,'' in their words, would be achieved when ''uncertainties'' about the science became part of the public's perception.

In the year 2000, influential Republican pollster Frank Luntz prepared a playbook for those who wanted to create doubt in the public's mind about climate change. Mr. Luntz wrote:

> Should the public come to believe that the scientific issues are settled, their views about global warming will change accordingly. Therefore, you need to continue to make the lack of scientific certainty a primary issue in the debate.

So what is taking place right now with the effort of the fossil fuel industry is a deliberate campaign to mislead the American public.

Sadly, this web of denial that started in 1998 is alive and well today. Just last year, at an ExxonMobil-sponsored meeting of the notorious American Legislative Exchange Council, the president of the Heartland Institute stated:

> There is no scientific consensus on the human role in climate change. There is no need to reduce carbon dioxide emissions and no point in attempting to do so.

This quote is in direct opposition to Earth scientists in one of the world's most highly respected Earth science organizations—the American Geophysical Union, or AGU.

This spring, a group of 254 Earth scientists cited these lies in a letter as one of the many reasons why the American Geophysical Union should decline to accept ExxonMobil's financial sponsorship of their group. The Earth scientists also made clear that ExxonMobil distributed scientifically false and misleading information, are members in or financially support other climate-denying organizations, and donated to climate-denying politicians and past misinformation campaigns.

ExxonMobil is not alone in spending money to influence elections and affect environmental policy. The oil and gas industry pours millions of dollars into election campaigns every year. In the 2012 election cycle, energy and natural resource corporations, their employees, and industry super PACs spent more than $147 million to make sure the right people were elected in congressional seats, in Senate seats, and in the Presidential campaign. During the current election cycle, they have already spent more than $101 million, and they will likely contribute millions more in the 4 months remaining. Experts estimate that, in total, candidates, political parties, and interest groups, including those funded by companies such as ExxonMobil, may spend up to $10 billion on Federal campaigns in 2016—$10 billion.

A poll conducted by the New York Times last year found that 84 percent of Americans believe money has too much influence in American political campaigns. They are right. Our campaign finance system is a mess. America needs a system to elect its candidates that rewards those with good ideas and principles, not just the person who is the most talented in raising money.

I reintroduced a bill last year called the Fair Elections Now Act. This legislation would establish a voluntary, small-donor public financing system for Senate campaigns. We would finally break the back of Big Money's control over the American political system. The Fair Elections Now Act can't solve all the problems facing us, but the bill would allow us to fight back against deep-pocketed special interests by dramatically changing the way campaigns are funded, encouraging small donors and matches for those small donations.

As we grapple with important issues like climate change, we have to recognize the influence of money in our political system and why one major political party in the world today still denies climate change. Until we embrace campaign finance reform and ensure that politicians do not feel beholden to special interests like the oil and gas industry, climate-denying politicians will continue to prevent us from taking action.

It is unconscionable that some very powerful people put their profits ahead of the future of the planet we live on, but we know it is true. If we don't act on climate change, there is no backup plan.

Let me end on a hopeful note. When Pope Francis came to Washington, DC, last September, he called for action on addressing climate change and global warming. The Pope said:

> All is not lost. Human beings, while capable of the worst, are also capable of rising above themselves, choosing again what is good, and making a new start.

Pope Francis is right. Let's not run away from our responsibility in the Senate or in life to our children and our grandchildren. Let's work toward solving the real challenges of climate change with both political parties. It is not too late to make a new start, to do the right thing, and to protect this planet that we call home.

Madam President, I yield the floor.

The PRESIDING OFFICER. The Senator from Iowa.

Mr. GRASSLEY. Madam President, we all want safety, security, health and well-being for all of our fellow Americans. But it sometimes seems impossible for us to agree on how best to achieve them. So when Congress comes together to find solutions to an urgent crisis facing the country, we should

pause briefly, mark that achievement, and consider how we got there.

That is what I hope will happen this week when the Senate votes on the conference report for S. 524, the Comprehensive Addiction and Recovery Act, or CARA.

CARA addresses the opioid crisis in a comprehensive way, by authorizing almost $900 million over 5 years for prevention, education, treatment, recovery, and law enforcement efforts. Last week, the House of Representatives passed the report by an astounding margin of 407 to 5.

We have all heard the statistics about the epidemic of addiction to heroin and prescription opioids that is gripping our country. I won't belabor them today. When 129 Americans a day die from drug overdoses, we don't need statistics on a page to tell us about this catastrophe. We only need to listen to our constituents. I hear from Iowans all the time about real-life examples of how this epidemic is hitting home.

A few years ago, I heard the story of Kim Brown, a nurse from Davenport. In 2011, she lost her son Andy Lamp to an accidental heroin overdose. He was only 33. She now speaks out around my State about the need for expanded treatment options for those with substance abuse disorders. She also advocates for increased access to naloxone, an anti-overdose drug that can save lives.

I heard Kim Brown's plea—and the conference report helps fill these and other critical gaps. I urge the entire Senate to demonstrate that it has heard her, and thousands like her, by passing the conference report, and sending it to the President for his signature before we return home.

The Senate's vote this week will be the culmination of a process marked by hard work, bipartisanship, and a commitment to addressing this crisis in an all-encompassing way.

I convened a hearing on attacking the opioid epidemic in the Senate Judiciary Committee in January. The Committee heard from Federal and State officials in the law enforcement and public health communities. We also heard from a courageous young woman who lost her daughter to a heroin overdose and subsequently started a support group to assist those in recovery.

The hearing continued for well over 3 three hours. Senators who aren't even members of the Committee stopped in to listen, and learn. By that time, a bipartisan group of four Senators had already introduced CARA. Soon after the hearing, I sat down with Senators WHITEHOUSE, PORTMAN, KLOBUCHAR, and AYOTTE—two Democrats and two Republicans—to build on their outstanding work. The leadership of those four Senators on this issue has been indispensable.

We agreed on some changes to CARA that facilitated its movement through the Judiciary Committee. In particular, I worked to include my accountability provisions, which help prevent waste, fraud, and abuse of grant funds, and ensure that resources go to those who need them most.

I also helped make sure that a fixed portion of the funds for first responder access to naloxone is set aside for rural areas, like much of Iowa, where access to emergency healthcare can be limited.

And finally, because methamphetamine remains such a problem in Iowa, I made sure that the community-based coalition enhancement grants created by the bill would also be available for communities suffering from high rates of meth abuse, in addition to opioid abuse. In fact, these enhancement grants are intended to supplement grants made to community coalitions under the Drug Free Communities Act of 1997. I am proud to have been the lead sponsor of that legislation in the Senate.

The CARA Grassley substitute, with these changes, passed the Judiciary Committee unanimously by voice vote in February. I then managed the bill on the Senate floor, where it was approved 94 to-1 in March. Tackling important problems in a bipartisan way is important to me. That is why, as Chairman of the Judiciary Committee, I have moved eight bills through the Committee, CARA among them, for which the lead sponsor was a member of the Democratic minority. By way of comparison, last Congress the Committee didn't report a single bill for which the lead sponsor was a Republican in the minority. And every one of the 27 bills I have moved through the Committee this Congress has had bipartisan support. That isn't just talking the talk on bipartisanship, it is walking the walk.

After the Senate acted on CARA, the House of Representatives passed its own package of bills by a vote of 400 to 5 in May. And so the task fell to a bicameral, bipartisan committee to develop a conference report that would blend the best of the two approaches together. I led the Senate delegation that negotiated the report, along with Senator ALEXANDER, Chairman of the Committee on Health, Education, Labor and Pensions. We concluded weeks of hard work and negotiations with a conference committee meeting on July 6. I voted for a number of improvements to the report during the meeting, offered by both Republicans and Democrats.

In particular, I was proud to support Senator MURRAY's amendment that will create an Office of Patient Advocacy at the Department of Veterans Affairs to help ensure our veterans receive the care they deserve.

I am also pleased that the CARA conference report includes a bill that I introduced with Senator KLOBUCHAR, the Kingpin Designation Improvement Act. This bill strengthens the ability of the Federal Government to freeze the assets of foreign drug kingpins, who traffic opioids, methamphetamine and other illegal narcotics into the United States.

There are other parts of CARA that I feel passionately about as well. Many people who abuse prescription drugs get them from friends or relatives. CARA authorizes an expansion of the Federal initiative that allows patients to safely dispose of old or unused medications, so that these drugs don't fall into the hands of young people, potentially leading to addiction. I am proud to have helped start these ''take back'' programs by working with Senators KLOBUCHAR and CORNYN in 2010 to pass the Secure and Responsible Drug Disposal Act. It has been a highly successful effort. Since 2010, over 2,700 tons of drugs have been collected from medicine cabinets and disposed of safely. Iowa also has a similar ''take back'' program that is expanding rapidly. Anything we can to do to encourage these programs is worthwhile.

CARA also authorizes funds for other valuable programs: those that encourage the use of medication assisted treatment, provide community-based support for those in recovery, and address the unique needs of pregnant and post-partum women who are addicted to opioids.

It is no wonder that the CARA conference report has been met with such widespread praise and support. The Addiction Policy Forum called it a ''monumental step forward.'' Almost 250 advocacy organizations have written to Congress in support of the report, concluding that ''this bill is the critical response we need.'' These organizations include many influential national ones, such as the Community Anti-Drug Coalitions of America, the National Criminal Justice Association, and the National District Attorneys Association.

Iowa community organizations are well-represented in that group as well, including the Partnership for a Drug Free Iowa, Kossuth Connections, Siouxland Cares, the Iowa Alliance for Drug Endangered Children, Community Resources United to Stop Heroin of Eastern Iowa—Dubuque Chapter, Quad Cities Harm Reduction, which Kim Brown leads, and many more.

The National Fraternal Order of Police wrote in support of the conference report as well. The FOP explained that:

> Law enforcement officers are almost always the first on the scene—even before the paramedics arrive. In these life and death situations, our officers are not looking to make an arrest, but to save a life. Many States and jurisdictions have successfully equipped their officers with [naloxone], trained them to recognize the symptoms of an overdose, and administer it on the scene. We believe that the final conference report on S. 524 will help expand the use of naloxone and give us one more tool to reduce the deaths from this epidemic.

It isn't every day we can say that legislation we pass could help save lives. But this is one of those times. I want to thank the Republican leader for moving this legislation on the floor, and providing the Senate the opportunity to pass it this week.

Indeed, heroin deaths spiked dramatically from 2010 through 2014, more than tripling, from 3,036 to 10,574. But sadly, during this entire time, the Democratic leader didn't make it a priority to move comprehensive, bipartisan legislation on the floor to address this epidemic.

Now, some of my colleagues have expressed concern that the conference report, an authorization bill, doesn't also appropriate money for this epidemic as well. But thankfully, under Republican leadership, the appropriations committees have been doing just that. The current Senate appropriations bills increase funding for this epidemic by 57 percent over fiscal year 2016 enacted levels, and by 115 percent over fiscal year 2015 enacted levels. So funding for this crisis is poised to more than double since Republicans took control of the Senate. As this funding continues to increase, the CARA conference report will be the blueprint for where this money is most effectively spent.

This bill is just the latest example of the productive, bipartisan work we have been doing on the Judiciary Committee this Congress. I want to thank all of the Members for their hard work and for our achievements together.

So I urge my colleagues to vote to send CARA to the President this week. And when we come back in September, let's roll up our sleeves and continue to build on this bipartisan success.

I yield the floor.

The PRESIDING OFFICER. The Senator from Michigan.

TRAGEDIES IN MICHIGAN AND ACROSS THE COUNTRY

Mr. PETERS. Madam President, I rise with a heavy heart to address devastating tragedies that have shaken communities in Michigan and across this country. Just yesterday, the community of St. Joseph, MI, suffered a tragic shooting that cost the lives of two dedicated public servants and injured several others.

I would like to extend my condolences to the families of bailiffs Joseph Zangaro and Ronald Kienzle, who were fatally shot yesterday in Berrien County, MI. Both Joseph and Ronald had distinguished careers as public safety officers prior to serving as bailiffs in the Berrien County Courthouse.

Joseph Zangaro retired from the Michigan State Police as post commander of the Bridgman Post and had worked for the Berrien County Trial Court for over 10 years.

Ronald Kienzle retired as a sergeant in road patrol with the Benton Charter Police Department in Benton Harbor, MI, and was a veteran of the U.S. Army.

I also want to wish Deputy James Atterbury and Kenya Ellis a speedy recovery for the wounds they received during this attack.

Yesterday's incident illustrates a very important fact. Whether as a member of a local police department, a rapid transit officer, or a court bailiff, public safety officers risk their lives every day to keep our families and our communities safe. This is a fact we can never forget and a reality that confronts public safety officers and their families every day.

Across Michigan, our hearts have been shattered by senseless violence like this, and I know the grief of my fellow Michiganders because I feel this grief in my own heart as well. Unfortunately, this is not the first tragedy to strike West Michigan this year. We are still reeling from the mass shooting in Kalamazoo in February, where six people were killed and two were critically injured.

We are facing a very difficult time in our country's history. Last week's tragedies further demonstrate this point. Within just 48 hours, we saw two separate incidents where American citizens died at the hands of those who were sworn to protect them. Then, what started out as a peaceful protest in response to those deaths, suddenly morphed into an unrelated and horrific attack on law enforcement—an attack on officers who died to protect the rights of protesters to peacefully protest.

Let me be clear. Something is wrong when a hard-working and beloved cafeteria supervisor is killed during a routine traffic stop. Something is wrong when police officers, honorably serving and protecting their communities, are killed during a peaceful protest. Something is wrong when a salesman and a father of four dies while selling CDs. Something is wrong when a police officer is ambushed and shot while responding to a 911 call for help. Too many precious lives are being lost, not just in Michigan but in States all across our country.

I was heartbroken by the tragic shooting deaths of Philando Castile in Minnesota and Alton Sterling in Louisiana last week, only to wake up horrified on Friday morning to learn of five Dallas police officers, including Michigan native Michael Krol, who were struck down in the line of duty.

We have seen enough violence. Across our countries, our communities are outraged and heartbroken at the number of lives which have been lost. While the events of last week are almost too much to bear, the images from communities like Chicago, Staten Island, Ferguson, and Baltimore have gripped this Nation's attention as well.

We have seen tears of sadness, burning storefronts, and confrontations between police and young people, as well as peaceful protesters marching through the streets. It is clear there is a persistent and troubling problem in our country that is eroding away Americans' faith in our justice system. With each troubling incident, it becomes clear that justice in this country is sometimes neither fair nor equal, and we must act now to address this inequity.

This problem isn't isolated to our African-American communities or to our law enforcement communities. These injustices undermine the very values our Nation was built upon. It is the responsibility of each and every one of us to acknowledge that too many Americans are needlessly dying, and we must come together to stop them.

More now than ever, it is time for us to unite as a country to encourage understanding and compassion for our fellow Americans. Now is the time for us to walk in another's shoes and acknowledge the experiences that have shaped their views. Now is the time for this body to come together to offer solutions. The American people need us.

It is crystal clear that the relationship between law enforcement and the communities they serve is strained, and an overhaul of our criminal justice system is long overdue. On top of these strained relations, we are continuing to see rising prison populations and unsustainable costs as public budgets remain tight.

We see too many at-risk youths being funneled out of our schools and into our prison systems, continuing a vicious cycle in many of our communities. We see too many people who have served their time only to find that once they get out of prison, they can't find a good job or a stable home.

We need a better understanding of the causes of these concerning trends, and we need to identify solutions that will help ensure we are administering justice in a fair and equitable way for every American—regardless of who they are, where they may live, or their income level. That is why I have introduced legislation with Republican Senators LINDSEY GRAHAM of South Carolina and JOHN CORNYN of Texas to create a National Criminal Justice Commission. The Commission will be made up of experts on law enforcement, victims' rights, civil liberties, and social services who will be charged with undertaking an 18-month review of our criminal justice system from the top to the bottom. It is something that has not been done since 1965—more than 50 years ago during another very difficult time in our Nation's history.

The goal of this Commission is to identify commonsense solutions to the serious issues facing our criminal justice system, promote fairness in our laws, build stronger relationships between law enforcement and our communities, and strengthen faith—basic faith—in our criminal justice system.

The Commission will focus on transparency, issuing recommendations to the President and Congress, and making reports on its findings available to the public and entities within the criminal justice system. It will take a comprehensive approach to reviewing the criminal justice system and will look at numerous issues in light of our current climate.

When President Lyndon Johnson's 1965 Commission last conducted a comprehensive review over 50 years ago, it was the first time police, prosecution, defense, the courts and corrections were all examined as a whole. That

Commission made more than 200 recommendations to improve the criminal justice system, including creating the 9–1-1 emergency system that is so ingrained in our society today.

Our country has changed significantly over the last 50 years, and another top-to-bottom review of our criminal justice system is long overdue. In fact, the President's Task Force on 21st Century Policing, which was created after the troubling situation in Ferguson, strongly recommended the creation of a national commission to evaluate the entire criminal justice system.

The National Criminal Justice Commission that my legislation creates will shine a light on the whole scope of our criminal justice system, including police and community relations, our grand jury system, the right to counsel in misdemeanor cases, the lack of speedy trials, and the struggles ex-offenders face in finding housing, employment, and support services after leaving prison.

This Commission is one critical piece of a larger puzzle. We must also take swift action on our justice system, such as sentencing reform. The Commission also has the support of a wide range of groups, including the Fraternal Order of Police, the NAACP, the International Association of Chiefs of Police, the National Urban League, and many other law enforcement and civil rights groups.

The National Criminal Justice Commission is vital to understanding the reforms and best practices that we need to reduce crime, help law enforcement do their jobs safely and effectively, protect our communities, and build a justice system that works for every American. These problems are not easy, and there are no quick answers. It is going to require all of us working together to make these vital changes a reality, but together we can achieve the promise of this great country—justice for every American, no matter who you are, where you live, or how much money you may have in your pocket.

I yield the floor.

The PRESIDING OFFICER. The Senator from Hawaii.

CLIMATE CHANGE

Mr. SCHATZ. Madam President, I hate conspiracy theories. I believe most of the suspicious, confusing, frustrating, or unknowable things in the world are the way they are not because there are 12 people in a room wringing their hands trying to figure out how to trick all of us but because the world is complicated, often unfair, sometimes illogical, and we all operate with incomplete information. So even as a climate hawk, I came to the idea of an organized misinformation campaign with real hesitation. I didn't want to be that guy who believes there is an evil empire that lies for a living. But here is the thing: I have studied this, and I have learned that there really is an organized, well-financed disinformation and misinformation campaign on the subject of climate change. It is straight out of a bad movie about politics, complete with PR guys, dark campaign money, fake scientists, politicians in the mix, and a weakened media. It is like Raymond Tusk actually exists.

I rise today to join my colleagues in combating a pervasive and highly damaging campaign of misinformation, disinformation, and outright lies. For decades, the same hired guns that tried to convince the American people that there was no link between smoking and lung cancer have been following the same playbook on manmade climate change. They want to sow doubt where no doubt exists. Just like the tobacco companies profited from denial, so too have the fossil fuel companies profited by propping up front groups and sham think tanks that try to convince us that the science on climate change isn't settled and that no consensus exists between mainstream scientists, but of course that is not true.

The American Association for the Advancement of Science said:

> The science linking human activities to climate change is analogous to the science linking smoking to lung and cardiovascular diseases. Physicians, cardiovascular scientists, public health experts, and others all agree that smoking causes cancer, and this consensus among the health community has convinced most Americans that the health risks from smoking are real. A similar consensus now exists among climate scientists, a consensus that maintains climate change is happening and human activity is the cause.

It is worth pausing here to make two basic points. The first is one I mentioned earlier, and that is that the same techniques which were used to block science and prevent action on tobacco are now being deployed to prevent action on climate. That stands to reason. If you are looking for public relations techniques to essentially mislead the public so you can squeeze additional years and decades of profitability, then you would be wise to use the techniques, methods, and procedures that worked in the past, so that sort of stands to reason. It shocks the conscience, but it shouldn't shock us that this is happening. The really shocking part is this. Of course they would use the same techniques to mislead the public regardless of the issue, but the real shock is that it is literally the same people. It is not the same type of person or the same category of person, it is the same human beings and the same professionals. They are the same PR firms, and they have replicated the machinery of the Tobacco Institute, sharing processes, procedures, personnel, and funding sources. But just as we did against Big Tobacco, we are going to win the war of ideas against Big Oil and Big Coal.

The truth is on our side, but the truth is not guaranteed to come out. We actually have to expose their ecosystem of misinformation to make real progress on climate, and so for a moment I will talk a little bit about the media, which has played an unfortunate role.

Generally speaking, people in the U.S. media like to get ''both sides of the story'' just to be fair, which under many circumstances works just fine. After all, the definition of a bad story in a lot of reporters' minds is to be one-sided. What happens when one side of the story is factual and the other side is a house of cards? Many in the media still report it as though, on the one hand, scientists say climate change is real, and on the other hand, some say it is not. To be fair, this has improved over the last year or so, but that was the foundational weakness of the American media—their credulity when reporting on deniers—that the climate denial apparatus took full advantage of.

There are not two sides to every issue. Sometimes there are just facts on one side and bull on the other. We don't argue about the existence of gravity or whether the Earth is round or, thankfully, whether smoking causes lung cancer. We have known since the 19th century that carbon dioxide traps heat much like a greenhouse. We know that burning fossil fuels releases stored carbon into the atmosphere. We have seen the evidence of increasing temperatures and rising sea levels for decades. The correlation between levels of carbon dioxide in the atmosphere and global temperatures is absolutely undeniable. To deny the reality of manmade climate change in this context requires willful ignorance.

How is this happening? Academics from Yale and Drexel Universities, among others, have researched and exposed the many sources of dark money that are fueling the climate denial machine. My colleagues are speaking today—and spoke yesterday as well—about some of the greatest offenders, and I will focus my remarks on just two. One is a small organization that most people haven't heard of, and another is an organization that I think a lot of people who work in politics have heard of. The first is the Center for Study of Carbon Dioxide and Global Change, and the other is the Heartland Institute.

The Center for Study of Carbon Dioxide and Global Change is a family project out of Tempe, AZ, that claims that global warming will be beneficial to humanity. The center does not disclose funding information because they believe doing so would bias the way people perceive their purpose and publications, and that may be the only thing they say that is true.

Transparency is crucial in the world of science because it allows the scientific community and the general public to determine whether there might be a conflict of interest. In this instance, there is a conflict of interest. We know that at the very least, ExxonMobil and Peabody coal have given significant sums of money to the center. When two companies with a

long history of climate denial are paying you to deny the scientific consensus on climate change, it is fair to point out that something smells a little fishy.

Better known than the Center for Study of Carbon Dioxide and Global Change is the Heartland Institute, which gained national attention after putting up a billboard comparing those who believed in manmade global warming to the Unabomber, Ted Kaczynski. This tasteless stunt rightfully cost Heartland $825,000 in corporate donations, but Heartland still receives millions of dollars a year from fossil fuel companies and others with a vested interest in continuing the status quo. They still have an outsize impact in the national conversation by insinuating that the science on climate change is not settled.

Not surprisingly, Heartland follows the tobacco playbook to a T. Their reliance on dark money means that Heartland's funding is notoriously difficult to track. According to the watchdog group Conservative Transparency, Heartland has received more than $14 million from the Koch-initiated Donors Trust and Donors Capital groups, which shield donors' identities. We know that ExxonMobil has contributed at least $675,000 since 1998, and the Union of Concerned Scientists found that 40 percent of those funds were specifically designated for climate change projects. The money from these organizations, among others, allowed Heartland to publish nearly 3,000 documents toward climate change skepticism between 1998 and 2013. Heartland also organizes gatherings of climate skeptics and defends fossil fuel funding experts who continue to deny the reality of the changing climate we are already seeing today. We have seen this movie before.

What is happening this week is historic. We are no longer going to allow these front groups to pose as on-the-level think tanks. We have a moral obligation to not only solve this problem but to also fix our politics. We should all be making decisions about how best to solve this problem.

Let's have this great debate. Let the two major political parties have an argument about the best way to tackle climate change because this isn't just a climate thing at this point, this is an integrity thing.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Colorado.

(The remarks of Mr. GARDNER pertaining to the submission of S. Res. 526 are printed in today's RECORD under ''Submitted Resolutions.'')

The PRESIDING OFFICER (Mr. GARDNER). The Senator from Minnesota.

CLIMATE CHANGE

Mr. FRANKEN. Mr. President, I rise today to join my colleagues to expose those who continue to deny the science of climate change and try to deceive the American people. This is important because climate change is an existential threat to our planet and to future generations. By denying climate science and lobbying against efforts to address climate change, these deniers are subjecting the planet and everybody on it to great risk.

Climate change will have significant adverse impacts on all of our States, including my State of Minnesota. Just look at our agriculture sector, which is responsible for one out of every five jobs in Minnesota. Warmer temperatures and more intensive droughts are going to negatively impact this important rural economic engine. In fact, a recent study estimates that with no adaptation efforts against climate change, Midwest crop production could decrease by more than 60 percent by the end of the century.

Climate change will also impact our waters, and that is important to my State—the Land of 10,000 Lakes—which includes Lake Superior. Lake Superior alone contains about 10 percent of the world's fresh surface water, and it is warming by two degrees per decade. Because of this warming, we are seeing more evaporation and lower water levels in the lake. Plus, rising temperatures allow for more favorable conditions for invasive species and hazardous algal blooms. Warmer temperatures could also have severe consequences for fish like walleye pike and trout that are so important to Minnesota fisheries and ecosystems.

And let's not forget the threat of climate change to our forests. As in our lakes, warmer temperatures elevate the threat of invasive species such as the emerald ash borer and gypsy moth that are rapidly changing the composition of our forests—or the bark beetle in Colorado, the State the Presiding Officer represents. They destroy trees and cost economies and money and jobs.

So we can see that climate change poses a very serious threat to Minnesota and to our country. I believe it is the defining issue of our generation—an issue that demands immediate action. But, unfortunately, there are some groups that have been trying to prevent action. These groups have spent many millions of dollars muddying the water, distorting the science, deceiving the American people, and, ultimately, delaying the response that we desperately need.

Over the last two days, my colleagues have come to the floor to expose this web of denial—the extensive network of groups and individuals who are spreading lies about climate change—and I am here today to expose one of the worst actors of all: the Heritage Foundation.

The Heritage Foundation is a right-wing ideological organization known for advocating for discriminatory social and economic policy—things like attacking voting rights, privatizing Social Security, and favoring tax breaks for the rich to the detriment of the middle class. They are also a mouthpiece for climate denial.

If you go to the Heritage Foundation web site, you will find that it says that climate change is ''used too often as a vehicle to advance special interests and politically driven agendas.'' That is rich, coming from an ideological organization devoted to promoting a partisan agenda. No one can deny that.

The Heritage Foundation is notorious for trying to undermine the science on climate change. Their favorite claim is that ''the only consensus over the threat of climate change that seems to exist these days is that there is no consensus.''

Even as recently as April, a report that the Heritage Foundation issued referred to climate scientists as ''a field that is a mere few decades old'' and that ''no overwhelming consensus exists among climatologists.''

While these statements may grab headlines, they are utterly false.

Climate change science actually dates back to the 1800s—before Henry Ford sold his first car, before Thomas Edison invented the light bulb, and even before the first oil well was drilled in the United States. In 1824, French scientist Joseph Fourier proposed that the atmosphere keeps the Earth warm—what we know today as the greenhouse effect.

In 1859, an Irish scientist, John Tyndall, attributed this warming to several gases, including carbon dioxide. In 1896, a Swedish scientist, Svante Arrhenius published the first calculation of global warming from human emissions of carbon dioxide. In the more than 100 years since, scientists all around the world have studied, debated, and researched different aspects of the issue.

So when staff from the Heritage Foundation, none of whom actually have advanced scientific degrees, write a report that claims climate science is a new field that has little scientific consensus, they are ignoring the nearly 200 years of research—a scientific body of research that has led to 97 percent of climate scientists agreeing that humans are causing global warming.

But every now and then, even the Heritage Foundation admits that climate change is in fact real. But when they admit it, they pretend that climate change isn't a big deal and that it is not worth our time to combat it. In 2010, a senior policy analyst at the Heritage Foundation—with a degree in law, not climate science, mind you—declared that ''none of the scary stuff about global warming is true, and what is true about global warming, what the science actually tells us about man's role in changing the climate, is far from terrifying.''

Now all of this science denial and false propaganda might not be such a big deal if climate change wasn't such a serious problem, but when you look at the scope of the problem you quickly realize how the Heritage Foundation is acting in an incredibly and deliberately irresponsible way.

Last year, I traveled to the climate change conference in Paris and met

with a delegation of leaders from Bangladesh, a country that has contributed little to industrial air pollution but is one of the most vulnerable to the negative impacts of climate change. It is estimated that unless we act, rising sea levels will inundate 17 percent of Bangladesh, displacing about 18 million people in this low-lying nation by the end of this century. Even now, rising sea levels are impacting Bangladesh through salt water intrusion, reducing agricultural yields and ruining drinking water supplies. It is already having a profound effect.

We are talking about a very poor country that doesn't have the resources to deal with climate change. Bangladeshis will be uprooted and turned into climate refugees without a home. I would bet these individuals would disagree with the Heritage Foundation that the impacts of climate change are ''far from terrifying.''

If you think the Syrian refugee crisis is difficult to deal with, just think of the magnitude of what we will see if we do not address climate change. For a lawyer at the Heritage Foundation to make this claim is not only irresponsible but, frankly, dangerous to the welfare of people around the world.

These are just a few examples of the falsehoods that the Heritage Foundation spreads about climate change. If I had the time, I could go on for hours—maybe, even, days—quoting more of those lies. In fact, from 1998 to 2013, the Heritage Foundation published more than 1,600 documents contributing to climate skepticism, and they have published many more since. So I think we can say the Heritage Foundation is deliberate and unwavering in its fraud and deceit.

One might ask: Why would the Heritage Foundation work to deceive the American people in such a way? What do they get out of it?

Well, I will tell you. It is because they are being paid to do so by self-interested fossil fuel companies like ExxonMobil and people with major investments in fossil fuel companies, like the Koch brothers. Perhaps you have heard of them. The Heritage Foundation's work to espouse lies and prevent action on climate change directly benefits the bottom line of the companies and brothers who are funding them. We know this because over the past two decades ExxonMobil donated nearly $1 million to the Heritage Foundation; and the Koch brothers, the owners of the fossil fuel conglomerate Koch Industries, contributed nearly $6 million. These companies and brothers are worried that if people knew what their products were doing to the planet, they would stop buying their products or transition to other renewable energy or public policy would drive the markets away from their products. So in order to protect their bottom line, they set out to misinform the public. That is what they do for a living, and Heritage and many other similar organizations, are helping them to spread their falsehoods. That is what they do at the Heritage Foundation for a living.

The money paid to Heritage goes to supposed experts whose jobs are to release thousands of bogus reports about climate change. These experts are not climate scientists. They are lawyers and economists serving as puppets for the fossil fuel industry. These same so-called experts publish op-eds and do interviews in media outlets around the country—talk radio—helping to spread disinformation or misinformation or what we sometimes call lies. They also brief Congress and serve as trusted authorities for staff in many Republican offices. So it shouldn't surprise us that my Republican colleagues deny climate change when they rely on these experts.

Despite the best efforts of the Koch brothers, the Heritage Foundation, and other deniers, people around the country are not fooled. In Minnesota we are seeing changes to our crops, lakes, and forests. Instead of sticking their heads in the sand, Minnesotans are taking action.

In 2007, under a Republican Governor, my home State established a renewable energy standard to produce 25 percent of our power from renewable sources by 2025. That same year, Minnesota passed an energy efficiency standard to require utilities to become a little more efficient every year. To top things off, Minnesota established an aggressive goal to reduce greenhouse gases 80 percent by 2050. These are the kinds of policies that we need to combat climate change, and these are also the kinds of policies that the Heritage Foundation is fighting tooth and nail to prevent.

It is not just the Minnesota legislature that is taking action. Minnesota businesses also recognize the importance of fighting climate change. Last year I joined Dave MacLennan, the CEO of Cargill, in penning an op-ed in the Minneapolis StarTribune to highlight the threat of climate change to agriculture, especially considering that global population will reach 9 billion by midcentury. As the CEO of a food company focused on agriculture, Dave is concerned about what climate change is going to do to our food supply. He is not alone. We have businesses all over our State that are installing wind turbines and solar panels and manufacturing cutting-edge energy efficiency technologies.

Minnesotans aren't fooled by the Heritage Foundation. On the contrary, to them, climate change represents a Sputnik moment—an opportunity to rise to the challenge and defeat that threat. In response to Sputnik, we ended up not just winning the space race and sending a man to the moon, we did all sorts of good things for the American economy and society.

We did it before, and we can do it again. By rising to the challenge of climate change, we will not just clean our air, but also drive innovation and create jobs, and not only in the clean energy sector.

I have two grandchildren, and I am expecting my third later this year. God willing, they will live through this century and into the next, and in 50 years I don't want my grandson Joe to turn to me and say: Grandpa, you were in the Senate, and you knew about the severity of climate change. Why didn't you do anything to stop it? And also, why are you still alive? You are 115 years old.

I will say it was all investments we made in our age. I want my grandson to know that when we had the opportunity to put the planet on a safer path, we seized the moment.

So let's not allow the Heritage Foundation and all of these different members of this web to slow us down. Let's not let the selfish motivations of shadowy donors with ties to the fossil fuel industry prevent us from making the planet a safer and more habitable place for our children, our grandchildren, and future generations.

It really is time to stand up to ignorance and denial. It is time for all of us on both sides of the aisle to do what is right for future generations.

I thank the Chair, and I yield the floor.

The PRESIDING OFFICER. The majority leader.

ORDER OF PROCEDURE

Mr. MCCONNELL. Mr. President, I ask unanimous consent that notwithstanding rule XXII, at 11 a.m., Wednesday, July 13, the Senate vote on the motion to invoke cloture on the conference report to accompany S. 524. I further ask that following the cloture vote, the Chair lay before the Senate the message to accompany H.R. 636, the FAA bill; that the majority leader or his designee be recognized to make a motion to concur in the House amendments to the Senate amendments; and that the time until 1:45 p.m. be equally divided between the leaders or their designees. I ask that following the use or yielding back of time, the Senate vote on the motion to concur in the House amendments to the Senate amendments with no intervening action or debate and that all time allocated for consideration of H.R. 636 count postcloture on S. 524, if cloture is invoked.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MCCONNELL. For the information of all Senators, the cloture vote on the CARA conference report will occur at 11 a.m. tomorrow, with the vote on the FAA bill scheduled at 1:45 p.m. Senators should expect a vote on adoption of the CARA conference report during tomorrow's session.

The PRESIDING OFFICER (Mr. LEE). The Senator from Louisiana.

ZIKA VIRUS FUNDING

Mr. CASSIDY. Mr. President, I come as a Senator, but actually I come wearing two different hats right now—two more hats aside from being a Senator. One of them is a teacher. I still teach at the LSU Medical School and have for the last 30 years, so I decided to do

a presentation on something wearing my next hat.

In my life as a physician, I have done much work in public health and have learned, by the way, that if you head off illness early, you save a lot of money. You save a lot of money after that. I call it the balloon theory. If you put a balloon up to helium and you squeeze the nozzle, it inflates quickly, but if you pull it off the nozzle, it remains deflated.

Right now, we have something at risk with Zika that will be like that helium balloon—inflating rapidly unless we do that initial thing that pulls the balloon off the helium so that it works.

I am a teacher, so I decided to do something different. If anybody in the audience so chooses, they can put their phone and their QR code reader up to the television or the computer monitor and they can scan this barcode, and they will see the slides we are about to go over. So if you are watching at home and you wish to follow, then you can download these slides, and if you think them important, you can forward these slides to another person. Again, that is my effort as a teacher to try to speak about the spread of Zika.

This is Jose Wesley, born to a Brazilian mother who contracted Zika probably in her first 3 months of pregnancy. When Zika went through the momma's blood when Jose was in her womb, into the amniotic fluid or through the placenta, it entered Jose's body and went to his brain. That virus stayed inside his brain and terribly affected his brain.

Jose was born with microcephaly. You cannot really see from this angle what microcephaly is, but what ''microcephaly'' means is ''small brain.'' Here is a profile of a child with microcephaly. You can see that—unlike the big head babies normally have—this is a very small head. This is associated with severe neurologic deficits and early death. This is a tragedy and potentially a preventable tragedy.

Again, the teacher in me wants to talk a little bit about Zika. The spread of Zika historically gives us insight as to what we must fear now. Zika was first discovered back in 1951 in Africa, Uganda. Then, at some point in the three decades that followed, it spread quickly to Asia, and then from Asia to Yap Island in 2007, which is in the Pacific. In 2013 and 2014, it went to more Pacific islands. In 2015 and 2016, it entered the Americas. At some point, it began to spread rapidly. This is important because it is now in the Americas threatening Americans.

These are States which have cases of Zika. Here is the U.S. Virgin Islands. Here is Puerto Rico. They have the most, but almost every State is affected. Most folks have contracted it elsewhere and brought it back to their State, but there are some folks who received it sexually. So their partner contracted it, perhaps in Brazil, and came back to Texas or Florida or Louisiana, where I am from, and they contracted it sexually.

Nonetheless, the virus is in the United States. It is particularly a problem in Puerto Rico and the U.S. Virgin Islands. These are American citizens. These Puerto Ricans, if they wish, can board a plane and travel anyplace they wish in the continental United States. That is their right as Americans. Similarly, these folks who are infected in these States can travel anyplace they wish.

Why is that important? Well, theoretically, it is important because these are the areas where the mosquitos that carry the Zika virus live in the United States. So theoretically, wherever these mosquitos are—and Hawaii should be on here someplace—the virus can enter and the virus can be transmitted by the mosquitos to many other Americans.

By the way, though, it is not just that you have to live where the mosquitos are. The first person to die from Zika in the continental United States just died in Utah. She contracted it elsewhere but then died in Utah. So the risk to our country is at least this. I will be perfectly honest. It is particularly a risk for those on the gulf coast because we have the sort of subtropical climate in which Zika flourishes. That is why I am particularly concerned.

But wearing my other hat as a public health doctor, I know we have this moment in time. Either we pull that balloon off so it does not inflate with Zika, damaging our country, creating more Joses here in the United States, or not.

Some of you may have seen the barcode that I held up initially. You may have downloaded that. We will hold up that barcode again if you wish to download these slides, but all of these are on the PowerPoint presentation that you may download should you wish.

Public health emergencies are inevitable. Let's talk about the response to this one. Mr. President, $600 million that was left over from the Ebola fund has been released to CDC and other agencies to mount a response against Zika. Now, $600 million was left over, and only one-fifth of it has been spent. So there are still substantial dollars available, but the CDC and other Federal agencies say they need more.

Republicans have supported $1.2 billion in additional funding to fight Zika. My colleagues on the Democratic side—we have a difference over this. They are opposing this $1.2 billion to fight Zika because they say the Republican bill discriminates against Planned Parenthood.

Planned Parenthood is not mentioned in the bill, and the way it discriminates—I have been in Washington—in the Senate, at least—for 2 years, and sometimes you have to kind of figure out why people are taking offense at something. Even though Planned Parenthood is not mentioned, the reason they object is because we specify that the money needs to go to a public agency, one that sees Medicaid patients, the State or territory Federal program that takes care of the uninsured. Planned Parenthood is not a Medicaid provider.

So it is not that they are not mentioned; it is that they are a private entity that, in Puerto Rico, does not accept Medicaid. So we could carve in and say: If you are a private entity, you can also receive these Federal dollars to provide family planning. It just so happens that in Puerto Rico, Planned Parenthood does not.

So Republicans are trying to release $1.2 billion to pull the balloon off the helium so it does not inflate with all kinds of cases, and one more case of a Jose would be one case too many. But we are caught up in this snafu about Planned Parenthood. It is the craziest thing in the world, but unfortunately it is how Washington, DC, sometimes works.

As a public health physician, I find that incredibly offensive. As a doctor who understands the critical nature of this, I am asking folks on the other side of the aisle to accept that this bill may not be exactly what they want—it is not exactly what I want—but it is something that would give additional resources to the Centers for Disease Control and others to begin to fight the Zika virus before it comes more extensively to our Nation's shores.

We can anticipate that public health emergencies in the future are inevitable. For example, we recently had Ebola. We had the West Nile virus. We have already spoken about Zika. So aside from hoping that my Democratic colleagues will agree to release the $1.2 billion to fight Zika now, there is also something else I am proposing, but I don't want to sound overly partisan because I am doing this particular bill with my Democrats—with Senator BRIAN SCHATZ from Hawaii. We are putting forward the Public Health Emergency Response and Accountability Act.

I am from Louisiana. We have had hurricanes. Hurricane Katrina is the one that is the most famous. If there is a hurricane or another natural disaster that hits an American State, then FEMA has a budget that is automatically triggered. It does not have to go through this appropriations process. We don't tie it down in discussions of extraneous matters. It is something that immediately comes to bear to bring relief to those affected by natural disasters.

The other thing that is done is that normal Federal contracting processes are waived. So instead of having to get 10 different signatures—which literally might be the case—for someone to travel from Washington, DC, to Louisiana or Kansas or Florida, it is waived and that emergency response coordinator may immediately go. There is oversight, so this is not carte blanche, but it is a more effective way

to bring Federal resources, in partnership with local resources, to bring relief to those affected. We bring that flexibility in the use of funds while retaining accountability.

We call this the Public Health Emergency Response and Accountability Act, and we anticipate entering this in very soon. Senator SCHATZ has been wonderful to work with in terms of this aspect of what we are doing.

So there are two issues. The $1.2 billion that we should release now, that would immediately go—it is not a perfect bill, but we have to prevent more cases of these children who are tragically born with microcephaly, as well as more deaths, like the woman who recently died in Utah. Then, No. 2, we need to have the response and accountability act, which gets rid of this process we struggle through in order to release those funds to bring the relief we need.

Let me summarize by saying this: This is a baby with microcephaly. I think there have been three children born in the United States already—not conceived here but born here—who have microcephaly. This child's life is limited. She will most likely die at an early age, with severe neurological deficits. If you just want to look at it in a dollars-and-cents approach, this child will be a ward of the State for the entirety of her life and will cost the Federal taxpayer millions of dollars.

We have already had these babies born in Puerto Rico, New Jersey, and Hawaii. There are two pregnant women in Illinois who tested positive for Zika, and we had a death in Utah and Puerto Rico—not children but adults. The question is, Will the Senate work to stop this? And again, if you are watching and you wish, you can scan this barcode, you can download this presentation.

Let me finish by saying this. I just said the Senate should work to stop the spread of Zika. You can do something. We are a representative democracy and we respond to you, the people, and if we don't, by golly, you should vote us out. So I am asking you, if you are watching at home and you think there needs to be a response quickly and efficiently and effectively to combat the spread of Zika, you can either barcode this or not, but whatever you do, call your Senator. Ask your Senator—ask her or him—to support efforts to stop the spread of Zika, to release the $1.2 billion, and to also support the bill Senator SCHATZ and I are putting forward, the Public Health Emergency Response and Accountability Fund.

Ultimately, we answer to you, the people. That is a good thing. I ask you to perhaps use this tool to help us, to encourage us to answer to you, as we should.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from New Mexico.

CLIMATE CHANGE

Mr. HEINRICH. Mr. President, I rise to join my colleagues from the Senate Climate Action Task Force on the floor to bring attention to the well-funded network of organizations that are deliberately misleading the public on climate change. My colleagues have called them the web of denial. We all gathered on the floor yesterday and today to bring attention to these political front groups that are acting as major roadblocks to the actions we must take as a nation and as a global community to address the difficult and disruptive but absolute and unequivocal scientific reality of climate change.

This web of denial is made up of dozens of organizations propped up by dark money. These political front groups for wealthy and self-interested donors like the Koch brothers—you may have heard of them—peddle bogus theories that climate change isn't real or, at the very least, the American public should doubt the overwhelming scientific evidence and fear what might happen if we enact policies that move us toward cleaner energy solutions. These organizations are promoting policies that are completely counterproductive at a time when we urgently need to take decisive action to combat climate change and to protect the health of our children and future generations.

As many of my constituents know well, climate change has already had a very real and costly impact in my home State of New Mexico, as it has across our Nation and around the world. In New Mexico, we are already seeing more extreme and prolonged drought conditions, larger wildfires, shrinking forests, and increased flooding. This is the reality now, not some far-off date in the future, and the longer we wait to act, the more difficult and the more expensive the solutions will be.

That is why the fictitious narratives spun by this web of denial and their organizations are so dangerous and why we, as policymakers, need to stand and refute their lies. We need to disclose who they really are and discredit their campaigns.

I am focusing this evening on the American Legislative Exchange Council, or ALEC. ALEC is an organization made up of State legislators across the Nation, and ALEC claims that nearly one-quarter of our country's State legislators are affiliated with the organization. ALEC calls itself a nonpartisan organization that promotes an exchange of ideas to help create State-based policies that promote economic growth.

Sounds like motherhood and apple pie, doesn't it? But when you take a look at who is behind ALEC's operations and you take a look at the types of policy they are pushing in State capitols across this Nation, you get a sense for their real agenda, and you can tell they are part of the coordinated and well-funded campaign to peddle doubt and skepticism about the settled science of climate change.

ALEC has been described as ''a dating service between politicians at the State level, local elected politicians, and many of America's biggest companies.'' ALEC writes ''model policy''—thousands of cookie cutter, anti-conservation bills that legislators can introduce under their own name, in their own States, in hopes of turning them into law.

Specifically, in the area of energy policy, ALEC pushes a concerted legislative agenda that is in line with the rest of the Koch network to promote climate skepticism and roll back laws that protect clean air and water. ALEC's ''model bills'' read like they were written by the biggest polluters in our country because they probably were.

There are resolutions condemning the Clean Power Plan, calling for States to withdraw from regional climate initiatives and to reconsider national environmental standards such as rules that reduce ozone pollution—and, I might add, save lives. ALEC also pushes bills that call for repealing renewable fuel standards that are moving our electric grid toward cleaner energy sources.

ALEC has also written model resolutions that call for selling off or turning over public lands, such as our national forests in Western States like New Mexico and across our country. The current ALEC State chair in my home State of New Mexico introduced legislation at the Roundhouse in recent years called the Transfer of Public Land Act, which would call on the Federal Government to turn our public lands over to State management.

The only way Western States like mine could foot the bill for administering America's public lands would be to raise taxes dramatically or—and this is much more likely—sell off large expanses to developers and other private interests. Over time, it would mean public lands that New Mexicans go to every summer to hike and camp and barbecue with their families, the national forests where they go to chase elk and mule deer during hunting season would be closed off behind no trespassing signs.

I have long believed public lands are an equalizer in America, where access to public lands ensure you don't need to be a millionaire to enjoy the great outdoors or to introduce your family, your children to hunting and fishing and hiking. This land-grab idea is just as ludicrous as denying climate change, just as detached from reality, and similarly comes at the expense of our public health and protection of our public lands and resources.

Frankly, you don't have to do a deep-dive investigation to figure out what is going on. The so-called policy experts and leaders that make up ALEC's board of directors are on the record as climate skeptics. ALEC's CEO, Lisa Nelson, said: ''I don't know the science on that,'' when she was asked if CO_2 emissions are the primary driver of climate change. Texas State representative Phil King, the national board

chair for ALEC in 2015, said: ''I think the global warming theory is bad science.'' And Connecticut State representative John Piscopo, ALEC's national board chairman in 2013, said: ''The public has been hoodwinked. . . . I have serious doubts about whether [climate change] is manmade.''

We all know the reason ALEC's members and leaders say things like this and promote these kinds of bills. It is because so much of the funding for ALEC's operations comes from sources other than membership dues. Over 98 percent of ALEC's revenues comes from corporations and trade groups and corporate foundations. That is how ALEC works, by sewing uninformed seeds of doubt to move the needle at the State and local level toward anti-science, anti-climate action policies that benefit their funders' bottom line.

ALEC is just one piece of a large web of similar dark money organizations that promote climate skepticism and are dangerous fronts for corporate interests to deliberately mislead the public and influence lawmakers. To see just one other recent example of this in my home State of New Mexico, I would like to take a moment to look at a letter to the editor published last week in the Las Cruces Sun-News by the Environmental Policy Alliance.

This is another one of those web-of-denial political front groups. In the letter to the editor, they claim that conservation and monument designations are really ''federal land grabs'' and the work of ''radical environmental groups'' trying to stop economic development. These ''radical groups'' and ''green decoys'' are, according to the letter, such dangerous groups as Trout Unlimited, the Theodore Roosevelt Conservation Partnership, the Izaak Walton League, and Backcountry Hunters & Anglers, groups that all stand up for the interests of sportsmen and hunters and anglers—certainly not what most of my constituents would consider radical.

A close look shows who the real decoy is. The Environmental Policy Alliance is funded by the Western Fuels Association, another organization in the web of denial, and it is a pet project of lobbyist Rick Berman, who has also led deceptive public campaigns on behalf of cigarette and alcohol companies and now dirty energy. This organization doesn't care about the best way to manage our publicly owned lands or preserving the ability of Americans—no matter what their stake in life is, how much money they make—to experience our country's rich outdoor heritage. Instead, the Environmental Policy Alliance wants to put our public lands up for sale so the corporate elite can develop them for their own use and their own profit.

The Environmental Policy Alliance has published similar letters in dozens of small to midsized city newspapers all across our country in recent years—canned letters with no connection to local sentiment.

The reality is, the Organ Mountains-Desert Peaks National Monument in Southern New Mexico, which this group has slandered, serves as a national example of community-driven, landscape-scale conservation. In fact, independent polling shows overwhelming local support for this monument, and I am proud of my close work with the region's diverse coalition and stakeholders that worked so hard for so many years to make that monument a reality.

Two years into the Organ Mountains-Desert Peaks designation, local businesses in the Las Cruces area are attracting major tourism dollars and economic benefits. The Lonely Planet guidebook has named Southern New Mexico as a top 10 ''Best in the U.S.'' for 2016 destination, and highlights the national monument as a reason to visit.

The tax revenues of the town of Mesilla have jumped over 20 percent since the monument's creation, and Las Cruces' lodgers tax revenues are up since 2015, in part because of new conferences and meetings attracted to the area by the monument.

You can see how out of touch these groups are that want to instead sell off this public land. The organizations that make up this web of denial are promoting dishonest and deceptive campaigns that frankly run directly counter to the public interest.

At a time when we desperately need to move our State and national energy and conservation policies forward, we should be taking the overwhelming and indisputable scientific fact of climate change seriously, and we should make smart and forward-looking investments in the sustainable, low-carbon fuels of the future.

I am convinced advances in energy efficiency and generation and transmission of clean power offer us a roadmap that not only allows us to combat climate change but to do it in a way that will create thousands of new jobs and much needed economic activity in New Mexico and all across our country.

That is the reality, just like climate change. Climate change is not theoretical. It is one of those stubborn facts that doesn't go away just because we choose to ignore it or if we listen to the company line from self-interested Koch donor networks and organizations like ALEC.

I think it is time to call these ''Astroturf'' groups out for who they really are and, frankly, who they really answer to. More importantly, it is time to take action on the moral challenge of our time—addressing climate change—so that our children can inherit the future they truly deserve.

The PRESIDING OFFICER (Mr. PERDUE). The Senator from New Hampshire.

Mrs. SHAHEEN. Mr. President, I rise today to join my colleagues in speaking out against what I believe is the misleading and dangerous campaign of some in the fossil fuel industry to undermine this Nation's efforts to combat global climate change.

The science on climate change is beyond rational dispute. Climate change is real. It is a clear and present threat to our planet, and it must be addressed robustly and urgently.

Scientists have proven unequivocally that CO_2 and other greenhouse gases we release into the atmosphere when we burn fossil fuels act to trap heat and form an invisible blanket to warm the planet. Over the last century, the Earth's average temperature has continued to rise, with 9 of the 10 warmest years on record occurring since the year 2000.

True to form, 2015 was the Earth's warmest year on record. Rising global temperatures have led to extreme changes in weather events and in our environment. No country is insulated and no State is insulated from the escalating effects of climate change.

In the United States, we are seeing it in this every region of the country, and we are witnessing its effects very dramatically in my State of New Hampshire. Rising temperatures are affecting our tourism, our outdoor recreation, and our agriculture industries. We are experiencing an onset of negative health impacts and increases of insect-borne diseases—Lyme disease is one—all of which can be tied to the effects of climate change.

In the United States and throughout the world, people acknowledge that global warming is an existential threat that requires immediate action to slow its pace and mitigate its effects, even while those climate deniers are still out there, making noise.

According to the Pew Research Center, two-thirds of all Americans acknowledge that climate change is real and that action must be taken to address it. But there are some, an extreme but influential minority, who argue that climate change is a hoax; that it lacks scientific consensus; that the changes we observe are not due to CO_2 and other greenhouse gas emissions, but they are due instead to variations in the sun or cosmic rays; and that policies to limit greenhouse gas emissions will ruin our economy.

Not surprisingly, these climate deniers are not scientists, though they may pretend to be. They are front groups funded by the fossil fuel industry, generally, and the Koch brothers, in particular. These front groups are paid to spin a web of denial wrapped in ideology with the aim of purposely deceiving the public about the dangers of climate change. This is deceitful and it is wrong, and we are here on the floor this afternoon to call out these groups by name so that the public knows what to watch for and there is some transparency about what is being said.

One of those groups is the Competitive Enterprise Institute, or CEI, based in Washington, DC. This group describes itself as ''a public policy organization committed to advancing the principles of free enterprise and limited government.'' But if we look more

closely, we find that CEI is not an independent organization. It is funded by powerful corporations designed to spread untruths and disinformation on behalf of its corporate sponsors.

In recent years, CEI has taken up the issue of climate change. It has been outspoken in disputing scientific evidence that human-produced greenhouse gas emissions are driving global warming.

Some may recognize CEI not for its work on climate denial but for its prominent role in misleading the public about the scientific evidence linking smoking to lung cancer and heart disease. Legal documents from major tobacco companies exposed the fact that CEI received more than $800,000 from Philip Morris to launch coordinated media campaigns to attack the Food and Drug Administration's efforts to regulate tobacco.

Mr. President, I ask unanimous consent that a series of these documents be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

WRO EFFORTS

Beginning last fall, the assistance of the Washington Legal Foundation, Citizens for a Sound Economy and the Competitiveness Enterprise Institute was sought to define the FDA as an agency out of control and one failing to live up to its Congressional mandate regarding regulation of drugs and medical devices.

Beginning in December, those groups conducted an aggressive media campaign toward those goals, incorporating the issuance of policy papers, conducting symposia, filing petitions with FDA and taking other steps to keep the public and media focus on the agency.

On the legislative front, a group of southern Democrats began negotiating with the White House early this year on behalf of the industry seeking to eliminate any role for the FDA in the regulation of tobacco.

The quid pro quo in these negotiations would be voluntary concessions on the part of the industry on the issue of youth access to cigarettes. Leading the negotiations were Sen. Wendell Ford and Rep. L.F. Payne. After nearly eight months of discussion, the WH rejected the compromise.

Beginning in January, members of Congress—at the urging of several outside groups including Citizens for a Sound Economy—began taking a much closer look at the FDA appropriations request. That scrutiny led to the successful effort to eliminate $300 million sought by FDA to consolidate its offices in a new federal campus, by any measure a major setback for Kessler.

Meanwhile, Congress also was scrutinizing the regular appropriations and voted to freeze the agency's budget, effectively decreasing the level of funding for next year when adjusted for inflation.

Language was inserted in that legislation to restrict Kessler's authority to assign employees to various projects and a list of questions was submitted to Kessler regarding his investigation into tobacco, including what resources and personnel were being devoted to the effort.

Congress has not been satisfied with his responses to date, raising the issue of whether Kessler has been evasive or even engaged in obstruction of Congress in this area.

Congress also initiated a series of oversight hearings regarding the agency, conducted in the House by Rep. Thomas Bliley and in the Senate by Sen. Nancy Kassebaum. Those hearings focused on whether the FDA was fulfilling its mission and included several demands by Congress for documents and deposition.

At the Senate oversight hearing, former FDA Commissioner Charlie Edwards testified, raising further questions of whether the FDA was acting legally and responsibly in pursuing a course that would lead to tobacco regulation.

As a result of the growing focus on FDA from inside and outside Congress and the groundwork laid through the oversight and investigations committee work, legislation to reform the FDA was proposed earlier this year and is expected to be formally introduced in September. A key provision in the reform legislation will be to restrict FDA's regulatory authority.

The House Agriculture Committee also requested that Kessler supply all documents he was using in consideration of his tobacco regulations. Kessler has resisted, and that effort continues.

In recognition that Kessler ultimately would play some regulatory role regarding tobacco, an aggressive campaign was conducted over the past six months to educate members of Congress and their staffs regarding the issue of regulation.

One result of that campaign was a July 15 press bipartisan press conference led by Reps. L.F. Payne and Richard Burr as a result of media reports that Kessler had sent his regulatory proposal to the White House. Participants circulated Dear Colleague letters throughout Congress and submitted Op-Ed pieces to their hometown newspapers challenging the need for FDA regulation.

Also, as a result of those education efforts, delegations of elected officials met with White House officials in an effort to derail federal intervention in tobacco regulation.

The groundwork that has been laid legislatively has been designed to create a receptive atmosphere in Congress for legislation that will be introduced to eliminate FDA's role in tobacco regulation. The timing and specifics of such legislation are under consideration.

Efforts in Congress also were made to identify unlikely allies—those who generally are more concerned with the politics of regulation rather than the substance—and resulted in meetings with the WH with Sen. Chris Dodd and Rep. Dick Gephardt. Labor also presented opposition to Kessler's role in regulation.

Recognizing that legislators weren't the only point of White House access, a conference of tobacco growers held this summer focused on the ramifications of FDA regulation. Both Sen. Ford and Rep. Payne spoke to growers, and efforts continue to mobilize the agricultural community in opposition to the proposed regulation.

The support of Administration political advisors was enlisted to discuss the ramifications of FDA regulation, and those efforts also continue.

STATE ACTIVITIES

Efforts focused primarily on defining the issue of youth smoking as one that properly should be addressed at the state and local level, rather than having FDA intervene with any regulatory scheme.

In all 50 states, the stated goal was to endorse or pass reasonable marketing laws which stop minors from purchasing cigarettes, with a minimum of government interference in the marketing of the cigarettes to adult smokers.

State elected officials also were contacted to intervene with the White House to stress the point that there was no need for FDA regulation. In addition to the states' rights issues, economic and political arguments were incorporated in the discussions with Administration officials.

Support of the American Legislative Exchange Council—a public/private consortium of conservative state legislators—took a stand against FDA regulation, as did the Southern Legislative Congerence, a group affiliated with the Council of State Governments.

Meetings were held with the Southland Corp., one of the nation's largest cigarette retailers, and with the Food Marketing Institute and National Association of Convenience Stores to brief those groups on potential adverse impacts of FDA regulation and to enlist their opposition.

A working group was formed by the Tobacco Institute to bring together industry representatives and the retail and wholesale trade communities to join together and work toward the common goal of compliance with laws prohibiting sales of tobacco products to minors. Much of the focus centered on employee education regarding underage sales. Covington and Burling also was given the assignment of drafting appropriate state legislation that could be used as a model in state legislatures.

A blueprint was established to enable the company to contact and mobilize legislative and retail association allies to participate in the 90–day comment period once the Kessler regulations were released and to support appropriate Congressional action on the issue.

Third-party spokespeople were identified in each state to address the issues of FDA regulation with local media, and a state elected official in each state has been identified to enlist his or her colleagues in upcoming legislative sessions on youth access issues.

INTERNAL ACTIVITIES/MEDIA RELATIONS

Work began last year to formulate a PM program that would address the issue of youth access, with a decision made in December to hold those proposals in abeyance.

Company employees and outside consultants involved in the issue were formally assigned roles as the FDA response team, and efforts began in January to incorporate the various elements into a comprehensive program addressing all conceivable actions that could be taken by the Clinton Administration or the FDA regarding tobacco regulation.

These efforts encompassed both public affairs campaigns and potential legal filings. Press releases, statements, fact sheets, video news releases, background video and other materials necesssary to convey the company's position were drafted and taped for each of the options considered.

PM representatives with scientific credentials were assigned the task of meeting with various ''think tanks'' to discuss the issue of FDA regulation and generate guest editorials and comments to the media.

Those team members who were identified as taking a public role in PM's response were given media/communications training, focusing on the effective delivery of company messages.

In late spring, the proposed youth access program was resurrected and the company subsequently announced Action Against Access, incorporating voluntary and proposed legislative steps to address the issue of youth smoking.

The announcement of AAA was made at a New York press conference and was accompanied by an aggressive media outreach campaign, including the use of VNRs, background video feeds, letters to elected officials and coordination with third-party allies.

In early July, those involved in the FDA working group participated in a simulation geared to measure company response to an announcement by the FDA of full or partial regulation of tobacco.

That exercise envisioned several different actions Kessler could take on tobacco regulation, and measured the company's response to an FDA announcement. Based on the results of that exercise, the action plan was fine-tuned to deal with various options Kessler was believed to have available.

By the time of Kessler's announcement of regulatory intent, the company mobilized to battle the Administration proposal on both the legal and public affairs fronts.

A lawsuit was filed as soon as the FDA notice of intent to regulate was published in the Federal Register, and two hours before President Clinton's afternoon press conference announcing the action, PM held a press conference to announce the lawsuit and register its objections to the FDA action.

By the time Clinton made his announcement, a video news release and background video was fed by way of satellite to television news departments throughout the country, and satellite time was booked to provide those stations an opportunity to interview PM spokespersons for local broadcasts.

With assistance from Burson-Marsteller, PM press kits were sent to all major Washington-area media in anticipation of stories generated by those reporters.

While World Regulatory Affairs was dealing with the public affairs aspects of the FDA announcement, the Washington Relations Office mobilized its plans to reach legislative supporters in Washington and in key southern states to mount criticism of the President's decision.

All materials disseminated to the press also were circulated on Capitol Hill to provide legislators with the PM's position and rationale for filing suit. With information in hand, several southern legislators were able to react and respond quickly to media inquiries.

The PM briefings on Kessler's actions extended to conservative columnists and think tanks, enabling them to provide third-party views of the Administration's action.

Mrs. SHAHEEN. CEI lobbied politicians, conducted symposia, and published policy papers and op-eds with titles such as ''Safety Is a Relative Thing for Cars: Why Not for Cigarettes?'' CEI's then-policy analyst, Alexander Volokh, even went so far as to describe the act of smoking as a civic duty.

As the documents that we have just submitted for the record detail, CEI's mission was to portray the FDA as ''an agency out of control and one failing to live up to its congressional mandate.'' For a time, CEI was successful. Congress took a closer look at FDA's appropriations requests, and lawmakers slashed agency funding and passed language to restrict FDA's authority to regulate tobacco. In fact, at one oversight hearing, Members of Congress even questioned whether the FDA was acting legally and responsibly in pursuing a course that would lead to tobacco regulation.

If this sounds like deja vu, that is because it is. CEI and other front groups are using the same playbook, the same tactics to deny climate change that they used to deny a link between tobacco use and fatal disease. CEI is now on a new mission to confuse and mislead the public on climate change. It is financing and directing ad hoc groups like the so-called Cooler Heads Coalition, which claims that global warming is a myth and that many scientists are skeptical of climate change. CEI has also produced two television ads that allege that the polar ice caps are thickening, not shrinking, and that CO_2 emissions are good for the environment.

CEI's ads sound more like something that Saturday Night Live might come up with. For instance, this is their tagline about CO_2:

They call it pollution. We call it life.

Of course, we all know that CO_2 is necessary for plant growth. But what that ad fails to mention is that too much CO_2 in the atmosphere can cause global temperatures to rise, and that there is more of it in the atmosphere today than at any time during the last 420,000 years. So there is more carbon, more CO_2 in the atmosphere than at any time during the last 420,000 years.

Just as in the case of Big Tobacco, one need only to look at who funds CEI to see how they determine their messaging. We have a chart here to show where their funding comes from. I would just point out that this is data all compiled from publicly available records. We see ExxonMobil Foundation. Then we see the Koch family and their foundation. Then we see Philip Morris. So there is significant funding from people who have an agenda about climate change.

My staff has determined that between 1985 and 2015, CEI has received almost $15 million from rightwing organizations like the Donors Trust and the Dunn's Foundation for the Advancement of Right Thinking. CEI has also received more than $2 million, as we see here, from ExxonMobil, and more than $1 million from the Koch foundations and the Koch brothers personally. The strong ties between CEI's message denying climate change and the interests of coal, oil, and gas companies are clear and obvious. So it seems that while CEI has changed its client, it is still in the exact same business of selling lies and selling out the health and the future of ordinary Americans.

Another industry front group I wanted to talk about this afternoon has been exceptionally loud in denying climate change. It is the so-called Energy & Environment Legal Institute, or E&E Legal. E&E Legal has several different aliases—the American Tradition Institute, George Mason Environmental Law Clinic, and Free Market Environmental Law Clinic—but its MO is one and the same. Like CEI, E&E Legal has a core mission of discrediting climate science and dismantling regulations that protect the environment. However, instead of rolling out ad campaigns, E&E Legal has a different approach. Its specialty is harassing individual climate scientists and researchers with the aim of persuading the public that human-caused global warming is a scientific fraud. Of course, the group's lawsuits are frivolous and baseless. But this doesn't matter because the entire point of the lawsuits is to disrupt important academic research that may help us anticipate, avoid, or mitigate the impacts of global warming.

Once again, if we look at the funding behind E&E Legal, we understand exactly why this group is attacking climate scientists and their work. E&E Legal does not publicly disclose its donors. We have seen that before. However, bankruptcy proceedings have identified that the group is funded by Arch Coal and Peabody Energy, and that E&E's senior lawyer has received funds directly from Alpha Natural Resources. These are some of the largest coal producers in the United States. It is shameful and dishonorable that these coal companies are funding the harassment and intimidation of scientists. They are putting profits ahead of people, and their disinformation threatens the scientific inquiry and transparency we need in order to make smart climate policy decisions to protect our Earth.

In conclusion, big corporations are using organizations that claim to be independent to spread misleading messages to the American people, knowing that people would be quick to discount these messages if they actually knew they were coming directly from coal companies and from Koch Industries. This campaign of disinformation and propaganda endangers the health, environment, and economic well-being of people in the United States and across the world. That is why Senators who acknowledge the science of climate change, Senators who understand the urgency of action to combat climate change are speaking up this afternoon and for many days to come.

By coming to the floor, we want to expose groups like CEI and E&E Legal for what they are—front groups whose role is to spin a web of denial. By championing clean energy policies, we want to ensure that the United States reduces its dependence on fossil fuels while creating millions of jobs to support our economy in alternative energy and green energy sources.

By supporting our country's leadership in negotiating the international climate agreement concluded last year in Paris, we are doing our part to slow global warming and help poorer nations most affected by it. This is just the beginning. We will continue to come to the floor to advocate for policies to reduce carbon emissions, to strengthen our economy, and to protect our environment.

I yield the floor.

The PRESIDING OFFICER. The Senator from Rhode Island.

Mr. REED. Mr. President, today I join many of my colleagues here in encouraging the Senate to continue working on solutions to protect our planet from the growing threats of climate change.

First, I would like to thank Senator SHELDON WHITEHOUSE for his leadership and tireless work on these issues. We both represent the great State of Rhode Island, the Ocean State, and I am lucky to have such a strong partner to work with to improve the health of our oceans and fight sea level rise, beach erosion, and ocean warming and acidification. I am proud to work alongside him as we respond to the serious challenges of climate change. Indeed, he is the leader in this effort in the Senate, throughout my State, and throughout the country. I applaud his commitment to this endeavor and his efforts to organize all of us to come here and to speak out on this growing danger.

We are already shouldering the costs of climate change as Americans, and these costs are increasing. Climate change is driving severe drought and wildfires in the West, larger and more frequent floods in the Midwest, and sea level rise and greater storm damage along our coasts. Vulnerable populations, like children with asthma and the elderly, are suffering from higher levels of smog in our cities and longer and more severe heat waves. Farmers and ranchers are struggling with crop and livestock losses from drought. Increasingly, acidic oceans are harming shellfish populations and threatening fisheries. Communities are struggling to pay for infrastructure damaged by fires, more extreme storms, and coastal erosion.

In the face of this evidence, as my colleagues have all pointed out, there is a systematic and organized effort to discredit, dismiss it, ignore it, but Americans are sensing dramatically the effects in their own lives, and they understand this.

One area I think is important to emphasize is that climate change is not just a local issue or an issue that is associated with domestic policy. It has profound national security ramifications. Indeed, to the military, climate change acts as a threat multiplier, exacerbating threats in already unstable regions of the world. Climate change creates chokepoints for oil distribution lines and exacerbates our dependence on foreign oil to fuel ships, tanks, aircraft, and tactical vehicles.

To protect our national security, we must take action based on scientific evidence presented by our Nation's best climate scientists. Such experts have overwhelmingly warned us that the increasingly warmer temperatures will mean oppressive heat in already hot areas. This translates not only to geopolitical issues, but it translates down to the individual soldier. For our infantry personnel, this means carrying several pounds of additional gear across dry and arid regions. And supplying these troops with fuel and water is becoming a difficult challenge for our military leaders. Warmer temperatures also lead to glacial melt, causing sea level rise and ocean acidification, affecting our seafaring vessels and aircraft carriers, and increasing the complexity for our Navy.

One of the more interesting moments I had on the Committee on Armed Services was to listen several years ago to an admiral describe to me that transit to the Arctic Ocean will become commonplace in just a few years. To someone who was brought up in the 1950s and 1960s and served in the military in the 1970s, that seemed completely implausible, but that is happening. Yet there are groups that are organized that are trying to make that disappear.

It is not disappearing for our military. They have to cope with it, plan for it, and, indeed, ensure that our security is protected from the ramifications.

In national security, decisions are made by a careful evaluation of risk. Given the preponderance of scientific evidence, it only makes sense that we address the major risks caused by climate change. National security and foreign policy leaders across the political spectrum issued a statement last year urging the highest levels of American government and business to take domestic and international action to fight climate change. These are the national security experts. They are a bipartisan group of Americans who have dedicated their lives to this Nation. They are not a self-interested group of people who are profiting from a certain position. They include former Secretaries of Defense, Chuck Hagel, William Cohen, and Leon Panetta; Secretaries of State Madeleine Albright and George Shultz; National Security Advisors Zbigniew Brzezinski and Robert ''Bud'' McFarlane; Senators Olympia Snowe, Carl Levin, and Richard Lugar; New Jersey Governor and Chair of the 9/11 Commission Thomas Kean; and retired U.S. Army Chief of Staff, GEN Gordon R. Sullivan. These and many others agree that climate change is a threat to national security and have called for U.S. leadership in the global effort to tackle the urgent and complex problem of climate change. And yet, even these wise and selfless Americans are being dismissed, if you will, by the organized effort to undercut scientific evidence.

We took steps and have taken steps. Last December, in Paris, we took a step forward with an international agreement. More than 150 countries pledged to develop plans to tackle climate change domestically, including countries once reluctant to act, such as China and India. American leadership has been the key to getting these countries on board and agreeing to do their fair share. These countries are also acting because it is in their self-interest to do so—for their own health and for their national security.

It is clear that no country can avoid the impacts of climate change, and no country can meet this challenge alone. As a nation that has contributed more than a quarter of all global carbon pollution, it is our responsibility to lead, not to deny. As a nation already feeling the effects and costs of climate change, it is also in our national interest to do so. As we have seen time and again, other countries would join us if America leads the way—not by denial but by dedication to pragmatic solutions that can be achieved.

American companies must also do a better job in addressing climate change. It is not enough just for America's government and military to take action; the private sector also needs to step up to the plate. Companies need to be transparent and provide fuller disclosure of the impacts their industries have on our climate and environment and must take full responsibility for their actions. Some companies have improved their sustainability practices and have made strides to inform consumers about their carbon footprint, and more need to join them. In fact, many companies concluded it is in their economic self-interest to do so, not just in the national or public interest to do so.

Information about the risks posed by climate change is also something that is critical to investors, some of whom are demanding greater disclosures. For example, Allianz Global Investors, which is a global diversified active investment management with nearly $500 billion in assets under manager has specifically called for ''achieving better disclosure of the effects of carbon costs on the Oil & Gas companies.'' This is why I have introduced legislation to enhance climate-related disclosures by publicly-traded companies to ensure that these companies are providing investors with the information necessary to make informed investment decisions.

These companies not only have an obligation, as we all do, to the greater welfare of the country and indeed the world, but they owe a very direct and fiduciary responsibility to their investors. Many of these companies have information—I would suspect at least—that should be disclosed, and we have to ensure that they do this so that the market operates appropriately.

It is not just about broad statements of protecting the climate. It is not just about feeling good. It is about making concrete information available to the public, to investors, to the country as a whole—not to deny, obfuscate, or ignore this information.

I urge my colleagues to support legislation that protects our air, water, natural resources, and environment. The health of our oceans and environment must be preserved for now and for future generations. Indeed, in this effort, I can think of no one who is taking a more forceful and constructive role than my colleague Senator WHITEHOUSE. Again, I salute him.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator from Michigan.

Mr. PETERS. Mr. President, as ranking member on the Subcommittee on Space, Science and Competitiveness, I

know how important it is for our country to invest in scientific research and to make informed decisions based on those findings.

Sound science has played a critical role in the United States' becoming a leader in fields like space exploration, medical research, advanced manufacturing, and other high-tech industries. So when 97 percent of scientists in a particular field agree on a serious problem, it is wise for our policymakers to listen.

The scientific community is sounding the alarm about the urgent need to address the causes of global climate change. Scientists here in the United States and across the world overwhelmingly agree that the weight of evidence is clear: Global temperatures are rising, dramatic changes in weather and climate have accompanied this warming, and humans are largely responsible due to our emissions of greenhouse gases into the atmosphere.

Military leaders, doctors, economists, and biologists are among the experts warning us about global climate change and the fact that it is major threat to national security, public health, our economy, and our natural resources.

Unfortunately, powerful special interests, led by some organizations and companies in the fossil fuel industry, are deliberately spreading false information about climate change to influence public opinion and to muddle the truth. The strategy to confuse the public about climate change science and delay policy action has many parallels to the strategy used by Big Tobacco to mislead the public about scientific evidence linking smoking to lung cancer and heart disease.

The corporations spreading disinformation on climate change are the very same interests that have the most to gain financially by stopping meaningful action to reduce greenhouse gases, protect our clean air, and address global warming for future generations.

The Koch brothers are a prime example of this fact. Charles and David Koch made their vast fortunes from owning companies that profit from a range of dirty industries. Much of their wealth is funneled into activist groups that produce questionable information and the spin necessary to support their own interests. The web of denial they have created is a threat to sound science-based decisionmaking.

While some big polluters seek to confuse and cloud the judgment of decisionmakers and the public, the American people continue to suffer the consequences of our dependence on fossil fuels. These consequences are not just limited to rising global temperatures. The people of Michigan are paying for the costs of coal and oil pollution in many ways, but I would like to focus on just a couple of them.

A few years ago, three-story, high piles of petroleum coke, or pet coke, lined the banks of the Detroit River in the open air. Pet coke is essentially the industrial byproduct that is produced during the oil refining process. These particular piles were owned by Koch Carbon, a company controlled by the Koch brothers.

Usually pet coke is shipped off to other countries, where it is burned as fuel, worsening terrible air quality problems in places like China and contributing to global climate change. In this case, the banks of the Detroit River were being treated as a dumping ground to store these mountains of pet coke. The wind would blow the pet coke dust everywhere, including into the homes and lungs of those living in the neighborhoods nearby. It was even documented blowing across the river into Windsor, Ontario.

Not only was the air being contaminated, the pet coke was fouling the Great Lakes, a source of drinking water for nearly 40 million people. When it rained, pollution would run off from the piles into the Detroit River, which is part of the Great Lakes system.

I joined residents in Detroit to call for these pet coke piles to be moved, and only through a community-wide effort were they eventually successful. I have also introduced legislation to study the health and environmental impacts of this pet coke but, unfortunately, this same area of Detroit that has had to deal with mountains of particulate matter blowing into the air already had the distinction of having some of the worst air quality in the Nation.

Research shows that exposure to air pollution at a young age can lead to health problems like asthma, and air pollution can worsen asthma symptoms. Detroit has the highest rated of asthma in young children among the 18 largest cities in the United States. Over 12 percent of Detroit children have asthma; the national rate is around 8 percent.

Most air pollution comes from burning of fossil fuels, and parts of Detroit are dealing with high pollutant levels as a result. I wrote a letter, along with Senator STABENOW, calling for a plan to reduce sulfur dioxide levels in Southwest Detroit and comply with Federal clean air standards. The Michigan Department of Environmental Quality finally just submitted their plan to comply—over a year past the initial deadline.

These examples in Detroit show how protecting clean air and clean water are often environmental justice issues. Those that are most affected by pollution are often from low-income and minority households. Addressing climate change will also improve the air quality of these affected areas.

While these communities bear the brunt of fossil fuel pollution, the Koch brothers and others pour hundreds of millions and even billions of dollars into activities to avoid regulation of their dirty industries. One of the tactics that powerful corporate industries use is to bankroll numerous front groups to spread misinformation. The idea behind this strategy is to use seemingly independent organizations, such as think tanks, to deliver misleading messages that the public might rightfully dismiss if they had heard them directly from industry.

They have calculated that it is better for business to mislead the American public, rather than acknowledge the scientific evidence and their role in climate change and join the effort to combat this growing threat to our planet. It is a page taken right out of Big Tobacco's playbook. By creating their own scientific studies and policy papers from a network of surrogates, it gives the appearance that there is a legitimate debate over the fundamentals of climate change science.

One example is the Cato Institute. For years, the organization has received funding from fossil fuel interests such as ExxonMobil and the Koch family. At the same time, Cato spreads climate skepticism. Over a span of 15 years, the Cato Institute published 773,000 words and 768 documents expressing climate skepticism.

The web of denial is intended to manufacture doubt among the American public in order to delay action, but the spending efforts by the same corporations also specifically target elected officials and other key decisionmakers to prevent meaningful action on global warming.

The Koch brothers have poured vast sums of money into election ads, lobbying efforts, and campaign donations often funneled through other organizations to hide the source of the funding. As a result, I have heard many climate myths repeated in the Halls of Congress that were carefully crafted by the network of climate denial front groups.

Late last year, the Senate Subcommittee on Space, Science, and Competitiveness held a hearing that was specifically designed to cast doubt on the scientific evidence of climate change. The witness panel was stacked by the majority with prominent climate deniers. As the ranking member, the one witness I was able to invite was RADM David Titley, who, as the U.S. Navy's chief meteorologist, initiated and led the Navy's task force on climate change. At the hearing, Dr. Titley outlined how climate change is a serious threat to national security. Admiral Titley explained that the military makes decisions based on known information and calculations of risk. Often they must act on less than perfect intelligence, but they understand risks and will take action to prevent threats when given the chance. The admiral applied this to the broad agreement among climate scientists, saying that any military commander would take action ''in a heartbeat'' if there was a consensus among 97 percent of the intelligence community about a particular scenario. In fact, the military has already started taking action

to anticipate vulnerabilities and mitigate the impacts related to climate change.

The brightest, most experienced minds in our U.S. military realize that reliance on fossil fuel leaves our troops and citizens exposed to more risks at home, as well as abroad. Unfortunately, Congress has not been as quick to act. Efforts to pass meaningful legislation to address climate change have been blocked. Existing administrative efforts to reduce admissions or invest in clean energy have also been repeatedly attacked.

We can and must pass legislative solutions to address global climate change. Transitioning away from fossil fuels and investing in renewable energy will create sustainable jobs and good-paying jobs here in the United States. Taking bold action on climate change will strengthen our public health, economy, and national security.

We must wake up and realize that those attempting to mislead and confuse must not be successful. I am confident that we will overcome this web of denial and use peer-reviewed, sound scientific information to guide our decisionmaking in order to create a resilient future for our children and grandchildren.

I yield the floor.

The PRESIDING OFFICER. The Senator from Arkansas.

HONORING OUR ARMED FORCES

CHIEF PETTY OFFICER ADAM BROWN

Mr. COTTON. Mr. President, the Senate will pass legislation renaming Post Office 620 Central Avenue in Hot Springs National Park after CPO Adam Brown.

I have visited that post office many times as a child, as a Congressman, and as a Senator. I can't say there is all that much remarkable about it, but it will be remarkable after this law is passed.

I didn't know Adam Brown, but Adam was about my age. Adam was a great warrior and a hero. Three years ago on Memorial Day in Hot Springs, a gentleman came up to me after I spoke and handed me a book titled ''Fearless'' by Eric William. It is a New York Times bestseller. It tells the story of Adam Brown. That title captures his spirit. He was fearless, relentless, and also a joyful and Godly man. As a child in Hot Springs, he was the one who always lined up to hit the biggest kid in football. He would jump off a bridge into the local lake and jump out of trucks. Adam was an all-American boy.

During his teenaged years, Adam succumbed to addiction. He began to drink, started to use marijuana, became addicted to cocaine, and that led to many crimes. At one point, he had 16 outstanding felonies.

Larry and his mother Janice didn't know what to do, so they told the sheriff where he was, and he was arrested. Adam went to Teen Challenge, a Christian ministry dedicated to helping youth overcome addiction. Through his faith in God, love of his parents, and the love of his wife Kelly, he was able to fight back his addiction, although he continued to struggle with it.

With the help of a good recruiter and out of a sense of deep and abiding patriotism for his country, Adam cleaned up his life by enlisting in the Navy. He didn't just enlist to do any job, though, he enlisted to be a Navy SEAL. It entails some of the hardest training our military has. Adam, of course, got his golden trident and went on to display the same kind of fearlessness and relentlessness but also the same joyfulness that so many people in Hot Springs and in Arkansas had known.

As anyone who has been in the military knows, there are always some guys in the unit who are downers, looking on the dark side of things, wondering what was going to go wrong next, and Adam was the antidote to that. He always looked on the bright side, always had a sunny outlook, and always had a helpful word for a friend or buddy. He was always ready to help the unit accomplish the mission.

Adam went through multiple deployments as a Navy SEAL, and there was never any quit in him. In 2003, he was injured in a simulation round during a training exercise with a miniature paint ball that the military uses. Somehow it got underneath his eye protection and hit him in the eye, and as a result he lost his eye, but, as he always did, he looked on the bright side. He got a glass eye with an Arkansas Razorback on it, and he would put on a pirate patch and play pirate with his two little kids, Nathan and Savannah. It didn't stop him from continuing to deploy as a Navy SEAL.

He was later involved in a multicar accident while deployed. His hand was crushed and three fingers were severed. The doctors were able to reattach it, but it could no longer be used. Of course, he was eligible to leave the military because of his combat injury, but he didn't do that. He learned to shoot with the other hand and use his other eye when shooting. In fact, he went on to become a member of SEAL Team Six, the most elite element of the Navy SEAL community.

He continued to deploy and fight but also showed deep compassion. In Afghanistan, he noticed that many of the poor, little Afghan children didn't even have shoes on their feet on the darkest, coldest days of winter, so he arranged for a local pastor in his community to send shoes that he could give to them.

On March 17, 2010, Adam was on a mission high up in the mountains in Afghanistan. His unit came under intense enemy fire. Adam helped to save the lives of his fellow SEALS, taking multiple rounds himself, and he ultimately perished as a result of his wounds. Adam received a hero's welcome in Hot Springs, where he rests today.

Adam's story is about faith, redemption, service, and love. When little boys and little girls drive by that post office in Hot Springs in the future, I hope they ask their parents who Adam Brown was. I hope their parents can tell them his story and inspire them with his example.

I yield the floor.

The PRESIDING OFFICER. The Senator from Connecticut.

CLIMATE CHANGE

Mr. BLUMENTHAL. Mr. President, I come to the floor today to speak, along with a number of my colleagues, about groups that have spun a web of denial and to fight back against the regressive, fallacious, and dangerous rhetoric of climate change deniers. They would disavow the overwhelming evidence of one of our most significant environmental crises. It is not only a quality-of-life challenge, it is a national security crisis in our world today.

As a member of the Armed Services Committee, I know from our military leaders how seriously they take this crisis, which is causing droughts as well as unrest, and the challenges it creates when our military needs to access certain parts of the world. Those consequences are among the national security threats that climate change raises, and deniers do no great service to our national defense.

Connecticut knows firsthand the visible impacts of climate change because we see the mammoth storms that threaten to become the new normal in our world, causing rising tides, destroying homes, literally changing the nature of our shoreline and impacting our quality of life.

No one State can address climate change effectively, and that is why we need the Nation to act together and why climate change denial is so dangerous to our national security, not only in military terms but also in the very real terms of how we conduct our lives in this country. We need a coordinated, comprehensive approach, and yet some groups would have you believe that no action is necessary—none at all. They say that any measures are a waste of time and resources. They say that any measures to stop food supplies from disappearing, forest fires from spreading, and storms from raging are simply unnecessary. They have no evidence to support their claims, but, indeed, they have to distort the evidence that exists even to make those claims.

Just last year, we discovered that Exxon projects into its planning a model that it described for itself as ''too murky to warrant action.'' They planned for themselves but not for the people, including their own customers. They would be ready for climate change but would make sure that no one else could be by adopting a model and making it their business model—or part of it—that implicitly, internally, they felt they could not reveal publicly.

Some groups have adopted more covert efforts to sabotage science. The American Legislative Exchange Council, better known by its acronym

ALEC, denies that its policy denied climate change. ALEC commits to fighting science in the shadows because it has no facts to bring into the sun. Indeed, its proposed bill, the Environmental Literacy Improvement Act—a very innocuous bill—actually seeks to serve as a stamp of approval on teaching climate change denial in science classrooms.

These tactics exist because when groups like ALEC or Americans for Prosperity stand ready to deny the truth, some part of our people will believe it.

One leader of the Americans for Prosperity group, when asked about the science of climate change, responded: ''I don't even want to argue the point. To me, it's not that important.''

This web of denial has consequences. It delays and distorts common awareness and consciousness about the truth and the need to act.

One of my colleagues compared this web of denial to actions of tobacco companies decades ago denying that smoking and tobacco could cause cancer or heart disease or any of the other serious illnesses that tobacco use causes, in addition to the lifetime addiction to nicotine that inevitably was a consequence to so many people who believed those tobacco companies. That web of denial was similar to this one. The tobacco companies knew the truth. They denied it. These deniers also know the truth. Our purpose in being here today is to make sure the American people know it as well.

Groups like ALEC and Americans for Prosperity may receive support from the economic interests that have a stake in hiding the truth, but ultimately the American people need to know it, they need to act on it, and they need to appreciate the motives and interests of the web of denial that is spun so artfully and relentlessly by these groups and the special interests that underlie them and support them.

I wish to thank my colleagues who have come to the floor today, particularly Senator WHITEHOUSE, who has been so instrumental in organizing this group.

I yield the floor.

The PRESIDING OFFICER. The Senator Arkansas.

MORNING BUSINESS

Mr. COTTON. Mr. President, I ask unanimous consent that the Senate be in a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

TRIBUTE TO JUDGE TOM EMBERTON

Mr. MCCONNELL. Mr. President, I wish to pay tribute to a good friend and mentor of mine who is receiving a great honor from his alma mater of Western Kentucky University. Judge Tom Emberton, former chief judge of the Kentucky Court of Appeals and a man with a long career of renowned service, will be honored as a member of WKU's Hall of Distinguished Alumni this October. It is the highest award the university can bestow upon an alumnus.

Judge Emberton recalls that his great aunt began the family tradition of attending WKU, and his mother attended also. Tom met his wife at WKU, and their two children and all but one of their grandchildren attended as well.

Tom was an active member of the WKU community during his time on campus. He was named business manager of the College Heights Herald, elected president of his sophomore and junior classes, and president of his fraternity. He temporarily interrupted his studies to serve in the U.S. Air Force, where he was part of the Strategic Air Command under Gen. Curtis LeMay.

After graduation in 1958, Tom began a long history of public service to the people of Kentucky. In 1965, he was elected county attorney. In 1967, he worked on the winning campaign for Louie Nunn for Governor, the first Republican Governor to be elected in the Bluegrass State in 20 years. After the campaign, Governor Nunn asked Tom to serve as his chief administrative aide.

Tom then became the Republican nominee for Governor himself in 1971. I remember the campaign well, as I worked on it for Tom. I had left my position as a legislative aide here in the U.S. Senate for Kentucky Senator Marlow Cook to go back to Kentucky to work for Tom's campaign because I believed in him and in what he could do for the Commonwealth. Unfortunately, Tom did not win that race, but he certainly emerged from it as a man who had earned admiration and respect around the State. We all knew great things were in store for Tom.

Tom continued to practice law in Barren and Metcalfe counties. Then in the late 1980s, he was appointed by then-Governor Wallace Wilkinson to the Kentucky Court of Appeals. He was reelected to that panel repeatedly and had a long and distinguished career, capped off by being elected chief judge by his fellow judges after several years of service. He held that chief judge slot until his retirement from the bench in 2004.

To this day, Tom is still active in his community with many volunteer and philanthropic activities. He is also an avid reader, and I know one of his favorite places to relax is in his office surrounded by books.

Western Kentucky University has certainly made the right choice in selecting Judge Tom Emberton as a distinguished alumni. My friend Tom is highly deserving of this honor, and I am sure his family is very proud of him and all he has accomplished. I know my U.S. Senate colleagues join me in congratulating Judge Emberton for this recognition and wishing him the very best in his future life endeavors.

Mr. President, area publication the Herald News recently published an article detailing Judge Emberton's life and career. I ask unanimous consent that the article be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the Herald News, June 29, 2016]

JUDGE EMBERTON HONORED BY WKU

(By Shirley Mayrand)

Every couple of years we're reminded of why we're so proud of Judge Tom Emberton. In 2014 he received the Jim C. Coleman Community Service Award, and in October he will join WKU's Hall of Distinguished Alumni during WKU's 2016 Homecomings Celebration at the Sloan Convention Center. It brings back some fond memories.

''Western has always been a part of my life,'' Tom said, ''even from a small first grader. My mother went to Western.'' His mom finished a year of college and then got a teaching job at a Monroe County school where they lived at the time. Tom recalls how she told him as a first grader he could continue to have fun when he got to Western.

The family moved to Metcalfe County right after World War II ended and Tom graduated from Edmonton High School. He attended one semester at Western before going into the U.S. Air Force where he was part of the Strategic Air Command under General Curtis LeMay. ''His mission,'' Tom explained, ''was that if Russia could get an atomic bomb off in this country, that we could respond to that in 15 minutes.''

In 1955, Tom returned home to resume his education at Western. He credits his great aunt with starting the family tradition of attending WKU. She enrolled in 1909, just three years after it opened. (H.H. Cherry purchased full ownership of the school in 1899 and the Southern Normal School part of the institution became Western Kentucky State Normal School in 1906.)

Tom met his wife, Julia there, their two children attended and all but one of their grandchildren.

Tom believes that his active role at WKU was what earned him the honor of being selected for the Hall of Distinguished Alumni. As a student he was named business manager of the College Heights Herald, elected president of his sophomore and junior classes and president of his fraternity.

Continuing on to the University of Louisville to pursue a law degree, he continued student leadership activities. He was the president of the Delta Theta Phi fraternity and president of the Student Bar Association. ''It's those things that the alumni association looked at to see what you'd done, rather than just walk into class.'' Tom got his law degree in 1962 and was elected as county attorney in 1965.

In 1967, Tom was tapped by Louis Nunn to assist in his campaign for governor. When Nunn won the election he asked Tom to move to Frankfort and be his chief administrative aide. At that time a governor could only serve one four-year term. Tom's own bid for the governorship ended after winning the Republican primary, and he returned to the farm at Cave Ridge to practice law in Barren and Metcalfe counties, where he brought Jim C. Coleman in as a law partner.

Around 1976, Tom opened the Southern Mineral coal mine in Hyden (Lesley County), KY. Coal was very lucrative at the time, but within a few years the bottom dropped out and he returned to law once again.

Over his long, successful career, his greatest satisfaction came while serving as a Kentucky Court of Appeals Judge. He was first

appointed around 1988 to fill a vacancy, then was re-elected to the 14-judge panel repeatedly until he retired in 2004 after being elected Chief Judge in 2001. From 2004 to 2009 he was required to substitute as necessary.

''I made the mistake of buying a bunch of cattle. I've been an avid reader all my life, and I made plans that when I retired I was just going to sit up here (in my office) and read. I haven't gotten through ten percent of them and I'm 84 years old.''

Reminiscing once more on WKU, Tom concluded, ''I worked at a filling station greasing cars and changing tires during high school. If it had not been for Western; if Dr. Cherry had decided not to set a building in Bowling Green . . . I'd probably still be doing that today.''

NATIONAL BIOENGINEERED FOOD DISCLOSURE STANDARD

Mr. LEAHY. Mr. President, I wish to join my colleague from Michigan, the ranking member of the Senate Agriculture Committee, Senator STABENOW, in a colloquy regarding the scope of the products that could be labeled under the GMO labeling legislation.

Does the Senator from Michigan believe that the definition of GMO included in this bill prohibits the labeling of highly refined products derived from GMO crops, including soybean oil made from GMO soybeans, high fructose corn syrup made from GMO corn, and sugar made from GMO sugar beets?

Ms. STABENOW. I thank the Senator from Vermont for joining me in this colloquy for the purpose of bringing greater clarity to the definition included in this bill and the scope of GMO products that could be labeled.

The intent of this legislation is to create a national mandatory disclosure standard for GMO foods. This bill gives USDA broad authority to determine, through rulemaking and with important input from the public and scientific community and after review of both State and international laws, what foods will be subject to this bill's mandatory disclosure standard, including highly refined products derived from GMO crops and products developed using gene editing techniques. The USDA general counsel, in a response letter dated July 1, stated that the Department has broad authority under this bill to require labels on GMO foods and products, including all commercially available GMO corn, soybeans, sugar beets, and canola crops used in food today.

To answer your specific question, no, this bill does not prohibit the labeling of highly refined products derived from GMO crops including soybean oil made from GMO soybeans, high fructose corn syrup made from GMO corn, and sugar made from GMO sugar beets.

Mr. LEAHY. Does the Senator from Michigan also believe that the definition of GMO food included in this bill prohibits the labeling of ingredients from plants genetically modified through new and yet to be developed gene editing techniques in addition to the recombinant DNA editing technique mentioned in the bill?

Ms. STABENOW. No, the bill does not prohibit the labeling of products developed using gene editing techniques, including RNAi and CRISPR. Additionally, the bill gives the USDA broad authority to periodically amend its labeling regulations to ensure that there are no new scientific biotechnology methods that may escape any overly prescriptive statutory definition of biotechnology.

Mr. LEAHY. I thank the Senator from Michigan for joining me in this colloquy for the purpose of bringing greater clarity to the congressional intent regarding the definition of GMO products contained in this bill.

I ask unanimous consent that the USDA general counsel's response letter dated July 1, 2016, be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

UNITED STATES DEPARTMENT OF AGRICULTURE,
July 1, 2016.

Hon. DEBBIE STABENOW,
Ranking Member, Senate Committee on Agriculture, Nutrition, and Forestry, Washington, DC.

DEAR SENATOR STABENOW, Thank you for your letter of June 29, 2016, inquiring as to the scope and applicability of the GMO labeling legislation currently pending before the U.S. Senate. The United States Department of Agriculture, as the lead implementing agency, has carefully studied this legislation from legal, program policy, and scientific aspects. I will respond in turn below to the questions raised in your letter.

(1) Please explain whether the GMO Labeling Law provides authority to the USDA to require labeling of food products that contain widely used commodity crops, like corn, soybeans, sugar, and canola, which have been genetically modified, as defined by Section 291(1)?

Section 291(1) of the Senate bill provides authority to include food in the national disclosure program, including all of the commercially grown GMO corn, soybeans, sugar, and canola crops used in food today and reviewed and approved by USDA's Biotechnology Regulatory Service.

(2) Please explain whether the GMO Labeling Law provides authority to the USDA to require labeling of food products that contain genetically modified material, which result from gene editing techniques?

Section 291(1) of the Senate bill provides authority to include food in the national disclosure program, including products of certain gene editing techniques. This would include novel gene editing techniques such as CRISPR when they are used to produce plants or seeds with traits that could not be created with conventional breeding techniques. In addition, the definition provides authority to include RNAi techniques that have been used on products such as the nonbrowning apple and potato.

(3) Please explain whether the GMO Labeling Law provides authority to the USDA to require labeling of food products, which may or may not contain highly refined oils, sugars, or high fructose corn syrup that have been produced or developed from genetic modification techniques, as defined by Section 291(1)?

Section 291(1) of the Senate bill provides authority to include food in the national disclosure program, including products which may or may not contain highly refined oils, sugars, or high fructose corn syrup that have been produced or developed from genetic modification techniques. As a practical matter of implementation, the Department would look not only at the definition in Section 291(1) regarding the genetically modified crops used to produce the refined or extracted materials, but also consider authority provided under Section 293(b)(2)(B) and Section 293(b)(2)(C) with respect to the amount of a bioengineered substance present and other factors and considerations which might deem the product to be considered bioengineered food.

If needed, my team and our USDA programmatic and scientific experts are available to discuss any aspects of the legislation in greater detail at your request. Please do not hesitate to reach out.

Sincerely,

JEFFREY M. PRIETO,
General Counsel.

ASSASSINATIONS OF ENVIRONMENTAL ACTIVISTS

Mr. LEAHY. Mr. President, it has been 4 months and 8 days since Berta Caceres, an internationally respected indigenous Honduran environmental activist, was shot and killed in her home. Ms. Caceres had led her Lenca community in a campaign over several years against the Agua Zarca hydroelectric project financed in part by a Honduran company, Desarrollos Energeticos, DESA, on the Gualcarque River, which the Lenca people consider to be sacred.

Honduran police officers tampered with the crime scene, and they and some Honduran government officials sought early on to falsely depict the killing as a crime of passion. But that dishonest strategy failed, and five individuals were subsequently arrested, including a DESA employee and active duty and retired army officers, for which Honduran Attorney General Oscar Fernando Chinchilla and investigators provided by the U.S. Embassy deserve credit.

It is widely believed, however, that the intellectual authors of that horrific crime remain at large. While the attorney general's investigation is continuing, as it should, I and others have repeatedly called on the Honduran Government to also support a thorough, independent, international investigation of the Caceres case under the auspices of the Inter-American Human Rights Commission. Given Honduras's history of impunity for such crimes and the public's understandable distrust of the justice system, it is imperative that such an inquiry be conducted expeditiously.

Ms. Caceres' death was one of scores of killings in the past decade of environmental activists, journalists, human rights defenders, and other social activists in Honduras. Hardly anyone has been punished for any of those crimes. In fact, the rate of conviction for homicide in Honduras is less than 5 percent.

If that were not bad enough, just 2 weeks after Ms. Caceres's death, Nelson Garcia, another indigenous environmental activist, was fatally shot in Rio

Chiquito after helping dozens of residents move their belongings when government authorities evicted them from land they had occupied.

And on July 6, 2016, Lesbia Janeth Urquia, also a member of the indigenous rights organization COPINH, Civic Council of Popular and Indigenous Organizations of Honduras, which Ms. Caceres led, was found stabbed to death. Her body was left at a municipal garbage dump in the town of Marcala in the western department of La Paz. It is shocking that her death was reportedly one of four murders in a period of 5 days in that town alone, which tragically illustrates the appalling extent of lawlessness in Honduras today.

No one has been arrested for Ms. Urquia's assassination, and it is too soon to assign a motive, but there are disturbing similarities with the Caceres case.

In the first place, before conducting an investigation, the police speculated publicly, without citing any credible evidence, that the crime was the result of a robbery, a family dispute, or extortion. This is what we have come to expect of some members of the Honduran police.

Beyond that, Ms. Urquia had reportedly been at the forefront of a community struggle against a privatized hydroelectric project along the Chinacla River in Marcalas, La Paz. Like Agua Zarca, the Chinacla project has the support of top Honduran Government officials and was being implemented without the consent of the local communities whose lives will be most disrupted by it.

Last year the Congress, with my support, provided $750 million to help El Salvador, Guatemala, and Honduras address the poverty, violence, injustice, and other factors that contribute to the flood of unaccompanied minors to the United States. On June 29, 2016, the Senate Appropriations Committee, again with my support, approved another $650 million for these countries.

A portion of these funds is for direct assistance for their central governments and is subject to the Secretary of State certifying that they have met certain conditions. In the case of Honduras, how that government resolves conflicts with local communities over the exploitation of natural resources, such as the Agua Zarca and Chinacla hydro projects and others like them, and its investigations of the killings of Berta Caceres, Nelson Garcia, Lesbia Urguia, and other activists will factor heavily in whether I will support the release of those funds.

The government's efforts to protect civil society activists and journalists, who for years Honduran Government officials and law enforcement officers have treated as criminals and legitimate targets for threats and attacks, will also be a factor.

I have followed events in El Salvador, Guatemala, and Honduras since the 1980s. I have watched governments in those countries come and go. They have all shared a tolerance for corruption and impunity, and I regret to say that, despite this, they were supported by the United States. Top officials and their families have gotten rich, while the vast majority of the population is trapped in poverty and struggle to survive.

During those years the United States spent billions of dollars on programs purportedly to raise living standards, reform the police, and improve governance. The results have been disappointing. While there are many explanations, I believe the lack of political will on the part of those governments and the willingness of successive U.S. administrations to ignore or excuse the corruption and abuses played a big part. We owe it to the people of those countries and to American taxpayers to not repeat those costly mistakes.

Finally, it is important to note that the persecution and killings of environmental activists is a worldwide phenomenon, as documented by Global Witness in its June 2016 report ''On Dangerous Ground.'' More than three people were killed each week in 2015 defending their land, forests, and rivers against destructive industries.

The report lists 185 killings in 16 countries—the highest annual death toll on record and more than double the number of journalists killed in the same period. In Brazil alone, 50 such activists died. Just last week, we learned of the assassination of Ms. Gloria Capitan, an environmental activist who opposed the construction and presence of coal stockpile facilities in Lucanin, Bataan province of the Philippines.

So in this regard, Honduras is not unique, but its government is seeking substantial economic and security assistance from the United States. In order for us to justify that assistance, the Honduran Government needs to demonstrate that it has met the conditions in our law and is taking the necessary steps to bring those responsible for these crimes to justice.

NATIONAL GASTROPARESIS AWARENESS MONTH

Ms. BALDWIN. Mr. President, I would like to bring attention to the estimated 5 million Americans suffering from gastroparesis in observance of National Gastroparesis Awareness Month in August.

Gastroparesis is a chronic medical condition in which the stomach cannot empty properly in the absence of any observable blockage. The condition can affect people of all ages, but it is four times more likely to affect women than men. The symptoms of gastroparesis, which include nausea, vomiting, and inability to finish a normal-sized meal, can be debilitating and sometimes life threatening. The condition can lead to malnutrition, severe dehydration, and difficulty managing blood glucose levels.

While there is no cure for gastroparesis, some treatments, such as dietary measures, medications, procedures to maintain nutrition, and surgery, can help reduce symptoms. Unfortunately, gastroparesis is a poorly understood condition, and so patients often suffer from delayed diagnosis, treatment, and management of this disorder. As such, further research and education are needed to improve quality of life for this patient population.

I want to recognize the important efforts of the International Foundation for Functional Gastrointestinal Disorders, IFFGD, an international organization based in my home State of Wisconsin, as well as other patient organizations, in providing education and support to help those affected by gastroparesis.

I urge my fellow colleagues to join me in recognizing August as National Gastroparesis Awareness Month in an effort to improve our understanding and awareness of this condition, as well as support increased research for effective treatments for gastroparesis. Furthermore, I encourage the Department of Health and Human Services to recognize and include Gastroparesis Awareness Month in their list of National Health Observances.

Thank you.

TRIBUTE TO GENERAL LLOYD J. AUSTIN III

Mr. McCAIN. Mr. President, today I honor an exceptional military leader and warrior. After nearly 41 years—a lifetime of service to our Nation—GEN Lloyd J. Austin III retired from the U.S. Army, having served most recently as the commander of U.S. Central Command. On this occasion, I believe it is fitting to recognize General Austin's many years of uniformed service to our Nation.

Over the course of his military career spanning more than four decades, General Austin took on many of the toughest assignments; he led troops in combat. Most recently, he served as the combined forces commander, overseeing the military campaign to defeat ISIL in Iraq and Syria. General Austin's stellar career was also filled with a number of firsts. He was the first African American to command an Army division in combat, the first to command an Army corps in combat, the first to command an entire theater of war, and the first African-American Vice Chief of Staff of the Army and commander of U.S. Central Command. But this quiet warrior does not focus on his own accomplishments, and he never takes his eyes away from the mission.

General Austin is a soldier's soldier. He earned a well-deserved reputation as a leader others wanted to follow into battle. On many occasions, they did. Many soldiers have talked about General Austin's inspiring leadership, particularly under demanding conditions, including combat. He was gifted with

the ability to inspire confidence in his troops and young leaders. He always led them from the front, and he ensured they were successful in any and all endeavors. We saw this at the outset of the Iraq war in 2003 when, as the assistant division commander for maneuver for the 3rd Infantry Division, he helped to spearhead the invasion, maneuvering the division from Kuwait to Baghdad in a record 22 days. We saw it in Afghanistan in 2003–2004, when he was the commander of Combined Joint Task Force-180. We saw it again in Iraq in 2008 when, as the commander of Multi-National Corps-Iraq during the period when the surge forces were drawing down, he helped to achieve greater stability in the country. We saw it once more in Iraq in 2010–2011 when, as commander of U.S. Forces-Iraq, he oversaw the successful completion of Operations Iraqi Freedom and New Dawn.

In an age of tweets and blogs, General Austin never seeks the limelight, preferring to let his actions speak for themselves. He is a consummate professional, and our Nation and its Armed Services will feel the loss of this distinguished officer, gifted leader, and highly decorated warrior. I join my fellow members of the Senate Armed Services Committee in expressing my respect and gratitude to GEN Lloyd Austin for his outstanding and selfless service to our Nation. I wish him and his wife, Charlene, all the best.

REMEMBERING COLONEL THOMAS SCHAEFER

Mr. SCHUMER. Mr. President, I come to the floor today to honor a beloved U.S. Air Force hero, COL Thomas E. Schaefer, who sadly passed away on May 31.

In 1979, Colonel Schaefer was among those taken hostage in Iran while serving as a senior military attache to the U.S. Embassy. From November 4, 1979, to January 20, 1981, Colonel Schaefer survived 444 days of captivity, but never allowed his ordeal or his captors to undermine his spirit thanks to a strong faith in God. To keep his mind alert during that time, he read over 250 books, walked over 200 miles in his room to keep warm, and studied German.

Throughout this time, he overcame this adversity with bravery, endurance, and a spirit that became an inspiration for his friends, family, and all Americans—many of whom greeted him with open arms in 1981 following his release when he returned to his hometown, Rochester, NY.

Originally from Rochester, NY, where much of his family and many friends still reside today, Colonel Schaefer made a lasting impact on the community through speaking publically about his experiences. He wanted each and every person to know that they possess an inner strength which allows them to overcome any challenge that may present itself in their lives.

Colonel Schaefer was a brave man, who endured the unthinkable, and his sacrifices should be remembered forever.

Thank you.

REMBERING FELIX AND MARIA NORAT

Mr. SCHUMER. Mr. President, I would like to honor the memory of SGT Felix Norat and his wife, Maria, two remarkable New Yorkers who were interred at Arlington National Cemetery last week. Sergeant Norat was a WWII veteran who served in the Army's 45th Infantry Division. His bravery and heroism earned him a Bronze Star for Valor, as well as a Purple Heart. Maria was a native of Puerto Rico who worked for the War Department in New York City. Maria and Felix were married nearly 70 years, a testament to their love and devotion to one another. I would like to commit their story—a quintessentially American story—to the CONGRESSIONAL RECORD today.

Mr. Norat's unit, the 45th Infantry of the Army, was one of the most battle-tested divisions of the entire war, and Mr. Norat was still among it when the division came to Munich days before the Germans surrendered.

Mr. Norat's late wife, Maria, upon moving to New York, rented a room from her future mother-in-law, who noticed Maria's penmenship and asked her to rewrite her letters to her son who was fighting in Europe. Often, Maria would include a note of her own at the bottom of each letter, encouraging Felix and wishing him well. She later recounted, in an interview with the local newspaper, ''I was telling him how proud we were that he was serving this great country and how beautiful that was,'' she said. ''I never thought I was going to fall in love.''

But that is what happened. When Sergeant Norat returned home and met Maria, it was love at first sight. For Maria, it was nice to meet the man whom she would encouraged and written; love came more gradually. The couple courted for 2 years and married in November 1947. Sergeant Norat attended Brooklyn College for engineering and worked in the construction business after 2 years. He and Maria bought oceanfront property and built the Ocean Beach Motel in Montauk Point, NY.

Though life moved on, the wounds and aftershocks of war did not so quickly fade. Throughout the year after he returned home, if Felix heard anything that resembled a mortar whizzing by, he would instinctively take cover, a result of several close encounters with mortar fire. During the invasion in southern France, he sustained a serious injury from a mortar shell, resulting in an extended hospitalization in Italy and for which he earned a Purple Heart. In his later years, he also recounted the story of a stroll that saved his life. Felix reported that, a few yards into a walk down the trench he shared with three other GIs from the 45th Infantry, a German shell hit close by, killing two of his friends and taking off the arm of the third. Felix often recounted seeing photos of his friends' children and lamented that they ''never knew what happened to their father.''

Felix and Maria sold the motel in 1984, retired, and moved to Naples, FL, a few years later, where they spent their final years in retirement reflecting on the war and on their lives together.

Let the record show that this body recognizes the faithful service of Felix and Maria Norat and their contributions to this country. May their children, grandchildren, and great-grandchildren accept the thanks of a grateful nation.

Thank you.

HONORING OFFICER ASHLEY GUINDON

Ms. AYOTTE. Mr. President, today I rise to recognize the extraordinary life and service of a true hero and dedicated public servant whose time was tragically cut short, Officer Ashley Guindon of Merrimack, NH.

Born and raised in Merrimack, NH, Officer Guindon graduated from Merrimack High School in 2005. She later joined the Marine Corps following graduation, honoring the service of her father, New Hampshire Air National Guard member David Guindon, who passed away after returning from serving in Iraq.

In her high school yearbook she wrote, ''As I take flight it only makes me closer to [you] daddy. Mom, thanks for everything it'll be a long road but we can manage and it will only make [you] stronger.'' Underneath her picture in her high school yearbook, the caption read, ''live for something rather than die for nothing.'' Officer Guindon did live for something. She lived for her country and she answered the call of duty.

Officer Guindon began her career with the Prince William County Police Department in Virginia and was sworn in as a police officer on February 26, 2016. Tragically, she was killed in the line of duty on her first day.

Officer Guindon responded to an emergency call on her first day of duty as an officer with the same sense of professionalism and dedication demonstrated by the very best of our law enforcement community. Officer Guindon responded quickly and compassionately, embodying her true spirit of selflessness. Her caring manner and desire to help those in need will not be forgotten.

Officer Guindon left behind her mother, Sharon, and her beloved family pug, Scout. We are deeply saddened by the loss of Officer Ashley Guindon, an extraordinary young woman who served our country and her community with honor, courage, and dedication. She

represented the very best of our law enforcement community, and it is an honor to recognize her service. She will be truly missed and my thoughts and prayers remain with her family. We will never forget Officer Guindon's service and sacrifice to keep us safe.

ADDITIONAL STATEMENTS

REMEMBERING LIEUTENANT JAMES ''JIMMY'' GERAGHTY

● Ms. AYOTTE. Mr. President, today I wish to recognize and honor the exceptional service and the extraordinary life of New Hampshire State Police Lieutenant James ''Jimmy'' Geraghty of Bedford, NH. I join his family, his friends, and the law enforcement community in New Hampshire in mourning Jim's passing after a courageous battle with cancer. I had the honor of working with Jim over the years, and I know that he made a positive difference for so many people in our State. Jim truly embodied a life of service, a life of heroism, and a life of integrity.

Lieutenant Geraghty served honorably in the U.S. Army for 5 years, where he was stationed at Fort Benning in Georgia, Fort Polk in Louisiana, and Fort Richardson in Arkansas. Ultimately, he earned the rank of sergeant and received an honorable discharge. After courageously serving our Nation, he then returned home to New Hampshire and embarked on a career in law enforcement, first serving as a police officer in the Hudson Police Department, after which he became a trooper for the New Hampshire State police.

Jim was a member of the New Hampshire State police for 24 years and rose to the rank of commander of the New Hampshire State police major crimes unit—a post in which he served until he became ill last year. Lieutenant Geraghty handled some of the most troubling and horrific cases. He always conducted himself with incredible dedication and commitment.

In 2009, Lieutenant Geraghty led the investigation into the brutal Mont Vernon homicide that focused on multiple, juvenile defendants and was a ''complex, and extremely time-consuming investigation.'' Despite these challenges, Jim's thoroughness and professionalism as commander of the major crimes unit allowed the prosecution to successfully convict all the defendants involved.

As New Hampshire's former attorney general, I worked closely with the major crimes unit, and those of us who had the privilege of working with Jim saw his natural talent for leadership and keen ability to work collaboratively with others. He represented the very best of New Hampshire's law enforcement officers.

While Jim was known for his many professional accolades, he was a humble man who never wanted to discuss his accomplishments. Instead, Jim lived by the motto ''family first,'' which was very apparent to anyone who knew him. Jim and his wife, Valerie, were married for 30 years. Together they had four wonderful children—a son, Jimmy, and daughters, Colleen, Katie, and Erin.

I am honored to recognize Lieutenant Jim Geraghty and his tremendous contributions to New Hampshire as the commander of the major crimes unit. Jim was an amazing individual and a committed family man. There is no question that he lived his life with great dedication, courage, and integrity.

We are all deeply saddened by the untimely loss of this true hero, a dear friend, and a beloved father, Lieutenant Jim Geraghty. My thoughts and prayers remain with Valerie, Jimmy, Colleen, Katie, and Erin. I continue to offer my deepest condolences and gratitude for Jim's life and his work. Jim gave so much to New Hampshire and our Nation and truly represented what it means to be an American.●

275TH ANNIVERSARY OF EPPING, NEW HAMPSHIRE

● Ms. AYOTTE. Mr. President, today I wish to honor Epping, NH—a thriving community in Rockingham County that is celebrating the 275th anniversary of its founding. I am proud to join citizens across the Granite State in recognition of this historic event.

The land where Epping stands today was given by the town of Exeter in 1710 as the part of the ''Great Land Giveaway.'' In 1741, Epping officially separated from the town of Exeter and was established under Governor Benning Wentworth during the westward expansion of New Hampshire.

Epping is renowned for its many brickyards that thrive off the town's supply of naturally occurring clay. While the first brickyard did not open until 1840, many previous generations learned the trade and produced their own bricks. Evidence of their hard work is still visible today and indicative of the nature of Epping's residents.

Epping has produced three New Hampshire Governors, the most notable being William Plummer. Governor Plummer was a lawyer, a Baptist preacher, a historian, and an author. He was also one of New England's first weathermen, recording weather conditions daily from 1796 to 1823.

Steeped in a rich history of hard work and dedication, Epping is a shining example of what makes New Hampshire great. This year, on the occasion of Epping's 275th anniversary of its founding, I am proud to join the more than 6,000 residents in celebrating this special milestone and Epping's many wonderful contributions to New Hampshire and our Nation.●

REMEMBERING RONDA BYRD SCOTT

● Mr. DAINES. Mr. President, today I must share some bittersweet news about a beloved Montana woman. After a long life of dedicated service and leadership CSM Ronda Scott passed away on July 7, 2016.

Ronda attended Helena High School in 1972 and receiving her associates degree from Western Montana College Ronda and went on to become an influential member of the National Guard in 1975. Ronda's dedication to her country and her tenacious spirit was rewarded when she was elevated to the rank of command sergeant major, a first for a Montana woman. She served her State, her country, and her fellow soldiers selflessly as a member of the honor guard and served in Operation Iraqi Freedom.

During her 34 years of service, she received multiple honors and distinctions, including the Bronze Star and the Legion of Merit Medal. After retiring in 2009, Ronda continued to dedicate her life to others. However, this time her priorities were her beloved grandchildren and the community of Helena. Not only was she a leader in uniform, she volunteered her time for events and organizations such as Race for the Cure, the American Legion, the Wine Fair, and many other veteran service organizations.

Ronda fought her final battle against bone cancer and graciously lost the ultimate fight we will all face one day. Those close to her say that, despite the circumstances, she never lost her cheerful spirit or love of life. I thank Ronda for her service and the impact she left on the city of Helena—she truly paved the way for Montana women. I hope she finds rest and that her family finds joy in all the wonderful memories she left behind.●

MESSAGES FROM THE HOUSE

ENROLLED BILLS SIGNED

At 10:02 a.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the Speaker has signed the following enrolled bills:

H.R. 1777. An act to amend the Act of August 25, 1958, commonly known as the ''Former Presidents Act of 1958'', with respect to the monetary allowance payable to a former President, and for other purposes.

H.R. 4372. An act to designate the facility of the United States Postal Service located at 15 Rochester Street, Bergen, New York, as the Barry G. Miller Post Office.

H.R. 4960. An act to designate the facility of the United States Postal Service located at 525 N Broadway in Aurora, Illinois, as the ''Kenneth M. Christy Post Office Building''.

The enrolled bills were subsequently signed by the President pro tempore (Mr. HATCH).

The message further announced that the House agrees to the amendment of the Senate to the text of the bill (H.R. 636) to amend the Internal Revenue Code of 1986 to permanently extend increased expensing limitations, and for

other purposes, and agrees to the amendment of the Senate to the title of the bill, with an amendment and an amendment to the title, in which it requests the concurrence of the Senate.

At 2:17 p.m., a message from the House of Representatives, delivered by Mr. Novotny, one of its reading clerks, announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 3178. An act to simplify and streamline the information regarding institutions of higher education made publicly available by the Secretary of Education, and for other purposes.

H.R. 3179. An act to amend the loan counseling requirements under the Higher Education Act of 1965, and for other purposes.

H.R. 4404. An act to require an exercise related to terrorist and foreign fighter travel, and for other purposes.

H.R. 4785. An act to amend the Homeland Security Act of 2002 to direct the Under Secretary for Management of the Department of Homeland Security to make certain improvements in managing the Department's vehicle fleet, and for other purposes.

H.R. 5056. An act to modernize and enhance airport perimeter and access control security by requiring updated risk assessments and the development of security strategies, and for other purposes.

H.R. 5252. An act to designate the United States Customs and Border Protection Port of Entry located at 1400 Lower Island Road in Tornillo, Texas, as the ''Marcelino Serna Port of Entry''.

H.R. 5322. An act to amend the Investment Company Act of 1940 to terminate an exemption for companies located in Puerto Rico, the Virgin Islands, and any other possession of the United States.

H.R. 5385. An act to amend the Homeland Security Act of 2002 to make technical corrections to the requirement that the Secretary of Homeland Security submit quadrennial homeland security reviews, and for other purposes.

H.R. 5469. An act to require the Secretary of the Treasury to direct the United States Executive Director at the International Monetary Fund to support the capacity of the International Monetary Fund to prevent money laundering and financing of terrorism.

H.R. 5485. An act making appropriations for financial services and general government for the fiscal year ending September 30, 2017, and for other purposes.

H.R. 5528. An act to amend the Higher Education Act of 1965 to simplify the FAFSA, and for other purposes.

H.R. 5529. An act to amend the Higher Education Act of 1965 to authorize additional grant activities for Hispanic-serving institutions.

H.R. 5530. An act to amend the Higher Education Act of 1965 to modify certain provisions relating to the capital financing of historically Black colleges and universities.

H.R. 5588. An act to increase, effective as of December 1, 2016, the rates of compensation for veterans with service-connected disabilities and the rates of dependency and indemnity compensation for the survivors of certain disabled veterans, and for other purposes.

H.R. 5594. An act to require the establishment of a national strategy for combating the financing of terrorism and related financial crimes, and for other purposes.

H.R. 5602. An act to amend title 31, United States Code, to authorize the Secretary of the Treasury to include all funds when issuing certain geographic targeting orders, and for other purposes.

H.R. 5607. An act to enhance the Department of the Treasury's role in protecting national security, and for other purposes.

H.R. 5636. An act to increase the effectiveness of and accountability for maintaining the physical security of NIST facilities and the safety of the NIST workforce.

H.R. 5638. An act to provide for the establishment at the Department of Energy of a Solar Fuels Basic Research Initiative.

H.R. 5639. An act to update the National Institute of Standards and Technology Act, and for other purposes.

H.R. 5640. An act to provide for the establishment at the Department of Energy of an Electricity Storage Basic Research Initiative.

The message also announced that the House has agreed to the following concurrent resolution, in which it requests the concurrence of the Senate:

H. Con. Res. 138. Concurrent resolution designating the George C. Marshall Museum and George C. Marshall Research Library in Lexington, Virginia, as the National George C. Marshall Museum and Library.

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 3178. An act to simplify and streamline the information regarding institutions of higher education made publicly available by the Secretary of Education, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

H.R. 3179. An act to amend the loan counseling requirements under the Higher Education Act of 1965, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

H.R. 4404. An act to require an exercise related to terrorist and foreign fighter travel, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

H.R. 4785. An act to amend the Homeland Security Act of 2002 to direct the Under Secretary for Management of the Department of Homeland Security to make certain improvements in managing the Department's vehicle fleet, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

H.R. 5056. An act to modernize and enhance airport perimeter and access control security by requiring updated risk assessments and the development of security strategies, and for other purposes; to the Committee on Commerce, Science, and Transportation.

H.R. 5252. An act to designate the United States Customs and Border Protection Port of Entry located at 1400 Lower Island Road in Tornillo, Texas, as the ''Marcelino Serna Port of Entry''; to the Committee on Environment and Public Works.

H.R. 5322. An act to amend the Investment Company Act of 1940 to terminate an exemption for companies located in Puerto Rico, the Virgin Islands, and any other possession of the United States; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 5385. An act to amend the Homeland Security Act of 2002 to make technical corrections to the requirement that the Secretary of Homeland Security submit quadrennial homeland security reviews, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

H.R. 5469. An act to require the Secretary of the Treasury to direct the United States Executive Director at the International Monetary Fund to support the capacity of the International Monetary Fund to prevent money laundering and financing of terrorism; to the Committee on Foreign Relations.

H.R. 5528. An act to amend the Higher Education Act of 1965 to simplify the FAFSA, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

H.R. 5529. An act to amend the Higher Education Act of 1965 to authorize additional grant activities for Hispanic-serving institutions; to the Committee on Health, Education, Labor, and Pensions.

H.R. 5530. An act to amend the Higher Education Act of 1965 to modify certain provisions relating to the capital financing of historically Black colleges and universities; to the Committee on Health, Education, Labor, and Pensions.

H.R. 5594. An act to require the establishment of a national strategy for combating the financing of terrorism and related financial crimes, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 5602. An act to amend title 31, United States Code, to authorize the Secretary of the Treasury to include all funds when issuing certain geographic targeting orders, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 5607. An act to enhance the Department of the Treasury's role in protecting national security, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 5636. An act to increase the effectiveness of and accountability for maintaining the physical security of NIST facilities and the safety of the NIST workforce; to the Committee on Commerce, Science, and Transportation.

H.R. 5638. An act to provide for the establishment at the Department of Energy of a Solar Fuels Basic Research Initiative; to the Committee on Energy and Natural Resources.

H.R. 5639. An act to update the National Institute of Standards and Technology Act, and for other purposes; to the Committee on Commerce, Science, and Transportation.

H.R. 5640. An act to provide for the establishment at the Department of Energy of an Electricity Storage Basic Research Initiative; to the Committee on Energy and Natural Resources.

The following concurrent resolution was read, and referred as indicated:

H. Con. Res. 138. Concurrent resolution designating the George C. Marshall Museum and George C. Marshall Research Library in Lexington, Virginia, as the National George C. Marshall Museum and Library; to the Committee on Energy and Natural Resources.

MEASURES PLACED ON THE CALENDAR

The following bill was read the first and second times by unanimous consent, and placed on the calendar:

H.R. 5485. An act making appropriations for financial services and general government for the fiscal year ending September 30, 2017, and for other purposes.

MEASURE HELD AT THE DESK

The following measure was ordered held at the desk:

S. 2650. A bill to amend the Internal Revenue Code of 1986 to exclude from gross income any prizes or awards won in competition in the Olympic Games or the Paralympic Games.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–6088. A communication from the Administrator of the Specialty Crops Program, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Oranges and Grapefruit Grown in Lower Rio Grande Valley in Texas; Relaxation of Container and Pack Requirements'' (Docket No. AMS–SC–16–0021) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6089. A communication from the Administrator of the Specialty Crops Program, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Marketing Order Regulating the Handling of Spearmint Oil Produced in the Far West; Salable Quantities and Allotment Percentages for the 2016–2017 Marketing Year'' (Docket No. AMS–SC–15–0074) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6090. A communication from the Administrator of the Specialty Crops Program, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Christmas Tree Promotion, Research, and Information Order; Late Payment and Interest Charges on Past Due Assessments'' (Docket No. AMS–SC–15–0072) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6091. A communication from the Chairman, Farm Credit System Insurance Corporation, transmitting, pursuant to law, the Corporation's annual report for calendar year 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6092. A communication from the Board Chairman and Chief Executive Officer, Farm Credit Administration, transmitting, pursuant to law, the Administration's annual report for calendar year 2015; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6093. A communication from the Chairman and Chief Executive Officer, Farm Credit Administration, transmitting, pursuant to law, the Administration's strategic plan for fiscal years 2016 through 2021; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6094. A communication from the Administrator of the Specialty Crops Program, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Grapes Grown in a Designated Area of Southeastern California; Increased Assessment Rate'' (Docket No. AMS–SC–15–0077) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6095. A communication from the Administrator of the Specialty Crops Program, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''United States Standards for Grades of Processed Raisins'' (Docket No. AMS–FV–14–0087) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6096. A communication from the Administrator of the Specialty Crops Program, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Tart Cherries Grown in the States of Michigan, et al.; Free and Restricted Percentages for the 2015–16 Crop Year for Tart Cherries'' (Docket No. AMS–FV–15–0063) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6097. A communication from the Administrator of the Cotton and Tobacco Programs, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Cotton Board Rules and Regulations: Amending Importer Line-Item De Minimis'' (Docket No. AMS–CN–14–0037) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6098. A communication from the Assistant Secretary of the Army (Manpower and Reserve Affairs), transmitting, pursuant to law, a report on the mobilizations of select reserve units, received in the Office of the President of the Senate on July 7, 2016; to the Committee on Armed Services.

EC–6099. A communication from the Under Secretary of Defense (Acquisition, Technology, and Logistics), transmitting, pursuant to law, a report of a delay in submission of a report relative to the ''Fiscal Year 2015 Inventory of Contracted Services''; to the Committee on Armed Services.

EC–6100. A communication from the Assistant Secretary for Legislative Affairs, Department of the Treasury, transmitting, pursuant to law, the Financial Stability Oversight Council 2016 annual report to Congress; to the Committee on Banking, Housing, and Urban Affairs.

EC–6101. A communication from the General Counsel of the Federal Housing Finance Agency, transmitting, pursuant to law, the report of a rule entitled ''Rules of Practice and Procedure; Civil Money Penalty Inflation Adjustment'' (RIN2590–AA88) received in the Office of the President of the Senate on July 6, 2016; to the Committee on Banking, Housing, and Urban Affairs.

EC–6102. A communication from the Assistant Director for Regulatory Affairs, Office of Foreign Assets Control, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Implementation of the Federal Civil Penalties Inflation Adjustment Act'' (31 CFR Parts 501, 535, 536, 537, 538, 539, 541, 542, 543, 544, 546, 547, 548, 549, 560, 561, 566, 576, 588, 592, 593, 594, 597, and 598) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Banking, Housing, and Urban Affairs.

EC–6103. A communication from the Administrator of the Specialty Crops Program, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Avocados Grown in South Florida; Increased Assessment Rate'' (Docket No. AMS–SC–15–0083) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6104. A communication from the Assistant General Counsel for Legislation, Regulation and Energy Efficiency, Office of Energy Efficiency and Renewable Energy, Department of Energy, transmitting, pursuant to law, the report of a rule entitled ''Energy Conservation Program: Test Procedures for Integrated Light-Emitting Diode Lamps'' ((RIN1904–AC67) (Docket No. EERE–2011–BT–TP–0071)) received during adjournment of the Senate in the Office of the President of the Senate on July 5, 2016; to the Committee on Energy and Natural Resources.

EC–6105. A communication from the Deputy Assistant Secretary for Fish and Wildlife and Parks, National Park Service, Department of the Interior, transmitting, pursuant to law, the report of a rule entitled ''Gathering of Certain Plants or Plant Parts by Federally Recognized Indian Tribes for Traditional Purposes'' (RIN1024–AD84) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Energy and Natural Resources.

EC–6106. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Ocean Disposal; Amendments to Restrictions on Use of Dredged Material Disposal Sites in the Central and Western Regions of Long Island Sound; Connecticut'' (FRL No. 9948–61–Region 1) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Environment and Public Works.

EC–6107. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''National Emission Standards for Hazardous Air Pollutant Emissions: Petroleum Refinery Sector Amendments'' (FRL No. 9948–92–OAR) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Environment and Public Works.

EC–6108. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Expedited Approval of Alternative Test Procedures for the Analysis of Contaminants Under the Safe Drinking Water Act; Analysis and Sampling Procedures'' (FRL No. 9948–54–OW) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Environment and Public Works.

EC–6109. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Determination of Attainment; Atlanta; Georgia; 2008 Ozone National Ambient Air Quality Standards'' (FRL No. 9948–93–Region 4) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Environment and Public Works.

EC–6110. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval of Iowa's Air Quality Implementation Plans; Polk County Board of Health Rules and Regulations, Chapter V, Revisions'' (FRL No. 9948–84–Region 7) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Environment and Public Works.

EC–6111. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; Washington: Spokane Second 10-Year Carbon Monoxide Limited Maintenance Plan'' (FRL No. 9948–97–Region 10) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Environment and Public Works.

EC–6112. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Air Plan Approval; NC; Fine Particulate Matter National Ambient Air Quality Standards Revision'' (FRL No. 9948–95–Region 4) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Environment and Public Works.

EC–6113. A communication from the Assistant Secretary of the Army (Civil Works), transmitting, pursuant to law, a report relative to the deauthorization of the Green

River Locks and Dams 3, 4, 5, and 6 and Barren River Lock and Dam 1; to the Committee on Environment and Public Works.

EC–6114. A communication from the Assistant Secretary of the Army (Civil Works), transmitting, pursuant to law, a report relative to the Turkey Creek Basin Flood Risk Management project, Merriam, Kansas; to the Committee on Environment and Public Works.

EC–6115. A communication from the Inspector General, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Part D Plans Generally Include Drugs Commonly Used by Dual Eligibles: 2016''; to the Committee on Finance.

EC–6116. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''2015 Actuarial Report on the Financial Outlook for Medicaid''; to the Committee on Finance.

EC–6117. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report required by the Medicare Access and CHIP Reauthorization Act of 2015 (MACRA); to the Committee on Finance.

EC–6118. A communication from the Regulations Coordinator, Centers for Medicare and Medicaid Services, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Medicare Program: Expanding Uses of Medicare Data by Qualified Entities'' ((RIN0938–AS66) (CMS–5061–F)) received during adjournment of the Senate in the Office of the President of the Senate on July 5, 2016; to the Committee on Finance.

EC–6119. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Alternative Payment Models & Medicare Advantage''; to the Committee on Finance.

EC–6120. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Country-by-Country Reporting'' ((RIN1545–BM70) (TD 9773)) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Finance.

EC–6121. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Geographical Areas Included in the 'North American Area' for Purposes of I.R.C. 274(h)'' (Rev. Rul. 2016–16) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Finance.

EC–6122. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Proposed Qualified Intermediary Agreement'' (Notice 2016–42) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Finance.

EC–6123. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, the semiannual report on the continued compliance of Azerbaijan, Kazakhstan, Tajikistan, and Uzbekistan with the 1974 Trade Act's freedom of emigration provisions, as required under the Jackson-Vanik Amendment; to the Committee on Finance.

EC–6124. A communication from the Regulations Coordinator, National Institute for Occupational Safety and Health, Centers for Disease Control and Prevention, transmitting, pursuant to law, the report of a rule entitled ''World Trade Center Health Program; Addition of New-Onset Chronic Obstructive Pulmonary Disease and WTC-Related Acute Traumatic Injury to the List of WTC–Related Health Conditions'' (RIN0920–AA61) received during adjournment of the Senate in the Office of the President of the Senate on July 5, 2016; to the Committee on Health, Education, Labor, and Pensions.

EC–6125. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''Best Pharmaceuticals for Children Act and Pediatric Research Equity Act''; to the Committee on Health, Education, Labor, and Pensions.

EC–6126. A communication from the Principal Deputy Assistant Secretary for Policy, Office of the Secretary, Department of Labor, transmitting, pursuant to law, the report of a rule entitled ''Department of Labor Federal Civil Penalties Inflation Adjustment Act Catch-Up Adjustments'' (RIN1290–AA31) received in the Office of the President of the Senate on July 6, 2016; to the Committee on Health, Education, Labor, and Pensions.

EC–6127. A communication from the Regulations Coordinator, Substance Abuse and Mental Health Services Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Medication Assisted Treatment for Opioid Use Disorders'' (RIN0930–AA22) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Health, Education, Labor, and Pensions.

EC–6128. A communication from the District of Columbia Auditor, transmitting, pursuant to law, a report entitled ''Certification of Fiscal Year 2016 Total Local Source General Fund Revenue Estimate (Net of Dedicated Taxes) in Support of the District's Issuance of $431,815,000 in General Obligation Bonds (Series 2016A)''; to the Committee on Homeland Security and Governmental Affairs.

EC–6129. A communication from the District of Columbia Auditor, transmitting, pursuant to law, a report entitled ''Customer Service Tests of Seven Large Agencies Show Mixed Results''; to the Committee on Homeland Security and Governmental Affairs.

EC–6130. A communication from the Executive Director, United States Access Board, transmitting, pursuant to law, the Board's fiscal year 2015 annual report relative to the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002; to the Committee on Homeland Security and Governmental Affairs.

EC–6131. A communication from the Secretary of the Treasury, transmitting, pursuant to law, the Semi-Annual Report of the Inspector General for the period from October 1, 2015 through March 31, 2016 and the Semi-Annual Report of the Treasury Inspector General for Tax Administration (TIGTA); to the Committee on Homeland Security and Governmental Affairs.

EC–6132. A communication from the Attorney-Advisor, Customs and Border Protection, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Civil Monetary Penalty Adjustments for Inflation'' (RIN1601–AA80) received in the Office of the President of the Senate on July 6, 2016; to the Committee on Homeland Security and Governmental Affairs.

EC–6133. A communication from the Chairman of the National Transportation Safety Board, transmitting, pursuant to law, a report relative to the activities performed by the agency that are not inherently governmental functions; to the Committee on Homeland Security and Governmental Affairs.

EC–6134. A communication from the Assistant Secretary for Legislation, Department of Health and Human Services, transmitting, pursuant to law, a report entitled ''The 2016 Indian Health Service and Tribal Health Care Facilities' Needs Assessment Report to Congress''; to the Committee on Indian Affairs.

EC–6135. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pollock in Statistical Area 610 in the Gulf of Alaska'' (RIN0648–XE420) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6136. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pollock in Statistical Area 630 in the Gulf of Alaska'' (RIN0648–XE414) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6137. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod by Vessels Using Pot Gear in the Western Regulatory Area of the Gulf of Alaska'' (RIN0648–XE457) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6138. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Longnose Skate in the Western Regulatory Area of the Gulf of Alaska'' (RIN0648–XE589) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6139. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pollock in Statistical Area 630 in the Gulf of Alaska'' (RIN0648–XE462) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6140. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod in the Central Regulatory Area of the Gulf of Alaska'' (RIN0648–XE496) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6141. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod by Catcher Vessels Less Than 60 Feet (18.3 Meters) Length Overall Using Hook-and-Line or Pot Gear in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XE430) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6142. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled

''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod by Catch/Processors Using Trawl Gear in the Western Regulatory Area of the Gulf of Alaska'' (RIN0648–XE426) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6143. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Atka Mackerel in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XE415) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6144. A communication from the Deputy Assistant Administrator, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Bering Sea and Aleutian Islands; Final 2016 and 2017 Harvest Specifications for Groundfish'' (RIN0648–XE202) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6145. A communication from the Deputy Assistant Administrator, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Gulf of Alaska; Final 2016 and 2017 Harvest Specifications for Groundfish'' (RIN0648–XE130) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6146. A communication from the Assistant Administrator for Fisheries, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Observer Coverage Requirements for Small Catcher/Processors in the Gulf of Alaska and Bering Sea and Aleutian Islands Groundfish Fisheries'' (RIN0648–BF36) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6147. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Pacific Cod in the Central Regulatory Area of the Gulf of Alaska'' (RIN0648–XE519) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6148. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic: 2015 Commercial Accountability Measure and Closure for South Atlantic Snowy Grouper'' (RIN0648–XE666) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6149. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic: Re-Opening of Commercial Sector for South Atlantic Gray Triggerfish; January Through June Season'' (RIN0648–XE606) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6150. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Northeastern United States; Atlantic Sea Scallop Fishery; Closure of the Nantucket Lightship North Access Area to General Category Individual Fishing Quota Scallop Vessels'' (RIN0648–XE681) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6151. A communication from the Deputy Assistant Administrator for Regulatory Programs, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Caribbean, Gulf of Mexico, and South Atlantic; Reef Fish Fishery of the Gulf of Mexico; Gag Management Measures'' (RIN0648–BF70) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6152. A communication from the Management and Program Analyst, Federal Aviation Administration, Department of Transportation, transmitting, pursuant to law, the report of a rule entitled ''Airworthiness Directives; Bombardier, Inc. Airplanes'' ((RIN2120–AA64) (Docket No. FAA–2015–2457)) received in the Office of the President of the Senate on July 6, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6153. A communication from the Assistant Administrator for Procurement, National Aeronautics and Space Administration, transmitting, pursuant to law, the report of a rule entitled ''NASA Federal Acquisition Regulation Supplement: Removal of Grant Handbook References'' (RIN2700–AE27) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

EC–6154. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Northeastern United States; Northeast Multispecies Fishery; Trimester Total Allowable Catch Area Closure for the Common Pool Fishery'' (RIN0648–XE683) received in the Office of the President of the Senate on July 7, 2016; to the Committee on Commerce, Science, and Transportation.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. JOHNSON, from the Committee on Homeland Security and Governmental Affairs, with an amendment in the nature of a substitute:

H.R. 3361. A bill to amend the Homeland Security Act of 2002 to establish the Insider Threat Program, and for other purposes (Rept. No. 114–297).

By Mr. HATCH, from the Committee on Finance, without amendment:

S. 3156. An original bill to provide enhanced protections for taxpayers from fraud and other illegal activities, and for other purposes (Rept. No. 114–298).

S. 3157. An original bill to prevent taxpayer identity theft and tax refund fraud, and for other purposes (Rept. No. 114–299).

By Mr. JOHNSON, from the Committee on Homeland Security and Governmental Affairs, with an amendment in the nature of a substitute:

H.R. 1557. A bill to amend the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 to strengthen Federal antidiscrimination laws enforced by the Equal Employment Opportunity Commission and expand accountability within the Federal government, and for other purposes (Rept. No. 114–300).

S. 461. A bill to provide for alternative financing arrangements for the provision of certain services and the construction and maintenance of infrastructure at land border ports of entry, and for other purposes.

S. 2509. A bill to improve the Government-wide management of Federal property.

EXECUTIVE REPORTS OF COMMITTEE

The following executive reports of nominations were submitted:

By Mr. MCCAIN for the Committee on Armed Services.

Susan S. Gibson, of Virginia, to be Inspector General of the National Reconnaissance Office.

*Dimitri Frank Kusnezov, of California, to be Deputy Administrator for Defense Programs, National Nuclear Security Administration.

*Gail H. Marcus, of Maryland, to be a Member of the Defense Nuclear Facilities Safety Board for a term expiring October 18, 2018.

Navy nomination of Rear Adm. (lh) William J. Galinis, to be Rear Admiral.

Navy nomination of Rear Adm. (lh) Christian D. Becker, to be Rear Admiral.

Navy nomination of Rear Adm. (lh) Bruce L. Gillingham, to be Rear Admiral.

Navy nomination of Capt. Troy M. McClelland, to be Rear Admiral (lower half).

Navy nomination of Capt. Ronny L. Jackson, to be Rear Admiral (lower half).

Navy nomination of Rear Adm. Luke M. McCollum, to be Vice Admiral.

Air Force nomination of Maj. Gen. Steven M. Shepro, to be Lieutenant General.

Army nomination of Brig. Gen. Tammy S. Smith, to be Major General.

Army nomination of Brig. Gen. Brian E. Alvin, to be Major General.

Army nomination of Col. Richard J. Heitkamp, to be Brigadier General.

Army nomination of Col. Miles A. Davis, to be Brigadier General.

Army nomination of Col. Fletcher V. Washington, to be Brigadier General.

Army nomination of Col. Nikki L. Griffin Olive, to be Brigadier General.

Navy nomination of Capt. Darius Banaji, to be Rear Admiral (lower half).

Navy nomination of Capt. Tina A. Davidson, to be Rear Admiral (lower half).

Navy nomination of Capt. Gayle D. Shaffer, to be Rear Admiral (lower half).

Navy nomination of Capt. Frank D. Whitworth, to be Rear Admiral (lower half).

Navy nomination of Capt. Stephanie T. Keck, to be Rear Admiral (lower half).

Navy nominations beginning with Capt. David A. Goggins and ending with Capt. Douglas W. Small, which nominations were received by the Senate and appeared in the Congressional Record on June 29, 2016.

Navy nominations beginning with Capt. Richard D. Heinz and ending with Capt. John T. Palmer, which nominations were received by the Senate and appeared in the Congressional Record on June 29, 2016.

Navy nominations beginning with Capt. Carl P. Chebi and ending with Capt. Michael A. Wettlaufer, which nominations were received by the Senate and appeared in the Congressional Record on June 29, 2016.

Mr. MCCAIN. Mr. President, for the Committee on Armed Services I report favorably the following nomination lists which were printed in the RECORDS on the dates indicated, and ask unanimous consent, to save

the expense of reprinting on the Executive Calendar that these nominations lie at the Secretary's desk for the information of Senators .

The PRESIDING OFFICER. Without objection, it is so ordered.

Air Force nominations beginning with Walter W. Bean and ending with Scott L. Rummage, which nominations were received by the Senate and appeared in the Congressional Record on May 18, 2016.

Air Force nominations beginning with Jennifer D. Bankston and ending with William F. Wolfe, which nominations were received by the Senate and appeared in the Congressional Record on May 18, 2016.

Air Force nominations beginning with Richard D. Betzold and ending with Jennifer E. Tonneson, which nominations were received by the Senate and appeared in the Congressional Record on June 28, 2016.

Air Force nominations beginning with Stefanie L. Shaver and ending with William J. Bridgham, which nominations were received by the Senate and appeared in the Congressional Record on June 28, 2016.

Air Force nomination of Erol Agi, to be Lieutenant Colonel.

Army nomination of Joshua D. Wright, to be Colonel.

Army nomination of Phillip W. Neal, to be Lieutenant Colonel.

Army nomination of Nathan D. Schroeder, to be Major.

Army nomination of Renee V. Scott, to be Major.

Army nomination of Keith D. Blodgett, to be Colonel.

Army nominations beginning with Jeffrey M. Alston and ending with Michael J. Turley, which nominations were received by the Senate and appeared in the Congressional Record on June 28, 2016.

Army nomination of Steven C. Loos, to be Major.

Army nomination of Daniel W. M. Mackle, to be Colonel.

Army nomination of Michael P. Lindsay, to be Major.

Army nomination of Brando S. Jobity, to be Major.

Army nomination of David C. Martin, to be Major.

Navy nominations beginning with Gregory A. Verlinde and ending with David T. Wright, which nominations were received by the Senate and appeared in the Congressional Record on July 7, 2016.

*Nomination was reported with recommendation that it be confirmed subject to the nominee's commitment to respond to requests to appear and testify before any duly constituted committee of the Senate.

(Nominations without an asterisk were reported with the recommendation that they be confirmed.)

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. HATCH:

S. 3156. An original bill to provide enhanced protections for taxpayers from fraud and other illegal activities, and for other purposes; from the Committee on Finance; placed on the calendar.

By Mr. HATCH:

S. 3157. An original bill to prevent taxpayer identity theft and tax refund fraud, and for other purposes; from the Committee on Finance; placed on the calendar.

By Mr. LEE (for himself and Mr. SASSE):

S. 3158. A bill to promote economic opportunity for military families, to facilitate workforce attachment for military spouses in their chosen occupation across multiple geographical postings, to reduce barriers to work on military installations, to amend the District of Columbia Code to promote greater freedom in the practice of regulated occupations, to combat abuse of occupational licensing laws by economic incumbents, to promote competition, encourage innovation, protect consumers, and promote compliance with Federal antitrust law, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mr. HEINRICH (for himself, Mr. HELLER, Mr. SCHATZ, Mr. FRANKEN, Mr. MERKLEY, Mr. KING, Mr. REED, Ms. HIRONO, and Mrs. GILLIBRAND):

S. 3159. A bill to amend the Internal Revenue Code of 1986 to provide tax credits for energy storage technologies, and for other purposes; to the Committee on Finance.

By Mr. PERDUE (for himself, Mr. SASSE, Mr. ISAKSON, and Mr. RISCH):

S. 3160. A bill to require all Department of State employees to use Department-managed email accounts and telephonic systems for all work-related electronic communications, to require the Secretary of State to submit an annual report to Congress on any security violations within the Department, to provide training to Department of State employees on the rules and procedures governing the appropriate handling of classified information, to reform the process for identifying and archiving classified information, and for other purposes; to the Committee on Foreign Relations.

By Mr. GRASSLEY:

S. 3161. A bill to include the Secretary of Agriculture on the Committee on Foreign Investment in the United States and to provide for the consideration by that Committee of the national security effects of foreign investment on agricultural assets; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. REED (for himself and Mr. HELLER):

S. 3162. A bill to provide for the consideration of energy storage systems by electric utilities as part of a supply side resource process, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. MENENDEZ (for himself, Mr. MARKEY, Mr. REED, Mr. DURBIN, Ms. MIKULSKI, Mr. FRANKEN, Mr. MERKLEY, Mr. WHITEHOUSE, Mr. NELSON, Mr. PETERS, and Mr. BOOKER):

S. 3163. A bill to amend the Internal Revenue Code of 1986 to require oil polluters to pay the full cost of oil spills, and for other purposes; to the Committee on Finance.

By Mrs. SHAHEEN:

S. 3164. A bill to provide protection for survivors of domestic violence or sexual assault under the Fair Housing Act; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. MENENDEZ (for himself, Mr. MARKEY, Mr. REED, Mr. DURBIN, Ms. MIKULSKI, Mr. FRANKEN, Mr. MERKLEY, Mr. WHITEHOUSE, Mr. NELSON, Mr. PETERS, and Mr. BOOKER):

S. 3165. A bill to amend the Oil Pollution Act of 1990 to require oil polluters to pay the full cost of oil spills, and for other purposes; to the Committee on Environment and Public Works.

By Mr. GRASSLEY (for himself and Mr. SCHATZ):

S. 3166. A bill to direct the Secretary of Health and Human Services to conduct a study on the designation of surgical health professional shortage areas; to the Committee on Health, Education, Labor, and Pensions .

By Mr. MANCHIN (for himself, Mrs. CAPITO, Ms. MIKULSKI, and Mr. CARDIN):

S. 3167. A bill to establish the Appalachian Forest National Heritage Area, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. MURPHY (for himself, Mr. SANDERS, Mr. BLUMENTHAL, Mr. MARKEY, Mrs. GILLIBRAND, and Ms. WARREN):

S. 3168. A bill to amend the Elementary and Secondary Education Act of 1965 to establish the Stronger Together Program; to the Committee on Health, Education, Labor, and Pensions.

By Mr. ALEXANDER:

S. 3169. A bill to support basic energy research and eliminate the wind production tax credit; to the Committee on Finance.

By Mr. RUBIO:

S. 3170. A bill to amend title 38, United States Code, to provide for the removal or demotion of employees of the Department of Veterans Affairs based on performance or misconduct, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. MARKEY (for himself and Mr. BLUMENTHAL):

S. 3171. A bill to prohibit the transfer, loan, or other disposition of a machinegun or semiautomatic assault weapon to an individual under 16 years of age; to the Committee on the Judiciary.

By Mr. BENNET (for himself, Mr. CRAPO, Mr. TESTER, and Mr. RISCH):

S. 3172. A bill to amend the Robert T. Stafford Disaster Relief and Emergency Assistance Act to provide for certain wildfire mitigation assistance; to the Committee on Homeland Security and Governmental Affairs .

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. GARDNER (for himself, Mr. MCCAIN, Mr. COTTON, Mr. SULLIVAN, Mr. RUBIO, and Mrs. ERNST):

S. Res. 526. A resolution calling for all parties to respect the arbitral tribunal ruling with regard to the South China Sea and to express United States policy on freedom of navigation and overflight in the East and South China Seas; to the Committee on Foreign Relations.

By Mr. UDALL (for himself, Ms. MIKULSKI, and Mr. LEAHY):

S. Res. 527. A resolution recognizing the 75th anniversary of the opening of the National Gallery of Art; to the Committee on Rules and Administration.

By Mr. ALEXANDER (for himself, Mr. BURR, Mr. COCHRAN, Mr. CORKER, Mr. ISAKSON, Mr. KAINE, Mr. PERDUE, Mr. SHELBY, Mr. TILLIS, Mr. WARNER, and Mr. WICKER):

S. Res. 528. A resolution commending the Tennessee Valley Authority on the 80th anniversary of the unified development of the Tennessee River system; considered and agreed to.

By Mr. BOOKER (for himself and Mr. HATCH):

S. Res. 529. A resolution calling upon the Government of the Islamic Republic of Iran to release Iranian-Americans Siamak Namazi and his father, Baquer Namazi; to the Committee on Foreign Relations.

By Mr. NELSON (for himself and Ms. COLLINS):

S. Con. Res. 46. A concurrent resolution expressing support for the goal of ensuring that all Holocaust victims live with dignity, comfort, and security in their remaining years, and urging the Federal Republic of Germany to continue to reaffirm its commitment to comprehensively address the unique health and welfare needs of vulnerable Holocaust victims, including home care and other medically prescribed needs; to the Committee on Foreign Relations.

ADDITIONAL COSPONSORS

S. 214

At the request of Mr. MENENDEZ, the name of the Senator from Hawaii (Ms. HIRONO) was added as a cosponsor of S. 214, a bill to amend the Securities Exchange Act of 1934 to require shareholder authorization before a public company may make certain political expenditures, and for other purposes.

S. 314

At the request of Mr. GRASSLEY, the name of the Senator from Maine (Mr. KING) was added as a cosponsor of S. 314, a bill to amend title XVIII of the Social Security Act to provide for coverage under the Medicare program of pharmacist services.

S. 386

At the request of Mr. THUNE, the names of the Senator from Illinois (Mr. KIRK) and the Senator from Florida (Mr. RUBIO) were added as cosponsors of S. 386, a bill to limit the authority of States to tax certain income of employees for employment duties performed in other States.

S. 524

At the request of Mr. PORTMAN, the name of the Senator from Tennessee (Mr. ALEXANDER) was added as a cosponsor of S. 524, to authorize the Attorney General and Secretary of Health and Human Services to award grants to address the national epidemics of prescription opioid abuse and heroin use, and to provide for the establishment of an inter-agency task force to review, modify, and update best practices for pain management and prescribing pain medication, and for other purposes.

S. 772

At the request of Mr. CARDIN, the names of the Senator from Oregon (Mr. MERKLEY), the Senator from Hawaii (Mr. SCHATZ) and the Senator from Hawaii (Ms. HIRONO) were added as cosponsors of S. 772, a bill to secure the Federal voting rights of persons when released from incarceration.

S. 773

At the request of Mrs. MURRAY, the name of the Senator from Massachusetts (Ms. WARREN) was added as a cosponsor of S. 773, a bill to prevent harassment at institutions of higher education, and for other purposes.

S. 979

At the request of Mr. NELSON, the name of the Senator from Washington (Mrs. MURRAY) was added as a cosponsor of S. 979, a bill to amend title 10, United States Code, to repeal the requirement for reduction of survivor annuities under the Survivor Benefit Plan by veterans' dependency and indemnity compensation, and for other purposes.

S. 1139

At the request of Ms. KLOBUCHAR, the name of the Senator from Hawaii (Ms. HIRONO) was added as a cosponsor of S. 1139, a bill to amend the Help America Vote Act of 2002 to require States to provide for same day registration.

S. 1538

At the request of Mr. DURBIN, the name of the Senator from Delaware (Mr. COONS) was added as a cosponsor of S. 1538, a bill to reform the financing of Senate elections, and for other purposes.

S. 2067

At the request of Mr. WICKER, the name of the Senator from Montana (Mr. TESTER) was added as a cosponsor of S. 2067, a bill to establish EUREKA Prize Competitions to accelerate discovery and development of disease-modifying, preventive, or curative treatments for Alzheimer's disease and related dementia, to encourage efforts to enhance detection and diagnosis of such diseases, or to enhance the quality and efficiency of care of individuals with such diseases.

S. 2126

At the request of Ms. CANTWELL, the name of the Senator from New Mexico (Mr. HEINRICH) was added as a cosponsor of S. 2126, a bill to reauthorize the women's business center program of the Small Business Administration, and for other purposes.

S. 2175

At the request of Mr. TESTER, the name of the Senator from Maine (Mr. KING) was added as a cosponsor of S. 2175, a bill to amend title 38, United States Code, to clarify the role of podiatrists in the Department of Veterans Affairs, and for other purposes.

S. 2217

At the request of Mr. BLUNT, the name of the Senator from Wyoming (Mr. BARRASSO) was added as a cosponsor of S. 2217, a bill to amend the Federal Food, Drug, and Cosmetic Act to improve and clarify certain disclosure requirements for restaurants and similar retail food establishments, and to amend the authority to bring proceedings under section 403A.

S. 2373

At the request of Ms. CANTWELL, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. 2373, a bill to amend title XVIII of the Social Security Act to provide for Medicare coverage of certain lymphedema compression treatment items as items of durable medical equipment.

S. 2655

At the request of Mr. CARDIN, the name of the Senator from Vermont (Mr. LEAHY) was added as a cosponsor of S. 2655, a bill to amend the Internal Revenue Code of 1986 to improve the historic rehabilitation tax credit, and for other purposes.

S. 2750

At the request of Mr. WYDEN, the name of the Senator from Indiana (Mr. DONNELLY) was added as a cosponsor of S. 2750, a bill to amend the Internal Revenue Code to extend and modify certain charitable tax provisions.

S. 2774

At the request of Mr. MORAN, the name of the Senator from Wyoming (Mr. BARRASSO) was added as a cosponsor of S. 2774, a bill to amend the Internal Revenue Code of 1986 to exclude from gross income certain amounts realized on the disposition of property raised or produced by a student farmer, and for other purposes.

S. 2791

At the request of Mr. FRANKEN, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 2791, a bill to amend title 38, United States Code, to provide for the treatment of veterans who participated in the cleanup of Enewetak Atoll as radiation exposed veterans for purposes of the presumption of service-connection of certain disabilities by the Secretary of Veterans Affairs.

S. 2904

At the request of Mr. WHITEHOUSE, the name of the Senator from Maine (Mr. KING) was added as a cosponsor of S. 2904, a bill to amend title II of the Social Security Act to eliminate the five month waiting period for disability insurance benefits under such title for individuals with amyotrophic lateral sclerosis.

S. 2927

At the request of Mr. LANKFORD, the name of the Senator from Oklahoma (Mr. INHOFE) was added as a cosponsor of S. 2927, a bill to prevent governmental discrimination against providers of health services who decline involvement in abortion, and for other purposes.

S. 3026

At the request of Mr. SCHUMER, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 3026, a bill to amend the Communications Act of 1934 to expand and clarify the prohibition on inaccurate caller identification information and to require providers of telephone service to offer technology to subscribers to reduce the incidence of unwanted telephone calls, and for other purposes.

S. 3032

At the request of Mr. ISAKSON, the name of the Senator from Illinois (Mr. KIRK) was added as a cosponsor of S. 3032, a bill to provide for an increase, effective December 1, 2016, in the rates of compensation for veterans with service-connected disabilities and the rates of dependency and indemnity compensation for the survivors of certain disabled veterans, and for other purposes.

S. 3083

At the request of Mr. MENENDEZ, the names of the Senator from Illinois (Mr. DURBIN), the Senator from Mississippi

(Mr. WICKER), the Senator from Oregon (Mr. MERKLEY) and the Senator from Florida (Mr. RUBIO) were added as cosponsors of S. 3083, a bill to provide housing opportunities in the United States through modernization of various housing programs, and for other purposes.

S. 3132

At the request of Mrs. FISCHER, the name of the Senator from Virginia (Mr. KAINE) was added as a cosponsor of S. 3132, a bill to direct the Secretary of Veterans Affairs to carry out a pilot program to provide service dogs to certain veterans with severe post-traumatic stress disorder.

S. 3134

At the request of Ms. BALDWIN, the names of the Senator from Minnesota (Mr. FRANKEN) and the Senator from Massachusetts (Mr. MARKEY) were added as cosponsors of S. 3134, a bill to improve Federal population surveys by requiring the collection of voluntary, self-disclosed information on sexual orientation and gender identity in certain surveys, and for other purposes.

S. 3147

At the request of Ms. HIRONO, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 3147, a bill to support educational entities in fully implementing title IX and reducing and preventing sex discrimination in all areas of education.

S. CON. RES. 43

At the request of Mrs. FEINSTEIN, the name of the Senator from Utah (Mr. HATCH) was added as a cosponsor of S. Con. Res. 43, a concurrent resolution supporting the bid of Los Angeles, California, to bring the 2024 Summer Olympic Games back to the United States and pledging the cooperation of Congress with respect to that bid.

S. RES. 521

At the request of Ms. AYOTTE, the name of the Senator from Rhode Island (Mr. WHITEHOUSE) was added as a cosponsor of S. Res. 521, a resolution expressing support for the designation of September 2016 as National Ovarian Cancer Awareness Month.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. REED (for himself and Mr. HELLER):

S. 3162. A bill to provide for the consideration of energy storage systems by electric utilities as part of a supply side resource process, and for other purposes; to the Committee on Energy and Natural Resources.

Mr. REED. Mr. President, today, along with my colleague Senator HELLER, I am introducing the Storage Technology for Operational Readiness and Generating Energy Act, or STORAGE Act. I thank Senator HELLER for his work with me on this bipartisan bill.

The advent of energy storage capacity means unused energy from renewable sources can be made available for use when needed, rather than wasted. As a result, advances in energy storage can help improve the reliability, resiliency, and flexibility of the grid, as well as reduce the potential for future rate increases for consumers.

To further encourage the research and development of energy storage, the legislation we are introducing authorizes the Secretary of Energy to coordinate efforts among various existing programs at the Department of Energy. By streamlining these energy storage research and development programs, we hope we will maximize efficiency of funds and expand this vital research. I am pleased that the Senate has already included an amendment I offered with Senator HELLER to add these provisions as part of the Energy Policy Modernization Act that we passed earlier this year.

Our bill also amends the Public Utility Regulatory Policies Act of 19781, or PURPA, to add energy storage systems to the list of strategies states should consider when developing their energy plan in an effort to promote energy conservation and greater use of domestic energy. The bill does not mandate the implementation of this or any technology. Rather it simply encourages states to analyze whether energy storage would provide benefits to the overall system. I look forward to working with Senator HELLER and our colleagues to also find a path forward for these provisions.

I urge our colleagues to join in supporting the STORAGE Act and taking commonsense steps to advance energy storage technology.

By Mr. ALEXANDER:

S. 3169. A bill to support basic energy research and eliminate the wind production tax credit; to the Committee on Finance.

Mr. ALEXANDER. Mr. President, I am here to talk about the importance of doubling funding for basic energy research and making $8.1 billion available in the Federal budget to pay for it.

The United States does many things well, but one thing we do better than any other country in the world is innovation through basic research. I have been talking a lot this year about biomedical research. Dr. Francis Collins, the Director of the National Institutes of Health—which he calls the ''National Institute of Hope''—tells me that in 10 years, researchers in our country may be rebuilding hearts from stem cells, giving patients an artificial pancreas which would help patients with diabetes, and there may be a vaccine for HIV/AIDS.

Just as remarkable are the opportunities available in clean energy research: lowering the cost of energy, cleaning up the air, improving health, reducing poverty, and helping us deal with climate change—not just in the United States, but all around the world.

Congress has been focused on doubling energy research since the 2007 America COMPETES Act that was passed with overwhelming bipartisan support and signed into law by President Bush. America COMPETES grew out of a report called ''Rising Above the Gathering Storm,'' a report on American competitiveness, written by Norm Augustine, who was the committee's chair. The report's main recommendation was to increase energy research because of the benefits it would provide to our country and around the world.

Eight years ago, in a speech at Oak Ridge National Laboratory, I called for a project that would duplicate the urgency of the World War II Manhattan Project and put the United States on a path to clean energy innovation. I proposed seven ''grand challenges''—No. 1, make plug-in electric vehicles commonplace; No. 2, find a way to capture and use carbon; No. 3, help solar become cost-competitive; No. 4, safely manage nuclear waste; No. 5, encourage cellulosic biofuels; No. 6, make new buildings green buildings; and No. 7, create energy from fusion.

In 8 years, energy researchers have made tremendous progress in these areas. For example, the price of solar panels has fallen over 80 percent since 2008. In some of the other challenges, we still have a long way to go. That is why we need to keep our focus on making energy research a priority. The biggest problem we have in funding basic energy research is how we pay for it.

Today I am introducing legislation that finds a way to pay for it by ending the 24-year-old wind production tax credit at the end of this year, rather than in 2019, as the law now says. Instead of slowly allowing the wind production tax credit to phase out, this bill would end it on January 1, 2017. Then Congress could use the $8.1 billion in savings to increase the funding authorization for the Office of Science for the same kind of basic energy research that helped drive our natural gas boom and will provide the basis for the next generation of energy innovation that will mean cleaner, cheaper, and more reliable energy.

Research at the Office of Science benefits other Department of Energy programs, including advanced nuclear reactor research at the Office of Nuclear Energy and research on carbon-capture technology at ARPA-E, which was formed by the America COMPETES Act. Energy research through the Office of Science, nuclear and fossil energy programs, energy efficiency research, and ARPA-E have led to amazing new discoveries. If more funding is available, it could be used to make sure energy research is a priority.

Let's not continue to give away this money to wind developers that have been using it to get rich over the last 24 years, often over the objections of communities, towns, and homeowners who don't want their farmlands and mountain lands covered with 45-story turbines with blades as long as a football field.

It is obvious what Congress ought to do, and it is obvious how we ought to

pay for it. In 2014, taxpayers committed to spend—or Congress committed for them—another $6 billion to extend the wind subsidy for 1 year. Let me emphasize that—$6 billion to extend the wind subsidy for 1 year. That amount is more than the United States of America spends in an entire year on energy research through the Office of Science. That money could be used instead to put us on a path to double government funding for basic energy research.

Let's not make that same mistake again. Basic energy research is one of the most important things we can do in this country. We need to unleash our free enterprise system to provide clean, cheap, reliable energy that will power our 21st century economy, create good jobs, and keep America competitive in the global economy.

Political scientist Bjorn Lomborg wrote in the Wall Street Journal last month that ''the Obama administration's signature power policy, the Clean Power Plan . . . will accomplish almost nothing.'' He said:

> We should focus more on green-energy research and development, like that promoted by Bill Gates and the Breakthrough Coalition. Mr. Gates has announced that private investors are committing $7 billion for clean energy R&D while the White House will double its annual $5 billion green innovation fund. Sadly, this sorely needed investment is a fraction of the cost of the same administration's misguided carbon-cut policies.
>
> Instead of rhetoric and ever-larger subsidies of today's inefficient green technologies, those who want to combat climate change should focus on dramatically boosting innovation to drive down the cost of future green energy.

Finally, Bjorn Lomborg writes:

> The U.S. has already shown the way. With its relentless pursuit of fracking driving down the cost of natural gas, America has made a momentous switch from coal to gas that has done more to drive down carbon dioxide emissions than any recent climate policy.

That is the end of the quote from the article in the Wall Street Journal.

In my own conversations with Mr. Gates, he has said the government should double its $5 billion annual investment in basic energy research in order to support clean energy innovation in the private sector. For example, that research could help develop small modular reactors which would allow inherently safe nuclear power to be produced with less capital investment and less resulting nuclear waste in more places. Small modular reactors are one way the country can increase cheap, clean, reliable power. Another way is to continue to develop new advanced reactors and do the research that is necessary to begin the process of extending reactor licenses from 60 to 80 years.

Why should we close reactors when our 100 reactors provide 60 percent of the carbon-free electricity in the United States? Nuclear power provides 60 percent of the carbon-free electricity in the United States today. It is available 92 percent of the time. On the other hand, wind, despite these huge subsidies, produces 15 percent of our country's carbon-free electricity. The wind often blows at night when electricity isn't needed, and it isn't easy to store that electricity.

It is hard to think of an important technological innovation since World War II that hasn't involved at least some form of government-sponsored research. Natural gas, our latest energy boom, is a very good example. The development of unconventional gas was enabled in part by 3–D mapping at Sandia National Laboratory in New Mexico and the Department of Energy's large-scale demonstration project. Then our free enterprise system and our tradition of private ownership of mineral rights capitalized on our basic energy research.

Supercomputing, which is part of the Office of Science, is another tool for energy innovation. Supercomputing could do for nuclear power what massive hydraulic fracturing, new mapping tools, and horizontal drilling did for natural gas. By the end of next year, we expect the world's fastest supercomputer will again be in the United States, and once again, it will be at the Oak Ridge National Laboratory in Tennessee.

That computer is called Summit, and it will help researchers better understand materials, nuclear power, and basic energy science to drive breakthroughs. Supporting the next generation of computers, known as exascale, an area of agreement between the Obama administration and Congress, is also essential to our ability to solve the most complex scientific problems for both our country's competitiveness and national security.

Exascale computers will have a 1,000-fold increase in sustained performance over today's petascale computers, which have been operating since 2008.

Congress can invest in this kind of innovation or we can invest in subsidizing giant wind turbines that produce a puny amount of electricity at a great cost to taxpayers. Some energy developers are reaping great financial benefits provided by the wind production tax credit, which has been in place now for 24 years. It has provided billions in subsidies to the wind industry and has been extended 10 different times.

The subsidy to Big Wind is so generous that, in some markets, wind producers can literally give their electricity away and still make a profit. This phenomenon is called negative pricing. Most of the time, wind power is unreliable and ineffective at meeting the demands of our industries, our computers, our homes, and almost everything else we depend upon. Nationwide, wind power is available about 35 percent of the time, and only 18 percent of the time in Tennessee, my home State, while nuclear power on the other hand is available 92 percent of the time.

Wind is not effective at meeting peak power demands because the wind blows, as I said, mostly when demand is low at night and does not blow when demand is high during the day. Wind production tends to peak in the spring and fall when the need for energy is at its lowest. In fact, wind production decreases in the winter and summer, when heating and cooling needs can dramatically increase the demand for electricity.

Until there is some way to cost-effectively store wind power, it would be dangerous for a country our size to rely significantly on wind. Relying on wind when nuclear plants are available is the energy equivalent of going to war in sailboats when a nuclear navy is available.

If reliable, cheap, and clean electricity is the goal, then four nuclear reactors, each occupying 1 square mile, would equal the production of a row of 45-story wind turbines strung the entire length of the 2,178-mile Appalachian Trail from Georgia to Maine. Even if you wanted to build all of those turbines along the most picturesque mountains in the Eastern United States, you would still need a nuclear reactor or gas plant to power your home or business when the wind does not blow.

These are not your grandma's windmills. Each one is over two times as tall as the skyboxes at the University of Tennessee football stadium and taller than the Statue of Liberty. The blades on each one are as long as a football field. Their blinking lights can be seen for 20 miles.

Many communities—take a look at the windmills in Palm Springs, CA—where wind projects have been proposed have tried to stop them before they go up because, once the wind turbines and new transmission lines are built, it is hard to take them down.

In October, the residents of Irasburg, VT, voted 274 to 9 against a plan to install a pair of 500-foot turbines on a ridgeline visible from their neighborhoods.

In New York, three counties opposed 500- to 600-foot wind turbines next to Lake Ontario. People in the town of Yates voted unanimously to oppose the project in order to ''preserve their rural landscape.'' Yet utilities are talking about closing nuclear reactors, which produce 60 percent of our carbon-free electricity.

In January, Apex Clean Energy announced it would spoil Tennessee's mountain beauty by building up to 23 wind turbines in Cumberland County, less than 10 miles from Cumberland Mountain State Park, where for a half century Tennesseans and tourists have camped, fished, canoed, and kayaked alongside herons and belted kingfishers around Byrd Lake. Residents are voicing their opposition. The city council has voted to oppose it.

Finally, Clean Line Energy is proposing to build a single 700-mile direct current transmission line from Oklahoma, through Arkansas, to deliver wind power to Tennessee and other

Southeastern States even though the Tennessee Valley Authority has announced publicly that it does not need the power. Yet the subsidies for wind are so large that developers are continuing with wind projects anyway. Arkansas objects to the project. Tennessee does not need the power. But the Federal Government is attempting to use Federal eminent domain to proceed. According to the Congressional Research Service, this would be the first time that Federal eminent domain authority has been used for electric transmission lines over the objection of a State.

The wind production tax credit is as bad for taxpayers as giant wind turbines are bad for the environment. Clean energy research can help us lower the cost of energy, clean the air and improve health, reduce poverty, and deal with climate change. Let's end the wind production tax credit this year instead of 2019 and authorize the $8.1 billion in basic energy research to find more ways to ensure that the United States has reliable sources of cheap, efficient, and carbon-free electricity.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 526—CALLING FOR ALL PARTIES TO RESPECT THE ARBITRAL TRIBUNAL RULING WITH REGARD TO THE SOUTH CHINA SEA AND TO EXPRESS UNITED STATES POLICY ON FREEDOM OF NAVIGATION AND OVERFLIGHT IN THE EAST AND SOUTH CHINA SEAS

Mr. GARDNER (for himself, Mr. MCCAIN, Mr. COTTON, Mr. SULLIVAN, Mr. RUBIO, and Mrs. ERNST) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 526

Whereas, on July 12, 2016, the Permanent Court of Arbitration (PCA) of the International Tribunal of the Law of the Sea (''Tribunal''), constituted under the United Nations Convention on the Law of the Sea (UNCLOS), done at Montego Bay December 10, 1982, issued a legally binding ruling on the parties in the case brought at the request of the Republic of Philippines against the People's Republic of China concerning a dispute over the maritime jurisdiction in the South China Sea;

Whereas the Tribunal supported the Philippines' claim that China breached its sovereign rights, ruling that ''China has, by promulgating its 2012 moratorium on fishing in the South China Sea, without exception for areas of the South China Sea falling within the exclusive economic zone of the Philippines and without limiting the moratorium to Chinese flagged vessels, breached Article 56 of the Convention with respect to the Philippines' sovereign rights over the living resources of its exclusive economic zone''

Whereas the Tribunal invalidated China's so-called ''nine-dash line'' sovereignty claims over the South China Sea, concluding that ''as between the Philippines and China, China's claims to historic rights, or other sovereign rights or jurisdiction, with respect to the maritime areas of the South China Sea encompassed by the relevant part of the 'nine-dash line' are contrary to the Convention and without lawful effect to the extent that they exceed the geographic and substantive limits of China's maritime entitlements under the Convention'';

Whereas, on January 22, 2013, arbitration began when the Philippines served China with a Notification and Statement of Claim pursuant to the UNCLOS provisions concerning the resolution of disputes and the arbitration procedure;

Whereas, on February 19, 2013, China rejected and returned the Philippines' Notification and since that date has refused to participate in the arbitration proceedings;

Whereas, on June 21, 2013, the Tribunal was constituted pursuant to the procedure set out in Annex VII of the UNCLOS to decide the dispute presented by the Philippines;

Whereas, on October 29, 2015, the Tribunal held that ''both the Philippines and China are parties to [UNCLOS] and bound by its provisions on the settlement of disputes,'' that ''China's decision not to participate in these proceedings does not deprive the Tribunal of jurisdiction,'' and that ''the Philippines' decision to commence arbitration unilaterally was not an abuse of the Convention's dispute settlement procedures'';

Whereas the South China is one of the world's most strategically important commercial waterways, and almost 30 percent of the world's maritime trade transits the South China Sea annually, including approximately $1,200,000,000,000 in ship-borne trade bound for the United States;

Whereas, according to the United States Energy Information Administration, there are approximately 11,000,000,000 barrels and 190,000,000,000,000 cubic feet of proven and probable oil and natural gas reserves in the South China Sea;

Whereas, according to the United States Department of Defense, ''[a]lthough the United States takes no position on competing sovereignty claims to land features in the region, all such claims must be based upon land (which in the case of islands means naturally formed areas of land that are above water at high tide), and all maritime claims must derive from such land in accordance with international law,'';

Whereas, according to the Department of Defense, ''[s]ince Chinese land reclamation efforts began in December 2013, China has reclaimed land at seven of its eight Spratly outposts and, as of June 2015, had reclaimed more than 2,900 acres of land'';

Whereas, according to Director of National Intelligence: ''China continued its land reclamation efforts at Subi and Mischief Reefs after 5 August 2015, based on commercial imagery. Between that date and late October, when reclamation activity ended, China reclaimed more than 100 additional acres of land.'';

Whereas, according to the Director of National Intelligence: ''We assess that China has established the necessary infrastructure to project military capabilities in the South China Sea beyond that which is required for point defense of its outposts. These capabilities could include the deployment of modern fighter aircraft, surface-to-air missiles (SAMS), and coastal defense cruise missiles, as well as increased presence of People's Liberation Army Navy (PLAN) surface combatants and China Coast Guard (CCG) large patrol ships.'';

Whereas, according to the Director of National Intelligence: ''We assess that China will continue to pursue construction and infrastructure development at its expanded outposts in the South China Sea. Based on the pace and scope of construction at these outposts, China will be able to deploy a range of offensive and defensive military capabilities and support increased PLAN and CCG presence beginning in 2016.'';

Whereas, on May 30, 2015, Secretary of Defense Ashton Carter stated at the Shangri-La Dialogue in Singapore, ''[T]he United States will continue to protect freedom of navigation and [overflight—principles] that have ensured security and prosperity in this region for decades. There should be no mistake: the United States will fly, sail, and operate wherever international law allows, as United States forces do all over the world.'';

Whereas, in October 2015, January 2016, and May 2016, the United States Navy conducted three freedom of navigation operations (FONOP) in the area, transiting inside the 12-mile nautical zone of the contested features in the South China Sea;

Whereas Article 5 of the Mutual Defense Treaty Between the United States and the Republic of the Philippines, signed on August 30, 1951, states that ''an armed attack on either of the Parties is deemed to include an armed attack on the metropolitan territory of either of the Parties, or on the island territories under its jurisdiction in the Pacific or on its armed forces, public vessels or aircraft in the Pacific''; and

Whereas the United States reiterates its security commitment to Japan and reaffirms that Article 5 of the United States-Japan Treaty of Mutual Cooperation and Security covers all territories under Japan's administration, including the Senkaku islands; Now, therefore, be it

Resolved, That the Senate—

(1) supports the July 12, 2016, ruling issued by the Tribunal as binding on all parties in the case, and calls on all claimants to pursue peaceful resolution of outstanding maritime claims in the South China Sea consistent with international law;

(2) urges all parties to take action to implement the Declaration on the Conduct of Parties in the South China Sea and take steps towards early conclusion of a meaningful Code of Conduct, which would provide agreed upon rules of the road to reduce tension among claimant states;

(3) opposes any actions in the South China Sea to change the status quo by coercion, force, or the threat of use of force;

(4) calls on the Government of the People's Republic of China to cease all reclamation and militarization activities in the South China Sea and end provocative actions in the East China Sea, which undermine peace and stability in the region;

(5) reaffirms Article V of the Mutual Defense Treaty Between the United States and the Republic of the Philippines;

(6) reaffirms Article V of the Treaty of Mutual Cooperation and Security between the United States and Japan;

(7) urges the Secretary of State to utilize all diplomatic channels to communicate worldwide unwavering United States support for freedom of navigation and overflight in the South China Sea; and

(8) urges the Secretary of Defense to routinely enforce freedom of navigation and overflight in the East and South China Seas, which is critical to United States national security interests and peace and prosperity in the Asia-Pacific region.

Mr. GARDNER. Mr. President, I rise to speak about American leadership in the Asia-Pacific region, an area that will be more and more critical to our economy and national security for generations to come.

Earlier today, an international tribunal issued an important ruling regarding maritime claims in the South China Sea, which can potentially have

lasting consequences for peace and stability in that region and global security in general as the world chooses between an order of rule or an order of lawlessness. Today, the tribunal ruled in favor of our ally the Philippines and against the People's Republic of China, which has refused to recognize and participate in the tribunal altogether, a tribunal sanctioned under international agreement both nations are a party to.

The tribunal began its work on January 22, 2013, when the Philippines served notice to China in international court regarding the violations of its sovereignty and China's claims in the South China Sea.

On February 19, 2013, China rejected and returned the Philippines' notification, and since that date, China has refused to participate in the arbitration proceedings.

On October 29, 2015, the tribunal held that despite China's nonparticipation, it has the jurisdiction to deliver a binding legal ruling in this case since both nations are treaty participants.

Today, the panel ruled that China ''breached the sovereign rights of the Philippines'' with regard to maritime disputes between the two nations. More importantly, the tribunal invalidated China's sovereignty claims over almost the entirety of the South China Sea, stating that ''China's claims to historic rights or jurisdiction, with respect to the maritime areas of the South China Sea encompassed by the relevant part of the 'nine-dash line' are contrary to the Convention and without lawful effect.''

While the United States is not directly a party to this dispute and takes no position on the sovereignty claims among the various claimants, this ruling is important for many reasons:

First, the South China Sea is one of the most important commercial waterways in the world. Almost 30 percent of the world's maritime trade transits the South China Sea annually, including approximately $1.2 trillion in shipborne trade bound for the United States.

Moreover, according to the U.S. Energy Information Administration, there are approximately 11 billion barrels and 190 cubic feet of proven and probable oil and natural gas reserves in the South China Sea itself which China wants to claim.

Second, the ruling reinforces the right of our military to operate freely in the region, utilizing our longstanding rights of international transit on the high seas—the rights long established by international law.

On May 30, 2015, speaking at the Shangri-La Dialogue in Singapore, Secretary of Defense Ash Carter stated:

> The United States will continue to protect freedom of navigation and overflight—principles that have ensured prosperity and security in this region for decades. There should be no mistake: The United States will fly, sail, and operate wherever international law allows, as U.S. forces do all over the world.

The United States has since conducted three freedom of navigation operations—or FONOPs—in the area in October of 2015, January of 2016, and May of 2016, transiting inside the 12-mile nautical zone of the contested features in the South China Sea.

Last month, I attended the Shangri-La Dialogue along with a number of my Senate colleagues, and we heard a tremendous amount of concern from regional leaders, not only about the South China Sea but also about whether or not the United States can endure regionally and globally. The South China Sea and what happens there are important tests of American leadership and our ability to support our close allies in the face of aggression that is outside of international norms.

So we need to start this conversation, as well, by asking the simple question: How did we get here?

I wish to point out a chart that helps show what is going on in the South China Sea. The situation in the South China Sea stems from a Chinese claim called the nine-dash line. It is the red dash line here in the South China Sea, which covers more than 90 percent of the South China Sea. We can see it on the chart, within the lines.

China has never offered any detailed explanation or any legal basis for this claim. As the ruling stated today by the tribunal:

> As far as the Tribunal is aware, China has never expressly clarified the nature or scope of its claimed historic rights. Nor has it ever clarified its understanding of the meaning of the ''nine-dash line.''

For decades we did not pay much attention; the U.S. did not pay much attention to these groundless claims because, while there are certainly incidents and skirmishes, China did not take the highly coercive actions to enforce its claims that we see today. However, over the last several years, China has significantly upped the ante and undertaken a massive effort to reclaim a number of the disputed features in the South China Sea and to militarize these islands.

According to the Department of Defense, ''[s]ince Chinese land reclamation efforts began in December of 2013, China has . . . reclaimed more than 2,900 acres of land'' and ''has deployed artillery, built aircraft runways and buildings and positioned radars and other equipment.''

According to the Director of National Intelligence:

> We assess that China has established the necessary infrastructure to project military capabilities in the South China Sea beyond that which is required for point defense of its outposts. These capabilities could include the deployment of modern fighter aircraft, surface-to-air missiles, and coastal defense cruise missiles, as well as increased presence of Peoples' Liberation Army Navy surface combatants and China Coast Guard large patrol ships.

With these capabilities, China could easily intimidate and, if needed, overpower its much smaller and less capable neighbors.

So let me point out the second chart here today. In the next year, we will be able to see just how fast the Chinese can build these islands.

According to reports and expert assessments, what we are seeing here is ''an artificial island''—what it looked like in the very beginning, the original structure—''covering 75,000 square yards—about 14 football fields—including two piers, a cement plant and a helipad, at a land formation called Hughes Reef. . . . The reef, which is above water only at low tide, lies about 210 miles from the Philippines and 660 miles from China.''

So here is what this looked like in 2014—this original structure right here, the Hughes Reef. We can see what it looked like here, and in January of 2015: 75,000 square yards of land reclamation activities, the helipad over here, the original structure—we can see it right here—and the cement plant. There are 14 football fields worth of land reclamation on a structure that is only 210 miles away from the Philippines yet 660 miles away from China.

These actions not only show blatant disregard for the rights of the other claimants in the South China Sea, but it undermines international law.

This is what the international tribunal confirmed today. Now it is up to the United States and the world to address the question as to what comes next.

Make no mistake, through these activities, China has sent a message not only to its neighbors but also to America as a Pacific power, and we must be ready to answer.

So today I am proud to submit a resolution with my colleagues, Senators MCCAIN, COTTON, SULLIVAN, RUBIO, and ERNST, that offers some policy guidelines moving forward on how to address the challenge of the South China Sea. Our resolution, first of all, supports the July 12, 2016, ruling issued by the tribunal as binding on all parties and calls on all parties to pursue peaceful resolution of outstanding maritime claims in the South China Sea consistent with international law. It urges all parties to take action to implement the Declaration on the Conduct of Parties in South China Sea and take steps toward early conclusion of a meaningful, binding code of conduct which would provide agreed-upon rules of the road to reduce tension among claimant States.

It states that we will oppose any actions in the South China Sea to change the status quo by coercion, force, or the threat of use of force.

It calls on the People's Republic of China to cease all reclamation and militarization activities in the South China Sea and to end provocative actions in the East China Sea, which undermine peace and stability in the region.

Furthermore, the resolution reaffirms article V of the Mutual Defense Treaty between the United States and the Republic of the Philippines, and article V of the Treaty of Mutual Cooperation and Security between the United States and Japan.

It urges the U.S. State Department to utilize all diplomatic channels to communicate worldwide, unwavering U.S. support for freedom of navigation and overflight of the South China Sea, and it urges the U.S. Department of Defense to routinely enforce freedom of navigation and overflight in East and South China Seas, which is critical to U.S. national security interests and peace and prosperity in the Asia-Pacific region.

It is my sincere hope that instead of an escalation, China chooses the opposite track and abides by this ruling and immediately ceases its destabilizing activities. But should that not come to pass, the United States and our allies must be ready to lead and defend our allies, our values, and our principles.

The world is better served when those of us around the globe recognize rules of international behavior, international law, and that we can together reinforce responsible behavior. And we will know going forward from this ruling if China is going to be a responsible rising power that respects the rules of international law, or if the history books will later look back at this time period and show a nation that decides to ignore international law, to ignore the law that binds itself with its neighbors and, instead, acts out of self-gain and self-interests.

No matter what happens going forward, the United States must show leadership, resolve, and we must show our allies that we are committed to making sure that international law is respected and upheld.

Mr. President, I yield the floor.

SENATE RESOLUTION 527—RECOGNIZING THE 75TH ANNIVERSARY OF THE OPENING OF THE NATIONAL GALLERY OF ART

Mr. UDALL (for himself, Ms. MIKULSKI, and Mr. LEAHY) submitted the following resolution; which was referred to the Committee on Rules and Administration:

S. RES. 527

Whereas March 17, 2016, marked the 75th anniversary of the opening of the National Gallery of Art (in this preamble referred to as the ''Gallery'');

Whereas the Gallery is the culmination of the dream of Andrew Mellon to endow a true national gallery in Washington, DC;

Whereas President Franklin Delano Roosevelt and the 75th Congress recognized the importance of this monumental gift to the people of the United States by quickly accepting the gift of Mr. Mellon on behalf of the United States;

Whereas the landmark buildings of the Gallery were given to the people of the United States as gifts by Andrew Mellon and his children, Paul Mellon and Ailsa Mellon Bruce;

Whereas the agreement to place the Gallery on the National Mall, side-by-side with the monuments most meaningful to the people of the United States, symbolized the importance of art in the life of the United States;

Whereas the extraordinary collection of Mr. Mellon of 153 works of art served as a magnet to attract other gifts from across the United States and established the highest standard of quality for the works of art, resulting in one of the finest collections in the world, with more than 144,000 works;

Whereas the collections of the Gallery have grown entirely through private donations from generous individuals in service to all of the people of the United States;

Whereas the Gallery epitomizes the fruitful collaboration of the United States Government and the people of the United States in creating a great institution dedicated to art, education, and service;

Whereas all subsequent Presidents and Congresses have supported the Gallery by providing for the protection and care of the collection;

Whereas Federal support and donations of extraordinary art from generous individuals in the United States have resulted in the most successful public-private partnership in the United States, hosting more than 250,000,000 visitors from every State and from other countries to demonstrate the commitment of the United States to promoting the shared cultural heritage of all humanity;

Whereas the permanent collection of the Gallery comprises masterpieces of art from Europe and the United States from the Renaissance period to the present day;

Whereas some 1,200 temporary exhibitions have brought great art from throughout the world, from a wide range of cultures and time periods, to the people of the United States;

Whereas the Gallery has set a standard of generosity in lending works of art to museums throughout the United States and in sending those works as ambassadors of good will to countries throughout the world;

Whereas, for 75 years, the Gallery has served as both trustee of the fine arts collection of the United States and as an active and vigorous educational resource, serving hundreds of thousands of students who visit Washington, DC;

Whereas, since its founding, the Gallery has provided art education programs without charge to students in elementary and secondary schools and at institutions of higher learning in every State;

Whereas, through the support of Andrew Mellon and his son Paul, the Gallery serves as an international center for scholarship and research and is a leader in internationally published conservation and research;

Whereas the Gallery is home to a superb center for advanced studies in the visual arts that brings new insights to the humane heritage of mankind both nationally and internationally;

Whereas the Gallery has created a major art research library, housing a collection of more than 400,000 books, periodicals, and documents on the history, theory, and criticism of art and architecture, and an image collection of some 13,000,000 photographs, slides, negatives, and microform images of Western art and architecture;

Whereas, since 1942, the Gallery has sponsored more than 3,100 free Sunday concerts featuring the National Gallery Orchestra as well as musicians and ensembles from around the world for the enjoyment of more than 1,000,000 visitors, creating what is considered the oldest continuous series of free weekly concerts in Washington, DC;

Whereas, to facilitate learning, enrichment, enjoyment, and exploration, the Gallery has expanded its educational mission by providing free downloads of more than 45,000 digital images of works from its collection through its innovative web service, NGAImages; and

Whereas the Gallery provides permanence in an ever-changing world, maintaining a tangible record of human aspirations and values for the people of the United States: Now, therefore, be it

Resolved, That the Senate—

(1) recognizes the 75th anniversary of the opening of the National Gallery of Art;

(2) acknowledges the contribution of the National Gallery of Art to the cultural life of the United States;

(3) applauds the work of the National Gallery of Art to collect and preserve art, educate people in the United States, and bring exciting exhibitions for all to enjoy;

(4) commends the work of the staff of the National Gallery of Art to ensure that all of the people of the United States have access to the highest quality art; and

(5) continues to support the National Gallery of Art, a great national treasure.

SENATE RESOLUTION 528—COMMENDING THE TENNESSEE VALLEY AUTHORITY ON THE 80TH ANNIVERSARY OF THE UNIFIED DEVELOPMENT OF THE TENNESSEE RIVER SYSTEM

Mr. ALEXANDER (for himself, Mr. BURR, Mr. COCHRAN, Mr. CORKER, Mr. ISAKSON, Mr. KAINE, Mr. PERDUE, Mr. SHELBY, Mr. TILLIS, Mr. WARNER, and Mr. WICKER) submitted the following resolution; which was considered and agreed to:

S. RES. 528

Whereas the Tennessee Valley Authority (in this preamble referred to as the ''TVA'') was created by Congress in 1933 to improve navigation along the Tennessee River, reduce the risk of floods and flood damage, provide low-cost electricity, and promote environmental stewardship and economic development in the region;

Whereas the TVA submitted a plan to Congress in March of 1936 to improve navigation of the Tennessee River and to help control flooding in the Tennessee Valley;

Whereas Norris Dam, the first dam constructed by the TVA, began to operate on July 28, 1936;

Whereas the integrated management of the Tennessee River system by the TVA provides a wide range of benefits that include electrical power, reducing floods, improving water quality and supply, enhancing recreation, and protecting public land;

Whereas the TVA has improved navigation of the Tennessee River system and facilitated freight transportation;

Whereas the TVA has reduced the risk of flood damage through the construction of locks, dams, and reservoirs throughout the Tennessee Valley;

Whereas the TVA provides reliable and affordable electricity and has stimulated economic growth;

Whereas the TVA continues to promote economic development by helping companies and communities attract investments that bring good jobs to the Tennessee Valley region; and

Whereas the TVA continues to serve more than 9,000,000 customers in Alabama, Georgia, Tennessee, Mississippi, Kentucky, North Carolina, and Virginia: Now, therefore, be it

Resolved, That the Senate—

(1) commends the Tennessee Valley Authority on the 80th anniversary of the unified development of the Tennessee River system;

(2) recognizes the important role of Norris Dam, the first dam constructed by the Tennessee Valley Authority, which was completed on July 28, 1936;

(3) honors the accomplishments of the Tennessee Valley Authority in improving navigation, controlling floods, promoting environmental stewardship, and providing affordable electricity throughout the Tennessee Valley region;

(4) recognizes the Tennessee Valley Authority for its long and proud history of service in the areas of energy, the environment, and economic development throughout Alabama, Georgia, Tennessee, Mississippi, Kentucky, North Carolina, and Virginia; and

(5) respectfully requests the Secretary of the Senate to transmit a copy of this resolution for appropriate display to—

(A) the Chairman of the Board of the Tennessee Valley Authority, Joe Ritch; and

(B) the Chief Executive Officer of the Tennessee Valley Authority, William Johnson.

SENATE RESOLUTION 529—CALLING UPON THE GOVERNMENT OF THE ISLAMIC REPUBLIC OF IRAN TO RELEASE IRANIAN-AMERICANS SIAMAK NAMAZI AND HIS FATHER, BAQUER NAMAZI

Mr. BOOKER (for himself and Mr. HATCH) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 529

Whereas dual citizen of the United States and Iran Siamak Namazi studied international relations at Tufts University and urban planning at Rutgers University;

Whereas Siamak Namazi was named as a Young Global Leader by the World Economic Forum in 2007;

Whereas Siamak Namazi was a former Public Policy Fellow at the Woodrow Wilson Center for International Scholars, was a business consultant, and most recently worked in the petroleum industry for a company based in Dubai, United Arab Emirates;

Whereas Siamak Namazi traveled from Dubai to Tehran to visit relatives in July 2015;

Whereas Siamak Namazi was prohibited from leaving Iran in mid-July 2015;

Whereas Siamak Namazi was interrogated for 3 months before he was detained on October 15, 2015, without any charges;

Whereas Amnesty International has stated that detainees and prisoners in Iran have reported ''acts of torture and other ill-treatment, particularly during primary investigations mainly to force 'confessions' or gather other incriminatory evidence'' and ''were denied adequate medical care; in some cases, the authorities withheld prescribed medications to punish prisoners'';

Whereas on March 14, 2016, the United Nations Special Rapporteur on the situation of human rights in the Islamic Republic of Iran stated that serious human rights abuses continue to be reported in Iran including ''an alarming surge in the rate of unlawful executions in the country and ongoing arbitrary arrests, detention and prosecution of individuals for the exercise of their fundamental rights'' and at least 966 persons were executed in Iran in 2015, which is the highest rate in more than 20 years;

Whereas Siamak Namazi remains under arrest in Evin Prison even though no charges have been filed against him;

Whereas dual citizen of the United States and Iran, Baquer Namazi, who is the father of Siamak Namazi was detained on February 22, 2016, and is also being held in Evin Prison;

Whereas Baquer Namazi worked for UNICEF in New York and served as the UNICEF Representative to Somalia, Kenya, and Egypt;

Whereas Baquer Namazi is a recognized leader of humanitarian causes, especially poverty eradication, through his United Nations work and his post-retirement civil society activities;

Whereas Secretary of State John Kerry stated on February 25, 2016, in response to a question about the detention of Siamak Namazi, ''I am very familiar with this and I am engaged on it specifically''; and

Whereas on January 16, 2016, the Government of the Islamic Republic of Iran released United States citizens Jason Rezaian of California, Saeed Abedini of Idaho, Amir Mirzaei Hekmati of Michigan, Matthew Trevithick of Massachusetts, and Nosratollah Khosravi-Roodsari: Now, therefore, be it

Resolved, That the Senate—

(1) calls upon the Government of the Islamic Republic of Iran to unconditionally release Siamak and Baquer Namazi immediately;

(2) urges the Secretary of State, the allies of the United States, and the United Nations to raise the cases of Siamak and Baquer Namazi with officials of the Government of the Islamic Republic of Iran at every opportunity and undertake efforts to secure their immediate release;

(3) encourages the President to utilize appropriate measures against the Government of the Islamic Republic of Iran if Siamak and Baquer Namazi are not released; and

(4) expresses sympathy to the family of Siamak and Baquer Namazi for their anguish and expresses hope that their ordeal can be brought to an end in the near future.

SENATE CONCURRENT RESOLUTION 46—EXPRESSING SUPPORT FOR THE GOAL OF ENSURING THAT ALL HOLOCAUST VICTIMS LIVE WITH DIGNITY, COMFORT, AND SECURITY IN THEIR REMAINING YEARS, AND URGING THE FEDERAL REPUBLIC OF GERMANY TO CONTINUE TO REAFFIRM ITS COMMITMENT TO COMPREHENSIVELY ADDRESS THE UNIQUE HEALTH AND WELFARE NEEDS OF VULNERABLE HOLOCAUST VICTIMS, INCLUDING HOME CARE AND OTHER MEDICALLY PRESCRIBED NEEDS

Mr. NELSON (for himself and Ms. COLLINS) submitted the following concurrent resolution; which was referred to the Committee on Foreign Relations:

S. CON. RES. 46

Whereas the annihilation of 6,000,000 Jews during the Holocaust and the murder of millions of others by the Nazi German state constitutes one of the most tragic and heinous crimes in human history;

Whereas hundreds of thousands of Jews survived persecution by the Nazi regime despite being imprisoned, subjected to slave labor, moved into ghettos, forced to live in hiding or under false identity or curfew, or required to wear the ''yellow star'';

Whereas in fear of the oncoming Nazi Einsatzgruppen, or ''Nazi Killing Squads'', and the likelihood of extermination, hundreds of thousands of Jewish Nazi victims fled for their lives;

Whereas whatever type of persecution suffered by Jews during the Holocaust, the common thread that binds Holocaust victims is that they were targeted for extermination and they lived with a constant fear for their lives and the lives of their loved ones;

Whereas Holocaust victims immigrated to the United States from Europe, the Middle East, North Africa, and the former Soviet Union between 1933 and the date of adoption of this resolution;

Whereas it is estimated that there are at least 100,000 Holocaust victims living in the United States and approximately 500,000 Holocaust victims living around the world, including child survivors of the Holocaust;

Whereas tens of thousands of Holocaust victims are at least 80 years old, and the number of surviving Holocaust victims is diminishing;

Whereas at least 50 percent of Holocaust victims alive today will pass away within the next decade, and those living victims are becoming frailer and have increasing health and welfare needs;

Whereas Holocaust victims throughout the world continue to suffer from permanent physical and psychological injuries and disabilities and live with the emotional scars of a systematic genocide against the Jewish people;

Whereas many of the emotional and psychological scars of Holocaust victims are exacerbated in the old age of the Holocaust victims;

Whereas the past haunts and overwhelms many aspects of the lives of Holocaust victims when their health fails them;

Whereas Holocaust victims suffer particular trauma when their emotional and physical circumstances force them to leave the security of their homes and enter institutional or other group living residential facilities;

Whereas tens of thousands of Holocaust victims live in poverty and cannot afford, and do not receive, sufficient medical care, home care, mental health care, medicine, food, transportation, and other vital life-sustaining services that allow individuals to live their final years with comfort and dignity;

Whereas Holocaust victims often lack family support networks and require social worker-supported case management in order to manage their daily lives and access government-funded services;

Whereas in response to a letter sent by Members of Congress to the Minister of Finance of Germany in December 2015 relating to increased funding for Holocaust victims, German officials acknowledged that ''recent experience has shown that the care financed by the German Government to date is insufficient'' and that ''it is imperative to expand these assistance measures quickly given the advanced age of many of the affected persons'';

Whereas German Chancellor Konrad Adenauer acknowledged, in 1951, the responsibility of Germany to provide moral and financial compensation to Holocaust victims worldwide;

Whereas every successive German Chancellor has reaffirmed that acknowledgment, including Chancellor Angela Merkel, who, in 2007, reaffirmed that ''only by fully accepting its enduring responsibility for this most appalling period and for the cruelest crimes in its history, can Germany shape the future'';

Whereas, in 2015, the spokesperson of Chancellor Angela Merkel confirmed that ''all Germans know the history of the murderous race mania of the Nazis that led to the break with civilization that was the Holocaust . . . we know the responsibility for this crime against humanity is German and very much our own''; and

Whereas Congress believes it is the moral and historical responsibility of Germany to comprehensively, permanently, and urgently provide resources for the medical, mental health, and long-term care needs of all Holocaust victims: Now, therefore, be it

Resolved by the Senate (the House of Representatives concurring), That Congress—

(1) acknowledges the financial and moral commitment of the Federal Republic of Germany over the past seven decades to provide a measure of justice for Holocaust victims; and

(2) supports the goal of ensuring that all Holocaust victims in the United States and around the world are able to live with dignity, comfort, and security in their remaining years.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ARMED SERVICES

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Armed Services be authorized to meet during the session of the Senate on July 12, 2016, at 9:30 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Commerce, Science, and Transportation be authorized to meet during the session of the Senate on July 12, 2016, at 10 a.m., in room SR–253 of the Russell Senate Office Building to conduct a hearing entitled ''How Will the FCC's Proposed Privacy Regulation Affect Consumers and Competition.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Commerce, Science, and Transportation be authorized to meet during the session of the Senate on July 12, 2016, at 2:30 p.m., in room SR–253 of the Russell Senate Office Building to conduct a Subcommittee hearing entitled ''Intermodal and Interdependent: the Fast Act, the Economy, and Our Nation's Transportation System.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FINANCE

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Finance be authorized to meet during the session of the Senate on July 12, 2016, at 10 a.m., in room SD–215 of the Dirksen Senate Office Building to conduct a hearing entitled ''Examining the Stark Law: Current Issues and Opportunities.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on July 12, 2016, at 10 a.m., to conduct a hearing entitled ''Review of the 2016 Trafficking in Persons Report.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate on July 12, 2016, at 10 a.m., in room SD–226 of the Dirksen Senate Office Building, to conduct a hearing entitled ''FOIA at Fifty: Has the Sunshine Law's Promise Been Fulfilled?''

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. THUNE. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on July 12, 2016, at 2:30 p.m., in room SH–219 of the Hart Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON ENERGY

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources' Subcommittee on Energy be authorized to meet during the session of the Senate on July 12, 2016, at 2:30 p.m., in room SD–366 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

SUBCOMMITTEE ON STATE DEPARTMENT, AND USAID MANAGEMENT, INTERNATIONAL OPERATIONS, AND BILATERAL INTERNATIONAL DEVELOPMENT

Mr. THUNE. Mr. President, I ask unanimous consent that the Committee on Foreign Relations Subcommittee on State Department, and USAID Management, International Operations, and Bilateral International Development be authorized to meet during the session of the Senate on July 12, 2016, at 2:30 p.m., to conduct a hearing entitled ''Public-Private Partnerships in Foreign Aid: Leveraging U.S. Assistance for Greater Impact and Sustainability.''

The PRESIDING OFFICER. Without objection, it is so ordered.

PRIVILEGES OF THE FLOOR

Mr. FRANKEN. Mr. President, I ask unanimous consent that my health policy fellow, Rachel Cumberbatch, be granted floor privileges for the remainder of this Congress.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CASSIDY. Mr. President, I ask unanimous consent that Genevieve Gorman, a legislative aid in my office, be granted the privileges of the floor for the remainder of the 114th Congress.

The PRESIDING OFFICER. Without objection, it is so ordered.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

Mr. COTTON. Mr. President, I ask unanimous consent that the Senate proceed to executive session to consider the following nomination: Calendar No. 652 only, with no other executive business in order.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

The clerk will report the nomination.

The senior assistant legislative clerk read the nomination of Carole Schwartz Rendon, of Ohio, to be United States Attorney for the Northern District of Ohio for the term of four years.

Thereupon, the Senate proceeded to consider the nomination.

Mr. COTTON. Mr. President, I know of no further debate on the nomination.

The PRESIDING OFFICER. If there is no further debate, the question is, Will the Senate advise and consent to the Rendon nomination?

The nomination was confirmed.

Mr. COTTON. Mr. President, I ask unanimous consent that the motion to reconsider be considered made and laid upon the table, the President be immediately notified of the Senate's action, and the Senate then resume legislative session.

The PRESIDING OFFICER. Without objection, it is so ordered.

LEGISLATIVE SESSION

The PRESIDING OFFICER. The Senate will now resume legislative session.

UNITED STATES SEMIQUINCENTENNIAL COMMISSION ACT OF 2016

Mr. COTTON. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of H.R. 4875, which was received from the House.

The PRESIDING OFFICER. The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (H.R. 4875) to establish the United States Semiquincentennial Commission, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. COTTON. Mr. President, I ask unanimous consent that the bill be read a third time and passed and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (H.R. 4875) was ordered to a third reading, was read the third time, and passed.

UNITED STATES APPRECIATION FOR OLYMPIANS AND PARALYMPIANS ACT

Mr. COTTON. Mr. President, I ask unanimous consent that the Committee on Finance be discharged from further consideration of S. 2650 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The senior assistant legislative clerk read as follows:

A bill (S. 2650) to amend the Internal Revenue Code of 1986 to exclude from gross income any prizes or awards won in competition in the Olympic Games or the Paralympic Games.

There being no objection, the Senate proceeded to consider the bill.

Mr. COTTON. Mr. President, I ask unanimous consent that the bill be read a third time and passed, the motion to reconsider be considered made and laid upon the table, and that the papers be held at the desk.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 2650) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 2650

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''United States Appreciation for Olympians and Paralympians Act''.

SEC. 2. OLYMPIC AND PARALYMPIC MEDALS AND USOC PRIZE MONEY EXCLUDED FROM GROSS INCOME.

(a) IN GENERAL.—Section 74 of the Internal Revenue Code of 1986 is amended by adding at the end the following new subsection:

''(d) EXCEPTION FOR OLYMPIC AND PARALYMPIC MEDALS AND PRIZES.—Gross income shall not include the value of any medal awarded in, or any prize money received from the United States Olympic Committee on account of, competition in the Olympic Games or Paralympic Games.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to prizes and awards received after December 31, 2015.

NATIONAL LOBSTER DAY

Mr. COTTON. Mr. President, I ask unanimous consent that the Judiciary Committee be discharged from further consideration of S. Res. 513 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the resolution by title.

The senior assistant legislative clerk read as follows:

A resolution (S. Res. 513) designating September 25, 2016 as ''National Lobster Day.''

There being no objection, the Senate proceeded to consider the resolution.

Mr. COTTON. Mr. President, I further ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 513) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in the RECORD of June 28, 2016, under ''Submitted Resolutions.'')

COMMENDING THE TENNESSEE VALLEY AUTHORITY ON THE 80TH ANNIVERSARY OF THE UNIFIED DEVELOPMENT OF THE TENNESSEE RIVER SYSTEM

Mr. COTTON. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 528, submitted earlier today.

The PRESIDING OFFICER. The clerk will report the resolution by title.

The senior assistant legislative clerk read as follows:

A resolution (S. Res. 528) commending the Tennessee Valley Authority on the 80th anniversary of the unified development of the Tennessee River system.

There being no objection, the Senate proceeded to consider the resolution.

Mr. COTTON. Mr. President, I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 528) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

ORDERS FOR WEDNESDAY, JULY 13, 2016

Mr. COTTON. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m. on Wednesday, July 13; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; further, that following leader remarks, the Senate resume consideration of the conference report to accompany S. 524, with the time until 11 a.m. equally divided between the two leaders or their designees.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDER FOR ADJOURNMENT

Mr. COTTON. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order, following the remarks of Senators MARKEY and WHITEHOUSE.

The PRESIDING OFFICER. Without objection, it is so ordered.

The Senator from Massachusetts.

CLIMATE CHANGE

Mr. MARKEY. Mr. President, it is summer. It is supposed to be hot, but if last month felt hotter than past summers, you are right. Last week the National Oceanic and Atmospheric Agency, or NOAA, said the United States experienced its warmest June on record ever. Already this year there have been eight weather-related and climate-related disasters that each caused at least $1 billion in damage. Globally, it was found that 2015 was the hottest year on record, and so far this year is on track to beat last year. We can't even hold the record for a year—2016 has been as hot as Pokemon GO—and anyone watching the Senate floor tonight who is younger than 31 has never experienced in their life a month where the temperature was below the 20th century average.

That last happened in February of 1985. Ronald Reagan was starting his second term as President, and ''Beverly Hills Cop'' was the No. 1 film at the box office. If you went to the movies that month, you probably saw a trailer for what would be that summer's blockbuster, ''Back to the Future.''

Well, that future is here. Temperatures are increasing, sea levels are rising, rainfall is more extreme, and the oceans are more acidic. Why is that? It is mostly because of carbon dioxide pollution that is released from the extraction and burning of fossil fuel. Virtually all climate scientists agree that the climate is changing and that human interference with the climate is now the driving force of that change. Thanks to excellent investigative reporting at Inside Climate News and other news outlets, we now know that as far back as the 1970s, Exxon and the other oil companies were following the latest developments in climate science and Exxon was undertaking its own research on the impact of carbon pollution on the climate.

The top leadership of Exxon was warned in July of 1977 by its senior scientist James Black: ''In the first place there is general scientific agreement that the most likely manner in which mankind is influencing the global climate is through carbon dioxide release from the burning of fossil fuels.''

That is from 1977 to Exxon from its own scientists. A year later in 1978, that same scientist once again told senior management: ''Present thinking holds that man has a time window of 5 to 10 years before the need for hard decisions regarding changes in energy strategies that might become critical.''

Ten years later in 1988, a memo laid out Exxon's position, which included these three points: No. 1, emphasize the uncertainty in scientific conclusions regarding the potential enhanced greenhouse gas effect; No. 2, urge a balanced scientific approach; and No. 3, resist the overstatement and sensationalization of potential greenhouse effects which could lead to economic development of nonfossil fuel resources.

Exxon knew full well back then the impact of carbon dioxide on the climate and what that could mean to their businesses. Exxon, the Koch brothers, Peabody Energy, and other individuals and businesses whose profits might suffer under rules to reduce

carbon pollution have had a vested interest in stopping climate action for decades.

That is why Congress still hasn't sent comprehensive climate legislation to the President. More than 50 years ago, in a special message to Congress on pollution, President Lyndon Johnson noted that ''the increase in carbon dioxide from the burning of fossil fuels has altered the composition of the global atmosphere.'' Since then, the scientific evidence and observation of climate changes already underway have continued to mount.

But even as the science has become overwhelming, climate policies have gotten trapped in a web of denial. During the last 2 days, we have heard many of my colleagues talk about the many strands of this web of denial. Like a real spiderweb, it is hard to see this web unless the light catches it in just the right way. So this evening I am going to shine a light on a few threads of this web.

At the heart of this web is denial. That is where you find the George C. Marshall Institute, whose attacks on the science of the so-called nuclear winter consequence of nuclear war and its opposition to the nuclear freeze movement expanded over the years to include anti-climate change efforts. The institute was named after the U.S. Army Chief of Staff during World War II who then became Secretary of State. He helped to rebuild Europe and won the Nobel Peace Prize for what is now called the Marshall Plan. Given Marshall's view of the need to address hunger, poverty, desperation, and chaos, it seems likely that if he were alive today, he would agree that national security experts see that climate change is a security threat to the United States. Marshall himself would likely support efforts like the Green Climate Fund to ensure that the poorest countries in the world have the resources necessary to overcome the challenges climate change pose to their economic development. He would likely support American leadership of global climate efforts to ensure that all countries are taking action to address climate change.

But the institute that carries the George Marshall name has countered international climate science and action every step of the way. When the Marshall Institute first expanded into environmental policy in the 1980s, the environment and climate change had bipartisan support. In the 1988 election, George Herbert Walker Bush pledged to meet the ''greenhouse effect with the White House effect.'' Increasingly, world scientists were raising concerns about carbon pollution. In 1990, the first assessment report of the Intergovernmental Panel on Climate Change, or IPCC, detailed what the fossil fuel companies already knew—that carbon pollution released from burning fossil fuels was causing the Earth to warm. The very business model of the fossil fuel industry was altering the planet. So while the scientific community was sounding the alarm, it has now been revealed that Big Oil and fossil fuel companies conspired to mute that alarm, and the Marshall Institute soon became a critical part of their climate denial web.

Mind you, we are not talking about the original George C. Marshall. He would have had no part of this. This is just the absconding of his name and having it placed above an institute—the Marshall Institute—which is now disseminating this bad science. That is what has happened.

In 1989, this Marshall Institute published a report on climate change casting doubt on the impact of carbon pollution and spinning a core component of the web of denial. As Washington insiders, the institute's report was read by the White House, shared by media outlets, and became a so-called side of a new public debate on climate change. The Marshall Institute turned debating climate change into a game, and the science became a political football. It was exactly what they wanted. By dividing climate science into sides, pitting each one against the other, they had found a foothold for doubt and a reason to delay climate action.

Still, the first Bush administration signed and the Senate ratified the historic United Nations Framework Convention on Climate Change in 1992. The goal of the treaty was to reduce atmospheric greenhouse gas emissions and prevent ''dangerous anthropogenic interference with Earth's climate system.'' But it took another 23 years, until 2015, for the countries of the world to agree on a global solution in Paris last December.

That 1989 Marshall Institute report, funded by the fossil fuel industry, was an especially sticky strand of this web of denial. Since then, the tactic of casting doubt on climate science has been used time and again by the Marshall Institute and other organizations to delay policies that could hurt the profits of oil, coal, and petro-polluters like the Kochs. This is what Senator WHITEHOUSE has led all of us in trying to bring out here to the Senate floor—that there is a web, and the web goes back to money, and that money is the profits that are made by the coal, the gas, and the oil industries. Those millions of dollars that the Marshall Institute has received from Exxon and the Koch-connected foundation over the years have allowed the web of denial to grow.

The Marshall Institute misinformation campaign doesn't just come in the form of reports. Their chairman, William Happer, has testified in front of Congress multiple times espousing climate denialism and perpetuating the self-serving interests of the fossil fuel industry and the Kochs. He may be an accomplished physicist, but Dr. Happer's views on climate science have been routinely debunked.

When I was chairman on the Select Committee on Energy Independence and Global Warming, in the House of Representatives, I heard Dr. Happer use the theatrics of a CO_2 meter as proof that climate change doesn't exist. He advocated for the government to support an ''alternative hypothesis'' and to support his alternative hypothesis, which was nothing more than the denial of climate change. Just last year, while the climate talks in Paris were underway, Dr. Happer testified before the Senate Commerce Committee, continuing to spread doubt. But this past May, William Happer was a signatory on a misleading, full-page ad in the New York Times. The ad, placed by another thread in the web of deceit, the Competitive Enterprise Institute, attacked the reasonable efforts of New York attorney general Eric Schneiderman and a coalition of other attorneys general united for clean power who are investigating more than 100 businesses, nonprofits, and private individuals to see if they misled the public about climate change.

But the Marshall Institute's efforts alone were not enough. So they helped form the cynically named Global Climate Coalition in 1989, shortly after the formation of the IPCC at the U.N. to fight climate change.

The Marshall Institute CEO, William O'Keefe, a former lobbyist for Exxon, chaired the coalition that included members of manufacturing, automotive, oil and gas, mining and chemical industries, and the U.S. Chamber of Commerce. They invested in denial and delay to allow business as usual to continue. But climate science and international climate efforts continued to advance after the UN Framework Convention on Climate Change came into force.

Of course, the fossil fuel coalition's concern continued to increase. As the IPCC worked on its second report in the early 1990s, it decided to include a chapter entitled Detection of Climate Change and Attribution of Causes. It became clear that the world's climate scientists were examining the considerable collection of climate observations and research to see what they could say about human influence on the climate.

So the Global Climate Coalition sprang into action to influence what the IPCC might say about the human influence on climate.

At a November 1995 session to finalize the text of the IPCC report, alongside Saudi Arabian and Kuwaiti representatives, the Global Climate Coalition weighed in heavily against the chapter focused on the detection and causes of climate change. After a flurry of negotiations and additional objections, the IPCC agreed that the amassed climate observations ''now point toward a discernable human influence on global climate.''

The world's climate scientists, the government representatives had now acknowledged that humans were altering the climate. So the calls for climate action got louder, and the effort

to extend the 1992 United Nations Framework Convention on Climate Change and draft what would become the Kyoto Protocol in 1997 increased. But in an effort to silence the calls to action, the investment in the web of denial grew.

The Global Climate Coalition spent more than $13 million opposing the Kyoto Protocol. Between 1994 and 1997, they spent $1 million every year downplaying the threat of climate change.

Ultimately, this broad coalition collapsed as their business interests and the impact of climate change on their profits changed. The Global Climate Coalition closed its doors in 2002, but the web of denial was already stretching to find new places to grow. Those threads have since expanded with the careful cultivation and collusion by the fossil fuel industry and the petrol polluters.

We know that the Koch brothers, Exxon, and other major donors have invested millions of dollars into organizations that actively work to discredit climate change and oppose climate legislation. Those organizations pressure elected officials to take increasingly extreme stances with specific reference and focus on the members of the Republican Party.

During President George W. Bush's first campaign in 2000, he promised to fight climate change by limiting greenhouse gas emissions. But in 2001, he pulled the United States out of the Kyoto Protocol. In 2005, his Vice President, Dick Cheney, helped pass an energy bill that included massive subsidies and tax breaks for the fossil fuel industry.

As recently as 2008, the Republican Presidential nominee, Senator JOHN MCCAIN, recognized the science of climate change and supported action. This was an era that has now passed. The web of denial has firmly trapped this issue in the Republican Party in such a way that no action is possible at all. But even in the face of the millions of dollars pumped into the denial machine, the House of Representatives was able to overcome it in 2009.

The Waxman-Markey bill passed the House just over 7 years ago. It was the only comprehensive climate change legislation ever to pass a Chamber of Congress. It has been reported that the oil and gas industry, including the Koch brothers and ExxonMobil, spent $175 million and hired more than 800 lobbyists in 2009 to kill the Waxman-Markey bill. Let me give those numbers again: $175 million and 800 lobbyists to kill a bill that would have put a clamp on the increase in greenhouse gas emissions in the United States.

They saw any action on climate, especially legislation, as a threat to their bottom line. But Members of the House knew better. They saw that Waxman-Markey was good for our environment, good for our economy, good for America. A Congressional budget analysis found that Waxman-Markey would have reduced the Federal deficit and cost the average American household less than 50 cents per day. An analysis of the American Council for an Energy Efficient Economy found that Americans would save about as much as CBO's cost estimates from energy efficiency policies in the bill that CBO did not take into account.

With an outstretched arm to lift them into the clean energy future, the bill included more than $200 million for the coal industry, $200 billion to capture carbon and to sequester it. Seven years ago, we gave the fossil fuel industry a choice: legislation or regulation.

But Exxon opposed the bill. The Koch brothers opposed the bill. Peabody coal opposed the bill, except for the parts that helped the coal industry. Rather than change their current business model, centered on pumping more CO_2 into the atmosphere, they fought attempts to change the law. Now, 7 years later, Peabody coal has filed for bankruptcy. We are continuing to untangle the Koch brothers' web of denial.

The Koch brothers have lied to the American people for decades about climate change. They have also lied to their own employees. When Waxman-Markey was being debated, the Koch Industries newsletter published an article attacking the climate change legislation and encouraging employees to check out specific Web sites for more information. The listed Web sites were funded by the Koch brothers. They sent their employees to other parts of the web of denial. When a Republican tries to stand up and publicly support climate action, the Koch brothers' ''spidy sense'' goes off and their web of denial springs into action. They mobilize, they target, they attack every Republican who stands against their business plan. Koch money floods primary campaigns to ensure that their self-serving lies trump in every election.

The oil and coal industry will not stop their efforts because now the presumptive nominee of the Republican Party is a climate denier. But their obstruction and climate denial tactics are as bogus as a degree from Trump University. Trump says he wants an ''all of the above'' energy agenda, but we know he is really running on an ''oil above all'' platform. But the Koch brothers are now bigger than the Republican Party.

The Kochs have built upon the tactics practiced by the tobacco industry generations ago in its campaign to discredit the science linking smoking with increased risks of lung cancer. The Kochs' goal is to discredit the science itself. How successful are they? Donald Trump has said that if he is President, he is going to abolish the Environmental Protection Agency of the United States—abolish it. I guess he assumes that Americans think that the air is too clean, the water is too clean, the soil is too clean, the rivers are too clean in the United States, and that we can afford to abolish the Environmental Protection Agency of our country.

This is the world that the Koch brothers have forgotten. Their mission has always been to create doubt across America on climate science. They fund attempts to counter the fact that climate change is a threat to our national security and to our public health. Their funding attempts to counter the fact that action to combat climate change is feasible and necessary and will create American jobs. They fund the web of denial to serve their own interests to make billions in profits at the expense of America's health, America's safety.

But for someone who is focused on protecting the poor and the vulnerable of this world—that person understands the threat presented by climate change. I have in my hand Pope Francis's encyclical on climate change, ''Laudato si','' subtitled ''On the Care for our Common Home.'' The Pope is a chemistry teacher. That is what he did before he became Pope. When he came to Washington, DC, last year, he spoke to Congress and delivered his sermon on the Hill. He said that the planet is dangerously warming and that the science is settled. He said that human beings are a significant contributor to the dangerous warming of the planet. He said that since humans are contributing to the problem, we have a moral obligation to do something about it.

When the rest of the world looked up, they saw red, white, and blue CO_2. Since the United States has historically been the largest contributor of carbon pollution, we must be the leader in working to reduce our own pollution.

As soon as the Pope spoke out urging action on climate change, the well-oiled climate denial machine shifted into high gear. The Acton Institute for the Study of Religion and Liberty is another strand of the web of denial. Between 1990 and 2014, the Acton Institute received millions from Donors Trust or Donors Capital Fund, the Koch-funded dark money ATM, as well as money from the Koch families and from Exxon.

Reverend Sirico, the founder and president of the Acton Institute, testified in front of the Senate Environment and Public Works Committee just last year. Reverend Sirico claims that the Catholic Church does not have expertise in science and should stick to matters of faith and morals. Well, here is the irony. A lack of expertise surely has not stopped Senate Republicans from blocking any and all climate change legislation.

Informed by the scientific evidence, the Pope made a clear moral case to act on climate and to act now. The Pope's comments came from the heart and from his belief in our ability to act collectively. It is just common sense that when you learn something is dangerous for you, for your health and for our Earth—and especially, as the Pope said to us, its impact on the poorest people on our planet, those who will be most severely harmed by climate

change—we have a moral obligation to stop that harm.

There is no doubt that fossil fuels forever changed our society, but pointing to the benefits from them does not take away the harm they cause or the urgency to transition to clean energy now. Many of those who oppose action on climate invoke the importance of preserving the free market.

As an example, consider the Lexington Institute, an organization funded by ExxonMobil and those pushing so-called free market solutions. The Lexington Institute—and may I add, the Lexington Institute is in Virginia; it is not in Lexington, MA, where the shot heard round the world was fired. No, this is just, again, absconding with a name and placing it upon an institution to try to give it the veneer of credibility. Of course, beneath the veneer is just more veneer. There is nothing. There is no science. There is nothing that backs up the arguments which they are making.

So the Lexington Institute claims that renewables need to be able to compete with fossil fuels without Federal subsidies, but the real truth is, the fossil fuel industry has never succeeded in the free market alone. Its success is built on more than a century's worth of tax breaks and subsidies.

The Lexington Institute sheds these crocodile tears about how much they care about the free market, but for 100 years they missed the fact that the oil, the coal, the gas, and the nuclear industries were all subsidized by the Federal Government. It is only when wind and solar show up that all of a sudden they become greatly concerned about the fact the free market is being distorted. Well, by giving tax breaks to wind and solar, of course, we are just making it a level playing field so they get the same kind of breaks all of these other industries have received for 100 or more years.

The subsidies for the fossil fuel industry top more than $7.5 billion annually. You got that? It is $7.5 billion per year. These tax breaks go back 100 years. Multiply that by 100, and then the crocodile tears start getting shed over something we do for wind or solar or fuel cells, biomass, geothermal?

There is no need for fossil fuel CEOs to come to Congress to justify the support for long-established subsidies, which they have always been getting. They do not even come up to defend it. They get it automatically—the extension of their tax breaks. The oil and gas industry have the Federal subsidies, coal has Federal subsidies, nuclear has Federal subsidies. What has happened every year, when we try to extend subsidies for renewable energy—for wind and solar—for even just 1 year, it is the end of the world as we know it in the capitalist system.

Just last year, the Koch brothers wrote a letter to every single Member of Congress urging them to oppose the tax breaks for wind and solar, and of course they cited ''the free market.'' Because even though billions of dollars in Federal subsidies have benefited their companies for years and years, they have never come up here to say: Oh, take them away. It makes my company feel unclean. Oh no, they took those billions every single year. It is only when wind and solar step up and say: Well, how about us? We are clean. We don't pollute. We are what the younger generation wants to see us investing in as the technologies of the 21st century. Then they get morally offended. Then their free market principles start to get offended.

So the Lexington Institute, citing the free market, has fought the extension of renewable tax credits for wind and solar, but unlike the battle of Lexington that started the American Revolution, this Lexington is trying to stop a renewables revolution. Economic growth and climate action go together. We can have a country with clean air and water and clean energy and a strong economy. History continues to prove that the benefits of environmental regulation are enormous and beyond just financial.

Recently, we have seen global economic growth hand in hand with no increase in energy-related carbon pollution. We are seeing GDP go up but not carbon pollution. And in Massachusetts, since the Regional Greenhouse Gas Initiative started in 2009—the real Lexington revolution, the one in Massachusetts—we have seen powerplant greenhouse gas emissions go down 34 percent while Massachusetts' gross domestic product increased 25 percent.

So we are left with a really simple question: Why do fossil fuel companies continue to get Federal subsidies, but we do not extend them to clean energy? The answer is this: Koch, Exxon, the Marshall Institute, the Global Climate Coalition, the Acton Institute, the Lexington Institute, and their partners in the web of denial. Millions of dollars are spent to deceive and to mislead all in the name of self-interest and profit.

The Global Climate Coalition collapsed more than a decade ago. The Marshall Institute broke up last year, and its climate denial arm morphed into the CO_2 Coalition. Exxon is now publicizing their support for a carbon tax that they began espousing in 2009. The American Petroleum Institute is reportedly rethinking its messaging on climate. The threads of the web of denial are breaking and weakening, and the more light we shine on it—especially light fueled by the power of the Sun—the sooner it will fall apart.

We are in the midst of a clean energy revolution. The United States has a massive reserve of untapped renewable energy. Our reserves are so massive that just a small fraction could power our entire country. The question is no longer if we can power our country with renewable energy, it is when and it is how. We will make the transition to 100 percent renewable energy before the year 2050 if we keep the right policies on the books, and I believe we are going to meet that goal.

In the last 10 years, we have seen a dramatic expansion of renewable energy in our country. Just as the Pilgrims harnessed the wind to sail across the ocean to Plymouth Rock, we too can power our economy. Our current capacity is 74,000 megawatts of wind, and we have 14,000 more megawatts of wind waiting now to be deployed in our country. U.S. solar capacity is now more than 27,000 megawatts. Over 25 percent of this capacity was added in 2015 alone. We are projected to double that capacity by the end of this year.

Megawatts are hard to understand. Simply put, by the end of this year, we should have enough wind and solar energy to power over 25 million homes. That is one-fifth of all American homes.

We must continue to untangle ourselves from the Koch brothers' web of denial sewn by lies and doubt. The science is overwhelming. Climate change is real. Carbon pollution is accelerating the warming, and right now American cities and towns are preparing for an uncertain future in a world with a changing climate and rising seas. While the Senate has yet to knock out all of these old cobwebs of climate denial that are holding back action, we know, if we focus on the future, we cannot continue to have these decisions of today be borne by generations yet to come.

We must focus on resiliency and clean energy and what we are going to do to leave the world better off for future generations. No matter what lies and information the climate deniers try to peddle, the facts are with us, the moral authority is with us, the economic opportunities are with us.

We have a chance to create a clean energy revolution that increases jobs as it cuts pollution. This is job creation that is good for all of creation. We must take the climate deniers and their fossil fuel funders to task for their obstinate, obdurate, oblivious opposition to the clean energy to battle climate change.

Here is where we are. By the end of 2016, there will be 400,000 people employed in the United States in the wind and solar industries and 65,000—65,000—coal miners. By the year 2020, at the current pace, there will be 600,000 people employed in the wind and solar industry.

Half of all new electricity on the planet last year came from renewable electricity. This is a revolution, and it is a revolution we cannot allow to be derailed because we will be employing people, giving them the jobs they want, which will make it possible for us to save this planet.

I thank the Senator from Rhode Island for organizing all of the Members over the last 2 days to come out on the floor to make this case about this web of denial, which is at the core of what has been blocking this Senate from taking the actions necessary to deploy the technologies, to create the jobs which can save the planet by deploying

these technologies all across the planet.

I thank the Senator from Rhode Island once again for his incredibly great and historic leadership, and I yield the floor.

The PRESIDING OFFICER (Mr. FLAKE). The Senator from Rhode Island.

Mr. WHITEHOUSE. Mr. President, it is an honor for me to follow Senator MARKEY, who has battled so long and so effectively in this struggle against such odds, and I think we both feel the tide has turned, things are going our way, but we have to hurry because nature is unforgiving. As the Pope said: God forgives, mankind forgives sometimes, but nature never forgives. You slap her and she will slap you back. And we have given nature one hell of a slap with climate change.

When I was here yesterday, I was pointing to the web of denial and pointing out that the web of denial has to mislead to be effective. That is what it is—a tool to mislead. I pointed out what a Koch brothers operative described as its goal when this whole web was being developed. This was the quote: ''It would be necessary [to] use ambiguous and misleading names, obscure the true agenda, and conceal the means of control.''

Well, if you are looking for ambiguous and misleading names that can obscure the true agenda and conceal the means of control, one tactic would be to exploit our Founding Fathers—to seize their names and use them to lend authority and gravitas to the deception, in the same way that using the names of Lord Acton, the famous historian, or George C. Marshall, the hero of World War II, accomplished that task. In this case, the names are Franklin, Madison, and Jefferson, and they are joined by the philosopher John Locke.

Let's start with the so-called Franklin Center for Government and Public Integrity, which has a nice little silhouette of Ben Franklin on its logo. It was established in 2009. It says it ''supports and trains investigative journalists to advance transparency, accountability, and fiscal responsibility in local government, and to spotlight free-market, pro-liberty solutions to difficult policy challenges.''

According to ''DeSmogBlog,'' the Franklin Center was launched and funded by a conservative think tank that encouraged grassroots activism, which is the now defunct Sam Adams Alliance.

Oh no, another bogus organization exploiting the name of yet another Founding Father. There is a little pattern here.

Jeff Nesbitt, whom I spoke about yesterday, wrote this about the Franklin Center in his book ''Poison Tea: How Big Oil and Big Tobacco Invented the Tea Party and Captured the GOP.''

At the start of 2008, the Franklin Center for Government and Public Integrity had a budget of zero dollars. Its legal home was a taffy shop in Medora, North Dakota. By 2009, the Franklin Center's budget had jumped to $2.4 million, according to IRS tax records. That is a spectacular leap for a nonprofit, especially in Medora, North Dakota. It was almost as if someone wished to utilize the charter concept of the Franklin Center, developing individual but interlinked news centers across the United States that would all promote the same messages—for other purposes and therefore infused it with a mountain of funding and network support.

Let's dig into the Franklin Center's connections to groups and funders in this web of denial.

According to ''DeSmogBlog,'' the Franklin Center's director of donor development comes out of the Charles G. Koch Foundation—wow. Its senior vice president in charge of strategic initiatives comes out of the Koch brothers' Americans for Prosperity. The founding board member who set it up helped run, oh, Americans for Prosperity in North Dakota. According to Media Matters for America, the Franklin Center's coalitions coordinator and its chief of staff also came out of, oh, Americans for Prosperity. Not surprisingly, the Pew Research Center's Project for Excellence in Journalism ranked the Franklin Center Watchdog.org group as ''highly ideological.'' It is clear they have a bias at the Franklin Center to sow doubt regarding human-caused climate change. It is no surprise, considering where their staff and money comes from.

Here is the stuff they say. In 2015, a vice president for research and resident scholar at the John Locke Foundation—more on them shortly—wrote in the Franklin Center-affiliated Carolina Journal that ''global warming is not about data points'' so much as it has been ''a trick pulled by global warming alarmists over the last decade.'' There is a responsible view.

In 2014, a staff reporter for the Franklin Center's Watchdog.org, wrote: ''I continue to contend that 'climate change' is a meaningless phrase because the climate obviously changes . . . [but] is useful for political activism. . . . ''

In 2011, its outlet, the Hawaii Reporter, wrote: ''Hard-nosed physical evidence of man-made global warming has yet to be provided by the promoters of warming, even after a nominal $80 billion have been spent in the attempt to do so.''

The Nieman Foundation for Journalism at Harvard has looked at the Franklin Center and describes it as ''at the forefront of an effort to blur the distinction between statehouse reporting and political advocacy.'' A former Reuters chief White House correspondent describes the Franklin Center's state Watchdog.org as ''delivering political propaganda dressed up as journalism.''

Let's follow the money. The Franklin Center's top donor in 2011, as reported by the nonprofit Media Matters for America and the Center for Public Integrity, was, guess what, the rightwing's ''dark money ATM,'' DonorsTrust. It was set up by whom? Oh, right, the Koch brothers. Over $6 million, or roughly 95 percent of the Franklin Center's revenue that year came through this organization, whose sole purpose is to hide the identity of the real donors. That is why it exists. According to data collected by the Conservative Transparency Project, between 2009 and 2014, the Franklin Center received over $31 million from DonorsTrust and its related Donors Capital Fund. We don't know who the hidden donors are because that is why they set up the DonorsTrust thing, but a clue of who they might be comes from the reported donors—like the rightwing Lynde and Harry Bradley Foundation, founded, according to the Center for Media and Democracy's SourceWatch, by ''one of the original charter members of the far rightwing John Birch Society.'' Another John Birch Society board member was Fred Koch, the father of Charles and David Koch. Dr. Brulle's research indicates that the Bradley Foundation between 2003 and 2010 gave almost $30 million to these organizations that he tracks in this web of denial—$30 million.

Then there is the Dunn's Foundation for the Advancement of Right Thinking, a Florida-based grant-making foundation that Dr. Brulle's research again shows between 2003 and 2010 gave $13.7 million into this web of denial organizations.

Then there is the Searle Freedom Trust, which, according to the Center for Media and Democracy's SourceWatch, has also funded Americans for Prosperity—guess what; the Koch group—the American Enterprise Institute, ALEC—the front group—the Heartland Institute—those classics who compared climate change believers to the Unabomber—and the State Policy Network. Dr. Brulle's research, again, indicates that Searle gave $21.7 million to this web of denial groups that he tracks.

Another donor, of course, to the Franklin Institute is the Charles G. Koch Charitable Foundation. That one is self-explanatory. So if we look at what is going on at the Franklin Center, we will see Koch people, Koch money, and Koch buddies.

Then there is the so-called James Madison Institute, a libertarian think tank with a long history of trying to undermine climate science and renewable energy policy. Yale Professor Justin Farrell lists the James Madison Institute among the organizations he tracks contributing to the polarization of climate change debate. The Heartland Institute's—yes, that wonderful Unabomber group—senior fellow for environmental policy is on the James Madison Institute's research advisory council. It is such a web of connections.

According to research by the American Bridge Project, the Madison Institute received over $1.4 million in direct donations from Koch-affiliated groups. Between 2003 and 2013, they received funding from the John Templeton

Foundation, which ''tries to encourage the integration of religious beliefs and free-market principles into the classroom,'' according to the Center for Media and Democracy's SourceWatch. Mother Jones reported in 2011 that Charles Koch recognized the Templeton Foundation for having donated over $1 million to Koch-related causes, and Dr. Brulle's research shows that Templeton gave more than $20 million to this web of denial organization he tracks.

Dunn's Foundation for the Advancement of Right Thinking turns up again—Franklin, now Madison. The same foundation that gave $13.7 million to these climate change countermovement organizations also gave to the Madison one.

Of course, again, the Lynde and Harry Bradley Foundation gave to the Franklin Center and gave to the Madison Center to the tune of almost $30 million into the climate denial web.

The James Madison Institute is also a member of the State Policy Network. The State Policy Network, according to the Center for Media and Democracy's SourceWatch, is an ''$83 million right-wing empire'' that has received money from a Koch family foundation, and, of course, the identity-scrubbing DonorsTrust and Donors Capital—which, by the way, are the big green diamond here at the center of this web.

According to the ''DeSmogBlog'' examination of the Madison Institute, it opposed the Waxman-Markey cap-and-trade legislation, and in 2009 issued a plea to policymakers in Florida—the State that is going fastest under water because of sea level rise—to stop any action on climate change following the so-called Climategate scandal. After six thorough investigations looked at Climategate, true, there was no scandal at all, but it would appear that the Institute neither rescinded its plea nor set the record straight.

This institute actively fights renewable energy policies in Florida. An institute report co-written by a senior fellow at the Heartland Institute—again, the connection, Madison Institute to Heartland Institute and Heartland Institute to the billboard that compared climate scientists to the Unabomber—opposed a proposed solar constitutional amendment. Well, they weren't alone. According to news reports, Florida's power companies were contributing big money to a political committee fighting that solar amendment, including over $1 million from Florida Power and Light, $1 million from Duke Energy, over $800,000 from Tampa Electric Company, and $640,000 from Gulf Power. Well, guess what. The president and CEO of Gulf Power was then on the board of, oh, the James Madison Institute.

Then we move on to John Locke, who gives us a twofer. First, there is the Locke Institute. It is named for the philosopher John Locke, who, with Montesquieu, are the two major philosophical influences of the Founding Fathers. It is listed as one of Dr. Justin Farrell's organizations contributing to the polarization of climate change debate and ''overtly producing and promoting skepticism and doubt about scientific consensus on climate change.''

The institute has been involved in defending the tobacco industry and has on its academic advisory council a political scientist from the Global Warming Policy Foundation, a high-profile UK climate denier group.

There is also a John Locke Foundation, which describes itself as ''an independent, non-profit think tank that would work for truth, for freedom, and for the future of North Carolina.'' It is one of the blue dots here on Professor Brulle's denial web diagram. Dr. Farrell, too, has the foundation on his list of climate change denier and countermovement organizations. Yes, it is a member of the Koch-funded State Policy Network, of course, and it is funded significantly by a North Carolina billionaire by the name of Art Pope, who, according to Indy Week, is ''one of the most trusted members of the Koch's elite circle: He has been a regular invitee to the Koch's secretive, semiannual gathering of the major right-wing donors and activists,'' and he is a ''valuable junior partner in many key Koch operations.''

The foundation center database shows that between 2003 and 2013, the John Locke Foundation received over $21 million from the John William Pope Foundation—which is named after Art Pope's father—and over $60,000 from the Charles Koch Foundation. It gets so cozy between everyone here. According to a 2014 Washington Post profile of Art Pope, he has poured over $30 million through his family's foundation into the Koch front group Americans for Prosperity—all of whose members, you remember, went over to the Franklin Institute. Professor Brulle has put the John William Pope Foundation at over $20 million of total foundation funding to this climate change denial web. Dr. Brulle cites the John Locke Foundation as having received 3 percent of the total income distributed within the climate change countermovement between 2003 and 2010.

An article in Facing South calls the John Locke Foundation ''one of the most outspoken voices of climate denial in North Carolina, claiming that global warming is a 'pseudoscientific fraud.''' According to research done by Greenpeace, the foundation stated in a 2005 policy brief that ''a greenhouse gas reduction policy would have only costs and no benefits.'' In 2005, the foundation released a public policy statement entitled ''Global Warming Policy: NC Should Do Nothing,'' whose author wrote similar climate denial pieces in the Franklin Center-affiliated Carolina Journal. It is hard to keep track of all these crisscrossings.

In 2007, the foundation released a policy report entitled ''A North Carolina Citizen's Guide to Global Warming,'' whose author, according to Facing South, was a visiting scholar at the, yes, Koch-backed American Enterprise Institute. This report falsely declared that consensus on climate change does not exist, and declared: ''The greatest threat we face from climate change is the danger of rushing into foolish and costly policies driven by ill-founded climate change hysteria.''

Art Pope figures in Jane Mayer's book ''Dark Money'' as ''a charter member of the Koch network'' and a ''longtime friend and ally, [who] shared Charles [Koch's] passion for free-market philosophy.'' Mayer writes that Pope was a regular at the Kochs' secret planning summits and ''served on the board of the Koch's main public advocacy group''—wait for it—''Americans for Prosperity, as he had on its predecessor, Citizens for a Sound Economy.'' Mayer adds: ''Pope's role in his home state of North Carolina was in many respects a state-sized version of the Kochs' role nationally.''

Other Locke Foundation funders identified by Conservative Transparency Project between 1995 and 2014 include the Searle Freedom Trust, which, according to Center for Media and Democracy's SourceWatch, has also funded, yes, Americans for Prosperity, and the American Enterprise Institute, and ALEC—which we have talked about and sponsors the State Policy Network—and, of course, we can't go without the Heartland Institute, with their wonderful Unabomber billboard.

Dr. Brulle's research indicates that the Searle Trust gave over $20 million to these groups between 2003 and 2010. Donors Capital Fund—this big spider at the center of the web here—is a donor to the John Locke Foundation, and, of course, the Charles G. Koch Charitable Foundation. The John Locke Foundation is a member of the State Policy Network, that ''$83 million right-wing empire'' funded by a Koch family foundation and the identity-launderers Donors Trust and Donors Capital.

That brings us to the so-called Thomas Jefferson Institute for Public Policy. By the way, it is fair to say that yet again when we move from Franklin to Madison, these foundations end up showing Koch people, Koch money, and Koch buddies. The Thomas Jefferson Institute is a public policy foundation and, yes, another member of the State Policy Network, the $83 million right-wing empire.

By the way, the Center for Media and Democracy's in-depth investigation of the State Policy Network shows how the network and its member think tanks are all interconnected to ALEC and to the Koch brothers. But that is for another speech.

According to ''DeSmogBlog,'' many of the Jefferson Institute studies are authored by an operative of the Heritage Foundation, the group that Senator FRANKEN spoke about earlier this evening, and the Energy and Environment Legal Institute—two groups that are both on this web.

The Thomas Jefferson Institute prominently displays a statue of Jefferson on its Web page and claims to be a nonpartisan supporter of ''environmental stewardship,'' but the institute is an outspoken critic of the President's Clean Power Plan and renewable sources of energy and actively sows doubt about climate science. The institute is right here on Professor Brulle's web of climate change countermovement organizations.

According to data compiled by the Conservative Transparency project between 1998 and 2014, the Jefferson Institute received funding from the following entities in the denial web: first, of course, is the identity-laundering Donors Trust and Donors Capital Fund. Then there is the Lynde and Harry Bradley Foundation, which, as we recall, also supported the Franklin Center and the Madison Institute and links to the Koch brothers through the farrightwing John Birch Society. Remember, they were at almost $30 million into climate denial organizations in those years between 2003 and 2010. And then there is the William E. Simon Foundation, whose current president is also a senior fellow at the rightwing Manhattan Institute, a member of the Grant Advisory Committee of the Searle Freedom Trust, and a past member of the Board of Overseers of the Hoover Institution. It is quite a web indeed.

The Jefferson Institute's director was quoted in 2007 as saying: ''When it comes to global warming, I'm a skeptic because the conclusions about the cause of the apparent warming stand on the shoulders of incredibly uncertain data and models.'' Tell that to NOAA and NASA and every single one of our National Labs and see how far you get. Tell that to your home State university and see how far you get.

In 2008, he wrote about climate change for the Jefferson Journal, a commentary forum of the Jefferson Institute, that ''greenhouse gas reduction goals . . . are both unachievable and irrelevant'' and assured ''there will be no climate catastrophe due to CO_2 because either the science is wrong or we will use geoengineering.''

In 2011, he wrote two pieces for the Jefferson Journal opposing wind power, contending that—you are not going to believe this, but here is the quote—''wind is not affordable and it is not clean'' and that wind power ''has no sensible place in a 21st century civilization.'' Tell that to our friend Senator GRASSLEY, whose State gets a third of its power from wind energy.

Franklin, Jefferson, Madison, Locke—these are great names put on the front of very shady Koch-funded front groups in the web of denial, and the organizations share several common features: First, they all propagate what by any reasonable standard is preposterous nonsense and masquerade it as science and independent opinion. Second, they all get massive funding from fossil fuel interests and always line up obediently with those interests. Third, they interlock. The interlocking is almost too complicated to track—in staff, in board members, in funding sources—but it all traces back to fossil fuel money. And, of course, they all mask themselves behind the names of great men from history who would recoil to discover their names and reputations being put to such discreditable use. Who needs to hide behind names like that? I submit it is people who are up to no good and don't want to be caught out for who they really are.

Let me conclude by thanking the many Senators who have participated in this effort to put a little bit of a spotlight on a very phony web of denial that is operating actively in our democracy to distort and disturb its proper operation and to sabotage America's ability to respond in a responsible way to the climate crisis. They include our leader HARRY REID, BEN CARDIN, CHRIS COONS, TIM KAINE, ELIZABETH WARREN, CHUCK SCHUMER, TOM UDALL, JEFF MERKLEY, BARBARA BOXER, DICK DURBIN, BRIAN SCHATZ, AL FRANKEN, MARTIN HEINRICH, my senior Senator JACK REED, JEANNE SHAHEEN, GARY PETERS, DICK BLUMENTHAL, and ED MARKEY. I am honored to participate in this effort with them.

With that, I yield the floor.

ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

The PRESIDING OFFICER. Under the previous order, the Senate stands adjourned until 9:30 a.m. tomorrow.

Thereupon, the Senate, at 8:27 p.m., adjourned until Wednesday, July 13, 2016, at 9:30 a.m.

CONFIRMATION

Executive nomination confirmed by the Senate July 12, 2016:

DEPARTMENT OF JUSTICE

CAROLE SCHWARTZ RENDON, OF OHIO, TO BE UNITED STATES ATTORNEY FOR THE NORTHERN DISTRICT OF OHIO FOR THE TERM OF FOUR YEARS.

EXTENSIONS OF REMARKS

HONORING THE LIFE OF LUIS DANIEL CONDE

HON. ALAN GRAYSON

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. GRAYSON. Mr. Speaker, I rise today to honor the life of Luis Daniel Conde of Haines City, Florida. Luis was a resident of my district whose life was cut short in the tragic shooting at Pulse nightclub on June 12, 2016, in Orlando.

Luis was a talented makeup artist and owned a beauty salon with his partner of 16 years, Juan Rivera Velazquez. Luis and Juan were partners in business and in life. They grew up in the same small town in Puerto Rico, and even attended the same school, Jose Campeche High School in San Lorenzo, Puerto Rico.

At their salon, Juan created hairstyles, while Luis—never the shy one—touched up clients' make-up and kept the techno music playing. Former clients and friends remember them as wonderful people who loved helping others and frequently provided their services free of charge to women who were victims of domestic violence. It was widely known that they loved people and lived to help others.

Luis Daniel was 39 years old. He died alongside Juan the night of the shooting.

Luis will never be forgotten in our pursuit of a more just and loving world. His memory and acts of kindness will live forever in the hearts and minds of those who knew him.

May his family, friends and relatives eventually find solace and comfort and may he rest in eternal peace.

CONGRATULATING THE TAHOE ENVIRONMENTAL RESEARCH CENTER ON ITS 10TH ANNIVERSARY

HON. JOHN GARAMENDI

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. GARAMENDI. Mr. Speaker, I rise to congratulate the Tahoe Environmental Research Center, or TERC, at the University of California Davis on its 10th anniversary. For the past decade, TERC has been a global leader in research, education and public outreach about the Lake Tahoe Basin and other similar systems across the world.

Their work has never been more urgent: Lake Tahoe is one of the most famous destinations in the United States, and draws millions of visitors from around the world for hiking, water sports, skiing, and so many other recreational activities. But increased development and a higher number of residents and tourists have damaged the environment of the Tahoe Basin and sharply reduced Lake Tahoe's world-renowned clarity. In fact, the lake has lost a third of its transparency over the past 30 years.

The University of California at Davis, whose campus is situated in my Congressional District, is no stranger to studying Lake Tahoe: 58 years ago, UC Davis pioneered conducting scientific research at Lake Tahoe, and was the first institution to sound the alarm about the damage being done to the Tahoe Basin's sensitive ecosystem. The work done by UC Davis and the Tahoe Environmental Research Center has been essential to keeping Tahoe blue.

Congratulations to the TERC on its 10th anniversary and all the work it has done to preserve the natural beauty and ecological diversity of the Tahoe Basin.

THE IMMORALITY OF INACTION: CONGRESS CANNOT REMAIN SILENT ON VOTING RIGHTS

HON. TERRI A. SEWELL

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Ms. SEWELL of Alabama. Mr. Speaker, I rise today on Restoration Tuesday to highlight and recognize the positive strides made by elected officials in support of equal voting rights.

Several states, including California, Connecticut, Illinois, Oregon and Vermont have passed laws establishing automatic voter registration. In these states across the country, when a citizen comes in contact with the DMV they are automatically registered to vote unless they actively decline. In April of this year, Gov. Terry McAuliffe of Virginia ordered voting rights restored to 206,000 ex-convicts in Virginia. This year, Virginia joined over 20 states that have helped diminish the stigma of disenfranchisement from citizens who have served their sentences and paid their debts to society.

These leaders faced harsh public criticism and were targeted by the media. These were not popular efforts.

Mr. Speaker, may I remind my fellow colleagues that we are not here for a popularity contest. We are here to serve the people of America. We are here to support democracy, justice, fairness and equality for all. We cannot and must not continue to sit idly by and do nothing. Last year, I introduced a bill, the Voting Rights Advancement Act of 2015 to answer the call the Supreme Court gave Congress in 2013 after the Shelby v. Holder ruling that called for for a modern day formula to determine federal enforcement. It has been three years since the Supreme Court ruling. It has been over a full year since I introduced the Voting Rights Advancement Act. Inaction on the cause of voting rights has now become ''business as usual'' and this cannot continue. We can no longer be afraid to lead and stand for what is right.

Dr. Martin Luther King Jr. said it best when he stated ''history will have to record that the greatest tragedy of this period of social transition was not the strident clamor of the bad people, but the appalling silence of the good people.''

The silence of Congress on the fundamental right to vote is no less than appalling. Political equality is good for everyone. What are we afraid of? Why do we continue to do nothing?

The flood of suppressive voting laws continue to flow from every corner of our country and the tide is only getting higher. Our silence only silences the voices and vote of the American people. We can and must do better.

FAA EXTENSION, SAFETY, AND SECURITY ACT OF 2016

SPEECH OF

HON. RICK LARSEN

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Monday, July 11, 2016

Mr. LARSEN of Washington. Mr. Speaker, I rise in support of this extension to reauthorize the Federal Aviation Administration (FAA). This measure is the product of dedicated bipartisan work. For that, I thank Chairman SHUSTER, Ranking Member DEFAZIO—and, from across the Capitol, Senator THUNE and Senator NELSON. I am pleased that we included some time-sensitive and safety- and security-critical measures in this legislation. Passing this extension is the right thing to do for the safety and security of the American traveling public.

In addition, I am pleased that the legislation directs the FAA to continue moving forward on safe integration of unmanned aircraft systems (UAS) and directs the Department of Transportation to move forward on a long-overdue rule to better assist disabled travelers.

However, there are many important bipartisan provisions that regrettably did not make the cut. I stand by my remarks regarding the first extension in September as well as the extension we passed in March. We did not have to go down this road.

Because of a desire to privatize the nation's air traffic control (ATC) system, some critical pieces of the legislation have been tied up.

We could have been here on the Floor today with a long-term reauthorization bill that took a comprehensive approach to addressing the pressing needs of the FAA, aviation safety and air travel. Mr. Speaker, if you ask 10 aviation stakeholders to identify the area of the FAA most in need of reform, I would venture to say most if not all 10 of them would say, ''certification.''

Both the House and Senate long-term FAA bills included far-reaching reforms to streamline the FAA certification process that would help U.S. manufacturers become more competitive, expand their global presence and create jobs in the United States.

The certification reforms that have bipartisan and bicameral support would have immediate benefits in my home state of Washington—where aviation manufacturing is a significant economic driver—as well as for the entire U.S. economy.

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

They would improve safety by permitting manufacturers to deliver newer and safer technology to the market more quickly.

Yet this legislation omits most of those reforms. That is a critical and unfortunate omission, in my view.

In addition, this legislation fails to synchronize flight attendant rest rules with pilot rest rules. Synchronizing these rules would enable flight attendants to receive the rest they need and further improve the safety and security of the flying public.

And while it falls outside the jurisdiction of the Transportation & Infrastructure Committee, I have serious concerns about expanding the look-back period to fifteen years for current and prospective airport employees.

I said back in February, when T&I marked up a controversial long-term FAA reauthorization, that I feared we were in for more serial extensions.

All Democrats and two Republicans voted against that bill because of its science experiment with air traffic control privatization. But the rest of the bill had strong bipartisan support, and instead of enacting another extension, we could be here to enact meaningful reforms that aviation stakeholders need.

So it is with disappointment that I am here to support a temporary extension.

HONORING MS. NANCY WATT

HON. MIKE THOMPSON

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. THOMPSON of California. Mr. Speaker, I rise today to honor Nancy Watt for her 19 years of public service with Napa County, California, including 12 years as the Napa County Executive Officer, as she moves onto the next stage of her career.

A native of Los Gatos, California, Ms. Watt earned her bachelor's degree from the University of Southern California, and then returned to the Bay Area and graduated with a Master's in Public Administration from Sonoma State University.

Ms. Watt began her career with Napa County as a Management Analyst in 1997, before becoming the Assistant County Administrator in 1999. Her success and leadership in these roles led to her appointment as County Executive Officer in 2004, making her the first woman to hold that position in Napa County.

Throughout her career, Ms. Watt has been an outstanding and inspiring public servant. As Executive Officer, she has led Napa County through challenging times including the Great Recession, the South Napa Earthquake, and the Valley Fire. Her integrity, keen judgment, and commitment to fairness kept the county moving and ensured its government met the needs of our community.

Mr. Speaker, Nancy Watt has dedicated nearly two decades to serving Napa County and has set an inspiring example of devoted public service. It is therefore fitting and proper that we honor her here today.

HONORING THE LIFE OF YILMARY RODRIGUEZ SOLIVAN

HON. ALAN GRAYSON

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. GRAYSON. Mr. Speaker, I rise today to honor the life of Yilmary Rodriguez Solivan, a resident of my district who lived in Kissimmee, Florida. Yilmary's life was cut short during the tragic shooting at Pulse nightclub in Orlando, June 12, 2016.

Yilmary was married to race-car driver Juan Borges and was a mother of two, including a three-month-old son, Sergio. She worked at a Wendy's in Puerto Rico before moving to Florida.

Yilmary was enjoying a night out at Pulse with her friend Jonathan Camuy and her brother-in-law, William Borges. The group decided to go to a gay club because they believed them to be safer after an incident at another club. Before a gunman opened fire, Yilmary had smiled into a camera, posing for a photo with her brother-in-law and friend. Jonathan died trying to protect his friend Yilmary. She was 24 years old.

Yilmary Rodriguez Solivan will never be forgotten in our pursuit of a more just and loving world. Her memory and acts of kindness will live forever in the hearts and minds of those who knew her.

May her family, relatives and friends eventually find solace and comfort, and may she rest in eternal peace.

40TH ANNIVERSARY OF THE WORLD ABSOLUTE SPEED RECORD SET BY THE SR–71

HON. AUSTIN SCOTT

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. AUSTIN SCOTT of Georgia. Mr. Speaker, I rise today to recognize the 40th anniversary of the World Absolute Speed Record flight by the Lockheed SR–71 'Blackbird,' one of the greatest achievements in aviation history. Even today, the 2,193 mph record set by the SR–71 'Blackbird' is still recognized by the World Air Sports Federation as the fastest humans have travelled during a sanctioned world record flight.

As the Representative from Georgia's Eighth Congressional District, I am deeply honored that a machine as magnificent as this aircraft rests alongside the Global Hawk and the U2 at the Museum of Aviation in Warner Robins, Georgia. The SR–71 'Blackbird' flew for the first time on December 22, 1964. This aircraft, which could fly faster than the speed of a bullet at altitudes greater than 80,000 feet, remained the fastest and highest flying aircraft for the duration of its thirty five year career. The SR–71 'Blackbird' served crucial roles in the areas of combat, reconnaissance, and research for the United States. Due to its unmatched speed, altitude, and state-of-the-art stealth capabilities, the SR–71 'Blackbird' was integral in providing strategic advantages during the Vietnam War, the Yom Kippur War, and the Cold War. It also enabled the United States to conduct vital surveillance missions over countries such as Libya, Lebanon, Yemen, North Korea, and China during periods of unrest.

I would like to thank the crew of the record breaking flight, Captain Eldon Joersz and Major George Morgan Jr., for their service to the United States and their role in marking the SR–71 'Blackbird's' place in history. I would also like to thank the Museum of Aviation in Warner Robins, Georgia for making it possible for visitors from around the country to see this great symbol of American innovation.

HONORING THE PUBLIC SERVICE OF MR. NEAL W. ALLEN, III

HON. CHELLIE PINGREE

OF MAINE

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Ms. PINGREE. Mr. Speaker, I rise today to recognize a dedicated public servant who has significantly contributed to Maine and our communities for more than forty years.

This July, Neal W. Allen will be retiring as the Executive Director of the Greater Portland Council of Governments after 18 years. In this role, he has led a regional planning organization that provides support to communities across Southern Maine around municipal services, transportation & land use, economic development, sustainability, housing, and many other issues that impact people in their daily lives.

At the Council of Governments, Mr. Allen led major initiatives around sound governance of the organization, along with the establishment of its Sustainability Principles. Those Principles opened new opportunities for the region, including a federal HUD Sustainability grant that involved more than 40 partners from Kittery to Brunswick. The Sustainability Principles also formed a basis for the Council's energy planning, electric vehicles initiatives, and designation in the U.S. Commerce Department's Investing in Manufacturing Communities Partnership.

Following service in the Coast Guard during the Vietnam era, Mr. Allen's career in Maine began in the 1970s, as an Assistant City Manager in Portland. Among other contributions to the City, he played a key role in establishing Portland's ambulance service, Medcu, the first of its kind in Maine. He then went on to serve the City through a variety of challenging issues as Acting City Manager and later, as the first Executive Director of the waste management organization that is now named Eco Maine. That program resulted in the closing of numerous open burning landfills and the establishment of a regional system for managing solid waste. Along the way, Mr. Allen served a Governor and U.S. Senator in various roles, and was the co-recipient, along with former Governor Joseph Brennan, of the State of Maine Award in 1983.

This is just a small sampling of the many ways that Neal Allen made our region better. This career is reflective of his commitment to public service and to the notion that practical, local collaboration can make a big difference in the daily lives of people in our communities. I doubt that this retirement will be the last word on his contributions to our community.

Mr. Speaker, I truly admire Mr. Allen for his long and devoted service to Maine, and would

like to thank him for the difference he has made in the lives of Mainers.

RECOGNIZING THE OUTSTANDING SERVICE OF SANDRA STROKOFF ON THE OCCASION OF HER RETIREMENT

HON. KEVIN BRADY

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. BRADY of Texas. Mr. Speaker, I rise today with my colleague Ranking Member LEVIN to recognize the service of Sandra Strokoff, an exceptional lawyer and public servant, on the occasion of her retirement from the United States House of Representatives Office of Legislative Counsel. After seven years leading the office as Legislative Counsel for the House of Representatives, and having spent over 40 years in that office, Ms. Strokoff has had a hand in drafting many significant bills in her distinguished career. It is safe to say that she has played a critical role in drafting every major piece of trade legislation over a period of decades, and she has done so with considerable legal skill, a keen eye for detail, commitment to excellence, and enormous patience. She has also worked hard to train many others in her office and on my staff, for which I am grateful. I ask my colleagues to join me in offering my sincerest thanks to Sandra for her invaluable service and dedication to the U.S. House of Representatives and our nation.

HONORING THE LIFE OF LUIS DANIEL WILSON-LEON

HON. ALAN GRAYSON

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. GRAYSON. Mr. Speaker, I rise today to honor the life of Luis Daniel Wilson-Leon, a resident of my district who resided in Orlando, Florida. Luis lost his life during the tragic shooting at Pulse nightclub in the early morning hours of June 12, 2016.

Luis, who was also known as Danny, liked to wear black and grow his sideburns long while growing up in his small town in Puerto Rico. He encountered many bullies, but never retaliated with hate. His friends and family remember his loving, positive energy and spoke of him as a protector and confidante. Danny moved to Vero Beach, Florida, on his own in 2004. Once there, he quickly learned English and landed a job at a shoe store. Danny earned a promotion to store manager, was dedicated to his work and attended church.

Danny eventually met the love of his life, Jean Carlos Mendez Perez, a salesperson at the shop, Perfumania. Their friends described the moment as ''love at first sight,'' and the beginning of their nine-year relationship. The two shared a home, frequented their favorite Hispanic restaurants and loved going to Latin Night at the Pulse club.

Luis Daniel and Jean Carlos died alongside one another that night in Orlando. Luis was 37 years old.

Luis will never be forgotten in our pursuit of a more just and loving world. His memory and acts of kindness will live forever in the hearts and minds of those who knew him.

May his family, relatives and friends eventually find solace and comfort, and may he rest in eternal peace.

IN RECOGNITION OF MR. JOHN M. QUEEN III

HON. MARK MEADOWS

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. MEADOWS. Mr. Speaker, I rise today to recognize John M. Queen III of Haywood County, North Carolina. On behalf of the people of Western North Carolina, I would like to thank Mr. Queen for his service to farmers in Haywood County and congratulate him on his induction into the Western North Carolina Agriculture Hall of Fame.

A fourth-generation cattle producer from Haywood County and owner of John Queen Farms, Mr. Queen's background includes experience in nearly every aspect of beef cattle management. He has been a strong promoter of his industry and has been president of both the North Carolina and National Cattlemen's Associations. As national president, he traveled throughout the country working with cattlemen to improve farm practices and worked in Washington, D.C. to advocate for the industry in Congress and at the White House.

Always a leader in the cattle market, Mr. Queen established the Southeast Livestock Exchange (SELEX), which holds auctions for producers across Georgia and the Carolinas and has become a major asset to the regional cattle industry. More recently, Mr. Queen has been instrumental in the success of the weekly market at the Western North Carolina Regional Livestock Center in Canton, N.C. Under his management, from its opening in 2011 through 2015, the market has sold over 82,000 head of livestock for more than $72 million and has had an economic impact of $110 million on the region.

Mr. Queen has served as a Haywood County Commissioner and director of the Haywood County Cattlemen's Association, and has been involved in the N.C. Farm Bureau, Southern Appalachian Highland Conservancy, and N.C. Beef Board. He has been recognized as a River Friendly Farmer and for his outstanding leadership in business in Haywood County. Mr. Queen remains an avid supporter of the regional FFA and 4–H programs, starting an FFA Heifer Chain and supporting the Junior Dairy Show.

John M. Queen III has had a substantial influence on the livestock industry not only in Western North Carolina but throughout our state and nation. He deserves our highest recognition and I am honored to express the sincere congratulations and best wishes of the people of North Carolina on his induction into the Western North Carolina Agriculture Hall of Fame.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $19,362,032,846,861.90. We've added $8,735,155,797,948.82 to our debt in 7 years. This is over $8.7 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

HELPING FAMILIES IN MENTAL HEALTH CRISIS ACT OF 2016

SPEECH OF

HON. TIM MURPHY

OF PENNSYLVANIA

IN THE HOUSE OF REPRESENTATIVES

Wednesday, July 6, 2016

Mr. MURPHY of Pennsylvania. Mr. Speaker, I would also like to thank Dr. Tony Mannarino, Dr. Harold Koplewicz, Dr. E. Fuller Torrey, Dr. Shannon Edwards, Dr. Alan Axelson, Dr. Michael Welner, Dr. Jeffrey Lieberman, Dr. Sally Satel, and DJ Jaffe for their helping and hard work on the Helping Families in Mental Health Crisis Act.

HONORING THE LEGACY AND CAREER OF DR. TONY ZEISS

HON. RICHARD HUDSON

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. HUDSON. Mr. Speaker, I rise today to honor Dr. Tony Zeiss for his 24 years of service at Central Piedmont Community College (CPCC).

Dr. Zeiss joined CPCC in 1992 and developed a vision and strategic plan that has made CPCC the nation's leader in workforce development. In fact, under the leadership of Dr. Zeiss, Central Piedmont has become one of North Carolina's largest and most successful community colleges. As the third president of Central Piedmont Community College, Dr. Zeiss grew the school from one campus to six and expanded its outreach efforts and class offerings. Currently, CPCC now serves over 70,000 students, approximately twice as many as it did when Dr. Zeiss started.

In these times of economic hardship, Central Piedmont Community College has consistently succeeded in training students to meet the demands of the 21st century job market. The ability of Dr. Zeiss to connect students with the needs of businesses cannot be understated, because his work has allowed students to prosper in difficult times.

An active member of many civic groups, Dr. Zeiss serves as an outstanding role model for both students and colleagues seeking to better themselves and their community. He has built a career of serving others and CPCC now reaps the benefits of his years of dedication.

Whether it is in his travels as a professional speaker, or found in one of the twenty books he has written, Dr. Zeiss' wisdom always captivates an audience and leaves a place better than he found it. That is exactly what he has done at CPCC.

Mr. Speaker, please join me today in honoring the career of a truly remarkable individual, and my friend, Dr. Tony Zeiss, for his service to Central Piedmont Community College and wishing he and his wife Beth well as they begin the next chapter of their lives in retirement.

HONORING THE LIFE OF RODOLFO AYALA-AYALA

HON. ALAN GRAYSON

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. GRAYSON. Mr. Speaker, I rise today to honor the life of Rodolfo Ayala-Ayala, a resident of my district who lived in Kissimmee, Florida. Rodolfo lost his life during the tragic shooting at Pulse nightclub in Orlando, in the early morning hours of June 12, 2016.

Rodolfo was a biologics supervisor at a blood donation center in Orlando. He would have been working the morning of the shooting helping the victims after thousands of people throughout Central Florida turned out to donate blood that day. Instead, he was one of the victims.

Rodolfo, who was also known as Rodney, had recently been promoted to platelet supervisor. A native of Puerto Rico, he was a skilled salsa dancer and loved all kinds of Latin music. His family and friends remember him as a compassionate man dedicated to his work. He was a prankster and could rock a bow tie. Rodolfo was a well-loved human being and had a bright future ahead of him. He was enjoying Latin Night at Pulse nightclub the morning of the shooting. He was 33 years old.

Rodolfo Ayala-Ayala will never be forgotten in our pursuit of a more just and loving world. His memory and acts of kindness will live forever in the hearts and minds of those who knew him.

May his family, relatives and friends eventually find solace and comfort, and may he rest in eternal peace.

FAA EXTENSION, SAFETY, AND SECURITY ACT OF 2016

SPEECH OF

HON. JOHN KATKO

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Monday, July 11, 2016

Mr. KATKO. Mr. Speaker, this bill provides needed stability for our nation's aviation programs, while giving lawmakers the time to come to a longer term FAA authorization.

The House has previously passed a number of needed aviation security bills that I have sponsored, and I'm pleased that three of those bills are included in this legislation.

These provisions include the TSA PreCheck Expansion Act, the Checkpoint Optimization and Efficiency Act, and my SAFE GATES legislation.

Together, these provisions will increase the number of travelers receiving expedited security screening, reduce airports wait times by making commonsense reforms to the way TSA operates, and enhance the security at overseas airports with direct flights to the United States.

The result will be greater efficiency, enhanced safety, and a reformed TSA that is better prepared to protect our transportation infrastructure.

In these trying times in which America faces a formidable threat from terrorists at home and abroad, it is critical that we act to secure our aviation sector from threats and mitigate attacks like those in Istanbul and Brussels.

Along with these attacks on airports, we have seen three—potentially four—passenger aircraft bombed by terrorists in recent months. Passing this legislation will help guard against such attacks against U.S.-bound aircraft.

I appreciate the tireless work of Chairman SHUSTER and Chairman THUNE in shepherding this critical extension of FAA's authority. I thank them and Chairman MCCAUL for advocating for my security provisions to be included.

RECOGNIZING CITI OPEN TENNIS TOURNAMENT

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Ms. NORTON. Mr. Speaker, I rise today to ask the House of Representatives to join me in recognizing the Citi Open Tennis Tournament, taking place July 16–24, 2016, in Rock Creek Park, and to recognize these dates as "Tennis Week" in the District of Columbia. All are invited to attend the 48th installment of this Washington tennis tradition, a cultural, economic, and community staple in the region.

The tennis tournament, now known as the Citi Open Tennis Tournament, was founded in 1969 by tennis legend and Hall of Famer Donald Dell, along with business partner John Harris, with the support of Arthur Ashe. Mr. Ashe declared he would participate in the inaugural tournament under two conditions: the tournament would take place in a naturally integrated neighborhood, and it would be played on public land where all people could come together, enjoy the sport, and share the experience. Today, the tournament remains in its original location on 16th & Kennedy Streets NW, in Rock Creek Park.

In 1972, Mr. Dell gave the tournament sanction to the Washington Tennis & Education Foundation (then called the Washington Area Tennis Patrons Foundation), a nonprofit organization supporting local education causes for over 1,200 low-income and underserved children.

The Citi Open Tennis Tournament draws the best players in the world, making D.C. a global tennis destination. The tournament is also seen on television in 182 countries. A 2015 economic impact study found that the estimated total gross impact of the Citi Open on the regional economy is more than $28.2 million. The tournament is the only Association of Tennis Professionals 500 level event in the United States, and it is one of only four professional tennis tournaments combining men's and women's events. It is also recognized as an international level tournament by the Women's Tennis Association.

Mr. Speaker, I ask the House of Representatives to join me in recognizing "Tennis Week in the District of Columbia" for the Citi Open Tennis Tournament, celebrated July 16–24.

AGA KHAN'S 59TH YEAR AS IMAM OF THE ISMAILI MUSLIMS

HON. PETE OLSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. OLSON. Mr. Speaker, I am proud to represent one of the most diverse districts in all of America. Our diversity is part of what makes the greater Houston area a strong example of the melting pot that comprises this great nation.

I appreciate the Ismaili community's engagement with the broader community—in culture, business, education, and civic affairs. The Ismaili community provides important contributions to our community and we appreciate all that you do to embrace Texas and America as your home.

Today, I would like to acknowledge a special anniversary for the Ismaili community. On July 11th, the Aga Khan will celebrate 59 years as Imam of the Ismaili Muslims. The role of the Imam is both to interpret the faith to the community, and also to do all he can to improve the quality and security of their daily lives.

The Aga Khan emphasizes the view of the religion of Islam as a thinking, spiritual faith: one that teaches compassion and tolerance, promotes the role of the intellect and upholds the dignity of man, God's noblest creation.

I congratulate the Aga Khan on his 59th year as Imam and wish him and the Ismaili Muslim community in the United States every success in their continued efforts to improve the lives of people around the world.

PERSONAL EXPLANATION

HON. MIKE POMPEO

OF KANSAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. POMPEO. Mr. Speaker, on roll call no. 401, 402, 403, I was unable to cast my vote in person due to a previously scheduled engagement.

Had I been present, I would have voted "Yea."

HONORING THE 100TH BIRTHDAY OF GEORGE ROSENKRANZ, PH.D.

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Ms. ESHOO. Mr. Speaker, I rise to honor the extraordinary life and work of George Rosenkranz, Ph.D., who celebrates his 100th birthday on August 20, 2016.

Dr. George Rosenkranz has made significant contributions to the vitality of scientific research in our nation, helping build the foundation of many important life sciences companies, including Syntex, Alza, Dynax, Affymax, Affymetrix and Zoecon.

George Rosenkranz was born in Hungary on August 20, 1916. He earned his Ph.D. in 1940 and in 1941 left Europe for Cuba. He married Edith Rosenkranz in 1945 and together they moved to Mexico City where he founded Syntex. The U.S. headquarters were opened in Palo Alto, California, in the early 1960s. Dr. Rosenkranz served as President, Chairman and CEO of Syntex until his retirement in 1981, and served as Founding Chairman of the Board until Syntex was acquired by Roche in 1995. In addition to the birth control pill, Syntex made many scientific discoveries including Lidex, Naprosyn, Toradol, Cellcept, Cytovene, and others.

Dr. Rosenkranz holds multiple patents and has authored more than 200 scientific publications. He has been honored with the Biotechnology Heritage Award, the Winthrop-Sears Medal, the Condecoracion Eduardo Liceaga, and many others.

He has given generously of his time, resources and considerable talents through philanthropy in the fields of scientific research at Stanford University, in Mexico and Israel.

Mr. Speaker, I ask the entire House of Representatives to join me in wishing Dr. George Rosenkranz a joyous centennial celebration, surrounded by the love of his family. He is a national treasure and because of Dr. Rosenkranz and his great work we are a stronger, better nation, and a healthier world.

HONORING THE LIFE OF SIMON ADRIAN CARRILLO FERNANDEZ

HON. ALAN GRAYSON

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. GRAYSON. Mr. Speaker, I rise today to honor the life of Simon Adrian Carrillo Fernandez of Kissimmee, Florida, a resident of my district who lost his life on June 12, 2016, during the tragic shooting at Pulse nightclub in Orlando.

Simon Fernandez came to the United States from Venezuela a decade ago. He was an accounting student and worked as a manager at a local McDonalds. His colleagues admired his attention to detail and leadership style. He never forgot a co-worker's birthday and would always bring a cake to celebrate the occasion. He took great pride in his career.

Simon and his partner, Oscar Aracena, purchased a home last year where they lived together with their three lovely Chihuahuas. They enjoyed traveling together, dancing, riding their bikes and going water skiing.

Simon and Oscar had been vacationing in Canada and New York earlier the week before the tragedy. Friends enjoyed seeing their photos posted online from their stop in Niagara Falls. The couple had just returned to Orlando earlier in the day before heading out with friends to Latin Night at the Pulse club on the night of the attack.

The two died alongside one another at the club. Simon was 31 years old.

Simon Adrian Carrillo Fernandez will never be forgotten in our pursuit of a more just and loving world. His memory and acts of kindness will live forever in the hearts and minds of those who knew him.

May his family, relatives and friends eventually find solace and comfort, and may he rest in eternal peace.

H.R. 5456

HON. VERN BUCHANAN

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. BUCHANAN. Mr. Speaker, I submit the following extraneous materials on H.R. 5456, the Family First Prevention Services Act of 2016:

GENERATIONS UNITED,
Washington, DC, June 13, 2016.

GENERATIONS UNITED'S STATEMENT SUPPORTING THE FAMILY FIRST PREVENTION SERVICES ACT

Generations United commends House and Senate leaders on the proposed bipartisan, bicameral Family First Prevention Services Act. This groundbreaking legislation takes the bold step to redirect federal funding to support evidence-based, upfront prevention services, making them available to the approximately 2.5 million children whose grandparents or other relatives step in to care for them, keeping them out of foster care and with family.

Children raised by relatives experience increased stability, and greater safety and permanency and better behavioral and mental health outcomes than children living with non-relatives. Yet, grandparents or other relatives often take on the care of children with little or no warning. These relatives face unique challenges finding information about resources, policies and services to help them navigate their new role providing full time care for children.

Supports offered through the Family First Prevention Services Act such as individual and family therapy, home visiting and kinship navigator programs can offer relatives the support they need to keep children out of foster care and help them thrive.

The proposed legislation will benefit children in grandfamilies by:

Providing a partial federal match to states offering evidence-based Kinship Navigator programs.

Allowing states to use federal funds to support 12 months of prevention services to keep children from needing to enter foster care, including families where a relative is caring for a child.

Addressing barriers to licensure for relatives through the promotion of model family foster care licensing standards with a focus on ensuring states promote placements with family members.

Reducing the amount of time foster children wait to be adopted or placed with relatives across state lines by encouraging states to replace their outdated child placement systems with a more efficient electronic system.

Ensuring more foster children are placed with families by ending federal reimbursement when states inappropriately place children in non-family settings.

Promoting permanency for children by extending adoption and legal guardianship incentive payments.

The proposed bill also reauthorizes the Regional Partnership Grant Program, which provides funding to state and local evidence-based services aimed at preventing child abuse and child neglect due to parental substance abuse, and it extends existing child welfare services for five years through the Promoting Safe and Stable Families Program.

This trailblazing child welfare legislation stops short of providing important short-term financial assistance to relatives, as included in previous proposals. Relative caregivers are often retired, living on fixed incomes and unprepared to take on the expense of children who come into their care with no chance to plan in advance. Research shows that caregivers in grandfamilies are experienced and savvy financial managers who forgo their own financial needs and dreams to care for children. They often simply lack the needed resources. Generations United looks forward to working with Members of Congress who are championing federal and state solutions to address these ongoing financial challenges.

STATE OF UTAH,
OFFICE OF THE GOVERNOR,
Salt Lake City, UT, June 13, 2016.

Hon. ORRIN HATCH,
U.S. Senator,
Washington, DC.

DEAR SENATOR HATCH: I write to express my support for the Family First Prevention Service Act of 2016. It is encouraging when Congress recognizes and reinforces the value of safe, strong, and thriving families. This state-federal partnership for children at risk of abuse or neglect requires our most concerted efforts at delivering real solutions.

The act reinforces the positive outcomes of Utah's experience with evidence-based prevention. Since receiving a federal demonstration waiver in 2014, we have been able to put into practice the very elements of in-home family support services, featured in the Family First Prevention Service Act.

You know of my strong belief that states are the laboratories of democracy, and Utah's child welfare work reflects this. Today, we have the experience to know that when children are brought to our child welfare system, their complex circumstances often involve mental health needs, unaddressed substance use disorders, and a lack of positive parenting role models for the parents themselves.

As Utah has responded with services that address these challenges, we see the positive outcomes of keeping children safe with their families. Every child wants a loving home, and the Family First Prevention Service Act will strengthen states' ability to fulfill that expectation.

Thank you for your commitment to our families and for your service to our country.

Sincerely,

GARY R. HERBERT,
Governor.

DEPARTMENT OF
CHILDREN & FAMILY SERVICES,
Baton Rouge, LA, June 14, 2016.

Re Family First Prevention Service Act 2016

Hon. CHARLES W. BOUSTANY, JR. MD,
House of Representatives,
Washington, DC.

DEAR CONGRESSMAN BOUSTANY: As Secretary of the Louisiana Department of Children and Family Services (DCFS), I would like to express my support for the Family First Prevention Service Act of 2016. This legislation is critical for the families of Louisiana and our most vulnerable population of children at risk of abuse or neglect. Your support for this bill will assist DCFS in safely strengthening families by keeping children out of foster care and reduce the costs of ineffective group home settings. The Family First Prevention Service Act reinforces positive outcomes with evidence-based prevention.

DCFS believes every child wants a loving home and the Family First Prevention Service Act will assist DCFS' ability to fulfill that expectation. Thank you for your commitment to Louisiana's families and your service to our country.

Sincerely,

MARKETA GARNER WALTERS,
Secretary.

NATIONAL ASSOCIATION FOR CHILDREN'S BEHAVIORAL HEALTH,
June 17, 2016.

Hon. KEVIN BRADY,
Chairman, Committee on Ways and Means, Washington, DC.
Hon. SANDY LEVIN,
Ranking Member, Committee on Ways and Means, Washington, DC.

DEAR CHAIRMAN BRADY AND RANKING MEMBER LEVIN: On behalf of the National Association for Children's Behavioral Health (NACBH), we would like to take this opportunity to offer our support for the Family First Prevention Services Act of 2016. We would like to thank you for your leadership in bringing about much needed reform to the very complex and dysfunctional system of care for some of our nation's most vulnerable children and families. As an organization representing mental health and child welfare providers across the country, we understand the challenges faced by our child welfare systems.

Specifically, we applaud the Act for enabling federal IV–E and IV–B funds to be used, for the first time, to offer prevention-based services in hopes that fewer at-risk children will be removed from their families and instead offered supportive services in their homes and communities. The Act's focus on providing increased access to mental health services is a tremendous step forward in addressing the underlying issues that often lead families to enter the child welfare system.

Upon passage of this bill, we look forward to the opportunity to work with Congress and the Administration to address some of the additional complexities of the bill. The ambiguity regarding the payment structures involved in ensuring the necessary treatment services specified in the bill require needed clarity. Our concerns specifically relate to the payment for the required assessments and ensuing mental health and health care services determined to be needed for children and adolescents in qualified residential treatment programs (QRTP).

We appreciate the time and attention to the issues addressed in this bill. We look forward to working with you for continued improvement and system development.

Sincerely,

PATRICIA JOHNSTON,
Executive Director.

RECOGNIZING LIEUTENANT COLONEL MICHELLE M. WILLIAMS

HON. ROBERT B. ADERHOLT

OF ALABAMA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. ADERHOLT. Mr. Speaker, I would like to recognize and pay tribute to Lieutenant Colonel Michelle M. Williams for her exemplary dedication to duty and service to the United States Army and to the United States of America. Lieutenant Colonel Williams has served for the last two years as a Congressional Budget Liaison for the Secretary of the Army.

A native of St. Louis, Missouri, Lieutenant Colonel Williams was commissioned from the ROTC program at the Florida Institute of Technology, where she received a Bachelor's degree in Business Administration. While there, Michelle received her airborne wings. She was commissioned as a Finance Officer in 1999. As a junior officer, she deployed to Bosnia where she served as a cash control officer, responsible for the distribution of over $1 million in cash, cash documents and equipment to Multinational Division-North in support of Operation Joint Forge. She also served as a Finance Detachment Commander in Iraq, where she led her troops through hundreds of missions across Baghdad and through the risky Sunni-Triangle area of operations. Her unit disbursed over $1 billion dollars. Michelle also served in several other organizations, as a resource manager in the Joint Chiefs of Staff J8, and as a budget officer in the Pentagon before being promoted to Major.

As a Field-Grade Officer, Michelle served as a Deputy Comptroller for United States Southern Command where she established herself as the lead and technical expert when deploying the Army's new Financial Management system, GFEBS at SOUTHCOM. She deployed again as the Budget Officer for United States Army Central Command in Arifjan, Kuwait where she was responsible for obligations exceeding $1 billion and eliminated inefficient processes while improving audit readiness and preventing duplicate payments.

In 2014, Michelle returned to the Pentagon as an Army Budget Liaison, where she was of great assistance to many Members of Congress and their staffs. Lieutenant Colonel Williams facilitated many briefings from Army officials here on Capitol Hill. In addition, Michelle managed a portfolio that included the Army's Operations and Maintenance account, the Working Capital Fund, and activity at the Depots that support the Army, a significant portion of Alabama's contribution to our Nation's defense.

Mr. Speaker, on behalf of a grateful nation, I ask you and my colleagues to join me in commending Lieutenant Colonel Williams for her service to our great Nation. Michelle's leadership throughout her career has positively impacted her soldiers, peers, and superiors. We wish Michelle and her husband Jeff Pashai all the best as they continue to serve the nation in her next assignment as the Division G8 at Fort Carson, Colorado.

CONGRATULATING MAGGIE SMITH, ILLINOIS CHAMPION OF THE HEALTHY LUNCHTIME CHALLENGE

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mrs. BUSTOS. Mr. Speaker, I rise today to congratulate Maggie Smith, the Illinois Champion of First Lady Michelle Obama's Healthy Lunchtime Challenge. The First Lady invited children from across the nation to submit their original ideas for healthy, affordable recipes, and selected one winner from every state to visit the White House for the Kid's State Dinner.

Maggie, an 11 year old from Peoria, Illinois, became interested in cooking when she was just 9 years old. Since then, she's been cooking her family dinner once a week, inspired by her parent's emphasis on the need for healthy eating. After spending a lot of time crafting and perfecting her dish, Maggie's winning recipe is "West Wing Chicken with Secret Service Noodles." The dish features breaded chicken with homemade marinara sauce, served with zucchini and squash noodles.

I am so proud of Maggie for her hard work and dedication to promoting healthy eating, and I wish her success in her future culinary endeavors.

HONORING THE LIFE OF OSCAR ARACENA-MONTERO

HON. ALAN GRAYSON

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. GRAYSON. Mr. Speaker, I rise today to honor the life of Oscar Aracena-Montero who was a resident of my district and lived in Kissimmee, Florida. Oscar's life was cut short in the early hours of June 12, 2016, during the tragic shooting at Pulse nightclub in Orlando.

Oscar was a business management student and worked as an assistant restaurant manager. He moved from the Dominican Republic with his father as a child and grew up in Central Florida. His friends describe him as a sweet guy who was the type of person who gets along with anybody. They remember him as a charismatic person who always looked on the bright side of things.

Oscar was excited about the prospects of a career after completing his college degree. He and his partner, Simon Fernandez, purchased a home last year where they lived together with their three lovely Chihuahuas. They enjoyed traveling together, dancing, riding their bikes and going water skiing.

Oscar and Simon had been vacationing in Canada and New York the week before the tragedy. Friends enjoyed seeing their photos posted online from their stop in Niagra Falls. The couple had just returned to Orlando earlier in the day before heading out with friends to Latin Night at the Pulse club on the night of the attack.

The two died alongside one another at the club. Oscar was 26 years old.

Oscar Aracena-Montero will never be forgotten in our pursuit of a more just and loving world. His memory and acts of kindness will live forever in the hearts and minds of those who knew him.

May his family, relatives and friends eventually find solace and comfort, and may he rest in eternal peace.

COMMENDING NOEL "CHRISTY" NOLTA FOR HER SERVICE TO OUR COUNTRY

HON. GWEN GRAHAM

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Ms. GRAHAM. Mr. Speaker, I rise today to recognize Ms. Noel "Christy" Nolta on the occasion of her recent selection as Deputy Director of Staff for the Chief of Staff of the Air

Force. Ms. Nolta has excelled in both civilian service and as a colonel in the Air Force Reserve. Most recently, Ms. Nolta served as Deputy Director of Legislative Liaison for the Office of the Secretary of the Air Force. She also excelled in her reserve duty as Mobilization Assistant to the Chief of Public Affairs for the Secretary of the Air Force.

Ms. Nolta has given much to this Nation through her dedicated and selfless service. After graduation from her dream school—Virginia Tech—she answered the calling to join the Air Force and departed for Hahn Air Base in Germany. She started her career as an adjutant in a fighter squadron, was quickly recognized for her talent, and selected to serve as the 50th Tactical Wing Executive Officer. Her dedication and skills landed her in the 513th Airborne Command and Control Wing at Royal Air Force Mildenhall, England as a Command Post Controller and then Tactical Deception Plans Officer.

Identified as an excellent officer, Christy was handpicked to train new accessions as an instructor at the Officer Training School at Lackland Air Force Base, Texas. It was during this assignment that Christy decided to continue to serve her country by transitioning into the Air Force Reserve. Her husband, Mike, was serving on active duty and Christy accompanied him on his assignments, continuing to balance motherhood, home, civilian, and reserve careers. After completing a five year extended active duty tour working for the Secretary of the Air Force, she decided to serve as an Air Force civilian as well as in the Air Force Reserve. She moved up the ranks within the Air Force Office of Communication, then later in Public Affairs.

In 2014, her incredible communications skills were put to good use when Christy became the Deputy Director in the Legislative Liaison Office and we all got to benefit from her hard work. Happily, on the military side, she kept one foot in the Public Affairs Office as a colonel serving as the mobilization assistant to the director. That combination served her brilliantly.

As Deputy Director of Legislative Liaison for the Office of the Secretary of the Air Force, Christy supported Air Force leadership by engaging Congress on programs and weapon systems authorizations, constituent inquiries, and other congressional interests. Among some of her more notable accomplishments during her tenure as Deputy Director, Christy prepared the Air Force team for confirmation hearing for the Air Force Under Secretary and currently is working the confirmation hearing for the proposed next Chief of Staff of the Air Force. She also supported more than 1,000 Air Force senior leader visits to the Hill as well as over 400 wing commander Hill visits, more than 253 congressional delegation and congressional staff trips, over 200 congressional hearings, answering 7,474 constituent inquiries, and countless other Air Force Hill engagements.

Not only is Christy admired and respected within the Air Force, she is a role model to young women of all ages. Recently the Girl Scouts honored her with these sentiments, ''For caring, guiding, and helping Girls Scouts through the years and for being a good role model for girls around the world—May 2015.''

Christy's family service runs deep. Her father was career Army, her husband is retired Air Force, and two of their three children have graduated from the United States Air Force Academy. Their third child became a Hokie like her mother and father, graduating from Virginia Tech.

In July, Colonel Nolta will retire from the Air Force Reserve with 30 years of faithful service in uniform. She will continue serving the Air Force in her civilian capacity. Today, I would like to wish Ms. Noel ''Christy'' Nolta good luck and Godspeed in her next assignment as the Deputy Director of Staff for the Chief of Staff of the Air Force.

Mr. Speaker, on behalf of the Congress and the United States of America, I thank Christy and her family for their unwavering service to the nation, and look forward to their continued success.

FAA EXTENSION, SAFETY, AND SECURITY ACT OF 2016

SPEECH OF

HON. DANIEL LIPINSKI

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Monday, July 11, 2016

Mr. LIPINSKI. Mr. Speaker, five years ago we were in a similar situation with an FAA authorization coming to an end in the middle of the summer. That time we failed to act, causing the shutdown of the FAA. So while I wish we were doing more than this extension bill today, I am happy that we are not going to let a shutdown happen again.

Considering that this is only a short-term extension, this bill contains a number of good policy changes. The enhanced consumer protection measures, improvements in aviation security, and protections for general aviation pilots that are included are all the result of bipartisan cooperation. Third class medical reform is a long overdue victory for pilots. It is commonsense policy that will protect pilots' rights and promote the general aviation industry.

I have worked over the past year to ensure airline passengers are treated with fairness and respect. Simply put, if you pay for a service, you should get that service promptly or get your money back. During consideration of the House's FAA bill, I was a strong advocate for requiring that fees be refunded for baggage that was lost and delayed. While this bill does not go as far as I would have liked, it does require that passengers who don't get their luggage on time get their fee returned.

In addition, this bill works to minimize travelers' frustrations while simultaneously enhancing aviation security by expanding access to TSA PreCheck and optimizing the TSA workforce to improve long lines at security checkpoints. The bill will also make air travel more accessible for persons with disabilities, and will create a set of accessibility best practices for air carriers.

My main disappointment in this extension comes from the fact that a number of important, bipartisan priorities were not included even though they had been worked out in the bill that came through our committee earlier this year. Since work began to reauthorize the 2012 FAA bill, I have worked continuously to reform the aircraft certification process and was the lead Democratic cosponsor of the Small Airplane Revitalization Act in 2013. Streamlining the certification process will accelerate getting products to market, ultimately strengthening job growth and stimulating economic activity. Aviation is an increasingly global marketplace. To compete in this arena, domestic manufacturers must certify their product with the FAA which often takes longer than is necessary. Then they have to work to facilitate acceptance of the equipment by the buyer's respective aviation authority. In recent years, American manufacturers have encountered significant delays during this process. These delays have serious economic consequences for the small and medium sized businesses that make up the multi-billion-dollar aviation supply chain.

The certification titles in the House and Senate FAA reauthorization bills are the product of bipartisan work of the committees and outreach to stakeholders. They address the current inefficiencies by driving certification and regulatory changes, requiring that the FAA be more closely involved in foreign markets, helping to gain expedited acceptance and validation of U.S. products and safety standards, and ultimately better utilizing scarce resources at the FAA and within the industry to enhance productivity. They not only advance safety, but also benefit our economy. We must ensure that the high tech U.S. manufacturing industry, and the skilled workforce it employs, are able to compete in the face of growing global competition.

So I was frustrated to learn that these bipartisan provisions, which directly translate to tangible economic benefits across the entire industry, were not included in this extension. The aviation industry needs stability to confidently allocate resources, make investments, and plan for the future. They rely on Congress to consistently provide that authority to the FAA. While I'm disappointed that these key priorities were not included, I hope that we can work quickly to find a way to pass the aircraft certification provisions in the near term.

Finally, there is a provision that was included that I have concerns about. This bill expands the look-back period for background checks and the list of offenses that would disqualify an individual from eligibility to work at an airport. We need to do all we can to increase security at airports. But I am deeply concerned that this provision was added into the extension outside the jurisdiction of the Transportation and Infrastructure Committee seemingly at the last minute and without explanation or consultation with House Members.

Mr. Speaker, on the whole, this is a good bill. But much remains to be done. I hope that in the coming months we can continue working to pass a comprehensive long term FAA reauthorization to maintain America's leadership in the global aviation industry.

RECOGNIZING STAFF SERGEANT EDWARD ANDERSON

HON. SEAN P. DUFFY

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. DUFFY. Mr. Speaker, I proudly rise today to honor Staff Sergeant Edward Anderson, an Army veteran of World War II who survived four months as a prisoner of war.

Staff Sergeant Anderson entered his service in the Army and served in the 28th Division of

Pennsylvania. After six weeks of basic training, he was shipped overseas on the North Atlantic Convoy. On December 18, 1944, Staff Sergeant Anderson was captured as a prisoner of war by German forces in Krinklet. During his time as a POW, he endured a forced march of over 105 miles in freezing conditions with little to no rest or food while being moved to different camps.

During his confinement at Stalag VIIA, he was exposed to harsh weather conditions and nutritional deficiencies. Staff Sergeant Anderson was finally freed in April 1945. When asked why many of the POWs of the camp survived, he explained, ''we were all young, mentally tough, and in relatively good shape. We had a lot to live for.''

After his service in the Army, Staff Sergeant Anderson returned to his home in Wisconsin. Family life was and still is very important to him. He spent time regularly attending church with his wife and two children, going to stock car races, and enjoyed time gardening, fishing, and hunting.

On behalf of the residents of Wisconsin's 7th Congressional District, I would like to thank Staff Sergeant Anderson for his time serving our nation during World War II and for the resilience he showed during the most dreadful times.

RECOGNIZING THE 125TH ANNIVERSARY OF THE SARANAC LAKE FIRE DEPARTMENT

HON. ELISE M. STEFANIK

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Ms. STEFANIK. Mr. Speaker, I rise today to honor and recognize the 125th Anniversary of the Saranac Lake Fire Department in Franklin County, New York. The Saranac Lake Fire Department prides itself on saving the lives and property of those who it has served since 1891.

Before 1891, two competing hose companies fought the fires of Saranac Lake separately. However, realizing that the community would benefit more from joining forces, the Woodruff and Miller Hose Companies combined to form the Woodruff-Miller Hose Company and formally establish the Saranac Lake Volunteer Fire Department.

Since that day, the Department has worked together with the community to combat fires in both Franklin and Essex counties. This includes community outreach events to raise awareness for fire safety, a dive rescue and recovery team for lake accidents, and the actual volunteer fire fighters who form the base of the department. Their mascot, Smokey the Dalmatian, has served as the symbol for all that the company does for their Adirondack community.

Congratulations to the Saranac Lake Fire Department on the 125th anniversary of your formation. I want to wish the department and the Village of Saranac Lake continued safety and success in the future.

100TH BIRTHDAY OF MARY SANSONE

HON. DANIEL M. DONOVAN, JR.

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. DONOVAN. Mr. Speaker, I rise today to recognize the 100th Birthday of Brooklyn's Mary Sansone.

Mary was born and raised in Brooklyn, NY, where she became a prominent activist from a young age. Taking part in movements since she was eight years old, advocacy became second nature. Following World War II, she helped the Red Cross provide aid to Italians. In 1964, along with her husband, Mrs. Sansone founded the Congress for Italian-American Organizations (CIAO).

In the 1970s, Mrs. Sansone helped forge alliances between the African-American, Hispanic and Italian communities via the New York Urban Coalition. Mrs. Sansone hosted community leaders at her home serving up her famous meatballs and hoping to find common ground.

At the age of 100, Mary Sansone is still involved in causes that are close to her heart. Her birthday was recently celebrated at Dyker Beach Golf Course in Brooklyn with hundreds of friends and admirers coming to celebrate. Mrs. Sansone currently resides in Borough Park, Brooklyn, living in the same home for the past 70 years. She is a true lifelong Brooklynite.

Mr. Speaker, Mary Sansone's decades of activism and advocacy truly show what America is about, regardless of one's political affiliation. I commend her outstanding life and I am proud to honor this citizen from New York's 11th District on her 100th birthday.

HONORING THE LIFE OF JUAN RIVERA VELAZQUEZ

HON. ALAN GRAYSON

OF FLORIDA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. GRAYSON. Mr. Speaker, I rise today to honor the life of Juan Rivera Velazquez of Kissimmee, Florida. Juan was a resident of my district. His life was cut short in the early morning hours of June 12, 2016, during the tragic shooting at Pulse nightclub in Orlando.

Juan died at the club alongside his life partner of 16 years, Luis Daniel Conde. The two grew up in the same small town in Puerto Rico, and even attended the same school, Jose Campeche High School in San Lorenzo, Puerto Rico.

Juan Rivera Velazquez was 37 years old.

Juan and Luis were co-owners of Alta Peluqueria D'Magazine Salon & Spa in Kissimmee where they enjoyed a loyal client base and frequently offered their services to victims of domestic abuse, free of charge. The pair were known to friends as exceptional people and a loving couple. While Juan is remembered as the shy, quieter half, driven and focused on the work, Luis was more the jokester, who was always making people laugh. They valued their clients as friends with their encouraging words, always reminding them that they look 'beautiful' and 'amazing' before leaving the salon.

Juan Rivera Velazquez will never be forgotten in our pursuit of a more just and loving world. His memory and acts of kindness will live forever in the hearts and minds of those who knew him.

May his family, relatives and friends eventually find solace and comfort, and may he rest in eternal peace.

RECOGNIZING THE RETIREMENT OF LIEUTENANT GENERAL JAMES ''JJ'' JACKSON

HON. AUSTIN SCOTT

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. AUSTIN SCOTT of Georgia. Mr. Speaker, I would like to recognize Lieutenant General James ''JJ'' Jackson today in honor of his retirement as Chief of the Air Force Reserve and Commander of the Air Force Reserve Command and thank him for his many years of dedicated service to our country.

A 1978 graduate of the United States Air Force Academy, Lt Gen Jackson completed fourteen years of active duty, flying tours in Europe and the Pacific before joining the Air Force Reserve in 1992. During his years of service, Lt Gen Jackson held numerous wing leadership and command positions as well as staff assignments at the Eighth Air Force and Headquarters U.S. Strategic Command, Headquarters Pacific Air Forces, Headquarters U.S. Pacific Command, and Headquarters U.S. Air Force. Lt Gen Jackson also earned major decorations and awards including the Distinguished Service Medal with oak leaf cluster, Legion of Merit with oak leaf cluster, Meritorious Service Medal with three oak leaf clusters, Aerial Achievement Medal with oak leaf cluster, and the Air Force Commendation Medal with two oak leaf clusters. As a career instructor pilot and evaluator, Lt Gen Jackson was a command pilot, logging more than 3,600 hours in the F–4 Phantom II, F–16 Fighting Falcon, and KC–135R Stratotanker.

Through his years of service and leadership, Lt Gen Jackson demonstrated his unwavering loyalty and dedication to our country and commitment to protecting our freedom. On behalf of the House Armed Services Committee and the people of Georgia's Eighth Congressional District, I would like to thank Lt Gen Jackson for his service and wish him the best in his retirement.

IN RECOGNITION OF DONALD R. SMART

HON. MARK MEADOWS

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. MEADOWS. Mr. Speaker, I rise today to recognize Donald R. Smart of Haywood County, North Carolina. On behalf of the people of Western North Carolina, I would like to thank Mr. Smart for his service to the farmers in Haywood County and congratulate him on his induction into the Western North Carolina Agriculture Hall of Fame.

A lifelong resident of Haywood County and fifth-generation farmer, Mr. Smart was an

honor student in high school and president of the Tuscola FFA chapter. He graduated cum laude from North Carolina State University and participated in the Philip Morris Leadership Program at the University of Kentucky. Starting his farm in 1974 with one acre each of burley tobacco and trellised tomatoes, Mr. Smart and his brother have since expanded the farm to encompass 1,500 acres of corn, soybeans, vegetables, tobacco, hay, and cattle.

While building his own successful business, Mr. Smart served as President of the Haywood County Farm Bureau Federation, as a State Executive Board Member of the N.C. Farm Bureau Federation, as Chairman of the N.C. Farm Bureau Burley Tobacco Committee, as Chairman of the Haywood County Farmland Preservation Organization, as a Board Member of the N.C. Tobacco Growers Association, and as an advocate for farmers at our state and national capitals. In the mid-2000s, Mr. Smart's leadership stopped the sale of the Mountain Research Station and secured additional acreage for this hub of agricultural research. He helped Haywood County establish a fairground and served on its board and volunteer advisory council. He has been recognized as a Philip Morris Outstanding Burley Tobacco Grower, a N.C. Department of Agriculture and Consumer Services Farmer of the Year, a Haywood County Outstanding Farmer, a N.C. Tomato Growers Association Outstanding Producer, and has received an FFA Appreciation Award for working to keep agriculture in high school curricula.

Donald R. Smart has been an invaluable proponent of the agriculture industry in Haywood County and across our state. Mr. Smart deserves the highest recognition and I am honored to express the sincere congratulations and best wishes of the people of North Carolina on his induction into the Western North Carolina Agriculture Hall of Fame.

RECOGNIZING OUR NATION'S COMMUNITY CORRECTIONS PROFESSIONALS

HON. ELEANOR HOLMES NORTON

OF THE DISTRICT OF COLUMBIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Ms. NORTON. Mr. Speaker, I rise today to recognize the nation's community corrections professionals and the vital role they play in enhancing public safety throughout the United States. In honor of the invaluable contributions of these dedicated public servants, the American Probation and Parole Association (APPA) and its associated members have designated the week of July 17–23 Pretrial, Probation and Parole Supervision Week 2016. I thank the thousands of men and women who perform these important public safety duties, and urge my colleagues in the House of Representatives to join me in support of the APPA's week-long recognition efforts this year.

Here in my congressional district, the nation's capital, thousands of women and men serve as pretrial, probation and parole officers or administrators. As public servants, these constituents, along with many other Americans, commit themselves on a daily basis to helping improve the lives of those involved in the criminal justice system. Mr. Speaker, the work of these professionals ultimately results in stronger and safer communities for all.

Community corrections professionals are responsible for the supervision of adult and juvenile offenders in communities throughout our nation. These trained professionals go above and beyond the call of duty by connecting their clients to supportive services, community based resources, employment opportunities, housing programs and other evidence based practices that help individuals successfully complete supervision and reenter society. Community corrections professionals strive to provide these services and support, while simultaneously providing client surveillance, crime prevention and restorative justice.

Mr. Speaker, I ask the House of Representatives to join me in acknowledging the impact community corrections professionals have on the quality of life of so many Americans, and recognizing July 17–23 as Pretrial, Probation and Parole Supervision Week 2016.

PERSONAL EXPLANATION

HON. LUIS V. GUTIÉRREZ

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Mr. GUTIÉRREZ. Mr. Speaker, I was unavoidably absent in the House chamber for votes on Monday, July 11, 2016. Had I been present, I would have voted ''yea'' on roll call votes 401 and 402 and ''nay'' on roll call vote 403.

PERSONAL EXPLANATION

HON. JAIME HERRERA BEUTLER

OF WASHINGTON

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Ms. HERRERA BEUTLER. Mr. Speaker, on the day of April 11th, I am wrongly recorded on H.R. 5606, the Anti-terrorism Information Sharing Is Strength Act. I intended to oppose this legislation.

FINDING MEANING IN THE DALLAS TRAGEDY

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, July 12, 2016

Ms. JACKSON LEE. Mr. Speaker, one week ago today in the Dallas Central Business District, a lone gunman, motivated by anger and rage, terrorized a peaceful assembly of my fellow Texans protesting injustice by unleashing a hail of bullets from an automatic rifle that took the lives of five officers of the Dallas Police Department and Dallas Area Rapid Transit and wounded twelve others. Today I joined my fellow Texans and others at the memorial in Dallas.

Earlier today, a memorial in honor of the fallen was held at Dallas' Meyerson Symphony Center, attended by several hundreds, including the President of the United States and the First Lady; Vice-President Biden and Dr. Jill Biden; former President George W. Bush and Mrs. Laura Bush; members of the Texas congressional delegation, representatives of law enforcement agencies from across the nation.

President Obama reminded us that in the aftermath of one of the most tumultuous weeks in memory that the nation is not as divided as it seems and urged the nation to find meaning in the midst of sorrow by working together so that we can ''preserve those institutions of family and community, rights and responsibilities, law and self-government that is the hallmark of this nation.''

I especially appreciate the remarks of former President George W. Bush who reminded us that ''to renew our unity, we only need to remember our values'' and that we ''are bound by things of the spirit, by shared commitments to common ideals, and that we are at our best when we practice empathy, which is the strongest ''bridge across our nation's deepest divisions.''

Mr. Speaker, there is much wisdom in President Bush's admonition that we avoid judging other groups by their worst examples, while judging ourselves by our best intentions.

We are one country with a common future and a single destiny, and, deep down, we know that President Obama was right when he said that we all must aspire and strive for an open heart, where we ''worry less about which side has been wronged, and worry more about joining sides to do right.''

Due to an injury sustained the week before, Texas Governor Greg Abbott was not able to attend the moving tribute to the fallen Dallas officers so I want to extend to him my best wishes for a complete and speedy recovery and to commend and associate myself with the following statements from his Open Letter to the People of Texas:

''Though anguish and sorrow may darken the days ahead, we will not be overcome by evil—we will overcome evil with good. Texas is an exceptional state with exceptional people. We've faced tough challenges in the past, but we have come together to overcome those challenges. In the coming days, there will be those who foment distrust and fan the flames of dissension.

''To come together—that would be the greatest rebuke to those who seek to tear us apart.''

Mr. Speaker, what is called for in sorrowful times likes this is unity and healing and the faith that a righteous cause can only be advanced by righteous words and actions.

Let us remember and honor the fallen and wounded in Dallas by rededicating ourselves to the spirit of empathy and love and respect for human dignity that has made and will keep our country the wonder of the world.

Daily Digest

HIGHLIGHTS

Senate disagreed to the House amendment to S. 2012, Energy Policy Modernization Act, agreed to the request from the House for a conference, and the Presiding Officer appointed conferees.

Senate

Chamber Action

Routine Proceedings, pages S4953–S5017

Measures Introduced: Seventeen bills and five resolutions were introduced, as follows: S. 3156–3172, S. Res. 526–529, and S. Con. Res. 46. **Pages S5002–03**

Measures Reported:

H.R. 3361, to amend the Homeland Security Act of 2002 to establish the Insider Threat Program, with an amendment in the nature of a substitute. (S. Rept. No. 114–297)

S. 3156, to provide enhanced protections for taxpayers from fraud and other illegal activities. (S. Rept. No. 114–298)

S. 3157, to prevent taxpayer identity theft and tax refund fraud. (S. Rept. No. 114–299)

H.R. 1557, to amend the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 to strengthen Federal antidiscrimination laws enforced by the Equal Employment Opportunity Commission and expand accountability within the Federal government, with an amendment in the nature of a substitute. (S. Rept. No. 114–300)

S. 461, to provide for alternative financing arrangements for the provision of certain services and the construction and maintenance of infrastructure at land border ports of entry, with an amendment in the nature of a substitute.

S. 2509, to improve the Government-wide management of Federal property, with an amendment in the nature of a substitute. **Page S5001**

Measures Passed:

United States Semiquincentennial Commission Act: Senate passed H.R. 4875, to establish the United States Semiquincentennial Commission. **Page S5010**

United States Appreciation for Olympians and Paralympians Act: Committee on Finance was discharged from further consideration of S. 2650, to amend the Internal Revenue Code of 1986 to exclude from gross income any prizes or awards won in competition in the Olympic Games or the Paralympic Games, the bill was then passed, and that the papers be held at the desk. **Pages S5010–11**

National Lobster Day: Committee on the Judiciary was discharged from further consideration of S. Res. 513, designating September 25, 2016, as ''National Lobster Day'', and the resolution was then agreed to. **Page S5011**

Unified Development of the Tennessee River System 80th Anniversary: Senate agreed to S. Res. 528, commending the Tennessee Valley Authority on the 80th anniversary of the unified development of the Tennessee River system. **Page S5011**

Conference Reports:

Comprehensive Addiction and Recovery Act—Agreement: Senate began consideration of the conference report to accompany S. 524, to authorize the Attorney General to award grants to address the national epidemics of prescription opioid abuse and heroin use. **Pages S4955–62, S4975–93**

A unanimous-consent agreement was reached providing that notwithstanding rule XXII, at 11 a.m., on Wednesday, July 13, 2016, Senate vote on the motion to invoke cloture on the conference report to accompany S. 524; that following the vote on the motion to invoke cloture, the Chair lay before the Senate the message to accompany H.R. 636, to amend title 49, United States Code, to authorize appropriations for the Federal Aviation Administration for fiscal years 2016 through 2017, that the Majority Leader, or his designee, be recognized to make a motion to concur in the House amendments to the Senate amendments, and that the time until 1:45 p.m. be equally divided between the Leaders, or their designees; and that following the use or yielding back

of time, Senate vote on the motion to concur in the House amendments to the Senate amendments, with no intervening action or debate, and that all time allocated for consideration of H.R. 636, count post-cloture on S. 524, if cloture is invoked. **Page S4984**

A unanimous-consent agreement was reached providing for further consideration of the conference report to accompany the bill at approximately 9:30 a.m. on Wednesday, July 13, 2016, with the time until 11 a.m. equally divided between the two Leaders, or their designees. **Page S5011**

House Messages:

Energy Policy Modernization Act: Senate agreed to the motion to disagree to the House amendment to S. 2012, to provide for the modernization of the energy policy of the United States, agree to the request from the House for a conference, and the Presiding Officer appoint the following conferees: Senators Murkowski, Barrasso, Risch, Cornyn, Cantwell, Wyden, and Sanders. **Pages S4962–75**

During consideration of this measure today, Senate also took the following action:

By 84 yeas to 3 nays (Vote No. 125), three-fifths of those Senators duly chosen and sworn, having voted in the affirmative, Senate agreed to the motion to close further debate on McConnell motion to disagree to the House amendment, agree to the request from the House for a conference, and the Presiding Officer appoint the following conferees: Senators Murkowski, Barrasso, Risch, Cornyn, Cantwell, Wyden, and Sanders. **Pages S4962, S4975**

Nomination Confirmed: Senate confirmed the following nomination:

Carole Schwartz Rendon, of Ohio, to be United States Attorney for the Northern District of Ohio for the term of four years. **Pages S5010, S5017**

Messages from the House: **Pages S4997–98**

Measures Referred: **Page S4998**

Measures Placed on the Calendar: **Page S4998**

Measures Held at the Desk: **Page S4998**

Executive Communications: **Pages S4999–S3501**

Executive Reports of Committees: **Pages S5001–02**

Additional Cosponsors: **Pages S5003–04**

Statements on Introduced Bills/Resolutions: **Pages S5004–10**

Additional Statements: **Page S4997**

Authorities for Committees to Meet: **Page S5010**

Privileges of the Floor: **Page S5010**

Record Votes: One record vote was taken today. (Total—125) **Page S4975**

Adjournment: Senate convened at 10 a.m. and adjourned at 8:27 p.m., until 9:30 a.m. on Wednesday, July 13, 2016. (For Senate's program, see the remarks of the Acting Majority Leader in today's Record on page S5011.)

Committee Meetings

(Committees not listed did not meet)

BUSINESS MEETING

Committee on Armed Services: Committee ordered favorably reported the nominations of Susan S. Gibson, of Virginia, to be Inspector General of the National Reconnaissance Office, Department of Defense, Gail H. Marcus, of Maryland, to be a Member of the Defense Nuclear Facilities Safety Board, Dimitri Frank Kusnezov, of California, to be Deputy Administrator for Defense Programs, National Nuclear Security Administration, Department of Energy, and 141 nominations in the Army, Navy, and Air Force.

NATIONAL SECURITY CYBER AND ENCRYPTION CHALLENGES

Committee on Armed Services: Committee concluded a closed hearing to examine national security cyber and encryption challenges, after receiving testimony from Admiral Michael S. Rogers, USN, Commander, United States Cyber Command, Director, National Security Agency, and Chief, Central Security Services.

FCC PRIVACY REGULATIONS

Committee on Commerce, Science, and Transportation: Committee concluded a hearing to examine the Federal Communications Commission's proposed privacy regulations, focusing on how they affect consumers and competition, after receiving testimony from Jon Leibowitz, 21st Century Privacy Coalition, Dean C. Garfield, Information Technology Industry Council, and Paul Ohm, Georgetown University Law Center, all of Washington, D.C.; Matthew M. Polka, American Cable Association, Pittsburgh, Pennsylvania; and Peter Swire, Georgia Institute of Technology Scheller College of Business, Atlanta.

FAST ACT

Committee on Commerce, Science, and Transportation: Subcommittee on Surface Transportation and Merchant Marine Infrastructure, Safety and Security concluded a hearing to examine the FAST Act, the economy, and our nation's transportation system, after receiving testimony from Major Jay Thompson, Arkansas Highway Police, Little Rock, on behalf of the Commercial Vehicle Safety Alliance; Patrick J. Ottensmeyer, Kansas City Southern, Kansas City, Missouri; David Eggermann, BASF Corporation,

Florham Park, New Jersey, on behalf of the American Chemistry Council; and Stephen J. Gardner, Amtrak, Washington, D.C.

ENERGY DISRUPTIONS

Committee on Energy and Natural Resources: Subcommittee on Energy concluded a hearing to examine protections designed to guard against energy disruptions, including S. 3018, to provide for the establishment of a pilot program to identify security vulnerabilities of certain entities in the energy sector, after receiving testimony from Patricia Hoffman, Assistant Secretary, Office of Electricity Delivery and Energy Reliability, and Brent J. Stacey, Associate Laboratory Director, National and Homeland Security, Idaho National Laboratory, both of the Department of Energy; Duane D. Highley, Arkansas Electric Cooperative Corporation, Little Rock, on behalf of the National Rural Electric Cooperative Association; and Robin Manning, Electric Power Research Institute, Charlotte, North Carolina.

THE STARK LAW

Committee on Finance: Committee concluded a hearing to examine the Stark Law, focusing on current issues and opportunities, after receiving testimony from Troy A. Barsky, Crowell and Moring, LLP, Washington, D.C.; Ronald A. Paulus, Mission Health System, Asheville, North Carolina; and Peter B. Mancino, The Johns Hopkins Health System Corporation, Baltimore, Maryland.

TRAFFICKING IN PERSONS REPORT

Committee on Foreign Relations: Committee concluded a hearing to examine the 2016 Trafficking in Persons Report, after receiving testimony from Susan Coppedge, Ambassador-at-Large, Office to Monitor and Combat Trafficking in Persons, Department of State.

PUBLIC–PRIVATE PARTNERSHIPS IN FOREIGN AID

Committee on Foreign Relations: Subcommittee on State Department and USAID Management, International Operations, and Bilateral International Development concluded a hearing to examine public-private partnerships in foreign aid, focusing on leveraging United States assistance for greater impact and sustainability, after receiving testimony from Eric G. Postel, Associate Administrator, United States Agency for International Development; Daniel F. Runde, Center for Strategic and International Studies Project on Prosperity and Development, Washington, D.C.; and Michael Goltzman, The Coca-Cola Company, Atlanta, Georgia.

FOIA AT FIFTY

Committee on the Judiciary: Committee concluded a hearing to examine the Freedom of Information Act at fifty, focusing on whether the Sunshine Law's promise has been fulfilled, after receiving testimony from Miriam Nisbet, Founding Director, Office of Government Information Services, National Archives and Records Administration; Rick Blum, Sunshine in Government Initiative, Washington, D.C.; David Cuillier, University of Arizona School of Journalism, Tucson, on behalf of the Society of Professional Journalists Freedom of Information Committee; and Margaret B. Kwoka, University of Denver Sturm College of Law, Denver, Colorado.

INTELLIGENCE

Select Committee on Intelligence: Committee met in closed session to receive a briefing on certain intelligence matters from officials of the intelligence community.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 18 public bills, H.R. 5727–5744; and 3 resolutions, H. Res. 821, 823–824, were introduced. **Pages H4813–14**

Additional Cosponsors: **Pages H4815–16**

Reports Filed: Reports were filed today as follows:

H.R. 5421, to amend the Securities Act of 1933 to apply the exemption from State regulation of securities offerings to securities listed on a national security exchange that has listing standards that have been approved by the Commission (H. Rept. 114–684);

H.R. 3394, to amend the Terrorism Risk Insurance Act of 2002 to allow for the use of certain assets of foreign persons and entities to satisfy certain judgments against terrorist parties, and for other purposes, with an amendment (H. Rept. 114–685); and

H. Res. 822, providing for consideration of the Senate amendment to the House amendment to the bill (S. 764) to reauthorize and amend the National

Sea Grant College Program Act, and for other purposes; providing for consideration of the bill (S. 304) to improve motor vehicle safety by encouraging the sharing of certain information; and waiving a requirement of clause 6(a) of rule XIII with respect to consideration of certain resolutions reported from the Committee on Rules (H. Rept. 114–686).

Page H4813

Speaker: Read a letter from the Speaker wherein he appointed Representative Webster (FL) to act as Speaker pro tempore for today. **Page H4663**

Recess: The House recessed at 11:02 a.m. and reconvened at 12 noon. **Page H4670**

Motion to Adjourn: Rejected the Grayson motion to adjourn by a yea-and-nay vote with none voting "yea", 377 voting "nay", and 1 answering "present", Roll No. 404. **Pages H4672–73**

Motion to Adjourn: Rejected the Grayson motion to adjourn by a yea-and-nay vote with none voting "yea", 362 voting "nay", and 1 answering "present", Roll No. 405. **Pages H4676–77**

United States Financial System Protection Act of 2016, No 2H2O from Iran Act, and Iran Accountability Act of 2016—Rule for consideration: The House agreed to H. Res. 820, providing for consideration of the bill (H.R. 4992) to codify regulations relating to transfers of funds involving Iran, and for other purposes; providing for consideration of the bill (H.R. 5119) to prohibit the obligation or expenditure of funds available to any Federal department or agency for any fiscal year to purchase or issue a license for the purchase of heavy water produced in Iran; and providing for consideration of the bill (H.R. 5631) to hold Iran accountable for its state sponsorship of terrorism and other threatening activities and for its human rights abuses, by a yea-and-nay vote of 237 yeas to 172 nays, Roll No. 409, after the previous question was ordered by a yea-and-nay vote of 241 yeas to 174 nays, Roll No. 408.

Pages H4678–82, H4688–89

Suspensions: The House agreed to suspend the rules and pass the following measures:

Tested Ability to Leverage Exceptional National Talent Act of 2016: H.R. 5658, to amend title 5, United States Code, to codify the Presidential Innovation Fellows Program, by a ⅔ yea-and-nay vote of 409 yeas to 8 nays, Roll No. 410; and

Pages H4683–84, H4689–90

National Securities Exchange Regulatory Parity Act of 2016: H.R. 5421, amended, to amend the Securities Act of 1933 to apply the exemption from State regulation of securities offerings to securities listed on a national security exchange that has listing standards that have been approved by the Commission. **Pages H4684–86**

Separation of Powers Restoration Act of 2016: The House passed H.R. 4768, to amend title 5, United States Code, with respect to the judicial review of agency interpretations of statutory and regulatory provisions, by a recorded vote of 240 ayes to 171 noes, Roll No. 416. Consideration began yesterday, July 11th. **Pages H4690–95**

Rejected the Keating motion to recommit the bill to the Committee on the Judiciary with instructions to report the same back to the House forthwith with an amendment, by a yea-and-nay vote of 169 yeas to 236 nays, Roll No. 415. **Pages H4693–94**

Agreed to amend the title so as to read: "To amend title 5, United States Code, to clarify the nature of judicial review of agency interpretations of statutory and regulatory provisions.". **Page H4695**

Rejected:

Johnson (GA) amendment (No. 1 printed in H. Rept. 114–641) that was debated on July 11th that sought to exempt from the bill rules issued by the Environmental Protection Agency pertaining to regulation of lead or copper in drinking water (by a recorded vote of 194 ayes to 223 noes, Roll No. 411); **Pages H4690–91**

Meeks amendment (No. 3 printed in H. Rept. 114–641) that was debated on July 11th that sought to exempt from the bill rules issued by the Department of Housing and Urban Development (by a recorded vote of 174 ayes to 243 noes, Roll No. 412); **Page H4691**

Johnson (GA) amendment (No. 4 printed in H. Rept. 114–641) that was debated on July 11th that sought to exempt from the bill rules issued pursuant to an express grant of authority from Congress (by a recorded vote of 174 ayes to 243 noes, Roll No. 413); and **Pages H4691–92**

Johnson (GA) amendment (No. 5 printed in H. Rept. 114–641) that was debated on July 11th that sought to preserve judicial deference to agency expertise during the review of consumer safety rules issued by the Commissioner of the Food and Drug Administration (by a recorded vote of 181 ayes to 235 noes, Roll No. 414). **Pages H4692–93**

H. Res. 796, the rule providing for consideration of the bill (H.R. 4768) was agreed to Tuesday, July 5th.

Supporting the bid of Los Angeles, California to bring the 2024 Summer Olympic Games back to the United States and pledging the cooperation of Congress with respect to that bid: The House agreed to discharge from committee and agree to H. Con. Res. 142, supporting the bid of Los Angeles, California to bring the 2024 Summer Olympic

Games back to the United States and pledging the cooperation of Congress with respect to that bid.
Pages H4695–96

Recognizing the 50th anniversary of Singaporean independence and reaffirming Singapore's close partnership with the United States: The House agreed to discharge from committee and agree to H. Res. 374, as amended by Representative Royce, recognizing the 50th anniversary of Singaporean independence and reaffirming Singapore's close partnership with the United States. **Pages H4696–97**

Agreed to amend the title as to read: "Reaffirming Singapore's strategic partnership with the United States, encompassing broad and robust economic, military-to-military, law enforcement, and counter-terrorism cooperation.". **Page H4697**

Clarifying Amendment to Provide Terrorism Victims Equity Act: The House agreed to take from the Speaker's table H.R. 3394, to amend the Terrorism Risk Insurance Act of 2002 to allow for the use of certain assets of foreign persons and entities to satisfy certain judgments against terrorist parties, with the amendment recommended by the Committee on the Judiciary, agreed to said amendment, and passed the bill, as amended. **Page H4697**

Protecting Our Lives by Initiating COPS Expansion Act of 2016: The House agreed to discharge from committee and pass S. 2840, to amend the Omnibus Crime Control and Safe Streets Act of 1968 to authorize COPS grantees to use grant funds for active shooter training. **Pages H4697–98**

Department of the Interior, Environment, and Related Agencies Appropriations Act, 2017: The House began consideration of H.R. 5538, making appropriations for the Department of the Interior, environment, and related agencies for the fiscal year ending September 30, 2017. Consideration is expected to resume tomorrow, July 13th.
Pages H4698–H4750, H4750–90, H4790–H4812

Agreed to:

Cicilline amendment (No. 2 printed in H. Rept. 114–683) that increases funding for the Operation of the National Park System (ONPS) account by $2,500,000, and decreases funding for the Departmental Operations Account for the Department of Interior by $2,500,000; **Pages H4747–48**

Griffith amendment (No. 4 printed in H. Rept. 114–683) that provides a distribution of funds among Appalachian states for reclamation of abandoned mine lands in conjunction with economic and community development, offset by funds from the Environmental Programs and Management account;
Pages H4748–49

Lummis amendment (No. 15 printed in H. Rept. 114–683) that increases the EPA's Inspector General fund by $10,038,000 to bring up to President's request and decreases the Environmental Protection Agency's (EPA) Environmental Programs and Management fund by $14,000,000; **Pages H4756–57**

Gosar amendment (No. 16 printed in H. Rept. 114–683) that redirects funds from EPA bureaucracy to the Forest Service Hazardous Fuels account in order to prevent dangerous wildfires; **Pages H4757–58**

Westerman amendment (No. 17 printed in H. Rept. 114–683) that removes funds from the EPA bureaucracy, and places them into the U.S. Forest Service's Forest and Rangeland Research Account, which funds the Forest Products Laboratory and Forest Inventory and Analysis, among other programs;
Pages H4758–59

Johnson (GA) amendment (No. 18 printed in H. Rept. 114–683) that ensures implementation of the EPA's Final Rule on the Disposal of Coal Combustion Residuals from Electric Utilities is consistent with Executive Order 12898; **Page H4759**

Black amendment (No. 42 printed in H. Rept. 114–683) that prohibits the EPA from using funds to implement, administer, or enforce the agency's "Phase 2" fuel-efficiency and emissions standards, or any rule with respect to glider kits and glider vehicles; **Pages H4775–76**

Boustany amendment (No. 44 printed in H. Rept. 114–683) that prohibits the Secretary of the Interior to implement, administer, or enforce any rule or guidance substantially similar to the proposed guidance that the Bureau of Ocean Energy Management made available for public comment on September 22, 2015, regarding financial assurances for oil and gas operations on the Outer Continental Shelf;
Pages H4777–78

Ben Ray Luján (NM) amendment (No. 21 printed in H. Rept. 114–683) that decreases and increases State and Tribal Assistance Grants by $6 million to direct the EPA to work with the affected States and Indian tribes to implement a long-term monitoring program for water quality of the Animas and San Juan Rivers in response to the Gold King Mine spill (by a recorded vote of 219 ayes to 207 noes, Roll No. 427); **Pages H4761–62, H4786–87**

Buck amendment (No. 47 printed in H. Rept. 114–683) that prevents the Department of Interior from partnering with private organizations to create or expand national heritage areas in southeast Colorado; **Pages H4791–92**

Burgess amendment (No. 48 printed in H. Rept. 114–683) that restricts funds from being used by the Environmental Protection Agency (EPA) to hire new employees under the Title 42 Special Pay Program or transfer existing employees into the Title 42

Special Pay Program authorized for the Department of Health and Human Services (HHS); **Pages H4792–93**

Byrne amendment (No. 49 printed in H. Rept. 114–683) that prohibits any funds from being used to develop or propose legislation to redirect funds allocated from the Gulf of Mexico Energy Security Act (GOMESA); **Pages H4793–94**

Cramer amendment (No. 51 printed in H. Rept. 114–683) that ensures no funds are provided to finalize or implement the Fish and Wildlife Service rule entitled ''Management of Non-Federal Oil and Gas Rights''; **Pages H4795–96**

Crawford amendment (No. 52 printed in H. Rept. 114–683) that prohibits the EPA from enforcing or implementing the Spill Prevention, Control, and Countermeasure (SPCC) rule on farming and ranching operations; **Page H4796**

Crawford amendment (No. 53 printed in H. Rept. 114–683) that prohibits the use of funds in support of grassroots advocacy campaigns intended to persuade the outcome of legislation pending in Congress or state legislatures; **Pages H4796–97**

Rodney Davis (IL) amendment (No. 54 printed in H. Rept. 114–683) that prevents any funds from being used for the Office of Congressional and Intergovernmental Relations at the EPA and reduces the Environmental Programs and Management account by $4,235,000; **Pages H4797–98**

Gosar amendment (No. 58 printed in H. Rept. 114–683) that prohibits the use of funds to implement, administer, or enforce the draft EPA-USGS Technical Report entitled ''Protecting Aquatic Life from Effects of Hydrologic Alteration''; **Pages H4799–H4800**

Jenkins (WV) amendment (No. 62 printed in H. Rept. 114–683) that prohibits funding for the EPA to develop, finalize, promulgate, implement, administer, or enforce any rule under section 112 of the Clean Air Act that applies to glass manufacturers that do not use continuous furnaces; **Pages H4800–01**

Lamborn amendment (No. 66 printed in H. Rept. 114–683) that prohibits the use of funds to implement, administer, or enforce the final rule entitled ''Hydraulic Fracturing on Federal and Indian Lands''; **Pages H4803–04**

Loudermilk amendment (No. 69 printed in H. Rept. 114–683) that prohibits funds from being used to regulate trailers under the Clean Air Act; **Page H4806**

Lummis amendment (No. 70 printed in H. Rept. 114–683) that prohibits funding to finalize, implement, or enforce EPA proposed rulemaking regarding in situ uranium production; **Pages H4806–07**

Westerman amendment (No. 71 printed in H. Rept. 114–683) that limits permit inspection regulations with respect to the export of squid, octopus, and cuttlefish products; **Pages H4807–08**

Newhouse amendment (No. 74 printed in H. Rept. 114–683) that prohibits the use of funds by EPA to issue and expand new regulations under the Resource Conservation and Recovery Act (RCRA) that would apply to Animal Feeding Operations; and **Pages H4810–11**

Newhouse amendment (No. 75 printed in H. Rept. 114–683) that restores $1,000,000 for the Wolf Livestock Loss Demonstration Program and is offset by reducing funds for EPA Environmental Programs & management by $1,000,000. **Pages H4811–12**

Rejected:

Esty amendment (No. 19 printed in H. Rept. 114–683) that sought to direct $10,000,000 to Brownfields projects within State and Tribal Assistance Grants (STAG) from Superfund cleanup to help states leverage $18 for $1 expended for the purpose of cleaning up Brownfield properties, such as abandoned factories or former dry cleaning establishments, in their communities; **Pages H4759–60**

Cartwright amendment (No. 25 printed in H. Rept. 114–683) that sought to strike section 425, which prohibits the EPA from acting on changes to the definition of ''fill material'' and ''discharge of fill material'' under the Federal Water Pollution Control Act; **Pages H4763–64**

Peters amendment (No. 30 printed in H. Rept. 114–683) that sought to strike Section 434 to allow the EPA to regulate ozone-depleting substances under the Significant New Alternatives Policy (SNAP) program to improve public health and fight the root causes of climate change; **Page H4767**

Castor (FL) amendment (No. 1 printed in H. Rept. 114–683) that sought to match the budget request for Law Enforcement of the National Wildlife Refuge System (by a recorded vote of 197 ayes to 225 noes, Roll No. 417); **Pages H4746, H4780**

Himes amendment (No. 3 printed in H. Rept. 114–683) that sought to Funds the New England National Scenic Trail at $300,000 within the Operation of the National Park System (by a recorded vote of 183 ayes to 241 noes, Roll No. 418); **Pages H4748, H4780–81**

Ellison amendment (No. 8 printed in H. Rept. 114–683) that sought to reprogram already appropriated funds to create an Office of Good Jobs for the Department of Interior (by a recorded vote of 173 ayes to 251 noes, Roll No. 419); **Pages H4750–52, H4781–82**

Norcross amendment (No. 9 printed in H. Rept. 114–683) that sought to add $13,060,000 to the Hazardous Substance Superfund (equal to President's Budget request) and reduces Payments In Lieu of

Taxes by the same amount (by a recorded vote of 143 ayes to 282 noes, Roll No. 420);

Pages H4752, H4782

Beyer amendment (No. 10 printed in H. Rept. 114–683) that sought to strike lines 4 through 19 on page 67 (by a recorded vote of 190 ayes to 235 noes, Roll No. 421); **Pages H4752–53, H4782–83**

Huffman amendment (No. 11 printed in H. Rept. 114–683) that sought to strike Section 122 (by a recorded vote of 184 ayes to 240 noes, Roll No. 422);

Pages H4753–54, H4783–84

Castor (FL) amendment (No. 12 printed in H. Rept. 114–683) that sought to strike section 124 (by a recorded vote of 186 ayes to 237 noes, Roll No. 423); **Pages H4754–55, H4784**

Huffman amendment (No. 13 printed in H. Rept. 114–683) that sought to strike Section 127 of the Act, which would delay the finalization and implementation of the proposed rule for air quality control, reporting, and compliance in specific offshore areas of the Gulf of Mexico and the Arctic Ocean (by a recorded vote of 181 ayes to 244 noes, Roll No. 424); **Pages H4755–56, H4784–85**

Smith (MO) amendment (No. 14 printed in H. Rept. 114–683) that sought to eliminate funding for the Air, Climate and Energy Research Program under EPA (by a recorded vote of 208 ayes to 217 noes, Roll No. 425); **Pages H4756, H4785–86**

Palmer amendment (No. 20 printed in H. Rept. 114–683) that sought to eliminate funding for Diesel Emission Reduction Grants and sends the savings to the spending reduction account (by a recorded vote of 175 ayes to 250 noes, Roll No. 426);

Pages H4760–61, H4786

Dingell amendment (No. 22 printed in H. Rept. 114–683) that sought to remove language that would exempt a number of potentially damaging activities in National Forests from consideration, including public notice and comment and alternatives analysis, under the National Environmental Policy Act (by a recorded vote of 170 ayes to 256 noes, Roll No. 428); **Pages H4762–63, H4787–88**

Cartwright amendment (No. 27 printed in H. Rept. 114–683) that sought to strike language that would delay implementation of the EPA Lead Renovation, Repair, and Painting Rule (by a recorded vote of 195 ayes to 231 noes, Roll No. 429);

Pages H4764–65, H4788

Becerra amendment (No. 28 printed in H. Rept. 114–683) that sought to strike section 430 of Interior Appropriations bill for FY 17 (by a recorded vote of 190 ayes to 236 noes, Roll No. 430);

Pages H4765–66, H4788–89

Peters amendment (No. 29 printed in H. Rept. 114–683) that sought to strike section 431 (by a recorded vote of 182 ayes to 244 noes, Roll No. 431);

Pages H4766–67, H4789

Peters amendment (No. 31 printed in H. Rept. 114–683) that sought to strike Section 436 to allow federal agencies to use the social cost of carbon in rule makings and guidance documents (by a recorded vote of 185 ayes to 241 noes, Roll No. 432); and

Pages H4768–69, H4790

Brat amendment (No. 46 printed in H. Rept. 114–683) that sought to sunset Land and Water Conservation Fund grants with states or local government units after 20 years. **Page H4791**

Withdrawn:

Ben Ray Luján (NM) amendment (No. 5 printed in H. Rept. 114–683) that was offered and subsequently withdrawn that would have decreased and increased funding to the Bureau of Indian Affairs (BIA) by $1 million to require that the BIA to report, identify and adjudicate to landowners egress and ingress easements where they do not exist for landowners on land parcels adjudicated under the Pueblo Lands Act of 1924; **Pages H4749–50**

Ben Ray Luján (NM) amendment (No. 6 printed in H. Rept. 114–683) that was offered and subsequently withdrawn that would have decreased and increased funding to the Bureau of Indian Affairs (BIA) by $1 million to require the BIA to update and digitize its inventory of rights-of-way records and to make them publicly available in a commonly used mapping format; and **Page H4750**

Lawrence amendment (No. 26 printed in H. Rept. 114–683) that was offered and subsequently withdrawn that would have struck Section 427.

Page H4764

Proceedings Postponed:

Grijalva amendment (No. 32 printed in H. Rept. 114–683) that seeks to strike Section 437 of the Act; **Pages H4769–70**

Polis amendment (No. 33 printed in H. Rept. 114–683) that seeks to strike section 439, regarding methane emissions; **Pages H4770–71**

Lowenthal amendment (No. 34 printed in H. Rept. 114–683) that seeks to allow the Interior Department to proceed with updating royalty rates and valuation for federal coal, oil, and gas by striking Section 440; **Pages H4771–72**

McNerney en bloc amendment consisting of the following amendments printed in H. Rept. 114–683: McNerney (No. 35) that seeks to strike section 447; McNerney (No. 36) that seeks to strike section 448; McNerney (No. 37) that seeks to strike section 449; McNerney (No. 38) that seeks to strike section 450; McNerney (No. 39) that seeks to strike

section 451; and McNerney (No. 40) that seeks to strike section 452; **Pages H4772–74**

Grijalva amendment (No. 41 printed in H. Rept. 114–683) that seeks to strike section 453; **Pages H4774–75**

Blackburn amendment (No. 43 printed in H. Rept. 114–683) that seeks to impose a 1 percent across-the-board spending cut to the bill; **Pages H4776–77**

Boustany amendment (No. 45 printed in H. Rept. 114–683) that seeks to ensure that no money is permitted for the implementation of the Well Control Rule; **Pages H4778–79**

Byrne amendment (No. 50 printed in H. Rept. 114–683) that seeks to prohibit funding from being used to implement, administer, or enforce the Obama administration's National Ocean Policy; **Pages H4794–95**

Goodlatte amendment (No. 57 printed in H. Rept. 114–683) that seeks to prohibit the Environmental Protection Agency from using any funds to take retaliatory, or EPA described ''backstop'' actions, against any of the six states in the Chesapeake Bay Watershed in the event that a state does not meet the goals mandated by the EPA's Chesapeake Bay Total Maximum Daily Load; **Pages H4798–99**

Graham amendment (No. 63 printed in H. Rept. 114–683) that seeks to ensure none of the funds made available by the Act may be used to research, investigate, or study offshore drilling in the Eastern Gulf of Mexico Planning Area; **Page H4801**

King (IA) amendment (No. 64 printed in H. Rept. 114–683) that seeks to ensure that no funds appropriated by this Act can be used to implement, administer, or enforce Davis-Bacon prevailing rate wage requirements; **Pages H4801–03**

Lamborn amendment (No. 67 printed in H. Rept. 114–683) that seeks to prohibit the use of funds to implement or enforce the threatened species or endangered species listing of any plant or wildlife that has not undergone a periodic 5 year review as required by section 4(c)(2) of the Endangered Species Act of 1973; **Pages H4804–05**

Lamborn amendment (No. 68 printed in H. Rept. 114–683) that seeks to prohibit the use of funds to implement or enforce the threatened species listing of the Preble's meadow jumping mouse; **Pages H4805–06**

Murphy (FL) amendment (No. 72 printed in H. Rept. 114–683) that seeks to provide that none of the funds from this act shall be used to carry out seismic airgun testing or seismic airgun surveys in the OCS Planning Areas located within the EEZ bordering the State of Florida; and **Pages H4808–09**

Newhouse amendment (No. 73 printed in H. Rept. 114–683) that seeks to prohibits the use of funds by the U.S. Fish & Wildlife Service and the Department of Interior to treat any Gray Wolf in the 48 contiguous states as an endangered or threatened species under the Endangered Species Act after June 13, 2017. **Pages H4809–10**

H. Res. 820, the rule providing for consideration of the bill (H.R. 5538) was agreed to by a yea-and-nay vote of 237 yeas to 179 nays, Roll No. 407, after the previous question was ordered by a yea-and-nay vote of 236 yeas to 174 nays, Roll No. 406. **Pages H4675–76, H4677–78, H4686–87, H4687–88**

Senate Messages: Message received from the Senate and message received from the Senate by the Clerk and subsequently presented to the House today appears on page H4750.

Senate Referral: S. Con. Res. 44 was referred to the Committee on Armed Services. **Page H4812**

Quorum Calls—Votes: Eight yea-and-nay votes and twenty-one recorded votes developed during the proceedings of today and appear on pages H4673, H4676–77, H4686–87, H4687–88, H4688–89, H4689, H4689–90, H4690–91, H4691, H4691–92, H4692–93, H4694, H4695, H4780, H4780–81, H4781–82, H4782, H4782–83, H4783–84, H4784, H4784–85, H4785–86, H4786, H4786–87, H4787–88, H4788, H4788–89, H4789, and H4790. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 2:09 a.m. on Wednesday, July 13, 2016.

Committee Meetings

MISCELLANEOUS MEASURE

Committee on Appropriations: Full Committee held a markup on the State, Foreign Operations, and Related Programs Appropriations Bill for FY 2017. The State, Foreign Operations, and Related Programs Appropriations Bill for FY 2017 was ordered reported, as amended.

STRENGTHENING OUR NATIONAL TRAUMA SYSTEM

Committee on Energy and Commerce: Subcommittee on Health held a hearing entitled ''Strengthening Our National Trauma System''. Testimony was heard from public witnesses.

OVERSIGHT OF THE FEDERAL COMMUNICATIONS COMMISSION

Committee on Energy and Commerce: Subcommittee on Communications and Technology held a hearing entitled ''Oversight of the Federal Communications Commission''. Testimony was heard from the following Federal Communications Commission officials: Mignon Clyburn, Commissioner; Michael

O'Rielly, Commissioner; Ajit Pai, Commissioner; Jessica Rosenworcel, Commissioner; and Tom Wheeler, Chairman.

MISCELLANEOUS MEASURES

Committee on Energy and Commerce: Full Committee began a markup on H.R. 5510, the ''FTC Process and Transparency Reform Act of 2016''; H.R. 5111, the ''Consumer Review Fairness Act''; H.R. 5092, the ''Reinforcing American Made Products Act''; H.R. 5104, the ''Better Online Ticket Sales (BOTS) Act''; H.R. 1301, the ''Amateur Radio Parity Act of 2015''; H.R. 3299, the ''Strengthening Public Health Emergency Response Act of 2015''; H.R. 921, the ''Sports Medicine Licensure Clarity Act of 2015''; and H.R. 670, the ''Special Needs Trust Fairness Act of 2015''.

MAKING A FINANCIAL CHOICE: MORE CAPITAL OR MORE GOVERNMENT CONTROL?

Committee on Financial Services: Full Committee held a hearing entitled ''Making a Financial Choice: More Capital or More Government Control?''. Testimony was heard from public witnesses.

EXAMINING THE OPPORTUNITIES AND CHALLENGES WITH FINANCIAL TECHNOLOGY: THE DEVELOPMENT OF ONLINE MARKETPLACE LENDING

Committee on Financial Services: Subcommittee on Financial Institutions and Consumer Credit held a hearing entitled ''Examining the Opportunities and Challenges with Financial Technology ('FinTech'): The Development of Online Marketplace Lending''. Testimony was heard from public witnesses.

HUMAN RIGHTS UNDER SIEGE WORLDWIDE

Committee on Foreign Affairs: Full Committee held a hearing entitled ''Human Rights Under Siege Worldwide''. Testimony was heard from public witnesses.

PAKISTAN: FRIEND OR FOE IN THE FIGHT AGAINST TERRORISM?

Committee on Foreign Affairs: Subcommittee on Terrorism, Nonproliferation, and Trade; and Subcommittee on Asia and the Pacific, held a joint hearing entitled ''Pakistan: Friend or Foe in the Fight Against Terrorism?''. Testimony was heard from public witnesses.

ACCOUNTABILITY OVER POLITICS: SCRUTINIZING THE TRAFFICKING IN PERSONS REPORT

Committee on Foreign Affairs: Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations held a hearing entitled ''Accountability Over Politics: Scrutinizing the Trafficking in Persons Report''. Testimony was heard from Susan Coppedge, Ambassador-at-Large to Monitor and Combat Trafficking in Persons, Department of State; and a public witness.

VALUE OF DHS' VULNERABILITY ASSESSMENTS IN PROTECTING OUR NATION'S CRITICAL INFRASTRUCTURE

Committee on Homeland Security: Subcommittee on Cybersecurity, Infrastructure Protection, and Security Technologies held a hearing entitled ''Value of DHS' Vulnerability Assessments in Protecting our Nation's Critical Infrastructure''. Testimony was heard from Chris P. Currie, Director, Homeland Security and Justice Issues, Government Accountability Office; Andy Ozment, Assistant Secretary, Office of Cybersecurity and Communications, National Protection and Programs Directorate, Department of Homeland Security; Caitlin Durkovich, Assistant Secretary, Office of Infrastructure Protection, National Protection and Programs Directorate, Department of Homeland Security; and Marcus L. Brown, Homeland Security Advisor, Director of the Office of Homeland Security, Commonwealth of Pennsylvania.

OVERSIGHT OF THE DEPARTMENT OF JUSTICE

Committee on the Judiciary: Full Committee held a hearing entitled ''Oversight of the Department of Justice''. Testimony was heard from Loretta Lynch, Attorney General, Department of Justice.

EXECUTIVE OVERREACH IN REGULATORY ENFORCEMENT AND INFRASTRUCTURE

Committee on the Judiciary: Task Force on Executive Overreach held a hearing entitled ''Executive Overreach in Regulatory Enforcement and Infrastructure''. Testimony was heard from Gary Ridley, Oklahoma Secretary of Transportation; and public witnesses.

CHANGING DEMANDS AND WATER SUPPLY UNCERTAINTY IN CALIFORNIA

Committee on Natural Resources: Subcommittee on Water, Power and Oceans held a hearing entitled ''Changing Demands and Water Supply Uncertainty in California''. Testimony was heard from David Murillo, Mid-Pacific Regional Director, Bureau of Reclamation, Department of the Interior; and public witnesses.

OPPORTUNITIES AND CHALLENGES OF DEVELOPING THE MANCOS SHALE RESOURCE

Committee on Natural Resources: Subcommittee on Energy and Mineral Resources held a hearing entitled

"Opportunities and Challenges of Developing the Mancos Shale Resource". Testimony was heard from Walter Guidroz, Program Coordinator, Energy Resources Program, U.S. Geological Survey; Rose Pugliese, Commissioner, Mesa County, Grand Junction, Colorado; and public witnesses.

LEGISLATIVE MEASURE

Committee on Natural Resources: Subcommittee on Indian, Insular, and Alaska Native Affairs held a hearing on H.R. 5406, the "Helping Ensure Accountability, Leadership, and Trust in Tribal Healthcare Act". Testimony was heard from Representative Noem; Mary Smith, Principal Deputy Director, Indian Health Service, Department of Health and Human Services; and public witnesses.

MISCELLANEOUS MEASURES

Committee on Natural Resources: Full Committee began a markup on H.R. 1157, the "Santa Ynez Band of Chumash Mission Indians Land Transfer Act of 2015"; H.R. 2333, to authorize the Secretary of the Interior to acquire certain property related to the Fort Scott National Historic Site in Fort Scott, Kansas; H.R. 2817, the "National Historic Preservation Amendments Act of 2015"; H.R. 4576, the "Ensuring Access to Pacific Fisheries Act"; H.R. 5468, to direct the Secretary of the Interior to allow for prepayment of repayment obligations under Repayment Contracts between the United States and the Weber Basin Water Conservancy District; H.R. 5577, the "Innovation in Offshore Leasing Act"; S. 246, the "Alyce Spotted Bear and Walter Soboleff Commission on Native Children Act"; and S. 1579, the "Native American Tourism and Improving Visitor Experience Act".

RELIGIOUS LIBERTY AND H.R. 2802, THE FIRST AMENDMENT DEFENSE ACT

Committee on Oversight and Government Reform: Full Committee held a hearing entitled "Religious Liberty and H.R. 2802, the First Amendment Defense Act (FADA)". Testimony was heard from Senator Lee; Representative Labrador; Former Representative Barney Frank; and public witnesses.

MISCELLANEOUS MEASURES

Committee on Oversight and Government Reform: Full Committee held a markup on H.R. 2319, the "Electronic Message Preservation Act of 2015"; H.R. 5037, the "District of Columbia Courts and Public Defender Service Voluntary Separation Incentive Payments Act"; H.R. 5341, to amend title 5, United States Code, to recalculate annuity benefits for certain air traffic controllers, and for other purposes; H.R. 5714, the "Postal Service Reform Act of 2016"; H.R. 5707, the "Postal Service Financial Improvement Act of 2016"; H.R. 5709, the "Federal Records Modernization Act"; H.R. 5690, the "GAO Access and Oversight Act of 2016"; H.R. 5341, to amend title 5, United States Code, to recalculate annuity benefits for certain air traffic controllers, and for other purposes; H.R. 5687, the "GAO Mandates Revision Act of 2016"; H.R. 5033, the "Getting Results through Enhanced Accountability and Transparency Act of 2016"; H.R. 4419, the "District of Columbia Judicial Financial Transparency Act"; H.R. 4887, to designate the facility of the United States Postal Service located at 23323 Shelby Road in Shelby, Indiana, as the "Richard Allen Cable Post Office"; H.R. 5356, to designate the facility of the United States Postal Service located at 14231 TX–150 in Coldspring, Texas, as the "E. Marie Youngblood Post Office"; H.R. 5612, to designate the facility of the United States Postal Service located at 2886 Sandy Plains Road in Marietta, Georgia, as the "Marine Lance Corporal Squire 'Skip' Wells Post Office Building". The following bills were ordered reported, as amended: H.R. 5037, H.R. 5033, and H.R. 4419. The following bills were ordered reported, without amendment: H.R. 2319, H.R. 5341, H.R. 5714, H.R. 5707, H.R. 5709, H.R. 5690, H.R. 5341, H.R. 5687, H.R. 4887, H.R. 5356, and H.R. 5612.

MOTOR VEHICLE SAFETY WHISTLEBLOWER ACT; SENATE AMENDMENT TO THE HOUSE AMENDMENT TO A SENATE BILL TO REAUTHORIZE AND AMEND THE NATIONAL SEA GRANT COLLEGE PROGRAM ACT, AND FOR OTHER PURPOSES

Committee on Rules: Full Committee held a hearing on S. 304, the "Motor Vehicle Safety Whistleblower Act"; and the Senate amendment to the House amendment to S. 764, to reauthorize and amend the National Sea Grant College Program Act, and for other purposes. The committee granted, by voice vote, a rule that provides for the consideration of the Senate amendment to the House amendment to S. 764. The rule makes in order a motion offered by the chair of the Committee on Agriculture or his designee that the House concur in the Senate amendment to the House Amendment to S. 764. The rule waives all points of order against consideration of the motion. The rule provides that the Senate amendment and the motion shall be considered as read. The rule provides one hour of debate on the motion equally divided and controlled by the chair and ranking minority member of the Committee on Agriculture. Additionally, the rule grants a closed rule for S. 304. The rule provides one hour of debate

equally divided and controlled by the chair and ranking minority member of the Committee on Energy and Commerce. The rule waives all points of order against consideration of the bill. The rule provides that an amendment in the nature of a substitute consisting of the text of Rules Committee Print 114–61 shall be considered as adopted and the bill, as amended, shall be considered as read. The rule waives all points of order against provisions in the bill, as amended. The rule provides one motion to recommit with or without instructions. Lastly, the rule waives clause 6(a) of rule XIII (requiring a two-thirds vote to consider a rule on the same day it is reported from the Rules Committee) against any resolution reported on the legislative day of July 14, 2016 or July 15, 2016. Testimony was heard from Chairman Conaway, and Representatives Pitts, Schakowsky, Black, and Peterson.

ASTRONOMY, ASTROPHYSICS, AND ASTROBIOLOGY

Committee on Science, Space, and Technology: Subcommittee on Space; and Subcommittee on Research and Technology, held a joint hearing entitled ''Astronomy, Astrophysics, and Astrobiology''. Testimony was heard from Paul Hertz, Director, Astrophysics Division, National Aeronautics and Space Administration; Jim Ulvestad, Director, Division of Astronomical Sciences, National Science Foundation; and public witnesses.

READY FOR LIFTOFF: THE IMPORTANCE OF SMALL BUSINESSES IN THE NASA SUPPLY CHAIN

Committee on Small Business: Subcommittee on Agriculture, Energy and Trade held a hearing entitled ''Ready for Liftoff: The Importance of Small Businesses in the NASA Supply Chain''. Testimony was heard from public witnesses.

COAST GUARD ARCTIC IMPLEMENTATION CAPABILITIES

Committee on Transportation and Infrastructure: Subcommittee on Coast Guard and Maritime Transportation held a hearing entitled ''Coast Guard Arctic Implementation Capabilities''. Testimony was heard from Admiral Charles Michel, Vice Commandant, U.S. Coast Guard; Allison Stiller, Principal Civilian Deputy to the Assistant Secretary of the Navy, Research, Development and Acquisition, U.S. Navy, Department of Defense; Jennifer Grover, Director, Homeland Security and Justice Issues, Government Accountability Office; and Ronald O'Rourke, Specialist in Naval Affairs, Congressional Research Service; and public witnesses.

RISING COSTS OF HEALTH INSURANCE PREMIUMS UNDER THE AFFORDABLE CARE ACT

Committee on Ways and Means: Full Committee held a hearing on the rising costs of health insurance premiums under the Affordable Care Act. Testimony was heard from public witnesses.

Joint Meetings

ENCOURAGING ENTREPRENEURSHIP

Joint Economic Committee: Committee concluded a hearing to examine encouraging entrepreneurship, focusing on growing business, not bureaucracy, after receiving testimony from Tim Kane, Stanford University Hoover Institution, Stanford, California; Tom Walker, Rev1 Ventures, and Jamie Richardson, White Castle System, Inc., on behalf of the National Restaurant Association, both of Columbus, Ohio; and Carla Harris, Morgan Stanley, New York, New York, on behalf of the National Women's Business Council.

COMMITTEE MEETINGS FOR WEDNESDAY, JULY 13, 2016

(Committee meetings are open unless otherwise indicated)

Senate

Committee on Appropriations: Subcommittee on Energy and Water Development, to hold hearings to examine proposed budget estimates and justification for the nuclear cruise missile, 10:30 a.m., SD–138.

Subcommittee on Military Construction and Veterans Affairs, and Related Agencies, to hold hearings to examine a review of the Department of Veterans Affairs' electronic health record (VistA), progress toward interoperability with the Department of Defense's electronic health record, and plans for the future, 10:30 a.m., SD–124.

Subcommittee on Energy and Water Development, to hold closed hearings to examine proposed budget estimates and justification for the nuclear cruise missile, 2:30 p.m., SVC–217.

Committee on Commerce, Science, and Transportation: Subcommittee on Space, Science, and Competitiveness, to hold hearings to examine NASA at a crossroads, focusing on reasserting American leadership in space exploration, 2:30 p.m., SR–253.

Committee on Energy and Natural Resources: business meeting to consider S. 718, to modify the boundary of Petersburg National Battlefield in the Commonwealth of Virginia, S. 814, to provide for the conveyance of certain Federal land in the State of Oregon to the Confederated Tribes of Coos, Lower Umpqua, and Siuslaw Indians, S. 815, to provide for the conveyance of certain Federal land in the State of Oregon to the Cow Creek Band of Umpqua Tribe of Indians, S. 1007, to amend the Dayton Aviation Heritage Preservation Act of 1992 to rename a

site of the Dayton Aviation Heritage National Historical Park, S. 1167, to modify the boundaries of the Pole Creek Wilderness, the Owyhee River Wilderness, and the North Fork Owyhee Wilderness and to authorize the continued use of motorized vehicles for livestock monitoring, herding, and grazing in certain wilderness areas in the State of Idaho, S. 1448, to designate the Frank Moore Wild Steelhead Sanctuary in the State of Oregon, S. 1577, to amend the Wild and Scenic Rivers Act to designate certain segments of East Rosebud Creek in Carbon County, Montana, as components of the Wild and Scenic Rivers System, S. 1623, to establish the Maritime Washington National Heritage Area in the State of Washington, S. 1662, to include Livingston County, the city of Jonesboro in Union County, and the city of Freeport in Stephenson County, Illinois, to the Lincoln National Heritage Area, S. 1690, to establish the Mountains to Sound Greenway National Heritage Area in the State of Washington, S. 1696, to redesignate the Ocmulgee National Monument in the State of Georgia, to revise the boundary of that monument, S. 1699, to designate certain land administered by the Bureau of Land Management and the Forest Service in the State of Oregon as wilderness and national recreation areas and to make additional wild and scenic river designations in the State of Oregon, S. 1777, to amend the Wild and Scenic Rivers Act to authorize the Secretary of Agriculture to maintain or replace certain facilities and structures for commercial recreation services at Smith Gulch in Idaho, S. 1930, to adjust the boundary of the Kennesaw Mountain National Battlefield Park to include the Wallis House and Harriston Hill, S. 1943, to modify the boundary of the Shiloh National Military Park located in the State of Tennessee and Mississippi, to establish Parker's Crossroads Battlefield as an affiliated area of the National Park System, S. 1993, to establish the 21st Century Conservation Service Corps to place youth and veterans in the United States in national service positions to protect, restore, and enhance the great outdoors of the United States, S. 2018, to convey, without consideration, the reversionary interests of the United States in and to certain non-Federal land in Glennallen, Alaska, S. 2087, to modify the boundary of the Fort Scott National Historic Site in the State of Kansas, S. 2177 and H.R. 959, bills to authorize the Secretary of the Interior to conduct a special resource study of the Medgar Evers House, located in Jackson, Mississippi, S. 2223, to transfer administrative jurisdiction over certain Bureau of Land Management land from the Secretary of the Interior to the Secretary of Veterans Affairs for inclusion in the Black Hills National Cemetery, S. 2309, to amend title 54, United States Code, to establish within the National Park Service the U.S. Civil Rights Network, S. 2360, to improve the administration of certain programs in the insular areas, S. 2379, to provide for the unencumbering of title to non-Federal land owned by the city of Tucson, Arizona, for purposes of economic development by conveyance of the Federal reversionary interest to the City, S. 2383, to withdraw certain Bureau of Land Management land in the State of Utah from all forms of public appropriation, to provide for the shared management of the withdrawn land by the Secretary of the Interior and the Secretary of the Air Force to facilitate enhanced weapons testing and pilot training, enhance public safety, and provide for continued public access to the withdrawn land, to provide for the exchange of certain Federal land and State land, S. 2412, to establish the Tule Lake National Historic Site in the State of California, S. 2524, to insure adequate use and access to the existing Bolts Ditch headgate and ditch segment within the Holy Cross Wilderness in Eagle County, Colorado, S. 2548, to establish the 400 Years of African-American History Commission, S. 2608, to authorize the Secretary of the Interior and the Secretary of Agriculture to place signage on Federal land along the trail known as the ''American Discovery Trail'', S. 2616, to modify certain cost-sharing and revenue provisions relating to the Arkansas Valley Conduit, Colorado, S. 2620, to facilitate the addition of park administration at the Coltsville National Historical Park, S. 2805, to modify the boundary of Voyageurs National Park in the State of Minnesota, S. 2839 and H.R. 3004, bills to amend the Gullah/Geechee Cultural Heritage Act to extend the authorization for the Gullah/Geechee Cultural Heritage Corridor Commission, S. 2902, to provide for long-term water supplies, optimal use of existing water supply infrastructure, and protection of existing water rights, S. 2954, to establish the Ste. Genevieve National Historic Site in the State of Missouri, S. 3020, to update the map of, and modify the acreage available for inclusion in, the Florissant Fossil Beds National Monument, S. 3027, to clarify the boundary of Acadia National Park, S. 3028, to redesignate the Olympic Wilderness as the Daniel J. Evans Wilderness, H.R. 1289, to authorize the Secretary of the Interior to acquire approximately 44 acres of land in Martinez, California, H.R. 2288, to remove the use restrictions on certain land transferred to Rockingham County, Virginia, H.R. 1475, to authorize a Wall of Remembrance as part of the Korean War Veterans Memorial and to allow certain private contributions to fund that Wall of Remembrance, H.R. 2615, to establish the Virgin Islands of the United States Centennial Commission, H.R. 2880, to redesignate the Martin Luther King, Junior, National Historic Site in the State of Georgia, H.R. 3620, to amend the Delaware Water Gap National Recreation Area Improvement Act to provide access to certain vehicles serving residents of municipalities adjacent to the Delaware Water Gap National Recreation Area, and H.R. 4119, to authorize the exchange of certain land located in Gulf Islands National Seashore, Jackson County, Mississippi, between the National Park Service and the Veterans of Foreign Wars, 9:30 a.m., SD–366.

Committee on Finance: to hold hearings to examine the Medicare Access and CHIP Reauthorization Act of 2015, focusing on ensuring successful implementation of physician payment reforms, 10 a.m., SD–215.

Subcommittee on Health Care, to hold hearings to examine Alzheimer's disease, focusing on the struggle for families and a looming crisis for Medicare, 2:30 p.m., SD–215.

Committee on Foreign Relations: Subcommittee on East Asia, the Pacific, and International Cybersecurity Policy, to hold hearings to examine United States policy options

in the South China Sea; to be immediately followed by a Full Committee hearing to examine the nominations of Sung Y. Kim, of California, to be Ambassador to the Republic of the Philippines, Rena Bitter, of Texas, to be Ambassador to the Lao People's Democratic Republic, and Kamala Shirin Lakhdhir, of Connecticut, to be Ambassador to Malaysia, all of the Department of State, 10:30 a.m., SD–419.

Subcommittee on Western Hemisphere, Transnational Crime, Civilian Security, Democracy, Human Rights, and Global Women's Issues, to hold hearings to examine Zika in the Western Hemisphere, focusing on risks and response, 2:30 p.m., SD–419.

Committee on Health, Education, Labor, and Pensions: to hold hearings to examine campus safety, focusing on improving prevention and response efforts, 2:45 p.m., SD–106.

Committee on the Judiciary: to hold hearings to examine the nominations of Lucy Haeran Koh, of California, to be United States Circuit Judge for the Ninth Circuit, Florence Y. Pan, to be United States District Judge for the District of Columbia, and Danny C. Reeves, of Kentucky, to be a Member of the United States Sentencing Commission, 10 a.m., SD–226.

Subcommittee on Crime and Terrorism, to hold hearings to examine researching the potential medical benefits and risks of marijuana, 2:30 p.m., SD–226.

House

Committee on Agriculture, Full Committee, hearing entitled ''Examining the CFTC's Proposed Rule: Regulation Automated Trading'', 10 a.m., 1300 Longworth.

Committee on Appropriations, Full Committee, markup on Subcommittee on Labor, Health and Human Services, and Education Appropriations Bill for FY 2017; and Report on the Revised Interim Suballocation of Budget Allocations for FY 2017, 10 a.m., 2359 Rayburn.

Committee on Armed Services, Subcommittee on Tactical Air and Land Forces, hearing entitled ''Air Dominance and the Critical Role of Fifth Generation Fighters'', 2 p.m., 2212 Rayburn.

Subcommittee on Oversight and Investigations, hearing entitled ''Oversight of the European Reassurance Initiative'', 3:30 p.m., 2118 Rayburn.

Committee on the Budget, Full Committee, hearing entitled ''Restoring the Trust for Americans at or Near Retirement'', 9:30 a.m., 210 Cannon.

Committee on Energy and Commerce, Full Committee, markup on H.R. 5510, the ''FTC Process and Transparency Reform Act of 2016''; H.R. 5111, the ''Consumer Review Fairness Act''; H.R. 5092, the ''Reinforcing American Made Products Act''; H.R. 5104, the ''Better Online Ticket Sales (BOTS) Act''; H.R. 1301, the ''Amateur Radio Parity Act of 2015''; H.R. 3299, the ''Strengthening Public Health Emergency Response Act of 2015''; H.R. 921, the ''Sports Medicine Licensure Clarity Act of 2015''; and H.R. 670, the ''Special Needs Trust Fairness Act of 2015'' (continued), 2 p.m., 2123 Rayburn.

Subcommittee on Environment and the Economy, hearing entitled ''Oversight of CERCLA Implementation'', 10 a.m., 2123 Rayburn.

Subcommittee on Commerce, Manufacturing, and Trade, hearing entitled ''Disrupter Series: Health Care Apps'', 10:15 a.m., 2322 Rayburn.

Committee on Financial Services, Full Committee, hearing entitled ''HUD Accountability'', 10 a.m., 2128 Rayburn.

Full Committee, markup on H.R. 5729, to prohibit the Secretary of the Treasury from issuing certain licenses in connection with the export or re-export of a commercial passenger aircraft to the Islamic Republic of Iran, to require annual reports by the Secretary of the Treasury and the Export-Import Bank on financing issues related to the sale or lease of such a commercial passenger aircraft or spare parts for such an aircraft, and for other purposes; H.R. 5711, to prohibit the Secretary of the Treasury from authorizing certain transactions by a U.S. financial institution in connection with the export or re-export of a commercial passenger aircraft to the Islamic Republic of Iran, and for other purposes; and H.R. 5715, the ''No Ex-Im Assistance for Terrorism Act'', 2 p.m., 2128 Rayburn.

Committee on Foreign Affairs, Full Committee, hearing entitled ''Countering the Virtual Caliphate: The State Department's Performance'', 10 a.m., 2172 Rayburn.

Subcommittee on Europe, Eurasia, and Emerging Threats, hearing entitled ''Turkey's Democratic Decline'', 2 p.m., 2200 Rayburn.

Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations, hearing entitled ''The Castro Regime's Ongoing Violations of Civil and Political Rights'', 2 p.m., 2172 Rayburn.

Committee on Homeland Security, Subcommittee on Counterterrorism and Intelligence, hearing entitled ''Counterintelligence and Insider Threats: How Prepared Is the Department of Homeland Security?'', 10 a.m., 311 Cannon.

Committee on the Judiciary, Full Committee, markup on H.R. 68, the ''Juvenile Accountability Block Grant Reauthorization and the Bullying Prevention and Intervention Act of 2015''; and H.R. 4602, the ''Justice for All Reauthorization Act of 2016'', 11 a.m., 2237 Rayburn.

Committee on Natural Resources, Full Committee, markup on H.R. 1157, the ''Santa Ynez Band of Chumash Mission Indians Land Transfer Act of 2015''; H.R. 2333, to authorize the Secretary of the Interior to acquire certain property related to the Fort Scott National Historic Site in Fort Scott, Kansas; H.R. 2817, the ''National Historic Preservation Amendments Act of 2015''; H.R. 4576, the ''Ensuring Access to Pacific Fisheries Act''; H.R. 5468, to direct the Secretary of the Interior to allow for prepayment of repayment obligations under Repayment Contracts between the United States and the Weber Basin Water Conservancy District; H.R. 5577, the ''Innovation in Offshore Leasing Act''; S. 246, the ''Alyce Spotted Bear and Walter Soboleff Commission on Native Children Act''; and S. 1579, the ''Native American Tourism and Improving Visitor Experience Act'' (continued), 10 a.m., 1324 Longworth.

Subcommittee on Energy and Mineral Resources, hearing on H.R. 2663, the ''Public Land Renewable Energy Development Act of 2015'', 2 p.m., 1324 Longworth.

Committee on Oversight and Government Reform, Full Committee, hearing entitled ''Oversight of the FDIC Application Process'', 10 a.m., 2154 Rayburn.

Subcommittee on Information Technology; and Subcommittee on National Security, joint hearing entitled ''Digital Acts of War: Evolving the Cybersecurity Conversation'', 1 p.m., 2154 Rayburn.

Subcommittee on Health Care, Benefits and Administrative Rules, hearing entitled ''From Premium Increases to Failing Co-ops: An Obamacare Checkup'', 2 p.m., 2247 Rayburn.

Committee on Veterans' Affairs, Subcommittee on Disability Assistance and Memorial Affairs, hearing entitled ''TBI Claims: VA's Failure to Provide Adequate Examinations'', 10 a.m., 334 Cannon.

Committee on Ways and Means, Subcommittee on Trade, hearing entitled ''Expanding U.S. Digital Trade and Eliminating Barriers to U.S. Digital Exports'', 10 a.m., 1100 Longworth.

Full Committee, markup on H.R. 5659, the ''Expanding Seniors Receiving Dialysis Choice Act of 2016''; H.R. 5713, the ''Sustaining Healthcare Integrity and Fair Treatment Act of 2016''; H.R. 3608, to amend the Internal Revenue Code of 1986 to exempt amounts paid for aircraft management services from the excise taxes imposed on transportation by air; H.R. 5320, the ''Social Security Must Avert Identity Loss (MAIL) Act of 2016''; H.R. 711, the ''Equal Treatment of Public Servants Act of 2015'', 2 p.m., 1100 Longworth.

Next Meeting of the **SENATE**

9:30 a.m., Wednesday, July 13

Senate Chamber

Program for Wednesday: Senate will continue consideration of the conference report to accompany S. 524, Comprehensive Addiction and Recovery Act, and vote on the motion to invoke cloture on the conference report to accompany the bill at 11 a.m.

Following disposition of the conference report to accompany S. 524, Senate will begin consideration of the House message to accompany H.R. 636, Federal Aviation Administration Reauthorization Act, and vote on the House message to accompany the bill at approximately 1:45 p.m.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, July 13

House Chamber

Program for Wednesday: Consideration of S. 304—"Conscience Protection Act of 2016 (Subject to a Rule). Consideration of H.R. 5119—No 2 H2O from Iran Act. Complete consideration of H.R. 558—Department of the Interior, Environment, and Related Agencies Appropriations Act, 2017.

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